

Ikhtilaf Al-Rayy Baina Salaf

The Book Of Purification

(Kitab AT-Taharat)

Volume -1

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Introduction

All Praise Is Due To Allah Alone, And Muhammad ﷺ Is The Final Messenger Of Allah.

Allah The Exalted Says:

“And Hold Firmly To The Rope Of Allah All Together And Do Not Become Divided.”

(Surah Aal-E-Imran, Ayah 103)

The Subject Of This Book Is **Fiqh (Islamic Jurisprudence) And Hadith**, And In It, We Have Conducted A Detailed **Critical Analysis** Of The Four Madhhabs (Schools Of Thought) Of Ahl Al-Sunnah — **Hanafi, Maliki, Shafi‘I, And Hanbali**.

This Book Will Be **Very Beneficial For Students Of Knowledge** And For Those Who Seek To Do Research. One Of The Reasons Is That We Have Written This Book In **Roman Urdu Also**, So That Every Student Of Knowledge Can Easily **Understand It And Benefit From It In Their Research**.

The Pursuit Of Sacred Knowledge In Islam Has Always Been Grounded In The Rich Legacy Of The Early Generations — The Salaf Al-Şāliḥ — Whose Scholarship Shaped The Foundational Pillars Of Islamic Jurisprudence. Across The Centuries, The Ummah Has Benefited From The Intellectual Endeavors Of These Righteous Predecessors, Particularly In Understanding The Divine Sources: The Qur'an And The Sunnah. However, Alongside Unity In Essentials, The History Of Islamic Law Also Bears Witness To **Legitimate And Scholarly Differences Of Opinion (Ikhtilāf)** That Arose Among The Leading Scholars And The Four Canonical Schools Of Thought: **Ḥanafī, Mālīkī, Shāfi‘ī, And Ḥanbalī**, Along With The Zāhirī School In Select Cases.

This Book, *Ikhtilāf And Opinions Among The Salaf*, Is A **Comprehensive And Encyclopedic Work** Dedicated To Examining And Cataloging These Classical Disagreements Across The Core Disciplines Of Islamic Jurisprudence. The Book Has Been Meticulously Structured To Serve As A Reliable Reference For Scholars, Students Of Knowledge, Researchers, And Anyone Who Seeks A Deeper Understanding Of The Diversity Within Islamic Legal Thought — Diversity That, Rather Than Dividing The Ummah, Reflects The Depth And Nuance Of Our Intellectual Heritage.

Unlike General Comparative Fiqh Texts, This Work Focuses **Exclusively On Issues Of Ikhtilāf**, Presenting A **Methodical And Issue-Wise Analysis**. Each Chapter Follows A Consistent Academic Structure:

1. **The Name Of The Issue**
2. **A Brief Introduction To The Dispute**
3. **Positions Of The Classical Scholars (Salaf)**
4. **Their Evidences: From Qur'an, Hadith, And Rational Arguments**
5. **A Balanced Conclusion**

Special Attention Has Been Given To Presenting **Authentic Evidence** From The **Qur'an**, Relevant **Hadith**, And The **Statements Of The Salaf**, Along With The **Juridical Methodologies** Of The Four Imams And Their Followers. The Work Aims Not Merely To List Opinions, But To **Contextualize**

Each View, Show Its Scriptural Grounding, And Highlight Its Reasoning And Methodological Basis.

When Dealing With Hadith Evidence, This Book Goes Further By Incorporating Detailed **Narrator Analysis** (‘Ilm Al-Rijāl), Referencing Principles Of **Al-Jarḥ Wa Al-Ta‘Dīl**, And Assessing The Strength And Transmission Of Each Narration. Where Exegetical (Tafsīr) Discussions Arise, References Are Made To The Major **Mufasssirūn (Exegetes)** And Their Differing Approaches, Thus Grounding Every Argument In Scholarly Tradition.

The Topics Covered Span Across All Major Chapters Of Islamic Jurisprudence — From **Kitāb Al-Ṣalāh (Book Of Prayer)** To **Kitāb Al-Ṣawm (Book Of Fasting)**, **Ṭahārah (Purification)**, And Beyond — With **Fundamental Issues Receiving Focused, In-Depth Analysis**. The Goal Is Not Only To Present What The Scholars Said, But To Show *Why* They Differed, How They Understood The Sources Differently, And How Those Differences Evolved Into The Legal Schools We Recognize Today.

Ultimately, This Book Seeks To Foster **Respect For Scholarly Disagreement**, Highlight The **Methodological Rigor** Of Islamic Jurisprudence, And **Restore Appreciation For The Diversity Of Thought** That Existed Among The Earliest Generations. In Doing So, It Serves Both As An Academic Contribution And A Spiritual Reminder That Ikhtilāf, When Rooted In Sincere Scholarship And Adherence To Revelation, Is A Sign Of Mercy — Not Division.

May Allah Accept This Effort, Forgive Its Shortcomings, And Make It A Source Of Benefit For Generations To Come.

A Few Points Regarding The Book

Whenever There Is A Difference Of Opinion (Ikhtilaf) On An Issue, We Have First **Explained The Matter From The Qur'an And Hadith**, And Then Presented The Positions Of The **Early Scholars — The Salaf, Jurists (Fuqaha), And Hadith Scholars (Muhaddithun)**. The Views Of Scholars From All Four Madhhabs Have Been Included, And Also From Others Beyond Them.

In This Book, We Have **Covered All The Fundamental Issues Of Disagreement** (Ikhtilāfī Masā’il).

You Will Notice That In Some Cases, **A Narrator (Rawi) Is Disputed**, Meaning Some Scholars Have Graded Him Reliable (Sahih) And Others Have Graded Him Weak (Da‘If). In Such Cases, We Have Clarified That **The Narrator Is Not A Definitive Proof (Hujjah)** — This Is Only Within The Context Of This Book, Since It Is Written On **Jurisprudential Differences** (Fihi Ikhtilafat). We Have Tried, As Much As Possible, To Present Things Accurately. And If There Is Any **Uncertainty**, We Have Not Treated It As A Conclusive Proof.

In General, **Many Hadith Scholars Accept Reports From Disputed Narrators**. Imam Nawawi (Rahimahullah) States That **Narrations From Such Disputed Narrators Are Usually Of The Hasan (Acceptable) Grade**.

(See: *Tahdhib Al-Asma’ Wa Al-Lughat By Al-Nawawi, Volume 4, Page 13*)

Where We Have Written Regarding A Narrator That He Is **Weak By Consensus (Da‘If Bil-Ittifaq)** Or **Reliable By Consensus (Siqa Bil-Ittifaq)**, It Does Not Mean That **No Differing Opinion Ever Existed** About Him. Rather, It Means That **Currently, No Major Scholar Considers Him Reliable Or Weak Respectively**. So Those Whom We Have Labelled As "Weak By Consensus" Are Such That Today’s Scholars Do Not Take Their Narrations As Evidence, And Those We Have Called "Authentic/Reliable By Consensus" Are Not Considered Weak By Any Scholars Today.

And By "Scholars" Here We Mean **The Hadith Scholars Of Ahl Al-Sunnah Across All Madhhabs — Hanafis, Malikis, Shafi‘Is, Hanbalis — And Others As Well**.

When I Describe An "**Athar**" (A Narration From A Companion Or Tabi‘I) Or Hadith As Weak (Da‘If), What I Mean Is That **The Ruling Or Fatwa Based On It Is Not Firmly Established**. Here, The Word "Hadith" Is Being Used In Its **Linguistic Sense** (I.E., General Report), Not Strictly Technical.

I Begin This Book With The Name Of Allah.

Book Of Purification (Wudu)

“Taharah” (Purification) Has Two Meanings:

1. **Linguistically**, It Means **Cleanliness Or Purity**, Such As When Someone Says, “So-And-So Has Made Himself Clean And Pure.”

This Is Stated In *Hilyat Al-Fuqahā* By Ibn Fāris (P. 33), Where He Says:

“Ṭahārah Is The Removal Of Impurities. You Say: ‘I Purified The Garment Or The Ground.’”

2. **In Islamic Law (Sharī‘ Ah)**, It Has **Two Types**:

- **First: Inner (Spiritual) Purity** — Which Refers To **Purifying The Heart** From **Shirk (Polytheism), Bid‘Ah (Innovation), And Sins**.

As The Messenger Of Allah ﷺ Said:

“Purification Is Half Of Faith.”

(Sahih Muslim)

Arabic Text:

حَدَّثَنَا إِسْحَاقُ بْنُ مَنْصُورٍ، حَدَّثَنَا حَبَّانُ بْنُ هِلَالٍ، حَدَّثَنَا أَبَانُ، حَدَّثَنَا يَحْيَى أَنْ زَيْدًا حَدَّثَهُ أَنَّ أَبَا سَلَامٍ حَدَّثَهُ عَنْ أَبِي مَالِكٍ الْأَشْعَرِيِّ قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: "الطُّهُورُ شَطْرُ الْإِيمَانِ"

- **Second: Outward (Physical) Purity** — Such As Allah’s Statement In The Qur’an:

“And Purify Your Garments.”

(Surah Al-Muddathir, 74:4)

Arabic Text:

[وَتِيَابَكَ فَطَهِّرْ] [المدثر: 4]

There Is Difference Of Opinion Among Scholars On The Interpretation Of This Verse.

- **Imam Al-Nawawi** Said That The Meaning Is: **Removing Impurity Or Purifying The Soul**, Or Something Close To That.
(*Al-Majmū‘ Sharḥ Al-Muhadhdhab By Al-Nawawi*, 1/79)
- Other Scholars Said It Means: **To Remove Anything That Prevents Prayer**, Such As Impurity On The Body, In Water, Or On The Ground, Which Affects The Ruling Of Purity.
This Definition Is Found In Many **Hanbali Books**, Such As *Al-Inṣāf* By Al-Mardāwī (1/29), Where It Says:

“Removing That Which Prevents Prayer — Such As Impurity Or Filth — Using Water, Or Removing Its Ruling Using Earth (E.G., Tayammum).”

Among The **Jurists (Fuqaha')**, There Is **Consensus On Some Issues**, And **Disagreement (Ikhtilaf)** On Others.

All Of Them Try To Derive Rulings From The **Qur'an And Hadith**, But Despite This Effort, **Numerous Differences Exist**.

This Is Because:

- Each Jurist Views The **Qur'an And Hadith With A Different Lens**.
- Sometimes, One Jurist Considers A Certain Text To Carry A Ruling, While Another Does Not.
- Sometimes, All Scholars Cite The **Same Hadith As Evidence**, But They Differ In Understanding And Interpretation.
- At Times, A Jurist May **Not Be Aware That A Hadith Is Abrogated (Mansūkh)**, While Another Is Aware Of It.
- Or, One Jurist May **Not Recognize The Weakness Of A Hadith**, While Another Does.
- Sometimes, **One Considers A Hadith To Be Authentic**, While Another Considers **The Same Hadith Weak**.

Still, Their **Shared Goal** Is To Understand The **Qur'an And Hadith** Correctly.

Through This Book, Our Goal Is To:

- Study And Understand The **Evidences And Principles** Of All Scholars And Jurists.
- **Critically Analyze Their Proofs**.
- Strive To Follow The Opinion That Is **Closest To The Truth** And In Line With The **Objectives Of Sharī' Ah**.
- At The Same Time, We Will **Present The Other Opinions With Detail And Fairness**, So That The Reader Sees That **Every Ruling Established By The Jurists Is Based On Evidence**.

However, During Earlier Times, **Knowledge Was Not Gathered And Accessible** In One Place Like It Is Today.

Thus, Being Human, If Something Was **Unavailable Or Unclear** To A Jurist At That Time, We Have Tried To Explain That As Well — While Staying Within The Boundaries Of **Respect And Etiquette**.

Why Purification Is The First Chapter

The **Chapter On Purification** Is Always Mentioned First, Because It Is A **Condition For Acts Of Worship** Like Prayer (**ṣalāh**). It Is The **Gateway To Worship**.

That Is Why All **Jurists**, Whenever They Wrote A Book Of Fiqh, Began With The **Book Of Purification**.

May Allah Deal Kindly With Our **Pious Predecessors (Salaf)**, Jurists (Fuqaha), The Four Imams,

Their Followers, And All Those Who Benefited Islam With Their Knowledge — And May He Grant Them **High Ranks In Paradise** And Protect Them From **The Fire Of Hell. Ameen.**

Consensus On The Types Of Purification

The **Muslim Ummah** Has Consensus That Purification In Sharī‘ Ah Is Of **Two Types**:

1. **Taharah From Hadath (Ritual Impurity)**
2. **Taharah From Khabath (Physical Filth)**

There Is Also Consensus That **Ritual Impurity (ḥadath)** Is Removed In **Three Ways**:

1. **Wudu (Ablution)**
2. **Ghusl (Full-Body Ritual Bath)**
3. **Tayammum (Dry Ablution)**
- 4.

Two Types Of Hadath (Ritual Impurity)

1. **Ḥadath Al-Ḥukmī (Legal Impurity):**

For Example, If Someone's **Wudu Breaks** And He Needs To Perform An Act That **Requires Wudu**, He Must Perform Wudu Again. This Is Called **Ḥadath Al-Ḥukmī**.

First, One Must Determine The **Cause** For The Obligation Of Purification — I.E., For What Purpose Is Purification Necessary?

Allah Says In Surah Al-Ma'idah (5:6):

“O You Who Believe! When You Rise To Pray, Wash Your Faces And Your Hands Up To The Elbows, Wipe Over Your Heads, And Wash Your Feet Up To The Ankles.”

Arabic Text:

{يَا أَيُّهَا الَّذِينَ آمَنُوا إِذَا قُمْتُمْ إِلَى الصَّلَاةِ فَاغْسِلُوا وُجُوهَكُمْ وَأَيْدِيَكُمْ إِلَى الْمَرَافِقِ وَامْسَحُوا بِرُءُوسِكُمْ وَأَرْجُلَكُمْ إِلَى الْكَعْبَيْنِ}

2. **Taharat From Khabath (Filth):**

This Refers To **Cleaning Oneself From Physical Impurities** Like Urine, Blood From A Dead Animal, Etc.

This Includes Both The **Body And The Clothes**.

For Example, ‘A’ishah (Ra) Said That When She Asked The Messenger Of Allah ﷺ About Menstrual Blood On Clothes, He Replied:

“Wash It With Water, Then Pray.”

This Is Evidence For **Purifying Clothing**.

This Is An **Agreed-Upon Hadith**, Found In:

- Sahih Muslim (291)
- Sahih Al-Bukhari (227)

There Is **Consensus Among All Jurists And Hadith Scholars** That **Wudu Is A Condition For Prayer**.

However, **A Few People** Have Opposed This Consensus And Made **Exceptions**, Such As Regarding The Funeral Prayer — The Details Of That Will Be Discussed In The Appropriate Section, **In Shā' Allāh**.

Issue 01 – The Ruling Of Intention (Niyyah) In Wudu (Obligatory/Sunnah)

Meaning Of Niyyah In Language And Terminology

In Language, Its Root Is: (نَوَى يَنْوِي نِيَّةً) (Nawa Yanwi Niyyah), And In The Sarfi (Morphological) Scale Its Origin Is: (نَوِيَّة) (Niyyah).

We See That In It, Both The Letters *Waw* And *Yaa* Come Together. *Waw* Remains Silent Here, And *Yaa* Follows It.

According To The Rules Of Sarf, When *Waw* And *Yaa* Come Together, One Of Them Usually Becomes Dominant.

One Of Them Becomes Silent, And It Is Then Changed Into (يَاءً) (*Yaa*).

«بغية المقتصد شرح بداية المجتهد» (1/ 83):

«(نوى نويت نية ونواة"، أي: عزمت. انظر: "الصاحح" للجوهري (6/ 2516)»

«بغية المقتصد شرح بداية المجتهد» (1/ 84):

يُنظر: "شرح المفصل" لابن يعيش (4/ 309) حيث قال: "متى اجتمعت الواو والياء، وقد سبق الأول منهما بالسكون، فإن الواو «تقلب ياءً، ويدغم الأول في الثاني". وانظر: "شرح كتاب سيبويه" لأبي سعيد السيرافي (5/ 272)

So, When *Waw* And *Yaa* Are Changed, It Becomes: (نِيَّة) (*Niy-Yah*), And When One Merges Into The Other, It Becomes (نِيَّة) (*Niyyah*).

There Is Another Reason In Sarf: When *Waw* Becomes Silent After A *Kasrah*, It Changes To (يَاءً) (*Yaa*).

For Example: *Meeqat* And *Meezan* (مِيقَات، ومِيزَان)

Their Original Forms Were *Mowqat* And *Mowzan* (مَوْقَات، ومَوْزَان)

«بغية المقتصد شرح بداية المجتهد» (1/ 84):

المتع الكبير في التصريف" لابن عصفور (ص 285)، حيث قال: "إلا أن تَقَعَ ساكنة بعد كسرة، فإنها تُقلب ياءً، نحو: ميزان " «وميعاد، الأصل فيهما "موزان" و"موعاد"، لأنهما من الوزن والوعد، فقلبت الواو ياءً لسكونها، وانكسار ما قبلها

The Linguistic Meaning Of *Niyyah* Is Intention — Like When Someone Says, "I Intend To Travel."

«بغية المقتصد شرح بداية المجتهد» (1/ 84):

«(النية": ما ينوي الإنسان بقلبه من خير أو شرٍّ، ومعناها: القصد. انظر: "العين" للخليل (8/ 394)»

And Some Scholars Say The Meaning Is Determination.

(نوى ينوي نية ونواة": عزم. انظر: "مختار الصحاح" للرازي (ص 322)

In Terminology, *Niyyah* Has Two Meanings:

First, It Has A Specific Meaning, Which Is: Doing Or Avoiding An Act Of Worship For The Sake Of Allah Or To Attain Closeness To Him.

Regarding The Term *Tark* (Abandoning), There Is Disagreement On Whether One Needs Intention To Abandon Something Unlawful Or Haram.

Hanafi Madhhab:

In *Al-Bahr Al-Ra'iq* By Ibn Nujaym (1/25), It Is Written:

The Linguistic Meaning Is To Resolve In The Heart Regarding Something.

The Technical Meaning Is To Perform An Action To Attain Closeness To Allah.

مذهب الحنفية، يُنظر: "البحر الرائق" لابن نجيم (1/ 25) حيث قال: "وهي لغة: عزم القلب على الشيء. واصطلاحًا كما في "التلويح": قصد الطاعة والتقرب إلى الله تعالى في إيجاد الفعل

Maliki Madhhab:

In *At-Taj Wal-Ikleel* By Al-Mawaq (2/206), It Is Written:

It Is A Condition For Perfection That The Servant Makes Intention In His Heart, For The Sake Of Allah's Closeness, Especially For Obligatory Prayer.

So, Four Types Of Intentions Are Mentioned: Intention For Closeness To Allah, For Obligation, For Praying, And For A Specific Prayer.

مذهب المالكية، يُنظر: "التاج والإكليل" للمواق (2/ 206) حيث قال: "ومن صفتها على الكمال أن يستشعر الناي الإيمان بقلبه، فيقرن بذلك اعتقاد القربة لله بأداء ما افترض عليه من تلك الصلاة بعينها، وذلك يحتوي على أربع نيات، وهي: اعتقاد القربة، واعتقاد الوجوب، واعتقاد القصد إلى الأداء، وتعين الصلاة

Shafi Madhhab:

In *Nihayat Al-Muhtaj* By Al-Ramli (1/158), The Linguistic Meaning Is Intention, And The Technical Meaning Is To Intend To Do Something Along With Its Action.

"مذهب الشافعية، يُنظر: "نهاية المحتاج" للرملي (1/ 158) حيث قال: "فحقيقتها لغة: القصد. وشرعًا: قصد الشيء مقترنًا بفعله

Hanbali Madhhab:

In *Al-Insaaf* By Al-Mardawi (1/143), It Is Written:

Niyyah Is To Remove The State Of Impurity (Hadath), Or To Obtain Purification For Something That Is Not Allowed Without It.

مذهب الحنابلة، يُنظر: "الإنصاف" للمرداوي (1/ 143) حيث قال: "قوله: "وهو أن يقصد رفع الحدث، أو الطهارة لما لا يُباح إلا بها"، هذا المذهب

All Fuqaha And Madhahib Agree That Niyyah Is An Act Of The Heart.

مذهب الحنفية، يُنظر: "البحر الرائق" لابن نجيم (1/ 292) حيث قال: "والحق أنهم إنما ذكروا العلم بالقلب لإفادة أن النية إنما هي عمل القلب، وأنه لا يعتبر باللسان

"مذهب المالكية، يُنظر: "شرح مختصر خليل" للخرشي (1/ 266) حيث قال: "لأن النية محلها القلب، فلا مدخل للسان فيها

"مذهب الشافعية، يُنظر: "النجم الوهاج" للدميري (1/ 313) حيث قال: "ومحلها القلب... فلا اعتبار بما في القلب بلا خلاف

"مذهب الحنابلة، يُنظر: "كشاف القناع" للبهوتي (1/ 86) حيث قال: " (ومحلها) أي: النية (القلب)؛ لأنها من عمله

Regarding Verbalizing Intention, The Fuqaha Differ, And There Are Three Opinions:

1. Some Say Intention Must Be Made Using Specific Words.

"النجم الوهاج" للدميري (1/ 313) حيث قال: "ويندب التلفظ بالمنوي. وقال الزبير: يجب أن يساعده القلب اللسان"

2. Some Say It Is Better To Make Verbal Intention Along With Intention In The Heart.

الفريق الثاني: أن التلفظ بها أفضل من الاقتصار عليها قلبًا، بمعنى أن الأفضل للإنسان أن ينويها بقلبه، ويتلفظ بها

3. Some Say That Verbal Intention Is An Innovation (Bid'ah).

"يُنظر: "الإقناع" للحجاوي (1/ 24) حيث قال: "والتلفُّظُ بها وبما نَوَّاه هنا، وفي سائر العبادات بدعة"

A Detailed Discussion About Verbal Intention Will Come In The Book *As-Salat*, Insha'allah.

All Scholars Agree That *Wudu* Is A Condition For Worship, But There Is A Difference Of Opinion On Whether *Wudu* Itself Is An Act Of Worship.

Hanafi Madhhab:

In *Al-Bahr Al-Ra'iq* By Ibn Nujaym (1/160), It Is Written:

Wudu Is A Specific Purification Required To Perform *Salah*. It Is Not A Pure Act Of Worship By Itself But Becomes Worship Through Intention.

مذهب الحنفية، يُنظر: "البحر الرائق" لابن نجيم (1/ 160) حيث قال: "وأما الوضوء فطهارة مخصوصة شرطت لاستباحة الصلاة، وليس بعبادة محضة، لكنه يصير عبادة بالنية"

Shafi Madhhab:

In *Mughni Al-Muhtaj* By Al-Sharbini (1/167), It Is Written:

Wudu Is A Pure Act Of Worship.

"مذهب الشافعية، يُنظر: "مغني المحتاج" للشربيني (1/ 167) حيث قال: "ولأنَّ الوضوءَ عبادةً محضةً"

Hanbali Madhhab:

In *Al-Kafi* By Ibn Qudamah (1/55), It Is Mentioned:

Intention Is Required For Purification From Hadath — Including *Wudu*, *Ghusl*, And *Tayammum*.

The Messenger Of Allah ﷺ Said: "Actions Are Based On Intentions."

And This (I.E. *Wudu*) Is Pure Worship.

Some Jurists Say That Having Intention (Niyyah) Is Obligatory In *Wudu* (Ablution), While Others Say That It Is Sunnah.

Those Jurists Who Say That *Niyyah* In *Wudu* Is **Obligatory** Include:

- Imam Malik, Imam Shafi'i, Imam Ahmad Ibn Hanbal, Imam Hammad, Imam Abu Thawr, Imam Dawood Az-Zahiri, Imam Ali Bin Nasr At-Talabi, Imam Ibn Abdul Barr (Maliki), Imam Ibn Hajib Al-Qurdi, Imam Qarafi (Maliki), Imam Shihab Al-Din (Maliki), Imam Muzani (Shafi'i), Imam Rafi'i (Shafi'i), Imam Ibn Qudamah (Hanbali), And Imam Ibn Rushd.

Note About Imam Ibn Rushd: He Made A Distinction In This Matter And Said That *Niyyah* Is Only Obligatory In *Wudu* **When It Is Being Done For *Salah*** (Prayer). If *Wudu* Is Done For Any Other Reason, Then *Niyyah* Is Not Obligatory.

All These Scholars Share The Opinion That ***Niyyah* Is Obligatory In *Wudu*.**

Those Who Say That ***Niyyah* In *Wudu* Is Sunnah** Include:

- Imam Abu Hanifa, Imam Sufyan Thawri, Imam Muhammad Ibn Hasan Shaybani, Qadi Abu Yusuf, Hussain Bin Muhammad Al-Sughdi, Imam Sarakhsi (Hanafi), Imam Tahawi, Imam Umar Al-Atabi Al-Bukhari (Hanafi), Imam Abu Nasr, Imam Abu Qasim Az-Zaynuddin, Ahmad Al-Khasani, Abu Saeed Ibn Barazi (Maliki), Imam Ibn Abu Ziyad Qarawani (Maliki), Imam Abul Hasan Burhanuddin, Umar Ibn Al-Mazza Al-Bukhari, Imam Abdul Qadir (Hanafi), Imam Abu Fadl, Imam Mas'ud Al-Ansari Al-Khasraji, Imam Fakhruddin Zayla'i, Imam Abu Hafs (Hanbali), And Imam Jamaluddin Al-Rumi.

They All Hold That **Niyyah Is Sunnah In Wudu.**

The Hanafi View: They Say It Is *Mustahabb* (Recommended) For A Person To Start Wudu With The Intention Of Reward. Its Time Is **Before Istinja (Cleaning Oneself)**, So The Entire Act Becomes An Act Of Worship.

Its Formulation In The Heart Could Be: Intending To Remove Hadath (Ritual Impurity), To Establish Salah, To Perform Wudu, Or To Fulfill The Divine Command.

378/1) (الفقه الإسلامي وأدلته للزحيلي):

فقال الحنفية: يسن للمتوضئ البداية بالنية لتحصيل الثواب، ووقتها: قبل الاستنجاء ليكون جميع فعله قربة. وكيفيتها: أن ينوي رفع «الحدث، أو إقامة الصلاة، أو ينوي الوضوء أو امتثال الأمر. ومحلها القلب

They Also Say That If Someone Does Wudu **Without Intention**, Or Falls Into The Sea And Their Wudu Limbs Are Washed, **It Is Still Valid.**

They Justify Their Stance That Niyyah Is Not Obligatory But Sunnah With The Following Points:

1. The Quran Does Not Explicitly Mention Niyyah In The Verse Of Wudu — Only Washing Of The Limbs And Wiping The Head.
Niyyah Comes Only In Isolated Hadiths (Ahad), Which Cannot Override Or Add To The Quranic Injunction. Such Addition Would Be Considered Abrogation, Which Is Not Allowed Via Ahad Hadith.
2. They Cite The Hadith Of **Umm Salamah (Ra)**, Who Asked The Prophet ﷺ: “I Am A Woman With Tightly Bound Hair; Do I Need To Undo It For Ghusl?”
He Replied: “No, It Is Enough For You To Pour Water Over Your Head Three Times And Let It Flow Over Your Body — You Will Be Purified.”
(Sahih Muslim 335)
They Argue That Tayammum Requires Intention Because It Uses **Earth**, Not Water — And Water Is The Actual Purifier In Shari'ah. Thus, **Intention Is Necessary For Tayammum But Not For Wudu.**
3. Likewise, They Argue: Just As Removing Impurity (Najasah) Doesn't Require Intention, And Covering The Awrah (Nakedness) Doesn't Need Intention, Similarly, Wudu Doesn't Require Niyyah.
4. Wudu Is Not The *Goal* But A *Means* To Salah. Intention Is Necessary For The *Act Of Worship*, Not For The Means.

378/1) (الفقه الإسلامي وأدلته للزحيلي):

«عدم النص عليها في القرآن... إلخ»

References:

النذر المختار: 98 / 1 - 100، الباب: 16 / 1، مراقي الفلاح: ص 12، البدائع: 1/17، مقارنة المذاهب في الفقه: ص 14

Maliki And Shafi'i Scholars Say Niyyah Is Obligatory In Wudu.

According To Hanbalis, It Is A **Condition** For Any Act Of Worship Or Seeking Closeness To Allah. So Wudu Done **Without Such Intention** — E.G., Just To Eat, Drink, Or Sleep — Is **Not Valid** For Salah.

References:

المجموع للنووي: 361/1 وما بعدها
المهذب: 14/1 وما بعدها
بداية المجتهد: 7/1 وما بعدها
القوانين الفقهية: ص 21
الشرح الصغير: 114/1 وما بعدها
الشرح الكبير: 93/1 وما بعدها
مغني المحتاج: 47/1 وما بعدها
المغني: 110/1 وما بعدها
كشف القناع: 94/1 - 101

They Provide The Following Proofs:

1. **"Actions Are Judged By Intentions"** — The Famous Hadith Of The Prophet ﷺ.
This Implies Every Act In Shari'ah Must Be With Intention — And Wudu Is An Act — So It Requires Niyyah.
2. Allah Says:
"And They Were Commanded Only To Worship Allah, Making The Religion Purely For Him..."
(Surah Al-Bayyinah 5:98)
Meaning: Sincerity In Religion Is Through Intention.
3. Qiyas (Analogy): Just As Salah And Tayammum Are Invalid Without Intention, So Is Wudu.
4. The Very **Purpose Of Wudu** Is To Purify Oneself Before Prayer:
"When You Rise For Prayer, Wash Your Faces..."
(Surah Al-Ma'idah 5:6)
This Shows Wudu Is **Linked To Salah**, Which Means It Must Be Done With Intention.

(الفقه الإسلامي وأدلته للزحيلي 379/1):

«السنة: قوله صلى الله عليه وسلم: ... إلخ - 1»

Niyat (Intention) – A Summary Of What Has Been Studied

1. *Hukm Of Niyat (Ruling)*

- **Jumhoor Fuqaha:** Niyat Is **Wajib** (Obligatory) According To Maliki, Shafi'i, Hanbali.
- **Hanafi:** Consider It **Mustahab** (Recommended).

2. Meaning Of Niyat

- Niyat Means Differentiating Between Acts—E.G., Doing Fard Salah At Its Time Vs Nafl.

3. Conditions Of Niyat

- A Person Must Be **Aware** Of Their Intention.
- Actions Should **Match** The Intention.
- Niyat Should Not Be Tied To A **Condition** (E.G., “If This Happens, Then I’ll Do Wudu”)—This Invalidates It.

4. Specific Case For Those With Constant Impurity (Excused Persons)

- For **Non-Hanafis**, Such People (E.G., With Incontinence Or Istihaada) Must Do Wudu **Only For Each Prayer Time**.

5. Place Of Niyat

- Niyat Takes Place In The **Heart**.
- If Someone Says It **Verbally Without Heart**, It's Not Valid.
- **Malikis** Prefer No Verbal Intention.
- **Some Shafi’is And Hanbalis**: Verbal Niyat Is Sunnah.
- **Hanbalis**: Soft Verbal Niyat Is Mustahab; **Loudly** Is **Makruh**.

6. Cases Where Niyat Is Required

- Niyat Is Essential For Acts Like **Salah, Tawaf**, And Removing **Minor Impurity (Hadas)**.

7. Wrong Niyat

- If Someone Does Wudu **To Cool Off Or For Cleanliness**, It **Does Not** Remove Hadas.
- Because The Intention Was Not **For Ibadah**, It Is Invalid.

8. Dual Intentions

- Wudu With Intention For **Salah + Cooling Off** Is **Valid**.
- But If One Does Wudu With **No Ibadah Intention**, Then It's **Invalid**.

9. Non-Salah Intentions

- If Wudu Is Done For Azan, Sitting In Masjid, Or Knowledge Etc.:
 - **Hanbalis**: Wudu Is Valid.
 - **Malikis**: Not Valid Unless Intention Was To Remove Hadas.
 - **Shafi’is**: Stronger View Is **Not Valid**.

10. Using Wudu For Fard Salah

- If Someone Did Wudu For **Nafl Salah Or Tawaf**, It's **Valid** For **Fard Salah**.

11. Doubt In Niyat During Wudu

- If Doubtful **During** Wudu → **Repeat** It.
- If Doubt Comes **After** Wudu → No Problem.

12. Wudu Done By Another

- Intention Must Come From **The One For Whom Wudu Is Being Done**, Not The One Doing It.

13. Chronic Impurity Cases

- Such People Intend: "**I Am Doing Wudu To Make Salah Permissible**," Not To Remove Hadas.

14. Time Of Niyat

- **Hanafis**: Before Istinja (Cleaning) If It's Part Of Ibadah.
- **Hanbalis**: At The **Start Of Wudu**.
- **Malikis**: At **Start Of Purification**.
- **Shafi'is**: Before Washing **Any Limb**; Slightly Before Taharah Is Also Okay.

15. Maintaining Niyat

- It's **Mustahab** To Maintain Niyat **Until Wudu Ends**.
- Don't Intend To **Interrupt Or Abandon** The Wudu Mid-Way.

16. Losing Focus

- If One Forgets The Niyat Mid-Wudu, **No Issue**—Wudu Remains Valid.
- Like Salah And Sawm, **Once Intention Is Made**, Loss Of Focus Later Doesn't Invalidate It.

Extra View

- Maliki, Shafi'i, And Hanbali: A Person Can Have **Different Intentions** For Each Limb If The Purpose Is Clear.

Why Is There A Difference Of Opinion On Wudu Niyat?

Those Who Say It's Wajib (Obligatory):

- **Dalil**: Hadith From Sahih Bukhari (#1):
"Innamal A'maal Bin Niyyaat" – *Actions Are Based On Intentions*.
- Argument: Since Wudu Is An **Action**, It Also Requires Niyat Just Like Any Other Ibadah.

Those Who Say It's Sunnah (Recommended):

- **Dalil: Qur'an, Surah Ma'idah:6** –

"O You Who Believe! When You Rise For Salah, Wash Your Faces, Hands To Elbows..."

- Argument: The Verse Mentions Only **Actions**, No Niyat—So It's Not **Explicitly Required**.

Explanation Of Terminologies:

- **Khaas:** Clear, Specific Ruling—No Change In Meaning Allowed.
- **Aam:** General Ruling—Open To Interpretation.
- **Mushtarak:** Words With Multiple Meanings.
- **Mu'awwal:** Interpretation Based On Chosen Meaning Among Several.

Some Argue Hadith Cannot Override **Khaas** Of Qur'an.

What Is A Ghareeb Hadith?

Just Like There Are Specific Terminologies (Istilahaat) In The Qur'an That Are Well-Known Among Jurists (Fuqaha), Similarly, "Ghareeb" Is A Particular Terminology Recognized Among The Scholars Of Hadith (Muhaddithin).

Ghareeb – In The Terminology Of Hadith Sciences:

- **Ghareeb:**
In The Terminology Of Hadith Sciences, "Ghareeb" Means **Mufrad** — Solitary Or Singular. This Means That At Any Point In The Chain Of Narration, If There Is **Only One Narrator** Who Reports That Hadith, Then Such A Hadith Is Called A *Ghareeb Hadith*.
- **Important Note:**
There Is A Difference Between A *Ghareeb Hadith* And A *Da'eef (Weak) Hadith*. A Hadith Being Ghareeb Does **Not Necessarily Mean** It Is Weak. However, If The **Solitary Narrator** In The Chain Is Removed And There Remains No Other Supporting Narration (*Mutabi'*) Or Witness (*Shaahid*), Then The Narration Can Be Weak Due To Lack Of Supporting Chains. Still, Such A Hadith Can Be **A Proof (Hujjah)** In Religious Rulings.

Example Of A Ghareeb Hadith

This Is A Hadith That Is Considered Ghareeb:

Sahih Al-Bukhari, Volume 1, Hadith No. 1:

حَدَّثَنَا الْحُمَيْدِيُّ عَبْدُ اللَّهِ بْنُ الزُّبَيْرِ، قَالَ: حَدَّثَنَا سُفْيَانُ، قَالَ: حَدَّثَنَا يَحْيَى بْنُ سَعِيدٍ الْأَنْصَارِيُّ، قَالَ: أَخْبَرَنِي مُحَمَّدُ بْنُ إِبْرَاهِيمَ التَّيْمِيُّ، أَنَّهُ “...سَمِعَ عَلْقَمَةَ بْنَ وَقَّاصٍ اللَّيْثِيَّ، يَقُولُ: سَمِعْتُ عُمَرَ بْنَ الْخَطَّابِ رَضِيَ اللَّهُ عَنْهُ عَلَى الْمُنْبَرِ

Translation:

“Narrated By Al-Humaydi Abdullah Ibn Al-Zubayr: Sufyan Narrated To Us, Who Said: Yahya Ibn Sa‘Id Al-Ansari Narrated To Us, Who Said: Muhammad Ibn Ibrahim Al-Taymi Informed Me, That He Heard Alqamah Ibn Waqqas Al-Laythi Say: I Heard Umar Ibn Al-Khattab (May Allah Be Pleased With Him) Say While On The Pulpit...”

This Hadith Is Found In All Of The Following Sources:

- Sahih Al-Bukhari Vol. 3, P. 145
- Sahih Al-Bukhari Vol. 5, P. 56
- Sahih Al-Bukhari Vol. 7, P. 3
- Sahih Al-Bukhari Vol. 8, P. 140
- Sahih Al-Bukhari Vol. 9, P. 22
- Sahih Muslim Vol. 6, Pp. 26, 46
- Al-Muntaqā Vol. 1, P. 31
- Ibn Khuzaymah Vol. 1, Pp. 261, 262, 520
- Sahih Ibn Hibban Vol. 2, Pp. 113–114; Vol. 11, P. 210
- Al-Mujtaba Vol. 1, Pp. 39, 678, 749
- Sunan Al-Nasa’i Al-Kubra Vol. 1, P. 101; Vol. 4, P. 443; Vol. 5, P. 267; Vol. 10, P. 389
- Sunan Abi Dawood Vol. 2, P. 230
- Jami’ Al-Tirmidhi Vol. 3, P. 282
- Sunan Ibn Majah Vol. 5, P. 305
- Sunan Al-Kubra Al-Bayhaqi Vol. 1, Pp. 41, 215, 298; Vol. 2, P. 14; Vol. 4, Pp. 112, 235; Vol. 5, P. 39; Vol. 6, P. 331; Vol. 7, P. 314
- Sunan Al-Daraqutni Vol. 1, P. 76
- Musnad Ahmad Vol. 1, Pp. 61, 103
- Musnad Abu Dawood Al-Tayalisi Vol. 1, P. 41
- Musnad Humaydi Vol. 1, P. 163
- Musnad Al-Bazzar Vol. 1, P. 379
- Sharh Ma‘Ani Al-Athar Vol. 3, Pp. 69, 96
- Sharh Mushkil Al-Athar Vol. 13, Pp. 106–109
- Al-Mu‘jam Al-Awsat Al-Tabarani Vol. 1, P. 17; Vol. 7, P. 123
- Az-Zuhd Wa’l-Raqa’iq By Ibn Al-Mubarak Vol. 1, P. 62
- Mustakhraj Abi ‘Awanah Vol. 4, Pp. 487–488
- Al-Mu‘jam Ibn ‘Arabi Vol. 1, P. 340; Vol. 3, P. 936
- Kitab Al-Fawa’id Vol. 1, P. 336
- Al-Mu‘jam Ibn Muqri Vol. 1, Pp. 31, 347, 388
- Al-Iman Ibn Mandah Vol. 1, Pp. 154, 363
- Fawa’id Al-Junaid Vol. 1, Pp. 205–207
- Hilyat Al-Awliya Vol. 8, P. 42
- ‘Amili Ibn Bisan Vol. 1, P. 360
- Musnad Al-Shihab Vol. 1, Pp. 35–36; Vol. 2, P. 195
- Al-Adab Al-Bayhaqi Vol. 1, P. 331
- Sunan Al-Sughra Bayhaqi Vol. 1, Pp. 7, 68, 330, 445; Vol. 2, P. 22; Vol. 4, Pp. 188, 396; Vol. 5, P. 60; Vol. 6, P. 538; Vol. 7, P. 558
- Shu‘Ab Al-Iman Vol. 9, P. 160

- Ma'Rifat Al-Sunan Wa'l-Athar Vol. 1, P. 261
- Kitab Al-Arba'In By Nawawi Vol. 1, P. 56
- Kitab Al-Arba'In By Abu Bakr Muhammad Ibn Al-Husayn Al-Baghdadi Vol. 1, P. 78
- Shi'Ar Al-Sahabah Vol. 1, P. 35
- Musnad Ibrahim Al-Zuhdi Vol. 1, P. 24
- Al-Majalis Al-'Ashrah Vol. 1, P. 26
- Al-Arba'In Al-Sughra Al-Bayhaqi Vol. 1, P. 77
- Al-Jami' Al-Ikhtilāq Al-Ruwat Vol. 1, P. 81
- Al-Faqih Wa'l-Mutafaqqih Vol. 2, P. 48
- Tahdhib Al-Asrar Vol. 2, P. 784
- Al-Awsat Fi'l-Sunan Vol. 1, P. 369; Vol. 3, P. 71
- Az-Zuhd Al-Awkiya Vol. 1, P. 628
- Az-Zuhd Vol. 2, P. 440
- Az-Zuhd By Ibn Abi Asim Vol. 1, P. 104
- Az-Zuhd Al-Kubra Al-Bayhaqi Vol. 1, P. 131
- Al-Mu'Jam Al-Shuyukh Vol. 1, Pp. 116, 310, 375
- Tarikh Al-Asbahaniyyin Vol. 2, Pp. 78, 276
- Ma'Rifat Al-Sahabah Vol. 1, P. 55
- Al-Irshad Vol. 1, P. 457; Vol. 2, P. 631

Final Point:

This Hadith Exists Across All These Major Collections Of Hadith, And As We've Referenced, It Is Indeed **Ghareeb** Because The **Main Narrator Is Solitary** In The Chain.

That Narrator Is:

Alqamah Ibn Waqqas Ibn Mushin Ibn Kalda Ibn 'Abdul Yalil Ibn Tarif Ibn 'Atwara Ibn 'Amr Ibn Malik Ibn Lays Ibn Bakr Ibn 'Abdul Manat Ibn Kinana.

A **Sahih (Authentic) Ghareeb Hadith** Can Still Be Used As A **Source Of Religious Rulings**, And It Is Considered A **Valid Proof (Hujjah) In Islam.**

Central Matn (Text Of Hadith):

"Lā Qawla Illā Bi'Amal, Wa Lā 'Amala Illā Biniyyah, Wa Lā Niyyata Illā Bi-Iṣābat As-Sunnah."

"No Statement Is Valid Without Action, No Action Is Valid Without Intention, And No Intention Is Valid Without Following The Sunnah."

Collection Of Chains And Their Grades:

1. Musnad Al-Mu'Jam Al-Shuyukh By Al-Dhahabi (Hadith 49)

Narrator: 'Alī Ibn Abī Ṭālib

- Chain Contains 5 **Narrators** Who Are **Majhool Al-Haal** (Unknown Reliability):
 1. 'Abdullāh Ibn Muḥammad Ibn 'Īsā

2. Al-Faḍl Ibn ‘Abdullāh Al-Hāshimī
3. ‘Abdullāh Ibn ‘Alī Al-Abrūnī
4. ‘Alī Ibn ‘Abdullāh Al-Abrūnī
5. Ḥassān Ibn Tamīm Al-Zayyāt

□ **Hukm (Ruling):** *Ghareeb Munkar* – Very Weak (ضعيف جدا), **Isnād Munqati‘** (Broken Chain)

2. Al-Jāmi‘ Li Akhlāq Ar-Rāwī By Al-Khaṭīb Al-Baghdādī (1/315, Hadith 685)

Narrator: Anas Ibn Mālīk

- Contains **Two Weak Narrators**:
 - **Abān Ibn Abī ‘Ayyāsh** — *Weak By Consensus*
 - **Ismā‘īl Ibn ‘Abdillāh Al-Kindī** — *Also Weak By Consensus*

□ **Hukm:** *Ḍa‘īf* (Weak)

3. Al-Ibānah Al-Kubrā By Ibn Baṭṭah (Hadith 642)

Narrator: Abū Hurayrah

- Chain 1:
 - **Khālīd Ibn ‘Abd Ad-Dā’Im Al-Miṣrī** — *Ḍa‘īf (Weak)*
 - **Manṣūr Ibn Al-Walīd An-Naysābūrī** — *Majhool Al-Haal (Unknown)*

□ **Hukm:** *Ḍa‘īf*

- Chain 2 (Same Book):
 - **Abān Ibn Ṣāliḥ Ibn ‘Umayr Ibn ‘Ubayd** Narrates From **Anas**
 - He Is **Thiqah (Reliable)** By Consensus:
 - Verified By: Yaḥyā Ibn Ma‘īn, Al-‘Ajlī, Abū Zur‘Ah, Abū Ḥātim, Ibn Ḥibbān, Ibn Ḥajar, Etc.
 - His **Sama‘ From Anas** Is Also Confirmed (As Per **Muṣannaf ‘Abd Ar-Razzāq**)
 - However, **Ismā‘īl Ibn ‘Ulayyah** Narrating From Abān Without Clear **Sama‘** Makes The Chain **Munqati‘**

□ **Hukm:** *Munqati‘ With Reliable Narrators* — Still **Ḍa‘īf Due To Disconnection**

4. Taqrīb From Ibn Al-Jawzī’s Work (Risālah Fī Al-Ikhtilāf, P. 50)

- Chain Includes **Abān From Anas** (Supported), But Again Issue Arises Due To **Tadlīs** (Concealment) And **Lack Of Confirmed Hearing** In Some Parts Of Chain

□ **Hukm:** Weak Due To Tadrīs And Possible Inqitā‘

5. Al-Khilāfiyyāt By Al-Bayhaqī (1/130)

Narrator: Anas Ibn Mālīk

- Issue: Ba‘ḍu Ahl Bayti — Unnamed Source → **Majhool (Unknown) Narrator**

□ **Hukm:** *Da‘īf* Due To Majhool Narrator

Summary Judgment On The Matn:

While This Hadith Is Reported Through Multiple Chains And From Different Companions (‘Alī, Anas, Abū Hurayrah), **All The Isnāds Have Significant Weaknesses** — Primarily Due To:

- **Majhool Narrators**
- **Da‘īf (Weak) Narrators**
- **Disconnected Chains (Munqati‘)**
- **Tadrīs Without Proof Of Sama‘**

Thus, Despite Its Widespread Citation In Books Of Zuhd And Akhlāq, **None Of The Chains Are Strong Enough For This Hadith To Be Considered Authentic.**

Summary of the issue

The Ruling of Intention (Niyyah) in Wudu – Obligatory or Sunnah

Brief Explanation:

This issue addresses whether having an intention (niyyah) before performing **wudu** (ritual ablution) is obligatory (wājib/fard) or merely recommended (sunnah/mustahabb). The discussion involves linguistic analysis, madhhab positions, hadith evidence, and usūl-based arguments about intention's legal role.

Evidence from the Text:

- **Hadith:**
“*Actions are judged by intentions...*” – Found in Sahih al-Bukhārī 1 and many other major sources.

→ This hadith is *gharīb* (solitary), but **authentic (ṣaḥīḥ)**.

→ Discussed in over **70+ classical sources** (see complete list in text).

- **Qur'an (Surah Al-Mā'idah 5:6):**

“O you who believe! When you rise for prayer, wash your faces...”

- **Qur'an (Surah Al-Bayyinah 98:5):**

“They were commanded only to worship Allah, making the religion purely for Him...”

Madhhab (School of Thought) Views:

Hanafi:

- **View:** Niyyah in wudu is **not obligatory**, but **recommended (mustahabb)**.
- **Source:** *al-Baḥr al-Rā'iq* (1/160), *al-Fiqh al-Islāmī* (1/378)
- **Arguments:**
 - Qur'anic verses mention *only the physical actions* of wudu, not intention.
 - Hadith about niyyah is solitary and cannot override Qur'anic 'āmm (general) command.
 - Wudu is a **means to prayer**, not an ibādah in itself (becomes worship only via niyyah).
 - If limbs are washed unintentionally (e.g., falling in water), wudu is valid.
- **Position within the madhhab:** Abu Ḥanīfa, Muhammad al-Shaybānī, Abū Yūsuf, al-Sarakhsī, al-Ṭaḥāwī, and others.

Maliki:

- **View: Obligatory (wājib)** in wudu.
- **Source:** *al-Tāj wa al-Iklīl* (2/206), *al-Sharḥ al-Kabīr*, *al-Fiqh al-Islāmī* (1/379)
- **Nuance:** The niyyah includes four elements:
 1. Intention to seek closeness to Allah
 2. Intention of obligation
 3. Intention of performance
 4. Specification of the particular prayer
- **Place of niyyah:** The heart – verbalization **not required**.

Shafi'i:

- **View: Obligatory (wājib)** in wudu.
- **Source:** *Nihāyat al-Muḥtāj* (1/158), *Mughnī al-Muḥtāj* (1/167), *al-Majmū'*, *al-Muhadhdhab*
- **Justification:**
 - Hadith of “Innamā al-a'māl bi al-niyyāt.”
 - Qiyās on ṣalāh and tayammum.
- **Place of niyyah:** In the heart; verbal niyyah is recommended (mandūb).

Hanbali:

- **View: Obligatory** — a **condition (sharṭ)** for wudu.
- **Source:** *al-Inṣāf* (1/143), *al-Kāfi*, *Kashshāf al-Qinā'*
- **Justification:**

- Hadith on intentions.
- Qiyās with ṣalāh and other worship acts.
- **Position:** Niyyah must be present **at the beginning** of wudu.

Zāhiri:

- implied agreement with those who say **niyyah is wājib**, based on literalism.

Sub-Issue: Linguistic and Morphological Analysis of Niyyah

Brief Explanation:

The word *niyyah* comes from the trilateral root ن-و-ي, morphologically transformed due to sarf rules (merging of wāw and yā). Etymologically, it means resolve/intention/determination.

Evidence:

- *Bughiyat al-Muqtasid* (1/83–84), *al-Ṣiḥāḥ*, *Sharḥ al-Mufaṣṣal*, *al-Mumti‘ fī al-Taṣrīf*

Sub-Issue: Place of Niyyah

Brief Explanation:

All four madhhabs agree niyyah is an **act of the heart**, and **verbal articulation is not required**.

Evidence:

- Ḥanafī: *al-Baḥr al-Rā‘iq* (1/292)
- Mālikī: *Sharḥ Mukhtaṣar Khalīl* (1/266)
- Shāfi‘ī: *al-Najm al-Waḥḥāj* (1/313)
- Ḥanbalī: *Kashshāf al-Qinā‘* (1/86)

Sub-Issue: Verbalizing Niyyah – Bid‘ah or Sunnah?

Brief Explanation:

Jurists differ on whether one should say their intention out loud.

Opinions:

1. **Mandatory verbal niyyah** – held by some Shāfi‘īs like al-Zubayrī.
2. **Preferred (afdāl) but not mandatory** – many scholars.
3. **Bid‘ah (innovation)** – some Ḥanbalīs (e.g., Ḥajjāwī in *al-Iqnā‘*)

Sub-Issue: Is Wudu an Act of Worship or a Means to It?

Brief Explanation:

This determines whether wudu **requires** niyyah inherently.

- Ḥanafī: Not an ibādah by itself.
- Shāfi'ī & Ḥanbalī: Pure act of worship → niyyah required.
- Mālikī: Worshipful act, especially linked to ṣalāh.

Sub-Issue: Ghareeb Hadith (Solitary Report) – Impact on Legal Rulings

Brief Explanation:

Hadith like “Innamā al-a‘māl...” are classified as **gharīb**, i.e., solitary reports.

Clarification:

- Ghareeb ≠ Da‘īf necessarily.
- A **ṣaḥīḥ gharīb** hadith is **binding in fiqh**, used by all madhhabs.
- Matn variants exist:
“No action is accepted without intention...” etc.

Sub-Issue: Niyyah Conditions and Scenarios

Scenarios Discussed:

Scenario	Ruling
Niyyah before wudu	Required by majority
Niyyah after starting	Not valid
Niyyah for cooling off or cleanliness	Not valid
Wudu by another person	Valid only if <i>subject</i> intends
Losing focus during wudu	Doesn't affect validity
Wudu for non-prayer acts (e.g. adhan)	Mixed views
Dual intentions (ibadah + cooling)	Valid

Sub-Issue: Excused Individuals (e.g., istiḥāḍah, incontinence)

Brief Explanation:

They must renew their wudu **for each prayer time**.

View:

- Majority: Must have clear niyyah to **make prayer permissible**, not necessarily to remove hadath.

Conclusion

In wudū' (ablution), intention (*niyyah*) is obligatory — this is the view of the majority of jurists (*fuqahā'*), including the Mālikī, Shāfi'ī, and Ḥanbalī schools, and this is the correct opinion.

The place of intention is the heart, and on this point there is consensus among the scholars — including the Ḥanafī, Mālikī, Shāfi'ī, and Ḥanbalī schools.

The detailed discussion regarding verbalizing the intention will, God willing (*in shā' Allāh*), be addressed in the chapter on prayer (*ṣalāh*).

As for those in a state of *istiḥāḍah* (non-menstrual abnormal bleeding) or those with a chronic condition, they have a specific form of intention which must be made to render the prayer valid and permissible — the details of which have already been explained.

And Allah knows best (wa-Allāhu a'lam).

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 02 – Putting Hands Into Water Without Washing Them Before Wudu

Point Of Difference

The Difference Of Opinion Here Is Whether A Person Must Wash Their Hands Before Using Water For Wudu. The Fundamental Disagreement Lies In Whether This Is Obligatory (Wājib) Or Simply Recommended (Sunnah).

Opinions Of The Scholars:

- **Imam Abu Hanifa,**
- **Imam Shafi'i,**
- **Imam Muhammad,**
- **Imam Malik,**
- **Ibn Rushd,**
- **Abdul Rahman Al-Nafzi Al-Maliki** — Say It Is **Sunnah** In Wudu, But **Obligatory** In *Ghusl* (Ritual Bath) If Someone Wakes Up From Sleep And Performs Ghusl.
- **Imam Al-Talabi Al-Baghdadi,**
- **Ibn Asim Al-Nimri,**
- **Imam Muzani** — All Also Hold That It Is **Sunnah**.

Only A Few Jurists Consider It **Wājib**, And Even Among Them There Are Differences:

- Some Say It Is Obligatory **Whenever** Someone Wakes Up And Does Wudu.
- Others Say It Is Obligatory **Only When Waking Up At Night**.

Examples:

- **Dawud Al-Zahiri** Says It Is Wājib Whenever Someone Wakes From Sleep.
- It Is Said That **Imam Ahmad Ibn Hanbal** Considers It Wājib *Only When Waking At Night*.

Most Scholars Consider It **Sunnah**, And Those Who Say It Is Wājib Are Mainly From The **Hanbali School**, With Further Internal Differences:

- **Ibn Qudamah Al-Hanbali**, In His Book *Al-Kafi*, Says It Is Wājib When One Wakes At Night, And **Recommended** At Other Times.
- But The Same **Ibn Qudamah**, In *Al-Mughni*, Discusses Both Views And Gives Preference To Precaution, Saying It's Better To Wash The Hands.
- **Abu Muhammad Al-Bahaa Al-Din** (A Contemporary Of Ibn Qudamah, D. 624 AH, While Ibn Qudamah Died In 620 AH) Says Explicitly In His Commentary On *Umda* That It Is **Sunnah**.
- **Abu Al-Faraj Shams Al-Din** Also Says It Is **Sunnah**, Regardless Of Whether One Woke Up From Sleep Or Not.
- **Abu Ishaq Burhan Al-Din Al-Hanbali** Holds The Same View.

The Majority Opinion:

Most Scholars And Jurists Agree It Is **Sunnah, Preferable, Recommended, And A Good Etiquette** Of Wudu — **Not Wājib**, Except For A Few Scholars.

Cause Of The Disagreement:

The Disagreement Is Due To Certain Hadiths. Some Scholars Base Their Ruling Of *Wujub* (Obligation) On Specific Narrations, While Others Interpret Those Narrations Differently And Present Responses To Support The View That It's **Sunnah Or Mustahabb**.

Detailed Evidences:

Hadith 1 – Sahih Muslim Vol. 1 Hadith 278:

Narrated By Abu Hurayrah (RA): The Prophet ﷺ Said: “When One Of You Wakes From Sleep, He Should Not Dip His Hand Into The Water Until He Washes It Three Times, For He Does Not Know Where His Hand Spent The Night.”

[Sahih Muslim Vol 1, Hadith 278]

Those Who Say It's Obligatory Argue That This Wording Of The Prophet ﷺ Implies Command (Amr), And Therefore An Obligation.

Hadith 2 – Musnad Tiyalisi Hadith 1590 (From Aisha RA):

“When Someone Wakes From Sleep, He Should Not Dip His Hand Into The Water Until He Pours Water On It Three Times. The Prophet ﷺ Used To Do This.”
(Isnad Is Ghareeb – Uncommon Chain)

Hadith 3 – Athar (Narration) From Ali RA – Ibn Abi Shaybah Vol. 2 Hadith 1066:

Ali (RA) Called For Water, Washed His Hands Three Times Before Placing Them In The Container, And Said: “This Is How I Saw The Messenger Of Allah ﷺ Do It.”
(Isnad Is Ghareeb)

Athar 4 – From Imam Al-Sha'bi – Ibn Abi Shaybah Hadith 1057:

Imam Sha'bi Said: “Whether A Person Is Awake Or Asleep, If Wudu Becomes Necessary, He Should Not Put His Hand Into The Water Until He Washes It.”

Note: The Chain Includes **Ash'ath Bin Sawwar**, Who Has Been Declared **Weak (Da'if)** By Majority Of Hadith Scholars.

- **Imam Uthman Ibn Shaybah** Says He Is Not A Reliable Source (*Tahdhib Al-Tahdhib* Vol. 1 Pg. 178).
- Also Criticized In *Al-Kamil Fi Al-Du'afa* Vol. 2 Pg. 40.
=> Therefore, **This Isn't A Strong Proof.**

Response From Those Who Say It's Sunnah:

- **There Is Consensus (Ijma')** Of The Majority Of Jurists That This Is **Sunnah**, Not **Wajib**.
- **The Qur'an** Mentions The **Obligatory Parts** Of Wudu In **Surah Al-Ma'ida (5:6)**, But **Does Not Mention** Washing The Hands Before Dipping Them In Water.
- **The Hadith Itself Is Ambiguous** And Open To Multiple Meanings:
 - It Could Imply Recommendation (Mustahabb) Or Obligation (Wajib).
 - When A Command Is **Doubtful**, Obligation Cannot Be Established From It.

Supporting Hadith – Sahih Al-Bukhari Vol. 1 Hadith 162:

“When Any Of You Performs Wudu, Let Him Sniff Water Into The Nose And Then Blow It Out. Whoever Uses Stones For Istinja', Let Him Do So With An Odd Number. And When One Of You Wakes From Sleep, Let Him Wash His Hand Before Putting It In The Water, For He Does Not Know Where It Spent The Night.”

This Shows:

- **Putting Water In The Nose** Is **Mustahabb**, Not **Wajib**.
- **Using An Odd Number Of Stones** Is Also **Mustahabb**.
- Similarly, **Washing The Hand** After Sleep Is **Mustahabb**.

Additional Supporting Athar:

Hadith – Ibn Abi Shaybah 1060:

Hisham Narrates That Ibn Sireen (RA) Used To Put His Hand Directly Into The Water After Relieving Himself Without Washing It First.

(He Did This Because He Considered His Hand Clean.)

(Hadith Is Hasan Li Dhatihi – Sound In Itself)

- All Narrators Are Trustworthy And Reported In Bukhari And Muslim.

Some Critics Cite Abdul Rahman Ibn Sulayman, But He Is Affirmed By Over 7 Major Hadith Scholars, Including **Ibn Ma'in** And Even **Uthman Ibn Shaybah** Himself On The Same Page.

Regarding **Abdul Rahman Ibn Sulayman**, Some People Might Quote A **Criticism (Jarh)** That *Uthman Ibn Abi Shaybah* Said, "He Is Not A Proof (ḥujjah) In Hadith," (As Mentioned In *Tahdhib Al-Tahdhib*, Vol. 2, P. 570). However, **No One Besides Uthman Ibn Abi Shaybah** Has Criticized Him, While **At Least 7 Or More Hadith Scholars Have Affirmed His Reliability (Tauthīq)**.

As For The Statement Of **Uthman Ibn Abi Shaybah**, He Himself Has Also Authenticated Abdul Rahman Ibn Sulayman. On The Very Same Page, He Referred To Him As "**Thiqah**" (**Reliable**) And "**ṣadūq**" (**Truthful**). In Other Words, There Are **Three Evaluations** From Him: Two Authenticating (Tauthīq), And One Critical (Jarh).

In Addition, This **Hadith Meets The Criteria Of Imams Bukhari And Muslim**, And **Imam Al-Hakim, Imam Al-Tirmidhi**, And Others Have Also **Accepted This Hadith**.

Hisham Ibn Hassan Is Also A **Thiqah Narrator By Consensus**, According To Both **Bukhari And Muslim**.

Some People Might Object By Saying **Hisham Is A Mudallis** From The **Third Level (ṭabaqah Thālithah)**, And **There Is No Evidence Of Hearing (Samāʿ)** In This Hadith. However, It's Important To Note That **The Hadiths Of Third-Level Mudallisins Are Not Always Weak (ḍaʿīf)**.

Regarding Hisham Specifically, **Hadith Scholars Have Accepted His Narrations From Ibn Sīrīn**. For Example, **When Yahya Ibn Maʿīn** Was Asked: "*Do You Prefer Yahya Ibn Abi ʿAtiq More, Or Hisham When Narrating From Ibn Sīrīn?*" Yahya Ibn Maʿīn Replied: "*Both Are Thiqah, And There Is No Preference Between Them,*" (*Tahdhib Al-Tahdhib*, Vol. 4, P. 268).

Furthermore, **Imam Abu Hatim** Said: "*He (Hisham) Is ṣadūq (Truthful),*" And Added That **When He Narrates From Muhammad Ibn Sīrīn, His Narration Is Firmly Established** (*Tahdhib Al-Kamal*, Vol. 30, P. 181).

It Is Absolutely Clear That **When Hisham Narrates From Ibn Sīrīn, The Narration Is Sound (ṣaḥīḥ)**. Additionally, **Imam Al-Bukhari** Has Narrated Hadiths From This Very Chain In His *Ṣaḥīḥ*, Hadith No. 2931. **Imam Muslim** Also Narrated It In His *Ṣaḥīḥ*, Hadith No. 233 (**In Sanad**).

Similarly, **Al-Hakim** Has Also Narrated It And Declared It Authentic. **Imam Al-Nasaʿi, Abu Dawud, Al-Tirmidhi, Al-Darimi, Ibn Hibban, Al-Bayhaqi, Al-Daraqutni, And Ahmad Ibn Hanbal** — Who Narrated **40 Hadiths Through This Very Chain** — All Accepted This Narration.

Even **Imam Al-Bukhari's Teacher, Al-Humaydi**, Accepted It, As Did **Abu YaʿLa, Imam Al-Bazzar, And Ibn Hajar**, Who Also Accepted It In His Book *Al-Maṭālib Al-ʿĀliyah*, Hadith No. 864. **Imam Al-Tahawi** Also Accepted It.

So There Is **Consensus Among Hadith Scholars** That **Hisham Ibn Hassan's Narrations From Ibn Sīrīn Are Authentic**.

Later, **The Same Hadith** Is Narrated By **Ibn Sīrīn** From **ʿUbaydullah Ibn ʿUmar**, Found In *Musannaf Ibn Abi Shaybah*, Vol. 1, Hadith 1059.

Additionally, **‘Isa Ibn Mughirah** Narrates That He Asked **Saeed Ibn Jubayr** About Someone **Putting His Hand In A Water Vessel Before Washing It**, And Saeed Replied: *"There Is No Problem."* (Musannaf Ibn Abi Shaybah, Vol. 1, Hadith **1062**)

Arabic Text:

حدثنا ابن نمير ، عن عيسى بن المغيرة الحرامي قال : سألت سعيد بن جبير عن الرجل يغمس يده في الإناء قبل أن يغسلها ؟ فقال : لا بأس .

(Grading: Ḥasan Li Dhātihī — "Sound In Itself")

Another Narration:

حدثنا عبد الرحيم بن سليمان ، عن الصلت بن بهرام قال : رأيت إبراهيم بال ، ثم أدخل يده في الإناء قبل أن يغسلها ، قال : فصحت به ، [قال] () : فتبسم وقال : ما من رجل أشد في هذا مني ، إني لم أدخلها إلا وهي طاهرة

Translation:

Salt Ibn Bahram Says: *"I Saw **Ibrahim (Al-Nakha‘I)** Urinate, And Then He Dipped His Hand Into The Water Vessel Before Washing It. I Spoke To Him About It, And He Smiled And Said: 'There Is No One More Cautious Than Me In This Matter — I Only Put My Hand In Because It Was Pure.'"*

(Grading: Ḥasan Li Dhātihī — "Sound In Itself")

And Finally:

. حدثنا ابن نمير ، عن الأعمش ، عن إسماعيل بن رجاء ، عن أبيه ، عن البراء : أنه أدخل يده في المطهرة قبل أن يغسلها . قال الأعمش : هذا حرف أستحسنه .

Translation:

Raja Ibn Rabi‘ Narrates: **Bara Ibn ‘Azib** Placed His Hand In The Water Vessel **Before Washing It**. **Al-A‘Mash** Said: *"This Is A Report I Find Favorable."*

(Narrators Are Reliable / Meets The Criteria Of Muslim)

This Hadith Is Accepted By:

- **Bukhari, Muslim, Hakim, Tirmidhi, Nasa’i, Abu Dawood, Darmi, Ibn Hibban, Bayhaqi, Darqutni, Ahmad Ibn Hanbal, And Others.**

Other Reports:

- **Saeed Ibn Jubayr** Said There Is **No Issue** If Someone Puts His Hand In The Water Before Washing. (Ibn Abi Shaybah Hadith 1062)
- **Ibrahim Al-Nakha’i** Did The Same And Said He Only Dipped His Hand When It Was Clean.
- **Al-Bara’ Ibn ‘Azib** Also Dipped His Hand Before Washing. **Al-A‘Mash** Said: "I Liked This Narration."
(This Narrators Are Trustworthy And On Muslim’s Standard.)

Summary of the issue

Putting Hands Into Water Without Washing Them Before Wudu

Brief Explanation:

This issue examines whether a person must **wash their hands** before placing them into a vessel of water for **wudu (ablution)** — particularly after waking up from sleep. The central disagreement revolves around whether this act is **obligatory (wājib)** or merely **recommended (sunnah/mustahabb)**. The debate is based on various **hadith reports, early companions' practices, and principles of ijtihād**.

Evidence from the Text:

Hadith 1 – Sahih Muslim (Vol. 1, Hadith 278):

“When one of you wakes from sleep, he should not dip his hand into the water until he washes it three times, for he does not know where his hand spent the night.”

- **Used by:** Those who say it is **wājib**, interpreting the Prophet’s command as **amr** (a binding directive).

Hadith 2 – Musnad Tiyālīsī (Hadith 1590), from ‘Ā’ishah (RA):

“When someone wakes from sleep, he should not dip his hand into the water until he pours water on it three times. The Prophet ﷺ used to do this.”

- **Isnād:** Ghareeb (uncommon chain)
- **Used to support:** **Sunnah** practice.

Hadith 3 – Athar of ‘Alī (RA), Ibn Abī Shaybah Vol. 2, Hadith 1066:

“This is how I saw the Messenger of Allah ﷺ do it.”

- **Isnād:** Ghareeb
- Supports **Prophetic practice**, not a binding command.

Hadith 4 – From al-Sha‘bī, Ibn Abī Shaybah Hadith 1057:

- Reports that one **should** wash the hand before dipping into water, regardless of sleep.
- **Weak narrator:** Ash‘ath bin Sawwār – weakened by major hadith critics.

Counter-Evidence Used by Sunnah View Holders:

Qur'anic Reference – Surah al-Mā'idah (5:6):

“O you who believe! When you rise for prayer, wash your faces...”

- **No mention** of washing hands before dipping them.
- Used to argue that this act is **not part of obligatory wudu**.

Hadith – Sahih al-Bukhārī (Vol. 1, Hadith 162):

Mentions sniffing water into nose, using odd number of stones, and washing hands upon waking — all **sunnah**, not **fard**.

Athar 1 – Ibn Sīrīn (Ibn Abī Shaybah Hadith 1060):

Did not wash hands before dipping into water; considered them clean.

- **Grading:** Ḥasan li-dhātihī
- **Narrators:** All trustworthy. Chain meets Bukhari/Muslim standards.

Athar 2 – Saʿīd ibn Jubayr (Hadith 1062):

“There is no problem if someone dips his hand before washing.”

- **Grading:** Ḥasan li-dhātihī

Athar 3 – Ibrāhīm al-Nakhaʿī:

Dipped his hand into vessel and said it was clean.

- **Grading:** Ḥasan li-dhātihī

Athar 4 – al-Barāʾ ibn ʿĀzib:

Placed hand in vessel before washing; al-Aʿmash said: “I liked this narration.”

- **Grading:** Meets Muslim's criteria

Madhhab (School of Thought) Views:

Madhhab	Ruling	Notes
Hanafi	Sunnah	Abu Ḥanīfa, Muhammad. Practice not obligatory.
Maliki	Sunnah	Mālik, Ibn Rushd, al-Nafzī (except in ghusl).
Shafi'i	Sunnah	Clear recommendation, not obligation.
Hanbali	Mixed Views	Some say wājib at night only (Ibn Qudāmah in <i>al-Kāfī</i>), others say sunnah in all cases (Ibn Qudāmah in <i>al-Mughnī</i> , Abu al-Faraj, al-Bahā', Burhān al-Dīn).
Zāhirī (Dāwūd)	Wājib when waking from sleep	Literal interpretation of hadith.

Sub-Issue: Is the Hadith Command (Amr) Always Obligatory?

Brief Explanation:

The core point of divergence lies in how **amr (imperative verbs)** are interpreted in the Prophet's words. Those who say it is **wājib** take “do not dip” as a legal command. Others say the **amr here is guidance or recommendation**, not obligation.

Evidence from Text:

- The Prophet ﷺ also said: “Use odd number of stones for istinjā’” — yet **this is not considered wājib**.
- Therefore, **context and comparatives** matter in interpretation.

Sub-Issue: Hand Cleanliness and Common Practice Among Salaf

Brief Explanation:

Many of the **early generations (salaf)** — like Ibn Sīrīn, Sa'īd ibn Jubayr, Ibrāhīm al-Nakha'ī, and al-Barā' ibn 'Āzib — are reported to have **dipped their hands into water** without washing them first, suggesting they did not consider it obligatory.

Sub-Issue: Hadith Grading and Acceptability

Brief Explanation:

Critics raised doubts about **certain narrators**, but counter-arguments in the text establish that:

- Hishām ibn Ḥassān's narrations from Ibn Sīrīn are **accepted** by Bukhārī, Muslim, al-Ḥākim, Tirmidhī, etc.
- 'Abd al-Raḥmān ibn Sulaymān is authenticated by **seven+ major scholars**, even by 'Uthmān ibn Shaybah, who gave mixed verdicts.

Conclusion:

Washing Hands Before Dipping Into Water For Wudu Is *Sunnah*, Not *Wājib*.

This Is The Correct And Preferred View Of:

- Imam Abu Hanifa,
- Imam Muhammad,
- Imam Shafi'i,
- Imam Malik,
- Ibn Sireen,
- Saeed Ibn Jubayr,
- Ibrahim Al-Nakha'i,
- Al-Bara' Ibn 'Azib,
- Ibn Rushd,
- Abdul Rahman Al-Nafzi Al-Maliki,
- Imam Al-Talabi Al-Baghdadi,
- Ibn Asim Al-Nimri,
- Imam Muzani,
- Abu Muhammad Al-Bahaa Al-Din,
- Abu Al-Faraj Shams Al-Din,
- Abu Ishaq Burhan Al-Din Al-Hanbali.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 03 – **The Ruling On Saying “Bismillah” Before Wudu**

The Core Disagreement In This Matter Is Whether Saying “**Bismillah**” Before Wudu Is **Obligatory (Wājib)** Or Not.

Those Who Say It Is *Not* Wajib:

Among Those Who Hold That Saying **Bismillah Before Wudu Is *Not* Obligatory**, But Rather **Recommended (Mustahabb)**, **Sunnah**, **Virtuous (Afḍal)**, And Part Of The **Etiquette (Adab)** Of Wudu Are:

- **Imam Al-A‘ẓam Abu Ḥanīfah**
- **Imam Muhammad**
- **Abu Yūsuf**
- **Imam Muhammad Sughdi**
- **Imam Al-Sarakhsī**
- **Imam Al-Kasānī**
- **And All Other Ḥanafīs (Ijmā‘ Of The Hanafī School)**

Similarly, From The **Mālikī School**:

- **Imam ‘Āṣim Al-Nimrī Al-Qurṭubī**
- **Imam Aḥmad Ibn Rushd Al-Qurṭubī**
- **The Famous Ibn Rushd's Grandson (Al-Jadd)**
- **Ibn Ḥājjib Al-Kurḍī**
- **‘Abd Al-Raḥmān Al-Mālikī**
- **Ibn Al-Ḥājj Al-Mālikī**

From The **Shāfi‘ī School**:

- **Imam Al-Shāfi‘ī**
- **Imam Al-Muzanī**
- **Abū Al-Ḥasan Al-Māhamalī**
- **Imam Al-Māwardī**
- **Imam Yūsuf Al-Sirājī**
- **Imam Rukn Al-Dīn**
- **Imam Al-Ghazālī**
- **Imam Al-Musta‘Zī**
- **Sālīm Al-‘Umrānī Al-Yamānī**
- **Abū Al-Ṭayyib Al-Aṣfahānī**
- **Muḥammad Al-Rāfi‘ Al-Qazwīnī**

From The **Ḥanbalī School**:

- **Imam Aḥmad Ibn Ḥanbal**

- Imam ‘Abdullāh Al-Kharqī
- Ibn Qudāmah
- Abū Muḥammad Bahā’ Al-Dīn
- Al-Rammānī Al-Ṣāliḥī Al-Ḥanbalī

From The **Zāhirī School**:

- Ibn Al-Mundhir Al-Nīsābūrī

All Of Them Held That Saying “**Bismillah**” Before Wudu Is **Not Obligatory**, But **Sunnah, Mustahabb, Preferred, And A Recommended Etiquette** Of Wudu.

Hanafi School Evidence:

"Bughiyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid" (1/116):

*"According To The Ḥanafīs: See **Fath Al-Qadīr** By Kamāl Ibn Al-Humām (1/23), Where He Says: 'Even If We Consider The ḥadīth Of The Man Who Prayed Poorly ("ḥadīth Al-Musi' ṣalātahu"), In One Of Its Versions, The Prophet ﷺ Said:*

"When You Rise For Prayer, Perform Wudu As Allah Has Commanded You..."

**Al-Tirmidhī Graded This ḥadīth ḥasan, But It Does Not Mention The Basmalah In The Context Of Teaching Wudu."*

Also In **Al-Baḥr Al-Rā'iq** By Ibn Nujaym (1/19):

"(The Phrase: Like The Basmalah) Means Just As Saying 'Bismillah' Is Sunnah In The Beginning Of Acts Generally, So Too Is Washing The Hands At The Start Of Wudu."

Shāfi'ī School Evidence:

"Bughiyat Al-Muqtasid" (1/116) Also Quotes From **Al-Majmū'** By Al-Nawawī (1/346):

"Our Scholars Used As Evidence The Verse:

{فَاغْسِلُوا وُجُوهَكُمْ} – '... Then Wash Your Faces...' (Surah Al-Ma'idah 5:6),

And The Prophet ﷺ'S Statement: 'Perform Wudu As Allah Has Commanded You.'

*None Of These Texts Make The Basmalah Obligatory."**

In **Mughnī Al-Muḥtāj** By Al-Shirbīnī (1/185):

"Among The Sunnahs Of Wudu Is To Say The Basmalah At Its Beginning."

Some **Have Falsely Attributed** The View Of **Obligation (Wujūb)** To **Imam Al-Shāfi'ī**, But This Is **Incorrect**. In His Own Book **Al-Umm**, Imam Al-Shāfi'ī Explicitly Dedicated A Chapter Where He **Classified It As Sunnah**.

Mālikī School Evidence:

Some Have Also **Misattributed The View Of Obligation To Imam Mālik**, But **The Mālikīs Have Consensus That It Is Sunnah**, Except For **Shihāb Al-Dīn Al-Mālikī** Who Had A Different Opinion.

In **Al-Tāj Wa Al-Iklīl** By Al-Mawwāq (1/383):

“(Regarding The Basmalah): ‘Ali Reported That Mālik Denied The Basmalah For Wudu And Said: ‘I’ve Never Heard Of This — Does Abu ‘Umar Want To Perform Wudu Like Someone Is About To Slaughter?’”

Ḥanbalī School Evidence:

Some Ḥanbalī Scholars Claim That **Two Opinions** Are Narrated From **Imam Aḥmad Ibn Ḥanbal** — One Saying It Is **Wājib**, The Other **Sunnah**.

But The **Correct Opinion** Is The One Narrated In *Masā’il Aḥmad*, Where He Was Asked:

"What If Someone Forgets To Say The Basmalah Or Leaves It Out?"

He Replied: *"I Hope There Is No Harm In It."*

Ibn Qudāmah Also Had **Two Opinions**:

- In **Al-‘Umdah**, He Said It Is **Wājib**
- But In **Al-Kāfī** And **Al-Mughnī**, He Classified It As **Sunnah Or Mustahabb**

These Latter Books (*Kāfī* And *Mughnī*) Are Considered **Stronger** And **More Authoritative** Than *‘Umdah* Within The Ḥanbalī School, So Preference Is Given To Those Views.

Majd Al-Dīn Al-Ḥanbalī Considered It **Wājib**, But With The Condition: *“If Someone Forgets, There Is No Sin.”*

Only **A Few Ancient Scholars** — Such As:

- **Abū Al-Faraj Shams Al-Dīn**
- **Abū Al-Ḥusayn**
- **Abū Ja‘Far**
- **Abū Shaqīlah**
...Held The View Of **Obligation**, But They Are **Very Few And Rare** — Countable On One's Fingers.

Cited Hanbali Texts:

In **Kashshāf Al-Qinā‘** By Al-Buhūtī (1/90-91):

"The First Obligation In Wudu, Ghusl, And Tayammum Is The Basmalah, Based On The ḥadīth:

‘There Is No Wudu For One Who Does Not Mention Allah’s Name Over It.’

If Someone Says It In The Middle, It Only Applies To Part Of The Act — Not The Whole — So It Must

*Be Said At The Beginning.
If Omitted Deliberately, The Purification Is Invalid."*

See Also **Al-Insāf** By Al-Mardāwī (1/128)

Now Let Us Examine The Reason For The Difference Of Opinion.

Those Who Say It (Saying “Bismillah” Before Wudu) Is *Wajib* (Obligatory) Say So Because Of The Hadith Of The Messenger Of Allah ﷺ. And Those Who Consider It *Sunnah* (Recommended) Base Their View On Several Different Evidences.
(Let Us Now Look At Both In Detail.)

Jami' At-Tirmidhi, Hadith 25

The Messenger Of Allah ﷺ Said:

"There Is No Wudu (Ablution) For The One Who Does Not Mention The Name Of Allah Over It."
Arabic:

حَدَّثَنَا نَصْرُ بْنُ عَلِيٍّ وَبِشْرُ بْنُ مُعَاذٍ الْعَقَدِيُّ قَالَا: حَدَّثَنَا بِشْرُ بْنُ الْمُفَضَّلِ ، عَنْ عَبْدِ الرَّحْمَنِ بْنِ حَزْمَلَةَ ، عَنْ أَبِي ثَيْفَالِ الْمُرِّي ، عَنْ رَبَاحِ بْنِ عَبْدِ الرَّحْمَنِ بْنِ أَبِي سُفْيَانَ بْنِ حُوَيْطِبٍ ، عَنْ جَدِّهِ ، عَنْ أَبِيهَا قَالَ: سَمِعْتُ رَسُولَ اللَّهِ ﷺ يَقُولُ: لَا وُضُوءَ لِمَنْ لَمْ يَذْكُرْ اسْمَ اللَّهِ عَلَيْهِ

Status: Weak (ضعيف)

Let Us Now Look At The Narrators Of This Chain:

In This Chain Is ‘Abdur-Rahman Ibn Harmalah – He Is *Controversial*. If A Corroborating Report (Shahid) Is Found, Then The Hadith May Be Raised To *Hasan*.

- Ibn Hibban Said In *Al-Thiqat* (Vol. 7, Pg. 68) That He Used To Make Errors In Hadith.
- This Was Also Quoted By Imam Al-Mizzi In *Tahdhib Al-Kamal* (Vol. 17, Pg. 58), And Ibn Hajar In *Tahdhib Al-Tahdhib* (Vol. 2, Pg. 499).
- Ibn Hajar Also Said In *Taqrib Al-Tahdhib* (Vol. 1, Pg. 575): “He Used To Err In Hadith.”
- Abu Hatim Said In *Al-Jarh Wa Al-Ta'dil* (Vol. 5, Pg. 223): Ibn Sa’d Called Him Weak.
- On The Same Page, Abu Hatim Also Says: “He Is Not A Proof.”
- Yahya Ibn Sa’id Said: “His Memory Was Weak.” (*Tahdhib Al-Tahdhib*, Vol. 2, Pg. 499)

Another Narrator In This Chain Is Abu Thifal, Who Is Also Weak.

- Abu Hatim And Abu Zur’ah Said He Is *Da’If* And *Majhool* (Unknown), And So Did Yahya Ibn Sa’id Al-Qattan (*Ikmal Tahdhib Al-Kamal*, Vol. 3, Pg. 108).
- Al-Bukhari Said There Is *Kalam* (Criticism) On Him (*Tahdhib Al-Tahdhib*, Vol. 1, Pg. 275).

Another Chain For The Same Hadith

This Chain Also Contains Rabah Ibn 'Abd Al-Rahman, Who Is *Controversial* And Is The Main Narrator Of This Hadith.

Arabic:

أَخْبَرَنَا عَبْدُ الْبَاقِي بْنُ عَبْدِ الْجَبَّارِ ... سَمِعْتُ رَسُولَ اللَّهِ ﷺ
لَا صَلَاةَ لِمَنْ لَا وُضُوءَ لَهُ، وَلَا وُضُوءَ لِمَنْ لَمْ يَذْكُرِ اسْمَ اللَّهِ، وَلَا يُؤْمِنُ بِاللَّهِ مَنْ لَا يُؤْمِنُ بِي، وَلَا يُؤْمِنُ بِي مَنْ لَا يُحِبُّ الْأَنْصَارَ

Abu Dawood, Hadith 101 – From Abu Hurayrah

The Messenger Of Allah ﷺ Said:

“There Is No Prayer For The One Who Does Not Have Wudu, And There Is No Wudu For The One Who Does Not Mention The Name Of Allah Over It.”

Status: Weak (ضعيف)

In This Chain Is Salamah – He Is Agreed Upon As Weak.

- Ibn Hibban Said In *Al-Thiqat* (Vol. 4, Pg. 317) That He Used To Make Mistakes.
- Ibn Hajar Said: *Laysa Bi Qawi* (Not Strong) – *Taqrib Al-Tahdhib*, Vol. 1, Pg. 403.
- Imam Dhahabi Said: He Is Not A Proof – *Al-Kashif*, Vol. 2, Pg. 517.

Another Chain Exists In Al-Bayhaqi

: عَنْ أَبِي هُرَيْرَةَ قَالَ : قَالَ رَسُولُ اللَّهِ ﷺ...
مَا تَوَضَّأَ مَنْ لَمْ يَذْكُرِ اسْمَ اللَّهِ عَلَيْهِ، وَمَا صَلَّى مَنْ لَمْ يَتَوَضَّأَ

Status: Weak (ضعيف)

In This Chain Is Mahmoud Ibn Muhammad Ibn Mahmoud – He Is Weak By Consensus.

Another Hadith – Narrated From Sa’d Ibn Malik Ibn Sinan, In Ibn Majah (Vol. 1, Hadith 397)

“There Is No Wudu For The One Who Does Not Mention The Name Of Allah Over It.”

Matn (Text) Is The Same

Status: Weak (ضعيف)

In This Chain Is Kaseer Ibn Ziyad – He Is *Controversial* (Mukhtalaf Feeh)

- Abu Zur’ah Said: *Saduq But Layyin Al-Hadith* (Soft/Weak In Hadith) – *Tahdhib Al-Tahdhib*, Vol. 3, Pg. 458
- Abu Hatim Said: *Da’If In Hadith* (Same Page).
- Imam Al-Nasa’i Said: *Da’If*
- Imam Al-Tabari Said: He Is Not A Proof.
- Ibn Hajar Said In *Taqrib Al-Tahdhib*, Vol. 1, Pg. 808: “He Used To Make Mistakes.”
- Ahmad Ibn Muhammad Ibn Hajjaj Said That Ahmad Ibn Hanbal Did Not Consider This Hadith To Be Sahih.
- Ibn Al-Jawzi Also Said It Is Not Established – *Al-Badr Al-Munir*, Vol. 2, Pg. 74
- Ibn Al-Mulqin Said It Is Not Sahih.

- Ibn Hajar Said That Ibn Ma'in Declared Kaseer *Da'If* And Abu Zur'ah Said He Was *Layyin Al-Hadith* – *Tuhfat Al-Ahwazi*, Vol. 1, Pg. 37

Another Hadith From Sahl Ibn Sa'd In Ibn Majah (Hadith 400)

"There Is No Prayer Without Wudu, And No Wudu Without The Name Of Allah, And No Prayer For The One Who Does Not Send Blessings Upon The Prophet, And No Prayer For The One Who Does Not Love The Ansar."

Matn Is The Same

Status: Weak (ضعيف)

In This Chain Is 'Abdul Muhaimin – He Is *Weak By Consensus*.

- Imam Al-Nasa'i Said: *Matrook* (Abandoned) And Weak – *Tahdhib Al-Tahdhib*, Vol. 2, Pg. 630
- Imam Al-Daraqutni Also Said It Is Weak
- Ishaq Ibn Rahwayh Said He Is *Da'If*
- Abu Hatim Said: *Munkar Al-Hadith*
- Imam Al-Bayhaqi Said: Hadith Is Weak – *Ikmal Tahdhib Al-Kamal*, Vol. 8, Pg. 359
- Ibn Hibban Said: "Fahshul Wahm Wa Batil Wa Laisa Bi Hujjah" (His Narrations Contain Severe Confusion And Are False, And He Is Not A Proof)
- Ahmad Ibn Abdullah Also Said He Is *Da'If*
- Many Scholars Have Similarly Declared Him Weak.

Another Chain Of This Hadith Exists In *Al-Mu'jam Al-Kabir* Of Al-Tabarani

Arabic Chain:

حَدَّثَنَا عَبْدُ الرَّحْمَنِ بْنُ مُعَاوِيَةَ الْغُبَيْي الْمِصْرِيُّ، ثَنَا عُبَيْدُ اللَّهِ بْنُ مُحَمَّدٍ بْنِ الْمُكَدَّرِيِّ، ثَنَا ابْنُ أَبِي فُدَيْكٍ، عَنْ أَبِي بِنِ عَبَّاسٍ بْنِ سَهْلٍ بْنِ سَعْدٍ، عَنْ أَبِيهِ، عَنْ جَدِّهِ، أَنَّ رَسُولَ اللَّهِ ﷺ قَالَ:

"There Is No Prayer For The One Who Has No Wudu, And There Is No Wudu For The One Who Does Not Mention The Name Of Allah Over It, And There Is No Prayer For The One Who Does Not Send Blessings Upon The Prophet ﷺ, And No Prayer For The One Who Does Not Love The Ansar."

Status: Weak (Isnad Da'If)

This Chain Also Contains 'Abd Al-Muhaimin, Who Is A Weak Narrator.

Criticism Of 'Abd Al-Muhaimin:

- **Imam Al-Bukhari** Said (As Narrated By Al-Dulabi): *"He Is Not Strong."*
— *Ikmal Tahdhib Al-Kamal* (2/5)
- **Imam Al-Nasa'i** Also Said: *"He Is Not Strong."*
— *Tahdhib Al-Tahdhib* (1/97)

- **Yahya Ibn Ma'in** Said: "He Is Weak."
— *Al-Kashif Fi Ma'Rifah Man Lahu Riwayah Fi Al-Kutub Al-Sittah* (2/82)
- **Imam Al-Dhahabi** Summarized: "They Considered Him Weak."
— *Al-Kashif* (2/82)
- **Ibn Hajar** Said: "He Has Weakness."
— *Taqrib Al-Tahdhib* (1/120)
- **Imam Al-Uqayli** Said: "He Narrates Hadiths That Are Not Followed Up By Anyone (I.E., Not Corroborated)."
— *Ikmal Tahdhib Al-Kamal* (2/5)
- **Abu Al-'Arab** Listed Him Among The Weak Narrators.
— *Ikmal Tahdhib Al-Kamal* (2/5)
- **Imam Ahmad Ibn Hanbal** Said: "His Hadith Is Munkar (Denounced)."
— *Tahdhib Al-Tahdhib* (1/97)
- **Abu Bishr Al-Dulabi** Said: "He Is Not Strong."
— *Tahdhib Al-Tahdhib* (1/97)
- **Imam Al-Saji** Said: "He Is Weak."
— *Ikmal Tahdhib Al-Kamal* (2/5)

A Similar Hadith Is Also Reported From Abu Sabrah In Al-Mu'Jam Al-Kabir, Hadith No. 755

Arabic Chain:

حَدَّثَنَا أَحْمَدُ بْنُ عَبْدِ الرَّحْمَنِ بْنِ عَقَالٍ الْحَرَّانِيُّ، ثنا أَبُو جَعْفَرٍ النَّفِيلِيُّ، (ح) وَحَدَّثَنَا مُحَمَّدُ بْنُ عَبْدِ اللَّهِ الْحَضْرَمِيُّ، ثنا شُعَيْبُ بْنُ سَلَمَةَ الْأَنْصَارِيُّ، قَالَا: ثنا يَحْيَى بْنُ يَزِيدَ بْنِ عَبْدِ اللَّهِ بْنِ أَنَيْسٍ، حَدَّثَنِي عَبْدُ اللَّهِ بْنُ سَبْرَةَ، عَنْ جَدِّهِ أَبِي سَبْرَةَ، قَالَ: قَالَ رَسُولُ اللَّهِ ﷺ

"There Is No Prayer Except With Wudu, And There Is No Wudu For The One Who Does Not Mention The Name Of Allah Over It. He Does Not Believe In Allah Who Does Not Believe In Me, And Whoever Does Not Recognize The Right Of The Ansar Has Not Believed In Me."

Matn (Text) Is The Same

Status: Weak (Da'If)

In This Chain Is A Narrator Named **Shu'Ayb Ibn Salamah**, Who Is **Majhool** (Unknown).

A Similar Athar (Statement) Is Reported From Abu Bakr Al-Siddiq In Musannaf Ibn Abi Shaybah, Hadith No. 17

Arabic:

حَدَّثَنَا خَلْفُ بْنُ خَلِيفَةَ، عَنْ لَيْثٍ، عَنْ حُسَيْنِ بْنِ عُمَارَةَ، عَنْ أَبِي بَكْرٍ قَالَ:

"When A Servant Performs Wudu And Mentions The Name Of Allah As He Begins His Wudu, Then His Whole Body Is Purified. But If He Does Wudu Without Mentioning The Name Of Allah, Then Only The Part Touched By Water Is Purified."

Status: Weak (Da'If)

- The Chain Is **Gharib (Unusual)**.
- **Husayn Ibn 'Amarah** Is **Majhool** (Unknown).

Summary Of All Six Narrations:

A Total Of **Six** Narrations Were Mentioned Above. All Of Them Are **Weak (Da‘If)**, And This Has Been Elaborated In Detail.

Response Of Those Who Say Tasmiyah Is Not Wajib (Obligatory):

One Of The Primary Evidences Cited By Those Who Do Not Consider Saying *Bismillah* Before Wudu To Be Obligatory Is That **The Quran, In The Verse Describing Wudu (Surah Al-Ma'idah, 5:6), Does Not Mention It**. If It Were Truly Obligatory, It Would Have Been Mentioned Explicitly. Furthermore, There Is **No Sahih Hadith** Affirming It As A Condition (*Shart*) For Validity.

Summary of the issue

The Ruling on Saying “Bismillah” Before Wudu

Brief Explanation:

This issue focuses on whether reciting “**Bismillah**” (بِسْمِ اللَّهِ) before beginning **wudu** (ritual ablution) is **obligatory (wājib/shart)** for its validity or simply **recommended (sunnah/mustahabb)** as an etiquette of purification. The disagreement arises due to interpretation of certain hadiths and whether those hadiths establish a legal condition or merely recommend good practice.

Evidence from the Text:

Qur’anic Reference – Surah al-Mā'idah (5:6):

“O you who believe! When you rise for prayer, wash your faces...”

- No mention of the basmalah (بِسْمِ اللَّهِ) in the description of wudu.
- Those who say it's **not wājib** argue that had it been obligatory, the Qur'an would have mentioned it explicitly.

Key Hadiths Cited in Support of Obligation:

1. *Jāmi' al-Tirmidhī (Hadith 25):*

“There is no wudu for the one who does not mention the name of Allah over it.”

Arabic: لَا وُضُوءَ لِمَنْ لَمْ يَذْكُرْ اسْمَ اللَّهِ عَلَيْهِ

Status: Weak (ḍa‘īf)

- **Weak narrator:** ‘Abd al-Raḥmān ibn Ḥarmalah – known for errors in ḥadīth.
- **Abū Thifāl** – also weak and unknown.

2. *Sunan Abī Dāwūd (Hadith 101) – From Abū Hurayrah:*

“There is no prayer for one without wudu, and no wudu for the one who does not mention the name of Allah.”

Status: Weak

- Contains narrator **Salamah**, widely agreed upon as **weak**.

3. *Sunan Ibn Mājah (Hadiths 397, 400) – From Sa’d ibn Mālik, Sahl ibn Sa’d, etc.:*

- All chains contain weak narrators, e.g., **Kathīr ibn Ziyād**, ‘Abd al-Muhaimin.
- Matn is repetitive and not supported by authentic isnād.

4. *al-Mu‘jam al-Kabīr of al-Ṭabarānī:*

“There is no wudu for the one who does not mention Allah’s name...”

Narrators: All criticized for **weakness, unreliability, or tadlīs (concealment)**.

5. *Athar from Abū Bakr al-Ṣiddīq – Musannaf Ibn Abī Shaybah (Hadith 17):*

“Whoever does wudu and mentions Allah’s name, his body is purified...”

Status: Weak

- Narrator **Ḥusayn ibn ‘Amārah** is **majhūl (unknown)**.

Response from Scholars Who Say It’s Not Wājib:

1. **Qur’an is silent** on the basmalah in wudu.
2. **No ṣaḥīḥ hadith** establishes the basmalah as a **condition (sharṭ)** of wudu.
3. **Hadiths cited** are **weak (ḍa‘īf)** across all chains.
4. Therefore, **tasmiyah is not a requirement**, but a **recommended practice**.

Madhhab (School of Thought) Views:

Madhhab	Ruling	Evidence/Key Scholars
Hanafi	Sunnah / Mustahabb	Ijmā' of Hanafīs – Abū Ḥanīfah, Muhammad, Abū Yūsuf, al-Sarakhsī, al-Kāsānī
Maliki	Sunnah	Ibn Rushd (the grandfather), 'Abd al-Raḥmān al-Mālikī, Ibn al-Ḥājj, others
Shafi'i	Sunnah	Imām al-Shāfi'ī (explicitly in al-Umm), al-Nawawī, al-Muzanī, al-Māwardī, al-Rāfi'ī
Hanbali	Two opinions: Wājib (minority), Sunnah (preferred)	Aḥmad ibn Ḥanbal (inclined toward non-obligatory), Ibn Qudāmah (sunnah in <i>al-Kāfi</i> and <i>al-Mughnī</i>), al-Mardāwī, al-Buhūtī
Zāhiri	Sunnah	Ibn al-Mundhir

Sub-Issue: Did Imam Aḥmad Say It Was Wājib?

Brief Explanation:

- Two positions reported:
 - Al-'Umdah:** Wājib
 - Al-Kāfi & al-Mughnī:** Not wājib
- Correct/Preferred View:** Sunnah
- Even those who considered it wājib **made exceptions** for forgetfulness.

Sub-Issue: Misattributions to Imām Mālik and Imām al-Shāfi'ī

Clarification:

- Some falsely claimed **Imām Mālik** or **Imām al-Shāfi'ī** considered it obligatory.
- In fact:
 - Mālik said: “*I have not heard of this...*” (Al-Tāj wa al-Iklīl)
 - Al-Shāfi'ī **explicitly declared** it sunnah in **al-Umm**.

Sub-Issue: Ḥadīth “Lā wuḍū' li man lam yadhkur ism Allāh” – What Does It Mean?

- Literal translation: “*There is no wudu for one who does not mention Allah's name over it.*”
- Interpretations:**
 - Legal negation (nafī al-ṣiḥḥah)** → invalid wudu (used by minority)
 - Spiritual negation (nafī al-kamāl)** → wudu valid, but lacking reward (majority)

Cause of Disagreement:

- Weakness of the main hadiths.
- Difference in interpreting *lafẓ al-amr* (command) in ḥadīth.
- The hadiths say “no wudu” — is that **literal** or **metaphorical**?
- All strong scholars ultimately leaned toward **non-obligation**, citing the **absence of Qur’anic mention** and **weakness in isnād**.

Conclusion:

Saying *Bismillah* Before Wudu Is **Mustahabb (Recommended)** Or **Sunnah, Not Obligatory** – And This Is The **Correct View**.

All four Sunni schools of law ultimately **prefer the view of sunnah**, except for a few individual scholars who considered it wājib, but even then with **leniency in cases of forgetfulness**

This Is Also The **Madhhab (Legal Opinion)** Of:

- Imam Al-A‘Zam Abu Hanifah,
- Imam Muhammad,
- Abu Yusuf,
- Imam Muhammad Al-Sughdi,
- Imam Al-Sarakhsi,
- Imam Al-Kasani,
- Imam ‘Asim Al-Nimri Al-Qurtubi (Maliki),
- Imam Ahmad Ibn Rushd Al-Qurtubi (Maliki) (The Grandfather Of Ibn Rushd Al-Hafid),
- Ibn Al-Hajib Al-Kurdi (Maliki),
- ‘Abd Al-Rahman Al-Maliki,
- Ibn Al-Hajj (Maliki),
- Imam Al-Shafi‘I,
- Imam Al-Muzani,
- Abu Al-Hasan Al-Mahamili Al-Shafi‘I,
- Imam Al-Mawardi,
- Imam Yusuf Al-Sarakhsi,
- Imam Rukn Al-Din,
- Imam Al-Ghazali,
- Imam Al-Mustawzi Al-Shafi‘I,
- Salim Al-‘Umrani Al-Yamani,
- Imam Abu Al-Tayyib Al-Asfahani,
- Muhammad Al-Rafi‘I Al-Qazwini,
- Imam Ahmad Ibn Hanbal,
- Imam Al-Nawawi,
- Imam ‘Abdullah Al-Kharqi Al-Hanbali,
- Ibn Qudamah,
- Abu Muhammad Baha Al-Din,
- Al-Ramani Al-Salihi Al-Hanbali,
- Ibn Al-Mundhir Al-Naysaburi Al-Zahiri, And Others.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 04 – Ruling On Rinsing The Mouth And Nose During Wudu

There Is A Fundamental Difference Of Opinion Regarding Whether Rinsing The Mouth (*Madhmadah*) And The Nose (*Istinshaaq*) During Wudu Is **Wajib (Obligatory)** Or **Sunnah (Recommended)**.

Scholars Who Consider It Sunnah:

The Following Hanafi And Maliki Scholars Consider Rinsing The Mouth And Nose To Be Sunnah And Recommended:

- Imam Abu Hanifa
- Imam Muhammad
- Imam Abu Yusuf
- Imam Muhammad Al-Sughdi
- Imam Al-Sarakhsi
- Imam Al-Samarqandi
- Abul Qasim Zainuddin Al-Hanafi
- Imam Al-Kasani
- Imam Burhanuddin
- Umar Ibn Al-Maza Al-Bukhari
- Abdul Qadir Al-Hanafi Al-Razi
- Abu Fadl
- Imam Al-Khazraji
- Imam Al-Zayla'i
- Abu Hafs

Among The Malikis:

- Imam Of Madinah, Imam Malik
- Imam Qasim
- Imam Saad Ibn Barazi
- Abdul Rahman Al-Nafzi Al-Khurasani
- Al-Sa'li Al-Baghdadi
- Asim Al-Numayri Al-Qurtubi
- Ibn Rushd
- Ibn Al-Hajib Al-Kurdi
- Imam Al-Qarafi
- Shihabuddin Al-Maliki
- Ibn Al-Hajj
- Ibn Jazzi Al-Kalbi
- Al-Jundi Al-Maliki

Among The Shafi'Is:

- Imam Of The Muslims, Imam Al-Shafi'I
- Imam Al-Muzani

- Imam Al-Mahamili
- Imam Al-Mawardi
- Imam Siraj
- Abul Ma‘ Ali Ruknuddin
- Imam Al-Ghazali

Among The Hanbalis:

- Imam Ahl Al-Sunnah, Ahmad Ibn Hanbal (In One Narration)
- Imam Al-Khiraqi
- Ibn Qudamah
- Abu Muhammad Bahauddin
- Shamsuddin

All Of These Scholars Held The View That Rinsing The Mouth And Nose Is Sunnah Or Mustahabb (Recommended).

Supporting References:

- *Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid* (1/137):
 “He Began To Explain The Sunnahs, Saying: Among Them Are Rinsing The Mouth And Drawing Water Into The Nose...”
- *Sharh Al-Kabir* By Al-Dardir (1/97):
 “Among Its Sunnahs: Rinsing The Mouth, I.E., Entering Water Into The Mouth And Swishing It, Then Spitting It Out; And Drawing Water Into The Nose, I.E., Inhaling Water Into The Nostrils.”
- *Mughni Al-Muhtaj* By Al-Shirbini (1/187):
 “Among Its Sunnahs Are Rinsing The Mouth And Drawing Water Into The Nose.”
- *Al-Durr Al-Mukhtar* By Al-Haskafi (1/116):
 “Rinsing The Mouth Fully And The Nose With Water Reaching The Soft Tissue – Both Are Confirmed Sunnahs.”

Imam Ahmad Ibn Hanbal’s Two Opinions

Imam Ahmad Ibn Hanbal Had **Two Opinions** On This Issue:

1. **First Opinion (Earlier):** If Someone Forgets To Rinse The Mouth Or Nose During Wudu And Realizes It After Salah Or During Salah, They Must Redo It And Repeat The Prayer.
 - This View Is Recorded In:
 - *Masa’il Ishaq Ibn Rahwayh*

- *Masa'il Abu Fadl*
- *Masa'il Abdullah*
- *Masa'il Abu Dawud*

When Asked Whether Rinsing The Mouth And Nose Are Obligatory (*Fard*), He Replied:

“No. How Can I Say It Is Obligatory? What Is Obligatory Is That Which Allah Has Mentioned In His Book.”

2. **Second Opinion (Later):** Rinsing The Mouth And Nose Is **Not Obligatory**. This Second View Is Preferred Based On Three Reasons:
 - **First:** It Aligns With The Opinions Of Most Scholars And Hadith Experts, While The Earlier Opinion Contradicts Them. Following The Majority (*Jumhoor*) Is Preferable.
 - **Second:** Most Hanbali Scholars Gave Preference To This Second Opinion, That It Is Not Obligatory.
 - **Third:** Ahmad Ibn Hanbal Initially Said It Was Obligatory, But Later Changed His Fatwa, Indicating His Revised View.

Ibn Qudamah Also Had **Two Opinions**—One Stating It Is Obligatory, And The Other That It Is Sunnah. The Stronger View Seems To Be That He Later Adopted The Sunnah Position. *Wallahu A'Lam*.

However, Imam Mujahiduddin And Some Other Scholars Still Considered It Obligatory.

Cause Of Disagreement

The Basis For This Disagreement Lies In **Hadith** Evidence.

Those Who Say It Is **Obligatory** Argue From The Consistent *Practice* Of The Prophet ﷺ In Performing It.

Among Hanbalis, The **Stronger Opinion** Attributed To Imam Ahmad Is That:

Rinsing The Nose Is Obligatory, But Rinsing The Mouth Is Not.

From *Bughyat Al-Muqtasid* (1/141), Quoting *Al-Insaf* By Al-Mardawi (1/152–153):

“Rinsing The Mouth And Nose Are Obligatory In Both Types Of Purification (Wudu And Ghusl)—This Is The Standard Hanbali View, Supported By Most Companions. Some Say Only Nose Rinsing Is Obligatory. Some Differentiate Between Major And Minor Ritual Purity. Some Say Only In Wudu. Others Say Neither Is Obligatory, But Only Sunnah.”

Qur'anic Evidence

In Surah Al-Ma'idah, Verse 6:

“Wash Your Faces...”

The Implication Is That Anything Included Within The Boundaries Of The Face Should Be Washed—including The Mouth And Nose. Hence, Some Argue This Supports The Obligation.

Hadith Evidence

Sahih Al-Bukhari (Hadith 164):

Narrated Humran (The Freed Slave Of ‘Uthman Ibn ‘Affan), Who Saw ‘Uthman Performing Wudu:

“‘Uthman Called For Water, Poured It Over His Hands Three Times, Then Inserted His Right Hand Into The Vessel, Rinsed His Mouth, Inhaled Water Into His Nose, And Blew It Out...”

Then He Said:

“I Saw The Messenger Of Allah ﷺ Doing The Same.”

This Indicates That The Prophet ﷺ Regularly Performed These Actions, And Thus Some Conclude They Are Obligatory Based On Consistent Practice.

Chain Of Narrations (Sanad Evidence)

Hadiths Supporting This Include:

- **From Usman Ibn ‘Affan** (Via Multiple Chains):
 - Sahih Muslim (Hadith 230)
 - Abu Dawud (Hadith 108)
 - Ibn Majah (Hadith 435)
 - Bayhaqi Al-Kubra (Hadiths 214, 296)
 - Dar Qutni (Hadiths 284, 304, 308)
 - Abu Ya’la (Vol. 2, Pg. 8, Hadith 633)
 - Musnad Al-Bazzar (Hadith 377)

Companions Who Narrated This Practice

The Following Sahaba Narrated The Practice Of Rinsing Mouth And Nose During Wudu:

- Abdullah Ibn Zayd
- Ali Ibn Abi Talib
- Al-Miqdam Ibn Ma‘Di
- Mu‘Awyah Ibn Abi Sufyan
- Rabi‘ Bint Mu‘Awwidh

- Abdullah Ibn Abbas
- Abdullah Ibn ‘Amr Ibn Al-‘As
- Abu Umamah Al-Bahili
- Jabir Ibn Abdullah
- Umar Ibn Al-Khattab
- Aisha Bint Abi Bakr
- Abu Hurairah
- Abdullah Ibn Abi Awfa
- Abu Malik Al-Ash‘Ari
- Ubayy Ibn Ka‘B
- Al-Bara’ Ibn ‘Azib
- Jubayr Ibn Nufayr
- Abu Rafi‘
- Abi Khaythamah Al-Ahmasi
- Mu‘Adh Ibn Jabal
- Al-Mughira Ibn Shu‘Bah
- Wail Ibn Hujr
- Anas Ibn Malik
- Buraidah Ibn Al-Hasib Al-Sulami
- Abdullah Ibn Anas
- Bilal Ibn Rabah
- Abdullah Ibn Umar

Since The Disagreement Is Not About The Authenticity Of Hadith...

Since The Disagreement Is Not Based On Whether The Hadiths Are **Authentic Or Weak**, There Is **No Need For Further Detail** About Them Here.

All The Hadiths We Have Mentioned On This Topic Are **Ambiguous**, Not Clear-Cut, And In Islamic Law, One **Cannot Establish A Ruling Of Obligation (Wujub) Or Prohibition (Tahrim)** Based On An Ambiguous Text.

To Declare Something **Wajib (Obligatory) Or Haram (Forbidden)** In Shariah, The **Evidence Must Be Clear And Strong**.

Some May Attempt To Present Certain **Athar (Narrations From Tabi‘Un)** As Proof For Obligation. For Example:

Ibn Abi Shaybah (Hadith 282) Narrates An Athar From **Mujahid** Which Contains The Words:
“Mujahid Said: Putting Water Into The Nose Is A Condition For Purification.”

Arabic:

حَدَّثَنَا وَكِيعٌ، عَنْ سُفْيَانَ، عَنْ ابْنِ أَبِي نَجِيحٍ، عَنْ مُجَاهِدٍ قَالَ: الْإِسْتِنْشَاقُ شَطْرُ الطُّهُورِ
(Sahih Li Dhatihi – Authentic In Itself)

First Response:

This Statement Is Also **Ambiguous**, Because The Word Used Is “*Taharah*” (Purification), And This Term Can Apply To **Both Wudu And Ghusl**.

So If One Accepts It Literally, It Would Mean **Instinshaq (Nasal Rinsing) Is Obligatory In Both Wudu And Ghusl**, Which Even The Proponents Of Obligation May Not Claim.

Second Response:

The Narration Only Mentions **Putting Water Into The Nose**, Not Rinsing The Mouth (*Madhmadah*), So It Cannot Be Used As Proof For Both.

Third Response:

This Is A **Gharib (Uncommon/Solitary)** Narration In Its Chain, And It Is Merely The **Statement Of A Tabi'I** (Mujahid), Not A **Marfu'** (Prophetic) Or **Mawquf** (Sahabi-Level) Hadith.

Another Athar Is Attributed To **Ibn Abbas**, Found In **Ibn Abi Shaybah (Hadith 2071)** — But I Don't Think Anyone Would Use It As A Valid Proof, Because The Chain Is **Very Weak**:

Arabic:

حَدَّثَنَا حَفْصُ بْنُ غِيَاثٍ، عَنْ حَجَّاجٍ، عَنْ عَائِشَةَ بِنْتِ عَجْرَةَ، عَنِ ابْنِ عَبَّاسٍ قَالَ: إِذَا صَلَّى الرَّجُلُ فَنَسِيَ أَنْ يُمَضِّمَ وَيَسْتَنْشِقَ مِنْ جَنَابَةِ أَعَادِ الْمُضْمَضَةِ وَالْإِسْتِنْشَاقِ

“If A Man Prayed And Forgot To Rinse His Mouth And Nose During Ghusl From Janabah, He Should Repeat The Rinsing Of The Mouth And Nose.”

- This Hadith Is **Weak (Da'If)**.
 - **Hajjaj Is A Mudallis (Obfuscator In Transmission)**.
 - **Rabi'Ah Is Questionable**.
 - **Aisha Bint Ajrad Is Unknown (Majhool)**.

These Are The Evidences Of Those Who **Consider Rinsing The Mouth And Nose To Be Wajib**.

Evidences Of Those Who Say It Is Sunnah Or Mustahabb (Recommended)

All The **Authentic Narrations** That Are Reliably Transmitted From The **Prophet ﷺ** Or The **Sahaba**, None Of Them **Explicitly** Say That:

- *Rinsing The Mouth Or Nose Is Wajib*, Or
- *That Wudu Is Invalid Without Them*, Or Similar Definitive Statements.

Regarding The **Legal Ruling**, The **Majority (Jumhoor)** Have Held That The Command In These Hadiths Implies **Recommendation (Istihbab)** And **Not Obligation**.

There Is Even **Agreement Among Many Fuqaha And Hadith Scholars**—Including One Of The Positions Of **Imam Ahmad Ibn Hanbal**—That It Is **Sunnah**.

So Opposing This Consensus, Especially **Based On Ambiguous Or Weak Narrations**, Is Not Correct.

Qur'anic Evidence – Surah Al-Ma'idah, Ayah 6

This Verse Outlines The **Obligatory Acts Of Wudu**, And There Is **No Mention** Of Rinsing The Mouth Or Nose.

Some Scholars Have Attempted **Qiyas (Analogical Reasoning)** By Saying:

“Since The Face Must Be Washed, And The Mouth Is Part Of The Face, And The Nose Is Also In The Face—Then Mouth And Nose Washing Should Also Be Obligatory.”

Response:

The Word Used In The Qur’an Is “**Wajh**” (Face).

However, In Arabic:

- **Mouth** Has A Separate Word: “**Al-Fam**”
- **Nose** Has A Separate Word: “**Anf**”

So When The Qur’an Says “**Wash Your Faces**”, It Means **The External Face**, Not That It Includes The **Mouth (Fahm)** Or **Nose (Anf)**.

Wallahu A’Lam (Allah Knows Best).

How Much Of The Face Must Be Washed In Wudu?

There Is **Scholarly Disagreement Among The Fuqaha (Jurists)** About How Much Of The **Face** Must Be Washed During **Wudu**.

The Area That Stretches **From The Ear To The Cheek**, Known As **Al-‘Idhār (العدار)** — Also Referred To As The **Tragus** — Is In Question.

Linguistic Clarification Of “Al-‘Idhār”:

العدار, With A Kasrah On The ‘Ayn, Refers To The Sides Of The Jawline — The Place Where Hair Grows Next To The Ear.

The Point Where The ‘Idhār Connects Behind The Forehead Is Known As The **Mu‘Aqad Al-‘Idhār**, And The White Area Between The ‘Idhār And The Ear Is Called **Al-Shākil**.

Plural: **Shukul**

(See: *Al-Muhkam* By Ibn Sidah 2/73, *Al-Sihah* By Al-Jawhari 5/1736, *Mu‘Jam Lughah Al-Fuqaha’* By Al-Qala‘Ji P. 307)

Also:

In “**Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid**” (1/148):

“*Musāmatah* Means Facing Something Directly, Without Turning Right Or Left.”

This Is Synonymous With “**Istiqbāl**” — I.E., To Be Directly Opposite Something.

(See: *Al-Mawsū‘Ah Al-Fiqhiyyah Al-Kuwaytiyyah* 4/61)

The Term “**Al-Simākh**” (الصَّمَخ) Refers To The **Ear Canal** (Some Say The Entire Ear).
(See: *Al-Sihah* By Al-Jawhari 1/426)

Is Washing This Area (Between Ear And Cheek) Obligatory In Wudu?

According To The **Majority Of Jurists (Jumhoor Al-Fuqaha)**, It Is **Obligatory (Wājib)** To Wash This Area.

This Is Also The **Position Of The Hanafi School**.

Hanafi Madhhab:

Al-Durr Al-Mukhtār By Al-Haskafi (1/97):

*“Therefore, Washing The Area Between The **Miyāqi** (Eye Sockets) And The Space **Between The ‘Idhār And The Ear** Is Obligatory, As It Falls Within The Defined Limits. This Is The Fatwa Position.”*

Shafi‘I Madhhab:

Mughni Al-Muhtāj By Al-Sharbini (1/173):

*“It Is Obligatory To Wash Every Hair... Including The **‘Idhār**, Which Is The Hair That Grows Next To The Ear, Between The Temple And The Jawline.*

Some Say It Is The Hair On The Protruding Bone Near The Ear — Often The First Place Where Hair Grows On An Adolescent Boy.”

Hanbali Madhhab:

Sharh Muntahā Al-‘Irādāt By Al-Buhuti (1/56):

*“The Boundary Of The Face [In Wudu] Extends **From One Ear To The Other Across**... This Includes The **‘Idhār**, The Hair Growing On The Prominent Bone That Aligns With The **Ear Canal (Sīmākh)**.”*

Maliki Madhhab:

There Are **Two Narrations** Within The Maliki School.

However, The **Stronger And Correct Narration Aligns With The View Of The Majority, I.E., That This Area Must Be Washed.**

Later Maliki Texts Have Adopted The View Of Obligation:

Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (1/149):

— “I Have Not Seen Any Maliki Scholar Explicitly Stating This, But Their Books Show Varied Expressions.

See:

- *Al-Sharh Al-Kabir* By Al-Dardir (1/85):
‘Washing Between The Protrusions Of The Ears’ — Implying The Exclusion Of Temple Hair And The White Skin Between It And The Ear.
- *Al-Tāj Wa Al-Iklīl* By Al-Mawwaq (1/260):
‘The Obligations Of Wudu Include Washing The Face — From The Usual Hairline To The

Chin, Including The ‘**Idhārān** (Dual Of ‘Idhār).

In *Al-Mabsūt*: Also Includes The White Area Between The Face And The Ears.’”_

Conclusion:

The **Four Major Imams And Their Schools — Hanafi, Maliki, Shafi‘I, And Hanbali — Are Agreed** (In Their Reliable Positions) That:

Washing The Area Between The Ear And The Cheek — Including The ‘Idhār — Is Obligatory In Wudu.

Washing The Beard In Wudu (Wazoo)

There Is Also A **Difference Of Opinion Among The Jurists (Fuqaha)** Regarding The **Ruling Of Washing The Beard During Wudu.**

Malikī Madhhab: It Is Obligatory

Imam Mālik Holds That **Washing The Beard Is Obligatory** In Wudu.

Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (1/151):

“*Al-Sharh Al-Kabīr*” By *Al-Dardīr* (1/86):

‘The Outer Part Of The Beard Must Be Washed For One Who Has A Beard... And With This Estimation, Both The Chin And The Outward Beard Are Included In The Definition Of The Face, Thus It Is Obligatory To Wash Them.

*What Is Meant By ‘Washing The Outward Beard’ Is To **Pass The Hand Over It With Water And Move It**, Which Is Distinct From Doing ****Khilāl** (Combing Through The Hair With Fingers).’”*

Hanafi And Shāfi‘ī Madhhabs: Not Obligatory

Imam Abū Ḥanīfah And One Opinion Of Imam Al-Shāfi‘ī Say That **Washing The Beard Is Not Obligatory** In Wudu.

Al-Durr Al-Mukhtār By Al-Ḥaṣkafī (1/97):

“Therefore, It Is Obligatory To Wash The Eye Sockets... But Not The Inner Part Of The Eyes, Nor The Nose, Mouth, Roots Of The Eyebrows, Or The Beard And Moustache.”

Mughni Al-Muhtāj By Al-Sharbinī (1/173–174):

*“It Has Been Said: It Is Not Obligatory To Wash... The **Beard**, Which For Men (With A Kasrah Under The Lām — Liḥyah) Refers To The Hair That Grows On The Chin Specifically; It Is The Meeting Point Of The Two Jaws.”*

A View From Aḥmad Ibn Ḥanbal And Another Shāfi‘ī View: It Is Obligatory

Imam Aḥmad And A Stronger View Within The Shāfi‘ī School Hold That Washing The Outward Part Of The Beard Is Obligatory.

Rawḍat Al-Ṭalībīn By Al-Nawawī (1/52):

“The Part Of The Beard, Sideburns, And Mustache That Goes Beyond The Facial Boundary — Both In Length And Width — Should Have Water Poured Over It.

*This Is The Correct View: That Washing The Outer Part Is **Obligatory**.*

A Second View Says Nothing Is Obligatory.

*A Third View Says Only The **Uppermost Internal Part** Of The Beard Must Be Washed.*

*A Fourth View Says **Washing The Mustache Is Certainly Obligatory**.*

*But The **Preferred Opinion Is The First One**. ”*

Sharḥ Muntahā Al-Irādāt By Al-Buhūtī (1/56):

*“It Is Obligatory To Wash The **Loose (Flowing)** Part Of The Beard (With Kasrah Under The Lām), Including The Parts That Extend Outside The Facial Boundary In Width And Length, Because The Beard Participates In The Concept Of ‘Face’ In Terms Of Being Directly Visible And Faced.”*

Thin Beards (Light Or Sparse Beard Hair)

For **Light Beards**, Which In Common Understanding Are Those Where **The Skin Is Visible Beneath**, Scholars Say:

If The Skin Underneath The Beard Is Visible, Then It Is Obligatory To Wash That Area.

This Is The View Of The **Ḥanafīs, Mālikīs, And Shāfi‘īs**.

Ḥanafīs — *Al-Baḥr Al-Rā‘iq* (1/12):

“By ‘Light’ (Khafīf) Is Meant: A Beard Through Which The Skin Is Visible.”

Mālikīs — *Al-Tanbīh ‘Alā Mabādi’ Al-Tawjīh* (1/219):

“Facial Hair, If Light Enough That The Skin Beneath Is Visible During Speech — Then That Area Must Be Washed.”

Shāfi‘īs — *Al-Majmū‘* By Al-Nawawī (1/375):

“Imam Al-Shāfi‘ī’s Apparent View Is: If The Beard Covers The Skin To The Extent That It’s Not Visible In A Normal Conversation Setting, Then It Is Dense (Kathīf), Otherwise It Is Light (Khafīf).”

Thick Beards (Where The Skin Is Not Visible)

If The Beard Is **Dense (Thick)** To The Point That **The Skin Underneath Is Not Visible**, Then **The Four Imams Agree — Ḥanafī, Mālīkī, Shāfi‘ī, And Ḥanbalī —** That:

Combing The Beard With Fingers (Khilāl) Is Recommended (Mustaḥabb), Not Obligatory.

Hadith Reports On Combing The Beard (Khilāl)

A Group Of Companions Have Narrated **That The Prophet ﷺ Used To Do Khilāl Of His Beard** During Wudu, Including:

- ‘Uthmān Ibn ‘Affān
- Anas Ibn Mālīk
- ‘Ammār Ibn Yāsir
- Ibn ‘Abbās
- ‘Ā’ishah
- Abū Ayyūb
- Ibn ‘Umar
- Abū Umāmah
- ‘Abdullāh Ibn Abī Awfā
- Abū Al-Dardā’
- Ka‘B Ibn ‘Amr
- Abū Bakrah
- Jābir Ibn ‘Abdullāh
- Umm Salamah

‘Ilal Al-Ḥadīth By Ibn Abī Ḥātim (1/553):

“I Heard My Father Say: No Hadith On Beard Khilāl From The Prophet ﷺ Is Established.”

Naṣb Al-Rāyah By Al-Zayla‘ī (1/23):

“Beard Khilāl Has Been Narrated From Many Companions... But All Reports Are Weak, Though The Best Among Them Is The Hadith Of ‘Uthmān.”

Some Reports Are Authentic (Ṣaḥīḥ)

Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (1/155):

Al-Nukat ‘Ala Ibn Al-Ṣalāḥ By Ibn Ḥajar (1/421–422):

“The Hadith Was Uniquely Transmitted By ‘Āmir Ibn Shaqīq, Who Was Graded Reliable By Al-Bukhārī, Al-Nasā’ī, And Ibn Ḥibbān, But Weakened By Ibn Ma‘īn And Abū Ḥātim.

Al-Bukhārī (As Quoted By Al-Tirmidhī In Al-‘Ilal) Judged It As ḥasan.

Imām Aḥmad Also Said (As Quoted By Abū Dāwūd): ‘The Best Report In This Chapter Is The Hadith Of ‘Uthmān.’

It Was Graded ṣaḥīḥ Outright By Al-Tirmidhī, Al-Dāraquṭnī, Ibn Khuzaymah, Al-Ḥākim, And Others,

Especially When Supported By Corroborating Reports — Like The ḥadīth Of Abū Al-Malīḥ Al-Raqqī From Al-Walīd Ibn Zawrān From Anas رضي الله عنه”

Washing The Hands In Wudu – How Far Is Obligatory?

In The Quran, Surah Al-Ma'idah (5:6) Mentions Washing The Hands Up To The Elbows During Wudu. However, The Question Arises: Does “Up To The Elbows” Include The Elbows Or Not?

Consensus Of The Four Imams: Elbows Must Be Washed

All Four Schools Of Thought — **Maliki, Hanafi, Shafi'i, And Hanbali** — Agree That **Washing The Elbows Is Obligatory** In Wudu.

- **Al-Dardir (Maliki)** Said In *Al-Sharh Al-Kabir* (1/87):

“The Second Obligatory Act: Washing The Hands Up To The Elbows, As He Indicated By Saying: ‘And Wash (His) Hands *With* The Elbows’ — Meaning, Along With Them.”

- **Al-Shirbini (Shafi'i)** Said In *Mughni Al-Muhtaj* (1/174):

“The Third Obligation Is Washing The Hands From Palms And Arms — As Per The Verse And Consensus — **With** The Elbows. Muslim Reported From Abu Huraira... Then He Washed His Right Hand Until He Entered Into The Upper Arm, And Then The Left Likewise...”

- **Al-Haskafi (Hanafi)** Wrote In *Al-Durr Al-Mukhtar* (1/98):

“The Pillars Of Wudu Are Four... Washing The Hands... **Along With The Elbows...**”

- **Al-Buhuti (Hanbali)** In *Sharh Muntaha Al-Iradat* (1/49):

“The Second Obligation Is Washing The Hands Along With The Elbows.”

The Linguistic Reason For The Disagreement

The Source Of Past Disagreement Lies In The Arabic Preposition ‘**Ilā**’ (إلى) In The Verse {...Wash Your Hands *Up To* The Elbows} [Al-Ma'idah: 6].

- Some Questioned Whether ‘**Ilā**’ Here Means “*Up To*” In The Exclusive Sense Or “*Along With*” (I.E., Inclusive).

- The **Majority Of Scholars** Took It To Mean *Inclusive* — That Is, The Elbows Must Also Be Washed.

Al-Azhari Said In *Tahdhib Al-Lughah* (15/307):

“In {...Wash Your Hands To The Elbows...}, Grammarians Like Abu Al-‘Abbas And Others Interpreted ‘**Ilā**’ Here To Mean ‘**Ma**’ (I.E., ‘With’), Making Washing The Elbows And Ankles Obligatory.”

Opposing Opinions

- **Ahl Al-Zahir** (Literalists), Such As **Ibn Hazm**, Questioned This Understanding: In *Al-Muhalla* (1/297), He Wrote:

“‘**Ilā**’ In Arabic — The Language In Which The Qur’an Was Revealed — Can Mean Either ‘Up To’ As A Limit Or ‘With’ As Inclusion. For Instance, In {Do Not Eat Their Wealth *Ilā* Your Wealth}, It Means *With* Your Wealth. Thus, It Is Incorrect To Limit The Meaning To One Without Proof. Washing Up To The Elbows Suffices; If One Washes The Elbows, It Is Acceptable Too.”

- Later Malikis Like **Abu Al-Faraj** And Others (As Noted In *Al-Tabsira* By Al-Khami, 1/22) Held That **Elbows Are Not Included** In The Obligation, Differing From Imam Malik’s Earlier Opinion.
- **Al-Tabari**, In *Tafsir Al-Tabari* (10/47), Said:

“The Correct View Is That Washing The Hands Up To The Elbows Is Obligatory, But The Elbows Themselves And Beyond Are **Recommended**, Based On The Hadith: ‘My Ummah Will Be Radiant From The Traces Of Wudu... Whoever Can Increase That Radiance Should Do So.’”

Further Linguistic Clarification

- ‘**Ilā**’ In Arabic (A Harf Jarr Or Preposition) Connects Two Words. It Can Mean:
 - A Limit (**Up To**)
 - Or Inclusion (**With**), As Found In Several Quranic Examples.

Examples Of ‘Ilā’ Used To Mean ‘With’ (As Per *Baghiyat Al-Muqtasid*, 1/165–166):

- {Do Not Consume Their Wealth *Ilā* Your Wealth} — Meaning **With** Your Wealth.
- {Who Are My Helpers *Ilā* Allah} — Meaning **With** Allah.
- {He May Increase You In Strength *Ilā* Your Strength} — I.E., **Along With** Your Strength.

This Interpretation Supports The Majority Opinion That “Wash Your Hands To The Elbows” **Includes** The Elbows.

The Word “Hand” (Yad) In Arabic

The Word ‘**Al-Yad**’ (**Hand**) In Arabic Can Mean:

1. Just The Palm
2. Palm And Forearm
3. The Entire Arm — From Palm To Elbow (Or Beyond)

Thus, The Obligation Of Washing The “Hands” In Wudu Was Clarified By Including “To The Elbows” In The Verse.

Summary of the issue

The Ruling on Rinsing the Mouth and Nose During Wudū' (وضوء)

Summary of the Disagreement

There is a well-established difference of opinion among classical scholars regarding whether rinsing the mouth (المضمضة, *madhmaḍah*) and nose (الاستنشاق, *istinshāq*) during wudū' is obligatory (*wājib/fard*) or merely recommended (*sunnah/mustaḥabb*).

View 1: It Is Sunnah, Not Obligatory

Hanafī School

Major scholars from the Ḥanafī madhhab who consider it sunnah include:

- Imām Abū Ḥanīfah
- Imām Muḥammad ibn al-Ḥasan al-Shaybānī
- Imām Abū Yūsuf
- Imām Muḥammad al-Sughdī
- Imām al-Sarakhsī
- Imām al-Samarqandī
- Abū al-Qāsim Zayn al-Dīn al-Ḥanafī
- Imām al-Kāsānī
- Imām Burhān al-Dīn
- ‘Umar ibn al-Māzā al-Bukhārī
- ‘Abd al-Qādir al-Rāzī
- Abū Faḍl
- Imām al-Khazrajī
- Imām al-Zayla‘ī
- Abū Ḥafṣ

Mālikī School

Among the Mālikīs, this view is held by:

- Imām Mālik ibn Anas
- Imām Qāsim
- Imām Sa‘d ibn Barazī

- ‘Abd al-Raḥmān al-Nafzī al-Khurasānī
- al-Sa‘ī al-Baghdādī
- ‘Āṣim al-Numayrī al-Qurṭubī
- Ibn Rushd
- Ibn al-Ḥājj al-Kurdī
- Imām al-Qarāfī
- Shihāb al-Dīn al-Mālikī
- Ibn al-Ḥājj
- Ibn Juzzī al-Kalbī
- al-Jundī al-Mālikī

Shāfi‘ī School

From the Shāfi‘ī school:

- Imām al-Shāfi‘ī
- Imām al-Muzanī
- Imām al-Mahāmīlī
- Imām al-Māwardī
- Imām Sirāj
- Abū al-Ma‘ālī Rukn al-Dīn
- Imām al-Ghazālī

Ḥanbalī School

Some Ḥanbalī authorities supporting this view include:

- Imām Aḥmad ibn Ḥanbal (in one narration)
- Imām al-Khiraqī
- Ibn Qudāmah
- Abū Muḥammad Bahā’ al-Dīn
- Shams al-Dīn

These scholars maintain that *madhmaḍah* and *istinshāq* are part of the sunnah acts of wudū’, not its obligations.

Supporting Textual Evidence

- *Bughyat al-Muqtasid Sharḥ Bidāyat al-Mujtahid* (1/137): “Among them are rinsing the mouth and drawing water into the nose...”
- *Sharḥ al-Kabīr* by al-Dardīr (1/97): “Among its sunnahs: rinsing the mouth... and drawing water into the nose...”
- *Mughnī al-Muḥtāj* by al-Shirbīnī (1/187): “Among its sunnahs are rinsing the mouth and drawing water into the nose.”
- *Al-Durr al-Mukhtār* by al-Ḥaṣkafī (1/116): “Rinsing the mouth and the nose with water reaching the soft tissue – both are confirmed sunnahs.”

View 2: It Is Wājib (Obligatory)

Imām Aḥmad ibn Ḥanbal expressed two positions:

1. **Earlier View (More Stringent):** If a person forgets to rinse the mouth or nose during wudū' and recalls it after ṣalāh, they must repeat both the wudū' and the ṣalāh.
 - Reported in: *Masā'il* of Ishāq ibn Rāhwayh, Abū Faḍl, 'Abdullāh, and Abū Dāwūd.
 - He also remarked: "No. How can I say it is obligatory? What is obligatory is what Allāh mentioned in His Book."
2. **Later View (Preferred):** Rinsing the mouth and nose is not obligatory. This view is preferred due to:
 - Agreement with the majority of scholars.
 - Adoption by most Ḥanbalī authorities.
 - Indication that Imām Aḥmad himself revised his opinion.

Ibn Qudāmah's Position

Ibn Qudāmah also reported both views but inclined later to the sunnah view.

Cause of Disagreement

The disagreement arises not from the weakness of hadiths, but from whether *consistent practice* (داوم) of the Prophet ﷺ constitutes obligation (*wujūb*) or recommendation (*istihbāb*).

From *Bughyat al-Muqtasid* quoting *al-Inṣāf* by al-Mardāwī (1/152–153):

"Rinsing the mouth and nose are obligatory in both wudū' and ghusl — according to the standard Ḥanbalī view... Others hold only the nose is obligatory..."

Qur'ānic Evidence

Surah al-Mā'idah, verse 6:

"Wash your faces..."

Those who argue for obligation say the nose and mouth are part of the face. Opponents counter that the verse refers to the *outer* face only, as the Arabic terms "فم" (mouth) and "أنف" (nose) are distinct from "وجه" (face).

Hadith and Sanad Evidence

Key Hadith:

- *Ṣaḥīḥ al-Bukhārī* (164) – 'Uthmān ibn 'Affān:

"Then he rinsed his mouth and inhaled water into his nose... and said: I saw the Messenger of Allāh ﷺ doing the same."

Other Chains (Isnād):

- *Ṣaḥīḥ Muslim* (230), *Abū Dāwūd* (108), *Ibn Mājah* (435), *al-Bayhaqī al-Kubrā*, *Dār Quṭnī*, *Musnad al-Bazzār*, etc.

Sahābah Who Reported This Practice

- ‘Umar ibn al-Khaṭṭāb
- ‘Alī ibn Abī Ṭālib
- ‘Uthmān ibn ‘Affān
- ‘Abdullāh ibn ‘Umar
- Anas ibn Mālīk
- Ibn ‘Abbās
- Abū Hurayrah
- Others (total 30+ listed)

Use of Athār (Statements of Tābi‘ūn)

Narration from Mujāhid (Ṣaḥīḥ li-dhātihi):

“الاستنشاق شرط الطهور” – “Rinsing the nose is Condition of purification.”

- Reported in *Ibn Abī Shaybah* (Hadith 282)

Response:

1. The term “ṭahārah” is ambiguous — could refer to wudū’ or ghusl.
2. Only mentions *istinshāq*, not *madhmaḍah*.
3. Statement of a Tābi‘ī, not marfū‘.

Narration from Ibn ‘Abbās (Ḍa‘īf):

If a man forgot to rinse during ghusl... he should repeat it.

- Reported by *Ibn Abī Shaybah* (Hadith 2071). Chain includes Majhūl and Mudallis narrators.

View of the Jumhūr (Majority): It Is Sunnah

The majority argue:

- None of the authentic hadiths *explicitly* declare these acts as obligatory.
- Commands are interpreted as recommendations (*istiḥbāb*) unless clarified.
- Even Imām Aḥmad’s second view aligns with the majority.
- Qur’ānic mention of washing the face does not linguistically or juristically entail washing the internal mouth or nose.

Conclusion:

- **Washing The Face Entirely** — From One Earlobe To The Other — Is **Obligatory** In Wudu.
- **Rinsing The Mouth And Nose** Is **Sunnah**, Not Obligatory — This Was The View Of:
 - **Imam Abu Hanifa, Imam Muhammad, Imam Abu Yusuf, Imam Sughdi, Imam Sarakhsi, Imam Samarqandi, Zayn Al-Din Al-Hanafi, Imam Khasani, Burhan Al-Din, Umar Ibn Al-Maza Al-Bukhari, Abdul Qadir Al-Razi, And Others Among Hanafis.**
 - **Imam Malik, Qasim, Sa'd Bin Barazi, Abdul Rahman Al-Khurasani, Al-Sa'Li Al-Baghdadi, Asim Al-Qurtubi, Ibn Rushd, Ibn Al-Hajib, Imam Qarafi, Shihab Al-Din Al-Maliki, Ibn Al-Hajj, Ibn Jazzi, Al-Jundi, And Others Among Malikis.**
 - **Imam Shafi'i, Al-Muzani, Al-Mahamili, Al-Mawardi, Imam Ghazali, And Others Among Shafi'is.**
 - **Imam Ahmad Ibn Hanbal, Al-Khiraqi, Ibn Qudamah, Baha' Al-Din, Shams Al-Din, And Others Among Hanbalis.**
- If A Person's **Beard Is Thin** Such That The **Skin Is Visible**, Then It Is **Obligatory** To Wash Beneath It.
- If The **Beard Is Thick**, Then **Passing Fingers Through It (Khilal)** Is **Recommended**, Not Obligatory.
- **Washing The Arms Including The Elbows** Is **Obligatory** In Wudu According To The **Consensus** Of The Four Imams.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 05 – How Much Of The Head Must Be Wiped In Wudu?

The Core Difference Of Opinion In This Matter Is Whether **Wiping The Entire Head (Masah)** Is **Obligatory (Fard)** Or Only **Recommended (Sunnah)**, And Whether **Wiping A Part Of The Head** Is **Valid Or Not**.

According To “**Al-Iqna‘ Fi Masā’il Al-Ijmā‘**” (1/85):

“There Is Consensus That Wiping Some Part Of The Head With Water — Without Specifying Which Part — Is Obligatory.”

Those Who Hold That Wiping A Part Of The Head Is Obligatory, Not The Whole

This Is The **Position Of Many Scholars**, Including:

- **Imam Abu Hanifa**
- **Imam Muhammad**
- **Abu Yusuf**
- **Imam Sughdi**
- **Imam Sarakhsi**
- **Imam Samarqandi**
- **Abu Al-Qasim Zayn Al-Din Al-Hanafi**
- **Imam Khasani**
- **Imam Burhan Al-Din**
- **Umar Ibn Al-Mazā Al-Bukhārī**
- **Abdul Qadir Al-Hanafi Al-Rāzī**
- **Abu Fadl**
- **Imam Khazraji**
- **Imam Zayli**
- **Abu Hafs**

From The **Maliki** School:

- **Ibn Rushd** (Two Opinions Are Narrated From Him)
- **Abu Faraj**
- **Muhammad Ibn Maslamah**

From The **Shāfi‘ī** School:

- **Imam Al-Dunyā Al-Shāfi‘ī**
- **Imam Al-Muzani**
- **Imam Al-Mahamali**

- **Imam Al-Māwardī** — Who Explained This Issue Thoroughly In *Al-Hawī Al-Kabīr* (Vol. 1, P. 114)
- **Abū Ma‘Āli Rukn Al-Dīn**
- **Imam Al-Ghazali**
- **Imam Al-Mustazhiri**
- **Ibn Sālim Al-Yamani**
- **Imam Al-Rāfi‘I**
- **Imam Al-Nawawi**

From The **Hanbali** School:

- **Ibn Qudāmah** (Two Views Are Reported From Him)

All Of These Scholars Agree:

Wiping A Part Of The Head Is Obligatory (Fard), While Wiping The Whole Head Is Sunnah.

Shirbini (Shafi‘I) In *Mughni Al-Muhtaj* (1/176):

“The Fourth Obligation Is Wiping Any Part Of The Scalp Or Hair — Even One Hair Or Part Of A Hair — Within The Head’s Boundary.”

Haskafi And Ibn Abidin (Hanafi) In *Al-Durr Al-Mukhtar* (1/99):

“(One Of The Four Pillars Of Wudu)... (Is Wiping A Quarter Of The Head) Above The Ears — Even If Due To Rain Or Leftover Moisture — According To The Stronger Opinion.”

Imam Malik’s Position

From **Imam Malik**, No Clear Statement Has Been Preserved Regarding Whether Wiping **All** Or **Some** Of The Head Is Obligatory. His Students Differed On The Matter. As Stated By **Asim Al-Nimiri Al-Qurtubi (D. 463H)** In *Al-Faqīh Fi Fiqh Ahl Al-Madina* (Vol. 1, P. 169):

“There Is Disagreement Among Malik’s Followers Because Nothing Definitive Is Established From Him On This Matter. The Common Practice In Madinah Was Wiping The Head, But Some Insisted That Wiping Only Part Of The Head Is Invalid.”

Muhammad Ibn Maslamah, A Companion Of Imam Malik, Held That Wiping **Less Than One-Third** Of The Head Is **Not Permissible**, While Wiping **More Than One-Third** Is.

Ibn Rushd Al-Qurtubi (Maliki) Wrote Clearly In *Bayan Al-Tahsil* (Vol. 1, P. 110):

“Wiping The Head Is Obligatory, And Wiping A Part Of It Is Permissible.”

On The Other Hand, Later Malikis Like **Nasir Al-Talabi** And Others Held Differing Views — Some Stating Full Head Wiping Is Obligatory, While Others Allowed Partial Wiping.

The Two Opinions From Imam Ahmad Ibn Hanbal

1. **First Opinion: Wiping The Entire Head Is Obligatory**
 - Reported In *Masā'il Ahmad Ibn Hanbal* Through Narrators Like Abu Dawud, Ishaq Ibn Rahwayh, And Abdullah.
2. **Second Opinion: Wiping Part Of The Head Suffices**
 - Narrated By **Abu Al-Harith**, Reported In *Al-Mughni* (1/93) By Ibn Qudamah. When Asked If Wiping Part Of The Head Suffices In Wudu, Ahmad Replied, “Yes, It Suffices — Salamah Ibn Akwa‘ Used To Wipe The Front Part Of His Head,” And Ibn ‘Umar Did The Same.

Thus, **Two Views** Are Transmitted From **Ibn Qudamah** As Well.

Key Linguistic Reason For The Disagreement

The Root Of The Ikhtilaf Lies In The **Arabic Preposition ‘Ba’ (بـ)** Used In The Verse:

{وَامْسَحُوا بِرُءُوسِكُمْ} — *Wipe Your Heads*

Sometimes **‘Ba’** Denotes **Inclusion** Or **Emphasis**, And At Other Times, It Conveys **Partiality** (*Tab ‘Īḍ*).

For Instance:

- In **Surah Al-Mu‘minun: 20** — {تَنْبِثُ بِالدُّهْنِ} — The **‘Ba’** Is **Extra/Emphatic**, As Explained In *Jumhurat Al-Lughah* By Ibn Duraid (3/1236).
- **Tha‘Alibi** In *Fiqh Al-Lughah* (P. 242) Said:

“‘Ba’ Here Is For Partiality (*Tab ‘Īḍ*), Like In The Verse: {وَامْسَحُوا بِرُءُوسِكُمْ} — Meaning: ‘Wipe *Part* Of Your Heads.’”

There Are Also Famous Readings Of The Quran (*Qirā’āt*) Where The Grammatical Construction Supports This.

Two Major Arabic Schools In Grammar

- **Basra School** — The More Dominant One
- **Kufa School** — Respected But Second In Influence

In *Awdah Al-Masalik Ila Alfiyat Ibn Malik* (1/7):

“The Kufans Permitted Prepositions To Replace One Another And Interpreted ‘**Ba**’ In This Verse As ‘**Min**’ (I.E., Part Of), Supporting The Opinion That Only Part Of The Head Must Be Wiped.”

So, Those Who Understood ‘**Ba**’ As *Emphatic/Inclusive* Insisted On Wiping The **Whole Head**, While Those Who Saw It As **Partial** Held That **Some Portion** Suffices.

Hence, The **Disagreement Is Not About The Obligation Itself**, But **About How Much Is Required** To Fulfill The Obligation.

Agreed Method Of Masah (Wiping The Head)

All Jurists Agree On The **Method Of Masah**:

One Should **Wet Their Hands**, Then Place The Thumbs Near The Temples And Wipe **From The Front Hairline To The Back Of The Head**, Then Return The Hands To Where They Started. This Is The Correct Way According To The Scholars.

As Mentioned In *Baghiyat Al-Muqtasid* (1/178):

“The Known Method Of Wiping Is That A Person Wets His Hands, Then Places The Thumbs Appropriately, Starts From The Front Of The Head, Wipes Backward To The Nape, And Then Returns To The Front — This Is The Authentic View.”

Besides This, The Jurists (Fuqaha) Also Take Evidence From A Hadith.

Sahih Muslim Hadith No. 274 – The Hadith Is Narrated Through The Chain Of **Al-Mughira Ibn Shu’bah**.

Narrated By Muhammad Ibn ‘Abdillah Ibn Bazi’

Who Said: **Yazid Ibn Zuray’** Narrated To Us

Who Said: **Humayd Al-Tawil** Narrated To Us

Who Said: **Bakr Ibn ‘Abdillah Al-Muzani** Narrated To Us

From **‘Urwah Ibn Al-Mughira Ibn Shu’bah**,

From **His Father** Who Said:

"The Messenger Of Allah ﷺ Stayed Behind (From The Group) And I Stayed Behind With Him. When He Had Relieved Himself, He Said: ‘Do You Have Water With You?’ I Brought Him A **Water Container** (Miṭhara). He Washed His Hands And His Face. Then He Began To Uncover His Forearms, But The Sleeve Of The Long Garment (Jubba) Was Tight. So He Took His Hand Out From Underneath The Jubba And Cast The Jubba Over His Shoulders. Then He Washed His Forearms. **He Wiped Over His Forelock** And Over The **Turban** And Over His **Leather Socks** (Khuffayn). Then He Mounted (His Ride) And I Mounted With Him. We Came To The People (The Congregation), And They Had Already Started The Prayer, Being Led By ‘Abdur-Rahman Ibn ‘Awf. He Had Already Led Them In One Rak‘Ah (Unit Of Prayer). When He Sensed The Presence Of The Prophet ﷺ, He Began To Move Back (To Let Him Lead), But The Prophet ﷺ Signaled To Him (To Continue).

So He Led Them In Prayer. When He Finished The Prayer With Salam, The Prophet ﷺ And I Stood Up And Performed The Rak‘Ah That We Had Missed."

The Messenger Of Allah ﷺ Washed His Hands For **Wudu**, And He **Wiped Over His Forehead (Forelock)** And Over The **Turban**."

(This Is A **Famous Hadith**, With The Words “وَمَسَحَ بِنَاصِيَتِهِ” – “He Wiped Over His Forelock” – Being **Rare But Authentic (Lafz ‘Aziz)** And Found In **Sahih Muslim**).

This Is The Primary Evidence Cited By Those Scholars Who State That Wiping The Entire Head (During Wudu) Is Not Obligatory, But Rather Sunnah. Their Reasoning Is Based On This Hadith, In Which The Clear Wording States That The Prophet ﷺ Wiped His Forehead And His Turban (‘Imāmah). If Wiping The Entire Head Had Been Obligatory, Then The Messenger Of Allah ﷺ Would Have Wiped All Of It By Removing His Turban.

Some People Raise Doubts About This Hadith, Claiming That In Other Chains Of Narration Found In Sahih Muslim, This Exact Wording — وَمَسَحَ بِنَاصِيَتِهِ (“He Wiped His Forehead”) — Is Not Present. They Say This Phrase Came By Mistake Or Is Not Authentic. However, This Is Not True At All.

This Hadith, With These Very Words, Was Narrated By **Imām Ibn Jurayd An-Naysābūrī** In His Book *Al-Muntaqā* (Hadith No. 91).

It Was Also Narrated By **Ibn Ḥibbān** In His *Ṣaḥīḥ* (Vol. 4, P. 171, Hadith No. 1342) With These Exact Words. He Then Brings The Same Wording Again In Hadith No. 1346 Via A Different Chain.

Imām Al-Nasā’ī In *Al-Sunan Al-Kubrā* And *Al-Sunan Al-Ṣuḥrā* Also Reports This Hadith With The Same Phrase (Vol. 1, P. 47, Hadith No. 107), Even Establishing A Chapter For It. He Repeats It In Hadiths No. 108 And 109 Through Different Routes.

Similarly, This Wording Is Also Found In *Al-Sunan Al-Kubrā* Of Al-Nasā’ī (Hadith Nos. 108, 109, 112).

Abū Dāwūd Likewise Reports It With The Same Wording In His *Sunan* (Vol. 1, Hadith No. 150). And There Are Many Other References As Well.

Some Object Further By Saying That **Imām Ibn Ḥibbān** Titled The Chapter Of This Narration As:

“This Phrase ‘He Wiped His Forehead’ Is A Solitary Narration (Tafarrud) From **Sulaymān Al-Taymī**.”

But Even This Claim Is Not Correct. **Sulaymān Al-Taymī** Is Not Alone In Narrating This Meaning. If He Is Unique In Reporting From **Bakr Ibn ‘Abdullāh Al-Muzanī**, Then His Corroborator Is **Ḥammād Ibn Abī Ḥammād**. And If He Is Unique In Narrating From Ḥammād, Then His Corroborator Is **Muḥammad Ibn ‘Abd Al-A‘Lā**.

Imām Al-Nasā’ī, In Both *Al-Sunan* And *Al-Kubrā*, Mentions The Chains Of Narration That Show Sulaymān Is Not Alone In This.

The Issue Becomes Even Clearer When You Refer To **Imām Al-Bayhaqī’s** *Al-Sunan Al-Kubrā*, Where In Hadith No. 267 He Brings This Hadith With The Same Wording And Establishes A Chapter Titled:

“Wiping Over A Portion Of The Head Is Sufficient.”

This Reflects His Interpretation — As A **Shāfi‘ī** — That Only Part Of The Head Needs To Be Wiped.

Similarly, **Imām Al-Dāraqutnī** Explains His Understanding In *Sunan* (Hadith No. 737), Under A Chapter Titled:

“The Permissibility Of Wiping Over Part Of The Head.”

Likewise, There Is An **Athar** (Narration From A Companion) From **Al-Ḥasan Al-Baṣrī**, Recorded By **Ibn Abī Shaybah** (Vol. 1, Hadith No. 240), In Which He Says:

“A Man May Wipe Over His Forehead And His Turban.”

This Narration Is **Hasan (Sound)**.

Also, In *Musannaf Ibn Abī Shaybah* (Vol. 1, Hadith No. 243), There Is A Narration From **Ṣafiyyah Bint Abī ‘Ubaydah** That She Would Perform Wudu And Insert Her Hands Under Her Head Covering And Wipe The Front Of Her Head:

رَأَيْتُ صَفِيَّةَ بِنْتُ أَبِي عُبَيْدٍ تَوَضَّأَتْ فَأَدْخَلَتْ يَدَيْهَا تَحْتَ خِمَارِهَا فَمَسَحَتْ بِنَاصِيَتِهَا
This Narration Is **Ṣaḥīḥ Li-Dhātihī** (Authentic In And Of Itself).

There Is Also A Narration From **Jābir Ibn ‘Abdillāh** In *Jāmi‘ Al-Tirmidhī* (Hadith No. 102). He Was Asked Whether Wiping Over The Turban Suffices, And He Replied:

“If The Hair Underneath Gets Wet (Even A Little), Then It Suffices.”

Arabic Of The Hadith:

أَمَسَّ الشَّعْرَ الْمَاءَ
This Narration Is **Hasan (Sound)**.

Takhrij Al-Hadith:

Narrated By Al-Tirmidhī In *Jāmi‘* (1/147, No. 102), Chapter: “What Is Narrated Regarding Wiping Over The Turban.”

Also Reported By:

- Al-Bayhaqī In *Sunan Al-Kubrā* (1/61, No. 284)
- Ibn Abī Shaybah In *Musannaf* (1/314, No. 232; 2/256, No. 1909)
- Other Major Collections.

This Proves That Wiping The *Entire* Head Is Not Obligatory. If It Had Been, Jābir Would Have Said That The Entire Head Must Be Wiped, Or That Water Must Reach The Whole Head — But He Didn’t.

There Is Also A Narration From **Anas Ibn Mālik** In *Abū Dāwūd* (Hadith No. 147) Stating That The Prophet ﷺ Inserted His Hand *Under* His Turban And Wiped The Front Part Of His Head:

فَأَدْخَلَ يَدَهُ مِنْ تَحْتِ الْعِمَامَةِ فَمَسَحَ مُقَدَّمَ رَأْسِهِ
Although **Abū Ma‘Qil**, One Of Its Narrators, Is *Majhūl* (Unknown), There Are Corroborating Reports (Shawāhid) That Strengthen This.

Takhrij Of The Hadith:

Narrated By:

- Al-Ḍiyā' Al-Maqdisī In *Al-Aḥādīth Al-Mukhtārah* (6/239, No. 2256)
- Al-Ḥākim In *Al-Mustadrak* (1/169, No. 607)
- Abū Dāwūd (1/56, No. 147)
- Ibn Mājah (1/356, No. 564)
- Al-Bayhaqī (1/60, No. 281)

This Also Clarifies That Wiping The Full Head Is Not *Wājib*. Even Though This Narration Is Weak, Its Meaning Is Supported By Other Authentic Reports.

From **Ibn 'Umar** There Is An Athar In *Ibn Abī Shaybah* (Hadith No. 154) That He Would Wipe The Front Of His Head Or A Part Of It:

وَضَعَ أَيُّوبُ كَفَّهُ وَسَطَ رَأْسِهِ ، ثُمَّ أَمَرَهَا عَلَى مُقَدِّمِ رَأْسِهِ

This Is **Ṣaḥīḥ Li-Dhātihi**.

Takhrij:

Reported By:

- Al-Bayhaqī (1/61, No. 285)
- Al-Dāraquṭnī (1/191, No. 376)
- 'Abd Al-Razzāq (1/7, No. 8)
- Ibn Abī Shaybah (1/288, No. 136; 1/292, No. 154; 2/232, No. 1853)
- Al-Ṭaḥāwī In *Sharḥ Ma 'Ānī Al-Āthār* (1/32, No. 134)

There Is Also A Narration From **Bilāl** That The Prophet ﷺ Wiped Over His Head And His Turban. Reported By **Al-Bayhaqī** In *Al-Kubrā* (Vol. 1, P. 62, Hadith No. 289).

Imām Nawawī Said That Wiping The *Entire Head* Is **Mustaḥabb** (Recommended), And There Is Consensus On That.

(See *Fiqh Al-Islāmī*, Vol. 1, P. 325)

As For The Qur'ānic Verse — “*Wipe Over Your Heads*” — It Indicates That Wiping Some Part Of The Head Suffices. Had It Been Obligatory To Wipe The Entire Head, The Qur'an Would Have Specified That, Just As It Specified How To Wash The Arms (Up To The Elbows) And The Feet (Up To The Ankles). But It Did Not, Which Implies That Wiping Any Part Of The Head Fulfills The Qur'anic Command. And This Is Agreed Upon (Ijmā') — That **Wiping The Head Is Obligatory**, But **Wiping All Of It Is Not**.

This Was The Evidence Presented By Those Scholars Who Consider Wiping The Head To Be Sunnah And Not Obligatory In Full.

They Acknowledge That In Many Hadiths, The Prophet ﷺ Is Reported To Have Wiped The Entire Head — And That's Correct. And The **Better** And **Preferred** Action (*Afdal*) Is To Wipe The Full Head.

However, When We Have Clear Proof That Wiping Only Part Of The Head Is Sufficient — And Nothing Authentic Contradicts It — Then We Cannot Say That Wiping The Whole Head Is *Wājib*. There Is No Strong Hadith That Explicitly States That Wiping The Full Head Is Mandatory, Or That Whoever Wipes Only A Part Must Repeat The Wudu. Nor Is There Any Indirect Statement To That Effect.

And Allah Knows Best.

Conclusion:

The More Correct Opinion Is That **Wiping The Entire Head Is Sunnah**, While **Wiping A Portion Of The Head Is Obligatory** (*Wājib*). Among The Different Schools Of Thought (*Madhāhib*), There Is Further Disagreement Regarding Exactly **How Much** Of The Head Must Be Wiped.

- Some Scholars Say That **Wiping One-Fourth** Of The Head Is Obligatory.
- Others Say That **Wiping Half** Of The Head Is Obligatory.
- Some Say That **Wiping The Front Portion** Of The Head Is Obligatory.
- And Others Maintain That **Wiping Any Part** Of The Head Suffices.

This Is A Matter Of *Ijtihād* (Juristic Reasoning).

The Core Issue Is This:

Wiping **Some Portion** Of The Head Is **Obligatory**, And Wiping The **Entire Head** Is **Sunnah**.

This Is Also The View Held By:

- **Mughīrah Ibn Shu‘Bah**
- **Jābir Ibn ‘Abdillāh**
- **Anas Ibn Mālik**
- **‘Abdullāh Ibn ‘Umar**
- **Bilāl (Ra)**
- **Muḥammad Ibn Maslamah**
- **Imām Al-A‘zam Abū Ḥanīfah**
- **Imām Muḥammad Ibn Al-Ḥasan Al-Shaybānī**
- **Imām Aḥmad Ibn Ḥanbal** (According To One Opinion)
- **Abū Yūsuf**
- **Imām Al-Dāraqutnī**
- **Ḥasan Al-Baṣrī**
- **Ṣafiyyah Bint Abī ‘Ubayd**
- **Imām Al-Ṣughdī**
- **Imām Al-Sarakhsī**
- **Imām Al-Samarqandī**
- **Imām Al-Bayhaqī**
- **Abū Al-Qāsim Zayn Al-Dīn Al-Ḥanafī**
- **Imām Al-Kāsānī**
- **Imām Burhān Al-Dīn**
- **‘Umar Ibn Al-Māzā Al-Bukhārī**
- **‘Abd Al-Qādir Al-Ḥanafī Al-Rāzī**
- **Abū Al-Faḍl**
- **Imām Al-Khazrajī**
- **Imām Al-Zayla‘ī**
- **Abū Ḥafṣ Ibn Rushd Al-Mālikī** (According To One Opinion)
- **Abū Al-Faraj**
- **Muḥammad Ibn Maslamah**

- **Imām Al-Dunyā Al-Shāfi‘ī**
- **Imām Al-Muzanī**
- **Imām Al-Mahāmili Al-Shāfi‘ī**
- **Imām Al-Māwardī**
- **Abū Ma‘Ālī Rukn Al-Dīn**
- **Imām Al-Ghazālī**
- **Imām Al-Mustazharī Al-Shāfi‘ī**
- **Ibn Sālim Al-Yamānī**
- **Imām Al-Rāfi‘ī**
- **Imām Al-Nawawī**
- **Ibn Qudāmah** (According To One Opinion)
- **Abū Al-Ḥāris Al-Ḥanbalī**

And Allah Knows Best.

How Many Times Is It Sunnah To Wipe The Head In Wudu?

There Is A Difference Of Opinion Among The Jurists (*Fuqahā’*) Regarding Whether Wiping The Head **Once** Or **Three Times** During *Wudu* Is Sunnah.

It Is Obligatory (*Wājib*) To Wash Each Limb Of *Wudu* At Least Once.

Ibn Ḥazm Said In *Marātib Al-Ijmā’* (P. 19):

"There Is Consensus That Performing Wudu By Washing The Face, Arms, And Feet Once Each Is Sufficient, And There Is Consensus That Going Beyond Three Times Has No Basis."

And The Messenger Of Allah ﷺ Said:

"The Prophet ﷺ Performed Wudu Once, Twice, And Three Times."

Narrated In **Ṣaḥīḥ Al-Bukhārī** (157) From **Ibn ‘Abbās**, Who Said:

"The Prophet ﷺ Performed Wudu Once For Each Limb."

There Is **Disagreement** Regarding Repeating The **Wiping Of The Head** — Is It Better To Wipe It More Than Once Or Not?

- According To The **Shāfi‘ī Madhhab**, If Someone Washes Other Limbs Three Times, They Should Also Wipe The Head Three Times.
Mughni Al-Muḥtāj By Al-Shirbīnī (1/188):

“Among The Sunnahs Of Wudu Is Washing And Wiping Three Times For Both Obligatory And Recommended Acts, In Accordance With Following (The Prophet’s Example).”

- In The **Ḥanbalī Madhhab**, There Is Also A View That Allows It, But It Is Not The Soundest View.

However, The **Majority Of Scholars** (*Jumhūr ‘Ulamā’*) Say That The **Head Should Only Be Wiped Once**.

- *Al-Mughnī* By **Ibn Qudāmah** (1/94):

“The Correct View In The Madhhab Is That Repeating The Wiping Of The Head Is Not Sunnah... There Is A Report From Aḥmad That It Is Sunnah, But It Is Not The Stronger Opinion.”

- In The **Ḥanafī Madhhab** (See *Tabyīn Al-Ḥaqā’iq* With Al-Shalabī’s Marginal Notes, 1/6):

“(Its Sunnah): That One Washes The Hands To The Wrists At The Beginning Like The Basmalah... And Wipes The Entire Head Once.”

It Further States:

“The Wiping Once Is Our Madhhab. Imām Al-Shāfi’ī Said: Three Times, Like The Washed Limbs. But Our Evidence Is That ‘Uthmān Narrated The Prophet ﷺ Wiped Once, And Repetition In Washing Is For Cleanliness, Which Is Not Achieved Through Wiping. So Repeating It Is Not Beneficial — It Is Like Wiping Over Khuffs (Leather Socks), Or Wiping In Tayammum, Or On A Bandage.”

- In The **Mālikī Madhhab** (See *Al-Sharḥ Al-Kabīr* With *Ḥāshiyat Al-Dusūqī*, 1/101):

“(His Statement: ‘And He Made The Washing Even’) — The Addition Of ‘Even’ To Washing Shows That Repeating The Wiping Of The Ears And Head Is Not Considered A Virtue. And This Is The Case Because Wiping Is Based On Ease, And Repetition Contradicts That.”

Reason For The Disagreement:

The Disagreement Arises Due To **Some Narrations** In Which **Wiping The Head Three Times** Is Mentioned.

For Example, **Sunan Abī Dāwūd**, Volume 1, Ḥadīth 101:

Abū Wā’il Reports:

“I Saw ‘Uthmān Ibn ‘Affān Wash His Arms Three Times And Wipe His Head Three Times. Then He Said, ‘I Saw The Messenger Of Allah ﷺ Do This.’”

Arabic Narration:

حدثنا هارون بن عبد الله، قال: حدثنا يحيى بن آدم، قال: حدثنا إسرائيل، عن عامر بن شقيق بن جمرة، عن شقيق بن سلمة، قال: رأيت عثمان بن عفان غسل ذراعيه ثلاثاً ثلاثاً، ومسح رأسه ثلاثاً، ثم قال: رأيت رسول الله صلى الله عليه وسلم فعل هذا.

Abū Dāwūd Commented:

“It Was Narrated By Wakī‘ From Isrā’īl Who Said: He (The Prophet ﷺ) Performed Wudu Three Times — **Period**. ”

Status Of This Chain Of Transmission (Isnād):

The Isnād Contains ‘Āmir Ibn Shaqīq Ibn Jamrah, Who Is **Weak** (*da‘īf*).

- **Imām Aḥmad Ibn Ḥanbal** Said:

“He Is Not Trustworthy.”
(*Al-Kamāl* Via *Al-Khallāl*)

- **Ibn Ḥajar**:

“Weak In ḥadīth.”
(*Taqrīb Al-Tahdhīb*, 1/476)

- **Abū Ḥātim** Said:

“He Is Not Strong. He Is Not Closely Connected To Abū Wā’il.”
(*Tahdhīb Al-Tahdhīb*, 2/265)

- **Ibn Ma‘īn** Via **Ibn Abī Khaythamah**:

“Weak In ḥadīth.”
(*Tahdhīb Al-Tahdhīb*, 2/265)

- **Imām Al-Dhahabī**:

“Truthful, But Weak.”
(*Al-Kāshif*, 3/59)

Hadith Referencing And Cross-Sources:

Takhrīj Al-Matn (From *Faḍl Al-Raḥīm Al-Wadūd Fī Takhrīj Sunan Abī Dāwūd*, 2/21):

This ḥadīth Has Been Reported By:

- *Al-Tirmidhī* In *Al-Jāmi‘* (31) And *Al-‘Ilal Al-Kabīr* (19)
- *Abū ‘Alī Al-Ṭūsī* In His *Mukhtaṣar Al-Aḥkām* (28)
- *Ibn Mājah* (430, Abridged)
- *Al-Dārimī* (1/191, 193; 704, 708)
- *Ibn Khuzaymah* (1/78–79, 86; 151–152, 167)

- *Ibn Hibbān* (3/362; 1081)
- *Al-Hākim* (1/149)
- *Ibn Al-Jārūd* (72)
- *Al-Ḍiyāʾ* In *Al-Mukhtārah* (1/469–471; 343–346)
- *Aḥmad* (1/57, Abridged)
- *ʿAbd Al-Razzāq* (1/41; 125)
- *Ibn Abī Shaybah* (1/17/63; 1/20/113; 7/318/36459)
- *ʿAbd Ibn Ḥumayd* (62)
- *Ibn Abī Khaythamah* (1409)
- *Al-Bazzār* (2/49/393)
- *Abū YaʿLā* (2/298/93)
- *Ibn Al-Mundhir* (1/385/370)
- *Al-Ṭaḥāwī* (1/32)
- *Al-Dāraḥṭnī* (1/86, 91)
- *Al-Bayhaqī* In *Al-Sunan* (1/54, 63), *Al-Khilāfiyāt* (1/306, 310), And *Al-MaʿRifah* (1/176/89)

Analysis Of The Chain:

- **Yahyā Ibn Ādam** Is **The Only One** Who Reported The **"Three Times"** Wiping Of The Head From **Isrāʾīl**.
- Others Like **Wakīʿ**, **ʿAbd Al-Razzāq**, **Ibn Mahdī**, **Abū ʿĀmir Al-ʿAqdī**, And **ʿUbayd Allāh Ibn Mūsā** All Narrated The ḥadīth **From Isrāʾīl**, But **Did Not Mention** Wiping The Head Three Times.
- This Shows That The **Mention Of Three Times** Is An **Odd Addition** Likely Due To The **Weakness Of ʿĀmir Ibn Shaqīq**, Not A Fault Of Yahyā Ibn Ādam Or Isrāʾīl.

Regarding The Report Of Wiping The Head Three Times: Scholarly Disagreement

There Is A Difference Of Opinion Among The Scholars Regarding The Narration That Mentions Wiping The Head (Mash) Three Times. There Are Two Main Scholarly Views:

First View:

Scholars Like **Imam Abu Dawud Al-Sijistani**, **Ibn Al-Mundhir**, **Al-Bayhaqī** (According To One Of His Views), **Ibn Qudamah**, **Shaykh Ibn Taymiyyah**, **Ibn Sayyid Al-Nas**, **Ibn ʿAbd Al-Hadi**, **Al-Dhahabi**, **Ibn Al-Qayyim**, **Ibn Hajar** (In One Opinion), And **Al-Shawkani** — All Consider This Narration *Shaadh* (Anomalous Or Irregular).

Second View:

On The Other Hand, **Al-Bayhaqī** (In Another View), **Ibn Al-Salah**, **Al-Nawawi**, **Ibn Al-Mulaqqin**, **Ibn Hajar** (In Another Opinion), **Al-ʿAyni**, And **Al-Albani** Consider This An Addition From A Trustworthy Narrator (*Ziyadah Thiqaḥ*), And Thus Acceptable.

Shaykh Adnan Bin Muhammad Al-‘Ar’oor States That The Stronger Opinion Is That This Narration Is *Shaadh*.

In *Dīwān Al-Sunnah – Section On Purification* (14/268, Shamela Numbering), He Writes:

“The Stronger Opinion Is That It Is A *Shaadh* (Irregular) Narration. And Allah Knows Best.”

Reasoning From Ibn Taymiyyah

Ibn Taymiyyah Explained The Reasoning Behind This Being Considered *Shaadh*. He Said That The Majority Of Jurists Do **Not** Recommend Wiping The Head Three Times:

“They Differed Regarding Whether Wiping The Head Three Times Is Recommended. The View Of The Majority Is That It Is Not.”

(*Dīwān Al-Sunnah – Section On Purification*, 14/268)

Further Clarification By Shaykh Adnan Al-‘Ar’oor

Shaykh Adnan Says That Wiping The Head Three Times Is *Invalid* (I.E., Not Established), And That The Correct Evidence Proves Only One Instance Of Wiping. He Adds That This Issue Is Not Included In The General Wording Of The Hadith That Says Wudu Should Be Done “Three Times.” He Gives An Example To Clarify:

Just As The General Hadith About Repeating The Words Of The Mu’adhin Says:

“Say As The Mu’adhin Says,”

But **Ibn ‘Umar’s Specific Hadith** Clarifies That In The Phrases *Hayya ‘Ala Al-Salah* And *Hayya ‘Ala Al-Falah*, One Should Instead Say:

“La Hawla Wa La Quwwata Illa Billah.”

This Is A Specific Explanation Overriding A General Instruction.

He Concludes:

“This Shows That Wiping Was Done Once. This Invalidates The Narration Which Says It Was Done Three Times. The Detailed Narration Clarifies The General Wording. Just As The Hadith Saying ‘Make Wudu Three Times’ Is General, The Detailed Narration Specifying ‘Wiped His Head Once’ Overrides It.”

(*Dīwān Al-Sunnah – Section On Purification*, 14/269)

From Ibn Taymiyyah’s *Majmoo’ Al-Fatawa*

He Says:

“Wiping (Mash) Should Be Considered Alongside Other Acts Of Wiping (E.G., Wiping Over Socks, In Tayammum, Over A Bandage), Not Alongside Washing. These Do Not Involve Repetition. Hence, The Correct Approach Is To Pair Mash With Mash, Not With Washing.”

(*Majmoo’ Al-Fatawa*, 21/125–126)

Statement From Al-Hafiz Ibn Hajar

Ibn Hajar States That One Of The **Strongest Evidences** Regarding The Number Of Times Is The Well-Known *Sahih* Hadith Narrated By **Ibn Khuzaymah** And Others Through **‘Abdullah Ibn ‘Amr Ibn Al-‘As**, Which Describes The Prophet’s Wudu. At The End, The Prophet ﷺ Said:

“Whoever Adds To This Has Done Wrong And Committed Injustice.”

In **Saeed Ibn Mansur’s** Version Of The Hadith, It Explicitly States That The Head Was Wiped Once, Indicating That **More Than Once Is Not Recommended**.

He Writes:

“It Indicates That Increasing The Times Of Wiping The Head Beyond Once Is Not Preferred. The Narrations About Wiping Three Times — If Authentic — Should Be Interpreted As Referring To A Complete Wiping (I.E., Wiping The Whole Head), Not Three Separate Wipes.”
(*Fath Al-Bari*, 1/298)

Statement Of Imam Al-Bayhaqi

Imam Al-Bayhaqi Says:

“The Narration That Mentions Wiping The Head Three Times Has Come Through Some **Unfamiliar Routes** From ‘Uthman Ibn ‘Affan, And They **Differ From The Trustworthy Reliable Narrators**. Thus, These Are **Not A Proof** In The View Of Those Who Have Knowledge — Even If Some Of Our Companions Have Used Them As Evidence.”
(*Al-Tibyan Fi Takhrij Wa Tabwib Ahadith Bulugh Al-Maram*, 1/285)

Statement Of Imam Abu Dawud

He Said:

“All The *Sahih* Narrations From ‘Uthman Show That He Wiped His Head Once. Even In Those Narrations That Mention Doing Wudu Three Times, The Wiping Of The Head Is Still Described As Being Done Once — No Number Is Mentioned As With The Other Limbs.”
(*Al-Tibyan*, 1/285)

Statement Of ‘Abd Al-Haqq Al-Ishbili

He States In *Al-Ahkam Al-Wusta* (1/168):

“All The *Sahih* Narrations From ‘Uthman Indicate Wiping The Head Once. Even When Wudu Three Times Is Mentioned, The Wiping Is Described Without Specifying A Number — Unlike The Other Limbs.”

Ḥadīth Regarding 3 Times Wiping Of The Head (Mash) Reported From ‘Alī Ibn Abī Ṭālib

There Is Also A Narration From ‘Alī Ibn Abī Ṭālib In Which He Is Reported To Have Wiped His Head Three Times In Wuḍū’. This ḥadīth Is Narrated By Imām Al-Bayhaqī In *Al-Sunan Al-Kubrā* And In *Al-Khilāfiyāt*:

Narration Chain: Al-Ḥusayn Ibn Muḥammad Ibn Muḥammad Ibn ‘Alī Al-Ṭūsī Narrated To Us, ‘Abd Allāh Ibn ‘Umar Ibn Aḥmad Ibn Shawdhub Narrated To Us, Shu‘Ayb Ibn Ayyūb Narrated To Us, ‘Abd Al-Ḥamīd Abū Yaḥyā Al-Ḥimmānī Narrated From Abū Ḥanīfah, From Khālid Ibn ‘Alqamah, From ‘Abd Khayr Al-Hamdānī That:

‘Alī Ibn Abī Ṭālib (May Allah Be Pleased With Him) Called For Water And Performed Wuḍū’. He Washed His Hands Three Times, Rinsed His Mouth Three Times, Sniffed Water Into His Nose Three Times, Washed His Face Three Times, His Arms Three Times, And Wiped His Head Three Times, And Washed His Feet Three Times. Then He Said: *"This Is How I Saw The Messenger Of Allah (Peace And Blessings Be Upon Him) Perform It."*

This Narration Was Also Transmitted With The Mention Of Wiping The Head Three Times By Al-Ḥasan Ibn Ziyād Al-Lu’Lu’ī And Abū Muṭī‘ From Abū Ḥanīfah. However, Several Others Including Zā’idah Ibn Qudāmah, Abū ‘Awnah, And Others Narrated From Khālid Ibn ‘Alqamah Without Mentioning The Repetition Of The Head Wiping. Likewise, The Majority Who Narrated From ‘Alī Did Not Mention The Threefold Wiping—Except For Some Anomalous (Shādh) Versions.

(This Isnād Is Weak.)

In This Chain, ‘**Abd Al-Ḥamīd Ibn ‘Abd Al-Raḥmān Al-Ḥammānī**’ Is A Weak Narrator.

- Ibn Ma‘īn Said: *"Da‘īf, Laysa Bi-Shay’ (Weak, Of No Significance)."* (*Al-Kāmil Fī Al-Ḍu‘afā’*, 7/9)
- Ibn Sa‘d And Aḥmad Ibn Ḥanbal Both Said: *"He Is Weak."* (*Tahdhīb Al-Tahdhīb*, 2/478)
- Al-‘Ajli Said: *"Kūfī, Weak In ḥadīth, Murji‘ī."* (*Tahdhīb Al-Tahdhīb*, 2/478)
- Al-Nasā’ī Once Said: *"Not Strong,"* And In Another Place: *"Trustworthy."* (*Tahdhīb Al-Tahdhīb*, 2/478)

Takhrīj (Source References)

This Narration Was Also Recorded By:

- Abū Yūsuf In *Kitāb Al-Āthār* (4)
- Al-Dāraquṭnī In *Al-Sunan* (1/89)
- Abū Nu‘Aym In *Musnad Abī Ḥanīfah* (98, 99)
- Al-Bayhaqī In *Al-Sunan* (1/63) And *Al-Khilāfiyāt* (1/311/120)
- Al-Khaṭīb (5/98)

Al-Dāraquṭnī Said In *Al-Sunan*:

“This Is How Abū Ḥanīfah Narrated From Khālid Ibn ‘Alqamah...”

Multiple Narrators Reported From Khālid Ibn ‘Alqamah With A One-Time Wiping (Maṣḥ) Of The Head, Such As:

Zā'idah Ibn Qudāmah, Sufyān Al-Thawrī, Shu'bah, Abū 'Awanah, Sharīk, Abū Al-Ashhab, Ja'far Ibn Al-Hārith, Hārūn Ibn Sa'd, Ja'far Ibn Muḥammad, Ḥajjāj Ibn Artāt, Abān Ibn Taghlib, 'Alī Ibn Ṣāliḥ Ibn Ḥayy, Ḥāzim Ibn Ibrāhīm, Ḥasan Ibn Ṣāliḥ, And Ja'far Ḥimār. All Of Them Reported A Single Mash.

Only Abū Ḥanīfah And Muḥammad Ibn Ishāq Narrated The Threefold Mash From Khālīd, Which Contradicts The Rest.

Imām Al-Dāraquṭnī Said:

"There Is Consensus In The Narration That The Prophet (Peace Be Upon Him) Wiped His Head Once—Except For Abū Ḥanīfah, Who In His Report From Khālīd Ibn 'Alqamah From 'Abd Khayr Said That He Wiped His Head Three Times. But This Opposes The Majority. Hence, The Sunnah Is To Wipe The Head Once."

(*Faḍl Al-Raḥīm Al-Wadūd Fī Takhrīj Sunan Abī Dāwūd*, 2/34)

Interestingly, Abū Ḥanīfah Himself Held The View That **Wiping Once** Is The Recommended Sunnah.

Another Authentic Route Of The Same Ḥadīth:

This Same ḥadīth Is Also Reported From 'Abd Al-Malik Ibn Sila Al-Hamdānī [ṣadūq — *Taqrīb*, 623], From 'Abd Khayr, Who Said:

'Alī Taught Us The Wuḍū' Of The Messenger Of Allah (Peace Be Upon Him). A Boy Poured Water For Him Until He Washed His Hands Clean, Then He Inserted His Hands Into The Jug, Rinsed His Mouth And Nose, Washed His Face And Arms Three Times, Then Dipped His Hands In Again And Wiped His Head Once With Both Palms, Then Washed His Feet Three Times. Then He Took A Handful Of Water And Drank It, Saying: "This Is How The Messenger Of Allah (Peace Be Upon Him) Performed Wuḍū'."

- **This Is The Preserved Narration From 'Abd Al-Malik**, And His Son, **Mas-Har**, Reported Anomalous Additions Like Wiping The Head And Ears Three Times. Mas-Har Is Not Strong. He Contradicted Others And Himself, Once Narrating Like The Group, And Another Time With His Additions.
- **Marwān Ibn Mu'āwiyah Al-Fazārī**, A Trustworthy Memorizer (**Thiqah**, **ḥāfiẓ**), Narrated It With A Single Mash, As Did 'Abd Allāh Ibn Numayr, Who Is Also **Thiqah**.

Takhrīj For This Version:

Reported By:

- Al-Nasā'ī In *Al-Kubrā* (1/137–138/161)
- Aḥmad (1/110)
- His Son 'Abd Allāh In *Ziyādāt Al-Musnad* (1/113, 123–124)
- Ibn Abī Shaybah (1/25, 42/176, 399)
- Abū 'Ubayd In *Al-Ṭahūr* (341)
- Al-Dāraquṭnī (1/92)
- Al-Bayhaqī In *Al-Khilāfiyāt* (1/1273)

Another Report From ‘Abd Khayr Via Al-Ḥasan Ibn ‘Uqbah Abū Kubrān:

Al-Ḥasan Ibn ‘Uqbah Abū Kubrān [Declared Trustworthy By Ibn Ma‘īn. Abū Ḥātim Said: “A Shaykh Whose ḥadīth Is Written.” Mentioned By Ibn Ḥibbān In *Al-Thiqāt — Al-Ta’jīl* (202)] Said: I Heard ‘Abd Khayr Say:
‘Alī Said: “Shall I Not Show You The Wuḍū’ Of The Messenger Of Allah (Peace Be Upon Him)?”
Then He Performed Wuḍū’ Three Times Each.

Reported By:

- Al-Dāramī (1/190/702)
- Aḥmad (1/123)
- ‘Abd Allāh Ibn Aḥmad In *Al-Ziyādāt* (1/114, 124)
- Ibn Abī Shaybah (1/16/60)
- Al-Ḍiyā’ In *Al-Mukhtārah* (2/285/665, 666)

Also, Both **Abū Ishāq Al-Sabī’ī** And **Ismā‘īl Al-Suddī** Narrated Different Versions Or Possibly Distinct ḥadīths From ‘Abd Khayr, Which Are Addressed Elsewhere.

Regarding The Narration Mentioning Wiping The Head Three Times

Scholars Have Commented On The Narration That Mentions Wiping The Head Three Times.

Shaykh **Adnan Bin Muhammad Al-‘Ar‘Ur** Says That This ḥadīth Is **Munkar (Denounced)** Due To This Wording.

Al-Dāraqutnī, Al-Bayhaqī, ‘Abd Al-Ḥaqq Al-Ishbīlī, Al-Dhahabī, Al-Albānī, And Others Say That The **Authentic Version** Of The ḥadīth Is That The **Head Was Wiped Once Only.**

From *Dīwān Al-Sunnah – Section On Ṭahārah* (13/197, As Per Shamela Auto-Numbering):

Narration: “And He Wiped His Head Three Times.”

In Another Narration: “...And He Wiped His Head Three Times...”

Ruling: This Wording Is **Munkar (Denounced)**. It Was Criticized By: Al-Dāraqutnī, Al-Bayhaqī, ‘Abd Al-Ḥaqq Al-Ishbīlī, Al-Dhahabī, And Al-Albānī.

The Preserved Version Of The ḥadīth Is That **He Wiped His Head Once**, As Has Preceded.

This ḥadīth Has Several Chains Of Transmission (ṭuruq):

1st Chain:

Narrated By **‘Abdullāh Ibn Aḥmad** In *Zawā’id Al-Musnad* (1360):

From ‘Amr Ibn Muḥammad Ibn Bukayr Al-Nāqid → Al-‘Alā’ Ibn Hilāl Al-Raqqī → ‘Ubaydullāh Ibn ‘Amr → Zayd Ibn Abī Unaysah → Abū Ishāq → Abū Ḥayyah → ‘Alī.

About This Chain, Adnān Al-‘Ar‘ūr Writes (*Dīwān Al-Sunnah*, 13/198):

This Isnād Is **Weak** And The **Matn (Text) Is Defective.**

The Narrators Are Trustworthy, Narrators Of The Two Shaykhs (Al-Bukhārī And Muslim), **Except For Al-‘Alā’ Ibn Hilāl Al-Raqqī And Abū Ḥayyah.**

Abū Ḥayyah Has Already Been Discussed.

As For Al-‘Alā’ Ibn Hilāl Al-Raqqī – **He Is The Cause Of Weakness In This Isnād.**

Abū Ḥātim Said About Him: "*He Is Munkar In ḥadīth, Weak, He Has Fabricated Narrations From Yazīd Ibn Zuray’.*" (Al-Jarḥ Wa Al-Ta ‘Dīl 6/362-363).

Ibn Ḥibbān Said: "*He Used To Tamper With Isnāds And Change Names. It Is Not Permissible To Rely On Him At All.*" (Al-Majrūḥīn 2/176).

Al-Albānī Said: "*The Defect Is Al-‘Alā’ Ibn Hilāl Al-Raqqī – He Is Extremely Weak.*" (Ṣaḥīḥ Abī Dāwūd 1/196).

We Say: This Narration, Which Includes The Mention Of Wiping The Head Three Times, Is One Of His Munkar Reports.

It Has Already Been Established That The Narration From **Al-Thawrī, Shu‘Bah, Isrā’īl**, And Others From **Abū Ishāq Do Not Include** The Mention Of Wiping The Head Thrice – Rather, Most Of Them Explicitly Mention That **He Wiped His Head Once Only.**

There Is Another Version From **Abū Ishāq**, As Follows:

2nd Chain:

Narrated By **Al-Bazzār** (736, 795) From **Muḥammad Ibn Ma‘Mar** → Abū Dāwūd → Abū Al-Aḥwas Sallām Ibn Sulaym → Abū Ishāq → Abū Ḥayyah Ibn Qays → He Saw ‘Alī In Al-Raḥbah Performing Wuḍū’ ...

Then Abū Ishāq Said: ‘**Abd Khayr Narrated To Me From ‘Alī**, A Similar Narration.

Adnān Al-‘Ar‘ūr Writes (Dīwān Al-Sunnah, 13/201):

This Narration Is **Defective From Both Directions:**

1. From The Path Of Abū Ḥayyah – Its Narrators Are Reliable And From The Shaykhs Of The Two Ṣaḥīḥs **Except For Abū Ḥayyah**, Who Has Already Been Discussed.
2. As For **Muḥammad Ibn Ma‘Mar**, He Is Al-Qaysī Al-Baḥrānī, From The Narrators Of The Two Ṣaḥīḥs – **Truthful** (Taqrīb, 6313).

Abū Dāwūd Is Sulaimān Ibn Dāwūd Al-Ṭayālīsī – **Trustworthy, A ḥāfiẓ**, But **Made Mistakes In Some ḥadīths** (Taqrīb, 2550).

The Error Likely Comes From **Al-Ṭayālīsī**, Or **Al-Baḥrānī**, Or Even From **Al-Bazzār** Himself. Because **Many Trustworthy Narrators** Narrated This From **Abū Al-Aḥwas**, And **None Of Them Mentioned Repeating The Head Wiping.**

Among Those Trustworthy Narrators: **Musaddad, Hannād Ibn Al-Sarī, Qutaybah Ibn Sa‘īd, Abū Bakr Ibn Abī Shaybah, Abū Tawbah Al-Rabī‘ Ibn Nāfi‘**, And Others.

Both Hannād And Qutaybah Clearly Stated: "*He Wiped His Head Once.*" (See Sunan Al-Tirmidhī, 48) –

This Matches The Narration From **The Trustworthy Companions Of Abū Ishāq**, Like **Shu‘Bah, Sufyān**, And Others.

As For The **Route Of ‘Abd Khayr**, It Was Reported By **Al-Tirmidhī** (49) From **Qutaybah And Hannād** → Abū Al-Aḥwaṣ → Abū Ishāq → ‘Abd Khayr → From ‘Alī, Similar To The Narration Of Abū Ḥayyah.

We Say: The Earlier Narration From **Abū Ḥayyah** (No. 48) Uses The Words: “...*And He Wiped His Head Once.*”

Similarly, ‘Abdullāh Ibn Aḥmad In *Zawā’id Al-Musnad* (1047), And **Abū Ya‘Lā** (500), Narrate Via **Khalaf Ibn Hishām [Al-Bazzār]** → Abū Al-Aḥwaṣ → Abū Ishāq, Who Says:

“‘Abd Khayr Narrated From ‘Alī, A Narration Similar To That Of Abū Ḥayyah.”

This Same Report Also Mentions **Threefold Washing** Of The Limbs In Wuḍū’, But **Only One Wiping Of The Head**, As Others Also Narrated From Abū Ishāq.

Abū Ishāq’s Statement In Khalaf’s Version: “‘*Abd Khayr Narrated...*” Suggests **He Did Not Hear It Directly**, Which Raises Doubt About **Al-Bazzār’s Report** That States: “‘*Abd Khayr Told Me...*”

This Suggests Another Error – One Who Makes A Mistake In The Matn (Text) Is Even More Likely To Err In The Isnād.

Three Trustworthy Narrators Reported From Abū Al-Aḥwaṣ And None Mentioned That Abū Ishāq Heard Directly From ‘Abd Khayr – Khalaf’s Narration Indicates A **Disconnect (Inqitā’)**.

This Is Also Supported By Other Narrations From **Abū Ishāq** That Are All ‘**An‘Anah** (Non-Direct).

A Version **With Repetition Of Wiping The Head Three Times** Is Also Found **From Abū Ishāq Through A Different Route**:

Narrated By **Al-Khuldī In Al-Fawā’id** (No. 73):

Al-Qāsim Ibn Muḥammad → Ibrāhīm → Shu‘Ayb → Abū Ishāq → ‘Abd Khayr:

*“I Saw ‘Alī Do Wuḍū’, Washed His Hands, Rinsed His Mouth And Nose Three Times Each, Washed Face And Arms Three Times, **Wiped His Head Three Times**, Washed Feet, Then Took A Handful Of Water And Drank It.”*

But **All Three Narrators – Al-Qāsim Ibn Muḥammad Al-Dallāl, Ibrāhīm Ibn Al-Ḥasan Al-Tha‘Labī, And Shu‘Ayb Ibn Rāshid Al-Kūfī – Are Criticized**,

While The **Preserved Version From Abū Ishāq** Is What The Majority Narrators Report **Without** Mention Of Wiping The Head Three Times.

Abū Al-Aḥwaṣ Was Followed Up:

Ibn Shādhān In *Ḥadīth Ibn Qāni’* And *Al-Dīnawarī* (No. 32) With A **Sound Chain** From **Ghaylān Ibn Jāmi’** → Abū Ishāq → ‘Abd Khayr:

*“‘Alī Came To The Place Of Purification, Washed His Hands Three Times, Rinsed His Mouth And Nose Three Times, Washed His Arms And Feet Three Times, And **Wiped His Head.**”*

Ghaylān Was An Early Narrator, A Teacher Of **Al-Thawrī And Shu‘Bah**, So Likely Heard It Before Abū Ishāq’s Memory Declined.

Another Follow-Up: ‘**Abd Al-Raḥmān Ibn Ḥumayd Al-Ru’Āsī** Reported Via **Abū Ghassān**, Found In *Amālī Ibn Bashrān* (No. 1314).

Conclusion:

All This Supports The Conclusion That ****The Narration Mentioning Wiping The Head Three Times Is Shādh (Irregular) And Even Munkar (Denounced).**

And Allāh Knows Best.

Regarding This Narration, Adnan Bin Muhammad Al-Aroor Writes:

It Is A Weak Hadith, With Textual Confusion (Idtirab Al-Matn). There Is Also Confusion From Ibn ‘Aqeel, And It Contains Many Discrepancies Compared To The Reliable Wording Preserved By Expert Hadith Scholars (Huffaz).

Al-Bayhaqi And **Ibn Hajar**, According To What Is Deemed Their **Strongest Opinion**, Have Both Declared The Hadith **Weak**, And **Al-Shawkani** Followed Their Verdict.

Al-Tirmidhi Graded It As **Hasan (Good)**, But He Ultimately Preferred The Hadith Of **Abdullah Ibn Zayd**, Saying:

“The Hadith Of Abdullah Ibn Zayd Is More Authentic And Has A Better Chain Than This One.”
In That Hadith (Which Was Previously Mentioned), It States That He **Rinsed His Mouth And Nose Before Washing His Face, And Wiped His Head Once With Fresh Water**, Starting From The **Front Of His Head**.

(Source: *Diwan Al-Sunnah – Section: Taharah* 13/256 – Shamela Auto-Numbering)

Ruling: Weak, With Textual Confusion. Ibn 'Aqeel Is Confused In It, And Many Of Its Wordings Contradict What Is Preserved From Reliable Ahadith On The Description Of The Prophet’s Wudu ﷺ. Therefore, It Was Weakened By Al-Bayhaqi And Ibn Hajar (In What Is Considered His Stronger Opinion), And Al-Shawkani Agreed With Them.

Al-Tirmidhi Graded It Hasan But Preferred The Hadith Of Abdullah Ibn Zayd, Which Is Narrated By The Two Shaykhs (Al-Bukhari And Muslim).

Al-Suyuti Says:

Those Who Believe The Wiping Of The Head In Wudu Should Begin From The **Back**, Such As **Hasan Ibn Hayy**, Use This Hadith As Evidence.

(Source: *Diwan Al-Sunnah – Section: Taharah* 13/257 – Shamela Auto-Numbering)

Al-Suyuti: *“This Hadith Was Used As Evidence By Those Who Hold That One Should Begin Wiping The Head From Its Back, Then Move To The Front.”*

In **Sunan Al-Kubra Of Al-Bayhaqi**, Hadith 299 Is Narrated From **Abdullah Ibn Zayd**, Conveying That The Prophet ﷺ Wiped His Head **Twice**:

Narrated By: Abu Bakr Ahmad Ibn Al-Hasan → Hajib Ibn Ahmad → Muhammad Ibn Hammad → Sufyan → ‘Amr Ibn Yahya → His Father → Abdullah Ibn Zayd:

“The Prophet ﷺ Performed Wudu, Washed His Face Three Times, His Arms Twice, Wiped His Head

Twice, And Washed His Feet Twice.”

(Graded: **Sahih**)

After Narrating This, **Imam Al-Bayhaqi** Wrote:

Abu ‘Abd Al-Rahman Al-Nasa’i Included This Hadith In His **Sunan**, From **Sufyan Ibn ‘Uyaynah**, Regarding Wiping The Head **Twice**.

However, **Malik, Wuhayb, Sulayman Ibn Bilal**, And **Khalid Al-Wasiti** All Narrated From ‘**Amr Ibn Yahya** That The Prophet ﷺ Wiped His Head **Once**, Starting From The **Front And Going To The Back**.

Adnan Bin Muhammad Al-Aroor Writes:

This Hadith Is **Shadh (Irregular/Aberrant)** In This Wording.

Al-Bayhaqi, Ibn ‘Abd Al-Barr, Ibn Daqiq Al-‘Id, Al-Zayla’i, Ibn Al-Mulaqqin, Ibn Hajar, And Al-Albani All Acknowledged This.

(Source: *Diwan Al-Sunnah – Section: Taharah* 13/110 – Shamela Auto-Numbering)

Ruling: This Wording Is **Shadh (Irregular)**.

This Was Pointed Out By **Al-Bayhaqi, Ibn ‘Abd Al-Barr, Ibn Daqiq Al-‘Id, Al-Zayla’i, Ibn Al-Mulaqqin, Ibn Hajar, And Confirmed By Al-Albani**.

The Isnad (Chain) Primarily Centers On **Sufyan Ibn ‘Uyaynah**:

Al-Nasa’i Said: Muhammad Ibn Mansur → Sufyan → ‘Amr Ibn Yahya → His Father → Abdullah Ibn Zayd (The One Shown The Adhan)... Then He Mentioned The Hadith.

The Narration Hinges On **Sufyan Ibn ‘Uyaynah**, And Scholars Have Explained:

"This Chain’s Narrators Are Trustworthy And Are From Those Used By Al-Bukhari And Muslim, But The Wording Is Shadh (Irregular), Because Sufyan Erred Both In The Chain And In The Content."

Error In The Chain: He Said “*Abdullah Ibn Zayd, The One Who Saw The Adhan*” — This Is Incorrect.

Correct: **Abdullah Ibn Zayd Ibn ‘Asim Al-Mazini**.

The One Shown The Adhan Was **Abdullah Ibn Zayd Ibn ‘Abd Rabbihi Al-Khazraji**.

- **Imam Al-Bukhari:** “Ibn ‘Uyaynah Used To Say He Is The One Who Saw The Adhan, But That Is A Mistake. The Correct Narrator Here Is Abdullah Ibn Zayd Ibn ‘Asim Al-Mazini.” (Sahih Al-Bukhari 1012)
- **Al-Daraqutni:** “That’s What Ibn ‘Uyaynah Said, But He’s Wrong. It’s Not The One Who Saw The Adhan.” (Sunan 266)
- **Imam Al-Nawawi:** Scholars, Both Early And Later, Agreed That **Ibn ‘Uyaynah** Was Mistaken.
- **Ibn Al-Mulaqqin:** “Ibn ‘Uyaynah Erred In Claiming The Narrator Was The One Who Saw The Adhan.” (I’lam Bi Fawa’id Umdat Al-Ahkam 1/369)

Error In The Text: He Claimed That The Prophet ﷺ Wiped His Head **Twice** And Washed His Feet **Twice**.

However, Multiple **Reliable Narrators** From ‘**Amr Ibn Yahya** Reported The Wording:

“He Wiped His Head With Both Hands, Brought Them Forward And Then Back... Then He Washed His Feet.”

These Include:

1. **Malik Ibn Anas** (Sahih Al-Bukhari 185, Sahih Muslim 235)
2. **Wuhayb Ibn Khalid** (Sahih Al-Bukhari 186)
3. **Abd Al-‘Aziz Ibn Abi Salamah Al-Majishun** (Sahih Al-Bukhari 197)
4. **Sulayman Ibn Bilal** (Sahih Al-Bukhari 199, Sahih Muslim 235)
5. **Khalid Ibn ‘Abdullah Al-Wasiti** (Sahih Al-Bukhari 191, Sahih Muslim 235)

None Of Them Mentioned **Wiping Twice** — All Affirmed It Was **Once**, Moving Forward And Backward.

Undoubtedly, The Version Of The **Majority** Is Preferred Over That Of **Ibn ‘Uyaynah**, Especially As **He Himself Narrated Different Versions** At Times (See Al-Humaydi 421, Ibn Khuzaymah 166). **Imam Ahmad** Also Confirmed Sufyan’s Inconsistency:

“I Heard Sufyan Narrate It Three Times:
Once He Said, ‘Washed The Feet Twice.’
Once, ‘Wiped The Head Once.’
Twice, ‘Wiped The Head Twice.’” (Musnad Ahmad 16452)

Al-Bayhaqi Commented:

“Al-Nasa’i Narrated From Sufyan Ibn ‘Uyaynah Wiping The Head Twice, But He Was Contradicted By Malik, Wuhayb, Sulayman Ibn Bilal, Khalid Al-Wasiti, And Others Who All Narrated Wiping **Once**, Saying: ‘He Wiped Forward And Backward.’” (Sunan Al-Kubra 301)

Ibn ‘Abd Al-Barr Stated:

“Ibn ‘Uyaynah Erred In Two Matters:
First, He Said: ‘Abdullah Ibn Zayd Ibn ‘Abd Rabbihi’ — Incorrect, It Is Actually ‘Abdullah Ibn Zayd Ibn ‘Asim.’
The First Saw The Adhan In A Dream; The Second Narrated This Hadith And Others.
Ibn ‘Uyaynah’s Mistake Is Understandable; If Even He Could Err, Others Like Isma’il Ibn Ishaq Are More Likely To.”

(Source: *Al-Tamheed* 20/115-116)

Second Error: He Claimed **Wiping The Head Twice** — No One Else Did.
He Likely Misunderstood The Phrase:

“*He Wiped His Head With His Hands, Moving Forward And Back*” As Two Separate Actions.

This Was Also Affirmed By:

- **Ibn Daqiq Al-‘Id** (*Al-Imam* 1/430–431)
- **Al-Zayla’i** (*Nasb Al-Rayah* 1/33)

Ibn Hajar Says:

*“Ibn ‘Uyaynah Narrated From ‘Amr Ibn Yahya That The Prophet ﷺ Wiped His Head **Twice** — This Is A Strange Narration (Gharib).”*

He Added In *Fath Al-Bari* (1/259): *“There Is A Problem In This Narration.”*

Shaykh Al-Albani Says:

“This Addition (Of Wiping Twice) Is Shadh (Aberrant), As It Contradicts Malik And Others Who Agreed On Wiping Once.

*Ibn ‘Uyaynah Was **Confused** In This Narration.*

*This Is A Strong Case Of Confusion, Showing He Did **Not Accurately Preserve** This Part Of The Hadith.”*

(*Sahih Abi Dawud* 1/203)

Ibn Daqiq Al-‘Id Also Pointed To The Mistake In *Al-Imam* 1/547–548.

Ibn Al-Mulaqqin Adds In *Al-Badr Al-Munir* (3/344) That This Was Among **Ibn ‘Uyaynah’s Errors**.

A Hadith Is Also Narrated From Abdullah Ibn Umar Regarding Wiping The Head Three Times

There Is Also A Hadith Reported From **Abdullah Ibn Umar** Whose Meaning Is The Recommendation Of Wiping The Head Three Times In Wudu (Ablution). Imam **Al-Bayhaqi** Narrated It In His Book **“Al-Khilafiyat”**:

وَأَخْبَرَنَا أَبُو بَكْرِ، أَنَا عَلِيُّ، ثَنَا الْحُسَيْنُ بْنُ إِسْمَاعِيلَ، ثَنَا شُعَيْبُ بْنُ مُحَمَّدٍ بْنِ شُعَيْبٍ الْحَضْرَمِيُّ أَبُو مُحَمَّدٍ، ثَنَا الرَّبِيعُ بْنُ سُلَيْمَانَ الْحَضْرَمِيُّ، ثَنَا صَالِحُ بْنُ عَبْدِ الْجَبَّارِ الْحَضْرَمِيُّ وَعَبْدُ الْحَمِيدِ بْنُ صَبِيحٍ قَالَا: ثَنَا مُحَمَّدُ بْنُ عَبْدِ الرَّحْمَنِ بْنِ الْيَلْمَانِي، عَنْ أَبِيهِ، عَنْ ابْنِ عُمَرَ، قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ:

“Whoever Performs Ablution And Washes His Hands Three Times, Rinses His Nose Three Times, Rinses His Mouth Three Times, Washes His Face And His Arms Three Times Each, And Wipes His Head Three Times, And Washes His Feet Three Times Each, Then Says: ‘I Bear Witness That There Is No God But Allah And That Muhammad Is His Servant And Messenger,’ Before Speaking – His Past Sins Between The Two Ablutions Will Be Forgiven.”

(Chain Of Narration: Weak)

Criticism Of The Chain (Sanad)

The Narrator **Muhammad Ibn Abd Al-Rahman Ibn Al-Baylmani** Is Agreed Upon By Scholars To Be **Weak (Da‘Eef)**:

- **Ibn Ma'in** Said: *“He Is Nothing.”*
 - *Tazhib Al-Kamal* (25/594)
- **Imam Al-Humaydi** Said: *“He Is Weak.”*
 Narrated By Al-Junaydi From Al-Bukhari: *“Al-Humaydi Considered Muhammad Ibn Abd Al-Rahman Ibn Al-Baylmani, The Freed Slave Of Umar, Weak.”*
 - *Al-Kamil Fi Al-Du‘Afa* (7/382)
- **Imam Al-Saji:** *“Munkar Al-Hadith (Narrates Rejected Reports).”*
 - *Tahdhib Al-Tahdhib* (3/623)
- **Abu Hatim:** *“His Hadith Is Confused (Mudtarib).”*
 - *Tahdhib Al-Tahdhib* (3/623)
- **Imam Al-Bukhari, Abu Hatim, And Al-Nasa'i:** *“Munkar Al-Hadith.”*
 - *Tahdhib Al-Tahdhib* (3/623)
- **Ibn ‘Adi And Ibn Hibban:** *“Accused Him Of Delusion (Wahm).”*
 - *Taqrib Al-Tahdhib* (1/869)
- **Ibn Bazzar:** *“His Narrations From His Father And From Ibn Umar Are Many, And Full Of Oddities. We Only Cite Those That Are Passable, Because He Is Considered Weak In Hadith By Scholars.”*
 - *Musnad Al-Bazzar* (12/33), Hadith No. 5411
- **Imam Al-Dhahabi:** *“Very Weak (Waahin).”*
 - *Al-Kashif* (4/149)
- **Ibn Hajar:** *“Weak.”*
 - *Taqrib Al-Tahdhib* (1/869)
- **Imam Al-Uqayli:** *“He Narrated From Him (I.E. Al-Baylmani) Rejected Reports.”*
 - *Tahdhib Al-Tahdhib* (3/623)

Further Scholars Who Declared The Hadith Weak:

Adnan Ibn Muhammad Al-‘Aroor, Al-Daraqutni, ‘Abd Al-Haqq Al-Ishbili, Ibn Al-Qattan, Al-Nawawi, Ibn Al-Mulaqqin, Ibn Hajar, And Al-Albani All Declared This Narration Weak In The Wording Which Includes *“Before Speaking”* And *Wiping The Head Three Times*:

▸ *Diwan Al-Sunnah – Section On Purification* (11/289, Shamela Numbering):

“Its Chain Is Very Weak In This Form. It Was Weakened By Al-Daraqutni, ‘Abd Al-Haqq Al-Ishbili, Ibn Al-Qattan, Al-Nawawi, Ibn Al-Mulaqqin, Ibn Hajar, And Al-Albani. The Text Of The Hadith Is Authentic Without The Phrase ‘Before Speaking’ And Without Wiping The Head Three Times.”

Adnan Al-‘Aroor: Four Defects (‘Ilal) In This Hadith

1. **First Defect:** The Narrator *Muhammad Ibn Abd Al-Rahman Ibn Al-Baylmani* Is Weak.
 - Declared **Munkar Al-Hadith** By Abu Hatim, Al-Bukhari, And Al-Nasa'i.
 - Dhahabi: *“Very Weak (Waahin).”*
 - Ibn Hajar: *“Weak, Accused Of Delusion By Ibn ‘Adi And Ibn Hibban.”*

2. **Second Defect:** His Father ‘*Abd Al-Rahman Ibn Al-Baylmani* Is Also Weak.
 - ▶ Ibn Hajar: “Weak.” (*Taqrib* No. 3819)
3. **Third Defect:** *Disconnection (Inqita’)* — There Is No Proof That ‘*Abd Al-Rahman* Heard Any Hadith From A Companion.
 - ▶ *Tahdhib Al-Tahdhib* (6/150)
4. **Fourth Defect:** *Contradiction (Idtirab)* — The Narrator Once Attributes This Hadith To ‘*Uthman* Instead Of Ibn Umar.
 - ▶ *Diwan Al-Sunnah* (11/290)

More Detail On The Chain

- Another Narrator **Salih Ibn Abd Al-Jabbar** Is *Majhool Al-Haal* (Unknown Status).
 - ▶ Ibn Al-Qattan In *Bayan Al-Wahm Wa Al-Iham* (No. 1276),
 - ▶ Al-Dhahabi In *Mizan Al-I‘Tidal* (2/296): “He Reported A Very Rejected Narration.”
 - ▶ Al-‘Uqayli: “Salih Ibn Abd Al-Jabbar Narrated Rejected Reports From Ibn Al-Baylmani.”
 - ▶ *Lisan Al-Mizan* (3/172)
- However, **Salih** Has A *Mutaba‘Ah* (Corroborating Narrator): **Abd Al-Hamid Ibn Sabih**, Whom Al-Dhahabi Said: “There Is No Harm In Him.”
 - ▶ *Tarikh Al-Islam* (18/323)
- ‘*Abd Al-Haqq Al-Ishbili* Weakened The Hadith Saying: “In Its Chain Is Al-Baylmani.”
 - ▶ *Al-Ahkam Al-Wusta* (1/169)
- Ibn Al-Qattan Responded: “He Based His Critique Only On That, But Both The Father And Son Al-Baylmani Are Weak And Not Relied Upon.”
 - ▶ *Bayan Al-Wahm Wa Al-Iham* (3/319)
- Ibn Hajar: “Al-Daraqutni Said: Ibn Al-Baylmani Is The Sole Narrator And He Is Extremely Weak. The Scholars Are Unanimous On His Weakness. Ibn ‘*Adi* Said: Everything He Narrates Is Faulty, And He Was Accused Of Fabrication And Theft Of Hadith. He Also Narrated The Same Report Attributing It To Another Companion, Which Is A Contradiction.”
 - ▶ *Al-Nata’ij* (1/248)
- Also Weakened By **Al-Nawawi** In *Al-Majmu‘* (1/457) And *Al-Adhkar* (75), **Ibn Al-Mulaqqin** In *Al-Badr Al-Munir* (2/183), And **Al-Albani**, Who Commented That The Phrase “Before Speaking” Is Fabricated (*Mawdu‘*)
 - ▶ *Silsilat Al-Da‘ifah* (6811)

The Wording Of The Hadith Is **Authentic** From Other Companions Such As ‘**Uthman**, But **Without** The Phrase “Before Speaking” And **Without** The Repetition Of Wiping The Head Three Times.

Conclusion

All The **Authentic, Well-Known, And Sound Narrations** Related To **Wiping The Head In Wudu** Only Mention Wiping **Once**. Some Narrations Mention Wiping **Twice Or Thrice**, But That Does Not Mean It Is Not Allowed—It Merely Indicates **Permissibility**, Not Recommendation.

Wiping The Head Once During Wudu Is The Sunnah. And Allah Knows Best.

Using Separate Water For Wiping The Head In Wudu (Ablution)

There Is A Difference Of Opinion Among The Jurists Regarding Whether Taking Fresh Water Specifically For Wiping The Head During Wudu Is Obligatory Or Not.

Hanafi Madhhab

Within The Hanafi School, There Is A Difference Of Opinion On This Issue. The Well-Known And Relied-Upon View In The Madhhab Is That It Is Permissible To Wipe The Head Without Taking New Water. See *Al-Durr Al-Mukhtār With The Marginal Notes Of Ibn ‘Ābidīn* (1/99), Where Ibn ‘Ābidīn Writes:

“Al-Hākim Said That Wiping The Ears Is Not Permissible Without Fresh Water, And This Is A Mistake Which Many Jurists Have Committed. Ibn Al-Kamāl Supported This View And Said: The Correct Opinion Is That Of Al-Hākim. Al-Karkhi In His *Jāmi‘ Al-Kabīr* Clearly Narrated From Abū Ḥanīfah And Abū Yūsuf That If Someone Wipes His Head With The Leftover Water From Washing His Arms, It Is Not Valid Unless He Uses New Water, Because That Water Has Already Been Used For Purification Once.”

(*Al-Durr Al-Mukhtār*, With *Ḥāshiyah Ibn ‘Ābidīn*, 1/99)

The Text Also Mentions That If The Leftover Water Drips (Like Rainwater), Then It Is Like Taking New Water, As Mentioned In *Al-Ghurar*.

Mālikī Madhhab

In The Mālikī School, Taking Fresh Water For Wiping The Head Is Recommended (*Mandūb*), Not Obligatory. See *Ḥāshiyat Al-Dasūqī* (1/88), Where It Says:

“It Is Recommended To Renew Water For Wiping The Head, And It Is Disliked To Use Other Sources Such As The Moisture Of The Beard—If Other Water Is Available. If Not, Then There Is No Dislike.”

Shāfi‘ī Madhhab

In The Shāfi‘ī School, There Is Also A Difference Of Opinion. One View Holds That Simply Placing The Hand On The Head Without Wiping Is Sufficient, While Another View Holds That It Is Not. See *Mughnī Al-Muḥtāj* By Al-Sharbinī (1/177), Where He States:

“It Is Permissible To Place The Hand On The Head (Without Wiping), As The Goal Is To Get The Moisture To The Head. This Permissibility Indicates That It Is Neither Recommended Nor Disliked. The Second Opinion Is That It Is Not Sufficient, As It Is Not Considered A Valid ‘Wiping’. According To The First Opinion, If Water Dripped On His Head Or He Stood In The Rain—Even Without The Intention Of Wiping—It Would Still Suffice, Contrary To Ibn Al-Muqri’ Who Required Intention.”

Ḥanbalī Madhhab

According To The Ḥanbalī School, Fresh Water Must Be Taken For Wiping The Head. See *Kashshāf Al-Qinā'* By Al-Buhūtī (1/99), Which Says:

“Wiping The Head Should Be Done With New Water—Not The Leftover From Washing The Arms—Because The Head Is A Separate Limb.”

Report Of Ibn Al-Mājjishūn (Mālikī)

Ibn Al-Mājjishūn (A Mālikī Scholar) Narrated That Wiping The Head With The Moisture From The Beard Is Valid. However, Ibn Ḥabīb Al-Mālikī, Imām Mālik, And Imām Al-Shāfi‘ī Held A Contrary View.

In *Al-Umm* By Al-Shāfi‘ī (1/44), He Said:

“Water Should Be Taken Separately For Each Limb. If He Wipes His Head With The Leftover Moisture From Wiping His Hands, Or With The Moisture Of His Beard, It Does Not Suffice. Only New Water Is Sufficient.”

This Matter Will Be Discussed Further Under The Issue Of **Order In Wudu (Tartīb)**.

Method Of Mashʾ (Wiping Over The Head)

Hanafi Madhhab

According To The Ḥanafī School, The Apparent And Preferred Method Is To:

Place Both Palms And Fingers On The Front Of The Head And Move Them Backward To The Nape Of The Neck, Such That The Entire Head Is Wiped. After That, Wipe Both Ears With The Fingers.

This Is The Madhhab Of The Ḥanafīs. See:

"Ḥāshiyat Ibn ‘Ābidīn" (1/121), Where It Is Stated:

"They Discussed The Method Of Wiping. What Is More Apparent Is That One Places His Palms And Fingers On The Front Of His Head And Moves Them Back Toward The Nape Such That The Entire Head Is Wiped. Then, He Wipes His Ears With His Fingers."

Shafi‘ī Madhhab

In The Shāfi‘ī School, The Method Is:

Place Both Hands At The Front Of The Head While Keeping The Index Fingers Together And The Thumbs Placed On The Temples. Then Move The Hands To The Back Of The Head And Return Them To The Place Where One Started.

See:

"Mughnī Al-Muḥtāj" By Al-Shirbīnī (1/189), Where He Says:

"The Sunnah Method Is To Place The Hands On The Front Of The Head, Joining The Index Fingers, Placing The Thumbs On The Temples, Then Pass The Hands To The Back Of The Head, And Return Them To The Starting Point."

Hanbali Madhhab

The Ḥanbalī Madhhab Agrees With The Shāfi‘ī Method:

Begin Wiping From The Front Of The Head With Wet Hands, Placing The Tips Of The Index Fingers Together And The Thumbs On The Temples, Then Move The Hands To The Back Of The Head And Return Them To The Front.

See:

"Kashshāf Al-Qinā'" By Al-Buhūtī (1/99), Where He Says:

"(The Sunnah In Wiping The Head) Is To Begin With Wet Hands From The Front Of The Head, Place The Tips Of The Index Fingers Together, The Thumbs On The Temples, Then Move Them To The Back Of The Head, And Return Them To The Front."

Maliki Madhhab

According To The Mālikī School, The Method Of Maṣḥ Can Be:

Wiping From The Back Of The Head To The Front Or From The Front To The Back, Or Even From One Side Of The Head (The Temples).

See:

"Al-Sharḥ Al-Kabīr" And "Ḥāshiyat Al-Dasūqī" (1/98), Where It Says:

"Returning The Wiping Of The Head Means Either From The Back To The Front, Or Vice Versa, Or From One Of The Temples."

Hadith Evidence

1. *Sunan Abī Dāwūd* (Vol 1, Hadith 126)

Al-Rubayyi‘ Bint Mu‘Awwidh Ibn ‘Afra’ Narrates A *Marfū‘* Hadith Whose Meaning Indicates That The Prophet ﷺ Began Wiping The Head From The Back:

Arabic Text:

"..كَانَ رَسُولُ اللَّهِ ﷺ يَأْتِينَا ... وَمَسَحَ بِرَأْسِهِ مَرَّتَيْنِ، يَبْدَأُ بِمَوْخَرِ رَأْسِهِ، ثُمَّ بِمُقَدَّمِهِ، وَيَأْذُنَيْهِ كُلَّتَيْهِمَا ظُهُورَهُمَا وَيُطَوِّنَهُمَا"

Translation:

“The Messenger Of Allah ﷺ Came To Us... She Described His Wudū’ Saying: He Washed His Hands Three Times, Washed His Face Three Times, Rinsed The Mouth And Nose Once, Washed His Arms Three Times, And Wiped His Head Twice — Starting From The Back Of His Head And Then To The Front — And Wiped Both Ears, Inside And Out...”

Isnād (Chain Of Transmission):

Weak (Ḍa‘īf) Due To ‘**Abdullāh Ibn Muḥammad Ibn ‘Aqīl**, Whose Memory Is Weak.

(Chain Weakness Already Explained Earlier.)

2. *Ṣaḥīḥ Al-Bukhārī* (Hadith 140)

‘**Aṭā’ Ibn Yasār** Narrates That ‘**Abdullāh Ibn ‘Abbās** Performed Wudū’ And Wiped His Head:

Arabic Text:

"ثُمَّ مَسَحَ بِرَأْسِهِ..."

Translation:

"Then He Wiped His Head... And Said: 'This Is How I Saw The Messenger Of Allah ﷺ Perform Wudū’.'"

Status:

Ṣaḥīḥ Li-Dhātihi (Authentic In And Of Itself)

Takhrij Of The Ḥadīth Of Ibn ‘Abbās

This Hadith Is Reported In:

- **Ṣaḥīḥ Al-Bukhārī** (1/40), Hadith: 140
- **Sunan Abī Dāwūd** (1/50), Hadith: 133 & (1/52), Hadith: 137

- **Jāmi‘ Al-Tirmidhī** (1/85), Hadith: 36
- **Sunan Al-Nasā’ī** (1/45), Hadith: 101 & (1/46), Hadith: 102
- **Sunan Ibn Mājah** (1/264), Hadith: 411 & (1/281), Hadith: 439
- **Musnad Ahmad** (2/595, 596, 813, 816), Hadith: 2455, 2456, 3559, 3571
- **Ṣaḥīḥ Ibn Ḥibbān** (3/360, 367), Hadith: 1078, 1086
- **Ṣaḥīḥ Ibn Khuzaymah** (1/266), Hadith: 148
- **Al-Mu‘Jam Al-Kabīr** By Al-Ṭabarānī (10/311), Hadith: 10759; (11/75), Hadith: 11091
- **Al-Mu‘Jam Al-Awsaṭ** (2/377), Hadith: 2277; (9/81), Hadith: 9188
- **Muṣannaf Ibn Abī Shaybah** (1/262–368), Various Ahadith
- **Sunan Al-Kubrā** By Al-Bayhaqī (1/53–236), Multiple References
- **Musnad Al-Bazzār**, Hadith: 5278, 5279, 5281
- **Al-Sunan Al-Kubrā** By Al-Nasā’ī (1/108, 113, 142)
- **Musnad Abī Ya‘Lā** (4/367), Hadith: 2486
- **Al-Mustadrak** By Al-Ḥākim (1/147–150), Hadith: 523, 536, 537
- **Al-Aḥādīth Al-Mukhtārah** By Al-Ḍiyā’ Al-Maqdisī (11/259), Hadith: 263
- **Sharḥ Ma‘Ānī Al-Āthār** By Al-Ṭaḥāwī (1/32–34), Hadith: 137, 152

Sahih Bukhari Hadith 156

Hamran, The Freed Slave Of Uthman Ibn Affan, Narrates:

I Saw Uthman Ibn Affan Performing Wudu (Ablution). He Washed His Hands Three Times Including Up To The Elbows, Then He Wiped Over His Head (One Time).

Arabic Text:

حَدَّثَنَا عَبْدُ الْعَزِيزِ بْنُ عَبْدِ اللَّهِ الْأَوْيسِيُّ قَالَ: حَدَّثَنِي إِبْرَاهِيمُ بْنُ سَعْدٍ، عَنِ ابْنِ شَهَابٍ: أَنَّ عَطَاءَ بْنَ يَزِيدٍ أَخْبَرَهُ: أَنَّ حُمْرَانَ مَوْلَى عُثْمَانَ أَخْبَرَهُ: أَنَّهُ رَأَى عُثْمَانَ بْنَ عَفَّانَ دَعَا بِإِنَاءٍ، فَافْرَغَ عَلَى كَفِّهِ ثَلَاثَ مَرَارٍ، فَغَسَلَهُمَا، ثُمَّ أَدْخَلَ يَمِينَهُ فِي الْإِنَاءِ، فَمَضْمَضَ وَاسْتَنْشَقَ، ثُمَّ غَسَلَ وَجْهَهُ ثَلَاثًا، وَيَدَيْهِ إِلَى الْمِرْفَقَيْنِ ثَلَاثَ مَرَارٍ، ثُمَّ مَسَحَ بِرَأْسِهِ، ثُمَّ غَسَلَ رِجْلَيْهِ ثَلَاثَ مَرَارٍ إِلَى الْكَعْبَيْنِ، ثُمَّ قَالَ: قَالَ رَسُولُ اللَّهِ ﷺ:

"Whoever Performs Wudu Like This Of Mine, Then Prays Two Rak‘Ahs In Which He Does Not Let His Mind Wander, All His Past Sins Will Be Forgiven."

(Sahih Li-Dhatihi)

Takhrij Al-Hadith:

Reported By:

- Abu Dawud In *Sunan* (1/40), Hadith No. 108
- Ahmad In *Musnad* (1/160), No. 496; (1/174), No. 562
- Al-Darimi In *Musnad* (1/552), No. 735
- Ibn Khuzaymah In *Sahih* (1/268), No. 151; (1/269), No. 152; (1/281), No. 167
- ‘Abd Al-Razzaq In *Musannaf* (1/13), No. 34; (1/41), No. 125
- Al-Bayhaqi In *Sunan Al-Kubra* (1/63), No. 295; (1/64), No. 301
- Al-Daraqutni In *Sunan* (1/148), No. 286; (1/150), No. 287
- Al-Bazzar In *Musnad* (2/49), No. 393; (2/82), No. 434; (2/88), No. 442
- Al-Hakim In *Mustadrak* (1/148), No. 529
- Al-Diya’ Al-Maqdisi In *Al-Ahadith Al-Mukhtarah* (1/469), No. 343; (1/470), No. 345

- Ibn Jarud In *Al-Muntaqa* (1/35), No. 79 And 80
- Al-Tahawi In *Sharh Ma 'Ani Al-Athar* (1/32), No. 136
- 'Abd Ibn Humaid In *Al-Muntakhab Min Musnadih* (1/50), No. 62

Sunan Abu Dawud Hadith 117

Ibn Abbas Narrates The Description Of The Wudu Of Ali Ibn Abi Talib:

The Meaning Of The Narration Is That Ali Poured Water Over One Hand And Then Washed The Other, Then Wiped His Head.

Arabic Text:

...ثُمَّ غَسَلَ ذِرَاعَيْهِ إِلَى الْمِرْفَقَيْنِ ثَلَاثًا ثَلَاثًا، ثُمَّ مَسَحَ رَأْسَهُ وَظُهُورَ أُذُنَيْهِ...
 (Repeated Multiple Times) قَالَ: قُلْتُ: وَفِي النَّعْلَيْنِ؟ قَالَ: وَفِي النَّعْلَيْنِ...

Expanded Translation:

Ibn Abbas Said: Ali Ibn Abi Talib Came To Me After Having Poured Water (For Wudu), Then He Called For Water For Ablution. We Brought Him A Large Container With Water Which We Placed In Front Of Him. He Said:

"O Ibn Abbas, Shall I Not Show You How The Messenger Of Allah ﷺ Used To Perform Wudu?"

I Said: "Yes, Certainly!"

He Tilted The Container Over His Hand And Washed It, Then He Inserted His Right Hand Into The Container And Poured Water With It Onto The Other Hand And Washed Both Palms.

Then He Rinsed His Mouth And Nose, Then Dipped Both Hands Into The Container And Took A Handful Of Water With Them And Struck It Onto His Face.

Then He Wiped The Front Of His Ears Using His Thumbs.

He Repeated This A Second And Third Time In The Same Way.

Then He Took Water In His Right Hand And Poured It Over His Forelock (Front Of The Head), Letting It Flow Down Over His Face.

Then He Washed Both Arms Up To The Elbows Three Times Each.

Then He Wiped His Head And The Back Of His Ears.

Then He Dipped Both Hands Into The Container Again And Took A Handful Of Water And Poured It Over His Foot While He Had Sandals On, And Rubbed Them With His Hands.

Then He Did The Same With The Other Foot.

I Asked: "Even With Sandals On?"

He Replied: "Even With Sandals," Repeating It Three Times.

(Rijālulu Thiqāt – The Narrators Are Trustworthy)

Takhrij Al-Hadith:

Reported By:

- Abu Dawud In *Sunan* (1/43), Hadith No. 117
- Ahmad In *Musnad* (1/193), No. 635
- Ibn Abi Shaybah In *Musannaf* (1/297), No. 176; (1/366), No. 401
- Al-Bayhaqi In *Sunan Al-Kubra* (1/53), No. 245; (1/59), No. 271; (1/74), No. 350

- Al-Daraqutni In *Sunan* (1/161), No. 306
- Al-Bazzar In *Musnad* (2/110), No. 463; (2/111), No. 464
- Al-Diya' Al-Maqdisi In *Al-Ahadith Al-Mukhtarah* (2/229), No. 609
- Ibn Hajar In *Al-Matalib Al-'Aliyah* (2/209), No. 56
- Al-Tahawi In *Sharh Ma 'Ani Al-Athar* (1/32), No. 135
- 'Abd Ibn Humaid In *Al-Muntakhab Min Musnadih* (1/61), No. 95

Summary of the issue

Issue 05 – How Much Of The Head Must Be Wiped In Wudu?

Brief Explanation:

This issue discusses the extent of wiping (masah) the head during wudu. The central question is whether wiping the whole head is obligatory (fard) or if wiping only a portion suffices.

Evidence from the Text:

- Quran: *وامسحوا برؤوسكم* (Surah al-Ma'idah)
- Hadith: Various authentic narrations where the Prophet ﷺ wiped over the front part of his head or over his turban.
- Consensus mentioned in *Al-Iqna'*: Some wiping is obligatory.

Madhhab Views:

- **Hanafi:** Wiping one-fourth of the head is obligatory (Al-Durr al-Mukhtar).
- **Maliki:** Mixed opinions; some say wiping all is obligatory, others allow partial (e.g., Ibn Rushd).
- **Shafi'i:** Any portion of the head suffices, even one hair (Al-Shirbini).
- **Hanbali:** Two views; stronger view allows wiping part of the head (Ibn Qudamah).

Sub-Issues:

Linguistic Basis for Disagreement ("Ba" Preposition)

- **Brief Explanation:**
The word 'bi-' in *وامسحوا برؤوسكم* is the basis for differing views. Does it mean partiality (tab'īd) or inclusion?
- **Evidence from the Text:**
Arabic grammatical sources like Tha'alibi and Jumhurat al-Lughah discussed the implications.
- **Madhhab Views:**
All four madhhabs factor this into their interpretation.

Preferred Method of Masah

- **Brief Explanation:**
The standard Sunnah method is to wet the hands, start from the front of the head to the back, and return.
- **Evidence from the Text:**
Bughyat al-Muqtasid (1/178) confirms this.

- **Madhhab Views:**
All agree on this method.

Hadith Support for Partial Wiping

- **Brief Explanation:**
Several sahih hadiths mention the Prophet ﷺ wiping only part of the head or over the turban.
- **Evidence from the Text:**
 - Sahih Muslim (Hadith 274): Prophet ﷺ wiped his forelock and turban.
 - Sunan Abu Dawud, Ibn Majah, and al-Nasa'i confirm the practice.
- **Madhhab Views:**
These support the view that partial wiping suffices.

Companions' Practice

- **Brief Explanation:**
Some Sahaba wiped only part of their head.
- **Evidence from the Text:**
 - Safiyyah bint Abi Ubayd: wiped front under khimar
 - Hasan al-Basri: "forehead and turban suffices"
- **Madhhab Views:**
Supports Shafi'i, Hanafi, Hanbali views on partial masah.

Conclusion on How Much to Wipe

- **Brief Explanation:**
The stronger opinion is that wiping some part of the head is obligatory (wajib), wiping the whole head is Sunnah.
- **Evidence from the Text:**
Quran does not specify how much; hadith shows varying practices.
- **Madhhab Views:**
 - Hanafi: One-fourth is required.
 - Maliki: Mixed.
 - Shafi'i: Any part suffices.
 - Hanbali: Mixed, but partial is acceptable.

Issue – How Many Times to Wipe the Head in Wudu?

Brief Explanation:

Disagreement exists over whether wiping the head once or three times is Sunnah. It is agreed that one wipe fulfills the obligation.

Evidence from the Text:

- Hadith from Bukhari: Prophet ﷺ performed wudu once.
- Abu Dawud: Weak chain mentioning three wipes.

Madhhab Views:

- **Hanafi:** Once (Tabyin al-Haqaiq).
- **Maliki:** Once (Sharh al-Kabir).

- **Shafi'i:** Three times (Mughni al-Muhtaj).
- **Hanbali:** Once preferred; repetition not Sunnah (Ibn Qudamah).

Conclusion:

- Strongest opinion: Wiping the head once is Sunnah.
- Repeating three times is not established by authentic hadith.

Issue – Using Separate Water for Masah

Brief Explanation:

Debate on whether one must take fresh water for wiping the head or if leftover water suffices.

Evidence from the Text:

- Al-Durr al-Mukhtar (Hanafi): Using existing moisture is sufficient.

Madhhab Views:

- **Hanafi:** No need for fresh water.
- Other madhhabs not discussed here we will discuss this issue in detail in its right place insha allah.

Conclusion:

The stronger opinion is that wiping some part of the head is obligatory (wajib), wiping the whole head is Sunnah.

Regarding wiping the head once or three times Strongest opinion: Wiping the head once is Sunnah. Repeating three times is not established by authentic hadith

It's sunnah to one takes fresh water for wiping the head

The Method Of Wiping (Mash) Over The Head:

The Correct Method, According To The Majority Of Scholars (Jumhūr 'Ulama), Is To Begin Wiping From The Front Part Of The Head (Forehead) And Move Backward Across The Head.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 06 – Ruling On Wiping Over The Turban (‘Imāmah) Only In Wudhu

The Fundamental Disagreement In This Issue Is Whether It Is Permissible To Wipe *Only* Over The Turban During Wudhu, Meaning: If Water Does Not Touch The Head Itself And One Merely Wipes Over The Turban, Will The Wudhu Be Valid Or Not?

The Position Of Those Who Say: It Is Not Permissible To Wipe Only Over The Turban

The Following Scholars And Jurists Held The View That Wiping Only Over The Turban (Without Wiping The Head Itself) Is **Not Permissible**:

- Imām Al-A‘zam Abū Ḥanīfah
- Imām Muḥammad (Ibn Al-Ḥasan)
- Imām Al-Sughudī
- Imām Al-Sarakhsī
- Imām Al-Kāsānī
- Imām Burhān Al-Dīn
- Imām Al-Māzā Al-Bukhārī
- Abū Al-Faḍl
- Imām Al-Khazraǧī
- Imām Al-Zayla‘ī
- Imām Al-Rūmī
- Imām Al-Zubaydī Al-Ḥanafī
- Imām Badr Al-Dīn Al-‘Aynī
- Imām Ibn Shīnah
- Muḥammad Ibn Farmajī
- Imām Ḥanābl Ḥanafī
- Imām Mālik (Though His View Is Not Explicit, But Ibn Rushd Has Attributed This To Him In *Bidāyat Al-Mujtahid*)
- Imām Al-Shāfi‘ī
- Imām Al-Marwazī
- Imām Yūsuf Al-Shīrāzī (Shāfi‘ī)
- Imām Rukn Al-Dīn
- Imām Al-Ghazālī
- Imām Al-Mustazhirī
- Imām Al-Amarnī Al-Yamānī (Shāfi‘ī)
- Imām Al-Rāfi‘ī
- Imām Al-Nawawī

All These Scholars Held The View That It Is **Not Valid** To Wipe Only Over The Turban Without Touching The Head.

Ibn ‘Abd Al-Barr Said In *Al-Istidhkār* (1/211):

"They Allowed Wiping Over The Turban. This Was Also The View Of Al-Awzā'ī And Abū 'Ubayd Al-Qāsim Ibn Sallām."

In *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (1/186), And In *Al-Awsaṭ* By Ibn Al-Mundhir (2/120):

"There Was Disagreement Regarding Wiping Over The Turban. A Group Permitted It, Among Them: Abū Bakr Al-Ṣiddīq, 'Umar, Anas, Abū Umāmah. It Is Also Narrated From Sa'd Ibn Abī Waqqāṣ, Abū Al-Dardā', 'Umar Ibn 'Abd Al-'Azīz, Makḥūl, Al-Ḥasan, And Qatādah."

The Position Of Those Who Say: It Is Permissible To Wipe Only Over The Turban

These Scholars Held The View That **Wiping Only Over The Turban Is Valid** In Wudhu:

- Imām Ahl Al-Sunnah Aḥmad Ibn Ḥanbal
- Imām Ibn Qudāmah
- Imām Bahā' Al-Dīn Al-Maqdisī
- Amjad Al-Dīn
- Shihāb Al-Dīn
- Al-Sāḥilī Al-Ḥanbalī
- Al-Zarakhsī Al-Miṣrī (Ḥanbalī)

They All Held The View That Wiping **Only** Over The Turban Is Permissible.

In *Masā'il Al-Imām Aḥmad Wa Ishāq* (2/288):

"I Asked: Can One Wipe Over The Turban? He Replied: Yes."

In *Al-Awsaṭ* By Ibn Al-Mundhir (2/122):

"This Is Also The Opinion Of Al-Awzā'ī, Aḥmad, Ishāq, And Abū Thawr."

The Mālikī Madhhab

In The Mālikī School, Wiping Over The Turban Is **Not Permissible**. See:

- *Al-Tafrī' Fī Fiqh Mālik* By Ibn Al-Jallāb (1/18)
- *Al-Sharḥ Al-Kabīr* And *Ḥāshiyat Al-Dasūqī* (1/203):

"It Is Not Permissible To Wipe Over A Veil (Khimār) Or Turban."

However, *Al-Sharḥ Al-Kabīr* Mentions:

"If Removing The Turban Is Feared, And One Cannot Reach The Head Beneath (Like The Skullcap), Then One May Wipe The Turban. But If It Is Possible To Wipe Part Of The Head, Then That Part Should Be Wiped, And The Rest Over The Turban."

Ibn Al-Qaṣṣār Al-Mālikī Said In *Uyūn Al-Adillah* (1/171):

"Wiping Over The Turban Is Only Valid In Case Of Necessity."

The Shāfi‘ī Madhhab

In *Al-Umm* By Imām Al-Shāfi‘ī (1/41):

"I Prefer That One Wipe Both The Head And The Turban. If He Omits The Turban, It Does Not Harm. But If He Wipes Only The Turban And Not The Head, It Is Not Sufficient."

In *Mughnī Al-Muhtāj* By Al-Shirbīnī (1/190):

"If It Is Difficult To Remove The Turban, Veil, Or Cap, Or One Simply Does Not Want To, He Completes The Wiping Over It. But If He Wipes The Turban Alone And Not Any Part Of The Head, That Does **Not** Suffice. This Is Explicitly Stated In *Al-Majmū‘*."

Abū Muḥammad Al-Ḥusayn Ibn Mas‘ūd Al-Baghawī Al-Shāfi‘ī (D. 516 AH) Wrote In *Al-Tahdhīb Fī Al-Fiqh Al-Shāfi‘ī* (1/255):

"If One Wipes Only The Turban And Not Any Part Of The Head, It Is Not Valid."

Imām Al-Nawawī Said:

"If One Is Wearing A Turban And Doesn’t Want To Remove It For Any Reason, It Is Recommended To Wipe From The Front Of The Head And Complete Over The Turban — Regardless Of Whether The Turban Was Worn In A State Of Purity Or Impurity. But If He Wipes **Only** The Turban And Nothing From The Head, It Is Not Valid Without Disagreement Among Our Scholars. This Is Also The Opinion Of Most Scholars."

From *Al-Majmū‘ Sharḥ Al-Muhadhdhab* (1/407):

"If One Does Not Want To Remove The Turban, For Any Reason, He Wipes The Forelock, And It Is Recommended To Complete Over The Turban. But If He Wipes The Turban Only, It Is Not Sufficient By Consensus Among Us."

The Ḥanafī Madhhab

The Ḥanafī School Also Holds That Wiping **Only** The Turban Is Not Valid.

In *Mukhtaṣar Al-Qudūrī* (P. 18):

"It Is Not Permissible To Wipe Over The Turban Or The Cap."

Summary Of The Major Schools

The **Three Imams** (Abū Ḥanīfah, Mālik, Al-Shāfi‘ī) **Do Not Permit** Wiping Only Over The Turban.

However, **Imām Aḥmad Ibn Ḥanbal, Al-Awzā‘ī, Abū Thawr, Al-Qāsim Ibn Sallām, Dāwūd Al-Zāhirī,** And Others **Do Allow** It.

In *Al-Muḥallā* By Ibn Ḥazm (1/304):

"This Is The View Of Al-Awzā'ī, Aḥmad Ibn Ḥanbal, Ishāq Ibn Rāhawayh, Abū Thawr, Dāwūd Ibn 'Alī, And Others."

And This Has Been Narrated From Several Companions, Including Abū Bakr Al-Ṣiddīq:

In *Al-Muḥallā* (1/305), From 'Abd Al-Raḥmān Ibn 'Usaylah Al-Ṣunābīḥī:

"I Saw Abū Bakr Al-Ṣiddīq Wiping Over The Turban In Wudhu."

Also In *Bughyat Al-Muqtasid* (1/187):

"The Three Imams — Abū Ḥanīfah, Mālik, And Al-Shāfi'ī — Held That Wiping Over The Turban Is Invalid. Imām Aḥmad, Al-Awzā'ī, Abū Thawr, Al-Qāsim Ibn Sallām, Dāwūd Al-Zāhirī, And Others Considered It Valid. And This Has Been Narrated From A Number Of The Companions, Including Abū Bakr (May Allah Be Pleased With Him)."

Cause Of Disagreement:

The **Reason For The Disagreement** Lies In The **Verse Of Sūrat Al-Mā'idah (5:6)** Where It Is Stated:

“...And Wipe Over Your Heads...” (وامسحوا برءوسكم)

Those Who **Oppose Wiping Over The Turban** ('Imāmah) Say:

1. **The Qur'ānic Command Is Clearly About Wiping The Head Itself.** So If Someone Wears A Turban And Wipes Over It, They Argue: **This Cannot Be Considered Wiping The Head**, Since The Turban Is A Barrier (ḥā'il), And Wiping Over A Barrier Is Not The Same As Wiping The Head Itself.
2. They Also Argue: **Wiping Over The Turban Or Any Covering Should Only Be Permitted When There Is Hardship Or Difficulty (Mashaqqah)** — Meaning, When It Is Difficult To Remove The Covering. If There Is **No Hardship**, Then One Must Wipe The Actual Head — Just Like One Must Wash The Feet Despite Any Discomfort. Since **Wiping The Head Is A Qur'anic Obligation**, And **This Obligation Cannot Be Transferred To Something Else**, The Wiping Must Be On The Head Directly.
3. Another Argument They Give Is: **There Seems To Be A Contradiction Between The Hadiths That Mention Wiping Over The Turban And The Verse Of The Qur'an**, As Well As Other Hadiths (Like The Hadith Of Al-Mughīrah). They Resolve This Contradiction By Suggesting That In The **Hadiths Which Only Mention Wiping Over The Turban**, The Narrators May Have **Omitted The Part About Wiping The Front Of The Head (Nāṣiyah)** — Meaning, It Is Possible That **The Prophet ﷺ Wiped Both**, But The Narrators **Only Mentioned The Turban** While Omitting The Head.

Quoted From: **Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid** (1/189):

1. The Verse: {وَأَمْسَحُوا بِرُءُوسِكُمْ} (Sūrah Al-Mā'idah: 6) Is A Clear Proof That The Wiping Is Limited To The **Head**. They Argue That **Whoever Wipes Over A Turban Has Not Wiped The Head**, Because The Turban Is A Barrier, And Wiping Over It Is Not Considered Wiping The Head.
2. They Say: **Wiping Over A Turban Or Any Covering Other Than The Head Must Be Based On A Reason**, Namely **Hardship (Mashaqqah)**. But There Is **No Hardship** In Wiping The Head, Unlike The Feet, Which May Pose Difficulty Especially In Cold Weather Or Travel. **The Obligation Is To Wipe The Head**, And This Act Should **Not Be Transferred** To Another Surface.
3. They Also Say: **There Is Contradiction Between Some Hadiths That Mention Wiping The Turban And The Verse Of The Qur'an And Another Hadith Of Al-Mughīrah**. They Resolve The Contradiction By Saying: **Perhaps The Narrators Omitted (ḥadhf) The Part About The Forehead (Nāṣiyah)** In The Hadiths Cited By Those Who Permit Wiping The Turban — Since That Wiping Of The Head Was Already Well-Known.

View Of Those Who Permit Wiping Over The Turban:

Those Who **Permit Maṣḥ Over The Turban** Rely On The **ḥadīths Of The Prophet ﷺ**, Supported By **Numerous Companions And Ṭābi'ūn**.

Hadith In Ṣaḥīḥ Al-Bukhārī (205):

Narrated By 'Amr Ibn Umayyah:

"I Saw The Messenger Of Allah ﷺ Wipe Over His Turban And His Leather Socks (Khuffayn)."

Arabic:

رَأَيْتُ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَمْسَحُ عَلَى عِمَامَتِهِ وَخُفَّيْهِ

This Narration Was Transmitted By:

- 'Abdān → 'Abdullāh → Al-Awzā'ī → Yaḥyā → Abū Salamah → Ja'Far Ibn 'Amr → From His Father ('Amr Ibn Umayyah Al-Ḍamrī).

Also Followed Up By **Ma'Mar → Yaḥyā → Abū Salamah → From 'Amr**, Saying The Same.

This Hadith Is ṣaḥīḥ Li-Dhātihi (Authentically Strong In Itself).

Takhrīj (Hadith Sources):

This Narration Appears In:

- **Ṣaḥīḥ Al-Bukhārī** (No. 204, 205)

- **Ṣaḥīḥ Ibn Khuzaymah** (1/291, No. 181)
- **Ṣaḥīḥ Ibn Ḥibbān** (4/173, No. 1343)
- **Sunan Al-Nasā'ī (Al-Mujtabā And Al-Kubrā)**: Multiple Places (E.G. 1/49, 1/122)
- **Sunan Ibn Mājah** (No. 562)
- **Musnad Al-Dārimī** (1/554, No. 737)
- **Musnad Aḥmad**: Various Places (E.G. 7/3838, 10/5292...)
- **Musnad Al-Ṭayālīsī, Muṣannaf 'Abd Al-Razzāq, Muṣannaf Ibn Abī Shaybah, And Others**

Critical Note On The Isnāds (Chain Criticism):

In This Hadith, **Al-Awzā'ī Is The Only One** Among Several Trustworthy Students Of **Yaḥyā Ibn Abī Kathīr** To Narrate That The Prophet ﷺ Wiped Over **Both The Turban And Khuffayn**.

Other Students Of Yaḥyā Like **Sīnān Ibn 'Abd Al-Raḥmān, Ḥarb Ibn Shaddān, Ibn Al-Mubārak, Ma' Mar, And 'Abbān Ibn Yazīd** — All Narrated This Hadith **Without Mentioning The Turban** — They Only Reported Wiping Over The **Khuffayn**.

Similarly, **Abū Salamah** Had Two Major Students:

- **Yaḥyā Ibn Abī Kathīr**
- **Abū Ishāq**

Even **None Of Abū Ishāq's Students** Mentioned The Turban ('Imāmah) In This Report.

Therefore, The Phrase **“Wiping Over The Turban”** Is Considered A **Shādh (Isolated Or Irregular) Addition By Al-Awzā'ī**. Some Scholars Critique Its Strength Due To This **Tafarrud (Singular Reporting)**, Especially Because The Majority Of Other Transmitters Did **Not** Mention The Turban, Which May Indicate It Was **Not Part Of The Original Matn**.

Sahih Muslim, Volume 1, Hadith 275

Bilal Ibn Rabah (May Allah Be Pleased With Him) Reports:

The Messenger Of Allah ﷺ Wiped Over The Leather Socks, The Front Part Of His Head, And Over His Turban ('Imāmah).

Arabic Text:

وَسَلَّمَ مَسَحَ عَلَى الْخُفَّيْنِ، وَمَقَدَّمَ رَأْسِهِ، وَعَلَى عِمَامَتِهِ

Narrated To Us By Umayyah Ibn Bistam And Muhammad Ibn Al-A'La, They Said:

Narrated To Us By Al-Mu'Tamir, From His Father, He Said:

Bakr Ibn 'Abdillah Narrated To Me, From Ibn Al-Mughīrah, From His Father:

That The Prophet ﷺ Wiped Over The Leather Socks, The Front Part Of His Head, And His Turban.

(Sahih)

Variant Sanad (Chain) With The Word “Khimar” Instead Of “Imamah”

In Another Chain Of This Same Hadith, The Wording Appears As: He Wiped Over The Leather Socks And The Khimar (Head Covering).

Arabic Text:

مَسَحَ عَلَى الْخُفَّيْنِ، وَمُقَدِّمَ رَأْسِهِ، وَعَلَى عِمَامَتِهِ

This Sanad Is Reported With The Same Narrators:

Umayyah Ibn Bistam, Muhammad Ibn Al-A‘La, Al-Mu‘Tamir, His Father, Bakr Ibn ‘Abdillah, Ibn Al-Mughīrah, And His Father.

(Sahih Li Dhātihi)

Takhrij (Source References) Of The Hadith

This Hadith Of **Bilal Ibn Rabah** (The Former Slave From Abyssinia And Close Companion Of The Prophet ﷺ) Has Been Recorded In Numerous Major Hadith Collections:

- **Sahih Muslim** (1/159), Hadith 275
- **Abu Dawud**, Sunan (1/59), Hadith 153
- **Tirmidhi**, Jami‘ (1/146), Hadith 101
- **Al-Nasa’i**, Al-Mujtaba:
 - 1/46, Hadith 104/1, 105/2, 106/3
 - 1/49, Hadith 120/3
- **Ibn Majah**, Sunan (1/354), Hadith 561
- **Ahmad Ibn Hanbal**, Musnad (Volume 11, Various Entries):
 - Hadith 24514, 24521, 24522, 24523, 24526, 24528, 24534, 24535, 24539, 24542, 24546, 24547, 24549
- **Ibn Hibban**, Sahih (4/152), Hadith 1323
- **Ibn Khuzaymah**, Sahih:
 - 1/289, Hadith 180
 - 1/293, Hadith 183
 - 1/294, Hadith 185
- **Al-Tabarani**, In Al-Kabir (Numerous Places Including Hadith 427, 1023, 1061–1065, 1068–1069, 1086, 1088–1091, 1095–1096, 1099, 1106–1118)
- **Al-Tabarani**, In Al-Awsat (3/281, Hadith 3151; 3/299, Hadith 3214; 7/54, Hadith 6832)
- **Ibn Abi Shaybah**, Musannaf (1/309, Hadith 220; 2/238, Hadith 1871; 2/264–265, Hadiths 1941–1942; 20/71, Hadith 37252)
- **‘Abd Al-Razzaq**, Musannaf (1/187–188, Hadiths 732–737)
- **Al-Bayhaqi**, Sunan Al-Kubra:
 - 1/61, Hadith 288
 - 1/62, Hadith 289
 - 1/271, Hadith 1302
 - 1/288, Hadith 1388
- **Al-Bazzar**, Musnad (4/197–214, Hadiths 1358–1380)
- **Al-Humaydi**, Musnad (1/236), Hadith 150
- **Al-Tayalisi**, Musnad (2/439), Hadith 1212
- **Al-Nasa’i**, Al-Kubra (1/121–122, Hadiths 122–124, 126)
- **Al-Hakim**, Al-Mustadrak (1/151, Hadith 538; 1/170, Hadith 609)

Mash On The Turban From Anas Ibn Mālīk

Musnad Al-Bazzār, Hadith 7607

Anas Ibn Mālīk (رضي الله عنه) Said:

"The Messenger Of Allah ﷺ Performed Mash (Wiping) Over The Turban."

Arabic Text:

حَدَّثَنَا مُحَمَّدُ بْنُ عَبْدِ الرَّحِيمِ، نَا نَعِيمُ بْنُ هَبِصَمٍ، نَا أَبُو عَوَانَةَ، عَنْ أَبِي يَعْفُورٍ، قَالَ: سَأَلْتُ أَنَسًا عَنِ الْمَسْحِ عَلَى الْخُفَّيْنِ، فَقَالَ: كَانَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَمْسَحُ عَلَيْهِمَا

Classification: Ṣaḥīḥ Li-Dhātīhi (Authentic In Itself)

Takhrīj (Hadith References):

- Ibn Ḥibbān In *Ṣaḥīḥ* (4/147), Hadith 1318 – *Kitāb Al-Ṭahārah, Bāb Al-Mash ‘Ala Al-Khuffayn Wa Ghayrihima*
- Al-Ḍiyā’ Al-Maqdisī In *Al-Aḥādīth Al-Mukhtārah* (7/258), Hadiths 2706 & 2707 – *Musnad Anas Ibn Mālīk*
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/275), Hadith 1321 – *Kitāb Al-Ṭahārah, Bāb Mash Al-Nabī ﷺ ‘Ala Al-Khuffayn Fī Al-Safar Wa Al-Ḥaḍar Jamī‘an*
- Al-Bazzār In *Musnad* (14/112), Hadith 7607 – *Musnad Anas Ibn Mālīk*
- Al-Ṭabarānī In *Al-Mu‘jam Al-Awsaṭ* (2/190), Hadith 1682; And (8/259), Hadith 8572

Salman Al-Fārsī: Mash On Khuff, Turban, And Forelock

Musnad Aḥmad, Hadith 24214

Narrated Abū Muslim, The Freed Slave Of Zayd Ibn Ṣūḥān Al-‘Abdī:

"I Was With Salmān Al-Fārsī When He Saw A Man Who Had Broken His Wudu And Was About To Take Off His Leather Socks. Salmān Instructed Him To Wipe Over His Leather Socks, His Turban, And His Forelock. Then Salmān Said: I Saw The Messenger Of Allah ﷺ Wipe Over His Leather Socks And His Khimār (Head Covering)."

Arabic Text:

حَدَّثَنَا عَبْدُ الصَّمَدِ، حَدَّثَنَا دَاوُدُ - يَعْنِي: ابْنَ أَبِي الْفَرَاتِ -، حَدَّثَنَا مُحَمَّدُ بْنُ زَيْدٍ، عَنْ أَبِي شَرِيحٍ، عَنْ أَبِي مُسْلِمٍ مَوْلَى زَيْدِ بْنِ صُوحَانَ الْعَبْدِيِّ، قَالَ: كُنْتُ مَعَ سَلْمَانَ الْفَارِسِيِّ، فَرَأَى رَجُلًا قَدْ أَخَذَتْ، وَهُوَ يُرِيدُ أَنْ يَنْزِعَ خُفَّيْهِ، فَأَمَرَهُ سَلْمَانُ أَنْ يَمْسَحَ عَلَى خُفَّيْهِ، وَعَلَى عِمَامَتِهِ، وَيَمْسَحَ بِنَاصِيَتِهِ، وَقَالَ سَلْمَانُ: رَأَيْتُ رَسُولَ اللَّهِ ﷺ يَمْسَحُ عَلَى خُفَّيْهِ، وَعَلَى خِمَارِهِ

Classification: Rijālūhu Thiqāt (Narrators Are Trustworthy)

Takhrīj (Hadith References):

- Ibn Ḥibbān In *Ṣaḥīḥ* (4/175), Hadiths 1344 & 1345 – *Kitāb Al-Ṭahārah*
- Ibn Mājah In *Sunan* (1/355), Hadith 563 – *Bāb Mā Jā‘A Fī Al-Mash ‘Ala Al-‘Imāmah*

- Aḥmad In *Musnad* (10/5653), Hadiths 24214 & 24221 – *Musnad Al-Anṣār, Ḥadīth Salmān Al-Fārsī*
- Al-Ṭayālīsī In *Musnad* (2/46), Hadith 691
- Al-Bazzār In *Musnad* (6/473), Hadith 2505
- Ibn Abī Shaybah In *Muṣannaf* (1/312), Hadith 229; (2/246), Hadith 1881; (20/71), Hadith 37253
- Al-Ṭabarānī In *Al-Kabīr* (6/262), Hadiths 6164–6167

Al-Mughīrah Ibn Shu‘Bah: Maṣḥ On Forelock And Turban

Ṣaḥīḥ Muslim, Volume 1, Hadith 274

Al-Mughīrah Ibn Shu‘Bah (رضي الله عنه) Said:

"The Prophet ﷺ Wiped His Forelock And Over His Turban."

Arabic Text:

وَمَسَحَ بِنَاصِيَّتِهِ، وَعَلَى الْعِمَامَةِ

And In The Full Narration:

"The Prophet ﷺ Relieved Himself. I Brought Him Water. He Washed His Hands And Face, Tried To Roll Up His Sleeves, But The Sleeves Were Tight, So He Removed His Cloak, Washed His Arms, Wiped Over His Forelock, His Turban, And His Khuffs (Leather Socks), Then Joined The Prayer..."

Full Arabic Text:

وَحَدَّثَنِي مُحَمَّدُ بْنُ عَبْدِ اللَّهِ بْنِ بَرِّعٍ، حَدَّثَنَا يَزِيدُ - يَعْنِي: ابْنَ زُرَّيْعٍ -، حَدَّثَنَا حُمَيْدُ الطَّوِيلُ، حَدَّثَنَا بَكْرُ بْنُ عَبْدِ اللَّهِ الْمَزْنِيُّ، عَنْ عُرْوَةَ بْنِ ... الْمَغِيرَةِ بْنِ شُعْبَةَ، عَنْ أَبِيهِ قَالَ: ... وَمَسَحَ بِنَاصِيَّتِهِ وَعَلَى الْعِمَامَةِ وَعَلَى خُفَيْهِ

Classification: Ṣaḥīḥ (Authentic)

Additional Narrations:

- Another Chain In *Ṣaḥīḥ Muslim* (Same ḥadīth Via Different Isnād) States:

"...He Wiped His Head, Then Wiped Over The Khuffs..."

Arabic:

فَغَسَلَ وَجْهَهُ وَيَدَيْهِ، وَمَسَحَ بِرَأْسِهِ، ثُمَّ مَسَحَ عَلَى الْخُفَّيْنِ

Jami` Al-Tirmidhi 102 – Jabir Ibn Abdillah

Arabic Text:

حَدَّثَنَا قُتَيْبَةُ بْنُ سَعِيدٍ، قَالَ: حَدَّثَنَا بَشِيرُ بْنُ الْمُفَضَّلِ، عَنْ عَبْدِ الرَّحْمَنِ بْنِ إِسْحَاقَ، عَنْ أَبِي عُبَيْدَةَ بْنِ مُحَمَّدٍ بْنِ عَمَّارِ بْنِ يَاسِرٍ، قَالَ: سَأَلْتُ
أَمْسَ الشَّعَرَ الْمَاءَ: السُّنَّةُ يَا ابْنَ أَخِي، وَسَلَّطُهُ عَنِ الْمَسْحِ عَلَى الْعِمَامَةِ، فَقَالَ: جَابِرُ بْنُ عَبْدِ اللَّهِ، عَنِ الْمَسْحِ عَلَى الْخُفَّيْنِ، فَقَالَ

Translation:

Abu Ubaydah Ibn Muhammad Ibn ‘Ammar Ibn Yasir Said:

“I Asked **Jabir Ibn ‘Abdillah** About Wiping Over The Khuffayn (Leather Socks), And He Replied:

‘It Is The Sunnah, O Son Of My Brother.’

Then I Asked Him About Wiping Over The ‘Imāmah (Turban), And He Replied:

‘Let The Water Touch The Hair.’”

Grading:

- Al-Tirmidhi Said: **Hadith Hasan Li-Dhatihi**
- The Narrator ‘**Abdul Rahman Ibn Ishaq** Is *Hasan Al-Hadith* In This Sanad (Acceptable When Supported).

Takhrij (References):

- Jami` Al-Tirmidhi (1/147, Hadith No. 102) – Kitab Al-Taharah, Bab: Wiping Over The Turban
- Al-Bayhaqi, *Sunan Al-Kubra* (1/61, Hadith No. 284)
- Ibn Abi Shaybah, *Musannaf* (1/314, Hadith No. 232) & (2/256, Hadith No. 1909)

Additional Narration: Ali Ibn Abi Talib (Wiping Not Over The Turban, But Removing It)

Arabic:

رَأَيْتُ عَلِيًّا... فَحَسَرَ الْعِمَامَةَ... فَمَسَحَ بِرَأْسِهِ، ثُمَّ مَسَحَ عَلَى خُفَّيْهِ

Translation:

Abu Labid Said:

“I Saw **Ali** Come To A Lavatory While Riding His Mule. He Was Wearing An Izar, Rida’, Turban, And Leather Socks.

He Urinated, Then Performed Wudu. He Removed His ‘**Imāmah (Turban)**, And I Saw His Head – It Was Like The Size Of My Palm, With Hair Resembling Finger Lines. He **Wiped Over His Head**, Then Wiped Over His **Khuffayn**.”

Sanad Status:

- **Weak (Da‘If)** – Because Of **Rabi‘ Ibn Salim**
 - Ibn Ma’in Said: “*Laysa Bi Shay’*” (He Is Nothing), A Companion Of Lamazah Ibn Zubbar.
 - **Lisan Al-Mizan** (3/449)

Takhrij:

- Ibn Abi Shaybah, *Musannaf* (1/315, Hadith No. 233) And (2/256, Hadith No. 1906)

Related Report From Ali – Just About Khuffayn

عَلِيٌّ أَمَرَنِي أَنْ أَمْسَحَ عَلَى الْخُفَّيْنِ

Translation:

Shurayh Ibn Hani' Said:

“Ali Instructed Me To Wipe Over The **Khuffayn**.”

Sanad:

- Authentic Chain. No Mention Of The Turban In This Version.

Takhrij:

- Musnad Ahmad (1/227, Hadith 792), (1/262, Hadith 964), (11/5988, Hadith 25435)
- Ibn Abi Shaybah (1/315, Hadith 233), (2/256, Hadith 1906)
- 'Abd Al-Razzaq (1/194, Hadith 755)
- Al-Bayhaqi (1/272, Hadith 1308)
- Al-Daraqutni (1/379, Hadith 784)
- Al-Bazzar (3/134, Hadith 923)

Abu Hurayrah's Narrations On Wiping Over Imamah

First Version:

مَسَحَ عَلَى الْخُفَّيْنِ وَالْجِمَارِ، يَعْنِي: الْعِمَامَةَ

Translation:

Abu Hurairah Narrates:

“The Prophet (ﷺ) Wiped Over The **Khuffayn** And Over The **Khimār** – Meaning The '**Imāmah** (Turban).”

Sanad Status:

- **Weak (Da'If)** – Due To **Mu'Alla Ibn 'Abd Al-Rahman**, Unanimously Considered Weak.
- Reported Only Through Him.

Takhrij:

- Al-Mu'jam Al-Awsat Of Tabarani (2/129, Hadith 1473)
- Also In Ibn Abi Shaybah And Al-Bayhaqi

Second Version:

مَسَحَ عَلَى عِمَامَتِهِ، وَمَسَحَ عَلَى خُفَّيْهِ

Translation:

Abu Hurairah Said:

“I Saw The Prophet (ﷺ) Perform Wudu, And He Wiped Over His ‘**Imāmah** And Over His **Khuffayn**.”

Sanad Status:

- **Weak (Da‘If)** – Because Of ‘**Abd Al-Hakam Ibn Maysarah** – Agreed Upon As Weak.

Takhrij:

- Tabarani, Al-Mu‘Jam Al-Awsat (2/298, Hadith 2033)
- Also Found In Ahmad, Ibn Hibban (4/163, Hadith 1334), Ibn Abi Shaybah (2/262, Hadith 1936), Etc.

Thawban’s Narration On Imamah & Khuffayn

مَسَحَ عَلَى الْخُفَّيْنِ، وَعَلَى الْخِمَارِ، ثُمَّ الْعِمَامَةِ

Translation:

Thawban Said:

“I Saw The Messenger Of Allah (ﷺ) Perform Wudu And Wipe Over His **Khuffayn**, Over The **Khimār**, Then The ‘**Imāmah**.”

Sanad Status:

- **Weak (Da‘If)** – Due To ‘**Utbah Abu Umayyah Al-Dimashqi** Being **Majhool** (Unknown).

Takhrij:

- Musnad Ahmad (10/5274, Hadith 22854)
- Tabarani In *Al-Kabir* (2/91, Hadith 1409)
- Al-Bazzar (10/110, Hadith 4173)

Some More Asar Regarding Wiping Over The Turban (Mash‘ Alā Al-‘Imāmah)

1. Hadith Of Abu Ayyub Al-Ansari – Mu‘Jam Al-Kabīr By Al-Ṭabarānī, Vol. 4, Hadith 3983

Arabic Text:

حَدَّثَنَا عَبْدَانُ بْنُ أَحْمَدَ، ثَنَا الْمُسَيَّبُ بْنُ وَاصِحٍ، ثَنَا مُعْتَمِرٌ، قَالَ: سَمِعْتُ أَبَا شُعَيْبٍ، يُحَدِّثُ عَنْ ابْنِ سِيرِينَ، ثَنَا أَفْلَحُ غُلَامُ أَبِي أَيُّوبَ، عَنْ أَبِي أَيُّوبَ، قَالَ: رَأَيْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ تَوَضَّأَ وَمَسَحَ عَلَى الْخُفَّيْنِ وَالْخِمَارِ.

Translation:

Abu Ayyub Al-Ansari Said: "I Saw The Messenger Of Allah ﷺ Perform Ablution And He Wiped Over The Khuffayn (Leather Socks) And The Khimār (Headcover/Turban)."

Isnad Status:

Isnād Da‘īf (Weak) — Due To Salt Bin Dīnār, Who Is *Da‘īf* By Agreement Of Hadith Critics.

Takhrīj (Hadith Extraction):

- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/293, No. 1417), (3/140, No. 5502)
- Aḥmad In *Musnad* (10/5607, No. 24058)
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/198, No. 769)
- Ibn Abī Shaybah In *Al-Muṣannaf* (2/235, No. 1865)
- Ibn Ḥajar In *Al-Maṭālib Al-‘Āliyah* (2/312, No. 99)
- Al-Ṭabarānī In *Al-Mu‘Jam Al-Kabīr* (4/152, No. 3982), (4/153, No. 3983), (4/170, Nos. 4039, 4040)

2. Abu Umamah – Musannaf Ibn Abī Shaybah, Hadith 223

Arabic Text:

رَأَيْتُ أَبَا أُمَامَةَ يَمْسَحُ عَلَى الْعِمَامَةِ

Translation:

Abu Ghālib Said: "I Saw Abu Umamah Wiping Over His Turban."

Isnad Status:

Ṣaḥīḥ Li Dhātihi (Authentic In Itself)

3. Abu Musa Al-Ash‘Arī – Ṭabarānī In Al-Mu‘Jam Al-Kabīr

Arabic Text:

أَتَيْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ- بَوْضُوءٍ، فَمَسَحَ عَلَى الْجُورَبَيْنِ وَالنَّعْلَيْنِ وَالْعِمَامَةِ

Translation:

Abu Musa Said: "I Brought Water For Ablution To The Messenger Of Allah ﷺ, And He Wiped Over His Socks, Sandals, And Turban."

Isnad Status:

Gharīb — Only Narrated With This Isnād Through ‘Īsā Ibn Yūnus. He Is Alone In Narrating This.

4. ‘Urwah Ibn Al-Zubayr – Musannaf ‘Abd Al-Razzāq, Hadith 744**Arabic Text:**

أَنَّهُ كَانَ يَنْزِعُ الْعِمَامَةَ، ثُمَّ يَمْسَحُ بِرَأْسِهِ

Translation:

When ‘Urwah Ibn Al-Zubayr Performed Ablution, He Would Remove His Turban And Wipe Over His Head.

Isnad Status:

Ṣaḥīḥ

Takhrīj:

- Mālik In *Al-Muwattaʿ* (1/46, No. 94)
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/61, No. 287)
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/190, No. 744)
- Ibn Abī Shaybah (1/315, No. 237)

5. Ibn ‘Umar – Musannaf Ibn Abī Shaybah, Hadith 234**Arabic Text:**

أَنَّهُ كَانَ لَا يَمْسَحُ عَلَى الْعِمَامَةِ

Translation:

Ibn ‘Umar Did Not Wipe Over The Turban.

Isnad Status:

Ṣaḥīḥ Li Dhātihi

6. 'Aṭā' – Musannaf 'Abd Al-Razzāq, Hadith 742

Translation:

Ibn Jurayj Said: I Asked 'Aṭā', "Have You Heard Of Any Concession About Wiping Over The Turban?" He Replied: "I Have Not Heard It From Anyone Except Abū Sa'īd Al-A'mā." Ibn Jurayj Said: "And I Myself Heard It From Abū Sa'īd Al-A'mā As He Was Narrating It."

Isnad Status:

Ṣaḥīḥ Li Dhātihi

7. Mujāhid – Musannaf 'Abd Al-Razzāq, Hadith 742

Arabic Text:

أَنَّهُ كَانَ يَكْرَهُ أَنْ يَمْسَحَ عَلَى الْعِمَامَةِ

Translation:

Mujāhid Disliked Wiping Over The Turban.

Isnad Status:

Mawḍū' (Fabricated) — Due To 'Abd Al-Wahhāb Ibn Mujāhid, Who Is *Matrūk*, *Kaḍḍāb*, And A *Mudallis*. His Narrations Are Weak Even With Explicit Hearing (*Sama'*).

8. Abu Bakr Al-Ṣiddīq – Musannaf Ibn Abī Shaybah, Hadith 221

Translation:

'Abd Al-Raḥmān Ibn 'Usayla Al-Ṣunābihī Said: "I Saw Abu Bakr Wiping Over The Khimār (Head Covering)."

Isnad Status:

Rijāl Thiqah (Trustworthy Narrators)

9. Abu Musa Al-Ash'arī – Musannaf Ibn Abī Shaybah, Hadith 222

Translation:

After Exiting The Toilet, Abu Musa Wiped Over His Cap (Qalansuwah).

Isnad Status:

Rijāl Thiqah

10. Umm Salamah – Musannaf Ibn Abī Shaybah, Hadith 224

Translation:

Umm Salamah Used To Wipe Over The Khimār.

Isnad Status:

Ṣaḥīḥ Li Dhātihi

11. ‘Umar Ibn Al-Khaṭṭāb – Musannaf Ibn Abī Shaybah, Hadith 226–227

Translation:

‘Umar Said: "If You Wish, Wipe Over The Turban, And If You Wish, Remove It And Wipe Over The Head."

Isnad Status:

Ṣaḥīḥ Li Dhātihi

12. Ḥakīm Ibn Jābir – Musannaf Ibn Abī Shaybah, Hadith 228

Translation:

Ṭāriq Ibn ‘Abd Al-Raḥmān Said: "I Saw Ḥakīm Ibn Jābir Wiping Over The Turban."

Isnad Status:

Isnād Da‘īf — Al-Jarrāḥ Ibn Maḥliḥ Is *Mukhtalaf Fīh* (Disputed).

13. Ibrāhīm Al-Nakha‘ī – Musannaf Ibn Abī Shaybah, Hadith 235

Translation:

Al-Mughīrah Ibn Maqṣam Said: "If Ibrāhīm Had A Turban Or Cap On, He Would Lift It And Wipe Over His Crown (Top Of The Head)."

Isnad Status:

Rijāl Thiqaḥ

14. ‘Āmir Al-Sha‘Bī – Musannaf Ibn Abī Shaybah, Hadith 236

Translation:

Sa‘Īd Ibn Fayrūz Said: "I Saw Sha‘Bī Perform Ablution And Lift His Turban."

Isnad Status:

Munqaṭi‘ (Disconnected) — Wakī‘ Did Not Meet Sa‘Īd Ibn Fayrūz.

15. Qāsim Ibn Muḥammad – Musannaf Ibn Abī Shaybah, Hadith 239

Translation:

Qāsim Would Not Wipe Over The Turban. He Would Lift It And Wipe His Head.

Isnad Status:

Ṣaḥīḥ Li Dhātihi

16. Ḥasan Al-Baṣrī – Musannaf Ibn Abī Shaybah, Hadith 240

Translation:

Ḥasan Said: "A Man Should Wipe Over His Forelock And His Turban."

Isnad Status:

Ṣaḥīḥ Li Dhātihi

Summary Of The Issue**Ruling on Wiping Over the Turban (‘Imāmah) Only in Wudhu****Brief Explanation:**

This issue concerns whether a person can validly wipe *only* over a turban during wudhu, without the water touching the actual head. The discussion hinges on the interpretation of the Qur'anic command to wipe the head in wudhu and the apparent allowance in some Hadiths of wiping over the turban.

Evidence from the Text:

Qur'anic Verse:

- Surah Al-Ma'idah (5:6): "...And wipe over your heads (وامسحوا برؤوسكم)"

Hadiths Supporting Wiping Over the Turban:

1. **Ṣaḥīḥ al-Bukhārī (Hadith 204–205)** – ‘Amr ibn Umayyah: “I saw the Prophet ﷺ wipe over his turban and khuffayn.”
2. **Ṣaḥīḥ Muslim (Hadith 275)** – Bilāl: Prophet ﷺ wiped over his khuffayn, front of the head, and turban.
3. **Ṣaḥīḥ Muslim (Hadith 274)** – Al-Mughīrah: Wiped over forelock and turban.
4. **Sunan Ibn Mājah, Musnad Aḥmad, etc.** – Numerous corroborating narrations.

Hadiths Opposing Sole Wiping Over Turban:

- **Jābir ibn ‘Abdillāh (Tirmidhī 102):** When asked about wiping over the turban, he said: "*Let the water touch the hair.*"

Madhhab (School of Thought) Views:

Ḥanafī:

- **Ruling:** Not permissible to wipe *only* the turban.
- **Evidence:** Mukhtaṣar al-Qudūrī: "*It is not permissible to wipe over the turban or the cap.*"

Mālikī:

- **Ruling:** Not permissible.
- **Exceptions:** In cases of hardship (mashaqqah), partial wiping over the turban is allowed.
- **Sources:**
 - Al-Tafrī‘ fī Fiqh Mālik
 - Al-Sharḥ al-Kabīr
 - ‘Uyūn al-Adillāh by Ibn al-Qaṣṣār

Shāfi‘ī:

- **Ruling:** Not permissible to wipe *only* the turban.
- **Consensus within Madhhab:**
 - Imām al-Shāfi‘ī, Al-Nawawī, Al-Rāfi‘ī, and others state clearly: **wiping must include part of the actual head.**
 - Sources: Al-Umm, Al-Majmū‘, Mughnī al-Muḥtāj

Hanbalī:

- **Ruling:** Permissible to wipe only the turban.
- **Prominent Supporters:**
 - Imām Aḥmad ibn Ḥanbal (in some narrations)
 - Ibn Qudāmah, Bahā' al-Dīn al-Maqdisī, Al-Sāḥilī
- **Support from early Hadith scholars:** Al-Awzā'ī, Abū Thawr

Sub-Issue: Interpretation of Qur'anic Verse (5:6)

Brief Explanation:

The verse commands wiping the head in wudhu. The disagreement stems from whether wiping the turban qualifies as “wiping the head.”

Evidence:

- Verse: {وامسحوا برؤوسكم}
- Those against wiping the turban alone say: The verse commands wiping *the actual head*, not a barrier.

Sub-Issue: Hadiths Mentioning Mash Over Turban

Brief Explanation:

Multiple hadiths mention the Prophet ﷺ wiping over his turban, often along with the khuffayn or forelock.

Major Companions Who Reported It:

- Abū Bakr al-Ṣiddīq
- 'Umar ibn al-Khaṭṭāb
- 'Alī ibn Abī Ṭālib
- Umm Salamah
- Ibn 'Umar
- Anas ibn Mālīk
- Abū Hurayrah
- Jābir ibn 'Abdillāh
- Abū Ayyūb al-Anṣārī
- Abū Mūsā al-Ash'arī
- Abū Umāmah
- Al-Mughīrah ibn Shu'bah
- Salmān al-Fārisī
- Bilāl ibn Rabāḥ
- 'Amr ibn Umayyah
- Thawbān

Conclusion:

- Wiping over turban is proven from sahih hadith

Sub-Issue: Athar (Statements of Companions & Tābi'ūn)

Viewpoints from Early Generations:

- Some Companions **did wipe** over the turban (Abū Bakr, 'Umar, Umm Salamah).
- Others **lifted** the turban and wiped the head ('Umar ibn al-Khaṭṭāb, 'Urwah ibn al-Zubayr, Qāsim ibn Muḥammad).
- Mujāhid explicitly **disliked** wiping over the turban.

Isnād Statutes:

- Some athar are **ṣaḥīḥ**, others **ḍa'īf**, a few **mawḍū' (fabricated)** (e.g., from Mujāhid due to weak narrator).

Conclusion:

Wiping Over The Turban (Imāmah) Is Permissible, And A Large Group From Among The Noble Companions (ṣaḥābah) Have Narrated This Practice In Abundance. Among Them Are: **Amīr Al-Mu' Minīn Abū Bakr Al-Ṣiddīq, Amīr Al-Mu' Minīn 'Umar Ibn Al-Khaṭṭāb, Amīr Al-Mu' Minīn 'Alī Ibn Abī Ṭālib, Umm Al-Mu' Minīn Umm Salamah** (May Allah Be Pleased With Them All), 'Abdullāh Ibn 'Umar, Anas Ibn Mālik, Abū Hurayrah, Jābir Ibn 'Abdullāh, Abū Ayyūb Al-Anṣārī, Abū Mūsā Al-Ash' Arī, Abū Umāmah Al-Bāhilī, Al-Mughīrah Ibn Shu' Bah, Salmān Al-Fārisī, Bilāl Ibn Rabāḥ, 'Amr Ibn Umayyah, And Thawbān Ibn Bajdad.

In Total, **Sixteen Noble Companions Of The Messenger Of Allah ﷺ** Have Reported This Practice.

Furthermore, **A Group Of Imams, Jurists (Fuqahā'), And Hadith Scholars (Muḥaddithīn)** Have Adopted This View. There Is No Doubt That Wiping Over The Turban Is Permissible.

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 07 – The Ruling On Wiping The Ears

In This Issue, The Fundamental Point Of Disagreement Is Whether Wiping The Ears In Wudū' (Ablution) Is **Sunnah (Recommended)** Or **Wājib (Obligatory)**.

Those Who Hold It Is Sunnah:

The Following Scholars And Jurists Consider Wiping The Ears To Be **Sunnah**:

- Imām Al-A'zam Abū Ḥanīfah
- Imām Muḥammad Ibn Al-Ḥasan Al-Shaybānī
- Imām Sughūdī
- Imām Al-Sarakhsī
- Imām Al-Kāsānī
- Imām Burhān Al-Dīn
- Imām Al-Māzā Al-Bukhārī
- Abū Faḍl
- Imām Al-Khaḍrajī
- Imām Al-Zaylī
- Imām Al-Rūmī
- Imām Al-Zubaydī Al-Ḥanafī
- Imām Badr Al-Dīn Al-'Aynī
- Imām Ibn Shīnah
- Muḥammad Ibn Farmājī
- Imām Ḥanābil Al-Ḥanafī

From The Mālikī Madhhab:

- Imām Mālik (Imām Of Madinah)
- Ibn Barazī
- Imām Al-Qarāwānī
- 'Āsim Al-Nimrī Al-Qurṭubī
- Ibn Rushd Al-Qurṭubī
- Ibn Ḥājib
- Imām Al-Shahīr Al-Mālikī
- Ibn Ḥajj
- Abū 'Abdullāh Al-Mawāq Al-Mālikī
- Imām Al-Rūyānī
- Abū 'Abdullāh Al-Mālikī

From The Shāfi'ī Madhhab:

- **Imām Al-Shāfi‘ī (Imām Of Ahl Al-Sunnah)**
- **Imām Al-Marwazī**
- **Imām Yūsuf Al-Shīrāzī Al-Shāfi‘ī**
- **Imām Rukn Al-Dīn**
- **Imām Al-Ghazālī**
- **Imām Al-Mustaẓhirī**
- **Imām Al-‘Amarnī Al-Yamānī Al-Shāfi‘ī**
- **Imām Al-Rāfi‘ī**
- **Imām Al-Nawawī**
- **Taqī Al-Dīn Al-Shāfi‘ī**
- **Imām Al-Sā‘Idī Al-Madhajī**
- **Abū Yaḥyā Al-Sunīkū**

From The **Ḥanbalī Madhhab**:

- **Bahā’ Al-Dīn Al-Maqdisī**
- **Imām Shams Al-Dīn Al-Ḥanbalī**
- **Imām Aḥmad Ibn Ḥanbal**

According To All Of The Above, The Ruling Is That **Wiping The Ears Is Sunnah**.

Those Who Consider It Wājib (Obligatory):

From **Imām Aḥmad Ibn Ḥanbal**, **Two Different Statements** Are Reported. As A Result, Within The **Ḥanbalī School** As Well, **Two Views Exist**—Some Consider It **Sunnah**, While Others Say It Is **Wājib**.

Those Who Explicitly Consider It **Wājib** Include:

- **Ibn Qudāmah**
- **Abū Khalīl**

Cause Of The Disagreement:

The Root Of The Disagreement Lies In The Classification Of The **Ears**:

Are They Considered Part Of The **Head**, Part Of The **Face**, Or Are They An **Independent Limb**?

There Are **Four Opinions** Among Scholars:

1. **The Majority Of Scholars** Say: The Ears Are Part Of The **Head**.
→ This Is The View Of The **Ḥanafīs**, **Mālikīs**, And **Ḥanbalīs**.
2. Some Say: The Ears Are **Independent Limbs**.
→ This Is The View Of The **Shāfi‘īs**.
3. Some Say: The Ears Are Part Of The **Face**.
→ This Was Narrated From **Al-Zuhri**.

4. Others Say: The **Front Part** Of The Ears Is From The **Face**, And The **Rear Part** Is From The **Head**.

→ This Is The Opinion Of **Al-Sha‘Bī** And **Al-Ḥasan Ibn Ṣāliḥ**.

Referenced Source:

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/197):

"The Scholars Differed Over Which Part The Ears Belong To, And There Are Four Opinions:

1. The Majority Of Scholars Say The Ears Are From The Head. This Is The View Of The Ḥanafīs, Mālikīs, And Ḥanbalīs.
2. Some Said The Ears Are Independent Organs. This Is The View Of The Shāfi‘īs.
3. Some Said The Ears Are Part Of The Face. This Is Reported From Al-Zuhrī.
4. Others Said: The Part Of The Ear Facing Forward Is From The Face, And The Part Facing Backward Is From The Head. This Is The View Of Al-Sha‘Bī And Al-Ḥasan Ibn Ṣāliḥ."

Evidence Of The First Opinion: That The Ears Are Part Of The Head

This Is The Opinion Of The **Majority Of Scholars (Jumhūr)**.

They Present The Following **Qur’anic Evidence**:

Surah Al-A‘Rāf, Ayah 150 –

“And He Seized His Brother By The Head, Dragging Him Towards Him.”

وَأَخَذَ بِرَأْسِ أَخِيهِ يَجُرُّهُ إِلَيْهِ

They Interpret "Head" In This Verse To Include **Ears**, Meaning: *“He Grabbed His Brother By The Ears And Pulled Him Close.”*

They Also Cite **Hadith Evidence**:

Al-Mu‘Jam Al-Kabīr By Ṭabarānī, Vol. 10, Hadith 10784:

‘Abdullāh Ibn ‘Abbās Said:

“The Messenger Of Allah ﷺ Put Water Into His Nose Twice And Said: ‘The Ears Are Part Of The Head.’”

(Isnād: **Ṣaḥīḥ**)

Chain Of Narration Analysis:

- **Abū Ghaṭafān:**
 - Declared **Trustworthy (Thiqa)** By **Consensus:**
 - Ibn Ma‘īn: "Abū Ghaṭafān Is Thiqa" (Tahdhīb Al-Tahdhīb 4/571)
 - Ibn Ḥajar: "Thiqa" (Taqrīb Al-Tahdhīb 1/1189)
 - Al-Dhahabī: "Thiqa" (Al-Kāshif 5/92)
 - Al-Nasā’ī: "Thiqa" In *Al-Kunā*
 - Ibn Ḥibbān: Mentioned In *Al-Thiqāt*
- **Qāriḡ Ibn Shaybah Ibn Qāriḡ:**
 - Also Declared **Thiqa** By Consensus:
 - Ibn Ḥibbān: *Al-Thiqāt*
 - Al-Nasā’ī: "No Harm In Him" (Tahdhīb Al-Tahdhīb 3/406)
 - Ibn Ḥajar: "No Harm In Him" (Taqrīb Al-Tahdhīb 1/789)
- All Other Narrators In The Chain Are **Trustworthy** By Agreement.

Takhrīj (Hadith References):

This Narration Is Also Found In:

- Dārquṭnī’s *Sunan* (Multiple Places: 1/146, 1/173–179, Hadith Nos. 282, 331–346, 348–351)
- ‘Abd Al-Razzāq’s *Muṣannaf* (1/14, Hadith 38 – Book Of Ṭahārah, Chapter On Wiping The Ears)
- Ibn Abī Shaybah’s *Muṣannaf* (1/294, Hadith 160 – Book Of Ṭahārah, Chapter: Who Said The Ears Are From The Head)
- Ṭabarānī’s *Al-Kabīr* (10/322, Hadith 10784 – Bāb Al-‘Ayn, Abū Ghaṭafān From Ibn ‘Abbās)

Response To An Objection

Some Have Claimed That The Phrase "**The Ears Are Part Of The Head**" In This Narration Is An **Addition Or Error** (Ziyādah, Khaṭā’).

Adnān Ibn Muḥammad Al-‘Ar‘ūr Writes That A Group Of Narrators Transmitted The Report From **Ibn Abī Dh‘īb** Without This Phrase. Among Those Narrators Are:

- Yahyā Al-Qaṭṭān
- Yazīd Ibn Hārūn
- Hāshim Ibn Al-Qāsim
- ‘Abdullāh Ibn Al-Mubārak
- Abū Dāwūd Al-Ṭayālīsī
- Ādam Ibn Abī Iyās
- Ishāq Ibn Sulaymān Al-Rāzī
- Asad Ibn Mūsā
- Khālīd Ibn Mukhlid
- Ibn Abī Fudayk

Source: *Dīwān Al-Sunnah – Section Of Ṭahārah* (14/98):

“All Of Them Narrate From Ibn Abī Dh‘īb Without This Additional Phrase.”

The Same Interpretation Has Been Narrated From **Ibn ‘Abbās** By **‘Aṭā’ Ibn Abī Rabāḥ**. It Is Found In *Sunan Al-Dāraḩnī* (ḩadīth No. 311). However, The Narration Is *Weak (ḩa ‘If)* Due To One Of The Narrators In The Chain.

Chain: Muḩammad Ibn ‘Abdillāḩ Ibn Zakarīyā Al-Naysābūrī In Egypt → Aḩmad Ibn ‘Amr Ibn ‘Abd Al-Kḩālīq Al-Bazzār → Abū Kāmil Al-Jaḩdarī → Ghundar Muḩammad Ibn Ja‘Far → Ibn Jurayj → ‘Aṭā’ → Ibn ‘Abbās

Text: *The Prophet ﷺ Said: "The Ears Are Part Of The Head."*

Likewise, This Same Interpretation Is Also Narrated From **Ibn ‘Abbās** Through **Maymūn Ibn Mihrān**, Also Found In *Sunan Al-Dāraḩnī*, And This Chain Is Also *Weak (ḩa ‘If)*:

Chain: Muḩammad Ibn Al-ḩusayn Ibn Sa‘Īd Al-Hamadhānī → Abū Yaḩyā Ibn Abī Maysarah → Khallād Ibn Yaḩyā → Muḩammad Ibn Ziyād → Maymūn Ibn Mihrān → Ibn ‘Abbās

Text: *The Prophet ﷺ Said: "The Ears Are Part Of The Head."*

In The *Musnad Of Imām Aḩmad*, Yaḩyā Ibn Sa‘Īd Al-Qaṭṭān, Hāshim Ibn Al-Qāsim, And Yazīd Ibn Hārūn All Narrated From **Ibn Abī Dhīb**, From **Qārīz**, From **Abū Gḩaṭafān**, From **Ibn ‘Abbās**, And In Those Reports, The Wording “*The Ears Are Part Of The Head*” Is **Not Mentioned**.

Wakī‘ Also Narrated This ḩadīth, And It Was Transmitted From Him By:

- Abū Bakr ‘Abdullāḩ Ibn Abī Shaybah
- Ibrāḩīm Ibn Mūsā Al-Farrā’
- ‘Alī Ibn Muḩammad Ibn Ishāq Al-Ṭanāfisī

And None Of Them Included The Phrase “*The Ears Are Part Of The Head*” In Their Narrations.

Al-Ṭabarānī Reports In *Al-Mu‘Jam Al-Kabīr* (10/322, ḩadīth 10784):

From ‘Abdullāḩ Ibn Aḩmad Ibn ḩanbal → From His Father → Wakī‘ → Ibn Abī Dhīb → Qārīz Ibn Shaybah → Abū Gḩaṭafān → Ibn ‘Abbās

The Prophet ﷺ Said: "Inhale Water Into The Nose Twice, And The Ears Are Part Of The Head."

However, This Narration **Cannot Be Found** In *Musnad Aḩmad* From The Chain Of Wakī‘. Rather, Imām Aḩmad Narrates It (Vol. 1, Pages 228, 315, And 352) From:

- Yaḩyā Ibn Sa‘Īd Al-Qaṭṭān
- Hāshim Ibn Al-Qāsim
- Yazīd Ibn Hārūn

(All Of Whom Are Reliable And Strong Narrators.)

Their Narration Goes Through Ibn Abī Dhīb → Qārīz → Abū Gḩaṭafān → Ibn ‘Abbās And Reads:

I Saw Ibn ‘Abbās Performing Wuḩū’; He Rinsed His Mouth And Inhaled Water Into The Nose And Said: “The Messenger Of Allah ﷺ Said: Rinse Your Nose Twice Thoroughly Or Three Times.”

And The Statement “*The Ears Are Part Of The Head*” Is **Not Present** In Any Of These Versions.

This Shows That The Addition Of “*The Ears Are Part Of The Head*” Was Reported Only By Ṭabarānī, And This Appears To Be **A Mistake (Wahm)**, Possibly From Ṭabarānī Himself.

Eleven Trustworthy Narrators Have Narrated From **Ibn Abī Dhīb** → **Qāriḡ Ibn Shaybah** → **Abū Ghāṭafān** → **Ibn ‘Abbās**, And All **Did Not Mention** The Phrase “*The Ears Are Part Of The Head*”. These Eleven Include:

- Yahyā Ibn Sa‘īd Al-Qaṭṭān
- ‘Abdullāh Ibn Al-Mubārak
- Abū Al-Naḍr Hāshim Ibn Al-Qāsim
- Yazīd Ibn Hārūn
- Ādam Ibn Abī Iyās
- Ishāq Ibn Sulaymān Al-Rāzī
- Abū Dāwūd Al-Ṭayālīsī Sulaymān Ibn Dāwūd
- Muḥammad Ibn Ismā‘īl Ibn Abī Fudayk
- Khālīd Ibn Mukhlid Al-Qaṭwānī
- Asad Ibn Mūsā
- Ishāq Ibn ‘Isā Al-Qushayrī (Maternal Grandson Of Dāwūd Ibn Abī Hind)

The Narration They Preserved Says:

I Entered Upon Ibn ‘Abbās While He Was Performing Wuḍū’; He Rinsed His Mouth And Nose, And Said: The Messenger Of Allah ﷺ Said: “Rinse Your Nose Thoroughly Twice Or Thrice.”

— And **The Wordings About The Ears Is Absent.**

This Has Been Reported In:

- *Tārīkh Al-Bukhārī* (7/201)
- *Al-Sunan Al-Kubrā* Of Al-Nasā’ī (1/109, ḥadīth 97)
- *Ibn Mājah* (ḥadīth 408)
- *Al-Ḥākim* (1/148)
- *Al-Jārūd* (ḥadīth 77)
- *Musnad Aḥmad* (1/228, 315, 352)
- *Musnad Al-Ṭayālīsī* (4/445, ḥadīth 2848)
- *Ibn Abī Shaybah* (1/33, ḥadīth 277)
- *Al-Awsaṭ* Of Ibn Al-Mundhir (1/377, ḥadīth 359)
- *Al-Bayhaqī* (1/49)
- *Ibn ‘Abd Al-Barr* (18/422)
- *Tārīkh Dimashq* Of Ibn ‘Asākir (43/246–47/2)
- *Tahdhīb Al-Kamāl* By Al-Mizzī (23/334)
- *Al-Talqīq* Of Ibn Ḥajar (2/105)

Conclusion: This Confirms That The Version Reported By Ṭabarānī Is Likely Mistaken, And It Is Possible That The Error Lies With Ṭabarānī Himself—*And Allah Knows Best.*

There Is Another Chain For This ḥadīth Of **Ibn ‘Abbās**, Through ‘**Aṭā**’, Narrated By **Abū Kāmil Al-Jahḍarī**:

He Reported From Ghundar Muḥammad Ibn Ja ‘Far → Ibn Jurayj → ‘Aṭā’ → Ibn ‘Abbās → The Prophet ﷺ Said: “The Ears Are Part Of The Head.”

This Version Is Found In:

- *Musnad Al-Bazzār* [Cf. *Lisān Al-Mīzān* (7/475)]
- *Al-Kāmil* Of Ibn ‘Adī (3/131 And 4/196)
- *Sunan Al-Dāraquṭnī* (1/99)
- *Al-Khilāfiyyāt* Of Al-Bayhaqī (1/366–367, ḥadīths 167–169)
- *Al-Taḥqīq* Of Ibn Al-Jawzī (140)
- *Al-Tadwīn* Of Al-Rāfi‘ī (1/459)

Al-Khalili Says In *Al-Irshād* (3/844/212):

“I Heard Al-Ḥākim Say: I Asked Abū ‘Alī Al-Ḥāfiẓ About The ḥadīth Of Abū Kāmil Al-Jahdarī, From Ghandar, From Ibn Jurayj, From ‘Aṭā’, From Ibn ‘Abbās — That The Prophet ﷺ Said: *‘The Ears Are Part Of The Head.’*

He (Abū ‘Alī) Replied: This Is A ḥadīth Narrated To Us By Ibn Al-Bāghandī, And We Accuse Him In This Regard — For No One In Islam Has Narrated It From Abū Kāmil From Ghandar Except Him.”

[Faḍl Al-Raḥīm Al-Wadūd, *Takhrīj Sunan Abī Dāwūd* (2/95)]

Ibn ‘Adī Says:

Abū Kāmil Said: “*I Have Not Written Any ḥadīth From Ghandar Except This One, And It Was Conveyed To Me From Him By ‘Abdullāh Ibn Salamah Al-Aṭṭas.*”

[Faḍl Al-Raḥīm Al-Wadūd (2/95)]

Abū ‘Amr Yāsir Ibn Muḥammad Says:

“*I Do Not Know Of Anyone Narrating This ḥadīth From Ghandar With This Chain Except Abū Kāmil. It Was Narrated From Abū Kāmil By Al-Ma ‘Marī And Al-Bāghandī. And This ḥadīth Has Also Been Narrated From Al-Rabī‘ Ibn Badr From Ibn Jurayj.*”

[Faḍl Al-Raḥīm Al-Wadūd (2/95)]

Based On All Of This, Attributing This ḥadīth To Ghandar Is Not Correct.

Its Flaw Is ‘Abdullāh Ibn Salamah Al-Aṭṭas — He Is *Matrūk Al-ḥadīth* (Abandoned In ḥadīth). It Appears He Inserted It Upon Abū Kāmil. Al-Aṭṭas Used To Envy And Criticize Ghandar, So It's Not Unlikely That He Forged A Narration In His Name To Damage His Reputation. And Allāh Knows Best.

[Sources: Al-Jarḥ Wa Al-Ta‘Dīl (5/69), Ma‘Rifah Wa Al-Tārīkh (3/154), Lisān Al-Mīzān (4/488)]
[Faḍl Al-Raḥīm Al-Wadūd (2/96)]

Al-Dāraqutnī Says:

“This Isnād Is Mursal. Abū Kāmil Is Alone In Narrating It From Ghandar, And He Erred In It. Al-Rabī‘ Ibn Badr Also Followed Him In This, And He Is Matrūk (Abandoned), From Ibn Jurayj. The Correct Version Is: Ibn Jurayj From Sulaymān Ibn Mūsā From The Prophet ﷺ In Mursal Form.”

[Faḍl Al-Raḥīm Al-Wadūd (2/96)]

More Details:

1. **Ghandar's Narration From Ibn Jurayj Was In Baṣrah** — And When Ibn Jurayj Narrated In Baṣrah, He Made Mistakes. Those Who Heard From Him In Makkah Have More Accurate Transmissions.
2. **Abū Kāmil Said** (As Narrated By Abū Aḥmad Ibn ‘Adī):
“I Did Not Write From Ghandar Except This ḥadīth, And I Received It From ‘Abdullāh Ibn Salamah Al-Aḥṣā.”

Al-Aḥṣā Is Very Weak, And It’s Likely He Inserted This ḥadīth Upon Abū Kāmil.

Ibn Al-Qaṭṭān Leaned Toward Declaring It ṣaḥīḥ Due To The Reliability Of The Narrators And The Connected Chain. Ibn Daqīq Al-‘Id Said It Might Be The *Strongest Isnād* In This Topic.

However, The Correct Conclusion Is:

This Isnād Contains Both A Flaw And Irregularity (*Shudhūd*), So It Cannot Be Ruled As Authentic — As Has Been Clarified.

It Appears To Me — Based On The Evidence — That **Ghandar Is Innocent Of Responsibility For This ḥadīth**, And The Error Occurred From Abū Kāmil Due To Al-Aḥṣā Inserting The Narration And Attributing It To Ghandar.

That Is Why Ibn ‘Adī And Al-Dāraqutnī Were Decisive In Saying That **Abū Kāmil Erred**, And The ḥadīth Is Not Preserved From Ghandar. It Is Only Known Through One Of The Abandoned Narrators: **Al-Rabī‘ Ibn Badr**, And The Statements Of The Scholars On Al-Rabī‘’S Solitary Narration Will Follow.

There Are Differences In How This ḥadīth Was Narrated From Ibn Jurayj:

(A) Ghandar (Muḥammad Ibn Ja‘Far) — A Trustworthy Baṣran Narrator —

Narrated From Ibn Jurayj, From ‘Aṭā’, From Ibn ‘Abbās — With The *Marfū‘* Text:

“Rinse The Mouth And Nose, And The Ears Are From The Head.”

This Version Was Also Narrated By **Al-Rabī‘ Ibn Badr** (A *Matrūk* Narrator) From Ibn Jurayj With This Exact Wording.

Sources: Ibn ‘Adī (3/131), Al-Dāraqtunī (1/99), Abū Nu‘Aym In *Al-Ḥilyah* (8/281), Al-Bayhaqī In *Al-Khilāfiyyāt* (1/373–374 Nos. 173–174)

- Ibn ‘Adī Said: “*This Is Not Narrated From Ibn Jurayj Except By Al-Rabī‘ Ibn Badr. Ghandar — Companion Of Shu‘Bah — His Narration Is Not Preserved.*”
- Al-Dāraqtunī Said: “*Al-Rabī‘ Ibn Badr Is Matrūk Al-ḥadīth.*”
- Abū Nu‘Aym Said: “*This Is A Strange Report From Ibn Jurayj Regarding Mouth-Rinsing And Nose-Sniffing. I Do Not Know Anyone Who Narrated It From Him Except Al-Rabī‘.*”

Conclusion:

This ḥadīth Is Only Known Through **Al-Rabī‘ Ibn Badr (Abandoned)**. It Is **Not** From **Ghandar (Trustworthy)**. Rather, It Was Inserted Into Abū Kāmil’s Narration By **Al-Aḥṣaḥ**, And He Erred. And Allāh Knows Best.

(B) ‘Alī Ibn ‘Āṣim — Truthful, But Makes Many Mistakes And Confusions —

Narrated From Ibn Jurayj, From **Sulaymān Ibn Mūsā**, From **Abū Hurayrah**, Marfū‘:

Sources: Al-Dāraqtunī (1/100), Al-Bayhaqī In *Al-Khilāfiyyāt* (1/372 No. 172), Ibn Al-Jawzī In *Al-Taḥqīq* (P. 141)

- Al-Dāraqtunī Said In *Al-‘Ilal* (14/105/3452):
“*He Erred In This. He Likely Intended To Say: Sulaymān Ibn Mūsā, From Al-Zuhrī, As A Mursal Report.*”
- Al-Bayhaqī Quoted Him:
“*‘Alī Ibn ‘Āṣim Made A Mistake In Saying ‘From Abū Hurayrah’; The Previous Version — Ibn Jurayj From Sulaymān Ibn Mūsā, Mursal — Is More Correct.*”

(C) Muḥammad Ibn Al-Azhar Al-Jawzajānī:

Narrated: Al-Faḍl Ibn Mūsā Al-Sīnānī [Trustworthy And Firm], From Ibn Jurayj, From Sulaymān Ibn Mūsā, From Al-Zuhrī, From ‘Urwah, From ‘Ā’Ishah:

The Prophet ﷺ Said: “Whoever Does Wuḍū’ Should Rinse The Mouth And Nose, And The Ears Are From The Head.”

Sources: Al-‘Uqaylī In *Al-Ḍu‘afā’* (4/32), Al-Dāraqtunī (1/84, 100), Al-Bayhaqī In *Al-Khilāfiyyāt* (1/435 No. 243), Ibn Al-Jawzī In *Al-Taḥqīq* (P. 142)

- Al-‘Uqaylī Criticized The Report Due To **Muḥammad Ibn Al-Azhar**, And Said The Mursal Version Is Stronger.
- Al-Dāraqutnī Said: *“The Mursal Is More Authentic.”*
- He Also Said: *“Muḥammad Ibn Al-Azhar Is Weak. This Is A Mistake. The Previous Mursal Version Is More Correct.”*

Note: Muḥammad Ibn Al-Azhar Was Weakened By Al-Dāraqutnī. Aḥmad Said: *“Do Not Write From Him — Lest He Narrate From Liars.”* Ibn Ḥibbān Said: *“He Had A Lot Of ḥadīths, But Tried To Memorize And Was Among Aḥmad's Companions.”* Al-Ḥākim Declared Him Trustworthy — Yet His Solitary Reporting From Al-Sīnānī Is Not Reliable.

(D) ‘Iṣām Ibn Yūsuf Al-Balkhī [Narrates Unusual Reports — Lisān (5/436)]

Narrated From ‘Abdullāh Ibn Al-Mubārak, From Ibn Jurayj, From Sulaymān Ibn Mūsā, From Al-Zuhrī, From ‘Urwah, From ‘Ā’Ishah:

The Prophet ﷺ Said: *“Mouth Rinsing And Nose Sniffing Are Part Of Wuḍū’, Without Which The Prayer Is Not Valid, And The Ears Are From The Head.”*

Sources: Ibn ‘Adī (3/266), Al-Dāraqutnī (1/84), Al-Bayhaqī In *Al-Sunan* (1/52) And *Al-Khilāfiyyāt* (1/434–435, Nos. 241–242)

- Ibn ‘Adī Said: *“I Only Know It From This Route.”*
- Al-Dāraqutnī Said In *Al-Sunan*:
“Only ‘Iṣām Narrated It From Ibn Al-Mubārak, And He Erred. The Correct Version Is: Ibn Jurayj From Sulaymān Ibn Mūsā, Mursal: ‘Whoever Does Wuḍū’ Should Rinse His Mouth And Nose...”
 He Added: *“I Suspect ‘Iṣām Narrated It From Memory And Got Confused — He Mixed It Up With The Isnād Of The ḥadīth About ‘Any Woman Who Marries Without The Permission Of Her Guardian, Her Marriage Is Invalid’...”*
- In *Al-‘Ilal* (14/105/3452), He Said: *“Both Chains Have Flaws In Isnād And Matn.”*
- Al-Bayhaqī Said: *“‘Iṣām Ibn Yūsuf Or Someone Below Him Made A Mistake — The Correct Version Is Mursal.”*

There Is Ikhtilāf (Disagreement) Among The Companions Of Ibn Jurayj—Who Himself Is Thiqaḥ—And He Does Irsāl (Sends Without Naming The Companion). And This Is Proven By:

Faḍl Al-Raḥīm Al-Wadūd Fī Takhrīj Sunan Abī Dāwūd (2/98):

“It Has Been Narrated By:

- Ḥajjāj Ibn Muḥammad Al-Miṣṣīṣī [Thiqaḥ, Thabt (Firm), Among The Most Reliable In Transmitting From Ibn Jurayj],
- Wakī‘ Ibn Al-Jarrāḥ [Thiqaḥ, ḥāfiẓ],

- Sufyān Al-Thawrī [Thiqah, Thabt, Imām, ḥujjah],
- Sufyān Ibn ‘Uyaynah [Thiqah, Thabt, Imām],
- ‘Abd Al-Razzāq Ibn Hammām Al-Ṣan‘Ānī [Thiqah, Narrates Abundantly From Ibn Jurayj, Firm In It],
- Al-Walīd Ibn Muslim [Thiqah, Thabt],
- ‘Ubaydullāh Ibn Mūsā [Thiqah],
- ‘Abd Al-Wahhāb Ibn ‘Aṭā’ Al-Khaffāf [Ṣadūq],
- Ismā‘īl Ibn ‘Ayyāsh [His Narration From Ḥijāzīs Is Weak, And This Is One Of Them, But He Got It Right Here],
- Ṣilah Ibn Sulaymān [Matrūk; Declared A Liar By Ibn Ma‘īn And Abū Dāwūd — *Lisān Al-Mīzān* (4/333)]

(These Are 10 Individuals:)

All Of Them Narrated It From Ibn Jurayj, From Sulaymān Ibn Mūsā:

“That The Prophet ﷺ Said: **‘The Ears Are Part Of The Head.’**

And In Another Version: **‘Whoever Performs Wudu Should Rinse His Mouth And Inhale Water Into His Nose.’**

All Of This Is Narrated In Mursal Form.”

Reported By ‘Abd Al-Razzāq (1/23/11),

Abū ‘Ubayd In *Al-Ṭahūr* (360),

Ibn Abī Shaybah (1/23/156),

Al-Ṭabarī In *Tafsīr* (4/459/11385),

Al-‘Uqaylī In *Al-Ḍu‘afā’* (4/32),

Abū Ja‘far Ibn Al-Bakhtārī In The 11th Of His *Fawā’id* (164) [(660) In His Collected Works],

Al-Dāraquṭnī (1/84 And 99),

Al-Bayhaqī In *Al-Sunan* (1/52),

And *Al-Khilāfiyyāt* (1/368, 436/171, 244),

Al-Khaṭīb In *Al-Tārīkh* (7/406).

Al-‘Uqaylī Said: “This Version Is Preferable,” Meaning Over The Version Of Ibn Al-Azhar Al-Jawzajānī.

Al-Dāraquṭnī Mentioned It In *Al-‘Ilal* (13/321/3194) And Said:

“The Mursal Version Is More Authentic.”

Likewise, He Said So In *Al-Sunan* (1/84),

See Also *‘Ilal Al-Dāraquṭnī* (14/105/3452).

Al-Bayhaqī Said In *Al-Khilāfiyyāt*:

“Those Who Connected This Chain Narrated It:

- Sometimes From Ibn Jurayj → ‘Aṭā’ → Ibn ‘Abbās
- Sometimes: Ibn Jurayj → Sulaymān Ibn Mūsā → Al-Zuhrī → ‘Urwah → ‘Ā’Ishah
- And Other Previously Mentioned Forms — None Of Them Are From The People Of Truth And Uprightness Such That If They Narrate Something Alone, It Would Be Accepted Or Used As ḥujjah (Proof).

So How Can It Be Accepted When They Contradict The Trustworthy?
They Differ From The Firm Narrators!
They Take Disjointed Reports (Mu‘ḍal) And Present Them As Sound!
They Elevate Mursal Or Mawqūf Reports To Marfū‘ Status!

Additions Are Only Accepted From One Known For Integrity And Truthfulness — Not From Someone Infamous For Lying, Deception, Or Obscurity.

Then He Narrated The **Mursal** Version From Al-Thawrī And Concluded:
“This Is Correct, And No Proof Is Established Except By This.”

Another Chain For This Ḥadīth:

Narrated By Aḥmad Ibn Bakr Abū Sa‘īd Al-Bālisī:
From Muḥammad Ibn Muṣ‘Ab Al-Qarqisānī [Ṣadūq, But Makes Many Mistakes] → Isrā’īl → Jābir → ‘Aṭā’ → Ibn ‘Abbās:
The Messenger Of Allāh ﷺ Said:
“When One Of You Performs Wudu, Let Him Rinse His Mouth And Inhale Water, And The Ears Are Part Of The Head.”

More Details:

Reported By Ibn ‘Adī (1/188),
Al-Dāraqutnī (1/100),
Al-Bayhaqī In *Al-Khilāfiyyāt* (1/375/178),
Ibn Al-Jawzī In *Al-Taḥqīq* (143).

- Ibn ‘Adī Said: **“This ḥadīth Is Not Known Except Through Aḥmad Ibn Bakr.”**
- I Say: This ḥadīth Is **Munkar** (Denounced) In This Chain From Isrā’īl.
- Aḥmad Ibn Bakr Al-Bālisī:
 - Ibn ‘Adī Said: “He Narrates Munkar Reports From Trustworthy Narrators.”
 - Al-Dāraqutnī: “Weak.”
 - Ibn Ḥibbān: Mentioned In *Al-Thiqāt*, But Said: “He Made Mistakes.”
 - Al-Azdī: “Used To Fabricate ḥadīths.”[See: *Al-Thiqāt* (8/51), *Al-Kāmil* (1/188), *Lisān Al-Mīzān* (1/411)]

Contradicted By:

- **Wakī‘ Ibn Al-Jarrāḥ [Thiqah ḥāfiẓ]**, Who Narrated It From Isrā’īl → Jābir → Abū Ja‘Far: **“The Ears Are Part Of The Head.”**
Reported By Ibn Abī Shaybah (1/24/162).
- **Muṣ‘Ab Ibn Al-Miqdām [No Harm In Him]**, From **Al-Ḥasan Ibn Ṣāliḥ [Thiqah, ḥāfiẓ]**, From Jābir → ‘Aṭā’ → Ibn ‘Abbās → The Prophet ﷺ — Same Wording Except He Added: **“...And Let Him Blow Out The Water From The Nose.”**
Reported By Al-Dāraqutnī (1/100).

- ‘Alī Ibn Yūnus, From Ibrāhīm Ibn Ṭahmān [Thiqah], From Jābir → ‘Aṭā’ → Ibn ‘Abbās: **“Mouth Rinsing And Nose Rinsing Are Part Of The Wudu, Which Cannot Be Complete Without Them. And The Ears Are Part Of The Head.”**
Reported By Al-Dāraqūṭnī (1/100).
Al-Dāraqūṭnī Said: **“Jābir Is Weak, And There Is Disagreement About Him.**
 - It Was Sent (Mursal) By Al-Ḥakam Ibn ‘Abdullāh Abū Muṭī’ From Ibrāhīm Ibn Ṭahmān → Jābir → ‘Aṭā’ — **And This Is More Correct.”**

Commentary By Abū ‘Amr Yāsir Ibn Muḥammad:

Faḍl Al-Raḥīm (2/100):

“I Say: ‘Alī Ibn Yūnus — He Is Al-Balkhī, And Some Say Al-Madīnī.

- Al-Khalīlī: ‘Thiqah’ And Also ‘Ṣadūq Mashhūr’
- Al-‘Uqaylī: ‘Not Supported In His ḥadīths.’
- Narrated From Mālik A False Story With A Shady Isnād (Chain)
- Al-Dhahabī: ‘Bāṭilah’ (False), Its Isnād Is Murky
- Ibn Ḥajar: ‘No One In This Isnād Is Problematic Except Him.’

Refer To:

Al-Jarḥ Wa Al-Ta’Dīl (6/209),
Al-Thiqāt (8/459),
Al-Ḍu‘afā’ Al-‘Uqaylī (3/256),
Al-Irshād (1/277 & 3/935),
Tārīkh Al-Islām (14/273),
Al-Mīzān (3/163),
Lisān Al-Mīzān (6/40)

Another Chain From Abū Muṭī’ Al-Khurasānī (Weak):

Narrated From Ibrāhīm Ibn Ṭahmān → Jābir → ‘Aṭā’:

“Indeed, Rinsing The Mouth And Nose Are Essential To Wudu, And The Ears Are Part Of The Head.”

Reported By Al-Dāraqūṭnī (1/101), Al-Bayhaqī *Al-Khilāfiyyāt* (1/377/179).

- Al-Dāraqūṭnī In *Al-‘Ilal* (13/322/3194): **“The Mursal Version Is More Authentic.”**
- I Say: Abū Muṭī’ Al-Khurasānī Al-Balkhī, Al-Ḥakam Ibn ‘Abdullāh Ibn Muslimah — A Jurist, Expert In Ra’Y, Companion Of Abū Ḥanīfah — **But:**
 - **Matrook In ḥadīth**
 - Declared A Liar By Abū Ḥatīm
 - Accused Of Fabrication
 - Deviant Jahmī

- See: *Al-Majrūhīn* (2/103), *Al-Kāmil* (2/214), *Tārīkh Baghdād* (8/223), *Tārīkh Al-Islām* (13/158), *Lisān Al-Mīzān* (3/246)

Conclusion: Connected Version (Mawṣūl) Is Stronger Than Mursal,
But In Any Case: This **ḥadīth** Has A **Weak Isnād**, Is Not Reliable.

It Revolves Around **Jābir Ibn Yazīd Al-Ju‘Fī**, Narrated From Him By Isrā‘īl, Al-Ḥasan Ibn Ṣāliḥ,
And Ibrāhīm Ibn Ṭahmān — All Trustworthy — But They **Differed** About Him.

The Problem Is From **Jābir Himself**:

- Matrūk
- Liar
- Extremist Rāfiḍī
- Believed In The Return Of ‘Alī (Raj‘ Ah) — A **Kufr Innovation**

The Praise Of Shu‘Bah And Al-Thawrī For Him Applies To A Time **Before His Deviance Became Apparent**.

See: *Al-Tahdhīb* (1/284), *Al-Mīzān* (1/379)

Sunan Ibn Mājah, Hadith 455

Narrated By Abū Hurayrah (رضي الله عنه):

The Messenger Of Allah ﷺ Said:

“The Ears Are Part Of The Head (Al-Udhunāni Min Al-Ra’s).”

Arabic Sanad:

حَدَّثَنَا مُحَمَّدُ بْنُ يَحْيَى، حَدَّثَنَا عَمْرُو بْنُ الْخَصِينِ، حَدَّثَنَا مُحَمَّدُ بْنُ عَبْدِ اللَّهِ بْنِ غُلَاثَةَ، عَنْ عَبْدِ الْكَرِيمِ الْجَزَرِيِّ، عَنْ سَعِيدِ بْنِ الْمُسَيَّبِ، عَنْ
"الْأُذُنَانِ مِنَ الرَّأْسِ": أَبِي هُرَيْرَةَ، قَالَ: قَالَ رَسُولُ اللَّهِ ﷺ.

Chain Analysis (Isnād: Da‘īf – Weak):

- **Muḥammad Ibn ‘Abd Allāh Ibn ‘Ulāthah** – *Disputed; Unreliable In Hadith Transmission.*
- **‘Amr Ibn Al-Ḥuṣayn** – *Weak By Consensus; Considered Matrūk (Abandoned) In Hadith.*
- This Isnād Is **Weak** Due To Both **‘Amr Ibn Al-Ḥuṣayn** And **Muḥammad Ibn ‘Ulāthah**.

Second Chain: Via ‘Aṭā’ (Narrated By Al-Dāraqutnī)

Arabic Sanad:

...عَنْ إِسْمَاعِيلَ بْنِ مُسْلِمٍ، عَنْ عَطَاءٍ، عَنْ أَبِي هُرَيْرَةَ

"...When One Of You Performs Wudu, Let Him Rinse His Mouth And Nose, And The Ears Are From The Head."

Chain Analysis (Isnād: Da‘īf – Weak):

- **Ismā‘īl Ibn Muslim** – *Weak By Consensus.*

- The Chain Is **Weak** Due To **Ismā‘īl Ibn Muslim’s** Unreliability.

Third Chain: Via Yazīd Ibn Al-Aṣamm (Narrated By ‘Abd Al-Razzāq)

Arabic Sanad:

...عَبْدُ الرَّزَّاقِ، عَنْ عَبْدِ اللَّهِ بْنِ مُحَرَّرٍ، عَنْ يَزِيدَ بْنِ الْأَصَمِّ، عَنْ أَبِي هُرَيْرَةَ

Chain Analysis (Isnād: Da‘īf – Weak):

- ‘Abd Allāh Ibn Muḥarrar – *Weak By Unanimous Agreement; Matrūk (Abandoned)*.
- Thus, This Isnād Is **Weak** Due To ‘Abd Allāh Ibn Muḥarrar.

Fourth Chain: Via ‘Ubayd Ibn Salmān (Narrated By Al-Dāraqutnī And Others)

Arabic Sanad:

...الْبُخْتَرِيُّ بْنُ عَبْدِ عُبَيْدٍ، عَنْ أَبِيهِ، عَنْ أَبِي هُرَيْرَةَ

“The Ears Are From The Head.”

Chain Analysis (Isnād: Da‘īf – Weak):

- Al-Bukhturī Ibn ‘Ubayd – *Weak (ḍa‘īf)*.
- His Father (‘Ubayd Ibn Salmān) – *Majhūl (Unknown)*.
- This Isnād Is **Weak** Due To A *Weak Narrator And An Unknown Narrator*.

Fifth Chain: Via Sulaymān Ibn Mūsā (Narrated By Al-Dāraqutnī)

Arabic Sanad:

...عَنْ سُلَيْمَانَ بْنِ مُوسَى، عَنْ أَبِي هُرَيْرَةَ، عَنِ النَّبِيِّ ﷺ

“The Ears Are From The Head.”

Chain Analysis (Isnād: Munqaṭi‘ – Disconnected):

- Sulaymān Ibn Mūsā Did **Not** Meet Abū Hurayrah, So The Chain Is **Munqaṭi‘** (Disconnected).
- Also, ‘Alī Ibn ‘Āṣim Made An Error In Saying “From Abū Hurayrah From The Prophet ﷺ”; The Correct Version Stops At **Ibn Jurayj**.

Further Detailed Takhrīj (Documentation):

1st Chain (From ‘Amr Ibn Al-Ḥuṣayn):

Mentioned In:

- Ibn Mājah (455)
- Al-Ṭabarānī In *Al-Awsaṭ* (8/176/8318)
- Al-Dāraquṭnī (1/102)
- Al-Bayhaqī In *Al-Khilāfiyāt* (1/397, Hadith 207 & 208)
- Al-Dāraquṭnī Said: ‘**Amr Ibn Al-Ḥuṣayn And Ibn ‘Ulāthah Are Both Weak.**
- Al-Bayhaqī Said: *Al-Ḥākim Stated, "Muḥammad Ibn ‘Ulāthah Is Abandoned In Hadith."*
- Al-Ḥākim: *He Narrates Odd (Munkar) Reports And Is Unreliable In Hadith.*
- Ibn ‘Ulāthah Is Not Strong Enough To Report Singularly From Trustworthy Narrators Like ‘**Abd Al-Karīm Al-Jazarī.**
- ‘Amr Ibn Al-Ḥuṣayn Is **Matrūk** (Abandoned), Known For Fabrications.

This Version Is **Munkar (Denounced)** And **Weak** Due To The Condition Of Its Narrators.

Alternative Mawqūf Version (Stopped At Tābi‘ī):

From **Sa‘īd Ibn Al-Musayyib** Himself (Not The Prophet ﷺ):

Reported By:

- Yazīd Ibn Zuray‘
- Ibn Abī ‘Adī
- ‘Ubaydah Ibn Sulaymān
- ‘Abd Al-Raḥīm Ibn Sulaymān

All From **Sa‘īd Ibn Abī ‘Arūbah**, From **Qatādah**, From **Al-Ḥasan** And **Sa‘īd Ibn Al-Musayyib** Who Said:

"The Ears Are From The Head."

This **Mawqūf** Version Is **Authentic** And Found In:

- Ibn Abī Shaybah (1/157/24, 161)
- Al-Athram In *Al-Sunan* (9)
- Al-Ṭabarī In *Tafsīr* (4/458/11377–78)

2nd Chain (Al-Bukhturī Ibn ‘Ubayd):

Mentioned In:

- Ibn ‘Adī In *Al-Kāmil* (2/57)
- Al-Dāraquṭnī (1/102)
- Al-Bayhaqī In *Al-Khilāfiyāt* (1/400–401/212)
- Ibn ‘Asākir In *Tārīkh Dimashq* (51/88)
- **Al-Dāraquṭnī:** *Al-Bukhturī Is Weak, And His Father Is Unknown (Majhūl).*
- Al-Bukhturī Is **Matrūk** And Known To Narrate Strange Reports.

3rd Chain (From ‘Abd Allāh Ibn Muḥarrar):

Mentioned In:

- ‘Abd Al-Razzāq (1/12/27)
- Al-Dāraqtunī (1/102)
- Al-Bayhaqī In *Al-Khilāfiyāt* (1/402/214)
- **Al-Dāraqtunī: *Ibn Muḥarrar Is Abandoned (Matrūk)*.**
- His Narration From Ibn Al-Aṣamm Contains **Clear Oddity (Nakārah)**.

Summary Of All Chains:

All Known Chains Of This **Marfū‘** Hadith ("The Ears Are Part Of The Head") From **Abū Hurayrah** Are **Weak**:

Chain Source	Status	Reason
Ibn Mājah 455 Via ‘Amr Ibn Al-Ḥuṣayn	Weak	‘Amr Is Matrūk; Ibn ‘Ulāthah Is Weak
Al-Dāraqtunī Via ‘Aṭā’	Weak	Ismā‘īl Ibn Muslim Is Weak
‘Abd Al-Razzāq Via Ibn Muḥarrar	Weak	Ibn Muḥarrar Is Matrūk
Al-Dāraqtunī Via Al-Bukhturī	Weak	Al-Bukhturī Is Weak, His Father Majhūl
Al-Dāraqtunī Via Sulaymān Ibn Mūsā	Munqaṭi‘	Disconnected; Narrator Error

Authentic Statement As Mawqūf:

- The Statement “**The Ears Are From The Head**” Is **Authentically Established** As The Saying Of **Sa‘īd Ibn Al-Musayyib** And Others From The **Tābi‘īn**, Not As A Hadith Marfū‘ From The Prophet ﷺ.

Jami‘ At-Tirmidhi Hadith 37 – Narration Of Abu Umamah (رضي الله عنه)

Text Of The Hadith (In Summary):

Abu Umamah (رضي الله عنه) Narrates: “*The Messenger Of Allah ﷺ Performed Ablution, He Washed His Face Three Times, His Hands Three Times, Wiped Over His Head, And Said: ‘The Ears Are Part Of The Head.’*”

(Isnad: Weak – Ḍa‘īf)

The Chain Contains *Sinān Ibn Rabī‘Ah*, Who Is Considered Weak According To The Majority Of Scholars.

Alternate Chains Of Transmission:

1. Through Rāshid Ibn Sa‘D (Narrated By Ad-Dāraqutnī):

Abu Bakr An-Naysābūrī → Aḥmad Ibn ‘Īsā Al-Khashshāb → ‘Abdullāh Ibn Yūsuf → ‘Īsā Ibn Yūnus → Abū Bakr Ibn Abī Maryam → Rāshid Ibn Sa‘D → Abu Umamah (رضي الله عنه) → The Prophet ﷺ
Said: “*The Ears Are Part Of The Head.*”

(Isnād: Weak – Ḍa‘īf)

This Isnād Contains *Abū Bakr Ibn Abī Maryam*, Who Is Agreed Upon To Be Weak By Consensus Of The Scholars.

2. Through Al-Qāsim (Narrated By Ad-Dāraqutnī In His Sunan):

This Version Is Narrated Through A Complex Isnād Involving Several Transmitters, With A Common Transmitter Being *Ja‘far Ibn Az-Zubayr*, Who Is **Matrūk** (Abandoned) In Hadith Transmission By Consensus.

(Isnād: Weak – Ḍa‘īf)

Takhrij (Source References):

This Hadith Has Been Reported By:

- Abū Dāwūd In *Sunan* (1/50, Hadith: 134)
- At-Tirmidhī In *Jāmi‘* (1/86, Hadith: 37)
- Ibn Mājah In *Sunan* (1/283, Hadith: 444)
- Al-Bayhaqī In *Sunan Al-Kubrā* (1/66, Hadiths: 312, 313, 314)
- Ad-Dāraqutnī In *Sunan* (Hadiths: 357–365)
- Aḥmad In *Musnad* (Hadiths: 22647, 22653, 22654, 22713, 22741)
- Ibn Abī Shaybah In *Muṣannaf* (1/259, Hadith: 61; 1/281, Hadith: 112; 20/195, Hadith: 37618)
- At-Ṭaḥāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/29, Hadith: 122; 1/33, Hadith: 143)
- Aṭ-Ṭabarānī In *Al-Mu‘jam Al-Kabīr* (8/121, Hadith: 7554; 8/254, Hadith: 7990; 8/278, Hadith: 8070)
- Ibn Ḥajar In *Al-Maṭālib Al-‘Āliyah* (2/201, Hadiths: 54/1, 54/2, 54/3, 54/4)

Additional Detail (From Dīwān As-Sunnah – Section Of Ṭahārah):

Abu Umamah (رضي الله عنه) Reports:

“The Prophet ﷺ Performed Wudu: He Washed His Hands Three Times, Rinsed His Mouth Three Times, Inhaled Water Into His Nose Three Times, Washed His Face And Arms (Up To The Elbows) Three Times, Wiped The Corners Of His Eyes With Water. It Was As If The Prophet ﷺ Wiped His Head And Ears Together Once And Would Say: ‘The Ears Are Part Of The Head.’”

□ **Ruling On The Hadith:**

- The **Text (Matn)** Is *Sound* – **Except** For The Parts About Wiping The Eye Corners And The Phrase "*The Ears Are Part Of The Head*".
- The **Isnād** Is **Weak**.
- Scholars Who **Declared It Weak** Include: At-Tirmidhī, Al-Ḥāfiẓ Mūsā Ibn Hārūn, Ad-Dāraqtunī, Al-Bayhaqī, Al-Ishbīlī, Al-‘Irāqī, Al-Abnāsī, And Al-Biqā‘ī.

There Is **Disagreement** Whether The Statement "*The Ears Are Part Of The Head*" Is **Marfū‘** (Attributed Directly To The Prophet ﷺ) Or **Mawqūf** (Statement Of A Companion). The Stronger Opinion, Held By Ad-Dāraqtunī, Al-Bayhaqī, Ibn ‘Abd Al-Hādī, And Ibn Ḥajar, Is That It Is **Mawqūf** And **Possibly Even Mudraj (Inserted)**.

Scholarly Commentary:

- **Imām Aḥmad** Was Asked: “Is There Any Authentic Narration From The Prophet ﷺ About This (I.E., Ears Being Part Of The Head)?”
He Replied: “*I Do Not Know Of Any.*”
- **At-Tirmidhī** Commented After This Hadith:
“*This Is The Practice Of Most Of The Scholars Among The Companions Of The Prophet ﷺ And Those Who Came After Them – That The Ears Are Part Of The Head. This Is Also The View Of Sufyān Ath-Thawrī, Ibn Al-Mubārak, Aḥmad, And Ishāq.*”
- **Others** Said: “*The Front Part Of The Ear Is Part Of The Face; The Back Part Is From The Head.*”
- **Imām Al-Khaṭṭābī** Said:
“*This Indicates That The Ears Are Not Part Of The Face (As Al-Zuhrī Held), Nor Is One Side Of Them From The Face And The Other From The Head (As Ash-Sha‘Bī Held).*”
Scholars Like Ibn Al-Musayyib, ‘Atā’, Al-Ḥasan Al-Baṣrī, Ibn Sīrīn, Sa‘īd Ibn Jubayr, And An-Nakha‘ī Considered Them Part Of The Head.
- **Imām Ash-Shāfi‘ī** Held That Wiping The Ears Is A *Sunnah On Its Own*, Neither Part Of The Head Nor Face. His Followers Interpreted The Hadith Either As:
 1. Ears Are Wiped *Along With* The Head, Or
 2. Ears Are Wiped Like The Head, Not Washed Like The Face — The Attribution To “Head” Is A Figurative Expression (تشبيه وتقريب), Not Literal (تحقيق).
- **Ibn Ḥajar** Explained:
“*The Meaning Of This Hadith Is That The Ears Share The Same Ruling As The Head In Terms Of Wiping, Not That They Are Anatomically Part Of It.*”

Summary Of The Three Main Chains (Turq) From Abu Umamah (رضي الله عنه):

1. First And Most Well-Known Chain:

Aḥmad (22310) → Yaḥyā Ibn Ishāq → Ḥammād Ibn Zayd → Sinān Ibn Rabī‘ Ah → Shaḥr Ibn Ḥawshab → Abu Umamah

Weak: Due To Sinān (Not Strong) And Shaḥr (Closer To Weak Than Reliable).

2. Other Chains:

Include *Abū Bakr Ibn Abī Maryam* (Agreed To Be Weak), *Ja 'Far Ibn Az-Zubayr* (Matrūk), And Multiple Textual Inconsistencies.

3. Discrepancy In Wording:

Some Report It *Marfū'* (Prophetic), Others *Mawqūf* (Companion's View) – Stronger Opinion Is That It Is **Mawqūf Or Inserted**.

Ibn Hajar's Statement

Ibn Hajar Says: "I Have Explained In Detail That The Hadith Of Abu Umāmah, Which Was Narrated By Abū Dāwūd, Al-Tirmidhī, And Ibn Mājah, Has A Text That Is *Mudraj* (Interpolated) In The Body Of The Hadith."

He States This In His Book *Al-Talkhīṣ Al-Ḥabīr* (Vol. 1, P. 160):

"Ḥadīth Abū Umāmah Was Narrated By Abū Dāwūd, Al-Tirmidhī, And Ibn Mājah. I Have Clarified That It Is Interpolated In My Book On This Matter."

(Source: *Dīwān Al-Sunnah – Section On Ṭahārah*, 15/15, Shamela Numbering)

Commentary Of Ibn Daqīq Al-ʿĪd On The Narrators

Ibn Daqīq Al-ʿĪd Commented Positively On The Chain, Saying:

"Shahr [Ibn Ḥawshab] Was Declared Reliable By Aḥmad, Yaḥyā, Al-ʿIjlī, And YaʿQūb Ibn Shaybah. As For Sinān Ibn Rabīʿ Ah Abū Rabīʿ Ah Al-Bāhilī: Al-Bukhārī Transmitted From Him. Ibn ʿAdī Said: 'He Has Few Aḥādīth, And I Hope There Is No Harm In Him.'

Therefore, The Hadith Is *ḥasan* (Acceptable). Even If Ibn MaʿĪn Said About Sinān: 'He Is Not Strong,' And Abū Ḥātim Said: 'He Is A Shaykh Whose Hadith Is Inconsistent.'"

He Titled It In *Sharḥ Al-Ilmām* As:

"Second View: That It Is Authentic."

And Continued:

"The Status Of The Narrators Has Already Been Described — None Of Them Is Other Than Trustworthy. Thus, Our Condition [For Acceptance] Is Fulfilled."

(Source: *Al-Imām*, Vol. 1, P. 504)

Commentary Of Ibn Al-Turkumānī

Ibn Al-Turkumānī Also Commented On The Hadith (Al-Jawhar Al-Naqī 1/66):

"There Is Disagreement Regarding [The Narration From] Ḥammād: Ibn Ḥarb Narrated It As *Mawqūf* (Stopped), While Abū Al-Rabīʿ Narrated It As *Marfū'* (Attributed To The Prophet ﷺ).

Similarly, There Is Disagreement In The Chain Of Musaddad From Ḥammād — It Is Both Narrated As *Marfū'* And *Mawqūf*.

When One Narrator Raises A Hadith To The Prophet ﷺ And Another Stops It, Or The Same Narrator Does Both At Different Times, Preference Is Given To The One Who Raises It, Since He Brings Additional Information.

It Is Permissible For Someone To Hear The Same Hadith As Mawqūf At One Time And Marfū‘ At Another. Giving Preference To The Marfū‘ Version Is Better Than Accusing The Narrator Of Error.” (Source: *Al-Jawhar Al-Naqī*, Vol. 1, P. 66)

Second Chain (Ṭarīq Thānī):

Narrated By Al-Qāsim From Abū Umāmah

1. Through Ja‘Far Ibn Al-Zubayr

Narrated By Ibn ‘Adī In *Al-Kāmil* (10/623):

“Muḥammad Ibn Mūsā Al-Ḥalwānī → ‘Umar Ibn Yaḥyā Al-Ubullī → Yaḥyā Ibn Kathīr → Ja‘Far Ibn Al-Zubayr → Al-Qāsim → Abū Umāmah.”

Also Narrated By Al-Dāraqutnī (*Sunan* 365) And Al-Bayhaqī (*Al-Khilāfiyāt* 230–231) From Multiple Chains Via Ja‘Far Ibn Al-Zubayr From Al-Qāsim.

Criticism:

This Isnād Is *Very Weak* Due To **Ja‘Far Ibn Al-Zubayr**, Who Is “*Matrūk Al-ḥadīth*” (Abandoned In Hadith), As Stated By Ibn Ḥajar In *Taqrīb Al-Tahdhīb* (Entry 939).

Al-Dāraqutnī Also Criticized Him:

“Ja‘Far Ibn Al-Zubayr Is Abandoned.” (*Sunan*, 365)

2. Through Abū Mu‘Ādh Al-Alhānī From Al-Qāsim

Narrated By Tammām In *Al-Fawā'id* (1571):

“Abū Ishāq Ibrāhīm Ibn Muḥammad Ibn Ṣāliḥ Ibn Sinān → Abū ‘Alī Al-Ḥasan Ibn Jarīr Al-Ṣūrī → Sulaymān Ibn ‘Abd Al-Raḥmān → ‘Uthmān Ibn Fā'id → Abū Mu‘Ādh Al-Alhānī → Al-Qāsim → Abū Umāmah.”

Also Narrated By Ibn ‘Asākir (*Tārīkh Dimashq* 54/150) Through Ismā'īl Ibn Muḥammad Ibn Qayrāt From Sulaymān Ibn ‘Abd Al-Raḥmān.

Criticism:

This Isnād Is *Very Weak* Due To Two Issues:

1. ‘Uthmān Ibn Fā'id:

- Al-Bukhārī: “There Is Objection To His Narrations” (*Al-Du‘Afā' Al-Kabīr*, 3/76)

- Ibn Hibbān: “Narrates Serious Fabrications From Trustworthy Narrators As If He Did It Deliberately; Unacceptable For Reliance” (*Al-Majrūhīn*, 2/75)
- Ibn Hajar: “Weak” (*Taqrīb*, 4509)

2. **Abū Mu‘Ādh Al-Alhānī:**

- Unknown; No Entry Found Under This Kunyah.
- Al-Albānī Said: “No One Mentioned This Alhānī, And ‘Uthmān Ibn Fā’id Is Weak” (*Al-Ṣaḥīḥah*, 1/82, No. 36).
- Possibly He Is ‘Alī Ibn Yazīd Al-Alhānī, Who Also Narrated From Al-Qāsim A Large Collection — But He Is *ḍa‘īf*, And No Kunyah Of “Abū Mu‘Ādh” Is Known For Him. It May Be A Case Of *Tadlīs* (Concealing Identity).

Third Chain (Ṭarīq Thālith):

Narrated By Rāshid Ibn Sa‘D From Abū Umāmah

Narrated By Ibn ‘Adī (*Al-Kāmil* 1/439):

“Mūsā Ibn Al-‘Abbās → Aḥmad Ibn ‘Īsā Al-Khashshāb → ‘Abd Allāh Ibn Yūsuf → ‘Īsā Ibn Yūnus → Abū Bakr Ibn Abī Maryam → Rāshid Ibn Sa‘D → Abū Umāmah”

Also By Al-Dāraqtunī (364) And Al-Bayhaqī (*Al-Khilāfīyāt*, 235) Via Aḥmad Ibn ‘Īsā Al-Khashshāb.

Criticism:

This Isnād Is *Extremely Weak* Due To:

1. **Abū Bakr Ibn Abī Maryam:**

- Al-Nasā’ī: “Weak” (*Al-Ḍu‘afā’*, 668)
- Ibn Hajar: “Weak, His House Was Robbed And He Became Confused” (*Taqrīb*, 7974)
- Al-Dāraqtunī: “Narrates It As A Connected Report, But It Is Not Authentic. He Is Weak” (*Sunan*, 358)

2. **Aḥmad Ibn ‘Īsā Al-Khashshāb Al-Tinnīsī:**

- Ibn Yūnus: “Extremely Confused In ḥadīth”
 - Al-Dāraqtunī: “Not Strong”
 - Ibn Hibbān: “Narrates Strange Things From Known Narrators And Fabrications From Trustworthy Ones — Not Reliable”
 - Ibn Ṭāhir: “Liar, Fabricates Ḥadīth”
 - Maslamah: “Liar, Fabricates Aḥādīth”
- (All Mentioned In *Lisān Al-Mīzān* 694, And *Tahdhīb Al-Tahdhīb* 1/66)

Ibn ‘Adī Commented:

“This Chain Is Not Narrated Except By Aḥmad Ibn ‘Īsā, And It Is Known Only From Ḥammād Ibn Zayd → Sinān Ibn Rabī‘ah → Shahr Ibn Ḥawshab → Abū Umāmah”

Ibn Ṭāhir Al-Maqdisī Summarized:

“This Is Only Known From Ḥammād Ibn Zayd’s Route... What Aḥmad Narrated Is Rejected Because He Is Not Trustworthy.”

(*Dhakhīrat Al-Ḥuffāz*, 2/1076)

But:

Al-Dāraqutnī Narrates The Same Report (Sunan, 363) With A **Sound Isnād** From Abū Bakr Ibn Abī Maryam From Rāshid Ibn Sa‘D **As A Mursal Report**.

Given Ibn Abī Maryam’s Weakness, The Mursal Version Is The Preserved One.

Summary And Final Judgments

All Chains Of The Hadith Of Abū Umāmah Are **Rejected (Munkar)** And **None Are Authentic**. The Correct Stance Is That The Statement “*Al-Udhunan Min Al-Ra’s*” (The Ears Are Part Of The Head) Is Mawqūf (Stopped) On Abū Umāmah, Even Though The Chain Itself Is Weak.

However, The Hadith Has **Many Shawāhid** (Supporting Narrations), Though All With Issues. Scholars Differed Over The Overall Ruling:

Scholars Who Considered The Ḥadīth Weak In Totality:

1. Imām Aḥmad Ibn Ḥanbal

- Ḥarb Al-Kirmānī Asked: “Are The Ears Part Of The Head?”

Aḥmad Said: “Yes.”

Ḥarb: “Is There Anything *ṣaḥīḥ* From The Prophet ﷺ About It?”

Aḥmad: “I Do Not Know.”

(*Masā’il Ḥarb*, Book Of Ṭahārah, P. 129; Also *Tanqīḥ Al-Taḥqīq* 1/204–205)

2. Al-‘Uqaylī

- After Mentioning Abū Mūsā’s Hadith: “The Isnāds In This Chapter Are Weak.” (*Al-Ḍu‘afā’*, 1/164)

3. Al-Dāraqutnī

- Mentioned All The Chains In His *Sunan* And Weakened Them All.

4. Al-Ḥākim

- Classified It Among *Mashhūr* Aḥādīth That Are Not *ṣaḥīḥ*:

“This Hadith Is Well Known, But Not Authentic.” (*Ma‘rifat ‘Ulūm Al-Ḥadīth*, P. 92)

5. Al-Bayhaqī

- Said: “This Hadith Is Narrated With Many Chains, But All Of Them Have Flaws.” (*Al-Khilāfiyāt*, 1/347)

6. Ibn Ḥazm

- “Wiping The Ears Is Not Obligatory, Nor Are They Part Of The Head. All Related Aḥādīth Are Weak.” (*Al-Muḥallā*, 2/55)

7. ‘Abd Al-Ḥaqq Al-Ishbīlī

- “Narrated From Several Companions, But None Of Them Is Authentic.”
(*Al-Aḥkām Al-Wuṣṭā*, 1/171)

Hadith Of ‘Abdullāh Ibn Zayd Ibn ‘Āṣim

This Same Hadith Is Also Reported From ‘Abdullāh Ibn Zayd Ibn ‘Āṣim In **Ibn Mājah**, Volume 1, Page 282, Hadith No. 443:

Arabic Text Of The Sanad And Matn:

حَدَّثَنَا سُؤَيْدُ بْنُ سَعِيدٍ، حَدَّثَنَا يَحْيَى بْنُ زَكَرِيَّا بْنِ أَبِي زَائِدَةَ، عَنْ شُعْبَةَ، عَنْ حَبِيبِ بْنِ زَيْدٍ، عَنْ عَبَادِ بْنِ تَمِيمٍ، عَنْ عَبْدِ اللَّهِ بْنِ زَيْدٍ، قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: الْأُذُنَانِ مِنَ الرَّأْسِ.

The Messenger Of Allah ﷺ Said: “**The Two Ears Are Part Of The Head.**”

(**Sahih Li-Dhāṭih**) – Authentic In And Of Itself.

Scholarly Views On Its Authenticity

- **Imam Al-Mundhirī** Said:

“This Chain Is Connected (Muttaṣil), And Its Narrators Are Reliable And Authoritative (ḥujjah).”

Source: *Dīwān Al-Sunnah – Kitāb Al-Ṭahārah* (15/29)

- **He Also Stated That Al-Bukhārī And Muslim Both Used All The Narrators Of This Chain As Proof (Iḥtijāj):**

“Al-Bukhārī And Muslim Both Agreed Upon Using Ibn Abī Zā’idah, Shu‘Bah, ‘Abbād, And Ḥabīb Ibn Zayd – Who Is Al-Anṣārī And Trustworthy – And As For Suwayd Ibn Sa‘īd, Although There Is Weakness And Tadrīs Attributed To Him, Muslim Still Used Him In His *Ṣaḥīḥ*. In This Hadith, He Said: ‘Yahyā Ibn Zakarīyyā Narrated To Us.’”

- **Al-Mundhirī** Also Said In Comparison To The Hadith Of Al-Rubayyi‘ Bint Mu‘Awwidh (Which Was Graded ḥasan By Al-Tirmidhī):

“The Hadith Of ‘Abdullāh Ibn Zayd Is More Authentic And Its Chain Is Better.”

Source: *Mukhtaṣar Sunan Abī Dāwūd* 1/99

- **Abū Al-Ḥasan Ibn Al-Qaṭṭān** Also Declared Its Chain To Be **ṣaḥīḥ**, Stating:

“We Have Cited The Narration Of Al-Dāraqutnī And The Ruling Of Abū Al-Ḥasan Ibn Al-Qaṭṭān That Its Isnād Is Authentic, Along With His Discussion.”

Source: *Sharḥ Al-Ilmām* 4/248

- **Ibn Sayyid Al-Nās Said:**

“All Its Narrators Are Trustworthy And Reported In The *Ṣaḥīḥayn* (Bukhārī And Muslim), Except For Ḥabīb Ibn Zayd. But He Was Declared Trustworthy By Abū Ḥātim And Ibn Ḥibbān And They Considered This Hadith Authentic. Abū Ḥātim Al-Rāzī Said About Him: ‘Ṣāliḥ (Acceptable).’”

Source: *Al-Nafḥ Al-Shadhī* 1/359

- **Al-Zayla‘ī Stated:**

“This Is The Best Chain In This Chapter, Due To Its Connectedness And The Trustworthiness Of Its Narrators. Ibn Abī Zā‘idah, Shu‘bah, And ‘Abbād Were All Used As Proof By The Two Shaykhs (Bukhārī And Muslim). Ḥabīb Was Listed Among The Trustworthy (Thiqāt) By Ibn Ḥibbān In The Followers Of The Tābi‘īn. As For Suwayd Ibn Sa‘īd, Muslim Also Used Him. And Allah Knows Best.”

Source: *Naṣb Al-Rāyah* 1/19

- **Imām Mughlāṭāy Agreed With The Statement Of Al-Zayla‘ī.**

Source: *Sharḥ Ibn Mājah* 1/446–447

- **Imām Al-‘Aynī Said:**

“Its Isnād Is The Best Chain Due To Its Connectedness And Trustworthy Narrators. Al-Mundhirī And Ibn Daqīq Al-‘īd Also Strengthened It.”

Source: *Al-Bināyah* 1/215

- **Imām Al-Suyūṭī Graded It ṣaḥīḥ In:**

Al-Jāmi‘ Al-Ṣaḥīḥ, Hadith No. 3046

- **Shaykh Al-Albānī Declared It Authentic (ṣaḥīḥ) In:**

Al-Ṣaḥīḥah, Hadith No. 36

Source: *Dīwān Al-Sunnah – Kitāb Al-Ṭahārah* (15/32)

- **Ibn Al-Jawzī Also Considered It Authentic.**

In Response To Al-Būṣayrī’s Critical Remarks, He Said:

“This Does Not Prevent The Hadith From Being ḥasan Li-Ghayriḥ As Long As All Narrators Are Trustworthy And No One Is Accused. When Supported By The Authentic Chain From Ibn ‘Abbās And Another Path That Was Authenticated By Ibn Al-Qaṭṭān, Ibn Al-Jawzī, Al-Zayla‘ī And Others, Then Undoubtedly The Hadith Is Established And Authentic. If We Add To That The Other Chains From Other Companions, The Hadith Is Strengthened Even More — To The Point Where Some Scholars Consider It **Mutawātir**.”

Source: *Al-Ṣaḥīḥah* 1/90

Takhrij Of The Hadith

This Hadith Was Also Recorded By:

- **Ibn Khuzaymah**, *Ṣaḥīḥ* (1/235), No. 118 – Book Of Purification, Chapter: Permission For Performing Wudu With Less Than One Mudd Of Water.
- **Ibn Ḥibbān**, *Ṣaḥīḥ* (3/363–364), Nos. 1082–1083 – Book Of Purification, Regarding Rubbing The Arms During Wudu.
- **Al-Ḍiyā' Al-Maqdisī**, *Al-Aḥādīth Al-Mukhtārah* (9/365–369), Nos. 332–339.
- **Al-Ḥākim**, *Al-Mustadrak* (1/144, 161), Nos. 511, 580 – Book Of Purification, On Using Two-Thirds Of A Mudd For Wudu.
- **Ibn Mājah**, *Sunan* (1/282), No. 443 – Book Of Purification, Chapter: “The Ears Are Part Of The Head.”
- **Al-Bayhaqī**, *Al-Sunan Al-Kubrā* (1/196), Nos. 959–960 – Book Of Purification.
- **Aḥmad**, *Musnad* (7/3586, 10/5680), Nos. 16704, 24285 – In The Musnad Of The Anṣār And Companions Of Madīnah.
- **Al-Ṭayālīsī**, *Musnad* (2/423), No. 1195 – From ‘Abdullāh Ibn Zayd Ibn ‘Āṣim Al-Anṣārī.
- **Al-Ṭaḥāwī**, *Sharḥ Ma ‘Ānī Al-Āthār* (1/32), No. 141 – Book Of Purification, Chapter: The Ruling Of The Ears In Wudu.

Ibn Abi Shaybah Hadith 169

Narrated By Usman Ibn Affan:

- **Text:** “And Know That The Two Ears Are Part Of The Head.”
- **Isnad:**
 - *Yazid Ibn Harun* Narrated From *Al-Jurayri*, Who Narrated From *Urwah Ibn Qabisa*, From A Man From The Ansar, From His Father, From *Uthman* Who Said: “And Know That The Two Ears Are Part Of The Head.”
- **Status Of Isnad:** Weak (Isnad Da'if). The Narrator *Rajulun Min Al-Ansar* (A Man From The Ansar) Is Unknown.

Takhrij Of The Hadith:

- This Hadith Is Also Reported By Ahmad In His *Musnad* (1/145) No. 436, By Ibn Abi Shaybah In His *Musannaf* (1/267, No. 80), (1/295, No. 169), And By Al-Daraqutni In His *Sunan* (1/185, No. 367).

Sunan Al-Daraqutni, Vol. 1, Hadith 366

Narrated By Anas Ibn Malik:

- **Text:** “The Two Ears Are Part Of The Head.”
- **Isnad:**

- *Abd Al-Samad Ibn Ali* Narrated From *Al-Hasan Ibn Khalaf Ibn Sulayman Al-Jurjani*, Who Narrated From *Ishaq Ibn Ibrahim Al-Jurjani*, From *Affan Ibn Sayyar*, From *Abd Al-Hakam*, From *Anas Ibn Malik* Who Reported That The Messenger Of Allah (ﷺ) Said: “The Two Ears Are Part Of The Head.”
- *Abd Al-Hakam* Is Not To Be Trusted.
- This Narration Is Also Attributed To *Uthman Ibn Affan*.
- **Isnad Status:** Weak (Da'if). *Abd Al-Hakam* Is Considered Weak By Scholars.

Takhrij Of The Hadith:

- This Hadith Is Also Reported By Al-Tabarani In *Al-Awsat* (3/347, No. 3362) And *Al-Saghir* (1/201, No. 322), And By Al-Daraqutni In His *Sunan* (1/185, No. 366).

Sunan Al-Daraqutni, Vol. 1, Hadith 356

Narrated By Abu Musa Al-Ash'ari:

- **Text:** “The Two Ears Are Part Of The Head.” (Mawquf).
- **Isnad:**
 - *Ja'far Ibn Muhammad Al-Wasiti* Narrated From *Musa Ibn Ishaq*, From *Abd Allah Ibn Abi Shaybah*, From *Abd Al-Rahim Ibn Sulayman*, From *Ash'ath*, From *Al-Hasan*, From *Abu Musa* Who Said: “The Two Ears Are Part Of The Head.” (Mawquf).
 - This Narration Is Considered Weak Due To *Ash'ath Ibn Siwar*.

Takhrij Of The Hadith:

- This Hadith Is Also Reported By Al-Tabarani In *Al-Awsat* (4/241, No. 4084), By Ibn Abi Shaybah In His *Musannaf* (1/294, No. 159), And By Al-Daraqutni In His *Sunan* (1/180, No. 355), (1/181, No. 356).

Critical Notes On The Narrators:

- **Ibn Abi Shaybah:** Ibn Abi Shaybah Mentions That The Hadith Is Not Of Strong Evidence.
- **Ash'ath Ibn Siwar:** He Is Considered Weak By Many Scholars Such As *Ibn Hajar*, *Imam Ahmad Ibn Hanbal*, *Al-Nasa'i*, *Al-Daraqutni*, And Others. He Is Deemed Weak In His Narrations, With His Hadiths Not Being Widely Accepted Or Supported By Other Narrators.

Sunan Darqutni Hadith 329: Abdullah Ibn Umar Says, "The Ears Are Part Of The Head."

- **Isnad:**
حَدَّثَنَا عَلِيُّ بْنُ عَبْدِ اللَّهِ بْنِ مُبَشَّرٍ ، حَدَّثَنَا مُحَمَّدُ بْنُ حَرْبٍ ، حَدَّثَنَا عَبْدُ الْحَكِيمِ بْنُ مُنْصُورٍ ، حَدَّثَنَا غَيْلَانُ بْنُ عَبْدِ اللَّهِ ، عَنِ ابْنِ عُمَرَ .

(ح) وَحَدَّثَنَا أَحْمَدُ بْنُ عَبْدِ اللَّهِ النَّحَّاسُ ، حَدَّثَنَا الْحَسَنُ بْنُ عَرَفَةَ ، حَدَّثَنَا هُشَيْمٌ ، عَنْ عَيَّالَانَ بْنِ عَبْدِ اللَّهِ مَوْلَى بَنِي مَخْرُومٍ ، قَالَ : (سَمِعْتُ ابْنَ عُمَرَ يَقُولُ : الْأُذُنَانِ مِنَ الرَّأْسِ .

- **Isnad Grading:**

Sahih Li Zatihi (Authentic In Itself).

Imam Darqutni Has Declared **Ghaylan Bin Abdullah Mawla Banu Makhzum** As Trustworthy (Siqa).

Reference: "Mawsu'a Aqwal Abi Al-Hasan Al-Daraqutni Fi Rijal Al-Hadith Wa 'Ilalihi" (2/513):

"I Heard Al-Daraqutni Say That Ghaylan Bin Abdullah, From Ibn Umar, Is A Trustworthy Mawla Of Banu Makhzum."

- **Takhrij (Source):**

This Hadith Is Reported By Al-Daraqutni In His *Sunan* (1/169-172), By Abd Al-Razzaq In His *Musannaf* (1/11-12), And By Ibn Abi Shaybah In His *Musannaf* (1/294).

Sunan Darqutni Hadith 340: Aisha (RA) Says, "The Ears Are Part Of The Head."

- **Isnad:**

حَدَّثَنَا عَلِيُّ بْنُ الْفَضْلِ بْنِ طَاهِرٍ الْبَلْخِيُّ حَدَّثَنَا حَمَّادُ بْنُ مُحَمَّدٍ بْنِ حَفْصٍ بَيْلَخَ ، حَدَّثَنَا مُحَمَّدُ بْنُ الْأَزْهَرِ الْجَوَزْجَانِيُّ ، حَدَّثَنَا الْفَضْلُ بْنُ مُوسَى السَّيِّدَانِيُّ ، عَنْ ابْنِ جُرَيْجٍ ، عَنْ سُلَيْمَانَ بْنِ مُوسَى ، عَنْ الزُّهْرِيِّ ، عَنْ عُرْوَةَ ، عَنْ عَائِشَةَ رَضِيَ اللَّهُ عَنْهَا . قَالَ رَسُولُ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - : " مَنْ تَوَضَّأَ فَلْيَمِضْ وَلْيَسْتَنْشِقْ ، وَالْأُذُنَانِ مِنَ الرَّأْسِ " .

- **Isnad Grading:**

Da'if (Weak).

The Hadith Is Considered Weak Due To The Presence Of **Hammad Bin Muhammad Bin Hafs** In Balkh, Who Is Considered Weak In This Chain.

- **Alternative Narration:**

There Is Another Chain Found In **Sunan Darqutni 368:**

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ مُحَمَّدٍ بْنُ عَبْدِ الْعَزِيزِ ، حَدَّثَنَا طَالُوتُ بْنُ عَبَّادٍ ، حَدَّثَنَا الْيَمَانُ أَبُو حُدَيْفَةَ ، عَنْ عُمَرَ قَالَتْ : سَأَلْتُ عَائِشَةَ عَنِ الْأُذُنَيْنِ ، فَقَالَتْ : مِنَ الرَّأْسِ .

- **Isnad Grading:**

Da'if (Weak).

This Chain Is Weak Due To **Yaman Bin Al-Mughirah**.

- **Takhrij (Source):**

Reported By Darqutni, **Musannaf Abdul Razzaq**, And Ibn Abi Shaybah.

Musannaf Abdul Razzaq Hadith 31: Qatada Says, "The Ears Are Part Of The Head."

- **Isnad:**

عَبْدُ الرَّزَّاقِ عَنْ مَعْمَرٍ ، عَنْ قَتَادَةَ ، أَنَّهُ كَانَ يَمْسَحُ الْأُذُنَيْنِ ، وَيَقُولُ : الْأُذُنَانِ مِنَ الرَّأْسِ .

- **Isnad Grading:**

Sahih Li Zatihi (Authentic In Itself).

- **Takhrij (Source):**

This Narration Is Found In *Musannaf Abdul Razzaq* (1/11-12).

Musannaf Abdul Razzaq Hadith 36: Imam Amir Shabi Says, "The Ears Are Part Of The Face."

- **Isnad:**
عَبْدُ الرَّزَّاقِ عَنِ الثَّوْرِيِّ ، عَنْ مُطَرِّفٍ ، عَنِ الشَّعْبِيِّ قَالَ : مَا اسْتَقْبَلَ الْوَجْهَ مِنَ الْأُذُنَيْنِ فَهُوَ مِنَ الْوَجْهِ - يَقُولُ : يَغْسِلُهُ - وَظَاهِرُهُمَا مِنَ الرَّأْسِ.
- **Isnad Grading:**
Sahih Li Zatihi (Authentic In Itself).
- **Takhrij (Source):**
This Narration Is Also Reported In *Musannaf Abdul Razzaq*.

Musannaf Abdul Razzaq Hadith 38: Ata Says, "The Ears Are Part Of The Head."

- **Isnad:**
عَبْدُ الرَّزَّاقِ عَنِ ابْنِ جُرَيْجٍ قَالَ : قُلْتُ لِعَطَاءٍ : مِنْ أَيْنَ تَرَى الْأُذُنَيْنِ ؟ قَالَ : مِنَ الرَّأْسِ قَالَ : وَأَمْسَحُهُمَا مَعَ الْوَجْهِ كُلَّمَا أَفْرَغْتَ عَلَى وَجْهِهِ ، قُلْتُ : أَحَقُّ عَلَيَّ أَنْ أُخْرِجَ وَسَخَ الْأُذُنَيْنِ ؟ قَالَ : لَا .
- **Isnad Grading:**
Sahih Li Zatihi (Authentic In Itself).
- **Takhrij (Source):**
Found In *Musannaf Abdul Razzaq*.

Musannaf Ibn Abi Shayba 157: Sayyid Ibn Musayyib And Hasan Al-Basri Say, "The Ears Are Part Of The Head."

- **Isnad:**
حَدَّثَنَا عَبْدَةُ بْنُ سُلَيْمَانَ ، عَنْ سَعِيدٍ ، عَنْ قَتَادَةَ ، عَنْ سَعِيدِ بْنِ الْمُسَيَّبِ وَالْحَسَنِ قَالَا : الْأُذُنَانِ مِنَ الرَّأْسِ .
- **Isnad Grading:**
Sahih Li Zatihi (Authentic In Itself).

Musannaf Ibn Abi Shayba 158: Umar Ibn Abdul Aziz Says, "The Ears Are Part Of The Head."

- **Isnad:**
حَدَّثَنَا إِسْمَاعِيلُ بْنُ عِيَّاشٍ ، عَنْ عَمْرِو بْنِ مُهَاجِرٍ ، عَنْ عُمَرَ بْنِ عَبْدِ الْعَزِيزِ قَالَ : الْأُذُنَانِ مِنَ الرَّأْسِ .
- **Isnad Grading:**
Sahih Li Zatihi (Authentic In Itself).

Musannaf Ibn Abi Shayba 167: Muhammad Ibn Sireen Says, "The Ears Are Part Of The Head."

- **Isnad:**
حَدَّثَنَا أَبُو دَاوُدَ ، عَنْ عَبْدِ الْمَلِكِ بْنِ مَيْسَرَةَ عَنْ ابْنِ سِيرِينَ قَالَ : الْأُذُنَانِ مِنَ الرَّأْسِ .

- **Isnad Grading:**
Rijaal Siqa (The Narrators Are Trustworthy).

Musannaf Ibn Abi Shayba 168: Sayyid Ibn Jubair Says, "The Ears Are Part Of The Head."

- **Isnad:**
حَدَّثَنَا عَبْدُ الْحَمِيدِ بْنُ عَبْدِ الرَّحْمَنِ الْجَمَّانِيُّ ، عَنْ إِسْمَاعِيلَ بْنِ عَبْدِ الْمَلِكِ ، عَنْ سَعِيدِ بْنِ جُبَيْرٍ قَالَ : الْأُذُنَانِ مِنَ الرَّأْسِ .
- **Isnad Grading:**
Da'if (Weak).
In This Chain, **Ismail Bin Abdul Malik** Is Unanimously Considered Weak.

Musannaf Ibn Abi Shayba 170: Husain Ibn Abdullah Rahman Asked Ibrahim Al-Nakhi Whether To Wipe The Ears With The Head Or With The Face. He Said, "With Both."

- **Isnad:**
حَدَّثَنَا ابْنُ فَضَيْلٍ ، عَنْ حُصَيْنٍ ، عَنْ إِبْرَاهِيمَ قَالَ : سَأَلْتُهُ عَنْ مَسْحِ الْأُذُنَيْنِ مَعَ الرَّأْسِ أَوْ مَعَ الْوَجْهِ ، فَقَالَ : مَعَ كُلِّ .
 - **Isnad Grading:**
Sahih Li Zatihi (Authentic In Itself).
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Evidence Of Those Who Say The Ears Are A Separate Organ In Wudu

Mustadrak Al-Hakim, Hadith 540

‘Abdullāh Ibn Zayd Said:

"I Saw The Messenger Of Allah ﷺ Performing Wudu. He Took Water Separately For His Ears, Other Than The Water With Which He Wiped His Head."

Arabic Text:

"رَأَيْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَآلِهِ وَسَلَّمَ يَتَوَضَّأُ فَأَخَذَ مَاءً لِأُذُنَيْهِ خِلَافَ الْمَاءِ الَّذِي مَسَحَ بِهِ رَأْسَهُ"

Al-Hakim Said: This Hadith Is *ṣaḥīḥ* (Authentic) According To The Criteria Of Al-Bukhārī And Muslim — **If** It Is Safe From The Defect Introduced By Ibn Abī ‘Ubaydillah. Otherwise, Both Al-Bukhārī And Muslim Have Accepted All Its Narrators.

Isnād Criticism (Chain Weakness)

One Of The Narrators In The Chain Is **Al-Ḥusayn Ibn ‘Alī Ibn Al-Aswad**, And He Is **Weak** (*da‘īf*):

- **Ibn Ḥibbān:** *"He Often Makes Mistakes"* (Al-Thiqāt 8/190).
- **Ibn Ḥajar:** *"Truthful But Makes Many Mistakes"* (Taqrīb Al-Tahdhīb 1/248).

- **Ibn ‘Adī:** Declared Him Weak.
- **Abū Ḥātim:** Said He Is Truthful, But **Ibn ‘Adī And Others** Declared Him Weak (Al-Kāshif 2/285).
- **Imām Aḥmad Ibn Ḥanbal:** *“I Do Not Know Him.”* (Tahdhīb Al-Tahdhīb 1/425).
- **Imām Al-Azdi:** *“Very Weak, People Criticize His Hadith.”*
- **Imām Abū Dāwūd:** *“I Do Not Rely On His Reports; I Consider Them Illusions.”* He Likely Did Not Narrate From Him Since He Narrated Only From Reliable Narrators.

Other Versions Of The Hadith (With Authentic Chains)

Another Sanad In Al-Hakim Reports The Same Hadith From ‘Abdullāh Ibn Zayd:

“The Prophet ﷺ Wiped His Ears With Water Other Than That Used To Wipe His Head.”

However, This Version **Does Not Contain** The Specific Wording That *He Took New Water For The Ears*. Scholars Regard **This Version As More Authentic**.

Problem With The Version That Mentions Taking Separate Water For The Ears

Many Trustworthy Narrators Have Transmitted The Same Hadith From **Ibn Wahb** Through **The Same Isnād** — But **Without** The Wording “He Took New Water For His Ears.” Instead, They Report:

“The Prophet ﷺ Wiped His Head With Water Other Than The Remaining Water On His Hands.”

This Version Does Not Mention Ears At All.

Those Who Narrated The Version Without The Mention Of Ears Include:

1. Hārūn Ibn Ma‘Rūf (Ṣaḥīḥ Muslim 236)
2. Hārūn Ibn Sa‘īd Al-Aylī (Ṣaḥīḥ Muslim 236)
3. Abū Al-Ṭāhir Aḥmad Ibn ‘Amr Ibn Al-Sarraḥ (Ṣaḥīḥ Muslim 236)
4. ‘Alī Ibn Khushram (Jāmi‘ Al-Tirmidhī 35)
5. Aḥmad Ibn ‘Abd Al-Raḥmān Ibn Wahb (Ṣaḥīḥ Ibn Khuzaymah 164)
6. Ḥajjāj Ibn Ibrāhīm Al-Azraq (Mustakhraj Abī ‘Awānah 750)
7. Aṣbagh Ibn Al-Faraj (Al-Tārīkh Al-Kabīr 3/112)
8. Surayj Ibn Al-Nu‘Mān (Musnad Aḥmad 16467)

All Of Them Narrated It From **Ibn Wahb**, From ‘**Amr Ibn Al-Ḥārith**, From **Ḥabbān Ibn Wāsi‘**, From **His Father**, From ‘**Abdullāh Ibn Zayd** — With The Wording:

“I Saw The Prophet ﷺ Performing Wudu One Day, And He Wiped His Head With Water Other Than The Leftover From His Hands.”

None Of Them Mentioned That He Took New Water For His Ears.

Scholarly Judgements

- **Imām Al-Bayhaqī:**

“This Version (Without Mention Of Ears) Is More Authentic Than The Previous One.”
(Dīwān Al-Sunnah – Section Of Ṭahārah 13/107)

- **Imām Muslim** Based His Narration On The Version Without Mention Of Ears And **Did Not Rely** On The Version With It.
- **Adnān Ibn Muḥammad Al-‘Ar‘ūr** Said That Ibn Ḥajar Implied This Version Is **Shādh** (Anomalous).
(See: *Al-Talkhīṣ Al-Ḥabīr* 1/157)
- **Ibn Ḥajar** Further Commented:

“The Version Reported By Bayhaqī Is The Preserved One (*Maḥfūz*), While The One With ‘He Took New Water For Ears’ Is Shādh.”
(*Bulūgh Al-Marām*, Hadith 42)

- **Shaykh Al-Albānī:**

“This Hadith Is Shādh And Not Authentic. The Preserved Version Is: ‘He Wiped His Head With Water Other Than What Remained On His Hands.’”
(*Al-Ṣaḥīḥah* 1/905)

- **Mubārakfūrī:**

“I Found No Authentic Marfū‘ Hadith Free From Criticism Proving That The Prophet ﷺ Took New Water For Wiping The Ears.”
(*Tuḥfat Al-Aḥwadhī* 1/122)

- **Shaykh Ibn ‘Uthaymīn:**

“This Hadith Is Shādh Because It Contradicts The Narration In Muslim, And All Those Who Described The Prophet’s Wudu Did Not Mention That He Took New Water For His Ears.”
(*Sharḥ Al-Mumtī‘* 1/178)

Muwatta Malik – Hadith 92:

‘Abdullah Ibn ‘Umar Used To Take Water With Two Fingers For Wiping His Ears
Al-Muwatta Of Imam Malik – Narrated By Yahya (2/46, Edited By Al-A'zami):

“Mālik, From Nāfi‘, That ‘Abdullāh Ibn ‘Umar Used To Take Water With His Two Fingers For His Ears.”

(This Is Ṣaḥīḥ Li Dhātihi – Authentic In And Of Itself.)

Ibn Al-Qayyim Said:

“...The Prophet ﷺ Would Wipe His Ears Along With His Head, Wiping Both Their Inner And Outer Parts. However, It Is Not Established From Him That He Took Fresh Water Specifically For The Ears.

Rather, What Is Authentically Established Is That *Ibn ‘Umar* Did So.”

Zād Al-Ma‘ād (1/187)

Mubārakpūrī Stated:

“I Have Not Come Across Any Marfū‘ (Prophetic) ḥadīth That Is Authentic And Free Of Issues, Which Proves The Wiping Of The Ears With Fresh Water. However, This Has Been Authentically Reported As A Mawqūf Narration (Statement Of A Companion) From *Ibn ‘Umar* In *Al-Muwatta’*’.

Imām Mālik Narrated In His *Muwatta’* From Nāfi‘, That ‘Abdullāh Ibn ‘Umar Used To Take Water With His Two Fingers For His Ears. And Allāh Knows Best.”

Tuhfat Al-Aḥwadhī (1/122)

Those Who Consider The Ears To Be A Separate Organ (From The Head) Use These Narrations As Evidence.

They Argue:

“If The Ears Were Not A Separate Body Part (For Purification), Then The Prophet ﷺ Would Not Have Taken Fresh Water Specifically For Them.”

Those Who Say That The Ears Are Part Of The Face Cite The Following Evidence:

Ṣaḥīḥ Ibn Ḥibbān, Volume 5, Ḥadīth 1977:

‘Alī Ibn Abī Ṭālib Said:

“When The Messenger Of Allāh ﷺ Would Go Into *Sujūd* (Prostration), He Would Say:

‘O Allāh, I Prostrate Before You, I Believe In You, And I Submit To You.

My Face Has Prostrated To The One Who Created It And Fashioned It, And Perfected Its Form, And Who Opened Up My Hearing And My Sight. So Blessed Is Allāh, The Best Of Creators.’”

Arabic Text Of The ḥadīth:

أَخْبَرَنَا عَبْدُ اللَّهِ بْنُ مُحَمَّدٍ قَالَ: حَدَّثَنَا إِسْحَاقُ بْنُ إِبْرَاهِيمَ قَالَ: أَخْبَرَنَا هَاشِمُ بْنُ الْقَاسِمِ قَالَ: حَدَّثَنَا عَبْدُ الْعَزِيزِ بْنُ عَبْدِ اللَّهِ بْنِ أَبِي سَلَمَةَ عَنْ عَمِّهِ الْمَاجِشُونِ، عَنِ الْأَعْرَجِ، عَنْ عُبَيْدِ اللَّهِ بْنِ أَبِي رَافِعٍ، عَنْ عَلِيِّ رَضِيَ اللَّهُ عَنْهُ قَالَ: كَانَ رَسُولُ اللَّهِ ﷺ إِذَا سَجَدَ قَالَ: اللَّهُمَّ لَكَ سَجَدْتُ، وَلَكَ أَمْنْتُ، وَلَكَ أَسْلَمْتُ، سَجَدَ وَجْهِي لِلَّذِي خَلَقَهُ وَصَوَّرَهُ، فَأَحْسَنَ صُورَهُ، وَشَقَّ سَمْعَهُ وَبَصَرَهُ، فَتَبَارَكَ اللَّهُ أَحْسَنُ الْخَالِقِينَ.

(Isnād Ṣaḥīḥ – Chain Is Authentic)

Their Reasoning:

They Argue That Since The Prophet ﷺ Combined “Hearing” (Sam‘) And “Sight” (Baṣar) In This ḥadīth, And Since **Sight (The Eyes) Is Unanimously A Part Of The Face**, This Combination Implies That **The Ears (Hearing) Are Also Included In The Face**.

As Mentioned In:

“Bughyat Al-Muqtasid – Sharḥ Bidāyat Al-Mujtahid” (1/199):

“Secondly, The ḥadīth That Is Authentically Established From The Prophet ﷺ In Which He Used To Say In His Prostration:

‘My Face Has Prostrated To The One Who Created And Shaped It, And Opened Its Hearing And Its Sight.’

They Said: His Combining Between Hearing And Sight Is A Proof That Both Are Located In The Same Area, And That The Ears Are Part Of The Face — Because Sight Is Clearly In The Face (I.E. The Eyes Through Which One Sees), So Linking Hearing With It Is A Sign That Hearing (I.E. The Ears) Also Follow The Face.”

Those Who Say That The Front Part Of The Ear Is From The Face And The Back Part Is From The Head Present The Following Evidence:

Muḥammad Ibn Ḥamūd Al-Wā’Ilī Said:

“There Is An Athar (Report) From ‘**Alī Ibn Abī Ṭālib** In Which It Is Mentioned That He Used To Wipe The Back Of His Ears.”

Then He Says: “However, This **Athar Is Weak**.”

(*Bughyat Al-Muqtasid – Sharḥ Bidāyat Al-Mujtahid* 1/199)

I Personally Did Not Find This Narration From ‘Alī – And Allah Knows Best.

This Is A Matter Of Scholarly Disagreement. The Positions Can Be Divided Into **Four Main Groups**:

1. The Majority Of Jurists And Scholars

- They Say That **The Ears Are Part Of The Head**, Not A Separate Organ.
- Among Them, There Is **Disagreement** About Whether One Should Take **New Water** For Wiping The Ears:
 - **Some Say**: No Need To Take New Water.
 - **Others Say**: One Should Take Fresh Water Specifically For The Ears.

2. The Shāfi‘īs

- They Say: **The Ears Are A Separate Organ**, So **New Water Must Be Taken** To Wipe Them.

3. Those Who Say The Ears Are Part Of The Face

- Like **Al-Zuhrī** And Others.

4. Those Who Say The Front Of The Ear Is From The Face And The Back Is From The Head

It's Important To Note:

Saying That **The Ears Are From The Head** Does **Not** Mean This Is In A **Literal Physical Sense**. If That Were The Case, Then **Wiping Only The Ears** Would Be Sufficient **Without** Wiping The Head. But It Is Agreed Upon (Ijmā‘) That **Wiping The Head Is Obligatory**, So When We Say The Ears Are "From The Head", It Means They Fall **Under The Ruling** Of The Head In Terms Of Wiping (Mash‘).

On Taking New Water For Wiping The Ears:

- **Mālikīs, Shāfi‘īs, And Ḥanbalīs** Agree That **Fresh Water Should Be Taken** For Wiping The Ears.
- **Ḥanafīs** Say: **New Water Is Not To Be Taken** For The Ears.

As Stated In:

Bughyat Al-Muqtasid – Sharḥ Bidāyat Al-Mujtahid (1/202):

“So There Is Disagreement Over The Classification Of The Ears And Whether To Use Fresh Water For Them.

*The Three Imams (Mālik, Aḥmad, And Abū Ḥanīfah) Agree That The Ears Are From The Head. However, Abū Ḥanīfah Differs From The Mālikīs And Ḥanbalīs By Saying **Fresh Water Is Not Required** For Them.”*

Ḥanafīs Say That Not Taking New Water Is **Recommended (Mustaḥabb)**:
From **Al-Mabsūṭ** By Al-Sarakhsī (1/7):

“Then He Wipes Over His Head And Ears Once. Completing The Sunnah Is To Wipe Over The Whole Head.

*The Sunnah Is To Wipe Once With **One Amount Of Water** According To Us.”*

Shāfi‘īs Say That Taking New Water Is **Sunnah**:
From **Al-Ḥāwī** By Al-Māwardī (1/120):

*“Imām Al-Shāfi‘ī Said: He Should Wipe His Ears — Their Outer And Inner Parts — With **Fresh Water**, And He Should Insert His Fingers Into The Ear Canal.
Al-Māwardī Said: This Is Correct — Wiping The Ears Is Sunnah.”*

Mālikī Madhhab – It Is Well Known And Correct In Mālikī Books That **Wiping The Ears Is Sunnah**, And Its Ruling Is Like **Rinsing The Mouth** And **Putting Water In The Nose** During Wudū’.

From **Al-Risālah** By Ibn Abī Zayd Al-Qayrawānī (P. 15):

“Wiping The Ears Is Sunnah.”

Summary Of The Issue

The Ruling On Wiping The Ears in Wudū’

Brief Explanation:

The main issue discussed is whether wiping the ears during wudū’ is a Sunnah (recommended act) or a Wājib (obligatory act). This has implications on the validity of ablution and prayer.

Evidence from the Text:

- Qur’anic Verse: Sūrah al-A‘rāf (7:150) interpreted as indicating the ears are part of the head.
- Ḥadīth: "The ears are part of the head" – reported from multiple chains including Ibn ‘Abbās and Abū Umāmah, though many chains are weak.
- Ibn Mājah 443 from ‘Abdullāh ibn Zayd is cited as authentic (ḥadīth ḥasan li-dhātihi).

Madhhab (School of Thought) Views:

- **Ḥanafī:** Wiping the ears is Sunnah. This includes prominent scholars like Abū Ḥanīfah, Muḥammad, Al-Sarakhsī, Al-Kāsānī.
- **Mālikī:** Sunnah. Included are Imām Mālik, Ibn Barazī, Al-Qarāwānī, Ibn Ḥājib.
- **Shāfi‘ī:** Sunnah. Though they consider the ears to be independent limbs, not part of the head.
- **Ḥanbalī:** Mixed views.
 - One view: Sunnah – Imām Aḥmad in one narration.
 - Other view: Wājib – Supported by Ibn Qudāmah and Abū Khalīl.

Sub-Issue: Are the ears part of the head, face, or independent?

- Majority (Jumhūr): Part of the head – Ḥanafīs, Mālikīs, and Ḥanbalīs.
- Shāfi‘ī: Independent organs.
- Al-Zuhrī: Part of the face.
- Al-Sha‘bī and Ḥasan ibn Ṣāliḥ: Front part = face, back part = head.

Sub-Issue: Hadith Validity and Strength

- Most hadiths stating "ears are part of the head" are weak.
- The strongest hadith is from Ibn Mājah (443) via ‘Abdullāh ibn Zayd – considered ḥasan or ḥasan li-dhātihi.
- Others are mawqūf or weak due to problematic narrators or inconsistencies.

Conclusion :

- **Wiping The Ears Is Sunnah** – This Is The Position Of The Majority: **Ḥanafīs, Shāfiʿīs, Mālikīs**, Etc.
- All four schools (in reliable views) treat wiping the ears as Sunnah
- The Ears Are To Be Wiped **Along With The Head** because it is a part of Head.
- As For **Taking Fresh Water** For Wiping The Ears:
 - It Is **Not Established** From The **Messenger Of Allah ﷺ** Himself.
 - But It **Is Authentically Reported** From **Ibn ʿUmar** (May Allah Be Pleased With Him).

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 08 – Washing The Feet In Wudu (Ablution)

Among The **Fuqahā’** (Jurists) And **Scholars**, There Is **No Difference Of Opinion** That The **Two Feet Are Among The Limbs Of Wudu**, And That **Purification Is Obligatory** For Them. The **Disagreement Lies Only In How** That Purification Should Be Performed – Should The Feet Be Washed Or Wiped?

I Would Say: So Few **People** Have Disagreed In This Matter That When **Other Scholars, Hadith Experts, And Jurists** Authored Books On **Ijmā’** (Scholarly Consensus), They Wrote That **Washing The Feet In Wudu Is Agreed Upon With No Difference Of Opinion**.

Among Them, **Imām Ibn ‘Abd Al-Barr** Wrote In His Book *Al-Tamhīd*:

“The Scholars Have Unanimously Agreed That Washing The Face And The Hands Up To The Elbows, The Feet Up To The Ankles, And Wiping The Head – All Of This Is Obligatory.”
(*Al-Tamhīd*, 4/31)

Similarly, **Ibn Ḥazm** Also Recorded This In His Book *Marātib Al-Ijmā’* (P. 19).

This Clearly Shows That **Those Who Claimed The Feet Should Be Wiped Instead Of Washed** Hold A **Rejected And Anomalous Opinion (Shādh)**. This **Disagreement Existed Early On**, But Later, Among **Ahl Al-Sunnah**, **No Difference Of Opinion Remained** On This Issue. The Fact That This Ruling Is Recorded In Books Of **Ijmā’** Indicates Its Long-Standing Consensus.

However, We Are Discussing This Issue In Detail So That **People May Fully Understand** The Background Of This Disagreement And How **A Segment Of The Ummah Eventually Abandoned** That Weaker View.

There Are Four Main Views On This Issue:

1st View:

Feet Must Be Washed In Wudu.

This Is The **Madhhab Of Nearly All The Fuqahā’ And Muḥaddithīn**.

Most Scholars, When Mentioning This Issue, State That **There Is Consensus (Ijmā’)** Or **Agreement (Ittifāq)** On It.

This Includes **Imām Nawawī, Muḥammad Ibn Ḥamūd Al-Wā’Ilī, Ibn Ḥazm, Ibn ‘Abd Al-Barr**, And Others.

In *Bughyat Al-Muqtasid – Sharḥ Bidāyat Al-Mujtahid* (1/213), It Says:

“We Can Describe This View As The Consensus Of The Scholars. Imām Al-Nawawī, May Allah Have Mercy On Him, When Mentioning This Issue, Began By Saying: ‘The Scholars Have Unanimously Agreed...’”

In *Sharḥ Muslim* By Imām Al-Nawawī (3/107):

“The Scholars Have Unanimously Agreed On The Obligation Of Washing The Face, The Hands, And The Feet, And Of Fully Washing All Of Them.”

This Was Also The View Of The **Four Imāms**:

- **Abū Ḥanīfah** And The **Ḥanafīs**,
- **Mālik Ibn Anas** And The **Mālikīs**,
- **Muḥammad Ibn Idrīs Al-Shāfi‘ī** And The **Shāfi‘īs**,
- **Aḥmad Ibn Ḥanbal** And The **Ḥanbalīs**.

The Well-Known Tābi‘ī ‘**Abd Al-Raḥmān Ibn Abī Laylā** Stated That There Was **Ijmā‘** Among The **Companions** Of The Prophet ﷺ That They **Washed Their Feet In Wudu**.

In *Bughyat Al-Muqtasid* (1/213):

“The Well-Known Tābi‘ī ‘Abd Al-Raḥmān Ibn Abī Laylā Said Regarding This: ‘The Companions Of The Messenger Of Allah Agreed On Washing The Feet.’”

Ibn Ḥajar Al-‘Asqalānī Also Discussed This In His *Fath Al-Bārī* (Commentary On Ṣaḥīḥ Al-Bukhārī), And Elaborated On It:

As Cited In *Bughyat Al-Muqtasid* (1/213):

“Al-Ḥāfiẓ Ibn Ḥajar, In *Fath Al-Bārī* (1/266), Attributed It To Sa‘īd Ibn Manṣūr In His *Sunan*, Where It Is Said:

‘Multiple Authentic Narrations From The Prophet ﷺ Clearly Show That He Washed His Feet In Wudu...

And It Is Not Authentically Established From Any Of The Companions That They Differed In This, Except From ‘Alī, Ibn ‘Abbās, And Anas – And It Has Been Confirmed That They Retracted That View.

‘Abd Al-Raḥmān Ibn Abī Laylā Said: The Companions Of The Messenger Of Allah ﷺ Unanimously Agreed On Washing The Feet.’ Reported By Sa‘īd Ibn Manṣūr.”

2nd View:

This Is The View Of The **Shi‘Ah**, Who Say That In Wudu, **The Feet Should Be Wiped (Mash)** Instead Of Washed.

This Opinion Is **Weak And Rejected**, And Many **Jurists** Have Responded To It.

They Base Their View On A ḥadīth In Which It Is Said That The Messenger Of Allah ﷺ Wiped Over His Feet During Wudu.

Narration Regarding Wiping Over The Feet In Wudu – Analysis Of A Report From Al-Mu‘Jam Al-Kabīr

In Al-Mu‘Jam Al-Kabīr Of Al-Ṭabarānī, Volume 1, Ḥadīth 604, It Is Narrated That:

Aws Ibn Abī Aws Said: "I Saw The Messenger Of Allah ﷺ Performing Wudu, And He Wiped Over His Two Feet."

Arabic:

حَدَّثَنَا مُحَمَّدُ بْنُ عَبْدِ اللَّهِ الْحَضْرَمِيُّ، ثَنَا عُثْمَانُ بْنُ أَبِي شَيْبَةَ، ثَنَا هُشَيْمٌ، عَنْ يَعْلَى بْنِ عَطَاءٍ، عَنْ أَبِيهِ، عَنْ أُوسِ بْنِ أَبِي أُوسٍ، قَالَ: رَأَيْتُ النَّبِيَّ ﷺ أَتَى كِطَامَةً - يَعْنِي مَطْهَرَةً - فَتَوَضَّأَ وَمَسَحَ عَلَى قَدَمَيْهِ.

(This ḥadīth Is Classified As Weak – Ḥadīth Ḍa‘īf)

Reason For Weakness:

In Its Chain Of Narration Is ‘Aṭā’, Who Is *Majhūl* (Unknown). Ibn Al-Qaṭṭān And Others Considered Him *Majhūl Al-ḥāl* (Unknown In Status):

Abū Al-Ḥasan Ibn Al-Qaṭṭān Said: "He Is Unknown In Condition; No One Narrated From Him Except His Son Ya‘Lā."

Al-Dhahabī Agreed In *Al-Mīzān*.

Source: *Tahdhīb Al-Tahdhīb* (3/111)

Analysis Of Variations In The Chain (Turuq):

The Primary Narrator Is **Ya‘Lā Ibn ‘Aṭā**. The Content Of The Narration Changes Depending On Which Narrator Transmits From Him.

1. Via Hushaym Ibn Bashīr:

The Wording Is:

"He Wiped Over His Two Feet During Wudu."

Narrated By Al-Ṭabarānī In *Al-Mu‘Jam Al-Kabīr* (Mentioned Above).

2. Via Hammād Ibn Salamah Ibn Dīnār:

The Wording Is:

"Ya‘Lā Ibn ‘Aṭā Said: I Saw My Father Perform Wudu And Wipe Over His Sandals. I Asked Him, ‘Do You Wipe Over Your Sandals?’ He Replied: ‘I Saw The Messenger Of Allah ﷺ Perform Wudu And

Wipe Over His Sandals. '"

Narrated By **Imām Al-Ṭahāwī** In *Sharḥ Ma'Ānī Al-Āthār*, Vol. 1, Ḥadīth 613.

3. Via Sharīk Ibn 'Abdullāh:

The Wording Is:

"The Messenger Of Allah ﷺ Wiped Over His Sandals."

Narrated By **Ibn Abī Shaybah** In *Al-Muṣannaf*, Vol. 2, Ḥadīth 2009.

4. Via Hushaym Ibn Bashīr Again:

In This Narration, The Wording Is:

"The Messenger Of Allah ﷺ Wiped Over His Sandals And His Feet."

Narrated By **Imām Abū Dāwūd** In *Sunan Abī Dāwūd*, Vol. 1, Ḥadīth 160.

Arabic:

"فَتَوَضَّأَ وَمَسَحَ عَلَى نَعْلَيْهِ وَقَدَمَيْهِ"

Note: Hushaym Also Narrates Elsewhere Only Wiping Over The Feet Without Mention Of Sandals, Again In The Version Of Al-Ṭabarānī Cited Earlier.

5. Via Shu'bah Ibn Al-Ḥajjāj:

The Wording Is:

"The Messenger Of Allah ﷺ Wiped Over His Sandals, Then Stood For Prayer."

Narrated By **Imām Aḥmad** In *Al-Musnad*.

Arabic:

"رَأَيْتُ رَسُولَ اللَّهِ ﷺ تَوَضَّأَ، وَمَسَحَ عَلَى نَعْلَيْهِ، ثُمَّ قَامَ إِلَى الصَّلَاةِ"

Observations On Tadlees (Obfuscation In Transmission):

Wherever The Wiping Over The Feet (Without Mention Of Sandals) Is Reported, The Narrator **Hushaym** Is Involved, Who Is Known For **Tadlīs** (Ambiguous Narration). However, In Some Reports, He Clearly States He Heard It (I.E., With *ṣarīḥ Al-Samā'*), Such As:

Tafsīr Al-Ṭabarī (10/75):

"Al-Ḥārith Reported: Al-Qāsim Ibn Sallām Narrated To Us: Hushaym Narrated To Us, From Ya' Lā Ibn 'Atā', From His Father, From Aws Ibn Abī Aws: 'I Saw The Messenger Of Allah ﷺ Go To A Place For Purification, Perform Wudu, And Wipe Over His Feet.'"

Second Point: There Is Also *Idtirāb* (Inconsistency) In The *Matn* (Text) Of The Hadith.

Third Point: The Actual Origin Of This Narration Pertains To The *Mash* (Wiping) Over *Khuffayn* (Leather Socks), But Due To An Error From The Narrator, An Addition Was Made Referring To The Feet Along With The *Na 'Layn* (Sandals). The Reason For This Is That Imām Ṭaḥāwī Mentioned This Very Hadith In *Sharḥ Ma 'Ānī Al-Āthār* (Vol. 1, Hadith 614), Where The Narration Clearly States That The Prophet ﷺ Performed *Mash* Over His *Na 'Layn*, Which Is A Well-Known Report:

Sharḥ Ma 'Ānī Al-Āthār, 1/97, Hadith 614:

ḥaddathanā Fahd, Qāla: Thana Muḥammad Ibn Sa 'Īd, Qāla: Anā Sharīk, 'An Ya 'Lā Ibn 'Aṭā', 'An Aws Ibn Abī Aws, Qāla: "Kuntu Ma 'A Abī Fī Safar, Wa Nazalnā Bi-Mā' In Min Miyāh Al-A 'Rāb, Fabāla Fatawaḍḍa 'A, Wa Maṣḥa 'Alā Na 'Layhi."

Commentary By Abū Ja 'Far Al-Ṭaḥāwī: He Stated That Just As People Perform *Mash* Over *Khuffayn*, A Group Holds The Opinion Of Doing *Mash* Over *Na 'Layn* As Well, And Their Basis Is The Narration Attributed To 'Alī (Raḍiyallāhu 'Anhu):

"A Group Permitted *Mash* Over Sandals Just As One Wipes Over Leather Socks, Saying That This Is Supported By What Has Been Narrated From 'Alī (May Allah Be Pleased With Him)."

Furthermore, Some Scholars Have Stated That This Practice Occurred During The Early Period Of Islam:

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/214):

"They Rejected Their Argument Based On The Hadith That The Prophet ﷺ Came To A Water Source And Performed Wudū' And Wiped Over His Sandals And Feet — Saying That This Only Occurred In The Early Period Of Islam, And We Have Discussed This In Detail."

The Primary Narrator Who Reports The *Mash* Over The Feet Is Hushaym (Hishām), Who Himself Acknowledged:

Ṣaḥīḥ Sunan Abī Dāwūd, Edited By Gharās (1/283):

"Hushaym Said: This Was In The Early Period Of Islam."

Many Scholars Declared This Hadith Weak (ḍa 'Īf):

Including:

- 'Adnān Ibn Muḥammad Al-'Ar 'Ūr
- Imām Al-Bayhaqī
- Ibn 'Abd Al-Barr
- Al-Hāzmī
- Ibn Al-Qaṭṭān
- Al-'Azīmābādī

Further Details On This Hadith's Weakness:

Its Chain Is Weak Due To The Unknown Status (*Jahālah Al-ḥāl*) Of Ya 'Lā's Father, 'Aṭā' Al-'Āmirī. No One Narrated From Him Besides His Son Ya 'Lā. Ibn Al-Qaṭṭān Said: "He Is *Majhūl Al-ḥāl*, None Narrates From Him Except His Son Ya 'Lā."

Al-Dhahabī Followed This Statement In *Al-Mīzān*, And Ibn Ḥajar Said In *Al-Taqrīb*: “He Is *Maqbūl*” (Acceptable Only When Corroborated).

Moreover, There Is Inconsistency In The Narration From Ya‘Lā. Hushaym Is Followed By Shu‘Bah (See Hadith No. 16158), And Also Narrated By Ḥammād Ibn Salamah (16165), And Sharīk (16168, 16181), All From Ya‘Lā Ibn ‘Aṭā’, From Aws Ibn Abī Aws, From His Father. In These Chains, They Omit The Father Of Ya‘Lā And Narrate The Hadith Directly From Aws Ibn Abī Aws From His Father.

It Was Also Reported By Al-Mizzī In *Tahdhīb Al-Kamāl* (20/134) Through The Chain Of Imām Aḥmad.

This Narration Is Found In:

- Abū Dāwūd (160)
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/286, Hadith 1381 & 1382)
- Imām Aḥmad In *Al-Musnad* (7/3509, Hadith 16407; 7/3510, Hadith 16409; 7/3513, Hadith 16419)
- Al-Ṭayālīsī (2/436, Hadith 1209)
- Ibn Abī Shaybah In *Al-Muṣannaḥ* (2/279, Hadith 2009)
- Al-Ṭaḥāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/96, Hadith 613; 1/97, Hadith 614)
- Al-Ṭabarānī In *Al-Mu‘jam Al-Kabīr* (1/221–222, Hadith 603, 607, 608)
- Al-Ḥāzmī In *Al-I‘tibār* (P. 61)

Linguistic Note By Al-Sindī (In Sharḥ Sunan Abī Dāwūd):

The Phrase “*Kizāmat Qawm*” Refers To Underground Water Channels That Are Interconnected And Eventually Flow Out Onto The Surface Of The Land.

Legal Ruling:

Washing The Feet In Wudū’ Is Obligatory, Not Wiping Them. Scholars Have Pointed Out One Reason: The Feet Are Most Susceptible To Physical Impurity Due To Walking, And This Impurity Cannot Be Properly Removed By Merely Wiping Without Washing.

3rd Opinion

The Third Opinion Is Of Those Who Say That Both *Washing* And *Wiping* The Feet In Wudū’ Are Permissible. Some Claim This Is The Madhhab (School Of Thought) Of **Imām Ibn Jarīr Al-Ṭabarī**, But The Reality Is That Imām Al-Ṭabarī Only Stated That There Is A *Choice* Between The Two Qirā’āt (Variant Recitations Of The Qur’ān). The Recitation With **Nasb** (Accusative Form: *Wa Arjulakum*) Indicates Washing The Feet, While The Recitation With **Khafd** (Genitive Form: *Wa Arjulikum*) Indicates Wiping Over Them. Both Recitations Are Authentically Transmitted, And Thus A Person Has The Choice Between Them.

Al-Ṭabarī Says In His *Tafsīr* (10/63):

"The Correct View Regarding The Recitation In The Accusative (Nasb) Is Due To Its General Implication That Water Is Passed Over The Feet (I.E., Washing). The Correctness Of The Recitation In The Genitive (Khafd) Is Because Of Its Implication That The Hand, Or What Takes Its Place, Is Passed

Over The Feet (I.E., Wiping). Though Both Are Valid And Correct Recitations, The Recitation That I Personally Prefer Is The One In The Genitive (Khafd) Because It Combines Both Meanings Of Wiping That I Have Described."

However, This Statement Of Ibn Jarīr Al-Ṭabarī Is Rejected By The Existence Of **Numerous ḥadīths** And A **Clear Statement Of The Messenger Of Allah ﷺ** Indicating A Direct Command. There Is Nass (Explicit Text) On The Matter. The Messenger Of Allah ﷺ Said:

"Woe To The Heels From The Hellfire!"

This Is A Famous ḥadīth Narrated By **Al-Bukhārī (60)** And **Muslim (241)**.

4th Opinion

The Fourth Opinion Is Of Those Who Say That *Both Washing And Wiping The Feet Are Obligatory* In Wudū'. This Is The View Of **Some Of The Zāhirīs** (Literalist School).

As Stated In *Al-Muḥallā* By Ibn Ḥazm (1/301).

However, **Dāwūd Al-Zāhirī** And Most Of The Zāhirī Scholars Are Of The View That **Washing** The Feet Is Obligatory, Just As The Rest Of The Scholars Have Said.

Cause Of Disagreement

The Disagreement Arises Due To **Two Famous Methods Of Recitation** Of The Qur'ānic Verse Of Wudū':

1. *Wa Arjulakum* (نَصْب - Accusative), Which Links The Feet To The Command Of Washing.
2. *Wa Arjulikum* (خَفْض - Genitive), Which Links The Feet To The Command Of Wiping.

All Of The Major *Fuqahā'* (Jurists) Adopt The Recitation *Wa Arjulakum* With **Faṭḥah** (Nasb).

Ibn Zanjalah Writes In His *Hujjat Al-Qirā'āt* (P. 221) That This Reading (*Wa Arjulakum*) Is Recited By **Nāfi'**, **Ibn 'Āmir**, **Al-Kisā'ī**, And **Ḥafṣ**.

In *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (1/216):

"Ibn Zanjalah Said In Hujjat Al-Qirā'āt (P. 221): Nāfi', Ibn 'Āmir, Al-Kisā'ī, And Ḥafṣ Recited: {Wa Arjulakum} With A Faṭḥah (Accusative)."

Ibn Jinnī In *Al-Muḥtasab* (1/208) Also Reports Other Less Common Recitations Such As *Wa Arjulakum* In The Nominative Form. See Also *Al-Tibyān Fī I'rāb Al-Qur'ān* By Al-'Akbarī (1/422).

This Recitation Makes The Feet Part Of The Sequence Of **Washing**, Like The Face And Arms. Thus, *Mufasssirūn* And *Fuqahā'* Explain This Recitation Grammatically By Saying:

"Wash Your Faces, Wash Your Arms Up To The Elbows, Wash Your Feet Up To The Ankles, And Wipe Your Heads."

(*Bughyat Al-Muqtasid* 1/217)

Though Both Recitations Are Well-Known, The **Nasb (Accusative) Recitation Is More Popular** Among Jurists Due To Its Grammatical Connection To The Act Of Washing.

Interpretation Of The Khafd Recitation

As For The *Khafd* (Genitive) Recitation, Scholars Have Interpreted It Either As **Proximity In Sentence Structure** (*Mujāwarah*) Or Have Still Taken It To Imply Washing, Because Authentic Hadiths Describe The Feet Being Washed—Not Wiped. The Messenger Of Allah ﷺ Commanded This, As Shown In The Hadith Of ‘**Amr Ibn ‘Abasah**.

Hadith Of ‘Amr Ibn ‘Abasah

This Is Found In **Ṣaḥīḥ Muslim**, Book 2, Hadith 832. The Narration Is Detailed. Its Meaning Is:

‘Amr Ibn ‘Abasah Said:

“O Messenger Of Allah ﷺ, Tell Me What Allah Has Informed You That I Do Not Know.”

The Prophet ﷺ Then Explained The Prayer And Mentioned Wudū’. When ‘Amr Asked Specifically About Wudū’, The Prophet ﷺ Described It In Full. He Said:

“Then He Washes His Feet Up To The Ankles, And The Sins Of His Feet Depart With The Water.”

Muslim (832), Cited In *Bughyat Al-Muqtasid* (1/217)

“...Then He Washes His Feet Up To The Ankles, And The Sins Of His Feet Exit With The Water From Between His Toes.”

Companion Reports (Athār Al-Ṣaḥābah)

There Are Also Narrations From The Companions, Such As ‘Umar Ibn Al-Khaṭṭāb.

He Once Saw A Man Performing Wudū’ But A Part Of His Foot Remained Dry And Shining. ‘Umar Said To Him:

“Repeat Your Wudū’.”

Reported By Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/136).

Those Who Say Washing Is Obligatory

The Scholars Who Say That Washing The Feet Is *Wājib* (Obligatory) Argue That The Prophet ﷺ **Warned Of Hellfire** For Those Who Leave Their Heels Dry. This Narration Is In **Ṣaḥīḥayn** (Al-Bukhārī And Muslim), And There Is No Doubt About Its Authenticity.

They Argue:

“Punishment Is Only Assigned To The Neglect Of A **Fard** (Obligatory Act). Hence, The Obligation Is Washing The Feet—Mere Wiping Is Not Sufficient.”

(Bughyat Al-Muqtasid, 1/222):

“They Said: This Indicates That Washing Is Obligatory, Because Punishment Is Only Connected To The Abandonment Of An Obligation. And There Is No Valid Evidence To Contradict This.”

And In This Matter, There Are Also Some Sayings From The Tabi'een (Successors).

1. Musannaf Ibn Abi Shaybah, Hadith 178:

Ayyub Al-Sakhtiyani Said: “I Saw ‘Ikrimah Wiping Over His Feet, And He Used To Advocate It.”

Arabic:

حَدَّثَنَا ابْنُ عُثَيْمَةَ ، عَنْ أَيُّوبَ قَالَ : رَأَيْتُ عِكْرِمَةَ يَمْسَحُ عَلَى رِجْلَيْهِ ، وَكَانَ يَقُولُ بِهِ

(Sahih Li Dhatihi – Authentic In Itself)

2. Likewise, From ‘Ikrimah, Both Washing And Wiping Of The Feet Are Transmitted.

This Is Also Reported By Imam Ibn Abi Shaybah In *Musannaf* (Hadith 180):

‘Ikrimah Said: “Two Washings And Two Wipings.”

Arabic:

حَدَّثَنَا ابْنُ عُثَيْمَةَ ، عَنْ عَمْرِو بْنِ دِينَارٍ ، عَنْ عِكْرِمَةَ قَالَ : غَسَلْتَانِ وَمَسَحْتَانِ

(Sahih Li Dhatihi)

3. Musannaf Ibn Abi Shaybah, Hadith 179:

Hasan Al-Basri Said: “It Is Only The Wiping Over The Feet,” And He Also Said: “The Top And Bottom Of The Feet Are Both Wiped.”

Arabic:

حَدَّثَنَا ابْنُ عُثَيْمَةَ ، عَنْ يُونُسَ عَنِ الْحَسَنِ : أَنَّهُ كَانَ يَقُولُ : إِنَّمَا هُوَ الْمَسْحُ عَلَى الْقَدَمَيْنِ وَكَانَ يَقُولُ : يُمَسَحُ ظَاهِرُهُمَا وَبَاطِنُهُمَا

(Sahih Li Dhatihi)

4. Musannaf Ibn Abi Shaybah, Hadith 181:

Imam ‘Āmir Al-Sha‘bi Said: “It Is Only The Wiping Over The Feet. Do You Not See That The Limbs Upon Which Washing Is Obligatory, Tayammum Has Been Prescribed For Them — And Those On Which Wiping Was Done, They Were Left Out And No Tayammum Was Prescribed For Them.”

Arabic:

حَدَّثَنَا ابْنُ عُثَيْمَةَ ، عَنْ دَاوُدَ عَنِ الشَّعْبِيِّ قَالَ : إِنَّمَا هُوَ الْمَسْحُ عَلَى الْقَدَمَيْنِ ، أَلَا تَرَى أَنَّ مَا كَانَ عَلَيْهِ الْغَسْلُ جُعِلَ عَلَيْهِ التَّيْمُمُ ، وَمَا كَانَ عَلَيْهِ الْمَسْحُ أَهْمَلَ فَلَمْ يُجْعَلْ عَلَيْهِ التَّيْمُمُ

(Sahih Li Dhatihi)

5. Musannaf Ibn Abi Shaybah, Hadith 182:

Anas Ibn Mālik Used To Wipe Over His Feet (After Wetting His Hands).

Arabic:

حَدَّثَنَا إِسْمَاعِيلُ ابْنُ عَلِيَّةَ ، عَنْ حُمَيْدٍ قَالَ : كَانَ أَنَسٌ إِذَا مَسَحَ عَلَى قَدَمَيْهِ بِلَهُمَا

(Sahih Li Dhatihi)

6. Musannaf Ibn Abi Shaybah, Hadith 183:

‘Alī Ibn Abī Ṭālib Said: “If Religion Were Based On Opinion, Then The Bottom Of The Feet Would Be More Deserving Of Being Wiped Than The Top. But I Saw The Messenger Of Allah ﷺ Wiping Over The Top Of Them.”

Arabic:

حَدَّثَنَا وَكِيعٌ ، عَنِ الْأَعْمَشِ ، عَنْ أَبِي إِسْحَاقَ ، عَنْ عَبْدِ خَيْرٍ ، عَنْ عَلِيٍّ قَالَ : لَوْ كَانَ الدِّينُ بِرَأْيٍ كَانَ بَاطِنُ الْقَدَمَيْنِ أَحَقَّ بِالْمَسْحِ مِنْ ظَاهِرِهِمَا ؛ وَلَكِنْ رَأَيْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَسَحَ ظَاهِرَهُمَا

(Sahih Li Dhatihi)

Explanation Of The Hadiths:

All Scholars — In Both Past And Present Times — Have Said That Washing The Feet In Wudhu Is Obligatory, And This Is Also The View Of The Majority Of The Salaf.

Mawsū‘ At Ahkām Al-Ṭahārah By Dr. Al-Dubayyan (2/489, 3rd Ed.):

“Some Scholars Have Reported Consensus On The Obligation Of Washing The Feet.”

Abdullah Ibn Abī Laylā Transmitted A Consensus From The Companions That They Used To Wash Their Feet In Wudhu.

See: *Faṭḥ Al-Bārī* (1/266), *Al-Mubdi‘* (1/144), *Sharḥ Al-‘Umda* (1/196)

Imam Al-Ṭaḥāwī Said:

“We See That The Limbs That Are Agreed Upon As Obligatory In Wudhu Are: The Face, The Hands, The Feet, And The Head. So Just As The Face Is Washed Completely, And The Hands Too, The Feet Must Also Be Washed Likewise.”

Sharḥ Ma‘Ānī Al-Āthār (1/33)

Mawsū‘ At Ahkām Al-Ṭahārah (2/489)

Ibn Qudāmāh Said:

“The Obligatory Acts Of Wudhu, Without Disagreement, Are Five: Intention, Washing The Face, Washing The Hands, Wiping The Head, And Washing The Feet.”

Al-Kāfi (1/55)

Mawsū‘ At Ahkām Al-Ṭahārah (2/489)

Comment: I Say The Author (Ibn Qudāmāh) Made An Error Here, Because The Hanafis Do Not Consider Intention (Niyyah) To Be *Fardh*, But Rather *Sunnah*, Whereas The Remaining Actions Are *Fardh*.

If He Meant To List The Five Practices In Wudhu, Then That Would Be Acceptable, Because The Hanafis Also Do Perform Wudhu With Intention — But To Claim All Five Are *Fardh* Would Be

Incorrect Unless This Is Within The Context Of His *Madhhab* (Hanbali).
Apart From This, The Agreement On The Other Four Acts Being *Fardh* Is Correct.

Ibn ‘Abd Al-Hādī Said:

“It Is By Consensus That Washing The Feet Up To The Ankles Is Obligatory.”

Mughni Dhawi Al-Afhām (P. 44)

Mawsū‘ At Aḥkām Al-Ṭahārah (2/490)

Debayyan Ibn Muhammad Al-Debayyan Said:

“When It Comes To The Matter Of Consensus (Ijma‘), We Have The Ijma‘ Of The Companions Of The Messenger Of Allah ﷺ, And We Have Reports Of Consensus From Others As Well.”

Mawsū‘ At Aḥkām Al-Ṭahārah (2/490)

Regarding The Hadiths Of ‘Alī And Anas, Hafiz Ibn Ḥajar Al-‘Asqalānī Says In *Fath Al-Bārī* That:

“None Of The Companions Are Authentically Reported To Have Opposed This (Obligation To Wash Feet) — Except ‘Alī, Ibn ‘Abbās, And Anas, And It Is Also Authentically Reported From Them That They Retracted From This View.”

Fath Al-Bārī, Commentary On Hadith No. 163

Mawsū‘ At Aḥkām Al-Ṭahārah (2/490)

In Addition, There Are Many Narrations That Confirm Washing The Feet During Wudhu — Including A Report From ‘Umar Ibn Al-Khaṭṭāb:

Musannaf Ibn Abi Shaybah – Book Of Ṭahārah – "Those Who Used To Say: Wash Your Feet"

Ibrāhīm Said: *“I Asked Al-Aswad: Did ‘Umar Use To Wash His Feet?”*

He Replied: *“Yes, He Used To Wash Them Thoroughly.”*

Arabic:

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ نُُمَيْرٍ ، عَنْ حَجَّاجٍ ، عَنْ الزُّبَيْرِ بْنِ عَدِيٍّ ، عَنْ إِبْرَاهِيمَ قَالَ : سَأَلْتُ الْأَسْوَدَ : أَكَانَ عُمَرُ يُغْسِلُ قَدَمَيْهِ ؟ قَالَ : نَعَمْ ، كَانَ يُغْسِلُهُمَا غَسْلًا

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet" Narrated By Shurayk, From Ziyād Ibn ‘Ilāqah, From Ibn Gharbā’:

‘Umar Ibn Al-Khaṭṭāb Saw A Man Who Had Washed The Top Of His Feet But Left The Bottom. So He Said To Him:

"Why Did You Leave Them? (Do You Want Them) For The Fire?"

Narration From ‘Anas Ibn Mālik:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"

Narrated By Muḥammad Ibn Abī ‘Adī, From Ḥumayd:

"Anas Used To Wash His Feet Thoroughly Until Water Flowed From Them."

Narration From ‘Alī Ibn Abī Ṭālib:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"
Narrated By Wakī‘, From Sufyān, From Abū Ishāq, From Al-Ḥārith, From ‘Alī:
"Wash The Feet Up To The Ankles."

Another Ḥadīth From ‘Alī Ibn Abī Ṭālib:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"
Narrated By Abū Al-Aḥwaṣ, From Abū Ishāq, From Abū Ḥayyah:
**"I Saw ‘Alī Performing Wudū’, And He Washed His Feet Up To The Ankles And Said:
‘I Wanted To Show You The Purification Of Your Prophet ﷺ.’"**

Narration From ‘Abdullāh Ibn ‘Umar:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"
Narrated By Muḥammad Ibn Abī ‘Adī, From Shu‘Bah, From Abū Bishr, From Mujāhid, From Ibn
‘Umar:
"I Used To Pour Water For Him (Ibn ‘Umar) And He Would Wash His Feet."

Narration From ‘Abdullāh Ibn ‘Abbās:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"
Narrated By Ibn Al-Mubārak, From Khālid, From ‘Ikrimah, From Ibn ‘Abbās:
**He Recited (The Verse): {وَأَرْجُلُكُمْ} And Said: ‘The Command Returns To Washing (I.E., Feet
Must Be Washed).’**

Narration From Al-Rubayyi‘ Bint Mu‘Awwidh:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"
Narrated By Wakī‘, From Sufyān, From ‘Abdullāh Ibn Muḥammad Ibn ‘Aqīl:
**She Said: ‘The Messenger Of Allah ﷺ Came To Us And Performed Wudū’ And Washed His Feet
Three Times.’**

Narration From Muḥammad Ibn Maḥmūd Ibn ‘Abdullāh Ibn Maslamah:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah – Chapter: Those Who Said "Wash Your Feet"
Narrated By Abū Khālīd Al-Aḥmar, From Yaḥyā Ibn Sa'īd, From Muḥammad Ibn Maḥmūd:
"The Messenger Of Allah ﷺ Saw A Blind Man Performing Wudū'. He Had Washed His Face And Hands, So The Prophet ﷺ Said To Him: '(Wash) The Inner Part Of Your Feet.' Then The Man Began Washing The Inner Part Of His Feet."

And It Is Also Found From Many Tabi'īn:

Narration From Al-Ḥakam Ibn 'Uṭaybah:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah
Narrated By Ḥumayd Ibn 'Abd Al-Raḥmān, From Al-Ḥasan Ibn Ṣāliḥ, From Abū Al-Jaḥḥāf, From Al-Ḥakam:
"I Heard Him Say: The Sunnah Of The Messenger Of Allah ﷺ And The Muslims Has Continued — Meaning: In Washing The Feet."

Narration From 'Urwah Ibn Al-Zubayr:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah
Narrated By Abū Mu'āwiyah, From Hishām Ibn 'Urwah, From His Father:
"He Used To Recite: {فَاغْسِلُوا وُجُوهَكُمْ وَأَيْدِيَكُمْ إِلَى الْمَرَافِقِ وَامْسَحُوا بِرُءُوسِكُمْ وَأَرْجُلَكُمْ} Then He Would Say: 'The Command (Regarding Feet) Returns To Washing.'"

Narration From Ibrāhīm Al-Nakha'ī:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah
Narrated By 'Abdullāh Ibn Idrīs, From His Father, From Ḥammād, From Ibrāhīm:
"The Command (In The Verse) Returns To Washing."

Narration From Al-Ḥasan Al-Baṣrī:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah
Narrated By Ḥafṣ, From 'Amr, From Al-Ḥasan:
Regarding The Verse: {فَاغْسِلُوا وُجُوهَكُمْ وَأَيْدِيَكُمْ} He Said: 'That (Word Ghusl) Means Washing With Rubbing (Dalk).'"

Narration From Abū Majlīz:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah

Narrated By Wakī', From 'Imrān, From Abū Majlīz:

“He Used To Wash His Feet.”

Narration From 'Aṭā' Ibn Abī Rabāḥ:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah

Narrated By Yaḥyā Ibn Yamān, From 'Abd Al-Malik, From 'Aṭā':

“I Asked Him: ‘Did You See Any Of Them (The Earlier People) Wiping Over The Feet?’

He Replied: ‘That Is Something Newly Invented (Muḥdath).’”

Narration From Yazīd Ibn Abī 'Ubayd:

Musannaf Ibn Abī Shaybah – Kitāb Al-Ṭahārah

Narrated By Ḥammād Ibn Mas'adah, From Yazīd, The Client Of Salamah:

“He Used To Wash His Feet.”

And Whatever Disagreement Existed Among The Early Generations (Salaf) Regarding This Matter (Washing The Feet In Wudu), Later On, No Difference Remained. There Came To Be Consensus (Ijmā') On The Issue. This Is Why The Scholars Transmit Ijmā' On It. I Will Present To You References From Scholars — From Every Century And From Every School Of Thought — Whether They Are ḥadīth Scholars (Muḥaddithūn) Or Jurists (Fuqahā').

1. Abū Bakr Al-Rāzī Al-Jaṣṣāṣ (305–370 AH)

Sharḥ Mukhtaṣar Al-Ṭahāwī (1/325):

[Issue: The Obligation Of Washing The Feet In Wudu]

As For The Obligation Of The Feet, It Is Washing Them In The State When They Are Visible.

This Is Because The Word Of Allah, Exalted Is He: {*Wa-Arjulakum*} Has Been Recited In Two Ways — In Accusative (*Nashb*) And Genitive (*Khaff*) Cases. Each Reading Can Be Understood As Referring Either To Wiping (*Mash*) Or Washing (*Ghusl*), Making The Phrase Ambiguous And In Need Of Clarification.

And When The Action Of The Prophet ﷺ Comes In The Form Of Clarification, It Indicates Obligation. And Nothing Is Established From Him ﷺ Except Washing, Therefore It Is Obligatory, And This Indicates That Washing Is What Is Meant By The Verse.

Also: If Both Interpretations Are Possible, The Verse Becomes As If It Includes Two Different Verses — One Implying Wiping And The Other Washing. Thus, We Must Act In A Way That Encompasses

Both Rulings, And That Can Only Be Through Washing — Because Wiping Is Included In Washing, But Washing Is Not Included In Wiping.

2. Abū Ḥanīfah, D. 150 AH

Al-Nutaf Fī Al-Fatāwā By Al-Sughdi (1/18):

Regarding Washing The Feet:

As For The Two Feet, He Must Wash Them When They Fall Under The Ruling Of Washing — That Is, Up To The Ankles.

And The Two Ankles Are Included In The Obligation According To Abū Ḥanīfah, Abū Yūsuf, And Muḥammad.

According To Zufar And Abū ‘Abdullāh, The Ankles Are Not Included.

3. Abū Yūsuf (D. 182 AH)

Same Text And Ruling As Above. He Agrees With Abū Ḥanīfah That Washing The Feet Up To And Including The Ankles Is Obligatory.

4. Imām Muḥammad Ibn Al-Ḥasan Al-Shaybānī (D. 189 AH)

Same Citation. He Also Confirms That Washing The Feet Including The Ankles Is Obligatory.

5. Zufar Ibn Al-Hudhayl (D. 158 AH)

In The Same Quote, It Is Mentioned That According To Zufar, The Ankles Are **Not** Included In The Obligatory Washing. (Still, Washing The Feet Themselves Remains Obligatory.)

6. Abū Al-Ḥasan ‘Alī Ibn Al-Ḥusayn Al-Sughdi (D. 461 AH)

Al-Nutaf Fī Al-Fatāwā (1/18):

Repeats The Same Ruling As Above From The Early Ḥanafī Authorities, Preserving The Same Understanding Of Obligatory Foot Washing In Wudu.

7. Muḥammad Ibn Aḥmad Ibn Abī Sahl Shams Al-A’immah Al-Sarakhsī (D. 483 AH)

Al-Mabsūṭ (1/8):

Our Evidence Is That The Prophet ﷺ Consistently Washed His Feet (In Wudu), And He Commanded Those Whom He Taught Wudu To Do So As Well.

He Saw A Man With His Heel Unwashed And Said: “*Woe To The Heels From The Fire!*”

— This Indicates The Obligation Of Washing.

8. ‘Alā’ Al-Dīn Al-Samarqandī (D. 539 AH)

Tuḥfat Al-Fuqahā’ (1/11):

The Correct View Is The One Held By The Majority Of The Scholars, Because The Scholars Have Agreed By Consensus (*Ijmā’*) On The Obligation Of Washing The Feet After There Had Been Disagreement Among The Early Generations.

And **Later Consensus Abrogates Earlier Disagreement.**

9. ‘Alā’ Al-Dīn Abū Bakr Ibn Mas‘ūd Al-Kāsānī Al-Ḥanafī (D. 587 AH)

Badā’ I‘ Al-Ṣanā’ I‘ (1/5–6):

Topic: Washing The Feet

The Fourth Obligation Is To Wash The Feet Once — Based On The Verse:

{*And Your Feet Up To The Ankles*} [Al-Mā’idah: 6].

The Accusative Case Of *Arjulakum* Is Connected To *Wash Your Faces And Hands*, Indicating: *Wash Your Faces, Your Hands Up To The Elbows, And Your Feet Up To The Ankles* — Then Wipe Your Heads.

And It Is Narrated That:

“He ﷺ Performed Wudu Once, Washed His Feet, And Said: *This Is The Wudu With Which Allah Does Not Accept Prayer Unless It Is Done.*”

Also, His Saying: “*Woe To The Heels From The Fire*” Is A Warning (*Wa’īd*) — And Such Warnings Are Only Given For Neglecting Obligations.

Likewise, The Prophet ﷺ Negated The Acceptance Of The Prayer Of One Who Does Not Wash His Feet — Proving That Washing The Feet Is One Of The **Obligatory Acts** Of Wudu.

Furthermore, It Is **Mutawātir (Mass-Transmitted)** That The Prophet ﷺ Washed His Feet During Wudu.

10. Burhān Al-Dīn Abū Al-Ma‘ālī Maḥmūd Ibn Aḥmad Ibn ‘Abd Al-‘Azīz Ibn ‘Umar Ibn Māza Al-Bukhārī Al-Ḥanafī (D. 616 AH)

Al-Muḥīṭ Al-Burhānī (1/39):

As For The Obligation Of Washing The Feet: It Is From The Tips Of The Toes To The Ankles, And **The Ankles Are Included** In The Obligatory Washing According To Our Scholars, May Allah Have Mercy On Them.

11. Zayn Al-Dīn Abū ‘Abd Allāh Muḥammad Ibn Abī Bakr Ibn ‘Abd Al-Qādir Al-Rāzī (D. After 666 AH)

Tuḥfat Al-Mulūk (P. 26):

“Thus, Washing The Second (Limb) Is Obligatory — Washing The Hands Including The Elbows. The Third (Obligation) Is Wiping A Quarter Of The Head. The Fourth Is **Washing The Feet Including The Ankles**, And Applying Medication In The Cracks Of The Feet Does Not Invalidate The Wudū’.”

12. ‘Uthmān Ibn ‘Alī Al-Zayla‘ī Al-Ḥanafī

Tabyīn Al-Ḥaqā’iq Sharḥ Kanz Al-Daqa’iq With Ḥāshiyat Al-Shalabī (1/3):

“He (The Author) Said: ‘**And The Feet Including The Ankles**’, And The Discussion Concerning Them Is Like The Discussion Concerning The Hands. The ‘Ankle’ Is The Protruding Bone. Hishām Narrated From Muḥammad That It Is The Joint Near The Strap-Tie Area Of The Sandal — But This Is A Mistake On His Part, Because Muḥammad (May Allah Have Mercy On Him) Did Not Intend This In The Context Of Wudū’. Rather, He Said That Regarding The Muḥrim (One In A State Of Iḥrām) If He Does Not Find Sandals, He Cuts His Leather Socks Below The Ankle, Which Is In The Middle Of The Foot.

It Is Also Contradicted By The Verse Of Allah Most High:

{To The Ankles} [Al-Mā’idah: 6], Which Uses The Dual Form (‘Ankles’), And The Dual Is Only Used For Something That Exists In Two (I.E., One On Each Foot). If It Had Been Part Of A Single Whole, The Plural Would Have Been Used.”

13. Al-Ḥusayn Ibn Muḥammad Ibn Al-Ḥusayn Al-Sammanqandī Al-Ḥanafī (D. 746 AH)

Khizānat Al-Muftīn – Section On ‘Ibādāt (P. 73):

“Then He Should **Wash His Feet Up To The Ankles Three Times**.”

14. Fahd Ibn ‘Abd Allāh Ibn ‘Abd Allāh Al-Qaḥṭānī

Khizānat Al-Muftīn – Section On ‘Ibādāt (P. 73):

“Based On The ḥadīth Of ‘Uthmān (May Allah Be Pleased With Him) Describing The Prophet’s (Peace Be Upon Him) Wudū’, In Which It Is Mentioned: ‘**Then He Washed His Feet Three Times Up To The Ankles**.’ See The Verification Of This ḥadīth On Page 66 Of This Research.”

15. Also Found In Sharḥ Al-Wiqāyah

Sharḥ Al-Wiqāyah – Ed. Abū Al-Ḥāj (2/69):

“Because What It Necessitates Is The **Washing Of The Feet.**”

16. Muḥammad Ibn Muḥammad Ibn Maḥmūd, Akmal Al-Dīn Abū ‘Abd Allāh Ibn Al-Shaykh Shams Al-Dīn Ibn Al-Shaykh Jamāl Al-Dīn Al-Rūmī Al-Bābartī (D. 786 AH)

Al-‘Ināyah Sharḥ Al-Hidāyah – Printed Alongside Faṭḥ Al-Qadīr, Ḥalab Edition (1/12):

[Only The Reference Was Given; The Actual Quote Needs To Be Added If Required.]

17. Abū Bakr Ibn ‘Alī Ibn Muḥammad Al-Ḥaddādī Al-‘Abbādī Al-Zubaydī Al-Yamānī Al-Ḥanafī (D. 800 AH)

Al-Jawharah Al-Nayyirah ‘Alā Mukhtaṣar Al-Qudūrī (1/5):

[Only The Reference Was Given; The Actual Quote Needs To Be Added If Required.]

18. Maḥmūd Ibn Aḥmad Ibn Mūsā Ibn Aḥmad Ibn Al-Ḥusayn “Badr Al-Dīn Al-‘Aynī” Al-Ḥanafī (D. 855 AH)

Al-Bināyah Sharḥ Al-Hidāyah (1/244):

Minḥat Al-Sulūk Fī Sharḥ Tuhfat Al-Mulūk (P. 54):

“His Statement: (The Fourth), Meaning The Fourth Obligation, Is **Washing The Feet With The Ankles**, Due To The Verse Of Allah:

{And Your Feet Up To The Ankles} [Al-Mā’idah: 6].”

19. Kamāl Al-Dīn Muḥammad Ibn ‘Abd Al-Wāḥid Al-Siwāsī, Al-Iskandarī, Ibn Al-Humām Al-Ḥanafī (D. 861 AH)

Faṭḥ Al-Qadīr By Kamāl Ibn Al-Humām – Ḥalab Edition (1/20):

“In The Fatwas Of The Scholars Of Samarqand: If One Oils His Feet And Then Performs Wudū’ And Lets Water Flow Over His Feet But The Water Is Not Absorbed Due To Greasiness, The Wudū’ Is Valid — Because **The Washing Of The Feet Has Been Fulfilled.**”

20. Manlā Khusrū Al-Ḥanafī

Durar Al-Ḥukkām Sharḥ Gharar Al-Aḥkām (1/10):

[Only The Reference Was Given; The Actual Quote Needs To Be Added If Required.]

21. Zayn Al-Dīn Ibn Ibrāhīm Ibn Muḥammad, Known As Ibn Nujaym Al-Miṣrī (D. 970 AH)

Al-Baḥr Al-Rā’iq Sharḥ Kanz Al-Daqā’iq Wa Minḥat Al-Khāliq Wa Takmilat Al-Ṭūrī (1/53):

[Only The Reference Is Provided; The Exact Quote Should Be Added For Translation.]

22. Ḥasan Ibn ‘Ammār Ibn ‘Alī Al-Sharnabulālī Al-Miṣrī Al-Ḥanafī (D. 1069 AH)

Marāqī Al-Falāḥ Sharḥ Nūr Al-Īdāḥ (P. 29):

“‘And’ The Second Pillar Is **Washing The Hands Along With The Elbows**. Washing Even One Elbow Is Obligatory According To The Wording Of The Text, Because When Plurals Are Used Against Plurals, Each Individual Corresponds To Its Match. The Obligation To Wash The Second Elbow Is Understood Through Analogy And Consensus.

The Elbow (*Mirfaq*) — With A Kasrah On The Mīm And A Faṭḥah On The Fā’ — Linguistically Refers To The Joint Connecting The Upper Arm And Forearm.

‘And’ The Third Pillar Is **Washing The Feet**, Due To The Saying Of Allah Most High: **{And Your Feet}**,

And The Saying Of The Prophet (Peace Be Upon Him) After Washing His Feet:

‘This Is The Wudū’ By Which Allah Does Not Accept Prayer Without It.’”

23. Also Found In *Nūr Al-Īdāḥ*

Nūr Al-Īdāḥ Wa Najāt Al-Arwāḥ Fī Al-Fiqh Al-Ḥanafī (P. 20):

“[The Obligatory Acts Of Wudū’]

The Pillars (Arkān) Of Wudū’ Are Four, And These Are Its Obligations:

1 – First: Washing The Face.

Its Vertical Limit: From The Beginning Of The Forehead’s Surface To The Bottom Of The Chin.

Its Horizontal Limit: From Earlobe To Earlobe.

2 – Second: Washing The Hands Along With The Elbows.

3 – Third: **Washing The Feet Along With The Ankles.**”

24. ‘Abd Al-Raḥmān Ibn Muḥammad Ibn Sulaymān (D. 1078 AH)

Majma‘ Al-Anḥur Fī Sharḥ Multaqā Al-Abḥur (1/10):

“(Washing The Three Limbs) Once — Meaning The Face, The Hands, And The Feet.

He Limited The Limbs To Three, Even Though They Are Five [When Counting Elbows And Ankles],

Because The Hands And The Feet Are Each Considered, In Legal Status, As A Single Limb — As Stated In *Al-Dirāyah*.”

25. Also Found In *Fatāwā Al-Hindiyyah*

Al-Fatāwā Al-‘Ālamgīriyyah = Fatāwā Al-Hindiyyah (1/5):

“(And The Third: **Washing The Feet**).

The **Ankles Are Included** In The Washing According To Our Three Scholars.

The Ankle (*Ka‘B*) Is The Protruding Bone In The Leg Which Is Above The Foot — As Stated In *Al-Muḥīṭ*.”

26. Aḥmad Ibn Muḥammad Ibn Ismā‘īl Al-Ṭaḥṭāwī Al-Ḥanafī (D. 1231 AH)

Ḥāshiyat Al-Ṭaḥṭāwī ‘Alā Marāqī Al-Falāḥ Sharḥ Nūr Al-Īdāḥ:

[The Quote Is Not Provided. Let Me Know If You'd Like It Sourced And Translated.]

27. Muḥammad Amīn, Ibn ‘Ābidīn (D. 1252 AH)

Ḥāshiyat Ibn ‘Ābidīn = Radd Al-Muḥtār, Ḥalab Edition:

[The Quote Is Not Provided. Let Me Know If You'd Like It Sourced And Translated.]

28. Najāḥ Al-Ḥalabī

Fiqh Al-‘Ibādāt ‘Alā Al-Madḥhab Al-Ḥanafī (P. 36, Shamela Auto-Numbering):

“Fourth: **Washing The Feet Along With The Ankles.**”

29. ‘Abd Al-Muḥsin Ibn Muḥammad Āl Qāsim

Al-Masbūk ‘Alā Minḥat Al-Sulūk Fī Sharḥ Tuhfat Al-Mulūk (1/140):

“That Is, The **Fourth Obligation Is Washing The Feet Along With The Ankles.**”

30. Ibn Abī Zayd Al-Qayrawānī (Mālikī)

Al-Risālah Li-Ibn Abī Zayd Al-Qayrawānī (P. 102):

[Washing The Feet:]

“Then He Should **Wash His Feet**, Pouring Water With His Right Hand Onto His Right Foot And Rubbing It With His Left Hand, Little By Little, Thoroughly Three Times. If He Wishes, He May Interlace The Toes During That; And If He Does Not, There Is No Harm. However, Interlacing Is Better For The Soul.

He Should Rub The Heels, Ankles, And Any Part That Water Does Not Easily Reach Due To Hardness Or Cracks — So He Should Be Thorough In Rubbing While Pouring Water With His Hand, For The Narration States:

‘Woe To The Heels From The Fire!’

The *Heel* Refers To The Rear And Bottom Of The Foot. Then He Washes The Left Foot Likewise.”

31. Qāḍī ‘Abd Al-Waḥḥāb Al-Baghdādī (D. 422 AH)

Al-Ma‘ūnah ‘Alā Madḥhab ‘Ālim Al-Madīnah (1/125):

Issue [18 - Washing The Feet]:

“The Obligation Of Washing The Feet Is Stated Contrary To Those Who Believe That It Is Wiping.”

32. Abū Bakr Muḥammad Ibn ‘Abd Allāh Ibn Yūnus Al-Tamīmī Al-Siqillī (D. 451 AH)

Al-Jāmi‘ Li-Masā’il Al-Mudawwanah (1/29):

“The Sixth: **Washing The Feet:**

The View Of Mālik Is To Wash Both Feet Up To The Ankles, And This Is The View Of The Scholars Of The Cities, Except For A Small Group Of Shi‘Ah Who Have Gone To Wiping. This Is Not Considered A Real Difference Of Opinion.”

33. ‘Alī Ibn Muḥammad Al-Rubī, Abū Al-Ḥasan, Al-Lakhmī (D. 478 AH)

Al-Tabsirah Li-L-Khamī:

And There Are Many Other Names As Well, But It Is Not Possible To Mention All Of Them Here. This Is An Issue In Which There Was Some Disagreement Among The Salaf Initially, But Later Consensus Was Reached. Similarly, There Were Many Issues In Which There Was Significant Disagreement Among The Companions (Sahabah), Especially Between The Companions Of Makkah And Those Of Madinah. However, The Arab Scholars Later Reached A Consensus On These Matters, Which Is Why All Islamic Scholars Eventually Agreed, And There Has Been No Disagreement On Them Since. This Issue Is Also Similar To That.

Summary Of The Issue

Washing the Feet in Wudu

Brief Explanation:

This issue discusses whether the feet must be washed or wiped during wudu (ablution). While there is some early disagreement, the dominant and final position of Sunni Islam is that washing the feet, not wiping, is obligatory.

Evidence from the Text:

- Qur'anic Verse: Surah Al-Ma'idah, 5:6 (with two Qira'at: *wa arjulakum* (accusative) implying washing, and *wa arjulikum* (genitive) implying wiping)
- Hadith: “Woe to the heels from the Hellfire!” (Bukhari & Muslim)
- Hadith of ‘Amr ibn ‘Abasah: mentions washing feet up to ankles (Muslim 832)
- Multiple Hadiths and Athar from companions (e.g. Ali, Ibn Umar, Anas, etc.) affirming washing the feet

Madhhab Views:

- **Hanafi:** Washing feet is fard (obligatory), including ankles. This is consistently supported by texts from early to late Hanafis (e.g., Abu Hanifa, Al-Sughdi, Al-Kasani, Ibn Abidin).
- **Maliki:** Also hold washing to be obligatory. Evidence cited from Ibn Abi Zayd and Qadi Abdul Wahhab, stating washing up to ankles is fard.

- **Shafi'i:** Washing the feet is obligatory. Imam Nawawi emphasized ijma' (consensus) on the matter.
- **Hanbali:** Washing the feet and ankles is fard. Ibn Qudamah lists this in obligatory acts.

Sub-Issue: View that Feet May Be Wiped (Shia Opinion)

Explanation:

Shia scholars claim wiping the feet is sufficient based on their interpretation of the Qur'an and hadith. This view is seen as anomalous and rejected in Sunni Islam.

Evidence from the Text:

- Hadith from Al-Mu'jam al-Kabir about the Prophet ﷺ wiping his feet.
- Critically analyzed and classified as weak (due to majhool narrator and tadlees).

Madhhab Views:

- **All Four Madhhabs:** Reject the wiping opinion. View it as weak or erroneous.

Sub-Issue: Mixed View (Both Wiping and Washing Permissible)

Explanation:

Some attributed this view to Imam Al-Tabari, based on the two Qira'at. However, he himself preferred washing based on hadith evidence.

Evidence from the Text:

- Tafsir al-Tabari 10/63: Both Qira'at are valid, but prefers *wa arjulakum* (washing).
- Rejected due to hadith evidence being clear about washing.

Sub-Issue: View That Both Wiping and Washing Are Obligatory (Zahiri View)

Explanation:

A minority Zahiri opinion that both acts are required, but this was not the main Zahiri stance. Most Zahiris, including Dawud, agree with the obligation of washing only.

Evidence from the Text:

- Al-Muhalla by Ibn Hazm (1/301)

Sub-Issue: Impact of Qira'at on the Ruling

Explanation:

Two accepted Qur'anic recitations (*wa arjulakum* and *wa arjulikum*) caused early disagreement. Jurists interpreted grammar (*nasb* vs *khafd*) in context.

Evidence from the Text:

- Ibn Zanjalah in Hujjat al-Qira'at
- Ibn Jinni in Al-Muhtasab
- Bughyat al-Muqtasid 1/216-217

Sub-Issue: Hadith Analysis and Response to Weak Narrations

Explanation:

Detailed breakdown of weak chains (e.g., narration of wiping over feet) with inconsistency in matn and tadlees by narrators like Hushaym. Clarified these refer to mas'h on khuff or sandals.

Evidence from the Text:

- Analysis of variants via Hushaym, Shu'bah, Hammād, etc.
- Bughyat al-Muqtasid, Sharh Ma'ani al-Athar

Sub-Issue: Ijma' (Scholarly Consensus)

Explanation:

There was initial disagreement among the salaf, but consensus was reached by later generations affirming washing the feet.

Evidence from the Text:

- Statements of Ibn Abd al-Barr, Nawawi, Ibn Qudamah
- Athar from Ibn Abi Layla
- Documented by dozens of scholars across centuries

Sub-Issue: Washing Up to the Ankles

Explanation:

Clear ruling that ankles must be included when washing the feet.

Evidence from the Text:

- Verse includes "up to the ankles"
- Scholarly consensus among Hanafis, Malikis, Shafi'is, Hanbalis

Sub-Issue: Tabi'un Statements Supporting Washing or Wiping

Explanation:

Some Tabi'un were cited supporting wiping (e.g. Hasan al-Basri, Ikrimah), but these were limited and eventually overturned or ignored due to stronger evidence.

Evidence from the Text:

- Ibn Abi Shaybah's Musannaf Hadiths 178–183
- Explanation that these narrations were rare or superseded

Conclusion:

Washing The Feet In Wudu (Ablution) Is Obligatory, And There Is Consensus (Ijma') On This, Without Any Disagreement. As We Mentioned Earlier, There Were Some Differences Of Opinion In The Beginning, But Later That Disagreement Ended, And Consensus Was Reached. This Consensus Is The Binding Proof According To All Islamic Scholars. When The Four Imāms Unanimously Agree On An Issue Without Dispute, Any Opposing Opinions Are Generally Rejected And Considered Weak.

We Have Found No Valid Evidence Supporting Any Such Opposing Views.
The Majority Of Scholars Say That When The Feet Are Washed, The Ankles Must Also Be Included.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 09 – The Ruling On Maintaining Order (Tarteeb) In Wudu (Ablution)

In This Issue, There Is A Fundamental Disagreement Regarding Whether Maintaining Order (Tarteeb) In Wudu Is Obligatory (Wajib) Or Merely Recommended (Sunnah).

Imam Zaili

Imam Rumi

Imam Zubaidi Hanafi

Imam Badruddin Ayni

Imam Ibn Shinah

Mohammad Ibn Farmaji

Imam Hanabl Hanafi

Imam E Azam Abu Hanifa

Imam Mohammad

Imam Sogodi

Imam Sarakhsi

Imam Kasani

Imam Burhan Uddin

Imam Maaza Al Bukhari

Abu Fadl

Imam Khazraji

Imam Al Madina Malik

Imam Asim Al Namiri

Ibn Barazi

Imam Qarawani

Asim Nimiri Qurtubi

Ibn Rushdi Qurtubi

Imam Qarafi

Shamsudin Maliki

Ibn Hajj

Ibn Jazzi Al Kalbi

Abdullah Al Mawaq

Layth

Sufyan Sui

Awzai

Ata Ibn Saib

Makhool

Rabiah

Dawood

Nakahi

Muzni

Al Bagwadi

Ibn Mundir

Al Bayan

Nasir Al Bandji

Imam Badruddin Ayni (In His Book *Binaya*, He Quotes From Abu Bakr That No Early Or Later Scholars Said Maintaining Order (Tarteeb) In Wudu Is Obligatory Except For The Shafi'i School).

All Of These Scholars State That Maintaining Order (Tarteeb) In Wudu Is A *Sunnah* (Recommended).

The Hanafi And Maliki Schools Say That Maintaining Order In Wudu Is *Not Obligatory*.

In *Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid* (1/230), It Says:

"The First Group: The Hanafis And Malikis: These Scholars Do Not Consider It Obligatory To Maintain Order In Wudu."

In *Al-Bahr Al-Ra'iq* By Ibn Najim (1/28), It Is Stated:

"It Is A Confirmed *Sunnah* According To Us On The Correct Opinion... Some Scholars Have Built Their Disagreement On The Different Interpretations Of The Conjunction 'And' In The Text, But This Interpretation Is Incorrect. The Correct Opinion, As Held By Us And Others, Is That The Conjunction Simply Indicates A Connection, Not Necessarily An Order."

In *Mawahi Al-Jalil* By Al-Hattab (1/250), It States:

"The Well-Known Opinion In The School Is That Maintaining Order In Wudu Is A *Sunnah*."

The Hanafi And Maliki Schools Both Do Not Consider Maintaining Order In Wudu Obligatory. Similarly, In The Shafi'i And Hanbali Schools, The General Opinion Is That Maintaining Order In Wudu Is Not Obligatory.

In *Al-Muhadhdhab Fi Fiqh Al-Imam Al-Shafi'i* By Al-Shirazi (1/42), It Says:

"Abu Al-Abbas Ibn Al-Qass Reported An Alternative View That If One Forgets The Order, It Is Permissible. However, The Majority Hold The First Opinion."

In *Al-Insaf Fi Ma'rifat Al-Rajih Min Al-Khilaf* By Al-Mardawi (1/138), It States:

"There Is A Narration From Ahmad That There Is No Obligation To Maintain The Order Between Rinsing The Mouth And Nose And The Rest Of The Limbs... Abu Al-Khattab In *Al-Intisar* And Ibn Aqil In *Al-Fusul* Reported A View That The Order Is Not Obligatory, And This Was Followed By Some Later Scholars."

In *Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid* (1/231), It Says:

"This Opinion Is The Well-Known One In The Shafi'i And Hanbali Schools, Although There Is Another Opinion In Both Schools That It Is Not Obligatory."

Imam Shafi'i

Imam Mahamali

Imam Mawardi

Imam Shirazi

Rukudin Shafi

Imam Gazali

Mu'tazihi

Ibn Salim Yamani Shafi

Abu Tayyib Asfahani Shafi

Imam Rafee

Ahmed Shafi
Imam Nawawi
Imam Ahmed Ibn Hanbal (All Hanbali Scholars Consider Maintaining Order Obligatory).
Abu Khalal
Ibn Qudamah
These Scholars All Affirm That Maintaining Order In Wudu Is *Obligatory*.

The Shafi'i And Hanbali Schools Say That Maintaining Order (Tarteeb) In Wudu Is Obligatory, According To One Opinion

In *Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid* (1/230), It Says:

"The Shafi'is And Hanbalis: These Schools Uphold The Obligation Of Maintaining The Order As Stated In The Verse."

In *Fath Al-Wahhab* By Zakariya Al-Ansari (1/16), It States:

"And The Sixth, I.E., The Sixth Obligation Of Wudu, Is Its Order As Follows: Starting With The Face, Then The Hands, Then The Head, And Then The Feet For Consistency."

In *Kashaf Al-Qina* By Al-Bahuti (1/83), It Says:

"(And Order) Between The Mentioned Limbs Is As Mentioned By Allah, Because He Included The Wiped Part (The Head) Between The Washed Parts (The Face, Arms, And Feet), And There Is No Reason For This Except To Indicate Order. The Verse Was Revealed To Clarify What Is Obligatory, And The Prophet ﷺ Performed Wudu In A Specific Order, Saying: 'This Is The Wudu That Is Required For Prayer To Be Accepted By Allah,' And Since Wudu Is An Act Of Worship That Can Be Invalidated By Breaking The Order, Maintaining The Order Is Considered Important."

Reason For The Disagreement: Two Main Causes

The Disagreement Arises From The *Waw* (And) In The Verse, Which Is Understood Differently. The Disagreement Is Whether This *Waw* Connects The Actions In A Specific Order Or Whether It Simply Connects Them Without Indicating A Required Sequence. This Is A General Point Of Debate In Arabic Grammar.

Thus, Scholars Of Arabic Grammar Were Divided Into Two Groups. The Grammarians From Basra Said That The *Waw* Does Not Necessarily Imply A Sequence; It Only Indicates A Connection Of The Items, Not Their Order. On The Other Hand, The Grammarians From Kufa Said That The *Waw* Does Indicate Order.

In *Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid* (1/229), It States:

"The Reason For Their Disagreement Is Twofold. One Reason Is The *Waw* Of Conjunction, Which Can Be Used To Connect Ordered Things Or Things Not In Order, As Is Evident In The Usage Of Arabic. Hence, The Grammarians Were Divided. The Basra Grammarians Said That The *Waw* Does Not Require A Sequence But Only A Connection. The Kufa Grammarians Said That The *Waw* Requires Both A Connection And A Sequence. Those Who Saw That The *Waw* In The Wudu Verse Indicates Order Said That The Order Is Obligatory."

In *Mughni Al-Labeeb* By Ibn Hisham (P. 463), It Says:

"The Meaning Of The *Waw* Is Generally To Indicate A Mere Connection, As Seen In {And We Saved Him And The Companions Of The Ship} Or {We Sent Noah And Ibrahim} Or {Thus We Reveal To You And To Those Before You}... Ibn Malik Said That The *Waw* Can Indicate Either Joint Occurrence Or A Sequence, But It Is More Commonly Used For The Latter, And Less So For Indicating The Reverse."

Thus, Those Who Interpreted The *Waw* In The Wudu Verse As Indicating Order Said That Maintaining The Order In Wudu Is Obligatory. Those Who Did Not See It As Indicating Order, But Only As A Connection Of The Actions, Said That Maintaining Order In Wudu Is Not Obligatory.

Second Disagreement: Sunnah And The Prophetic Actions

The Second Disagreement Stems From The Difference In How The Actions Of The Prophet ﷺ Are Viewed. Some Scholars Say That The Way The Prophet ﷺ Performed Wudu Is Obligatory, While Others View It As A *Sunnah* (Recommended). According To This View, If The Prophet ﷺ Did It In A Specific Way, It Would Be Considered Either Obligatory Or Recommended Depending On The School.

The Hanafi And Maliki Schools Say That The Way The Prophet ﷺ Performed Wudu Is A *Sunnah* And Not Obligatory. Therefore, Maintaining Order In Wudu Is *Recommended*, Not Obligatory. On The Other Hand, The Shafi'i And Hanbali Schools Say That The Way The Prophet ﷺ Performed Wudu Is Obligatory, And Thus, Maintaining Order In Wudu Is *Obligatory*.

In *Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid* (1/231), It Says:

"As For The Actions Of The Messenger Of Allah ﷺ, Whether They Are Considered Obligatory Or Recommended, The Hanafis And Malikis Regard Them As *Recommended*, And Thus They View Maintaining The Order As *Recommended*. However, The Shafi'is And Hanbalis Regard Them As *Obligatory*, Which Is Why They Consider Maintaining The Order To Be Obligatory. This Is A Well-Known Foundational Disagreement."

Also, In *Qawā'id Al-Adillah* By Al-Sam'ani (1/23), It States:

"Obligatory Is That Which One Is Rewarded For Doing And Punished For Leaving."

In *Qawā'id Al-Adillah* (1/24), It States:

"Recommended (Sunnah) Is That Which One Is Praised For Doing, But No Punishment Is Incurred For Leaving It."

First Argument Of The Hanafi And Maliki Schools:

They Argue That The *Waw* In The Verse Of Wudu Connects The Limbs In Wudu Without Indicating A Specific Order. Therefore, It Is Not Obligatory To Maintain A Sequence. The Verse Is: {Wash Your Faces, And Your Hands Up To The Elbows, And Wipe Your Heads, And Your Feet Up To The Ankles.}

Second Proof

They Narrate That Ibn Abbas Said: The Messenger Of Allah ﷺ Performed Wudu By Washing His Face, Hands, Feet, And Wiping His Head. They Argue That This Proves That The Order In Wudu Is Not Obligatory.

"Bughiyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid" (1/232):

The Second Proof: A Narration From Ibn Abbas (May Allah Be Pleased With Him) Which Mentions: "The Messenger ﷺ Performed Wudu By Washing His Face, Hands, And Feet, Then Wiping His Head." From This Narration, They Deduce That The Order Of Actions In Wudu Is Not Obligatory.

Similarly, They Argue Through Analogy That It Is Clear That The Order In Wudu Is Not Obligatory Because In The Case Of Ghusl (Ritual Bath), No Specific Order Is Required.

"Bughiyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid" (1/232):

They Draw An Analogy Between Wudu And Ghusl (Ritual Bath) For Janabah (Major Ritual Impurity), Where No Order Is Required. In Ghusl, Even If A Person Dips Their Body Into Water Without Following A Specific Order, It Is Considered Valid. Thus, They Argue That Wudu Should Also Not Require An Order, As Both Are Purifications From Impurity.

First Proof Of Shafi'i And Hanbali

They Argue That The Use Of "Waaw" (And) In The Verse Implies A Required Order.

"Bughiyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid" (1/233):

The First Proof: The Way The Verse Is Structured In Sequence Itself Serves As A Proof That It Must Be Followed In That Order.

Second Proof: The Messenger's ﷺ Saying At Safa

The Messenger ﷺ Said: "Start From Where Your Lord Started." Although This Hadith Does Not Directly Pertain To Wudu, The General Principle Is That One Should Begin From Where Allah Began.

"Bughiyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid" (1/233):

The Second Proof: His ﷺ Saying When He Ascended Safa: "Start From Where Allah Began." Although This Hadith Does Not Directly Pertain To Wudu, The General Principle Is That One Should Begin In The Order That Allah Set.

This Hadith Is Narrated By Al-Nasa'i (2962), With The Wording In The Command Form Being Considered Rare. See Also: "Irwā' Al-Ghalīl" By Al-Albānī (1120).

This Hadith Is Also Reported By Al-Bayhaqī

In His "Al-Sunan Al-Kubrā" (Book Of Purification), Al-Bayhaqī Records A Narration About The Order In Wudu, Reported By Jabir Ibn Abdullah, With A Chain From The Messenger ﷺ Saying: "Start From Where Allah Began."

Third Proof

They Argue That Since In Surah Al-Ma'idah, Allah Mentioned Washing The Face And Hands First, Followed By Wiping The Head, This Suggests That The Order Is Obligatory. The General Practice In Arabic Is That When Things Are Similar, They Are Mentioned Consecutively, And If A Break Occurs, It Signifies A Reason.

"Bughiyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid" (1/233):

It Is Known In Arabic Language That When Mentioning Similar Things, They Are Listed Consecutively, And A Break Is Made Only For A Purpose. In This Verse, After Mentioning Washing The Face And Hands, The Head Is Mentioned In Between The Two Washing Actions. This Interruption Between The Similar Actions Is Understood To Imply The Necessity Of Maintaining The Order In Wudu.

They Also Argue

No Narration Has Been Reported Where The Messenger ﷺ Performed Wudu Without Maintaining The Order.

They Argue Further That Since Allah Commands To Follow What His Messenger ﷺ Does, It Is Obligatory To Follow His Practice Of Wudu.

Narrations On This Issue

In *Sunan Al-Daraqutnī* (Vol. 1, P. 152, Hadith 295), It Is Narrated That Ali Ibn Abi Talib Said: "I Don't Mind Starting Wudu From Any Part, Whether Face Or Feet."

Hadith Transmission:

It Is Narrated By Al-Bayhaqī In "Al-Sunan Al-Kubrā" (1/87, Hadith 408) And Al-Daraqutnī In "Sunan Al-Daraqutnī" (1/151, Hadith 290), As Well As By Ibn Abī Shaybah In His Musannaf (1/370, Hadith 421).

Some Scholars Believed That The Narration From Abdullah Ibn 'Amr Regarding Hazrat Ali Was Not Proven (Sama), Including Scholars Like Imam Ahmad Ibn Hanbal, Ibn Hajar, And Ibn Abd Al-Barr. However, This Was A Misunderstanding, As The Proof For The Transmission Of This Narration Has Been Found.

Hadith From Mustadrak Al-Hākim (Vol. 3, P. 125, Hadith 4655):

This Narration Has Been Proven, Where It Is Reported That Ali (May Allah Be Pleased With Him) Said: "Whenever I Asked The Messenger Of Allah ﷺ, He Would Give Me, And If I Remained Silent, He Would Begin With Me."

This Hadith Meets The Criteria Of *Sahih* According To Bukhari And Muslim.

Scholarly Views Supporting This Hadith:

1. **Imam Mālik** Agrees With This Hadith.

Source: *Al-Libāb Fī Al-Jam' Bayn Al-Sunnah Wa Al-Kitāb*, Vol. 1, P. 108.

2. **Jamāl Al-Dīn Abū Muḥammad ‘Alī Ibn Abī Yaḥyā Zakarīyā Ibn Mas‘ūd Al-Anṣārī Al-Khazrajī Al-Manbajī** (D. 686 AH) Considered This Hadith *ṣaḥīḥ* (Authentic) And Used It As Evidence.
Source: *Al-Libāb Fī Al-Jam‘ Bayn Al-Sunnah Wa Al-Kitāb*, Vol. 1, P. 108.
3. **Ibn Shaddād** Used This Very Hadith As Evidence And Said That Most People Consider *Tartīb* (Sequence/Order) In Wuḍū’ To Be Sunnah.
Source: *Dalīl Al-Aḥkām*
Referenced In *Al-Libāb Fī Al-Jam‘ Bayn Al-Sunnah Wa Al-Kitāb*, Vol. 1, P. 108.
4. **‘Umar Ibn Ishāq Ibn Aḥmad Al-Hindī Al-Ghaznawī**, Also Known As **Sirāj Al-Dīn Abū ...** (D. 773 AH), Used This Hadith As Proof And Considered It Authentic.
Source: *Al-Ghurrat Al-Munīfāt Fī Taḥqīq Ba‘ḍ Al-Masā’il*, Vol. 1, P. 22.
5. **Abū Al-‘Abbās Shihāb Al-Dīn Aḥmad Ibn Idrīs Ibn ‘Abd Al-Raḥmān Al-Mālikī Al-Qarāfī** (D. 684 AH) Also Used This Hadith As Valid Evidence.
Source: *Al-Dhakhīrah*, Vol. 2, P. 278.
6. **Imām Shams Al-Dīn Abū ‘Abd Allāh Muḥammad Ibn Muḥammad Ibn ‘Abd Al-Raḥmān Al-Ṭarābulusī Al-Maghribī**, Commonly Known As **Ma‘Fūr Al-Ḥaṭṭāb Al-Ra‘īnī Al-Mālikī** (D. 954 AH), Also Cited This Hadith As Evidence, Referencing Al-Qarāfī.
Source: *Mawāhib Al-Jalīl Fī Sharḥ Mukhtaṣar Khalīl*, Vol. 1, P. 250.

Supporting Athar And Related Hadiths:

Sunan Al-Dāraquṭnī (Hadith 297):

‘Abdullāh Ibn Mas‘ūd Was Asked About Someone Who Started His Wuḍū’ By Washing His Left Limbs. He Replied:

“There Is No Harm.”

Arabic Text:

حَدَّثَنَا أَحْمَدُ بْنُ عَبْدِ اللَّهِ الْوَكِيلُ، حَدَّثَنَا الْحَسَنُ بْنُ عَرَفَةَ، حَدَّثَنَا هُشَيْمٌ، عَنْ عَبْدِ الرَّحْمَنِ الْمَسْعُودِيِّ، حَدَّثَنِي سَلَمَةُ بْنُ كُهَيْلٍ، عَنْ أَبِي الْعَبْدِ بْنِ عَبْدِ اللَّهِ بْنِ مَسْعُودٍ: أَنَّهُ سُئِلَ عَنْ رَجُلٍ تَوَضَّأَ فَبَدَأَ بِمَیَاسِرِهِ، فَقَالَ: لَا بَأْسَ

(Narrators Are Trustworthy - Rijāl Thiqa)

Takhrīj (Referencing):

- Al-Bayhaqī In *Sunan Al-Kubrā* (1/87, Hadith 409), *Kitāb Al-Ṭahārah*, Chapter: *Concession In Beginning With The Left*.
- Al-Dāraquṭnī In *Sunan* (1/154, Hadith 297), *Kitāb Al-Ṭahārah*, Chapter: *Reports Allowing The Washing Of The Left Hand Before The Right*.

Musannaf Ibn Abī Shaybah (Hadith 212):

Al-Rubayyi‘ Bint Mu‘Ādh Ibn ‘Afrā’ Narrates:

“The Messenger Of Allah ﷺ Came To Us, Performed Wuḍū’, And Wiped His Head With The Remaining Water From His Ablution.”

Arabic Text:

حَدَّثَنَا وَكِيعٌ، عَنْ سُفْيَانَ، عَنْ عَبْدِ اللَّهِ بْنِ مُحَمَّدٍ بْنِ عَقِيلٍ قَالَ: حَدَّثَنِي الرَّبِيعُ بْنُ مُعَوِّذٍ ابْنِ عَفْرَاءَ قَالَ: أَنَا النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَتَوَضَّأَ وَمَسَحَ رَأْسَهُ بِمَا بَقِيَ مِنْ وَضُوئِهِ

(Isnād: Weak - Due To ‘Abd Allāh Ibn Muḥammad Ibn ‘Aqīl Being Weak)

Despite The Weak Narrator, Some Scholars Stated That This Narration Gains Strength Through Supporting Reports.

Reference:

Al-Badr Al-Munīr Fī Takhrīj Al-Aḥādīth Wa Al-Āthār Al-Wāqī‘ Ah Fī Al-Sharḥ Al-Kabīr (2/167):

Imām Aḥmad Narrated It In More Detail From The Same Route, In Which It States:

“He Wiped His Head With What Remained From The Water Of His Wuḍū’ In His Hands, Twice — Starting From The Back Of His Head And Then Brought His Hands To His Forehead.”

All These Reports From Al-Rubayyi‘ Bint Mu‘Ādh Are Consistent With What The Author Of *Musannaf* Mentioned.

After Quoting This Hadith, **Muhammad Bin Ali Al-Shawkani** Says That **Imam Al-Tirmidhi** Commented:

“‘Abdullah Ibn Muhammad Ibn ‘Aqīl Is Truthful (ṣadūq), But Some Scholars Have Critiqued Him Regarding His Memory.”

Al-Shawkani Adds:

“Al-Bukhari Said: Ahmad, Ishaq, And Al-Humaydi Used To Use His Hadith As Proof.”

This Indicates That Al-Shawkani Considered This Hadith To Be **ḥasan (Sound)**.

He Further Remarks That Ibn ‘Aqīl Is Well-Known And There Is **A Known Scholarly Disagreement About Whether His Narrations Are Accepted As Proof**.

Reference: *Nayl Al-Awṭār* (1/172)

Shaykh Al-Albani Comments On This Hadith:

“The Prophet ﷺ Wiped His Head With The Remaining Water In His Hand.”

He Says:

“*Its Chain Of Narration Is ḥasan (Sound)*.”

Reference: *Ṣaḥīḥ Sunan Abī Dāwūd* (1/216)

Imam Ibn Al-Mundhir Said:

“It Has Been Narrated From ‘**Ali, Ibn ‘Umar, Abu Umamah, ‘Aṭā’, Al-Hasan, Makhūl, And Al-Nakha‘ī** That:

If Someone Forgets To Wipe His Head During Wudu, But Finds Moisture In His Beard, Then Wiping The Head With That Moisture Is Sufficient.”

Reference: *Fiqh Al-Sunnah* (1/18)

Musannaf Ibn Abi Shaybah – Hadith 213:

Hasan Al-Basri And **‘Urwah Ibn Al-Zubayr** Used To Wipe Their Heads With The Leftover Water On Their Hands.

Ḥadīth Chain: ‘Abd Al-Raḥmān Ibn Mahdī → Ḥammād Ibn Salamah → Hishām → His Father
Also: Ḥumayd → Al-Hasan

(Rijāl Are **Thiqah**; All Narrators Are From **Bukhari And Muslim**)

Musannaf Ibn Abi Shaybah – Hadith 214:

Abū Ja‘Far Al-Bāqir Said:

“The Messenger Of Allah ﷺ Used To Wipe His Head With The Leftover Water From Wudu.”
This Is A **Mursal** Narration But Is **ṣaḥīḥ (Authentic) In Status**.

Narrators: Wakī‘ → Ma‘Mar → Abū Ja‘Far

Ibn Abi Shaybah (Vol 1, P. 308) – Hadith 215:

Ibrāhīm Al-Nakha‘ī Said:

“If A Person Forgets To Wipe His Head And Remembers During Prayer, And There Is Moisture In His Beard, Then He Should Wipe His Head With It.”

Narrators: Abū Bakr Ibn ‘Ayyāsh → Mughīrah → Ibrāhīm

This Hadith Is **ṣaḥīḥ Li Dhātihi (Authentic In Itself)**.

Ibn Baṭṭāl Says:

“It Is Narrated From **‘Ali, Ibn ‘Umar, Abu Umamah, ‘Aṭā’, Makḥūl, Al-Nakha‘ī, And Al-Hasan** That If Someone Forgets To Wipe His Head And There Is Moisture In His Beard, Then He Should Use It To Wipe His Head.”

He Concludes:

“This Indicates That The **Sequence (Tartīb) Is Not Obligatory**.”

Reference: *Sharḥ Ṣaḥīḥ Al-Bukhārī* (Vol 1, P. 291)

Ibn Abi Shaybah (Vol 1, P. 308) – Hadith 216:

‘Aṭā’ Ibn Abī Rabāḥ Said:

“If Someone Forgets To Wipe His Head But Finds Moisture In His Beard, It Suffices For Him To Wipe His Head With It.”

Narrators: Ḥafṣ Ibn Ghiyāth → ‘Abd Al-Malik → ‘Aṭā’

(Narrators Are Trustworthy - Rijāl Thiqah)

Ibn Abi Shaybah (Vol 1, P. 309) – Hadith 219:

‘Ali Ibn Abī Ṭālib Said:

“When Someone Performs Wudu And Forgets To Wipe His Head, But Finds Wetness In His Beard, Then He Should Take That Moisture And Wipe His Head With It.”

Narrators: Yazīd Ibn Hārūn → Ḥammād Ibn Salamah → Qatādah → Khilās (As Per Ḥammād’s Knowledge) → ‘Ali

All Narrators Are Authentic (Rijāl Al-ṣaḥīḥ – From Bukhari And Muslim)

Mu‘Jam Al-Awsaṭ Li-Ṭabarānī (Vol 7, P. 307 – Hadith 7573/7579):

‘Abdullah Ibn Mas‘ūd Narrates That The Messenger Of Allah ﷺ Said:

“Whoever Forgets To Wipe His Head And Remembers During Prayer, And Finds Moisture In His Beard, Let Him Take From It And Wipe His Head—This Is Sufficient For Him. But If He Finds No Moisture, He Must Repeat His Wudu And Prayer.”

Narrators: Abū Al-Aḥwaṣ → ‘Abdullah Ibn Mas‘ūd

This Hadith Is Mu‘allaq (Hanging Chain; Missing Connection Between Compiler And Narrator).

Summary Of The Issue

The Ruling on Maintaining Order (Tarteeb) in Wudu

Brief Explanation:

This issue discusses whether maintaining the sequence of washing the limbs during wudu, as described in the Qur’an, is an **obligatory act (wājib)** or merely a **recommended sunnah**. The disagreement among scholars centers around whether the conjunction “waaw” (و) in the verse of wudu implies a sequential order or just a list of actions.

Evidence from the Text:

Qur’anic Verse:

“Wash your faces, and your hands up to the elbows, and wipe your heads, and wash your feet up to the ankles...” (Surah al-Ma’idah, 5:6)

Key Hadiths and Narrations:

- **Hadith of Jabir:** “Start from where Allah began.” (Al-Nasa’i 2962; Al-Bayhaqi)
- **Ibn Abbas:** The Prophet ﷺ did not always follow the exact order.
- **Ali RA:** “I don’t mind starting wudu from the face or feet.” (Reported in Daraqutni, Bayhaqi, Ibn Abi Shaybah)
- **Abdullah Ibn Mas‘ud:** “No harm in starting wudu from the left limbs.” (Daraqutni Hadith 297)
- Multiple narrations of the Prophet ﷺ and companions wiping their heads with remaining water or in cases where the order wasn’t strictly followed.

Madhhab (School of Thought) Views:

Hanafi:

- **View: Tarteeb is Sunnah**, not obligatory.
- **Evidence:**
 - Ibn Najim in *Al-Bahr al-Ra'iq*: Order is not obligatory; conjunction “waaw” is for connection, not sequence.
 - *Bughiyat al-Muqtasid* (1/230): They do not consider order obligatory.
 - Scholars like Imam Abu Hanifa, Imam Muhammad, Imam Yusuf, Imam Sarakhsi, Al-Kasani, and others are listed as holding this view.

Maliki:

- **View: Tarteeb is Sunnah**, not obligatory.
- **Evidence:**
 - *Mawahib al-Jalil* by Al-Hattab: The well-known opinion in the school is that order is Sunnah.
 - Supported by many Maliki authorities including Imam Malik, Ibn Rushd, Qarafi, Ibn al-Hajj, and others.

Shafi'i:

- **View:** There are two views, but the **dominant opinion is that Tarteeb is obligatory**.
- **Evidence:**
 - *Fath al-Wahhab*: Order is the sixth obligation of wudu.
 - Al-Shirazi in *al-Muhadhdhab*: Majority uphold obligation.
 - A minority view in the school allows for omission if forgotten.
 - Supported by Imam Nawawi, Al-Mahamili, Al-Ghazali, etc.

Hanbali:

- **View: Tarteeb is obligatory**, although a minority within the school disagrees.
- **Evidence:**
 - Al-Buhuti in *Kashshaf al-Qina*: Verse implies order; practice of Prophet ﷺ reinforces it.
 - Al-Mardawi in *al-Insaf*: Mention of differing views but generally support obligation.

Sub-Issue: Meaning of the Waaw (و) in the Verse

Brief Explanation:

The interpretation of the conjunction “waaw” affects whether sequence is required.

Evidence from the Text:

- **Basran grammarians:** Waaw indicates only connection, not order.
- **Kufan grammarians:** Waaw indicates sequence.

Views:

- Hanafis and Malikis side with Basrans → no obligation.
- Shafi'is and Hanbalis with Kufans → obligation.

Sub-Issue: Analogy with Ghusl

Brief Explanation:

Since ghusl doesn't require order, some argue wudu should also be similar.

Evidence:

- *Bughiyat al-Muqtasid* (1/232): Comparison made to ghusl to argue against tartīb being wājib.

View:

- Hanafis and Malikis use this analogy to support non-obligation.

Sub-Issue: Evidence from Practice of Companions

Brief Explanation:

Many companions are reported to have done wudu out of order or used remaining water to wipe head later.

Evidence:

- Ali, Ibn Mas'ud, Hasan al-Basri, Ibrahim al-Nakha'i, Abu Umamah, and others are cited.

Conclusion from These Reports:

- Indicate that **tartīb is not obligatory**, as wudu was accepted despite breaking sequence.

Conclusion:

There Is No Doubt That The Order (Tartīb) In Wudu (Ablution) Is Sunnah, But It Is Not A Condition For The Validity (ṣiḥḥah) Of Wudu. Not A Single Companion (ṣaḥābī) Has Narrated Anything Indicating That They Considered The Order In Wudu To Be Obligatory (Wājib). On The Contrary, There Are Narrations From Some Companions That Show They Did Not View Maintaining The Order In Wudu As Obligatory.

Some People Use The Narration Of 'Uthmān Ibn 'Affān And Others To Argue That Maintaining Order In Wudu Is Obligatory. I Say That While Such A Deduction Isn't Completely Wrong, It Is Weak For Several Reasons. The First Reason Is That The Issue Of The Ruling On Tartīb (Order) In Wudu Is Distinct From Simply Describing The General Method Of Wudu. When We Aim To Establish The Legal Ruling (ḥukm) Of Order In Wudu, Then The Narration Must Clearly Point To That Purpose.

The ḥadīths Of 'Uthmān Or Zayd Merely Describe The General Method Of Wudu, Along With Sunnah Practices. They Do Not Explicitly Indicate That Maintaining Order Is Obligatory. There Are Many Similar Examples: For Instance, In The ḥadīths Regarding Ghusl (Ritual Bath), The Prophet ﷺ Is Also Described As Following A Certain Order, Yet The Scholars Agree That Maintaining Order In Ghusl Is

Not Obligatory. Similarly, In Prayers, The Prophet ﷺ Used To Recite Tasbīḥ Three Times In Rukū‘ And Sujūd, But If Someone Recites It Once, The Prayer Is Still Valid.

This Proves That Not Every Act Of The Prophet ﷺ Is Obligatory; Some Are Recommended (Mustaḥabb). And Who Can Better Understand Which Actions Are Obligatory Or Recommended Than The Companions Themselves?

There Is No Single Narration — Whether Authentic (ṣaḥīḥ) Or Weak (ḍa‘īf) — From The Companions Establishing That Tartīb In Wudu Is Obligatory.

Imām Badr Al-Dīn Al-‘Aynī In *Al-Bināyah* Transmits From Abū Bakr That None Among The Salaf Or Khalaf (Early Or Later Scholars) Regarded Tartīb In Wudu As Obligatory, Except For Imām Al-Shāfi‘ī, Who Was The First To Give A Fatwa That Tartīb In Wudu Is Obligatory. I Say: This Also Appears Correct, Because We Too Did Not Find Anything Explicitly Reported From Any Companion Or Tabi‘ī Indicating That Tartīb In Wudu Is Obligatory.

Earlier, We Mentioned Several ḥadīths Showing That If Someone Forgets To Wipe The Head During Wudu, They May Perform The Mash (Wiping) Using The Remaining Water On Their Hands. These Narrations Come From The Companions And The Tabi‘īn And Are Cited By Later Scholars. This Proves That Tartīb Is Not Obligatory — Because In Such Cases, Tartīb Is Not Maintained, Yet Wudu Remains Valid.

Both Sides Bring Evidence Regarding Tartīb In Wudu. But Our Position — That Tartīb Is Sunnah — Is More Apparent And Supported By Stronger Proof. Most Of The Available Narrations Point To Tartīb Not Being Obligatory, And There Is Nothing Substantial Opposing That.

This Is Also The Position Of The Majority Of Jurists (Jumhūr Fuqahā’ And ‘Ulamā’): That Tartīb In Wudu Is Sunnah Or Recommended. Among Those Holding This View Are Abū Ḥanīfah, Mālik, One Narration From Al-Shāfi‘ī, One Narration From Aḥmad Ibn Ḥanbal, Muṣ‘Ab Ibn Sa‘D, Al-Layth, Sufyān Al-Thawrī, Al-Awzā‘ī, ‘Aṭā’ Ibn Abī Rābah, Dāwūd Al-Nazzā‘ī, Al-Muzanī, And Al-Baghdādī. Narrations Support This From ‘Alī Ibn Abī Ṭālib, ‘Abdullāh Ibn Mas‘ūd, Al-Rubayyi‘ Bint Mu‘Awwidh Ibn ‘Afra’, Ibrāhīm Al-Nakha‘ī, Al-Ḥasan Al-Baṣrī, Abū Ja‘Far, Makhūl, Rabī‘ Ah, And Others As Mentioned By The Scholars.

The Religion Perfected By The Prophet ﷺ Was Transmitted In Full By The Companions. And If A Companion Made An Ijtihād-Based Error, Other Companions Would Correct It With Their Fatāwā. All Narrations Showing Tartīb Is Not Obligatory Are Firm And Valid Proofs. And Allah Knows Best.

Likewise, If A Person Has Both Minor And Major Ritual Impurity (I.E., Needs Both Wudu And Ghusl), And He Performs Ghusl Without Performing A Separate Wudu, Then Does This Suffice To Lift Both Impurities?

On This Issue, There Is Consensus Among The Arab Scholars And Schools Of Thought, Including The Ḥanafīs, Mālikīs, Shāfi‘īs, And Ḥanbalīs, That Yes — A Single Ghusl Suffices For Both, Provided It Is Done With The Proper Intention.

Ḥanafī School

(*Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid*, 1/237):

From *Al-Durr Al-Mukhtār* By Ibn ‘Ābidīn (1/248):

"By ‘Intending Wudu’, The Meaning Is Purification, Since Intention Is A Condition For Purification. ... If A Person Has Two Impurities (E.G., Janābah And Another That Requires Wudu), He Should Intend Both. If He Intends Only One, The Other Is Not Lifted."

Mālikī School

(*Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid*, 1/237):

From *Sharḥ Mukhtaṣar Khalīl* By Al-Khurashī (1/129):

"If Someone Commits Multiple Acts That Nullify Purity, And He Intends One While Forgetting Or Remembering The Other — Regardless Of Which Came First — It Suffices Because All The Acts Have The Same Legal Effect, And Their Rulings Overlap."

Shāfi‘ī School

From *Mughnī Al-Muḥtāj* By Al-Shirbīnī (1/141):

"If Someone Has Minor Impurity And Performs A Ghusl For Janābah, Then His Prayer Is Certainly Valid."

Ḥanbalī School

From *Kashshāf Al-Qinā‘* By Al-Buhūtī (1/90):

"If Multiple Impurities — Whether Requiring Wudu Or Ghusl — Are Present, And One Intends To Lift Any Of Them, All Are Lifted, Because Ritual States Overlap. So If Someone Intends To Lift One Of Them, All Others Are Lifted By Default."

Also, Since Tartīb In Ghusl Is Sunnah, This Further Hints That Tartīb In Wudu Is Also Sunnah — Not Obligatory.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 10 – The Ruling On Separation (Delay) During Wudu

There Is Consensus (Ijmā‘) Among The Jurists That A Slight Delay Between Washing The Limbs Of Wudu Does Not Invalidate The Wudu. However, There Is A Disagreement Regarding A Lengthy Delay Between Washing The Limbs.

Al-Nawawī Narrated This Consensus In *Al-Majmū‘* (1/452), Saying:

“As For The Ruling On This Issue: A Slight Separation Between The Limbs Of Wudu Does Not Harm It By Consensus Of The Muslims. This Ijmā‘ Was Reported By Shaykh Abū Hāmid, Al-Maḥāmīlī, And Others.”

Also, See *Nihāyat Al-Muḥtāj* By Al-Ramlī (1/194).

In *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (1/242), It States:

“The Scholars Agree That A Slight Delay (In Washing Limbs) Has No Effect, But The Disagreement Is Regarding A Lengthy Delay.”

There Is Therefore A Disagreement Among The Jurists About The Ruling Of “*Tafriq*” (Interruption Or Delay) During Wudu.

“*Muwālāh*” Means Continuity. See: *Al-Miṣbāḥ Al-Munīr* By Al-Fayūmī (2/672).

Definition And Example

This Means: If Someone Washes One Limb And Then Delays Washing The Next To The Point That The First Limb Dries In A Normal Climate—Or Performs Wudu At Significantly Different Times—Then That Is Considered A Separation.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/242) Says:

“One Should Not Delay Washing A Limb To The Point That The Previous Limb Dries In A Moderate Climate.”

Juristic Views By Madhhab

Ḥanafī Madhhab

See: *Al-Durr Al-Mukhtār* By Ibn ‘Ābidīn (1/122):

“Al-Zayla‘ī Defined It As Washing The Second Limb Before The First Dries. Al-Ḥaddādī Added: In Moderate Weather, With A Normal Body State, And In The Absence Of Excuse. Al-Akmal In *Al-Taqrīr* Defined It As Consecutive Acts Without Any Dryness Of A Limb Occurring In Moderate Air.”

Mālikī Madhhab

See: *Sharḥ Mukhtaṣar Khalīl* By Al-Kharshī (1/128):

“The Time Gap That Invalidates (Continuity) In Cases Of Inability Is Either Defined By Custom Or By The Drying Of Limbs In A Moderate Climate. The Latter Is The Famous View, And The View Of *Al-Mudawwanah*.”

Shāfi‘ī Madhhab

See: *Nihāyat Al-Muḥtāj* By Al-Ramlī (1/194):

“It Is Considered ‘Following Consecutively’ That One Washes The Second Limb Before The First Dries, In A Moderate Time, Temperament, And Climate.”

Ḥanbalī Madhhab

See: *Kashshāf Al-Qinā‘* By Al-Buhūtī (1/105):

“Muwālāh (Continuity) Means Not Delaying The Washing Of A Limb Until The Previous One Dries... This Applies In A Moderate Climate Or Its Equivalent. If One Delays Wiping The Head Until The Face Dries But Not The Hands, The Wudu Is Still Valid.”

Example:

If Someone Washes His Hands, And After Five Minutes Wipes His Head—Without Breaking Wudu In Between—Is This Valid? According To Mālik, One Should Not Interrupt Wudu; Washing Each Limb Consecutively Is Obligatory According To One View, And This Is The Dominant View Among The Mālikīs.

Hanafīs And Shāfi‘īs Say Continuity Is Not *Fard* (Obligatory). Mālik And Aḥmad Differ; According To One Narration, They Consider It Not *Fard* Either.

Sources:

- *Bidāyat Al-Mujtahid*, Vol 1, P. 17
- *Qawānīn Al-Fiqhiyyah*, P. 21
- *Sharḥ Al-Madhhab*, Vol 1, P. 489
- *Al-Durr Al-Mukhtār*, Vol 1, P. 113
- *Sharḥ Al-Ṣaghīr*, Vol 1, P. 111
- *Sharḥ Al-Kabīr*, Vol 1, P. 90
- *Mughni Al-Muḥtāj*, Vol 1, P. 61
- *Kashshāf Al-Qinā‘*, Vol 1, P. 117
- *Al-Mughnī*, Vol 1, P. 138
- *Al-Muḥaddab*, Vol 1, P. 19

Mālikī Madhhab – Three Views:

1. **Absolutely Obligatory (Fard)** – This Is The View Of ‘Abd Al-‘Azīz Ibn Abī Maslama.
2. **Absolutely Sunnah** – This Is The Famous And Dominant View In The Madhhab.
3. **Obligatory In Washing, Sunnah In Wiping** – This Is The Weakest Of The Three.

According To The First View: If A Person Separates Between Washing Limbs—Even By Forgetfulness—He Must Repeat Both Wudu And ṣalāh.

According To The Second View: If The Delay Was Due To Forgetfulness, It Is Excused; Wudu Is Valid. But If Done Deliberately, There Are Two Opinions:

- It Is Still Valid (View Of Muḥammad Ibn ‘Abd Al-Ḥakam).
- He Must Repeat Wudu And ṣalāh (View Of Ibn Al-Qāsim).

See:

- *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (1/244)
- *Mawāhib Al-Jalīl* By Al-Ḥaṭṭāb (1/223)
- *Kashshāf Al-Qinā’* (1/105)

Summary

- **Ḥanafīs:** Continuity Is *Not Obligatory* In Wudu.
Badā’ī’ Al-Ṣanā’ī’ By Al-Kāsānī (1/18):

“Continuity Is Not A Condition According To The Majority Of Our Scholars. According To Mālik, It Is A Condition.”

- **Mālikīs** (Famous View): If One Forgetfully Delays Washing, The Wudu Is Valid.
‘Uyūn Al-Masā’il By Qāḍī ‘Abd Al-Wahhāb (P. 69):

“Some Mālikīs Say: Continuity Is Recommended.”

- **Shāfi‘īs:** Continuity Is *Sunnah*, Not *Fard*.
Mughnī Al-Muḥtāj By Al-Khaṭīb Al-Shirbīnī (1/192):

“Among The Sunan Of Wudu Is Continuity, Such That The Previous Limb Does Not Dry Before Starting The Next.”

- **Ḥanbalīs:** According To One Report From Aḥmad, Continuity Is Not Obligatory.
Al-Mughnī By Ibn Qudāmah (1/102):

“Qāḍī Said: Ḥanbal Narrated From Aḥmad That It Is Not Obligatory.”

However, The **Dominant View** In The Ḥanbalī Madhhab Is That Continuity *Is Obligatory*.
Bughyat Al-Muqtasid (1/246):

“The Other Opinion Is That Continuity Is *Wājib*; This Is The Well-Known View In The Ḥanbalī Madhhab.”

Those Who Say It (Continuous Wudu) Is Obligatory Present Certain Hadiths In Support

They Present **Abu Dawood Hadith 173**, A Narration From **Hazrat Anas (RA)**, Where He States: A Man Came To The Messenger Of Allah ﷺ Having Performed Wudu But Had Left A Dry Spot On His Foot The Size Of A Dirham. The Prophet ﷺ Said To Him:

"Go Back And Perform Your Wudu Properly."

This Hadith's Chain Is **Weak (Isnād ḍa'īf)**.

In This Sanad, **Jarir Ibn Hazim** Narrates From **Qatadah**, And This Is Considered Weak.

There Is Considerable Scholarly Criticism On This Chain. Jarir Ibn Hazim Ibn Zayd Ibn 'Abdullah Ibn Shuja' Narrates From Qatadah Ibn Di'Āmah.

Scholarly Criticism Of The Chain:

1. **Imam Abu Al-Qasim Al-Hadhrami**, In His Book *Al-Mukhtalif Wa Al-Mu'talif*, States That **Jarir Ibn Hazim Experienced Ikhtilāṭ (Memory Confusion)** In His Later Years, And Scholars **Stopped Narrating From Him Until His Death**.
(Ikmal Tadhīb Al-Kamāl, Vol. 3, P. 180)
2. **Ibn Mahdi** Said: No One Narrated From Him During The Time Of His Ikhtilāṭ.
(Al-Kawākib Al-Nayyirāt, Vol. 1, P. 111)
3. **Abu Hatim** Also Stated That He Experienced Ikhtilāṭ Before His Death.
(Al-Kawākib Al-Nayyirāt, Vol. 1, P. 111)
4. **Imam Al-'Aqīlī**, In His *Ḍu'afā'*, Quotes **Yahya Ibn Ma'īn** As Saying: "He Is Weak When Narrating From Qatadah."
(Ikmal Tadhīb Al-Kamāl, Vol. 3, P. 180)
5. **Imam Ahmad Ibn Hanbal** Said: "He Narrates Strange (Unfamiliar Or Odd) Narrations From Ayyub."
When It Was Said To Him That **Hammad Ibn Zayd** Said Jarir Had Memorized Well, Ahmad Smiled And Said, "Yes, But In His Time..."
(Ikmal Tadhīb Al-Kamāl, Vol. 3, P. 180)
6. **Ibn Hajar** Stated: "He Is Trustworthy (Thiqa), But His Narrations From Qatadah Are Weak And Contain Errors, Unless One Interprets Them As Correct."
(*Taqrīb Al-Tahdhīb*, Vol. 1, P. 196)
7. **'Abdullah Ibn Ahmad** Asked **Yahya Ibn Ma'īn** About Him. He Replied, "There's Nothing Wrong With Him," But Added That **Jarir's Narrations From Qatadah From Anas Are Munkar (Denounced)**.
(*Tahdhīb Al-Tahdhīb*, Vol. 1, P. 294)
8. **Imam Abu 'Īsā Al-'Adī** Also Said: "His Hadiths Are Sound Except When He Narrates From Qatadah—Then They Are Weak."
(Al-Kawākib Al-Nayyirāt, Vol. 1, P. 111)
9. **Imam Al-Dhahabi** Said: "He Is Thiqa, But When He Narrates From Qatadah, It Becomes Weak, And His Narrations Are Munkar. This Is Due To His Confusion."

(*Al-Ightibāṭ Bimān Rumiya Min Al-Ruwāt Bil-Ikhtilāṭ*, Vol. 1, P. 73, No. 17;
Dhikr Asmā' Man Tukullima Fīh Wa Huwa Muwaththaq, Vol. 1, P. 58, No. 64)

10. **Imam Burhān Al-Dīn Al-Ḥalabī** (Abu Al-Wafā' Ibrāhīm Ibn Muḥammad Ibn Khalīl Al-Ṭarābulusī Al-Shāfi'ī) Mentions In The Work Of **Ibn Al-Ajmi (D. 841 AH)** Titled *Al-Ightibāṭ*... That:

Based On Al-Dhahabi's Statement, **Jarir Is Thiqa**, But His Narrations From Qatadah Are **Weak Due To Ikhtilāṭ**, And Contain **Errors And Denounced Reports**.

(*Al-Ightibāṭ*, Vol. 1, P. 73, No. 17)

11. **Imam Ahmad Ibn Hanbal**, Narrating From 'Affān, Regarding Jarir's Chain (From Qatadah, From Anas, From The Messenger Of Allah ﷺ), Said That **Abu Jazrah** Swore: "By Allah, This Is A Lie Qatadah Narrated From Us."
(*Mawsū'at Aqwāl Al-Imām Aḥmad Ibn Ḥanbal*, Vol. 1, P. 198, No. 367)

Conclusion:

Jarir's Narrations From Qatadah Are Weak.

Although **Some Hadiths Of Jarir From Qatadah** Do Appear In **Bukhari And Muslim**, As Is Common With Many Narrators, The Scholars Of Hadith May **Differ In Grading A Narrator**—Some Deem Him Reliable, Others Weak.

This Same Rule Applies To **Isnād Chains**, And Such Disagreement Is Well-Known Among Scholars Of Hadith.

This Is Precisely Why **Many Early Scholars (Salaf)** Criticized Even Narrators Whose Reports Appear In The *Sahihayn* (Bukhari & Muslim).

For Further Details, Refer To My Book *Ma'Rifat 'Ilm Al-Ḥadīth*.

Abu Dawood Hadith 175:

Khalid Ibn Ma'dān Narrates From Some **Companions Of The Prophet ﷺ** That:

The Messenger Of Allah ﷺ Saw A Man Performing Prayer, And There Was A Dry Spot On The Upper Part Of His Foot The Size Of A Dirham (Coin) That Water Had Not Touched.

The Messenger Of Allah ﷺ Ordered Him To **Repeat His Wudu And Prayer**.

Arabic Text:

حَدَّثَنَا حَيُّوَةُ بْنُ شُرَيْحٍ، قَالَ: ثَنَا بَقِيَّةٌ، عَنْ بُجَيْرٍ، هُوَ ابْنُ سَعْدٍ، عَنْ خَالِدٍ، عَنْ بَعْضِ أَصْحَابِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: أَنَّ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ رَأَى رَجُلًا يُصَلِّي وَفِي ظَهْرِ قَدَمِهِ لُغْمَةٌ قَدَرُ الدِّرْهِمِ لَمْ يُصِبْهَا الْمَاءُ، فَأَمَرَهُ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ أَنْ يُعِيدَ الْوُضُوءَ وَالصَّلَاةَ.

(Isnād: Ḥasan)

Scholarly Criticism On This Hadith:

1. **Ibn Hazm** Said: *This Narration Is Not Sahih, It Is Mursal (Missing The Name Of The Companion).*
(*Sharḥ Abī Dāwūd By Al-‘Aynī, Vol. 1, P. 941*)
2. **Imam Al-Bayhaqi** Also Classified It As **Mursal**.
(*Sharḥ Abī Dāwūd By Al-‘Aynī, Vol. 1, P. 941*)
3. **Yahya Ibn Sa‘īd Al-Qaṭṭān** Said: *It Is Mursal*.
(*‘Awn Al-Ma‘Būd, Sharḥ Sunan Abī Dāwūd, Vol. 1, P. 68*)
4. **Ibn Al-Mulaqqin** Classified The Chain As **Munqaṭi‘ (Disconnected)**.
(*Badr Al-Munīr, Vol. 2, P. 237*)
5. **Al-Awzā‘ī** Said: *It Is Weak*.
(*Badr Al-Munīr, Vol. 2, P. 237*)
6. **Imam Al-Dāraquṭnī**, Quoting From Al-Awzā‘ī, Also Classified It As **Weak**.
(*Badr Al-Munīr, Vol. 2, P. 237*)
7. **Imam Al-Nawawī** Also Said: *It Is Weak*.
(*Badr Al-Munīr, Vol. 2, P. 237*)

However, A Similar Hadith With This Matn (Text) Appears In Ṣaḥīḥ Muslim, Vol. 1, Hadith 243:

‘**Umar (RA)** Saw A Man Who Had Performed Wudu But A Spot On His Foot Was Dry.
‘Umar Said: *The Messenger Of Allah ﷺ Also Saw Such A Case And Instructed:*
“Go Back And Perfect Your Wudu And Then Perform The Prayer.”

Arabic Text:

حَدَّثَنِي سَلَمَةُ بْنُ شَبِيبٍ ، حَدَّثَنَا الْحَسَنُ بْنُ مُحَمَّدٍ بْنِ أَعْيَنَ ، حَدَّثَنَا مَعْقِلٌ ، عَنْ أَبِي الرَّبِيعِ ، عَنْ جَابِرٍ : أَخْبَرَنِي عُمَرُ بْنُ الْخَطَّابِ أَنَّ رَجُلًا تَوَضَّأَ فَتَرَكَ مَوْضِعَ ظِفْرِ عَلَى قَدَمِهِ ، فَأَبْصَرَهُ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ ، فَقَالَ : ارْجِعْ فَأَحْسِنْ وَضُوءَكَ فَرَجَعَ ثُمَّ صَلَّى

(Ṣaḥīḥ Li-Dhātīhi – Authentic In And Of Itself)

Commentary:

My View Is That This Hadith Does Not Constitute Clear Evidence For Those Who Use It To Argue That **Wudu Is Invalid Without Complete Water Coverage** (I.E., For Making It Obligatory In Such Detail).

Rather, The Hadith Addresses The **Person Who Fails To Properly Wash The Limbs** During Wudu.

Those Who Say Washing The Feet Is Not Immediately Obligatory (Not Wājib At Once) Present The Following Hadiths As Evidence:

1. Ṣaḥīḥ Al-Bukhārī, Hadith 249

Narrated By Maymūnah (The Wife Of The Prophet ﷺ):

The Messenger Of Allah ﷺ Performed Ablution (Wudū') Like The One For Prayer, But Did **Not Wash His Feet**. He First Cleaned His Private Parts And Whatever Impurity Had Affected Him, Then Poured Water Over His Body. After That, He Moved Away (From Where He Had Been Standing) And **Washed His Feet**.

This Was The Way The Messenger Of Allah ﷺ Performed **Ghusl (Ritual Bath) For Janābah**.

Arabic:

حَدَّثَنَا مُحَمَّدُ بْنُ يُوسُفَ قَالَ: حَدَّثَنَا سُفْيَانُ ، عَنِ الْأَعْمَشِ ، عَنْ سَالِمِ بْنِ أَبِي الْجَعْدِ ، عَنْ كُرَيْبٍ ، عَنِ ابْنِ عَبَّاسٍ ، عَنْ مَيْمُونَةَ زَوْجِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَتْ: تَوَضَّأَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَضُوءَهُ لِلصَّلَاةِ غَيْرَ رِجْلَيْهِ ، وَغَسَلَ فَرْجَهُ ، وَمَا أَصَابَهُ مِنَ الْأَذَى ، ثُمَّ أَقَاضَ عَلَيْهِ الْمَاءَ ، ثُمَّ نَحَى رِجْلَيْهِ فَعَسَلَهُمَا ، هَذِهِ غُسْلُهُ مِنَ الْجَنَابَةِ .

(Ṣaḥīḥ Li-Dhātihi – Authentic In And Of Itself)

Those Who Argue That Strict Order (Tartīb) Is Not *Wājib* (Obligatory) Use This Hadith As Evidence: The Prophet ﷺ Performed The Full Wudu' **Except His Feet**, And Then Washed Them **At The End After Completing Ghusl**.

This Indicates That Some **Flexibility (Tarakhkhuṣ)** Is Permissible In The Order Of Washing During Wudu'.

2. Sunan Al-Kubrā Al-Bayhaqī, Hadith 398

Narrated From Ibn 'Umar:

Ibn 'Umar Was Performing Wudu In The Market. He Washed His Hands And Face Three Times Each. Then He Entered The Mosque And Wiped Over His Khuffayn (Leather Socks), **After His Wudu Had Dried**.

Arabic:

أَخْبَرَنَا أَبُو الْحَسَنِ مُحَمَّدُ بْنُ حَسَنِ الْمُهَرَّجَانِيُّ الْفَقِيهُ ، ثنا أَبُو سَهْلِ يَشْرُ بْنُ أَحْمَدَ بْنِ يَشْرِ ، ثنا دَاوُدُ بْنُ الْحُسَيْنِ الْبَيْهَقِيُّ ، نا قُتَيْبَةُ بْنُ سَعِيدٍ ، نا مَالِكُ بْنُ أَنَسٍ ، عَنْ نَافِعٍ أَنَّ ابْنَ عُمَرَ تَوَضَّأَ فِي السُّوقِ ، فَعَسَلَ يَدَيْهِ وَوَجْهَهُ وَذِرَاعَيْهِ ثَلَاثًا ثَلَاثًا ، ثُمَّ دَخَلَ الْمَسْجِدَ ، فَمَسَحَ عَلَى خُفَيْهِ بَعْدَ مَا جَفَّ وَضُوءُهُ

(Chain Is Weak – Isnād Da'īf)

One Of The Narrators, Abu Ḥusayn, Is **Majhūl (Unknown)**.

3. Al-Muwatṭa', Hadith 101

Another Narration From Ibn 'Umar:

Ibn 'Umar Urinated In The Market, Then Performed Wudu By Washing His Face, Hands, And Wiping Over His Head.

Then He Was Called To Join A Funeral Prayer. He Entered The Mosque And **Wiped Over His Khuffayn** And Then Performed The Prayer.

Arabic:

مَالِكٌ ، عَنْ نَافِعٍ ، أَنَّ عَبْدَ اللَّهِ بْنَ عُمَرَ بَالَ بِالسُّوقِ ، ثُمَّ تَوَضَّأَ وَغَسَلَ وَجْهَهُ وَيَدَيْهِ وَمَسَحَ بِرَأْسِهِ ، ثُمَّ دَعَى لِحْجَانَهُ لِيُصَلِّيَ عَلَيْهَا حِينَ دَخَلَ الْمَسْجِدَ فَمَسَحَ عَلَى خُفَّيْهِ ، ثُمَّ صَلَّى عَلَيْهَا .

(Ṣaḥīḥ Li-Dhātīhi – Authentic)

Scholarly Views On The Authenticity Of This Hadith:

1. **Ibn Al-Mundhir:** This Hadith Is Established (Sābit).
(*Fath Al-Bārī* By Ibn Rajab, Vol. 1, P. 289)
2. **Imām Al-Bayhaqī:** This Hadith Is ṣaḥīḥ.
(*Sunan Al-Kubrā*, Vol. 1, P. 84, Hadith 398)
3. **Ibn Al-Mulaqqin:** There Is No Doubt In The Soundness Of Its Chain; It Follows The Chain: Mālik → Nāfi' → Ibn 'Umar.
(*Badr Al-Munīr*, Vol. 2, P. 262)
4. **Ibn Ḥajar:** He Also Graded It ṣaḥīḥ.
(*Fath Al-Bārī*, Vol. 1, P. 446)
5. **Muḥammad Ibn 'Alī:** The Chain Is Sound.
(*'Awn Al-Ma'Būd*, Vol. 1, P. 67)
6. **Mubārakpūrī:** This Hadith Is ṣaḥīḥ.
(*'Awn Al-Ma'Būd*, Vol. 1, P. 67)
7. **Imām Majd Al-Dīn Ibn Al-Athīr (D. 606 AH):** He Declared It Authentic.
(*Jāmi' Al-Uṣūl*, Vol. 6, P. 236, Hadith 5271)
8. **Shams Al-Dīn Ibn 'Abd Al-Hādī (D. 744 AH):** He Said The Hadith Is Authentic And Well-Known (Mashhūr).
(*At-Talqīn Al-'Ilal*, Vol. 1, P. 161)
9. **The Author Of *Fiqh Al-'Ibādāt*** Also Uses This Hadith As A Proof.
(*Fiqh Al-'Ibādāt*, Vol. 1, P. 97)

Umar (May Allah Be Pleased With Him) Saw A Man During Wudu Whose Heel Had A Small Spot That Was Shining (Dry) — Meaning Water Had Not Touched It During Ablution. So Umar Asked Him, “Did You Pray With This Wudu?” The Man Replied, “O Commander Of The Faithful, It Is Extremely Cold, And I Don't Have Anything To Protect Myself With.” Umar Then Requested A Garment For Him, And Said: “Wash The Part Of Your Foot That Was Missed, And Repeat The Prayer.”

This Narration Has Been Transmitted By Al-Dāraqutnī And Al-Bayhaqī With A Sound Chain (Sanad Jayyid); All The Narrators Are Trustworthy (Thiqat).

Reported With This Chain:

Aḥmad Ibn 'Abd Allāh Al-Wakīl → Al-Ḥasan Ibn 'Arafah → Hushaym → Al-Ḥajjāj And 'Abd Al-Malik → 'Aṭā' → Ubayd Ibn 'Umayr Al-Laythī Who Said: Umar Ibn Al-Khattab Saw A Man With A Dry Patch On The Back Of His Foot That Water Had Not Touched. Umar Said To Him, “With This Wudu, You Attend Prayer?” He Replied, “O Commander Of The Faithful, It Is

Extremely Cold And I Don't Have Anything To Warm Myself With.” Umar Then Felt Compassion For Him After Initially Being Angry. He Said To Him, “Wash What You Missed From Your Foot And Repeat The Prayer,” And He Gave Him A Cloak.

Bayhaqī Narrated It With The Following Isnad:

Abū Bakr Aḥmad Ibn Muḥammad Ibn Aḥmad Ibn Al-Ḥārith Al-Faqīh → ‘Alī Ibn ‘Umar Al-Ḥāfiẓ → Aḥmad Ibn ‘Abd Allāh → Al-Ḥasan Ibn ‘Arafah → Hushaym → Al-Ḥajjāj And ‘Abd Al-Malik → ‘Aṭā’ → ‘Ubayd Ibn ‘Umayr Al-Laythī → [Same Text].

Some Scholars Derive From This Narration That Delay (Tafrīq) In Wudu Is Permissible. Others Who Say Tafrīq Is Not Allowed Interpret This Hadith Differently, Such As Muḥammad Ibn ‘Abd Al-Bāqī Al-Zarqānī Al-Miṣrī Al-Azhārī, Who, In His *Sharḥ Al-Muwatta’* (Vol. 1, P. 174), Quotes Abū ‘Umar Saying That The Mālikīs Explain The Narration As Follows: That Ibn ‘Umar Forgot To Wipe His Feet, Or Some Say The Mosque Was Very Close To The Market, So He Arrived Quickly And Finished Wudu There.

Al-Balkhī Said It’s Possible That He Simply Forgot Or That The Wudu Would Still Be Valid If The Water Was Sufficient.

Ibn Al-Qāsim Narrated From A Group That **Mālik Did Not Consider The Hadith Of Ibn ‘Umar As Evidence That Delay In Wudu Is Permissible.**

Those Who Consider Continuity In Wudu (Without Delay) *Obligatory* Respond By Saying: **All Such Interpretations Are Baseless**, And Such Ta’wīl (Interpretation) Must Have Supporting Evidence.

Abū Dāwūd Reports A Hadith From **Khālīd**, That **The Prophet ﷺ Saw A Man Whose Foot Had A Dry Patch, And He ﷺ Commanded Him To Repeat Both The Wudu And The Prayer.**

Abū Dāwūd And Aḥmad Say The Isnad Is **Jayyid (Sound).**

A Similar Narration From ‘Umar Also Exists, Where He Saw A Man In The Same State And **Ordered Him To Repeat The Wudu And The Prayer.** **Ibn Asram** Points Out:

None Of These Narrations Say The Body Part Dried Due To Delay — Rather, They Missed Washing It In The First Place, Which Is Why It Was Dry.

(*Sharḥ ‘Umdat Al-Fiqh*, Vol. 1, P. 207)

Ibn Taymiyyah States:

One Should Not Delay In Wudu To The Extent That Earlier Limbs Dry Up.

He Mentions From **Aḥmad Ibn Ḥanbal** That It Is *Not* Obligatory To Maintain Continuity (Muwālāt), As The Qur’anic Command Is Simply To Wash The Limbs, Not To Do So Without Breaks.

Al-Khiraqī Also Doesn't Consider It Obligatory, But **Aḥmad** Says This Is The View Of **Al-Awzā'ī**, One Of The **Two Views Of Al-Shāfi'ī**, And Also **The Position Of The Qāḍī**.

Aḥmad Confirms This Is Also **The Ḥanafī View**, As The **Qur'anic Verse** Only Obligates Washing.

Mālik Says: If The Intention Was Separated, Wudu Won't Count; Otherwise It Will. He Refers To The Hadith Of 'Umar As Evidence.

The Hadith In **Abū Dāwūd** — Where The Prophet ﷺ Saw A Man With A Dry Spot On His Foot And **Ordered Him To Repeat The Wudu And Prayer** — Is Cited In **Al-Mughnī** (Vol. 1, P. 102).

Ibn Qudāmah Discusses This Extensively In Multiple Places In *Al-Mughnī*.

Abū Ishāq Ibrāhīm Ibn 'Alī Al-Shāfi'ī Says It Is **Recommended (Mustaḥabb)** Not To Delay Wudu To The Point Limbs Dry.

(*Madhhab Al-Shāfi'ī Fi'l-Fiqh*, Vol. 1, P. 44)

Imām Nawawī Also Considers It Mustaḥabb And Cites The Hadith:

Ibn 'Umar Was Performing Wudu — He Had Washed His Face And Hands And Wiped His Head — Then Someone Called Him For A Janāzah (Funeral). He Returned And Wiped Over His Shoes.

Al-Bayhaqī Narrates This And Graded It **ṣaḥīḥ**.

Ibn Rajab Al-Ḥanbalī, In His Commentary *Fath Al-Bārī* (Vol. 1, P. 289), Has A Whole Chapter On **“Tafrīq Al-Wuḍū’”** (Interruption During Wudu). He Says:

Ibn 'Umar Washed His Feet After The Limb Had Dried.

There's A Narration From **Aḥmad Ibn Ḥanbal** Saying:

Ibn 'Umar Did Wudu, Then Went Somewhere And Later Washed His Feet.

Ibn Al-Mundhir Reports: Ibn 'Umar Made Wudu In The Market, Was Called To A Janāzah, Then Wiped Over His Khuff And Prayed.

A Similar Report Exists From **Mālik**, As Previously Mentioned From The *Muwaṭṭa'*.

There Are **Three Main Scholarly Opinions** On This Issue Of Delay In Wudu And Ghusl:

1. **Permissible:** The View Of **Imām Bukhārī**, And Also Held By **Abū Ḥanīfah**, **Al-Shāfi'ī**, **Sufyān Al-Thawrī**, **Ishāq (In One Opinion)**, And **Aḥmad (In One Opinion)**.
2. **Not Permissible — Repetition Of Wudu And Ghusl Is Obligatory:** This Is The View Of **Mālik** And **Aḥmad (In Another Opinion)**.
3. **Permissible In Ghusl, But Not In Wudu:** This Is The Apparent Position Of **Aḥmad Ibn Ḥanbal**.

Those Who Say **Repetition Is Obligatory If The Limb Dries** Include: **Qatādah, Al-Awzā'ī, Abū Al-Layth, The Early Opinion Of Al-Shāfi'ī, And Ishāq (In One View).**

Ibrāhīm Al-Nakha'ī Said: There's No Harm In Delaying Between Limbs.
Similar Is Narrated From **Ibn Al-Musayyib** And **'Alī Ibn Al-Ḥusayn**.

Ḥasan Al-Baṣrī Said:

If Someone Delays Washing His Feet In Wudu To The Point They Dry, If He Is Still In The Process Of Wudu, He Should Wash Them. If Not, He Must Start Again.

From This, It's Derived That **Umar Commanded That Man To Repeat The Wudu**, Because A Portion Of His Foot Was Dry.

There Is Some **Variation In The Wordings** Of The Narration From **Ibn 'Umar** — In Some It Says “Wash What You Missed,” And In Others, “Perform Wudu.”

There Is Also A Marfū' (Prophetic) Hadith In This Regard:

The Prophet ﷺ Saw A Man With A Dry Patch The Size Of A Dirham On His Foot, So He ﷺ **Commanded Him To Repeat Wudu And The Prayer.**
Aḥmad Said The Chain Is **Jayyid (Sound).**

As For **Ghusl**, The Prophet's ﷺ Hadith Shows Otherwise.
'Alā' Ibn Ziyād Narrated That:

The Prophet ﷺ Was Performing Ghusl And Noticed A Clean Area Of His Body That Water Had Not Reached, So He Took Water With His Hair And Applied It There.
This Is **Evidence That Delay During Ghusl Does Not Invalidate It.**

(*Fatḥ Al-Bārī*, Ibn Rajab, Vol. 1, P. 289)

Ibn Ḥajar (Al-'Asqalānī) Establishes A Chapter Titled “*On Interruption (Tafrīq) During Wuḍū'*” In *Fatḥ Al-Bārī* And Says:

Ibn 'Umar Washed His Feet **After The Limbs Of Wudu Had Dried**, Indicating That **He Delayed.**

Those Who Say **It Is Permissible To Delay Between The Acts Of Ghusl And Wudu** — This Is A View Attributed To **The Later Shāfi'ī Scholars** — Base Their Argument On The Verse Of Allah Commanding The Washing Of Limbs. They Say:

“Whoever Washes These Limbs Has Fulfilled The Command — Whether The Limbs Are Washed Together Or With A Gap.”

This View Is Supported By The **Practice Of Ibn ‘Umar**, As Well As The Views Of:

- **Sa‘īd Ibn Al-Musayyab**
- **‘Aṭā’ Ibn Abī Rabāḥ**
- **And A Group Of Scholars.**

On The Other Hand:

- **Rabī‘ Ah And Mālik Say:**

“Whoever Intentionally Separates (With A Delay) Must Repeat The Wudu. If It Was Unintentional, Then It’s Excused.”

Mālik Also Said: “If The Delay Is Short, Then Continue From Where You Left Off. But If The Delay Is Long, Repeat The Wudu.”

- **Qatādah And Al-Awzā‘ī Say:**

“Repetition Is Not Required **Unless** The Limbs Have Dried.”

- **Ibrāhīm Al-Nakha‘ī Says:**

“This Is Allowed In Ghusl, And Also In Non-Wudu Situations, Absolutely.”

Ibn Al-Mundhir Mentioned All Of This And Commented:

“There Is No **Clear Evidence** For Those Who Set A **Fixed Time Limit** (For Tafrīq) And Consider It Obligatory To Adhere To It.”

Imām Ṭahāwī Said:

“The Drying Of Limbs Is Not In Itself A Reason For The Invalidity Of Purity (ṭahārah), Just As If **All** The Limbs Of Wudu Dry After Completing It, The Wudu Remains Valid.”

As For The **Narration From Ibn ‘Umar**, It Is Established, And **Imām Mālik Narrated It From Nāfi‘**, As Previously Mentioned — And The **Chain Is Authentic** (*Sanad ṣaḥīḥ*).

Imām Al-Shāfi‘ī Said:

“His Limbs Dried Because He Had Performed Wudu **Before Walking From The Market To The Masjid** — And Such A Time Is Enough For The Limbs To Dry.”
(*Fatḥ Al-Bārī*, Vol. 1, P. 446)

Ibn Al-Mulaqqin, Sirāj Al-Dīn Abū Ḥafṣ ‘Umar Ibn ‘Alī Ibn Aḥmad Al-Shāfi‘ī Al-Miṣrī (D. 804 AH), Says** — Mentioning The Same Hadith About **Ibn ‘Umar Performing Wudu And Then Wiping Over His Leather Socks (Khuffayn) Upon Entering The Masjid:**

“Our Imām Al-Shāfi‘ī Said That **After The Book Of Allah**, The Most Authentic Book Is **Al-Muwatta’**, And This **Chain Is Sound (ṣaḥīḥ)** — There Is **No Doubt** In It.

In Fact, **It Is Among The Most Authentic Of All Sound Chains (Aṣaḥḥ Al-Asānīd)**.

And The Imams Of This Field, Like **Bukhārī**, Say:

‘The Most Authentic Chain Is: Al-Shāfi‘ī Narrates From Mālik, Mālik From Nāfi‘, Nāfi‘ From Ibn ‘Umar, And He From The Messenger Of Allah ﷺ.’”

This Chain Is Found In **Bayhaqī’s Works** And Also In **Al-Umm**, The Book *Ikhtilāf Mālik Wa Al-Shāfi‘ī Fī Al-Nawm Julūsan* (On Sleeping While Sitting), And In *Ikhtilāf Abī Ḥanīfah Wa Ibn Abī Laylā Fī Ṣalāt Al-Khawf* (On The Prayer Of Fear).

Imām Bayhaqī, In His *Sunan*, Said:

“The Narration From Ibn ‘Umar Is **Authentic**, And This Specific Wording Is Well Known.”

Imām Nawawī Said:

“This Is A Strong Proof For Those Who Say **Continuity (Muwālāt)** In Wudu Is **Not Obligatory**.”

I Saw In **Al-Bayān** By **Al-‘Umrānī**, One Of Our Shāfi‘ī Scholars, That **Ibn ‘Umar Said**:

“This Is The Action Of The Prophet ﷺ.”

Many Attribute This To **Al-Baghawī**, Though I Haven’t Seen It In The Known ḥadīth Collections. But **The Action Of Ibn ‘Umar** Is Before Us — And We Should Act Upon It.

Imām Bukhārī Included This Narration Of **Ibn ‘Umar** And Mentioned It In Different Wording. He Titled A Chapter:

“*Bāb Al-Tafrīq Fī Al-Wuḍū’ Wa Al-Ghusl*” (The Chapter On Delays In Wudu And Ghusl).

And Within It, He Mentioned That **Ibn ‘Umar Washed His Feet After His Wudu Limbs Had Dried**.

Ibn Al-Rifā‘ Ah, The Author Of *Al-Bayān*, Mentions This Narration **As Marfū’** (Raised To The Prophet ﷺ), And Then Says:

“Al-Shāfi‘ī States That **There Is A Significant Gap** Between The Market And The Masjid.”

Then He Clarifies That This Narration Is **Actually Mawqūf** (Stopping At Ibn ‘Umar), Not Marfū’, And This Indicates That ****Al-Shāfi‘ī Narrated It With A Chain That Stops At Ibn ‘Umar**, Not Reaching The Prophet ﷺ.

(*Badar Al-Munīr*, Vol. 2, P. 262)

Summary Of The Issue

The Ruling on Separation (Tafrīq) During Wudu

Brief Explanation:

This issue discusses whether separating the acts of wudu (i.e., delaying between washing limbs) invalidates wudu or not. The concern is if a person washes one limb and delays washing the next limb to the point where the first limb dries, does this break the requirement of continuity (muwālāh) and invalidate the wudu?

Evidence from the Text:

- Consensus (ijmā‘) is quoted that slight delay does not harm: *Al-Majmū‘* (1/452)
- *Bughyat al-Muqtasid* (1/242): Disagreement is on lengthy delays.
- Qur’anic verse mentioned implies no condition of continuity.
- Hadith of the man with a dry spot on his foot: Abu Dawud 173 (Weak).
- Hadith of Ibn Umar wiping his khuffayn after delay (Ṣaḥīḥ in Al-Muwatta’).
- Hadith from Sahih Muslim (Vol. 1, Hadith 243): Dry patch found on a man’s foot; the Prophet ﷺ ordered repeating wudu and salah.
- Hadith from Maimunah in Sahih al-Bukhari (249): Wudu without washing feet initially, then washing them after ghusl.

Madhhab (School of Thought) Views:

Ḥanafī:

- Continuity is **not obligatory** (non-wājib).
- Drying of a previous limb before washing the next does **not** invalidate wudu.
- *Badā’i‘ al-Ṣanā’i‘* (1/18): Continuity not a condition.
- *Al-Durr al-Mukhtār* (1/122): Delay permitted unless excessive under moderate climate.

Mālikī:

- **Three views:**
 1. **Absolutely obligatory** (fard) — Ibn Abī Maslama.
 2. **Sunnah**, not obligatory — dominant and famous view.
 3. **Obligatory in washing, Sunnah in wiping** — weakest view.
- If delayed **intentionally**, some say wudu/salah must be repeated.
- *Sharḥ Mukhtaṣar Khalīl* (1/128): Dryness is the indicator of delay.
- *Bughyat al-Muqtasid* (1/244): Deliberate vs forgetful delays have different rulings.

Shāfi‘ī:

- Continuity is **Sunnah, not fard**.
- *Mughnī al-Muḥtāj* (1/192): Continuity means previous limb does not dry before washing the next.
- *Nihāyat al-Muḥtāj* (1/194): Uses limb drying as the threshold.

Ḥanbalī:

- **Two views from Imam Aḥmad:**
 - One view: **Not obligatory**.
 - Dominant view: **Continuity is obligatory (wājib)**.
- *Kashshāf al-Qinā‘* (1/105): Drying in moderate climate is the limit.
- *Al-Mughnī* (1/102): Narrates both positions from Aḥmad.

Sub-Issues:

1. Hadith-Based Evidence for Continuity

- Hadith from Abu Dawud 173 – man with dry spot on foot – **weak** due to narrator Jarir from Qatadah.
- Hadith from Khalid in Abu Dawud 175 – **Mursal, weak**.
- Hadith from Umar in Ṣaḥīḥ Muslim – **authentic** but ambiguous regarding drying due to delay or omission.
- Narrations from Ibn Umar performing delayed wudu also cited as **evidence for permissibility**.

2. Qur'anic Interpretation

- Surah al-Mā'idah (5:6) mentions washing the limbs — no mention of **muwālāh** or continuity.
- This is used by those who argue that delay does not invalidate wudu.

3. Ghusl vs Wudu

- Hadith from Maimunah (Bukhari 249) shows delay in washing feet until after full ghusl.
- Scholars like Ibn Taymiyyah and Al-Khirāqī use this to show delay does not affect **ghusl**.

4. Practical Example: Ibn Umar's Wudu

- Ibn Umar washed hands and face in the market, wiped his head, entered the masjid, wiped over his khuffayn.
- Found in *Al-Muwatta'* and *Bayhaqī* — **authentic** chain.
- Used by many as evidence that **delay** does not invalidate wudu.

Final Summary

- **Consensus:** Slight delay does not invalidate wudu.
- **Jumhūr (Majority):** Continuity is **Sunnah**, not **wājib**.
- **Ḥanafī & Shāfi'ī:** Delay is permissible.
- **Mālikī:** Delay is disliked, but not always invalidating — depends on intention and climate.
- **Ḥanbalī:** Mixed views; stronger opinion is that continuity is obligatory.

The weight of evidence and practice of early Muslims (Ibn Umar, Umar, etc.) suggests that **continuity is mustaḥabb (recommended)**, but **not strictly required** for validity — unless done with **intentional negligence**.

Conclusions:

Tafrīq (Delay Between Limbs) During Wudu Is Permissible — And This Is Supported By The Reports From:

- 'Umar Ibn Al-Khaṭṭāb
- 'Abdullāh Ibn 'Umar
- Ibrāhīm Al-Nakha'ī
- Sa'īd Ibn Al-Musayyib

- ‘Alī Ibn Al-Ḥusayn
- Ḥasan Al-Baṣrī
- Sufyān Al-Thawrī
- Ishāq Ibn Rāhwayh (In One View)
- ‘Aṭā’ Ibn Abī Rabāḥ
- And A Majority Of Jurists (Jumhūr Al-Fuqahā’)

Also, This Is The **Main View (With Conditions)** Of The **Four Imams**:

- Abū Ḥanīfah
- Imām Al-Shāfi‘ī
- Imām Mālik (With Some Conditions)
- Imām Aḥmad Ibn Ḥanbal (In One Of His Views)

And Among Later Scholars:

- Ibn Taymiyyah (Ḥanbalī)
- Al-Khiraqī
- Abū Ishāq Ibrāhīm Ibn ‘Alī Al-Shāfi‘ī
- Imām Nawawī
- Ibn Al-Mundhir
- Imām Bukhārī
- Abū Ja‘far Al-Ṭaḥāwī
- Ibn Al-Mulaqqin
- Imām Bayhaqī, And Others.

And This Is The Stronger, Sounder Position — And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 11 – Wiping Over Khuffayn (Leather Socks)

There Are Several Sub-Issues Related To Wiping Over Khuffayn, Which We Will Now Explore One By One.

Ruling On Wiping Over Khuffayn

There Is **No Difference Of Opinion** On The Permissibility Of Wiping Over The Khuffayn. Scholars Have **Unanimous Consensus (Ijmā‘)** That Wiping Over Them Is Permissible For **Any Person**, Whether Traveling Or Resident, Whether In Need Or Not—**It Is Absolutely Permissible**.

“Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid” (1/257):

“There Is Consensus Of The Scholars On This Issue.”

Some Scholars, Like Ibn Rushd And Others, Reported That There Was Disagreement Among The Mālikīs, But Later Mālikī Jurists **Corrected** This And Clarified That The Earlier Dissenting View Was **Weak And Invalid** Within The Madhhab. There Are **Six Opinions** Within The Mālikī School Regarding This Issue, And The **Correct And Well-Known View** Is That **It Is Permissible For Any Muslim To Wipe Over The Khuffayn Without Restriction**.

“Bughyat Al-Muqtasid” (1/258):

“The Correct And Popular View In The Mālikī Madhhab Agrees With The Majority Of Scholars On The Permissibility Of Wiping Over Khuffayn.”

Ibn Al-Mundhir Writes:

“There Is Consensus That Whoever Completes His Purification (Wuḍū’), Then Wears Khuffayn, And Then Breaks His Wuḍū’, May Wipe Over Them.”
(“Al-Ijmā’” By Ibn Al-Mundhir, P. 35)

This Is Also The View Of The **Four Imams**:

- **Ḥanafīs** (See: *Mukhtaṣar Al-Qudūrī*, P. 17):

“Wiping Over The Khuffayn Is Permitted By The Sunnah For Any Minor Impurity That Requires Wuḍū’, Provided One Wears Them After Complete Purification.”

- **Mālikīs** (See: *Al-Sharḥ Al-Ṣaghīr With Al-Ṣāwī’s ḥāshiyah*, 1/152):

“Wiping Over Khuffayn And Similar Is Valid Instead Of Washing The Feet, Whether Traveling Or Resident, Even If The Travel Is Sinful.”

- **Shāfi‘īs** (See: *Mughnī Al-Muḥtāj* By Al-Shirbīnī, 1/197):

“Wiping Over The Khuffayn Is Permissible.”

- **Ḥanbalīs** (See: *Kashshāf Al-Qinā* ‘ By Al-Buhūtī, 1/110):

“Wiping Over The Khuffayn And Other Coverings, Apart From Casts, Is A Concession.”

Ibn Al-Mundhir Narrates From **Imām Ḥasan Al-Baṣrī**:

“Seventy Companions Of The Prophet ﷺ Informed Me That The Messenger Of Allah ﷺ Wiped Over The Khuffayn.”

(*Bughyat Al-Muqtasid*, 1/258)

Also Recorded By Ibn Al-Mundhir In *Al-Awsaṭ* (2/82–83)

‘**Abdullāh Ibn Al-Mubārak** Said:

“There Is No Difference Of Opinion On The Permissibility Of Wiping Over The Khuffayn.”

(*Bughyat Al-Muqtasid*, 1/258; *Al-Awsaṭ*, 2/83–84)

Imām Aḥmad Ibn Ḥanbal Said:

“There Is No Doubt In My Heart About The Permissibility Of Wiping Over Khuffayn.”

He Added That He Had Heard **Forty Hadiths** Regarding This—From The Prophet ﷺ And From The Companions—Some **Marfū**‘ And Some **Mawqūf**.

(*Bughyat Al-Muqtasid*, 1/258; *Al-Masā’il Al-Fiḥiyyah* By Abū Ya‘Lā Al-Farrā’, 1/98)

Those Who Oppose Wiping Over Khuffayn Are Identified As **Shī‘Ah And Khārijites**.

(*Bughyat Al-Muqtasid*, 1/259)

Also In *Al-Awsaṭ* (2/90):

“Some Have Claimed That Wiping Is Better Than Washing The Feet Because It Is A Firmly Established Sunnah And Has Been Denied Only By Innovators. So Reviving This Sunnah Is More Virtuous Than Abandoning It.”

Ibn Ḥajar Al-‘Asqalānī In *Fath Al-Bārī* (1/305):

“I Prefer The View That Wiping Is Better Because It Was Rejected By Innovators Such As The Khārijites And Rāfiḍīs.”

The Hadith On Wiping Over The Khuffayn Is Mutawātir

Numerous Companions Narrated This Practice, Including:

- ‘Umar Ibn Al-Khaṭṭāb
- ‘Alī Ibn Abī Ṭālib
- Sa‘D Ibn Abī Waqqāṣ
- ‘Abdullāh Ibn Mas‘ūd
- Abū Ayyūb Al-Anṣārī
- Ibn ‘Abbās
- Jarīr
- Anas Ibn Mālīk
- ‘Amr Ibn Al-‘Āṣ

- Abū Umāmah Al-Bāhili
 - Sahl Ibn Sa‘D
 - Qays Ibn Sa‘D
 - Abū Mūsā Al-Ash‘Arī
 - Jābir Ibn ‘Abdullāh
 - ‘Abdullāh Ibn Al-Ḥārith Ibn Juz’ Al-Zubaidī
 - Abū Sa‘īd Al-Khudrī
 - ‘Ammār Ibn Yāsir
 - Abū Zayd Al-Anṣārī
 - Jābir Ibn Samurah
 - Abū Mas‘ūd Al-Anṣārī
 - Ḥudhayfah Ibn Al-Yamān
 - Al-Mughīrah Ibn Shu‘Bah
 - Al-Barā’ Ibn ‘Āzib
 - Ma‘Qil Ibn Yasār
 - Khārijah Ibn Ḥudhāfah
 - ‘Abdullāh Ibn ‘Amr
 - Bilāl Ibn Rabāḥ
- (*Al-Awsaṭ*, 2/77)

Did The Verse Of Wudu (Surah Al-Mā’idah: 6) Abrogate The Ruling?

When The Verse About Wuḍū’ Was Revealed (Surah Al-Mā’idah, 5:6), Some Companions Thought The Ruling Of Wiping Over Khuffayn Had Been Abrogated, Including **Ibn ‘Abbās**. Other Companions Disagreed And Narrated The Hadith Of **Al-Mughīrah Ibn Shu‘Bah**, Who Said That During The Expedition Of **Tabūk**, The Prophet ﷺ Wiped Over The Khuffayn.

- Reported By **Al-Nasā’ī** (79):

“I Poured Water For The Messenger Of Allah ﷺ During His Wuḍū’ In The Expedition Of Tabūk And He Wiped Over The Khuffayn.”

- Also Found In **Ṣaḥīḥ Al-Bukhārī** (182) And **Ṣaḥīḥ Muslim** (274/77):

“During A Journey, The Prophet ﷺ Wiped Over The Khuffayn.” (The Ghazwah Is Not Named In These Narrations)

The **Ghazwah Of Tabūk** Took Place **After** The Revelation Of Surah Al-Mā’idah:

- *Bughyat Al-Muqtasid* (1/263):

“Tabūk Occurred In The Final Days Of The Prophet ﷺ, And After The Revelation Of The Verse Of Wuḍū’.”

- It Occurred In **Rajab Of The 9th Hijrī Year**

(See: *Sīrah Ibn Hishām*, 2/515; *Al-Bidāyah Wa Al-Nihāyah* By Ibn Kathīr, 5/5)

- Surah Al-Mā'idah Is A **Madīnī** Surah

Jabir Ibn Abdullah (May Allah Be Pleased With Him) Said That The Messenger Of Allah ﷺ Wiped Over The Leather Socks (Khuffayn). This Narration Is Found In The Two *Sahihs*.
 Narrated By Al-Bukhari (387) And Muslim (272/72) From Hammam Ibn Al-Harith Who Said:
 “I Saw Jarir Ibn Abdullah Urinate, Then He Performed Wudu And Wiped Over His Khuffayn, Then He Stood Up And Prayed. He Was Asked About It And Said: ‘I Saw The Prophet ﷺ Do The Same.’”

When Abu Dawud Narrated This Hadith, He Included A Detail That Someone Asked Jarir Ibn Abdullah Whether This Occurred Before The Revelation Of Surah Al-Ma'idah. Jarir Replied That He Had Not Accepted Islam Until After Surah Al-Ma'idah Was Revealed.

Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (1/263):

“Abu Dawud Added In His Narration: He Was Asked About It—‘Was That Before The Revelation Of Surah Al-Ma'idah?’ He Replied: ‘I Did Not Accept Islam Until After Surah Al-Ma'idah Was Revealed.’”

In Sunan Abi Dawud (No. 154):

“Jarir Urinated, Then Performed Wudu And Wiped Over His Khuffayn. He Said: ‘What Prevents Me From Wiping, When I Saw The Messenger Of Allah ﷺ Wiping (Over His Khuffayn)?’
 They Said: ‘That Was Before The Revelation Of Surah Al-Ma'idah!’
 He Replied: ‘I Did Not Accept Islam Until After Surah Al-Ma'idah Was Revealed.’”

Jarir Was Among The Companions Who Accepted Islam Very Late, And He Affirmed That The Prophet ﷺ Used To Wipe Over The Khuffayn. This Narration Is In The Two *Sahihs*.

Bughyat Al-Muqtasid (1/264):

“He Said On One Occasion: ‘I Saw The Messenger Of Allah ﷺ Wipe Over The Khuffayn,’ And This Narration Is Found In Both *Sahih Al-Bukhari* And *Sahih Muslim*.”

In Abu Dawud’s Version, When He Was Asked For Clarification, He Explained That He Embraced Islam Only After Surah Al-Ma'idah Was Revealed, And Even Then, He Saw The Prophet ﷺ Wiping Over The Khuffayn. If This Practice Had Been Abrogated By The Verse, The Prophet ﷺ Would Not Have Continued Doing It.

Bughyat Al-Muqtasid (1/264):

“On Another Occasion He Wiped Over The Khuffayn — This Is In Abu Dawud — And Scholars Have Accepted This Narration And Were Pleased With It.

When He Was Asked About It, He Said: ‘Did I Not Accept Islam Only After The Revelation Of Surah Al-Ma'idah?’

This Indicates That Some Companions Thought That Wiping Over The Khuffayn Might Have Been Abrogated By The Verse In Surah Al-Ma'idah:

{O You Who Believe! When You Rise To Pray, Wash Your Faces And Your Hands Up To The Elbows, And Wipe Your Heads And Your Feet Up To The Ankles} (Surah Al-Ma'idah: 6)

This Verse Mentions Only The Wiping Of The Head, So Some Assumed That Wiping The Feet (I.E., Over Socks) Was No Longer Valid.

Jarir Clarified That He Embraced Islam Only After The Revelation Of This Verse, And Yet He Saw

The Prophet ﷺ Still Wiping Over The Khuffayn. His Acceptance Of Islam Was In The 10th Year Of Hijrah, Indicating That His Islam Came Quite Late.”

Many Scholars Collected The Ahadith On This Topic. Some Counted 50 Hadiths, Others Counted 60.

Bughyat Al-Muqtasid (1/264):

“Many Scholars Have Extensively Gathered These Ahadith — Some Counted Up To Fifty, Others Up To Sixty.”

Some Even Found 68 Or Close To 70 Ahadith On The Matter.

Bughyat Al-Muqtasid (1/265):

“Some Raised The Count To Sixty-Eight, And Some To Nearly Seventy Ahadith, Whether They Were Marfu‘ (Attributed To The Prophet ﷺ) Or Mawquf (Attributed To A Companion).”

Ibn Hajar Said In *Fath Al-Bari* (1/306):

“Some Scholars Counted The Narrators Of These Reports, And They Exceeded Eighty — Including Ten Prominent Companions.”

The Prophet ﷺ Also Instructed The Companions To Wipe Over The Khuffayn. This Is Found In The Hadith Of Safwan.

As Reported By Safwan Ibn Assal (May Allah Be Pleased With Him):

“The Messenger Of Allah ﷺ Used To Command Us Not To Remove Our Leather Socks When On A Journey For Three Days And Nights — Except In The Case Of Janabah (Major Impurity), But Not For Defecation, Urination, Or Sleep.”

Narrated By Al-Tirmidhi (96) And Al-Nasa’i (126). Shaykh Al-Albani Graded It *Hasan* In *Irwa’ Al-Ghalil* (104).

The Companions Were Unanimously Agreed On The Permissibility Of Wiping Over The Khuffayn.

Bughyat Al-Muqtasid (1/265):

“Fourthly: There Was Consensus Among The Companions — May Allah Be Pleased With Them — On The Permissibility Of Wiping Over The Khuffayn.”

In *Al-Awsat* By Ibn Al-Mundhir (No. 7712), He Said:

“Among The Companions From Whom We Narrated The Practice Of Wiping Over The Khuffayn And Who Also Commanded Others To Do So Were:

‘Umar, ‘Ali, Sa‘D, Ibn Mas‘Ud, Abu Ayyub, Ibn ‘Abbas, Jarir, Anas, ‘Amr Ibn Al-‘As, Abu Umamah, Sahl Ibn Sa‘D, Qays Ibn Sa‘D, Abu Musa, Jabir, ‘Abdullah Ibn Al-Harith Ibn Jaz’ Al-Zubaidi, Abu Sa‘Id, ‘Ammar, Abu Zayd Al-Ansari, Jabir Ibn Samurah, Abu Mas‘Ud Al-Ansari, Hudhayfah, Al-Mughira, Al-Bara’ Ibn ‘Azib, And It Was Also Reported From:

Mu‘Qil Ibn Yasar, Kharijah Ibn Hudhafa, ‘Abdullah Ibn ‘Amr, And Bilal.”

Conclusion:

Wiping Over The Leather Socks (Khuffayn) Is Not Just Permissible — It Is A Firmly Established And Widely Accepted Practice Of The **Ahl Al-Sunnah**. It Is Supported By Numerous Sahih Hadiths — More Than 70 In Some Compilations — And Was Practiced And Approved By The Prophet ﷺ Himself

Even After The Revelation Of Surah Al-Ma'idah. The **Companions Had Consensus** On This Issue, And The Ahl Al-Sunnah Affirm This As Part Of Their Creed. This Strong Affirmation Was In Part To Distinguish Themselves From The **Khawarij And Shia**, Who Rejected The Practice. Thus, Wiping Over The Khuffayn Is A Well-Established And Agreed-Upon Part Of Islamic Practice.

Is Wiping (Mash) Preferable Or Washing The Feet?

There Is A Difference Of Opinion Among The Jurists (Fuqahā') Regarding Whether Wiping Over The Leather Socks (Khuffayn) Is More Virtuous, Or Washing The Feet. On This Issue:

First Opinion: Wiping Is Preferable

The First View Is That Wiping Is Better Than Washing. This Is The Opinion Of Scholars Like Al-Sha'bi, Al-Ḥakam, Ḥammād, And Some Of The Ṭābi'īn. It Is Also The Well-Known View Narrated From Imām Aḥmad Ibn Ḥanbal.

- Al-Buhūṭī States In *Sharḥ Muntahā Al-Irādāt* (1/60):
"Wiping Is Better Than Washing."
- Ibn Al-Mundhir Says In *Al-Awsaṭ* (2/91):
"Those Who Held That Wiping Over The Khuffayn Is Better Than Washing The Feet Include: Al-Sha'bi, Al-Ḥakam, Ishāq, Ibn Abī Laylā, Al-Nu'mān (Abū Ḥanīfah), And Ibrāhīm Al-Nakha'ī.
Ibn Abī Laylā And Al-Nu'mān Used To Say: *We Prepare For Wudu By Wearing The Khuffayn So We May Wipe Over Them.*
Al-Nakha'ī Also Said: *Whoever Turns Away From Wiping Over The Khuffayn Has Turned Away From The Sunnah Of Muḥammad ﷺ.*"
- *Bughyat Al-Muqtasid* (1/273) Similarly States:
"This Is The View Of Al-Sha'bi, Al-Ḥakam, And Ḥammād Among The Ṭābi'īn. It Is The Well-Known Narration From Imām Aḥmad."

Second Opinion: Washing Is Preferable (Majority View)

The Majority Of The Jurists (Jumhūr Al-Fuqahā') Are Of The Opinion That **Washing The Feet Is More Virtuous** Than Wiping. This Is The View Of The Ḥanafīs, Mālikīs, Shāfi'īs, And A Report From The Ḥanbalī School As Well.

- **Ḥanafīs** – *Al-Durr Al-Mukhtār* With Ibn 'Ābidīn's Commentary (1/264):
"Washing Is Better Unless There Is A Suspicion (Of Showing Off By Wiping), In Which Case Wiping Is Better. In Fact, Washing May Be Necessary For One Who Has Very Little Water Or Fears Missing The Prayer Time Or Standing At 'Arafah."
- **Mālikīs** – *Al-Sharḥ Al-Kabīr* With *Ḥāshiyat Al-Dusūqī* (1/141):
"Wiping Is A Dispensation (Rukhsah) – Permissible But Not Better – Because Washing Is More Virtuous."

- **Shāfi‘ī** – *Tuḥfat Al-Muḥtāj* By Al-Haytamī (1/243):
"It Implies That Washing Is Better. However, If Someone Leaves Wiping Out Of Preference For Washing, And Not As A Rejection Of The Sunnah, It Is Acceptable—Even If Motivated By A Dislike Of Wiping Due To Cleanliness Concerns, Etc."
- **Ḥanbalīs** – *Al-Inṣāf* By Al-Mardāwī (1/169):
"It Is Said: If One Does Not Consistently Wipe, Then Wiping Is Better. This Was Chosen By Al-Qāḍī."

Evidence For Those Who Say Wiping Is Preferable

Those Who Argue That Wiping Is Better Say: **It Is A Divinely Sanctioned Concession (Rukhsah)**, And One Should Take Benefit From Such Dispensations. They Cite The Hadith In Which **Al-Mughīrah Ibn Shu‘Bah** Wanted To Remove The Prophet’s ﷺ Khuffayn, But The Prophet Said:

“Leave Them. Indeed, My Lord Has Commanded Me To Do This.”
(Reported In Multiple Collections)

Another Hadith States:

“Indeed, Allah Loves That His Concessions Be Taken Just As He Dislikes That His Commands Be Disobeyed.”

- *Bughyat Al-Muqtasid* (1/274) Explains:
*“Wiping Is A Concession, And The Shari‘ah Is Founded On Ease And Facilitation. That’s Why When Al-Mughīrah Tried To Remove The Prophet’s Socks, He ﷺ Said: ‘Leave Them, For My Lord Has Commanded Me To Do This.’ And In Another Hadith: ‘Allah Loves That His Concessions Be Acted Upon, Just As He Hates That His Prohibitions Be Violated.’”

Also, **‘Ā’Ishah (RA)** Narrated That:

"Whenever The Prophet ﷺ Was Given A Choice Between Two Matters, He Would Choose The Easier Of The Two—So Long As It Was Not Sinful. If It Was Sinful, He Would Be The Farthest Of All People From It..."

(Reported By Al-Bukhārī [6786] And Muslim [2327/78])

Evidence For Those Who Say Washing Is Preferable

Those Who Say **Washing Is Better** Argue That **The Original Ruling Of Wudu Is To Wash**, As Explicitly Commanded In The Qur’an:

Surah Al-Mā’idah (5:6):

“O You Who Believe! When You Rise To Perform The Prayer, Wash Your Faces And Your Hands Up To The Elbows, And Wipe Over Your Heads And Wash Your Feet Up To The Ankles...”

Conclusion:

If Someone Has The Opportunity To Either **Wipe Over The Khuffayn** Or **Wash Their Feet**, Which Is Better?

The Correct And Stronger View Is That **Washing The Feet Is Preferable**, Because It Is What Is Clearly Mentioned In The Qur'an And It Is The **Original Form** Of Wudu. This Is Also The View Of The Majority Of The Jurists.

However, If A Person Is Traveling Or Even Resident But Wearing Khuffayn Out Of Necessity Or Ease, And Chooses To Wipe, Then This Is Not Just Permissible But Also Virtuous—Especially If There Is **Some Difficulty In Washing**, Because:

- **Allah Is Pleased When His Servants Make Use Of His Ease And Concessions**, And
- **The Concession Of Wiping Was Legislated In The First Place To Make Things Easier.**

Thus, Avoiding Ease Without Any Necessity Is Not Superior.

And Allah Knows Best.

When Is Wiping Over Khuffayn Permissible?

Ḥanafī Madhhab:

According To "*Tabyīn Al-Ḥaqā'iq*" (1/46) By Imām Al-Zayla'ī:

If A Person Becomes **Junub** (In A State Requiring Ghusl), Then Wiping Over The Khuffayn Is **Not Allowed**.

He States:

“(Not For One In Janābah)” —That Is, Wiping Is Not Permitted For Someone In Major Impurity, Based On The ḥadīth Of Ṣafwān Ibn 'Assāl Who Said:

“The Prophet ﷺ Used To Command Us When On A Journey Not To Remove Our Leather Socks For Three Days And Nights—Except In The Case Of Janābah, But Not For Urination, Defecation, Or Sleep.”

The Reason Is: Rukhsah (Concession) Applies To Hardship That Is **Recurrent**, While Janābah Is Not Frequent. For Example, If Someone Wore His Khuffayn While In A State Of Wudū', And Then Became Junub During The Mash' Period, He Must Remove The Khuffayn And Wash His Feet.

Mālikī Madhhab:

According To "*Al-Sharḥ Al-Kabīr*" By Shaykh Al-Dardīr And The Commentary Of Al-Dusūqī (1/145): If Someone Has Already Performed Mash' Over The Khuffayn And Then Becomes Junub, **The Ruling Of Mash' Is Nullified**.

He Writes:

“(It Becomes Invalid)” —Meaning The Ruling Of Mash' Ends With The Obligation Of Ghusl. So, If He Has Not Performed Ghusl Yet, Then When Intending To Do Wudū' For Sleep While Being Junub, He May Not Do Mash'.

Shāfi‘ī Madhhab:

According To "*Tuhfat Al-Muhtāj*" By Al-Haytamī (1/255):

If Someone Who Has Performed Mash Then Becomes Junub, Or If A Woman Enters Her Menstrual Or Postnatal Bleeding During The Mash Duration, **The Mash Becomes Invalid.**

He Writes:

“If One Becomes Junub, Or A Woman Begins Menstruation Or Postnatal Bleeding While Wearing Khuffayn Within The Allowed Period, And They Then Want To Resume Mash, They Must First Remove The Khuffayn, Purify Themselves With Ghusl, And Then Wear Them Again. The Previous Mash Does Not Remain Valid Because Janābah Ends The Mash Period.”

Ḥanbalī Madhhab:

According To "*Kashshāf Al-Qinā’*" By Al-Buhūtī (1/114):

If Someone In Janābah Puts On The Khuffayn After Partial Purification (Without Full Ghusl), **Mash Is Not Allowed.**

He States:

“If Someone Intends To Lift A Major Impurity (Janābah, Menstruation, Or Postnatal Bleeding), And Washes The Feet Before Completing Full Purification And Wears The Khuffayn, Then Completes Purification—**Mash Is Invalid**—Because The Socks Were Not Worn After Complete ṭahārah.”

General Ruling From The Four Madhhabs:

Mash Over The Khuffayn Is **Only Allowed In Wudū’**, Not In **Ghusl** Or In The Presence Of **Major Impurity (ḥadath Akbar)**.

- **Ḥanafī:** *Mukhtaṣar Al-Qudūrī* (P. 17):

“Mash Is Not Allowed For Someone Upon Whom Ghusl Is Obligatory.”

- **Mālikī:** *Al-Sharḥ Al-Kabīr* With *Ḥāshiyat Al-Dusūqī* (1/145):

“The Ruling Of Mash Ends When Ghusl Becomes Obligatory.”

- **Shāfi‘ī:** *Tuhfat Al-Muhtāj* (1/243):

“Mash Is Permitted Only In Wudū’, Not In Any Kind Of Obligatory Or Recommended Ghusl.”

- **Ḥanbalī:** *Al-Mughnī* By Ibn Qudāmah (1/207):

“Mash Is Not Valid In The Case Of Janābah, Obligatory Ghusl, Or Even Recommended Ghusl. There Is No Disagreement On This.”

Conclusion:

Mash Over The Khuffayn Is **Only Permitted In Place Of Washing The Feet During Wudū'**, Not During Ghusl. If A Man Or Woman Becomes Junub Or Is Required To Perform Ghusl For Any Reason, They Must First **Remove The Khuffayn, Perform Ghusl**, Then Put The Khuffayn Back On In A State Of Full Purification. Only After That Can The Mash Period Restart. So, Once A Person Becomes Junub, **The Mash Period Is Invalidated**, And A New Purification Cycle Must Begin.

Where To Wipe On The Khuffain

What Is Meant By "Where To Wipe" On The Khuffain Is: Should The Wiping Be Done On The Upper Part, Lower Part, Sides, Or Just One Area?

The Foundational Difference In This Issue Revolves Around **How The Mash (Wiping) Should Be Performed**:

1. One Group Says: **It Is Obligatory To Wipe Both The Upper And Lower Sides Of The Khuff.**
2. Others Say: **Wiping Only The Upper (Outside) Of The Khuff Is Obligatory.**
3. Some Say: **Wiping Either The Upper Or The Lower Is Sufficient.**

Whenever I Mention "Wiping The Foot" Or "Wiping On Top Of The Foot," It Should Be Understood As Referring To Wiping **On The Khuff**, Not The Bare Foot.

Because If Someone Is Not Wearing Khuffain, Then It Is **Obligatory To Wash The Feet**, Not To Wipe — And There Is **Consensus (Ijmā')** Of The Entire Ummah On That.

Position Of The Ḥanafīs

- **Imām Abū Ḥanīfah** Said: Wiping Should Be Done **On The Upper Part** Of The Khuff, From The **Toes Up To The Shin Bone**.
(*Al-Mabṣūṭ* By Shaybānī, Vol. 1, P. 89)
- **Imām Al-Sarakhsī** Said: If Someone Wipes **Under** The Khuff And Not The Top, **It Is Invalid**.
(*Al-Mabṣūṭ* By Al-Sarakhsī, Vol. 1, P. 101)
- There Is **Unanimity Among The Ḥanafīs** That Wiping Must Be Done **On The Upper (Outer) Surface** Of The Khuff.
- According To Them:
 - The **Minimum Requirement** Is To Wipe With **Three Fingers**.
 - The Wiping Must Be Done **With The Inner Side Of The Fingers (The Palm Side)**.
 - It Is **Obligatory** To Wipe **Once On Each Foot**.
 - The Wipe Must Extend **From The Toes To Above The Ankles**.
 - Wiping **Under The Foot, On The Heel**, Or In Any Area **Other Than The Top** Invalidates The Mash.

References:

- *Marāqī Al-Falāh*, P. 222
- *Badā'i 'Al-Ṣanā'i'*, Vol. 1, P. 12
- *Al-Lubbāb*, Vol. 1, P. 43
- *Fatḥ Al-Qadīr*, Vol. 1, P. 103
- *Al-Durr Al-Mukhtār*, Vol. 1, Pp. 246, 260
- *Fiqh Al-Islāmī*, Vol. 1, P. 419
- *Mukhtaṣar Al-Qudūrī*, P. 17:

"Wiping On The Khuffain Is To Be Done On Their **Outer Side**, Using Fingers In Lines, Starting From The **Toes To The Shin**."

- *Al-Muḥallā* By Ibn Ḥazm (2/111):

"Wiping The Khuffain Is Only On Their **Outer Surface**. Wiping The **Bottom** (Under The Foot) Is Not Valid. Full Wiping Is Not Necessary; Even If A Part Of The Top Is Wiped With A Finger Or More, It Suffices."

- *Al-Awsaṭ* By Ibn Al-Mundhir (2/105):

"A Group Said: Wiping Is On The **Top** Of The Khuff. This Was Also The Opinion Of **Sufyān Al-Thawrī**."

Position Of The Mālikīs

- **Imām Mālik** And **Qāsim** Said: It Is **Obligatory** To Wipe Both The **Top And Bottom** Of The Khuff.
(*Al-Mudawwanah*, Vol. 1, P. 142)
- **Abū Sa'īd Al-Barāzī** (D. 372 AH) Also Said Both The Top And Bottom Must Be Wiped.
(*Al-Tahdhīb Fī Ikhtisār Al-Mudawwanah*, Vol. 1, P. 204)
- **Imām Al-Qayrawānī** (D. 386 AH) Said: Wiping Should Be Done **On Top** Of The Khuff, Not The Bottom.
(*Matn Al-Risālah*, Vol. 1, P. 22)
- **Ibn Rushd** Writes In *Bidāyat Al-Mujtahid*:

The **Mālikī Madhhab** Holds That Wiping Both **Top And Bottom** Of The Khuff Is **Obligatory**.

Some Mālikīs Say **Wiping The Top Is Obligatory**, And The Bottom Is **Recommended**. Others Say **Wiping Both** Is Sunnah.

Another View Is That **Wiping Either Top Or Bottom Suffices** — A View Attributed To Some Companions Of Mālik.

References:

- *Al-Qawānīn Al-Fiqhiyyah*, P. 39
- *Al-Sharḥ Al-Ṣaghīr*, Vol. 1, P. 159
- *Fiqh Al-Islāmī*, Vol. 1, P. 419
- *Al-Sharḥ Al-Kabīr* With *Ḥāshiyat Al-Dusūqī* (1/146):

"It Is **Recommended** To Wipe **Both Top And Bottom** Of The Khuff — Meaning Combining Them Is Recommended. But **Wiping The Top Is Obligatory**."

- *Bughyat Al-Muqtasīḍ Sharḥ Bidāyat Al-Mujtahid* (1/290):

"According To The Mālikīs, If Someone Wipes Only The **Top**, That Fulfills The Obligation. So **Wiping The Top Is Required**, Which Aligns Them With The Other Jurists."

- *Bughyat Al-Muqtasīḍ* (1/291):

"Some Scholars (Like Ibn Nāfi‘, From Mālik’s Companions) **Obligated Wiping Both The Top And Bottom**."

- *Al-Nawādir Wa Al-Ziyādāt* By Ibn Abī Zayd (1/99):

"Sahnūn And Ibn Ḥabīb Said: If One Wipes Only The **Bottom**, He Must Repeat It Forever. Muḥammad Ibn ‘Abd Al-Ḥakam Narrated From Ashhab That It Suffices."

Position Of The Shāfi‘īs (Shawāfi‘)

Imām Al-Shāfi‘ī Is Of The Opinion That **Mashḥ Should Be Done Both On The Upper And Lower Parts Of The Khuff**. This Is Also The View Of **Imām Al-Muzanī**.

Reference: *Mukhtaṣar Al-Muzanī*, Vol. 8, P. 103.

Aḥmad Ibn Muḥammad Ibn Aḥmad Ibn Al-Qāsim Al-Dhabī, Abū Al-Ḥasan Ibn Al-Mahāmīlī Al-Shāfi‘ī Wrote In His Book

Al-Bāb Fī Fiqh Al-Shāfi‘ī, Vol. 1, P. 84,

In The Chapter On **Mashḥ Over The Khuffayn**, That There Are Nine Things Upon Which Mashḥ Is Done. He Mentions That **There Are Two Types Of Mashḥ On The Khuffayn**, And Includes Mashḥ On The **Head, Ears, And Neck**, Following The Same Madhhab As Imām Al-Shāfi‘ī.

Among The Shāfi‘īs:

- **Mashḥ On The Upper Part Of The Khuff Is Obligatory.**
- Regarding Mashḥ On The Lower Part, There Are **Two Opinions**:
 1. That It Is **Recommended (Mustaḥabb)**.
 2. That It Is **Not Recommended**.

References:

- *Mughniy Al-Muḥtāj*, Vol. 1, P. 67

- *Sharḥ Al-Madḥḥab*, Vol. 1, P. 22
- *Fiqh Al-Islāmī*, Vol. 1, P. 419

In *Tuḥfat Al-Muḥtāj* By Al-Haytamī (Vol. 1, P. 254), It Is Stated:

“It Is Recommended To Wipe Over The Upper Outer Part Of The Khuff That Covers The Top Of The Foot, As Well As The Sole, Heel, And Sides.”

Position Of The Ḥanbalīs (Ḥanābilah)

When **Imām Aḥmad Ibn Ḥanbal** Was Asked About Mash Over The Khuff, He Replied:

“Only Mash Over The Upper Part Of The Khuff Is Established From The ḥadīth. As For Those Who Say That Mash Is To Be Done On The Bottom As Well—This Is Not Established According To Us.”

Reference: Masā’il Aḥmad (Narration Of Abū Faḍl), Vol. 1, P. 356

On Another Occasion, When He Was Asked About This, He Said:

“According To Me, If Someone Wipes Over The Upper Part, He Will Be Rewarded. However, Some People Claim That The Messenger Of Allah ﷺ Wiped Both The Top And Bottom Of The Khuffayn.”

Reference: Masā’il Aḥmad (Narration Of Abū Faḍl), Vol. 2, P. 124

Abū Al-Qāsim ‘Umar Ibn Al-Ḥusayn Al-Kharqī (D. 334 AH) Wrote:

“If Someone Wipes Only The Bottom And Not The Top Of The Khuff, It Is Invalid.”

Reference: Matn Al-Kharqī, Vol. 1, P. 17

Ibn Qudāmah Wrote In *Al-Kāfī* (Vol. 1, P. 75):

“The Sunnah Is To Wipe The Top Of The Khuff, Not The Bottom.”

The Ḥanbalīs Say:

- **Wiping The Upper Part** Of The Foot Is **Obligatory**.
- According To The **Well-Known Opinion**, **Wiping The Bottom Is Not Even Recommended**.

References:

- *Al-Mughnī*, Vol. 1, P. 298
- *Kashshāf Al-Qinā’*, Vol. 1, P. 130
- *Fiqh Al-Islāmī*, Vol. 1, P. 419

In *Kashshāf Al-Qinā’* By Al-Buhūtī:

“It Is Obligatory To Wipe The Majority Of The Upper Part Of The Khuff And Similar Items Such As Socks And Boots, But Not The Bottom Or The Heel. Wiping The Bottom Does Not Suffice, Nor Is It Sunnah.”

In *Al-Awsat* By Ibn Al-Mundhir (Vol. 2, P. 105):

“A Group Of Scholars Stated That One Should Wipe Only The Top Of The Khuff. This Was Reported From Qays Ibn Sa‘D And Anas, And It Is Also The View Of Al-Ḥasan, ‘Urwah, Al-Nakha‘ī, ‘Aṭā’, Al-Sha‘Bī... And Al-Awzā‘ī.”

Also, Some Scholars Said That **The Majority Of Scholars (Jumhūr ‘Ulamā’)** Were Of The Opinion That **Wiping The Top Of The Khuff Is Obligatory, And Wiping The Bottom Is Not Even Recommended.**

Reference:

- *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid*, Vol. 1, P. 292:

“The Dominant Opinion Among The Scholars Is That It Is Obligatory To Wipe The Upper Part Of The Khuff Only. They Do Not Consider Wiping The Bottom To Be Recommended.”

1. Hadith Of Ali (رضي الله عنه) In Sunan Abi Dawud (162)

Ali (رضي الله عنه) Said:

“If The Religion Were Based On Opinion, Then Wiping Over The Sole Of The Leather Socks Would Have Been More Appropriate Than Wiping Over The Upper Part. But I Saw The Messenger Of Allah ﷺ Wiping Over The Upper Part Of His Leather Socks.”

Arabic Text:

حَدَّثَنَا مُحَمَّدُ بْنُ الْعَلَاءِ، قَالَ: ثَنَا حَفْصٌ - يَغْنِي ابْنَ غِيَاثٍ - عَنْ الْأَعْمَشِ، عَنْ أَبِي إِسْحَاقَ، عَنْ عَبْدِ خَيْرٍ، عَنْ عَلِيٍّ قَالَ: لَوْ كَانَ الدِّينُ بِالرَّأْيِ لَكَانَ أَسْفَلُ الْخُفِّ أَوْلَى بِالْمَسْحِ مِنْ أَعْلَاهُ، وَقَدْ رَأَيْتُ رَسُولَ اللَّهِ ﷺ يَمْسَحُ عَلَى ظَاهِرِ خُفِّهِ

Hadith Status:

Sahih Li Dhātihi (Authentic In Itself)

Takhrij (Sources):

- Ibn Khuzaymah In His *Sahih* (1/308, No. 200)
- Al-Diya Al-Maqdisi In *Al-Ahadith Al-Mukhtarah* (2/283, No. 662)
- Al-Nasā‘ī In *Al-Sunan Al-Kubra* (1/120, Nos. 118–119)
- Abu Dawud In *Sunan* (1/63, No. 162)
- Al-Darimi In *Musnad* (1/557, No. 742)
- Al-Bayhaqi In *Sunan Al-Kubra* (1/75, No. 356; 1/292, Nos. 1407–1411)
- Al-Daraqutni In *Sunan* (1/368, Nos. 769–770, 783)
- Ahmad Ibn Hanbal In *Musnad* (1/219, No. 748; 1/324, No. 1280)
- ‘Abdullah Ibn Ahmad In *Zawa‘id Al-Musnad* (1/255, No. 932; 1/275, Nos. 1028–1030)

- Al-Humaydi In *Musnad* (1/175, No. 47)
- Abu Ya‘La In *Musnad* (1/287, No. 346; 1/455, No. 613)
- Al-Bazzar In *Musnad* (3/36, No. 788; 3/42, No. 794)
- Ibn Abi Shaybah In *Musannaf* (1/298, No. 183; 2/256, No. 1907)
- Al-Tahawi In *Sharh Ma ‘Ani Al-Athar* (1/35, No. 159)

Another Wording In Sunan Al-Kubra (Bayhaqi 1/292, No. 1411):

‘Abd Khayr Said:

“I Saw Ali Performing Wudu And Wiping (Over His Socks), Then He Said: ‘Had I Not Seen The Messenger Of Allah ﷺ Wiping Over The Upper Part Of The Feet, I Would Have Considered The Lower Or Inner Part More Deserving Of It.’”

Status: Hasan Li Dhātihi (Good In Itself)

Declared *Sahih* By Al-Albani, Mubarakpuri, Al-Daraqutni, Al-Bayhaqi, And Others.

2. Hadith Of Al-Mughira Ibn Shu‘Bah In Sunan Al-Tirmidhi (98):

Al-Mughira Ibn Shu‘Bah Said:

“I Saw The Prophet ﷺ Wiping Over The Leather Socks, Over Their Upper Surface.”

Arabic Text:

حَدَّثَنَا عَلِيُّ بْنُ حُجْرٍ، قَالَ: حَدَّثَنَا عَبْدُ الرَّحْمَنِ بْنُ أَبِي الزِّنَادِ، عَنْ أَبِيهِ، عَنْ عُرْوَةَ بْنِ الزُّبَيْرِ، عَنِ الْمُغِيرَةِ بْنِ شُعْبَةَ، قَالَ: رَأَيْتُ النَّبِيَّ ﷺ يَمْسَحُ عَلَى الْخُفَيْنِ عَلَى ظَاهِرِهِمَا

Hadith Status:

Isnād Da‘īf (Weak Chain)

Reason For Weakness:

The Chain Contains ‘Abdul-Rahman Ibn Abi Al-Zinad, Who Was A Controversial Narrator.

- He Experienced *Ikhtilāf* (Confusion/Memory Issues) In His Later Life, Especially After Relocating To Baghdad.
- His Narrations From *Ahl Al-Madina* Are Considered Reliable, But From *Ahl Al-‘Iraq (Baghdad)* Are Weak.

Statements By Scholars:

- Imam ‘Ali Ibn Al-Madini Said: “His Hadith From The People Of Madina Is Sound; From The People Of Baghdad It Is Corrupt.” (Tadhīb Al-Kamāl, 17/95)
- He Also Said: “From The People Of Madina It Is Sahih; From The People Of Iraq It Is *Mudṭarib* (Inconsistent).”
- Ibn Hajar Said In *Taqrīb Al-Tahdhīb* (1/578): “He Is Trustworthy (ṣadūq), A Jurist, But His Memory Declined When He Came To Baghdad.”

Supporting Versions With Weak Chains:

- Abu Dawud From Muhammad Ibn Al-Sabbāh
- Al-Bayhaqi From Sulaiman Ibn Dawud Ibn Al-Jarūd
- Musnad Ahmad (8/4124, No. 18443): Through Ibrāhīm Ibn Abi Al-‘Abbās Al-Baghdadi
- Al-Mu‘Jam Al-Kabīr By Al-Ṭabarānī (20/377, No. 19061)

Common Narrators In All Weak Routes:

All These Reports Trace Back To ‘Abd Al-Rahman Ibn Abi Al-Zinad, And The Defect Lies In His Reliability Due To *Ikhtilāf*.

Takhrij For The Hadith Of Al-Mughira Ibn Shu‘Bah:

- Al-Tirmidhi In *Al-Jami‘* (1/143, No. 98)
- Ahmad In *Musnad* (8/4124, Nos. 18443, 18515, 18516)
- Al-Ṭabarānī In *Al-Kabīr* (20/377, No. 882)
- Al-Bayhaqi In *Sunan Al-Kubra* (1/291, No. 1405)
- Al-Daraqutni In *Sunan* (1/360, No. 754)
- Al-Tayālisi In *Musnad* (2/70, No. 727)
- Ibn Al-Jarūd In *Al-Muntaqa* (1/39, No. 93)

Narration Of Al-Mughira Ibn Shu‘Bah In Abu Dawud (1/64, Hadith 165)

Al-Mughira Ibn Shu‘Bah Said:

“I Assisted The Prophet ﷺ In Performing Wudu During The Expedition Of Tabuk. He Wiped Over The Leather Socks—Both Their Upper And Lower Parts.”

Arabic Text:

عَنِ الْمُغِيرَةِ بْنِ شُعْبَةَ، قَالَ: وَضَأْتُ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي غَزْوَةِ تَبُوكَ، فَمَسَحَ عَلَى الْخَفَيْنِ وَأَسْفَلَهُمَا

Chain Of Transmission (Isnād):

Narrated By:

- Mūsā Ibn Marwān And Maḥmūd Ibn Khālīd Al-Dimashqī
- From Al-Walīd
- From Thawr Ibn Yazīd
- From Rajā’ Ibn Ḥaywah
- From The Scribe Of Al-Mughīrah Ibn Shu‘Bah
- From Al-Mughīrah Ibn Shu‘Bah

Status:

Munqati‘ (Disconnected Chain)

While All Narrators Are **Thiqah** (Trustworthy), The Chain Is **Interrupted** Because **Rajā’ Ibn Ḥaywah** Did Not Hear Directly From The Scribe Of Al-Mughīrah Ibn Shu‘Bah.

Takhrij (Referencing Of The Hadith):

- Ibn Al-Jārūd In *Al-Muntaqā* (1/38, No. 92)
- Abū Dāwūd In *Sunan* (1/64, No. 165)
- Al-Tirmidhī In *Jāmi‘* (1/141, No. 97)
- Ibn Mājah In *Sunan* (1/345, No. 550)
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/290, Nos. 1398–1402)
- Al-Dāraquṭnī In *Sunan* (1/359, Nos. 752–753)
- Aḥmad Ibn Ḥanbal In *Musnad* (8/4135, No. 18484)
- Al-Ṭabarānī In *Al-Mu‘jam Al-Kabīr* (20/396, No. 939)

Contrary Report – Wiping Over Top And Bottom In The Athar Of ‘Abdullāh Ibn ‘Umar (رضي الله عنهما) In Al-Khilāfiyāt By Al-Bayhaqī (1/525, Hadith 851)

Narrated By Nāfi‘:

“Ibn ‘Umar Used To Wipe Over Both The Upper And Lower Parts Of The Khuffayn (Leather Socks).”

Abdullāh Ibn Al-Walīd Al-‘Adanī Said:

“He Meant The Khuffayn.”

Arabic Text:

عَنْ نَافِعٍ، أَنَّ ابْنَ عُمَرَ كَانَ يَمْسَحُ ظُهُورَهُمَا وَبُطُونَهُمَا. قَالَ الْعَدَنِيُّ: يَغْنِي الْخُفَّيْنِ

Status:

Ṣaḥīḥ Li-Dhātihi (Authentic In Itself)

All Narrators In The Chain Are **Thiqah** (Trustworthy) And **Precise (Zābit)**. The Chain Is **Muttaṣil (Connected)**.

Even **Sufyān Al-Jawharī**, Present In The Chain, Is **Reliable** As Affirmed In:

Al-Rawḍ Al-Bāsim Fī Tarājim Shuyūkh Al-Ḥākim (2/1021)

Takhrīj:

Also Reported By Ibn Al-Mundhir In *Al-Awsaṭ* (2/104, 108) Via Ibn Jurayj.

Summary Of The Discussion (خلاصة الكلام):

There Is A **Difference Of Opinion Among The Jurists** Regarding **Which Part Of The Khuff (Leather Socks)** Should Be Wiped Over During Wudu.

1. **Wiping Over The Top (Outer Part)** Of The Khuff Is **Obligatory**, And There Is No Disagreement On This Point.
2. The **Dispute Lies In Whether Wiping The Bottom (Inner Part)** Is:
 - **Recommended (Mustahabb)**
 - **Or Not Legislated At All**

Some Scholars Argue Against Wiping The Bottom Part, Based On The Hadith Of **‘Ali Ibn Abī Ṭālib (رضي الله عنه)**, Where He Said:

“Had Religion Been Based On Opinion, Wiping The Bottom Of The Khuff Would Have Been More Appropriate. But I Saw The Prophet ﷺ Wiping Over The Top Of The Khuff.”

Some Of These Reports Are Authentic, While Others Are Weak.

This Narration Of ‘Alī Is **Not Contradictory** To The Reports Of **Al-Mughīrah Ibn Shu‘Bah** Or **Ibn ‘Umar**, Because:

- ‘Alī Reported **What He Personally Saw** The Prophet ﷺ Do—Which Was Wiping Only The **Top**.
- It Is **Reasonable** That ‘Alī Did **Not Witness** Every Occasion The Prophet ﷺ Performed Wudu.
- On **Other Occasions**, The Prophet ﷺ **May Have Wiped Over Both Parts**, Which Other Companions Saw And Transmitted.

Conclusion:

- **Wiping Over The Top** Of The Khuff Is **Obligatory**.
 - **Wiping The Bottom** Is **Not Obligatory**, But Based On Some Narrations, It **May Be Considered Mustahabb (Recommended)**.
 - This Approach **Reconciles** All The Narrations.
 - **And Allah Knows Best.**
-

How Much Area Of The Khuffain Must Be Wiped?

According To The Shafi’i Madhhab:

It Is Sufficient To Wipe Over The Amount That Is Commonly Recognized As Wiping In Customary Usage (‘Urf), Just As It Is In The Case Of Wiping The Head.

That Is, When A Person Wears Leather Socks, Wiping Over Even A Small Part Of The Upper Portion Of The Sock Is Sufficient, As Long As It Can Be Called "Wiping" In Normal Language.

This View Is Based On The Following Texts:

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/298):

"The Shafi’is Hold That Wiping Is Fulfilled By Wiping Even A Portion Of The Top Of The Khuff, As Long As It Qualifies As Wiping In Ordinary Language."

Tuhfat Al-Muhtāj By Al-Haytami (1/254):

"A Minimal Amount Of Wiping Suffices, As It Does In Wiping The Head... Except For The Inside Of What Corresponds To The Obligatory Area (Of Wudū’) — I.E., The Sole And Heel — Wiping Them Does Not Suffice In The Madhhab Because That Was Not Established Through The Sunnah, And The Wiping Is To Be Done Over The Top."

Al-Fiqh Al-Islāmī Wa Adillatuhu By Al-Zuhaylī (1/477):

"The Obligation, According To The Shafi'is, Is To Wipe The Minimum Amount That Falls Under The Definition Of Wiping, Because What Is Mentioned In The Sharī'ah In General Terms Is Fulfilled By Any Form That Falls Under That Definition. The Preferred Opinion Is To Fulfill The Essence Of Wiping Over The Khuff, Just As Is The Case With The Head In Wudū'."

According To The Hanbali Madhhab:

It Is Obligatory To Wipe Over *Most* Of The Upper Part Of The Khuff — Meaning A Large Portion Must Be Wiped.

Masā'il Al-Imām Aḥmad Wa Ishāq Ibn Rāhawayh (2/284):

"The Correct View In The Madhhab Is That It Is Obligatory To Wipe Most Of The Upper Side Of The Khuff. This Is The View Of The Majority Of Hanbali Scholars. Some Have Said It Is Necessary To Wipe The Entire Upper Portion — From The Front Of The Foot To The Heel. Others Have Said It Must Be The Equivalent Of Four Fingers, Or The Equivalent Area As The Front Of The Head In Wudū'."

Sharḥ Muntahā Al-Irādāt By Al-Buhūti (1/67):

"It Is Obligatory To Wipe Most Of The Upper Part Of The Khuff And Similar Footwear (Like Leather Overshoes And Thick Socks), Considering That Wiping Over Most Is Like Wiping All. Wiping The Full Area Is Not Considered Sunnah."

According To The Maliki Madhhab:

The Entire Upper Part Of The Khuff Must Be Wiped, Just Like The Obligation Of Washing In Wudū'.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/298):

"The Malikis Hold That The Entire Upper Part Of The Khuff Must Be Wiped."

Al-Sharḥ Al-Kabīr Wa Ḥāshiyat Al-Dasūqī By Al-Dardīr (No. 14611):

"He Should Wipe Both Khuffs, Meaning He Should Move His Hand Across The Khuffs Starting From The Toes And Then Move To The Heels Until He Passes The Ankle, Which Is The Limit Of The Wudū' Area."

According To The Hanafi Madhhab:

It Is Obligatory To Wipe Over *Three Fingers' Width* On The Upper Part Of The Khuff.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/298):

"The Hanafis Define The Minimum As Wiping The Width Of Three Fingers."

Mukhtaṣar Al-Qudūrī (P. 17):

"The Obligation Is To Wipe An Area Equivalent To The Width Of Three Fingers From The Smallest Fingers Of The Hand."

Conclusion:

The Most Correct Opinion In This Issue Seems To Be That Of The **Shafi'i Madhhab**, Which Says That Wiping The Amount That Is Commonly Called "Wiping" In Normal Usage Is Sufficient — Just Like In The Case Of Wiping Part Of The Head In Wudū'.

However, It Is *Better* To Wipe Properly Over The Upper Part Of The Khuff, As The **Hanafis** Say, And Also To Wipe The *Bottom* Of The Khuff As Well, Which Is *Recommended* (Mustaḥabb) — As Discussed In Earlier Sections.

In Conclusion:

- **Wiping Over The Upper Part Is Obligatory**, And
- **Wiping Over The Bottom Is Recommended**, As Proven By Earlier Hadiths.

The Disagreement Among Scholars Arises Due To Analogical Reasoning (Qiyās), And:

- The **Shafi'is** Argue That The Obligation Is Fulfilled Based On General Usage ('Urf), Which Seems More Sound.
- The **Hanafis** Argue Based On A Hadith Where The Prophet ﷺ Wiped With His Fingers — In Arabic: (بِأَصَابِعِهِ) — And Since In Arabic, The Plural Implies *At Least Three*, The Hanafis Conclude That One Must Wipe With *Three Fingers*.

Therefore, What I Mean Is:

- It Is **Necessary** To Wipe With Three Fingers (As Per The ḥadīth),
- But If A Person Wipes Over Enough Area That It Would Be Called Wiping In Normal Language ('Urf), That Is **Also Valid**.
- Wiping Over The **Upper Part Thoroughly** Is *Mustaḥabb* (Recommended), And
- Wiping Over The **Bottom** Of The Khuff Is Also *Mustaḥabb*.

And Allah Knows Best.

Method Of Wiping Over The Khuffain (Leather Socks)

According To The Hanafi Madhhab:

- One Must Start Wiping From The **Toes** Of The Foot And Move **Upwards** Toward The **Shin Bone** (Above The Ankle).
- The Minimum Required Is To Wipe Using **Three Fingers** Of The Hand.
- One Should Wipe The **Top Of Each Foot Once**—Using The **Right Hand For The Right Foot** And The **Left Hand For The Left Foot**.
- If Someone Wipes **In Reverse Order** (From The Shin Down To The Toes), It Is Still **Valid**.
- Wiping The **Bottom Of The Khuff** Or Wiping Using **Both Hands Together** Is **Not Valid**.
- Wiping More Than Once Or **Repeating The Wipe** Is **Not Sunnah**.

Source:

- *Al-Fiqh Al-Islāmī Wa Adillatuh* By Al-Zuhaylī (1/476):

"The Hanafis Say: Start From The Toes In Lines With The Fingers Up To The Shin. The Obligatory Part Of Wiping According To Them Is The Area Of Three Fingers From The Smallest Fingers Of The Hand On The Top Front Part Of Each Foot, Once Only. Wiping The Sole, Heel, Or Sides Does Not Suffice. Repeating The Wipe Or Washing The Khuff Is Not Sunnah."

Other References:

- *Marāqī Al-Falāḥ, Badā'ī 'Al-Ṣanā'ī', Al-Lubāb, Fath Al-Qadīr, Al-Durr Al-Mukhtār, Mukhtaṣar Al-Qudūrī*
- The Hanafis And Hanbalis Both Agree That Wiping Is Done **With Lines Of The Fingers** From The **Toes To The Shin**, Based On The Hadith Of Al-Mughīrah Ibn Shu'bah:

"The Prophet ﷺ Wiped Over His Khuffain, Placing His Right Hand On The Right Foot And His Left Hand On The Left Foot, Then Wiped Them Upward Once."

→ If Someone Starts From The Shin Down To The Toes, It Is Still Valid.

According To The Mālikī Madhhab:

- It Is **Obligatory** To Wipe Over The **Entire Upper Part** Of The Khuff.
- It Is **Recommended (Mustaḥabb)** To Also Wipe The **Bottom Of The Khuff**.
- The **Recommended Way**:
 - Place The **Right Palm** Over The **Toes Of The Right Foot** (Top Side).
 - Place The **Left Palm** Under The **Heel Of The Left Foot** (Bottom Side).
 - Then Wipe Together Until Reaching The End Of The Foot.
- It Is **Mustaḥabb** To Wipe Both **Top And Bottom Together**.
- **Repetition Or Washing Is Disliked (Makrūh)** As It May Damage The Khuff.

Sources:

- *Al-Fiqh Al-Islāmī Wa Adillatuh* By Al-Zuhaylī (1/476, 478):

"The Mālikīs Say: It Is Obligatory To Wipe The Entire Upper Part Of The Khuff, And Recommended To Wipe The Bottom As Well."

"The Recommended Method Is To Place The Right Palm On The Toes Of The Right Foot And The Left Palm Underneath It (Under The Toes Or Heel), Then Move Both Hands To The End Of The Foot."

- *Al-Qawānīn Al-Fiqhiyyah, Al-Sharḥ Al-Kabīr, Ḥāshiyat Al-Dusūqī, Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (1/294):

Imam Mālik Preferred Wiping Both The Top And Bottom, Based On Early Sources And Practices.

According To The Shāfi'ī Madhhab:

- It Is **Obligatory** To Wipe The **Top Part** (*ẓāhir*) Of The *Khuff*, Which Is The Area Designed For Wiping.
- Wiping The **Bottom, Sides, Or Heel** Of The *Khuff* Is **Not Obligatory**.
- However, The **Shāfi'īs Recommend (Mustaḥabb)** Wiping The **Bottom And Other Sides** Of The *Khuff* Along With The Top.

Recommended Method:

- Place The **Right Palm** On The **Toes Of The Right Foot (Top Side)**.
- Place The **Left Palm** Under The **Toes Of The Left Foot (Bottom Side)**.
- Then Wipe Both Together Toward The End Of The Feet.
- Wiping Both The **Top And Bottom Together** Is **Mustaḥabb**, And **Repeating** The Wiping Or **Washing** The *Khuff* Is **Disliked (Makrūh)**.

Sources:

- *Al-Fiqh Al-Islāmī Wa Adillatuh* By Al-Zuhaylī (1/476, 478):

"According To The Shāfi'īs: It Suffices To Wipe The Top Of The *Khuff*, And This Fulfills The Obligation, Similar To Wiping The Head. Wiping The Sole, Heel, Or Sides Is Not Obligatory, Though Recommended."

- *Mughnī Al-Muḥtāj, Al-Muhadhdhab*

Shāfi'ī Response To Ḥanafī And Ḥanbalī Objection:

- When Ḥanafīs And Ḥanbalīs Object That If There Is **Impurity On The Bottom** Of The *Khuff*, The Shāfi'īs Would Not Allow Wiping Over It, The Shāfi'īs Agree:

“Yes, If There Is Impurity On The Underside, One Should Not Wipe Over It, Even If It’s Excused. Wiping Over Impurity Increases The Filth And Obligates Washing Both The *Khuff* And The Hand.”

Sources:

- *Bughyat Al-Muqtasid* (1/300)
- *Mughnī Al-Muḥtāj* By Al-Shirbīnī (1/206)

According To The *Ḥanbalī Madhhab*:

- It Suffices To Wipe **Most Of The Top Front Part** Of The *Khuff*.
- Wiping The **Bottom** Or The **Heel** Is **Not Sunnah**.

Sunnah Method:

- Spread The Fingers And Begin Wiping From The **Toes** To **Above The Ankles** (Towards The Shin Bone).
- Use The **Right Hand** To Wipe The **Right Foot**, And The **Left Hand** To Wipe The **Left Foot**.
- If Someone Wipes In **Reverse Direction** (From Shin To Toes), The Wiping Is Still **Valid**, But **Not Preferred**.

Sources:

- *Al-Fiqh Al-Islāmī Wa Adillatuh* By Al-Zuḥaylī (1/476, 478)
- *Al-Mughnī* (1/298), *Kashshāf Al-Qinā’* (1/130, 133)

"The Prophet ﷺ Wiped His *Khuffayn* Starting From The Toes To The Shin In One Stroke, Using The Right Hand For The Right Foot And The Left For The Left Foot. Even If One Wipes From Shin To Toes, It Is Valid."

Conclusion :

- **Start The Wiping From The Toes** Of Each Foot.
- Use At Least **Three Fingers**, And Wipe **Up To And Including The Ankles**, Which Is **Obligatory**.
- **Wiping Up To The Shin Bone** (Above The Ankle) Is **Recommended (Mustaḥabb)**.
- Use The **Right Hand For The Right Foot**, And The **Left Hand For The Left Foot**.
- **Wiping The Bottom Of The Khuff** Is **Recommended (Mustaḥabb)** According To **Mālikīs And Shāfi’īs**, But **Not Sunnah** According To **Ḥanafīs And Ḥanbalīs**.
- The **Stronger And More Comprehensive View** Is That **Starting From The Toes**, Wiping **Up To The Ankle**, With **Three Fingers**, And **Optionally Including The Shin And Underside**, Is Most Complete.
And Allah Knows Best.

Duration Of Wiping Over The Khuffayn (Leather Socks)

1. Consensus Among The Sahabah

There Was **No Disagreement Among The Sahabah (Companions)** That The Duration For Wiping Over The Khuffayn Is:

- **For A Traveler:** *Three Days And Three Nights*
- **For A Resident:** *One Day And One Night*

Bughiyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/302):

“There Was No Disagreement Among The Sahabah Regarding The Timing Of Wiping. The Traveler Wipes For Three Days And Nights, And The Resident For A Day And A Night.”

2. Hanafi Madhhab

According To The **Hanafi Madhhab**, The Duration Of Wiping Is:

- **Traveler:** Three Days And Nights
- **Resident:** One Day And Night

Mukhtaṣar Al-Qudūrī (P. 17):

“If He Is A Resident, He Wipes For A Day And A Night; And If He Is A Traveler, He Wipes For Three Days And Nights. The Duration Begins After The State Of Impurity.”

Al-Durr Al-Mukhtār And Ḥāshiyat Ibn ‘Ābidīn (1/278):

“If A Resident Wiped After Becoming Impure And Then Traveled Before A Day And Night Passed, He Wipes For Three Days. But If He Traveled After The Time Ended, He Must Remove Them. Likewise, If A Traveler Returned And Became A Resident After The Resident’s Duration Ended, He Must Remove Them. Otherwise, He Completes The Duration.”

3. Māliki Madhhab

In The **Māliki School**, The Well-Known Opinion Is That:

- **There Is No Fixed Time Limit For Wiping** Over The Khuffayn — Neither For A Traveler Nor For A Resident.
- However, **Three Opinions** Exist In The School:
 1. **Famous/Mashhūr View:** No Specific Duration. A Person May Continue Wiping As Long As He Does Not Remove The Socks Or Become Junub.

2. **Second Opinion:** There Is A Time Limit, In Agreement With The Majority (I.E., The Other Three Madhāhib).
3. **Third Opinion:** The Duration Differs Between Traveler And Resident.

Al-Fiqh Al-Islāmī Wa Adillatuhu (Al-Zuhaylī) (1/489):

“The Mālikīs Did Not Set A Time Limit, While The Majority Did. Mālikīs Said Wiping Over The Khuffayn Is Permissible Without Restriction Of Time.”

Al-Sharḥ Al-Ṣaghīr (1/154):

“There Is No Fixed Duration For Wiping; It Is Not Restricted To A Day And Night Or More Or Less, Contrary To Those Who Stipulated A Limit.”

‘Uyūn Al-Adillah By Ibn Al-Qaṣṣār Al-Mālikī (3/1259):

“According To Mālik, There Is No Defined Time For Wiping, Neither For The Resident Nor The Traveler. He May Wipe As Long As He Hasn’t Removed Them Or Become Junub.”

Bughiyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/321):

“He Wipes Over Them For As Long As Allah Wills, Whether He Is A Resident Or Traveler. This Is The Well-Known View And What The Author Settled On.

Second View: The Wiping Is Limited (Time-Wise), And This Agrees With The Majority.

Third View: Differentiation Between Resident And Traveler — It Is Timed For One But Not The Other.”

4. Shāfi‘ī Madhhab

In The **Shāfi‘ī Madhhab**, The Duration Is:

- **Resident:** One Day And Night
- **Traveler:** Three Days And Nights

Tuḥfat Al-Muḥtāj By Al-Haytamī (1/251):

“The Duration Intended For Wiping Is A Day And Night For The Resident And Three Days And Nights For The Traveler.”

Mughni Al-Muḥtāj By Al-Shirbīnī (1/199–200):

“Any Journey That Qualifies For Shortening Prayers (Qasr), Allows One To Wipe Over Khuffayn For Three Days And Nights. A Resident Wipes For One Day And Night.”

5. Ḥanbalī Madhhab

In The **Ḥanbalī Madhhab**, The Ruling Is:

- **Resident:** One Day And Night
- **Traveler (Journey Of Qasr):** Three Days And Nights

Kashshāf Al-Qināʿ By Al-Buhūtī (1/114):

“A Traveler Undertaking A Valid Journey For Qasr May Wipe For Three Days And Nights. One Sinning In Travel Or On A Short Trip Wipes Only For A Day And Night Because He Is Considered Like A Resident.”

6. Reports From The Sahabah

Several Companions Have **Explicitly Narrated** The Time Durations For Mash Over The Khuffayn:

- ‘Umar Ibn Al-Khattāb
- ‘Alī Ibn Abī Ṭālib
- ‘Abdullāh Ibn Mas‘ūd
- ‘Abdullāh Ibn ‘Abbās
- Abū Zayd Al-Anṣārī

Bughiyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/322):

“It Has Been Transmitted From Several Companions — ‘Umar, ‘Alī, Ibn Mas‘ūd, Ibn ‘Abbās, And Abū Zayd Al-Anṣārī — That They Affirmed The Time Limit (Taqwīt) For Wiping.”

Al-Sunan Al-Kubrā By Al-Bayhaqī (1/421):

“We Narrated From ‘Umar, ‘Alī, Ibn Mas‘ūd, And Ibn ‘Abbās Regarding The Time Duration, And Their Statements Align With The Sunnah, Which Is More Widespread And Sounder.”

7. Agreement Of Three Imams

The **Three Imams (Abū Ḥanīfah, Al-Shāfi‘ī, Aḥmad)** Are United In Affirming The Time Limit:

- Traveler: Three Days And Nights
- Resident: One Day And Night

Imām Mālik Is Alone In His Famous Opinion Of **No Time Limit**, Though He Has Other Less Famous Views Closer To The Majority.

8. Cause Of Disagreement

The Basis Of Disagreement Is Due To **Variations In The Transmitted Hadiths** Regarding Time Duration.

One Of The **Strongest Hadiths** On The Subject Is The Narration Of **‘Alī Ibn Abī Ṭālib**:

Hadith In Ṣaḥīḥ Muslim – Volume 1, Hadith 276 (639):

Shurayḥ Ibn Hānī’ Said:

I Went To ‘Ā’ishah To Ask Her About Wiping Over The Khuffayn. She Said: “Go To ‘Alī Ibn Abī Ṭālib

And Ask Him, For He Used To Travel With The Messenger Of Allah ﷺ.”

So We Asked Him, And He Said: “The Messenger Of Allah ﷺ Stipulated Three Days And Nights For The Traveler, And One Day And Night For The Resident.”

Authenticity: Ṣaḥīḥ (Authentic) — Classified As *ṣaḥīḥ Li-Dhātihi* (Sound In And Of Itself)

Takhrīj (Source References)

- Muslim (1/159–160, Hadith 276)
- Ibn Khuzaymah (1/301–302, Hadiths 194–195)
- Ibn Ḥibbān (4/151–160, Hadiths 1322, 1327, 1331)
- Al-Nasā’ī In *Al-Mujtabā* And *Al-Kubrā*
- Al-Dārimī (1/556, Hadith 741)
- Ibn Mājah (1/347, Hadith 552)
- Al-Bayhaqī In *Al-Sunan Al-Kubrā*
- Al-Dāraquṭnī, Aḥmad, Al-Ṭabarānī, Al-Ṭaḥāwī, Al-Ṭayālīsī, Abū Ya‘Lā, Ibn Abī Shaybah, ‘Abd Al-Razzāq, And Others

1. Hadith Of Khuzaymah Ibn Thabit (Sunan Abī Dāwūd 157)

Translation:

Khuzaymah Ibn Thābit (The Well-Known Companion From The Ashāb Al-Ṣuffah) Narrated:
The Messenger Of Allah ﷺ Said:

"Wiping Over The Leather Socks (Khuffayn) Is Allowed For A Traveler For Three Days And Nights, And For A Resident For One Day And One Night."

Arabic Matn:

حَدَّثَنَا حَفْصُ بْنُ عُمَرَ، قَالَ: ثَنَا شُعْبَةُ، عَنِ الْحَكَمِ، وَحَمَّادٌ عَنْ إِبْرَاهِيمَ، عَنْ أَبِي عَبْدِ اللَّهِ الْجَدَلِيِّ، عَنْ خُرَيْمَةَ بْنِ ثَابِتٍ، عَنِ النَّبِيِّ ﷺ قَالَ: الْمَسْحُ عَلَى الْخُفَّيْنِ لِلْمُسَافِرِ ثَلَاثَةَ أَيَّامٍ، وَلِلْمَقِيمِ يَوْمٌ وَلَيْلَةٌ.

Comment By Abū Dāwūd:

Abū Dāwūd Said: This Was Also Narrated By Maṣṣūr Ibn Al-Mu‘Tamir From Ibrāhīm Al-Taymī With The Same Chain, And In That Version, It Includes The Addition:

"And If We Had Asked Him For More, He Would Have Increased (The Period)."

Authenticity And Narrators' Reliability (Sanad Analysis)

This Sanad Is Strong. All Narrators Are Thiqaḥ (Trustworthy):

- All Narrators Are Found In **Ṣaḥīḥ Al-Bukhārī** And **Ṣaḥīḥ Muslim**, Except Abū ‘Abd Allāh Al-Jadalī.
- However, Abū ‘Abd Allāh Al-Jadalī Is Still **Reliable** And Has Been Declared **Thiqa** By The Following Major Scholars:

Statements Of Authentication:

1. Ibn Ḥajar:

"Thiqah, But He Was Accused Of Shi'ism."
(تقريب التهذيب 1170/1)

2. Yahyā Ibn Ma'īn (Via Ibn Abī Khaythamah):

"Thiqah."
(تهذيب الكمال 24/34)

3. Al-Dhahabī:

"Thiqah."
(الكاشف 70/5)

4. Imām Aḥmad Ibn Ḥanbal:

"Yes, He Is Known, And He Declared Him Thiqah."
(تهذيب التهذيب 547/4)

5. Ibn Ḥibbān:

Mentioned Him In "Al-Thiqāt"
(تهذيب التهذيب 547/4)

6. Imām Al-ʿAjli:

"A Basran Tābiʿī, Thiqah."
(تهذيب التهذيب 547/4)

Conclusion: The Chain Is **ṣaḥīḥ (Authentic)**. The Hadith Is **Firmly Established**.

Takhrij (Hadith Sources)

This Hadith Of Khuzaymah Ibn Thābit Is Found In:

- **Sunan Abī Dāwūd** (1/60), Hadith **157**
- **Jāmiʿ Al-Tirmidhī** (1/139), Hadith **95**
- **Sunan Ibn Mājah** (1/347), Hadith **553, 554**
- **Musnad Aḥmad:**
Multiple Places — Hadith No. 22268, 22269, 22270, 22274, 22276, 22279, 22285, 22286, 22287, 22288, 22292, 22298, 22299
- **Ṣaḥīḥ Ibn Ḥibbān** (4/158–162), Hadith **1329, 1330, 1332, 1333**
- **Al-Muʿjam Al-Kabīr** Of Al-Ṭabarānī (4/83–100): Multiple Chains, Hadith **3713** Through **3792**

- **Al-Mu‘ Jam Al-Awsaṭ, Al-Ṣaghīr, Musannaf Ibn Abī Shaybah** (2/240–242), Hadith **1874–1876**
- **Musannaf ‘ Abd Al-Razzāq** (1/203), Hadith **790–791**
- **Sunan Al-Bayhaqī Al-Kubrā** (1/276–278), Hadith **1331, 1338–1341, 1344–1345**
- **Musnad Al-Ḥumaydī** (1/401–403), Hadith **438–439**
- **Musnad Abū Dāwūd Al-Ṭayālīsī** (2/544–546), Hadith **1314–1315**
- **Al-Muntaqā** Of Ibn Al-Jārūd (1/39), Hadith **94**
- **Sharḥ Ma‘Ānī Al-Āthār** By Al-Ṭaḥāwī (1/81–82), Hadith **504–513**

2. Hadith Of Ṣafwān Ibn ‘Assāl (Jāmi‘ Al-Tirmidhī 96)

Translation:

Ṣafwān Ibn ‘Assāl Al-Murādī Said:

The Messenger Of Allah ﷺ Would Command Us, When We Were Traveling, **Not To Remove Our Leather Socks (Khuffayn) For Three Days And Nights—Except Due To Janābah (Major Impurity). But Not Due To Defecation, Urination, Or Sleep.**

Arabic Matn:

كَانَ رَسُولُ اللَّهِ ﷺ يَأْمُرُنَا إِذَا كُنَّا سَفَرًا أَنْ لَا نَنْزِعَ خُفَّائِنَا ثَلَاثَةَ أَيَّامٍ وَلَيْلِيَهُنَّ، إِلَّا مِنْ جَنَابَةٍ، وَلَكِنْ مِنْ غَائِطٍ، وَبَوْلٍ، وَنَوْمٍ.

Ruling:

Ṣaḥīḥ Li-Dhātih — Authentic In Itself.

Takhrij (Hadith Sources)

This Hadith Is Also Reported In:

- **Jāmi‘ Al-Tirmidhī:**
(1/140) Hadith **96**, (5/505) Hadith **3535**, (5/506) Hadith **3536**
- **Sunan Al-Nasā’ī (Al-Mujtabā):**
(1/50) Hadith **126–127**, (1/56) Hadith **158–159**
- **Sunan Ibn Mājah** (1/302), Hadith **478**
- **Musnad Aḥmad** (8/4106–4109), Hadith **18377, 18379, 18381, 18382, 18384, 18386**
- **Ṣaḥīḥ Ibn Ḥibbān** (3/381), Hadith **1100**, (4/147–155), Hadith **1319–1325**
- **Ṣaḥīḥ Ibn Khuzaymah:** Hadith **17, 193, 196**
- **Al-Mu‘ Jam Al-Kabīr** Of Al-Ṭabarānī (8/54–70), Hadith **7347–7397**
- **Al-Mu‘ Jam Al-Awsaṭ, Al-Ṣaghīr**
- **Musannaf ‘ Abd Al-Razzāq** — (Citation Cut Off But Also Reported There)

A Similar Ḥadīth Is Reported From Abū Bakrah Al-Thaqafī:

Narration:

Ḥaddathanā Abū Bakr Ibn Abī Shaybah And Abū Kurayb — They Said: Ḥaddathanā Zayd Ibn Al-Ḥubāb — He Said: Ḥaddathanā ‘Umar Ibn ‘Abd Allāh Ibn Abī Khath‘ Am Al-Yamāmī — He Said: Ḥaddathanā Yaḥyā Ibn Abī Kathīr From Abū Salamah From Abū Hurayrah, Who Said:

They Said: "O Messenger Of Allah, What Is The Ruling Regarding Wiping Over The Leather Socks (Khuffayn)?"

He Replied:

“For The Traveler: **Three Days And Their Nights**, And For The Resident: **One Day And One Night.**”

Takhrīj (Source References):

This ḥadīth Has Been Narrated By:

- Ibn Mājah In *Sunan* (1/349), ḥadīth No. 556
- Ibn Ḥibbān In *Ṣaḥīḥ* (4/153), No. 1324 And (4/157), No. 1328
- Ibn Khuzaymah In *Ṣaḥīḥ* (1/299), No. 192
- Ibn Abī Shaybah In *Muṣannaḥ* (2/251), No. 1890
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/276), No. 1327, 1328; (1/281), No. 1358, 1359; (1/289), No. 1393
- Al-Dāraquṭnī In *Sunan* (1/357), No. 747; (1/358), No. 748; (1/377), No. 782
- Al-Bazzār In *Musnad* (9/90), No. 3621
- Ibn Al-Jārūd In *Al-Muntaqā* (1/39), No. 95
- Al-Ṭaḥāwī In *Sharḥ Ma ‘Ānī Al-Āthār* (1/82), No. 519

A Similar Ḥadīth Is Reported From ‘Abd Allāh Ibn ‘Umar Ibn Al-Khaṭṭāb:

Narration:

Ḥaddathanā Al-Ḥusayn Ibn Ishāq Al-Tustarī — Ḥaddathanā Muḥammad Ibn Yaḥyā Al-Qaṭa‘ī — Ḥaddathanā Rūḥ Ibn ‘Aṭā’ Ibn Abī Maymūnah — Ḥaddathanā Ghīlān, The Freed Slave Of ‘Uthmān Ibn ‘Affān — From Ibn ‘Umar From The Prophet ﷺ:

“Wiping Over The Leather Socks (Khuffayn) Is **One Day And One Night** For The Resident, And **Three Days And Nights** For The Traveler.”

Takhrīj:

- Aḥmad In *Musnad* (2/720), No. 3043
- Al-Ṭabarānī In *Al-Kabīr* (13/255), No. 14005
- Al-Ṭabarānī In *Al-Awsaṭ* (5/11), No. 4530
- Ibn Abī Shaybah In *Muṣannaḥ* (2/255), No. 1901
- Al-Ṭaḥāwī In *Sharḥ Ma ‘Ānī Al-Āthār* (1/84), No. 538

A Similar Ḥadīth Is Reported From ‘Awf Ibn Mālik Al-Ashja‘ī:

Narration:

‘Ubayd Ibn Ghannām — Ḥaddathanā Abū Bakr Ibn Abī Shaybah; And ‘Alī Ibn ‘Abd Al-‘Azīz — Ḥaddathanā Sa‘īd Ibn Mansūr — Both Said: Ḥaddathanā Hushaym — Ḥaddathanā Dāwūd Ibn ‘Amr — From Busr Ibn ‘Ubayd Allāh Al-Ḥaḍramī — From Abū Idrīs Al-Khawlānī — Who Said:

‘Awf Ibn Mālik Al-Ashja‘ī Narrated:

The Messenger Of Allah ﷺ Commanded Us During The Expedition Of Tabūk To Wipe Over The Leather Socks (Khuffayn) For The Traveler **Three Days And Nights**, And For The Resident **One Day And One Night**.

Takhrīj:

- Aḥmad In *Musnad* (11/5803), No. 24628
- Al-Ṭabarānī In *Al-Kabīr* (18/40), No. 69
- Al-Ṭabarānī In *Al-Awsaṭ* (2/33), No. 1145
- Ibn Abī Shaybah In *Muṣannaḥ* (2/235), No. 1864; (20/552), No. 38166
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/275), No. 1325, 1326
- Al-Dāraquṭnī In *Sunan* (1/364), No. 764
- Al-Bazzār In *Musnad* (7/189), No. 2757
- Al-Ṭahāwī In *Sharḥ Ma‘ānī Al-Āthār* (1/82), Nos. 520, 521

A Similar Ḥadīth Is Reported From Usāmah Ibn Sharīk Al-Dhubiyānī:

Narration:

Ḥaddathanā Muḥammad Ibn ‘Abd Allāh Al-Ḥaḍramī — Ḥaddathanā Sahl Ibn Zanjalah Al-Rāzī — Ḥaddathanā Al-Ṣabbāḥ Ibn Muḥārīb — From ‘Umar Ibn ‘Abd Allāh Ibn Ya‘Lā Ibn Murrah — From His Father — From His Grandfather — And From Ziyād Ibn ‘Ilāqah — From Usāmah Ibn Sharīk:

The Prophet ﷺ Said Regarding Wiping Over The Leather Socks (Khuffayn):

“For The Traveler **Three (Days)**, And For The Resident **One Day And One Night**.”

Takhrīj:

- Al-Ṭabarānī In *Al-Kabīr* (1/187), No. 492; (22/262), No. 674
- Also Cited By Ibn Ḥajar In *Al-Maṭālib Al-‘Āliyah* (2/328), No. (107/2)

A Similar Ḥadīth Is Reported From Ya‘Lā Ibn Murrah Ibn Wabb:

Narration:

Ḥaddathanā ‘Abdān Ibn Aḥmad — Ḥaddathanā ‘Amr Ibn ‘Uthmān Al-Ḥimsī — Ḥaddathanā Marwān Ibn Mu‘Āwiyah — Ḥaddathanā ‘Umar Ibn ‘Abd Allāh Ibn Ya‘Lā Ibn Murrah Al-Thaqafī — From His Father — From His Grandfather:

“Whenever We Traveled With The Messenger Of Allah ﷺ, We Would Not Remove Our Leather Socks For **Three Days**, But When We Were Resident, Then **One Day And One Night**.”

Takhrij:

- Al-Ṭabarānī In *Al-Kabīr* (1/187), No. 492; (22/262), No. 673, 674
- Also Cited By Ibn Ḥajar In *Al-Maṭālib Al-‘Āliyah* (2/328), No. (107/2)

A Similar Ḥadīth Is Reported From Another Companion:

Narration:

‘Abd Allāh Ibn Aḥmad Ibn Ḥanbal — Ḥaddathanī Abī (Aḥmad Ibn Ḥanbal) — Ḥaddathanā Abū Bakr Al-Ḥanafī — Ḥaddathanā ‘Abd Al-Ḥamīd Ibn Ja‘far Al-Anṣārī — From Ayyūb Ibn Jarīr — From His Father — From His Grandfather:

I Asked The Messenger Of Allah ﷺ About Wiping Over The Leather Socks (Khuffayn), And He Replied:

“**Three Days** For The Traveler, And **One Day And One Night** For The Resident.”

Takhrij:

- Al-Ṭabarānī In *Al-Kabīr* (2/336), No. 2399
- Al-Ṭaḥāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/84), No. 540

A Similar Ḥadīth Is Reported From Jarīr Ibn ‘Abd Allāh:

Narration:

‘Abd Allāh Ibn Aḥmad Ibn Ḥanbal — Ḥaddathanī ‘Abd Allāh Ibn ‘Amr Ibn Abān — Ḥaddathanā ‘Ubaydah Ibn Al-Aswad — Ḥaddathanā Al-Qāsim Ibn Al-Walīd — From Ṭalḥah Ibn Muṣarrif — From Ibrāhīm Al-Taymī — From Hammām Ibn Al-Ḥārith — From Jarīr — From The Prophet ﷺ:

“For The Traveler: **Three (Days)**, And For The Resident: **One Day** — In The Matter Of Wiping Over The Leather Socks (Khuffayn).”

Takhrij:

- Al-Ṭabarānī In *Al-Kabīr* (2/342), No. 2431
- Al-Ṭabarānī In *Al-Awsaṭ* (4/318), No. 4315; (7/265), No. 7459
- Ibn Abī Shaybah In *Muṣannaḥ* (2/253), No. 1894; (2/262), No. 1936

A Similar Ḥadīth Is Reported From Abū Umāmah Al-Bāhilī:

Narration:

Abū Muslim Al-Kashshī And ‘Abd Allāh Ibn Aḥmad Ibn Ḥanbal — Both Said: Ḥaddathanā Muḥammad Ibn Abī Bakr Al-Muqaddamī — Ḥaddathanā ‘Abd Al-Ṣamad Ibn ‘Abd Al-Wārith — Ḥaddathanā Marwān Abū Salamah — Ḥaddathanā Shahr Ibn Ḥawshab — From Abū Umāmah:

The Prophet ﷺ Used To Wipe Over **The Leather Socks And The Turban:**
For The Traveler **Three Times**, And For The Resident **One Day And One Night**.

Takhrij:

- Al-Ṭabarānī In *Al-Kabīr* (8/122), No. 7558

A Similar Ḥadīth Is Reported From ‘Abd Allāh Ibn Mas‘ūd:

Narration:

‘Alī Ibn ‘Abd Al-‘Azīz — Ḥaddathanā Abū Nu‘Aym — Ḥaddathanā Sufyān — From Ḥabīb Ibn Abī Thābit — From Ibrāhīm Al-Taymī — From Al-Ḥārith Ibn Suwayd:

‘Abd Allāh (Ibn Mas‘ūd) Declared The Period Of Wiping To Be **Three Days** For The Traveler, And **One Day** For The Resident.

This Same Narration Has Been Reported From ‘Abdullāh Ibn ‘Abbās (May Allah Be Pleased With Him):

Arabic Text:

حَدَّثَنَا مُحَمَّدُ بْنُ الْفَضْلِ السَّقَطِيُّ، ثَنَا إِسْحَاقُ بْنُ كَعْبٍ، ثَنَا مُحَمَّدُ بْنُ جَابِرٍ، عَنْ مُسْلِمِ الْمَلَائِي، عَنْ سَعِيدِ بْنِ جُبَيْرٍ، عَنْ ابْنِ عَبَّاسٍ قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ:

"Wiping Over The Leather Socks Is Permitted For The Resident For One Day And One Night, And For The Traveler For Three Days And Nights."

Takhrij Of The ḥadīth:

Reported By:

- Al-Ṭabarānī In *Al-Mu‘jam Al-Kabīr* (12/43, No. 12423),
- Ibn Abī Shaybah In His *Muṣannaf* (2/255, No. 1905) And (2/260, No. 1923),
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/208, No. 802),
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/273, No. 1311), (1/277, No. 1337),
- Ibn Ḥajar In *Al-Maṭālib Al-‘Āliyah* (2/310, No. 98),
- And Al-Ṭahāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/84, Nos. 536, 537, 541),
- And In *Sharḥ Mushkil Al-Āthār* (6/291, Unnumbered).

This Same Narration Has Been Reported From Al-Mughīrah Ibn Shu‘Bah (May Allah Be Pleased With Him):

Arabic Text:

فَتَوَضَّأَ وَمَسَحَ عَلَى الْخُفَّيْنِ، وَكَانَتْ سُنَّةً: الْمُسَافِرُ ثَلَاثَةَ أَيَّامٍ وَلَيَالِيَهُنَّ، وَالْمُقِيمُ يَوْمٌ وَلَيْلَةٌ...

"He Performed Ablution And Wiped Over His Leather Socks. It Was A Sunnah That A Traveler May Do So For Three Days And Nights, And The Resident For One Day And One Night."

Takhrij Of The ḥadīth:

Reported By:

- Al-Ṭabarānī In *Al-Kabīr* (20/374, Nos. 873, 874; 20/418, No. 1005),
- Al-Ṭabarānī In *Al-Awsaṭ* (8/243, No. 8524),
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/290, No. 1397),
- And Al-Ṭahāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/83, No. 522).

This Same Narration Has Been Reported From Anas Ibn Mālik (May Allah Be Pleased With Him):

Arabic Text:

فِي الْمَسْحِ عَلَى الْخُفَّيْنِ: ثَلَاثَةُ أَيَّامٍ لِلْمُسَافِرِ، وَالْمُقِيمِ يَوْمٌ إِلَى اللَّيْلِ...

"Regarding Wiping Over The Leather Socks: For The Traveler, Three Days; And For The Resident, One Day Until The Night."

Takhrij Of The ḥadīth:

Reported By:

- Al-Ṭabarānī In *Al-Awsaṭ* (2/240, No. 1858; 7/344, No. 7679),
- Al-Ḍiyā‘ Al-Maqdisī In *Al-Aḥādīth Al-Mukhtārah* (7/144, No. 2577),
- And Al-Ṭahāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/84, No. 539).

This Same Ruling Was Written By ‘Umar Ibn Al-Khaṭṭāb (May Allah Be Pleased With Him):

"The Traveler May Wipe Over Leather Socks For Three Days And Nights, And The Resident For One Day And One Night."

Takhrij Of The ḥadīth:

Reported By:

- Ibn Abī Shaybah In *Muṣannaḥ* (2/252, Nos. 1891, 1892, 1893),
- ‘Abd Al-Razzāq In *Al-Muṣannaḥ* (1/205, No. 794; 1/206, No. 796),
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/276, Nos. 1332, 1333; 1/278, No. 1343),
- Al-Dāraquṭnī In *Sunan* (1/360, No. 755),
- Al-Bazzār In *Musnad* (1/241, No. 128),
- Abū Ya‘Lā In *Musnad* (1/158, No. 171),
- Al-Ḍiyā‘ Al-Maqdisī In *Al-Aḥādīth Al-Mukhtārah* (1/300, No. 190),
- And Al-Ṭahāwī In *Sharḥ Ma‘Ānī Al-Āthār* (1/83–84, Nos. 524–527, 529–532).

This Same Narration Has Been Reported From Jābir Ibn Samurah Al-Sawā'ī (May Allah Be Pleased With Him):

"I Do Not Care Even If I Do Not Remove My Leather Socks For Three (Days)."

Takhrij Of The ḥadīth:

Reported By:

- Ibn Abī Shaybah In *Muṣannaf* (2/256, No. 1911)

This Same Narration Has Been Reported From Sa'd Ibn Abī Waqqāṣ (May Allah Be Pleased With Him):

"Yes, The Traveler May Wipe For Three Days And Nights, And The Resident For One Day And One Night."

Takhrij Of The ḥadīth:

Reported By:

- Ibn Abī Shaybah In *Muṣannaf* (2/259, No. 1921)

This Same Ruling Was Stated By Ḥudhayfah Ibn Al-Yamān And 'Abdullāh Ibn Mas'ūd (May Allah Be Pleased With Them):

"The Traveler May Wipe Over Leather Socks For Three Days And Nights, And The Resident For One Day And One Night."

Takhrij Of The ḥadīth:

Reported By:

- 'Abd Al-Razzāq In *Al-Muṣannaf* (1/207, No. 798)

This Ruling Regarding The Duration Of Maṣḥ (Wiping Over The Khuffayn) Was Reported — With Slight Variations In Wording — By 19 Noble Companions Of The Messenger Of Allah ﷺ:

1. 'Alī Ibn Abī Ṭālib
2. Khuzaymah Ibn Thābit
3. Ṣafwān Ibn 'Assāl Al-Murādī
4. Abū Hurayrah
5. Abū Bakrah Al-Thaqafī
6. 'Abdullāh Ibn 'Umar
7. 'Awf Ibn Mālik
8. Usāmah Ibn Sharīk Al-Dhubaynī
9. Ya' Lā Ibn Murrah Ibn Wahb

10. Jarīr Ibn ‘Abdullāh
11. Abū Umāmah Al-Bāhilī
12. ‘Abdullāh Ibn Mas‘ūd
13. ‘Abdullāh Ibn ‘Abbās
14. Al-Mughīrah Ibn Shu‘Bah
15. Anas Ibn Mālīk
16. ‘Umar Ibn Al-Khaṭṭāb
17. Jābir Ibn Samurah Al-Sawā’ī
18. Sa‘D Ibn Abī Waqqāṣ
19. Ḥudhayfah Ibn Al-Yamān

And There Was No Known Disagreement Among The Companions Regarding This Matter, As Has Been Previously Clarified. This Is Why The Vast Majority Of Jurists (Jumhūr Al-Fuqahā’) Follow This Opinion.

Sunan Abu Dawood 158

Ubayy Bin ‘Umārah Said:

I Asked The Messenger Of Allah ﷺ: "Should I Wipe Over The Leather Socks (Khuffayn) For One Day?" He ﷺ Replied: "Yes."

I Asked: "For Two Days?"

He ﷺ Replied: "Yes."

I Asked: "For Three Days?"

He ﷺ Replied: "Yes, And For As Long As You Wish."

Arabic:

حَدَّثَنَا يَحْيَى بْنُ مَعِينٍ، ثَنَا عَمْرُو بْنُ الرَّبِيعِ بْنِ طَارِقٍ، قَالَ: أَنَا يَحْيَى بْنُ أَيُّوبَ، عَنْ عَبْدِ الرَّحْمَنِ بْنِ رَزِينَ، عَنْ مُحَمَّدِ بْنِ يَزِيدَ، عَنْ أَيُّوبَ بْنِ قَطَنِ، عَنْ أَبِي بِنِ عُمَارَةَ... إلخ

Status Of This Hadith:

Weak (Ḍa‘īf)

Chain Criticism (Sanad Analysis):

- **Ayyūb Ibn Qaṭan:**
 - **Agreed Upon As Weak And Unknown (Majhool).**
 - **Ibn Abī Ḥātim** Reports From **Abū Zur‘Ah:** "He Is Unknown." — *Tahdhīb Al-Tahdhīb* (1/207)
 - **Imām Aḥmad Ibn Ḥanbal** Said: "His Narrators Are Unknown." — *Ikmāl Tahdhīb Al-Kamāl* (2/340)
 - **Imām Abū Dāwūd** Himself Said: "There Is Disagreement In Its Isnād, And It Is Not Strong." — *Ikmāl Tahdhīb Al-Kamāl* (2/340)
 - **Al-Azdī, Al-Dāraqutnī, Ibn Al-Qaṭṭān, Ibn Ḥajar, And Al-Mawṣilī:** All Declared Him **Unknown (Majhool) And Confused (Muḍṭarīb)** In Narration.
- **Muḥammad Ibn Yazīd:**

- Also **Agreed Upon As Weak** In All Versions Of The Chain. — *Ikmāl Tahdhīb Al-Kamāl* (2/340)

Takhrij (Sources Of The Narration):

This Narration Was Reported In The Following Books:

- **Al-Ḥākim In Al-Mustadrak** (1/170, Hadith 611)
- **Abū Dāwūd In His Sunan** (1/60, Hadith 158)
- **Ibn Mājah** (1/350, Hadith 557)
- **Al-Bayhaqī In Al-Sunan Al-Kubrā** (1/278-279, Hadith 1346-1348)
- **Al-Dāraquṭnī** (1/365, Hadith 765)
- **Ibn Abī Shaybah In Al-Muṣannaf** (2/246, Hadith 1882)
- **Al-Ṭahāwī In Sharḥ MaʿĀnī Al-Āthār** (1/79, Hadith 494-496)
- **Al-Ṭabarānī In Al-Kabīr** (1/202-203, Hadith 545-546)
- **Al-Ṭabarānī In Al-Awsaṭ** (3/362, Hadith 3408)

Second Report From ʿUmar Ibn Al-Khaṭṭāb:

Bayhaqī's Sunan Al-Kubrā, Hadith 1350

ʿUmar Said:

When One Of You Performs Wudu And Puts On His Khuffayn, Then He Should Wipe Over Them And Pray In Them, And He Should Not Remove Them Unless He Becomes Junub.

Arabic:

إِذَا تَوَضَّأَ أَحَدُكُمْ وَلَبَسَ خُفَّيْهِ فَلْيَمْسَحْ عَلَيْهِمَا وَلْيُصَلِّ فِيهِمَا ، وَلَا يَخْلَعْهُمَا إِنْ شَاءَ إِلَّا مِنْ جَنَابَةٍ

Status:

Weak (Ḍaʿīf) — Due To Zubaid Ibn Ṣalt Ibn MuʿĀwiyah, Who Is Unknown (Majhool).

Third Variant From Ubayy Ibn ʿUmārah (Bayhaqī):

In This Version:

- The Narrator Asks: “One Day? Two Days? Three Days?” Until He Counts **Seven Days**, And The Prophet ﷺ Says:
"Yes, As Long As You Wish (Mā Badā Laka)."

Arabic:

"قَالَ: نَعَمْ... حَتَّى عَدَّ سَبْعًا، ثُمَّ قَالَ رَسُولُ اللَّهِ ﷺ: "نَعَمْ مَا بَدَا لَكَ"

Bayhaqī, Quoting Abū Dāwūd, Comments:

"There Is Disagreement In Its Chain, And It Is Not Strong."

And: *"This Isnād Is Not Established; It Has Major Contradictions."*

Conclusion On This Variant:

- Narrators Like ‘**Abd Al-Raḥmān, Muḥammad Ibn Yazīd, And Ayyūb Ibn Qaṭan** Are All **Unknown**, And The **Isnād Is Weak And Unreliable**.

Conclusion Summary:

- The Narration About **Wiping (Mash) Without Time Limit Or Up To Seven Days Is Reported Through Very Weak And Unreliable Chains**.
- The **Standard, Authentic Ruling** (As Per Other Sahih Hadiths) Is:
 - **1 Day And Night For Residents**
 - **3 Days And Nights For Travelers**

These Narrations Claiming “**As Long As You Want**” Or “**Up To Seven Days**” Are Not Reliable And Cannot Override The Sahih Hadiths Due To Weakness In Chain And Narrators.

And Similarly, There Is A Narration Reported From **Hazrat Anas Ibn Mālīk**, Which Has Been Narrated By **Imām Bayhaqī** In His *Sunan Al-Kubrā*:

Bayhaqī Said:

(أَخْبَرَنَا) Abū Al-Ḥasan Ibn Bishrān Reported To Us,
(أَنَا) ‘Alī Ibn Muḥammad Al-Miṣrī Narrated To Us,
(ثَنَا) Al-Miqdām Ibn Dāwūd Narrated To Us;

And (وَأَخْبَرَنَا) Abū ‘Abd Allāh Muḥammad Ibn ‘Abd Allāh Al-Ḥāfiẓ Reported To Us,
(أَنْبَأَ) Abū Ja‘far Al-Baghdādī Informed Us,
(ثَنَا) Al-Miqdām Ibn Dāwūd Ibn Talīd Al-Ru‘Aynī Narrated To Us,
(ثَنَا) ‘Abd Al-Ghaffār Ibn Dāwūd Al-Ḥarrānī Narrated To Us,
(أَنَا) Ḥammād Ibn Salamah Narrated To Us,
From ‘Abd Allāh Ibn Abī Bakr And Thābit, From Anas Ibn Mālīk (رضي الله عنه), Who Said:

The Messenger Of Allah (ﷺ) Said:

“When One Of You Performs Wudū’ (Ablution) And Wears His Leather Socks (Khuffayn), Then He Should Pray In Them And Wipe Over Them, And Not Take Them Off Unless He Becomes In A State Of Janābah (Major Ritual Impurity).”

(This Hadith Is Weak – Ḍa‘īf)

Reason For Weakness:

In This Chain Is **Al-Miqdām Ibn Dāwūd Ibn ʿĪsā Ibn Talīd**, Who Is **Weak (ḍaʿīf)**.

- **Ibn Al-Qaṭṭān** Said That Scholars From Egypt Criticized Him:

"The People Of Egypt Spoke Against Him."
(*Lisān Al-Mizān*, 8/144)

- **Imām Al-Dāraqutnī** Said:

"Weak."
(*Siyar AʿLām Al-Nubalāʾ*, 13/345)

- **Muḥammad Ibn Yūsuf Al-Kindī** Said:

"He Was A Jurist And A Muftī, But Not Praised In Narration."
(*Lisān Al-Mizān*, 8/144)

- **Imām Al-Nasāʾī** Said In *Al-Kunā*:

"He Is Not Trustworthy."
(*Lisān Al-Mizān*, 8/144)

- **Ibn Yūnus** And Others Also Criticized Him:

"He Was Spoken Against."
(*Lisān Al-Mizān*, 8/144)

- **Abū ʿAmr Muḥammad Ibn Yūsuf Al-Kindī** Likewise Held Him As Weak In Hadith:

"He Was A Jurist And A Muftī, But Not Commendable In Narration."
(*Siyar AʿLām Al-Nubalāʾ*, 13/345)

Takhrīj Of The Hadith:

This Narration Was Recorded By:

- **Al-Ḥākim** In *Al-Mustadrak* (1/181, ḥadīth No. 648)
- **Al-Bayhaqī** In *Al-Sunan Al-Kubrā* (1/279, ḥadīth No. 1349, 1350)
- **Al-Dāraqutnī** In *His Sunan* (1/376, ḥadīth No. 780, 781)

Another Similar Narration:

In *Al-Sunan Al-Kubrā* Of **Imām Al-Bayhaqī**, Hadith No. **1351**, There Is A Narration From **ʿUqbah Ibn ʿĀmir**, Who Said:

“I Came From Shām To Madīnah On A Friday. I Went To ‘Umar Ibn Al-Khaṭṭāb And He Asked Me: ‘When Did You Put Your Khuffayn On?’ I Said: ‘On Friday.’ He Asked: ‘Did You Take Them Off At Any Point?’ I Replied: ‘No.’ So ‘Umar Said: ‘You Have Followed The Sunnah.’”

The Isnād Is As Follows:

(فَأَمَّا عُمَرُ بْنُ الْخَطَّابِ) – Regarding ‘Umar Ibn Al-Khaṭṭāb, His Narration On This Matter Is Well-Known.
(فِيمَا أَخْبَرَنَا) Abū ‘Abd Allāh Al-Hāfiẓ Reported To Us,
(ثَنَا) Abū Al-‘Abbās Muḥammad Ibn Ya‘Qūb Narrated To Us,
(ثَنَا) Baḥr Ibn Naṣr Ibn Sābiq Al-Khawlānī Narrated To Us,
(ثَنَا) Bishr Ibn Bakr Narrated To Us,
(ثَنَا) Mūsā Ibn ‘Ulayy Ibn Rabāḥ,
From His Father, From ‘Uqbah Ibn ‘Āmir Al-Juhanī...

(This Hadith Is Authentic In Itself – Ṣaḥīḥ Li-Dhātihi)

Another Hadith:

A Narration From **Ibn ‘Umar** States:

“A Traveller May Wipe Over The Khuffayn So Long As He Does Not Take Them Off.”

Reported By **Imām Al-Dāraquṭnī**, Hadith No. **760**.

The Isnād Is As Follows:

Abū Bakr Al-Shāfi‘ī Narrated To Us,
From Ibrāhīm Al-Ḥarbī,
From Shujā‘ And Ishāq Ibn Ismā‘īl,
Both Said:
‘Abd Allāh Ibn Rajā’ Narrated To Us,
From ‘Ubayd Allāh,
From Nāfi‘,
From Ibn ‘Umar...

(This Hadith Is Authentic In Itself – Ṣaḥīḥ Li-Dhātihi)

All Narrators Are **Trustworthy (Thiqāt)** And The Chain Is **Connected (Muttasil)**.

Specifically, **Ibrāhīm Al-Ḥarbī (Ibrāhīm Ibn Ishāq Ibn Ibrāhīm Ibn Bashīr Ibn ‘Abd Allāh Ibn Disim)** Is **Thiqah (Trustworthy)**.

- **Ibn Hibbān** Said:

“A Reliable Scholar From Baghdād.”
(*Al-Thiqāt*, 8/89)

- **Al-Dāraquṭnī** Said:

“He Was The Most Knowledgeable Of People In This Field.”

(*Al-Jāmi‘ Fī Al-Jarḥ Wa Al-Ta‘Dīl*, 1/22)

- **Abū Al-Qāsim Ismā‘īl Ibn Muḥammad Al-Aṣḥabānī**, Also Known As **Qawām Al-Sunnah** (457–535 AH), Considered This Narration **Authentic**.

“There Was None In Baghdad Like Ibrāhīm Ibn Ishāq Al-Ḥarbī In Manners, Jurisprudence, Hadith, And Asceticism.”

(*Siyar Al-Salaf Al-Ṣāliḥīn*, 3/1079)

Regarding The Hadith From ‘Umar:

Imām Al-Bayhaqī Said That It Is Likely ‘**Umar** (رضي الله عنه) Did Not Initially Know The Ruling On The **Time Limit For Mash** (Wiping Over Khuffayn), But When Knowledge Reached Him, He Adopted It.

There Are Also Narrations From ‘Umar Where He *Does* State The Time Limit.

“So If It Is Said That He (‘Umar) Did Not Change His View, Then The Narration Which Conforms To The Sunnah Should Be Given Precedence.”

(*Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid*, 1/326)

And In *Al-Sunan Al-Kubrā* (1/421), Bayhaqī Says:

“And We Have Narrated From ‘Umar Ibn Al-Khaṭṭāb (رضي الله عنه) The Time Limitation (Tawqīt), So Either He Returned To It When The Verified Knowledge Of The Prophet (ﷺ)’S Ruling Reached Him, Or, If He Did Not Return To It, Then His Saying That Conforms To The Famous Sunnah Takes Precedence.”

Conclusion:

The **Time Limit For Mash** Over The **Khuffayn** Is:

- **3 Days And Nights For A Traveller,**
- **1 Day And Night For A Resident.**

As For The Narrations From **Ibn ‘Umar** And ‘**Umar**, It Is Possible That They Were Not Aware Of The Time Limit Initially, And That’s Why They Said "There Is No Fixed Period." But Once They Learned The Proper Ruling, They Gave The Same Fatwā As The Other Companions.

This Is The Interpretation Offered By The **Majority (Jamhūr)**.

I Say That The Narrations From ‘Umar, Ibn ‘Umar, ‘Uqbah Ibn ‘Āmir, And Other Companions — Which Do Not Mention A Time Limit — Should Be Understood In The Light Of The General Rule That We Have Detailed Above.

However, If During Travel Someone Is In Hardship Or Forgets That The 3-Day Limit Has Passed, Then He Does **Not** Have To Repeat The Prayers He Offered During That Time. There Is **Concession** In Cases Of Difficulty, But The **General Ruling And Sunnah** Is That:

- For A **Traveller**: 3 Days And Nights,
- For A **Resident**: 1 Day And Night.

And This Appears To Be The **Stronger And More Correct Opinion**.
And Allah Knows Best.

Ruling On Wiping Over Torn Khuffayn (Leather Socks)

There Is Consensus Among The Jurists That Wiping (Mash) Over Valid Khuffayn Is Permissible—That Is, Over Khuffayn That Are Intact And Not Torn.

Al-Bughya Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/315):

“By 'Valid Khuff,' It Is Meant That It Has No Holes Or Tears In Any Part Of It.”

Al-Iqnā‘ Fī Masā’il Al-Ijmā‘ By Ibn Al-Qaṭṭān (1/89):

“The Scholars Are Unanimous On The Permissibility Of Wiping Over The Khuffayn.”

The Disagreement

The Difference Of Opinion Arises Regarding Torn Khuffayn: If A Khuff Is Torn, Is Wiping Over It Still Permissible?

Those Who Say It Is *Not* Permissible Argue That If The Khuff Is Torn, Then The Skin Of The Foot Becomes Visible. In That Case, The Original Ruling Applies—That Is, What Allah Commanded In The Qur’an: The Washing Of The Feet.

Mālikī Madhhab

In The Mālikī School, If The Khuff Is Slightly Torn, Wiping Is Allowed. However, If More Than **One-Third (1/3)** Of The Foot Is Exposed, Then Wiping Is Not Permitted. If The Tear Is Smaller Than That, It Is Permitted—Provided The Khuff Still Remains “Enclosed.”

Ḥāshiyat Al-Dusūqī ‘Ala Al-Sharḥ Al-Kabīr (1/143):

“A Torn Khuff Is Not Wiped Over If One-Third Of The Foot Is Exposed, Whether The Tear Is Open Or Joined. If The Tear Is Less Than One-Third, Wiping Is Allowed If The Tear Is Joined Or Slightly Open, Not If It Is Widely Open.”

Imām Mālik Said: If The Khuff Is Torn But The Foot Is Not Visible, Wiping Is Allowed. If The Foot Is Visible, Wiping Is Not Allowed.

(*Al-Mudawwanah*, Vol. 1, P. 143)

Ibn Rushd (Aḥmad Ibn Muḥammad Al-Qurṭubī) Also Explains This In The Mālikī School: A Small Tear Is Excused, But A Large Tear Invalidates Wiping.

(*Al-Bayān Wa Al-Taḥṣīl*, Vol. 1, P. 206)

Ibn Rushd States Similarly In *Bidāyat Al-Mujtahid* In The Chapter On Wiping Over Khuffayn.

Ḥanafī Madhhab

In The Ḥanafī School:

Imām Abū Ḥanīfah Was Asked: If A Man Wipes Over His Khuff While Two Toes Are Visible, Is It Allowed? He Said: “Yes.”

When Asked: What If Three Toes Are Visible? He Replied: “No—It Would Then Require Washing.”

(*Al-Mabsūṭ*, Vol. 1, P. 90)

Imām Al-Sarakhsī Confirmed The Same View, Explaining The Case Of Visible Toes.

(*Al-Mabsūṭ*, Vol. 1, P. 100)

Imām Alā’ Al-Dīn Al-Samarqandī Stated The Same.

(*Tuhfat Al-Fuqahā’*, Vol. 1, P. 87)

Imām Al-Kāsānī Said: All Three Of Our Imāms (Abū Ḥanīfah, Abū Yūsuf, Muḥammad) Agree On This Point.

(*Badā’I’ Al-Ṣanā’I’ Fī Tartīb Al-Sharā’I’*, Vol. 1, P. 11)

Imām Burhān Al-Dīn Also Said The Same.

(*Al-Hidāyah*, Vol. 1, P. 31)

Imām Al-Rūmī Affirmed This Position As Well.

(*Al-’Ināyah*, Vol. 1, P. 150)

Al-Durr Al-Mukhtār With Ḥāshiyat Ibn ‘Ābidīn (1/262):

"Conditions For Wiping Include: The Khuff Must Cover The Area Of Obligatory Washing (The Foot And The Ankle), Or Any Tear Must Be Smaller Than A Size That Prevents Wiping—E.G., If Less Than The Size Of Three Toes Is Visible, Wiping Is Allowed."

Shāfi‘ī Madhhab

According To **Imām Al-Shāfi‘ī**, One Opinion States:

If The Front Of The Khuff Has Even A Small Hole That Exposes The Foot, Wiping Is Not Allowed.

In Another More Accepted View:

Wiping Over A Torn Khuff Is Allowed If One Can Walk In It Without Difficulty.

(*Bidāyat Al-Mujtahid*, Vol. 1, Chapter On Khuffayn)

Imām ‘Alī Ibn Yūsuf Reports Two Opinions And Favors The View:

If One Can Walk In Torn Khuffayn, Wiping Is Allowed.

(*Al-Fiqh Al-Shāfi‘ī*, Vol. 1, P. 46)

Imām Al-Amrānī Says The Stronger Opinion Is That Wiping Is Allowed If The Tear Is Small And Doesn’t Affect Walking.

(*Al-Bayān Fī Madhhab Al-Shāfi‘ī*, Vol. 1, P. 154)

Imām Al-Nawawī Confirms The Same.

(*Sharḥ Al-Madhhab*, Vol. 1, P. 495)

Mughni Al-Muḥtāj By Al-Sharbinī (1/206):

"Each Khuff Must Cover The Obligatory Area (The Foot With The Ankle) From All Sides Except The Top. If The Foot Is Seen From Above Due To Looseness, It's Harmful—Unlike Covering The ‘Awrah Which Is Judged By Coverage From Above And Sides. Here The Goal Is Preventing Water From Reaching, So Transparency Is Tolerated Unlike In ‘Awrah Coverage."

Ḥanbalī Madhhab

The **Ḥanbalīs** Hold: If The Khuff Has A Hole, Wiping Is Not Allowed.

Aḥmad Ibn Ḥanbal Was Asked: Can One Wipe Over Torn Khuffayn?

He Replied: “Yes, Wiping Is Allowed Unless A Large Part Of The Foot Is Visible. If There Is A Sock (Mūza) Inside That Covers The Foot, Then Wiping Is Still Allowed.”

(*Masā’il Aḥmad – Narration Of Abū Faḍl*, Vol. 3, P. 205)

Kashshāf Al-Qinā’ By Al-Buhūtī (1/117):

"If The Khuffayn Are Torn And Do Not Fully Cover The Obligatory Area, Wiping Over Them Is Not Valid—Even If Worn Together—Because Each One Alone Is Not Suitable For Wiping, Just Like Wearing Torn Cloth Over Bandages."

Reason For The Difference Of Opinion

The Root Of The Disagreement Lies In The Question: Is The Purpose Of Wearing *Khuffayn* (Leather Socks) To Conceal The Feet, I.E., To Cover The Bare Skin Of The Feet? Based On This, Some Scholars Say That If The *Khuffayn* Are Torn In Such A Way That Part Of The Feet Becomes Visible, Then Wiping (*Mash*) Over Them Is Not Permissible.

Others Argue That The Ruling Of *Mash* Over *Khuffayn* Was Legislated In Islam As A Concession And Ease For The People. Those Scholars Who Consider That The Feet Becoming Visible Through Holes

In The *Khuffayn* Invalidates The Concealment Say That In Such A Case The Original Ruling Returns—I.E., The Obligation To Wash The Feet, As Commanded In The Qur'an.

In Contrast, Those Who Emphasize The Aspect Of *Ease* Legislated By The Shariah Argue That Even If There Are Some Holes, Wiping Is Still Valid.

Some Scholars Further Question: Is It Reasonable To Assume That The *Khuffayn* Of The Emigrants (*Muhājirūn*) And Helpers (*Anṣār*) Among The Sahabah (Companions) Were Never Torn Or Had No Holes? The Companions Of The Messenger Of Allah ﷺ Walked On The Earth, Participated In Battles, And Carried Out Their Daily Tasks. It Is Undeniable That They Walked Through Different Types Of Terrain—Sometimes Paved Roads, Sometimes Rocky Paths, Sometimes Muddy Ground, And Sometimes Sandy Stretches. And Many Of The Companions Were Poor; They Often Could Not Afford To Replace Torn *Khuffayn*. This Would Have Placed Unnecessary Hardship On Them If Wiping Were Disallowed Simply Because Of Minor Tears.

Why Did Shariah Permit Wiping Over *Khuffayn*?

There Are Two Key Reasons:

1. **Ease And Facilitation:** The Shariah Legislated *Mash* Over *Khuffayn* To Make Things Easier For The Ummah.
2. **Concealment Of The Feet:** Since The Feet Are Covered, Wiping Over Them Was Allowed Instead Of Washing.

However, The More Correct Understanding Is That The Ruling Was Primarily Established For **Ease And Facilitation**, To Prevent Hardship For The Ummah—Just As The Prophet ﷺ Said:

“Make The Religion Easy, And Do Not Make It Difficult.”

This Hadith Indicates That The Religion Of Islam Has Been Made Easy For The People.

Conclusion :

Among All The Schools, The **Ḥanafī Madhhab** Holds The Strongest And Most Accurate Opinion In This Matter. This Has Also Been Acknowledged By Scholars From Other Madhhabs. Both The Hanafis And Mālikis Permit Wiping Over Torn *Khuffayn*. The Māliki View Allows It Only When The Tear Is Small.

However, When The Tear Is **Minor**, There Is A Consensus Among The Four Imams (*A'immaḥ Arba'ah*) That *Mash* Is Valid. When The Tear Is **Large**, Differences Arise. On This Point, **Shaykh Ibn Taymiyyah** Has Also Given A Detailed Discussion And Leans Toward The **Ḥanafī Position**.

Therefore, The Most Correct Opinion Is That If The Hole In The *Khuff* Reveals **Less Than Three Toes**, Wiping Over It Is Still Valid.
And Allah Knows Best.

Conditions For Wiping Over The Khuffayn

1. Wiping Over The Khuffayn Is Permissible For Everyone

Wiping Over The Khuffayn Is Allowed For Every Person, Whether A **Resident** Or A **Traveler**. We Have Already Discussed This In Detail. There Is **Ijma'** (**Consensus**) On This Point, As Previously Mentioned.

2. It Is Only Permissible In The State Of Minor Impurity (ḥadath Aṣghar)

Wiping Is Valid **Only** When One Is In A State Of Minor Impurity. If Someone Is In A State Of **Major Impurity (Janābah)**, Then Wiping Over The Khuffayn Is Not Permissible. We Have Explained This Before In Detail. The Evidence Is The Well-Known ḥadīth Of **Ṣafwān Ibn 'Assāl**, Which Clearly Shows That **In The State Of Janābah, One Must Remove The Khuffayn**. This Too Is Agreed Upon By All.

3. The Khuffayn Must Be Worn In A State Of Wudu'

This Is Based On The ḥadīth Of **Mughīrah Ibn Shu'bah**, Where It States:

The Messenger Of Allah ﷺ Performed Wudu', Then Wiped Over His Khuffayn.
Reported By Both **Bukhārī And Muslim** — *Muttafaḥun 'Alayh*.

The Majority Of Scholars — **Ḥanafīs, Mālikīs, And Ḥanbalīs** — Say That The Khuffayn Must Be Worn **After Performing Wudu' With Water**, And Only Then Is Wiping Permissible. According To The Three Imāms, This Is A **Condition**.

The **Shāfi'īs** Add That If One Made **Tayammum** Due To Lack Of Water, And Later Finds Water, Then One Must **Remove The Khuffayn And Perform A New Wudu'**. However, If The Tayammum Was Due To **Illness**, Then **Wiping Is Allowed** Even When Water Becomes Available.

There Is **Agreement** On This General Point.

Disagreement On Partial Wudu' Before Wearing Each Khuff Separately

There Is A **Disagreement** Among The Scholars On Whether Wiping Is Valid If Someone:

- Washed One Foot, Wore One Khuff,
- Then Washed The Other Foot And Wore The Second Khuff.

Those Who **Do Not Consider The Order Of Wudu' (Tartīb) To Be Obligatory** (Like **Abū Ḥanīfah**) Say That **Wiping Is Valid**.

Imām Mālik Disagrees With **Abū Ḥanīfah**, Not Because Of **Tartīb** (Since He Also Sees It As Recommended, Not Obligatory), But Because He Believes That **Purification Of The Limbs Must Happen All At Once**, Not Gradually.

Thus, **Imām Mālik**, **Imām Al-Shāfi‘ī**, And **Aḥmad Ibn Ḥanbal** All Say That **Wiping Would Not Be Valid In This Case**.

Some References Supporting Their View:

- *Al-Sharḥ Al-Ṣaghīr* With *Ṣāwī's ḥāshiyah* (1/156):

If A Person Washes One Foot And Wears The Khuff, Then Washes The Other And Wears The Second, Wiping Is **Not Permitted** Unless He Removes The First And Wears It Again After Full Purification.

- *Mughnī Al-Muḥtāj* (1/205), *Kashshāf Al-Qinā‘* (1/113), And *Al-Mughnī* (1/207) Contain Similar Rulings.

On The Other Side, Scholars Like **Abū Ḥanīfah**, **Sufyān Al-Thawrī**, **Dāwūd Al-Zāhirī**, **Al-Muzanī**, And **Imām Ṭabarī** Say That **Wiping Is Valid**, Even In This Case.

Supporting References:

- *Baḥr Al-Rā‘iq* By Ibn Nujaym (1/178):

Wiping Is Valid As Long As **Complete Purification Existed At The Time Of Breaking Wudu’**, Even If Each Khuff Was Worn Separately After Washing Each Foot.

- *Sharḥ Ṣaḥīḥ Al-Bukhārī* By Ibn Baṭṭāl (1/310):

Stated That **Abū Ḥanīfah**, **Al-Thawrī**, And **Al-Muzanī** Allowed It.

- *Al-Istidhkār* By Ibn ‘Abd Al-Barr (1/225) And *Al-Muḥallā* By Ibn Ḥazm (1/333):

All Support The Permissibility.

Even **Some Scholars From Mālik’s School**, Like **Muṭarrif**, Adopted This View.

However, There Is **Ijma‘ (Consensus)** That **If A Person Removes The First Khuff After Washing Both Feet**, And Then Wears It Again, Wiping Is **Valid**, Since He Has Now Worn Both Khuffs **After Complete Wudu’**.

Reference: *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (1/334).

4. Any Type Of Khuff Can Be Wiped Over — Except According To Mālikīs

All Schools Allow Wiping Over **Any Khuff, Except Mālikīs**, Who Require That It Be Made **Specifically Of Leather**.

5. The Khuff Must Cover The Parts Washed In Wudu'

The Khuff Must **Cover All Parts That Are Normally Washed In Wudu'** — Like The **Toes, Heels, And Ankles**. If The **Ankles Are Exposed**, Then Wiping Is **Not Valid**. Likewise, If The Khuff Is **Ritually Impure (Najis)** — Like Untreated **Dead Animal Hide** — Then Wiping Over It Is **Invalid**, According To **Ḥanafīs And Shāfi'īs**.

6. The Khuff Should Be Durable Enough To Walk In

There Is Disagreement Here:

- **Ḥanafīs**: It Must Be Something A Person Can Walk In Comfortably, That **Doesn't Tear, Slip Off, Or Isn't Too Thin**.
- **Mālikīs**: It Should Be Wearable For Walking, But If The Khuff Is **Too Large Or Loose**, Wiping Is Invalid.
- **Shāfi'īs**: It Should Allow The Person To Perform Normal Daily Tasks — Wiping Is Invalid If The Khuff Hinders Walking Or Tasks.
- **Ḥanbalīs**: Wiping Is Allowed **Even Over Thin Khuffs**, As Long As They Can Be Walked In.

References (Selected)

- *Al-Durr Al-Mukhtār* Vol. 1, Pp. 214, 245
- *Badā'i' Al-Ṣanā'i'* Vol. 1, P. 9
- *Marāqī Al-Falāḥ*, P. 22
- *Sharḥ Al-Ṣaghīr* Pp. 154–156
- *Al-Qawānīn Al-Fiqhiyyah* Vol. 1, P. 38
- *Mughnī Al-Muḥtāj* Vol. 1, P. 65
- *Sharḥ Al-Madḥḥab* Vol. 1, P. 21
- *Al-Mughnī* Vol. 1, Pp. 293–294
- *Kashshāf Al-Qinā'* Vol. 1, Pp. 124–133
- *Bidāyat Al-Mujtahid* Vol. 1, Pp. 19–21
- *Fiqh Al-Islāmī Wa Adillatuh* Vol. 1, P. 421

Summary Of The Views On The Conditions Of Wiping Over Khuffayn (Leather Socks)

Hanafi Madhhab – 5 Conditions

1. **Wearing In The State Of Purity:** The Khuffayn Must Be Worn After Completing A Full Wuḍū' (Ablution) Without The Wuḍū' Breaking In Between. If One Wears One Khuff But Not The Other And Then The Wuḍū' Breaks, Then A New Wuḍū' Must Be Made Before Wearing Both.
2. **Coverage:** The Khuffayn Must Fully Cover The Limbs Required In Wuḍū', I.E., The Feet Including The Ankles.
3. **Ability To Walk:** One Must Be Able To Walk In Them Without Difficulty.
4. **Integrity:** Each Khuff Should Not Have Holes Equal To Or More Than The Size Of Three Fingers.
5. **Fit:** The Khuff Should Not Be So Loose That It Slips Off The Foot.

Reference:

Al-Fiqh Al-Islāmī Wa Adillatuhu – Al-Zuḥaylī (1/487):

“First – That They Are Worn After Washing The Feet, Even Before Finishing The Wuḍū', If Completed Before A Nullifier Occurs.

Second – That They Cover The Ankles.

Third – That Walking In Them Is Possible.

Fourth – That Each Has No Hole The Size Of Three Toes From The Smallest Toes.

Fifth – That They Hold Onto The Feet Without Needing Tying.

Sixth – That If Part Of The Foot Is Amputated, At Least An Amount Equivalent To Three Fingers Of The Foot's Front Remains.”

Mālikī Madhhab – 5 Conditions (With Additional Consensus Points)

1. **Material:** The Khuff Must Be Made Of Leather. If Made Of Another Material, Wiping Is Not Valid, **Except For Certain Thick Socks (Jawrab)** That Resemble Khuffayn.
2. **Purity:** The Khuff Must Be Pure (ṭāhir). Wiping Over Impure Materials (Like Pigskin) Is Not Allowed.
3. **Thickness:** The Khuff Must Be Somewhat Thick, Not As Thin As Cloth.
4. **Coverage:** It Must Cover The Area Of Wuḍū', Including The Ankle. If The Ankle Is Not Covered, Wiping Is Not Valid.
5. **Functionality:** One Must Be Able To Walk In Them Without Them Slipping.

Reference:

Al-Fiqh Al-Islāmī Wa Adillatuhu – Al-Zuḥaylī (1/487):

“First – That The Wiped Material Is Leather; Wiping Is Invalid Over Anything Else.

Second – It Must Be Pure, Excluding Skin From Dead Animals Even If Tanned.

Third – It Must Be Stitched, Not Glued.

Fourth – It Must Have A Shaft Covering The Obligatory Area (Ankles).

Fifth – Walking In It Should Be Possible Normally; This Excludes Overly Loose Types.”

Shāfi‘ī Madhhab – 2 Conditions

1. **Purity Before Wearing:** The Khuffayn Must Be Worn After Complete Purification From Both Minor And Major Impurity.
2. **Conditions Of The Khuff:** The Khuff Must Be Pure, Strong Enough To Walk In, Fully Cover The Area Of Washing (Feet And Ankles), And Must Not Allow Water To Enter. A Foot Covering With Small Openings Tied Tightly That Does Not Expose The Required Area Is Valid.

Reference:

Al-Fiqh Al-Islāmī Wa Adillatuhu – Al-Zuhaylī (1/488):

“First – They Must Be Worn After Full Purification From Both Minor And Major Impurity.
Second – The Khuff Must Be Pure, Strong, Suitable For Walking When Needed, And Must Cover The Area Required In Washing, Without Letting Water Pass Through Except Through The Stitching.”

Ḥanbalī Madhhab – 7 Conditions

1. **Complete Purification:** The Khuffayn Must Be Worn After Full Wuḍū’ With Water.
2. **Firmness:** The Khuff Should Remain On The Foot By Itself Or With Soles; If It Stays Only Through Tight Binding, Wiping Is Not Valid.
3. **Lawful Use:** The Khuff Must Be Permissible To Wear; It’s Invalid To Wipe Over Stolen Khuffayn Or Ones Made Of Silk, Even In Necessity.
4. **Walkability:** It Should Be Possible To Walk In The Khuffayn In Normal Circumstances.
5. **Purity:** Wiping Is Only Allowed On Pure Khuffayn; If They Are Impure, Even In Necessity, Tayammum Must Be Done Instead.
6. **Coverage Integrity:** If The Khuff Is Transparent (Like Thin Glass) Or Has Holes That Reveal Part Of The Obligatory Area (Like Toes), Wiping Is Not Valid. However, If Such Holes Are Covered When Worn, Wiping Is Allowed.
7. **Not Overly Loose:** The Khuff Must Not Be So Loose That The Area Required In Washing Is Visible.

Reference:

Al-Fiqh Al-Islāmī Wa Adillatuhu – Al-Zuhaylī (1/488):

“First – That The Khuffayn Are Worn After Complete Water Purification.
Second – They Should Stay On Independently Or With Soles, Not Through Tight Binding Alone.
Third – That They Are Permissible, Not Stolen Or Made Of Silk, Even In Necessity.
Fourth – It Should Be Possible To Walk In Them According To Custom.
Fifth – They Must Be Pure.
Sixth – They Should Not Be See-Through Or Reveal The Washed Area. If Holes Are Covered By Wearing, Wiping Is Valid.
Seventh – They Should Not Be So Loose That The Obligatory Area Is Visible.”

Conclusion:

1. **Only In Minor Impurity (Ḥadath Aṣghar):** Wiping Over Khuffayn Is Valid Only For Minor Impurity (Not After Janābah).
 2. **Worn In Purity:** Khuffayn Must Be Worn In The State Of Purity (Wuḍū’).
 3. **Material Flexibility:** Wiping Is Allowed Over Khuffayn And Anything Similar (E.G., Thick Socks) **As Long As It Is Pure.**
 4. **Coverage:** The Khuffayn Must Cover All Areas Required In Wuḍū’, Including The Ankles.
 5. **Integrity:** If The Khuff Is Torn But Doesn’t Expose The Foot (Even With A Small Hole The Size Of 1–2 Fingers), And One Can Still Walk In It, Wiping Is Valid. But If More Is Exposed Or Walking Is Not Possible, Wiping Is Invalid.
 6. **Proper Fit:** The Khuff Should Neither Be Too Tight To Restrict Walking Nor Too Loose To Slip Off.
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Nullifiers Of Ṭahārah (Purification) When Wiping Over The Khuffayn

1. Breaking Wudū’ (Ablution)

There Is **Consensus (Ijmā’)** Among The Jurists That **Anything That Invalidates Wudū’ Also Invalidates The Mash’ Over The Khuffayn.**

So, If The **Time Limit For Mash’ Is Still Valid**, One May **Renew Wudū’ And Wipe Again.**

However, If The **Time Period Has Expired**, Then It Is **Obligatory To Wash The Feet** Before Wiping Again.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/336):

"Issue 7: As For The Nullifiers Of This Purification, They Have Agreed That They Are The Same As The Nullifiers Of Wudū’ Itself."

2. Entering A State Of Major Impurity (Janābah, Menstruation, Etc.)

There Is **Consensus** Among The Jurists That **If Someone Becomes Junub (Sexually Impure), Whether Male Or Female**, After Having Wiped Over The Khuffayn, Then The **Mash’ Becomes Void**, And It Becomes **Obligatory To Wash The Feet** If One Wants To Wipe Again Later.

Al-Fiqh Al-Islāmī Wa Adillatuh By Al-Zuhaylī (1/493):

"If A Person Wearing Khuffayn Becomes Junub Or Enters A State Requiring Ghusl (E.G. Menstruation), The Mash’ Is Invalidated, And Washing The Feet Is Obligatory. To Wipe Again, One Must Wear The Khuffayn Anew After Washing."

Referenced ḥadīth:

Ḥadīth Of Ṣafwān Ibn ‘Assāl:

“The Prophet ﷺ Would Command Us While Traveling Not To Remove Our Khuffayn For Three Days

And Nights—Except In Case Of Janābah (Major Impurity). ”

By Analogy, This Includes Menstruation, Post-Natal Bleeding, And Childbirth.

3. Removing The Khuffayn

There Is **Disagreement Among The Jurists** Regarding The Ruling If Someone Removes Their Khuffayn (One Or Both):

- **If One Removes The Khuffayn And Immediately Washes The Feet, The ṭahārah Remains Valid.**
- **If One Removes The Khuffayn And Does Not Wash The Feet, And Prays, Then They Must Repeat The Prayer After Washing The Feet.**
- This Is The Opinion Of **Mālik**, His Companions, **Abū Ḥanīfah**, And **Al-Shāfi‘ī**, With The Condition From The **Mālikis** That There Must Be **No Excessive Delay** Between Removal And Washing.
If There Is Delay, **The Wudū’ Must Be Repeated**, Because **The Mālikī School Does Not Permit Interruption (Tafrīq) In Wudū’.**

Bughyat Al-Muqtasid (1/336):

“If He Removes The Khuffayn And Washes His Feet, His ṭahārah Remains Valid. If He Doesn't Wash Them And Prays, He Must Repeat The Prayer After Washing The Feet.”

Al-Sharḥ Al-Ṣaghīr With Ḥāshiyat Al-Ṣāwī (1/158):

"If Someone Removes The Khuffayn After Wiping, They Must Promptly Wash The Feet. Delay Invalidates The Wudū’.”

Mughnī Al-Muḥtāj (1/211):

“If Someone Removes The Khuffayn Or Their Validity Is Lost (E.G., Due To Tearing), They Must Wash The Feet. In One Opinion: The Whole Wudū’ Must Be Redone.”

Al-Durr Al-Mukhtār With Ibn ‘Ābidīn’s Ḥāshiyah (1/276):

"After Removing The Khuff (Even One), Or Expiry Of The Maṣḥ Duration, Only The Feet Need To Be Washed—Not The Entire Wudū’.”

Minority Views:

Some Scholars (Like **Dāwūd Ṣāḥirī** And **Ibn Abī Laylā**) Said:

"If Someone Removes The Khuffayn (One Or Both), Their ṭahārah Remains Valid Until An Actual Wudū’-Breaking Event Occurs.”

Bughyat Al-Muqtasid (1/337):

"A Group Said: Their Purification Remains Intact Until An Event That Breaks Wudū’. This Was The View Of Dāwūd And Ibn Abī Laylā.”

Contrarily, **Al-Ḥasan Ibn Ḥayy** Said:

"If A Person Removes The Khuffayn, Their Purification Becomes Invalid Immediately.”

Bughyat Al-Muqtasid (1/337), And *Al-Istidhkār* (1/223):

"Al-Ḥasan Ibn Ḥayy Said: If Someone Removes Their Footwear After Mash, They Must Repeat The Entire Wudū'."

The Reason For The Disagreement:

The Core Dispute Is Whether **Mash Is An Original Means Of Purification** Or Merely A **Substitute (Badal)** For Washing When Feet Are Covered.

If **Mash Is Original**, Then Removing The Khuffayn Doesn't Break ṭahārah (Just Like Amputation Doesn't Break Wudū').

If It's A **Substitute**, Then Once It's No Longer Applicable (By Removal), The Purification Ends Unless One Washes The Feet.

Bughyat Al-Muqtasid (1/337):

"The Difference Of Opinion Arises Over Whether Mash Is An Independent Form Of Purification Or A Substitute For Washing."

Summary Of Views:

- **Ḥanafīs And Shāfi'īs:**
Wudū' Remains Valid **If Feet Are Washed After Removal** (Even If Later).
- **Mālikīs And Ḥanbalīs:**
Wudū' Is Only Valid If The Feet Are Washed **Immediately After Removal**.
Delayed Washing Invalidates ṭahārah, Due To Not Permitting Interruption In Wudū'.

✓ **Preferred View (Rājiḥ):**

If A Person Removes The Khuffayn And Washes The Feet **Before Any New Wudū'-Breaking Event**, Their ṭahārah Remains Valid.

4. If The Khuffayn Have A Hole

If The Khuff Has A **Tear Exposing An Area Equal To Three Toes**, Then **Mash Is Invalidated**.

5. Expiration Of The Mash Duration

- **Resident (Muqīm):** 1 Day And 1 Night
- **Traveller (Musāfir):** 3 Days And 3 Nights
After This Time, **Mash Is No Longer Valid**, And One Must **Wash The Feet** Before Wiping Again.

According To Ḥanafīs, Mālikīs, And The Sound Opinion Among Shāfi'īs:

- **Only The Feet Must Be Washed**, Not The Entire Wudū'.
- This Is Because **Mash Is A Substitute**, And When It Expires, The Ruling Returns To The Original (Washing), Just Like **Tayammum** Becomes Invalid When Water Is Available.

Al-Fiqh Al-Islāmī Wa Adillatuh (1/494):

"If The Duration Expires, Or Part Of The Foot Is Exposed, One Washes The Feet. This Suffices—No Need To Redo The Whole Wudū'."

Exception:

If Removing The Khuffayn Is **Difficult Or Dangerous**, One May **Continue Wiping** Until The Hardship Is Removed.

However, Ḥanbalīs Say:

- **Complete Wudū' Must Be Repeated** After The Duration Ends Or Khuff Removal.

Conclusion:

Actions That Invalidate Wiping Over The Khuffayn (Leather Socks):

1. Expiry Of Wiping Duration:

If The Duration Of The First Wiping Period Ends, The Ruling Of Maṣḥ (Wiping) Also Ends. After Washing The Feet, One May Again Perform Maṣḥ Over The Khuffayn.

2. Anything That Invalidates Wudu:

Anything That Breaks Wudu Also Breaks The Validity Of Maṣḥ. For Example, If Someone Passes Wind After Performing Maṣḥ, Their Entire Wudu Becomes Invalid, And They Must Perform A Complete New Wudu. If The Wiping Duration Is Still Valid, They May Wipe Over The Khuffayn Again After The New Wudu.

3. Occurrence Of Janabah (Major Ritual Impurity):

If A Person Enters A State Of Janabah (E.G., Due To Sexual Intercourse Or A Wet Dream), The Maṣḥ Becomes Invalid Immediately, Even If The Wiping Duration Hasn't Expired. The Person Must Perform A Full Ghusl (Ritual Bath), And After Attaining Purity, Must Wear The Khuffayn Again In A State Of Wudu.

4. Removal Of The Khuffayn In A State Of Purity:

If Someone Removes Their Khuffayn While Still In A State Of Wudu, Even If Only One Foot Is Uncovered, Their Wudu Breaks. That Is, The Maṣḥ Is Invalidated. However, If They Did Not Wash Their Feet Immediately After Removal But Later Washed Them After A Long While—And During That Interval Nothing Occurred That Breaks Wudu—Then Their State Of Purity (ṭahārah) Remains Valid.

Ruling On Wiping Over Jawrabayn (Fabric Socks)

Definition Of Jawrab (جورب):

A *Jawrab* Refers To Socks Made From Wool, Cotton, Or Linen, Typically Of Thinner Material Than

Leather Socks (*Khuffayn*). Some Jurists Consider Wiping Over Such Socks Impermissible, Deeming Them Not Valid For *Mash*. Others Allow It Under Certain Conditions.

Al-Jawrab: “It Is Larger Than A *Khuff*, Reaching The Calf, Intended To Provide Protection From Cold, Made From Cotton Or Wool With Knitting Needles Or Sewn From Cloth.”

(See: *Al-Nazm Al-Musta ‘Dhab Fī Tafsīr Gharīb Alfāz Al-Muhadhdhab* By Baṭṭāl Al-Rakbī, 1/32)

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/304):

“The *Jawrab*, As Scholars Say, Is Made From Wool, Cotton, Or Linen. But If It Is Made From Thin Torn Fabric, Some Scholars Reject Its Validity For Wiping.”

Jawrab Is Distinct From *Khuffayn* And Is Widely Used In Many Regions, Especially In The Levant (*Shām*), Primarily For Protection Against Cold.

Hanafi Madhhab

Imam Abū Ḥanīfa Initially Held That Wiping Over *Jawrabayn* Is **Not Allowed**.

However, His Two Students, **Imam Abū Yūsuf And Imam Muḥammad**, Opined That **It Is Allowed** — But **Only If The Socks Are Thick**, Similar To *Khuffayn*.

Al-Mabsūṭ (Vol. 1, P. 100)

Imam Al-Sarakhsī Writes:

According To Our View, Wiping Over *Jawrabayn* Is Permissible **As Long As They Are Not Thin**, And They Are **Thick Enough** That Walking In Them Doesn’t Tear Or Expose The Feet, Even During Travel.

Abū Ḥanīfa Originally Opposed Wiping Over *Jawrabayn*, But A Narration Mentions That When He Was Ill, He Wiped Over Them And Said To Arwādah:

“Today I Have Done Something That I Used To Forbid Others From Doing.”

Hence, Abū Yūsuf And Muḥammad Believed That Abū Ḥanīfa Retracted His Earlier Opinion.

So, The Correct Position Is That Wiping Over **Thick** *Jawrabayn* Is Permissible, **If They Are Not Loose** And Do Not Slip Off While Walking.

Al-Mabsūṭ Li’l-Sarakhsī, Vol. 1, P. 102

Imam Abū Bakr Al-‘Alā’ Al-Dīn Al-Samarqandī States In *Tuhfat Al-Fuqahā’* (Vol. 1, P. 86) Three Rulings Regarding *Mash* On *Jawrabayn*:

1. **If The Socks Are Doubled (I.E., Thick Or Layered)** — There Is **Consensus Among The Companions** That *Mash* Over Them Is Allowed.
2. **If The Socks Are Thin** — Then *Mash* Over Them Is **Not Allowed**.
3. **If They Are Thick** — Even Then, According To **Abū Ḥanīfa**, *Mash* Is **Not Allowed**. But **Abū Yūsuf And Muḥammad** Say It Is Allowed If They Are Thick.
It Is Also Narrated That Abū Ḥanīfa Retracted His Earlier Ruling Before His Death.

Imam Burhān Al-Dīn Shares The Same Opinion As Al-Sarakhsī — That Abū Ḥanīfa Disallowed It, While His Two Students Allowed It **With The Mentioned Conditions**.

This Is Also Found In:

- *Al-Hidāyah* (Vol. 1, P. 32)
- *Al-Bināyah* By Al-‘Aynī (Vol. 1, P. 608)

Mukhtaṣar Al-Qudūrī (P. 17–18):

“Wiping Over Jawrabayn Is Not Allowed According To Abū Ḥanīfa Unless They Are Either **Leather-Soled Or Leather-Covered**.”

“Abū Yūsuf And Muḥammad Said: Wiping Is Allowed If The Socks Are **Thick And Do Not Allow Water To Pass Through**.”

Al-Awsaṭ By Ibn Al-Mundhir (2/117):

“If The Socks Are Thick (ṣafīqayn), Then Wiping Is Allowed. This Was Also Said By Al-Nakha‘ī, Ibn Jubayr, Al-A‘Mash, Sufyān, Ibn Ḥayy, Ibn Al-Mubārak, Zufar, And Ishāq.”

Mālikī Madhhab

There Are **Two Views** Attributed To **Imam Mālik**:

1. **General Prohibition** Of Wiping Over Jawrabayn — Regardless Of Their Thickness.
2. **Permission** If The Socks Are **Thick**.

Al-Mudawwanah (Vol. 1, P. 143)

Imam ‘Āṣim Al-Nimrī Records Both Opinions (As Mentioned In *Al-Mudawwanah*) And Concludes That The Stronger Opinion Is That **If The Socks Are Thick**, Wiping Over Them Is Allowed. This Aligns With **Mālik’s First View**.

Al-Kāfī Fī Fiqh Ahl Al-Madīnah (Vol. 1, P. 178)

Al-Sharḥ Al-Ṣaghīr With Ḥāshiyat Al-Ṣāwī By Al-Dardīr (1/153):

“The Jawrab, Like The Khuff, Is Valid For Mash **Only If Its Outer Layer Is Leather**, Made From Cotton, Wool, Or Linen. If It Is Not Leather-Covered, Then Mash Over It Is **Not Valid**.”

The Mālikis Generally Hold That Wiping Over Jawrabayn Is **Not Permissible, Except In One Case**:

If The **Bottom** Of The Jawrab Is Made Of Leather — In Which Case It Is Considered Like A Khuff.

Bughyat Al-Muqtasid (1/307):

“The Established Mālikī Position Is That Mash Over Jawrabayn Is Not Allowed Except In **One Condition**: If The Bottom Of The Sock Is Made Of Leather. Otherwise, It Is Not Allowed. In This, They Align With One Of The Shāfi‘ī Views.”

Shāfi'ī Madhhab

Imām Al-Shāfi'ī Said That It Is *Not Permissible* To Wipe (Mash) Over Jawrab (Socks) Unless They Cover The Ankles And Are Thick Enough To Take The Place Of *Khuffayn* (Leather Socks). This Is Also The Opinion Of Imām Al-Muzanī.

(**Mukhtaṣar Al-Muzanī**, Vol. 8, P. 102)

Imām Al-Māwardī Writes In His Book *Al-Ḥāwī Al-Kabīr Fī Madhhab Imām Al-Shāfi'ī*, A Commentary On *Mukhtaṣar Al-Muzanī* (Vol. 1, P. 365), That Aḥmad, Sufyān And Others Held That Wiping Over The Jawrab Is Permissible. As For Our (Shāfi'ī) View, It Is Permissible Only If The Jawrab Is Thick Enough Such That One Can Walk In It During Travel Without It Coming Off Or Tearing.

‘Abd Al-Karīm Ibn Muḥammad Al-Rāfi'ī Al-Qazwīnī Expresses The Same Position In His Book: (*Fath Al-‘Azīz Bi-Sharḥ Al-Wajīz*, Vol. 2, P. 374)

Al-‘Imrānī Says In *Al-Bayān Fī Madhhab Al-Shāfi'ī* (Vol. 1, P. 156):

“It Is Not Permissible To Wipe Over Socks (Jawrabayn) Unless They Are Made Of Leather Or Covered With Leather Up To The Ankles, So That They Take The Place Of *Khuffayn*.”

The Correct Opinion In The Shāfi'ī School Is That Wiping Over Jawrab Is Permissible **If** The Socks Are Thick Enough Such That The Skin Is Not Visible Through Them And They Can Be Walked In Comfortably. Some Socks And Stockings, Such As Those Made Of Wool, Meet These Conditions. If The Sock Clings Tightly To The Foot And Remains Fixed In Place While Walking, Then It Takes The Same Ruling As *Khuffayn*. However, Since These Are Not Usually Used Alone For Walking, It Is Understood That Footwear Like Shoes Would Be Worn Over Them.

(*Bughyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid*, Vol. 1, P. 307)

Ḥanbalī Madhhab

Aḥmad Ibn Ḥanbal Was Asked: “If A Person Wears Socks And Then Puts On Shoes Over Them, Then Wipes Over The Shoes While Intending To Wipe Over The Socks, Is That Valid?” He Replied: “He May Remove The Shoes And Wipe Over The Socks Directly, And That Would Be Valid.”

(*Masā'il Aḥmad Riwāyah Abī Al-Faḍl*, Vol. 2, P. 207)

Ibn Qudāmah Says That If The Socks Are Thick Enough To Walk In, Then Wiping Over Them Is Permissible.

(*Kitāb Al-Kāfi*, Vol. 1, P. 72)

However, In *Al-Mughnī* (Vol. 1, P. 215), He Writes:

“If The Socks Do Not Come Off While Walking And Cling To The Foot, Then Mash Over Them Is Permissible.”

In Reality, The Disagreement Among The Four Schools Is **Not** About The Permissibility Of Mash On Socks Itself, But Rather About The *Conditions*. The Difference Arises When The Socks Are Thin And Allow Water To Seep Through During Mash. In Such A Case:

- The **Majority (Jumhūr)** Of Scholars Hold That Mash Is *Not Permissible*.
- However, Some Of The Early Salaf, Later Scholars, And Certain Contemporary Scholars Allow Wiping Even On *Thin* Socks.

In The **Ḥanbalī School**, It Is Permissible To Wipe Over Socks **If They Can Be Walked In Comfortably**.

Al-Buhūtī Says In *Kashshāf Al-Qināʿ* (Vol. 1, P. 111):

“Wiping Is Valid On Thick Socks Made From Wool Or Other Materials, Even If They Are Not Leather-Covered Or Soled, And Even If They Are Made From Stitched Fabric, **So Long As One Can Walk In Them Continuously**.”

Statements From Many Fuqahāʾ (Jurists)

Many Scholars Consider Wiping Over Socks Permissible Because It Has Been Narrated From **Nine Companions** Of The Prophet ﷺ.

Ibn Al-Mundhir Says In *Al-Awsaṭ* (Vol. 2, P. 115):

“Scholars Differed Regarding Wiping Over Socks. A Group Permitted It, And It Has Been Reported From Nine Companions: ‘Alī, ‘Ammār, Abū Mas‘ūd, Anas, Ibn ‘Umar, Al-Barā’ Ibn ‘Āzib, Bilāl, Abū Umāmah, And Sahl Ibn Sa‘D.”

Also Stated In *Bughyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid* (Vol. 1, P. 308):

“This Is The Opinion Of Many Scholars, Because Wiping Over The Jawrab Has Been Authentically Reported From Nine Companions, As Recorded By Ibn Al-Mundhir In His Reliable Works.”

Conclusion (Khulāṣah)

The Real Issue Is That **The Common Socks Worn Today**, Which Are Widespread Across The World And Made Of Regular Cloth, Are **Thin And Water Can Pass Through Them**.

- According To The **Ḥanafī, Mālikī, And Shāfiʿī** Schools: Mash Is **Not Valid** On Such Socks.
- According To The **Ḥanbalī** School: Mash **Is Valid** If The Socks Can Be Walked In Comfortably For Regular Needs Without Being Assisted (I.E., Without Needing To Wear Shoes To Keep Them In Place).

Hadith Evidence For Wiping Over Jawrab (Socks):

There Are Numerous Hadiths On This Subject. Among Them Is:

1. Hadith Of Al-Mughīrah Ibn Shu‘Bah

Jami‘ Al-Tirmidhi (99):

Al-Mughīrah Ibn Shu‘Bah Said:

“I Saw The Messenger Of Allah ﷺ Perform Wudu And Wipe Over His **Jawrabayn** (Socks) And **Na‘Layn** (Sandals).”

Arabic Text:

حَدَّثَنَا هَنَادٌ وَمَحْمُودُ بْنُ غِيْلَانَ... عَنِ الْمُغِيرَةِ بْنِ شُعْبَةَ قَالَ:
بَوَّضَ النَّبِيُّ ﷺ وَمَسَحَ عَلَى الْجَوْرَبَيْنِ وَالنَّعْلَيْنِ

Grading: Ṣaḥīḥ Li Dhātihi (Authentic In Itself)

- **Imam Tirmidhi** Said: It Is *Sahih*.
(Jami‘ Al-Tirmidhi, Vol. 1, Hadith 99)
- **Shaykh Albani** Also Graded It *Sahih*.
(Silsilat Al-Ahadith As-Sahihah, Jami‘ Al-Tirmidhi, Vol. 1, Hadith 99)
- **Al-Azami**: *Sahih*
(In Dar Qutni, Vol. 1, Hadith 198)
- **Shu‘Ayb Al-Arna‘Ut**: *Sahih*
(Sahih Ibn Hibban, Vol. 4, Hadith 1338)
- **Ibn Khuzaymah**: *Sahih*
(Sahih Ibn Khuzaymah)

Note On The Claim About Dar Qutni Declaring It Weak:

Some People Say That **Imam Dar Qutni** Considered This Hadith Weak. However, Dar Qutni Merely Mentioned In His *‘Ilal* (Vol. 7, P. 112) That **Abu Qays Al-‘Uday** Is Alone (Mutafarrid) In This Chain. But This *Tafarrud* (Solitary Narration) **Does Not Imply Weakness**, As Per The Well-Known Principles Of The Muhaddithin.

This Is Simply Noted To Inform Researchers That The Narration Is *Khabar Al-Wāḥid* (A Solitary Report), And Not As A Criticism.

Takhrīj (References) For The Hadith Of Mughīrah Ibn Shu‘Bah:

- Ibn Khuzaymah In *Ṣaḥīḥ* (1/304, No. 198)
- Ibn Hibbān In *Ṣaḥīḥ* (4/167, No. 1338)
- Al-Nasa’i In *Al-Kubrā* (1/123, No. 129)
- Abu Dawud In *Sunan* (1/61, No. 159)
- Al-Tirmidhi In *Jami‘* (1/144, No. 99)
- Ibn Mājah In *Sunan* (1/352, No. 559)
- Al-Bayhaqi In *Al-Sunan Al-Kubrā* (1/283–284, Nos. 1370–1371)

- Imam Ahmad In *Musnad* (8/4136, No. 18493)
- ‘Abd Bin Ḥumayd In *Al-Muntakhab* (1/152, No. 398)
- Ibn Abī Shaybah In *Muṣannaf* (2/275, No. 1985; 20/164, No. 37506)
- Al-Ṭaḥāwī In *Sharḥ Ma ‘Āni Al-Āthār* (1/97, No. 617)
- Al-Ṭabarānī In *Al-Kabīr* (20/414–415, Nos. 995–996),
And In *Al-Awsaṭ* (3/112, No. 2645)

2. Hadith Of Abu Musa Al-Ash‘Arī – Ibn Mājah (560):

Abu Musa Al-Ash‘Arī Reported:

“The Prophet ﷺ Performed Wudu And Wiped Over The Socks And Sandals.”

Arabic:

أَنَّ رَسُولَ اللَّهِ ﷺ تَوَضَّأَ وَمَسَحَ عَلَى الْجُورَيْنِ وَالنَّعْلَيْنِ

Grading: Weak (Da‘īf)

Because ‘Īsā Ibn Sinān Is Agreed Upon To Be Weak (*Da‘īf Bil-Ittifāq*).

Takhrīj:

- Ibn Mājah (1/353, No. 560)
- Al-Bayhaqī (1/284, No. 1372)
- Al-Ṭaḥāwī (1/97, No. 616)
- Al-Ṭabarānī In *Al-Awsaṭ* (2/24, No. 1108)

3. Athar Of Anas Ibn Mālik – Al-Mu‘Jam Al-Kabīr, Ṭabarānī (1/244, No. 686):

Qatādah Reports: “Anas Ibn Mālik Would Wipe Over His Socks (*Jawrabayn*).”

Grading: Ṣaḥīḥ Li Dhātihi

Takhrīj:

- ‘Abd Al-Razzāq In *Muṣannaf* (1/200, No. 779)
- Ibn Abī Shaybah (2/276, No. 1990)
- Al-Ṭabarānī In *Al-Kabīr* (1/244, No. 686)
- Al-Ṭabarānī In *Al-Awsaṭ* (2/298, No. 2032)

4. Hadith Of Bilāl – Al-Mu‘Jam Al-Kabīr, Ṭabarānī (1/350, No. 1064):

Bilāl Said: “The Messenger Of Allah ﷺ Would Wipe Over The Leather Socks (*Khuffayn*) And Cloth Socks (*Jawrabayn*).”

Grading: Weak (Da‘īf)

Due To Yazīd Ibn Abī Ziyād, Who Is A Controversial Narrator (Mukhtalaf Fīhi).

1. Al-Mu'jam Al-Kabir Of Al-Tabarani, Vol. 9, Page 251, Hadith No. 9266:

Hammam Bin Al-Harith Bin Qais Bin ‘Amr Reports:

“‘Abdullah Ibn Mas‘ud Used To Wipe Over His Socks And Sandals.”

Arabic:

حَدَّثَنَا إِسْحَاقُ بْنُ إِبْرَاهِيمَ، عَنْ عَبْدِ الرَّزَّاقِ، عَنِ الثَّوْرِيِّ، عَنِ الْأَعْمَشِ، عَنْ إِبْرَاهِيمَ، عَنْ هَمَّامِ بْنِ الْحَارِثِ، عَنْ ابْنِ مَسْعُودٍ، أَنَّهُ : " كَانَ يَمْسُحُ عَلَى الْجُورَبَيْنِ، وَالنَّعْلَيْنِ "

Grading: Ṣaḥīḥ Li-Dhātihī (Authentic In Itself)

This Narration Is Also Found In: **Al-Muṣannaf Of ‘Abd Al-Razzāq**, Vol. 1, Hadith No. 781.

2. Musannaf Ibn Abī Shaybah, Vol. 2, Page 274, Hadith No. 1983:

‘Uqbah Bin ‘Amr Used To Wipe Over His Socks.

Arabic:

حَدَّثَنَا ابْنُ نُمَيْرٍ، عَنِ الْأَعْمَشِ، عَنْ إِبْرَاهِيمَ، عَنْ هَمَّامٍ: أَنَّ أَبَا مَسْعُودٍ كَانَ يَمْسُحُ عَلَى الْجُورَبَيْنِ.

Grading: Ṣaḥīḥ Li-Dhātihī (Authentic In Itself)

Sources For These Narrations:

- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/285), Hadith: 1375
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/199), Hadith: 774, 777
- Ibn Abī Shaybah In *Al-Muṣannaf* (2/274–277), Hadiths: 1983, 1984, 1999, 2000

3. Musannaf Ibn Abī Shaybah, Vol. 2, Page 275, Hadith No. 1986:

‘Umar Ibn Al-Khaṭṭāb Wiped Over His Socks And Sandals.

Arabic:

حَدَّثَنَا وَكِيعٌ، عَنْ أَبِي جَنَابٍ، عَنْ أَبِيهِ عَنْ جُلَاسِ بْنِ عَمْرِو: أَنَّ عُمَرَ تَوَضَّأَ يَوْمَ جُمُعَةٍ، وَمَسَحَ عَلَى جُورَبَيْهِ وَنَعْلَيْهِ

Grading: Da‘īf Jiddan (Very Weak)

Cause Of Weakness: Julās Bin ‘Amr Is Unanimously Weak (ḍa‘īf Bil-Ittifāq).

4. Musannaf Ibn Abī Shaybah, Vol. 2, Page 276, Hadith No. 1991:

Abū Umāmah Used To Wipe Over His Socks.

Arabic:

حَدَّثَنَا وَكِيعٌ، عَنْ حَمَّادِ بْنِ سَلَمَةَ، عَنْ أَبِي غَالِبٍ قَالَ: رَأَيْتُ أَبَا أُمَامَةَ يَمْسَحُ عَلَى الْجُورَيْنِ

Grading: *Hasan* (Good)

Commentary On Abū Ghālib (The Narrator):

- Scholars Differed On His Reliability. The Stronger Opinion Is That He Is *hasan* In ḥadīth.
- **Dāraquṭnī** Said: “*Thiqah (Reliable)*” – *Tahdhīb Al-Tahdhīb* (4/570)
- **Imām Tirmidhī** Graded His ḥadīths As *ṣaḥīḥ*
- **Mūsā Ibn Hārūn, Al-Dhahabī, Ibn Ma‘īn, Ibn Ḥajar, And Al-Mizzī** All Endorsed Him As Trustworthy Or “*ṣāliḥ Al-ḥadīth.*”

5. Musannaf Ibn Abī Shaybah, Vol. 2, Page 276, Hadith No. 1992:

‘Alī Ibn Abī Ṭālib Wiped Over His Socks And Sandals.

Arabic:

حَدَّثَنَا أَبُو بَكْرِ بْنُ عَيَّاشٍ، عَنْ عَبْدِ اللَّهِ بْنِ سَعِيدٍ، عَنْ خَلَّاسٍ قَالَ: رَأَيْتُ عَلِيًّا بَالَ، ثُمَّ مَسَحَ عَلَى جُورَيْهِ وَنَعْلَيْهِ

Grading: *Da‘īf* (Weak)

Cause: ‘Abdullah Bin Sa‘īd Is Weak (Bil-Ittifāq)

Alternate Chain:

Musannaf Ibn Abī Shaybah, Vol. 2, Page 277, Hadith No. 1998:

‘Amr Bin Ḥārith, A ṣaḥābī, Narrates That **‘Alī** Performed Ablution And Wiped Over His Socks.

Arabic:

حَدَّثَنَا وَكِيعٌ قَالَ: حَدَّثَنَا يَزِيدُ بْنُ مَرْذَانْبَةَ، عَنِ الْوَلِيدِ بْنِ سَرِيحٍ، عَنْ عَمْرِو بْنِ كُرَيْبٍ أَنَّ عَلِيًّا تَوَضَّأَ وَمَسَحَ عَلَى الْجُورَيْنِ

Grading: *Ṣaḥīḥ Li-Dhātihī*

Other Sources:

- Al-Bayhaqī In *Sunan Al-Kubrā*, Multiple Locations (E.G., 1/285, 1/287)
- Ibn Ḥajar In *Al-Maṭālib Al-‘Āliyah* (2/173)
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/199, 1/202)
- Ibn Abī Shaybah (Many Places: 1992, 1997, 1998, Etc.)

6. Musannaf Ibn Abī Shaybah, Vol. 2, Page 276, Hadith No. 1996:

Al-Barā’ Ibn ‘Āzib Used To Wipe Over His Socks.

Arabic:

حَدَّثَنَا وَكِيعٌ، عَنِ الْأَعْمَشِ قَالَ: حَدَّثَنَا إِسْمَاعِيلُ بْنُ رَجَاءٍ، عَنْ أَبِيهِ قَالَ: رَأَيْتُ الْبَرَاءَ تَوَضَّأَ فَمَسَحَ عَلَى الْجَوْرِبَيْنِ
Grading: *Ṣaḥīḥ Li-Dhātiḥ*

7. Musannaf Ibn Abī Shaybah, Vol. 2, Page 278, Hadith No. 2002:

Sahl Bin Sa‘D Wiped Over His Socks.

Arabic:

حَدَّثَنَا زَيْدُ بْنُ حُبَابٍ، عَنْ هِشَامِ بْنِ سَعْدٍ، عَنْ أَبِي حَازِمٍ عَنْ سَهْلِ بْنِ سَعْدٍ

Grading: *Weak / Soft Isnāds (Layn/Da‘īf)*

Cause: Hishām Bin Sa‘D Is A Disputed Narrator.

8. Musannaf Ibn Abī Shaybah, Vol. 2, Page 278, Hadith No. 2006:

Ibn ‘Umar Said:

“Wiping Over Socks Is Just Like Wiping Over Leather Socks (Khuffayn).”

Arabic:

سَمِعْتُ ابْنَ عُمَرَ يَقُولُ: الْمَسْحُ عَلَى الْجَوْرِبَيْنِ كَالْمَسْحِ عَلَى الْخُفَّيْنِ

Grading: *Da‘īf*

Cause: Yahyā Al-Bakkā’ (Yahyā Ibn Muslim) Is Weak (Bil-Ittifāq)

Alternate Chain:

Muṣannaf ‘Abd Al-Razzāq, Vol. 1, Page 199, Hadith No. 776:

Ibn ‘Umar Used To Wipe Over His Socks And Sandals.

Grading: *Da‘īf* – Because Of Julās Bin ‘Amr

Summary:

Wiping Over Socks (Jawrabayn) Is Reported From 11 Companions Of The Prophet ﷺ:

1. **Al-Mughīrah Ibn Shu‘Bah**
2. **‘Abdullah Ibn Mas‘ūd**
3. **Abū Mas‘ūd Al-Anṣārī** (The Famous Companion)
4. **Abū Umāmah Al-Bāhili**
5. **‘Alī Ibn Abī Ṭālib**
6. **Al-Barā’ Ibn ‘Āzib**
7. **Abū Mūsā Al-Ash‘Arī**
8. **Bilāl**
9. **‘Umar Ibn Al-Khaṭṭāb**
10. **Sahl Ibn Sa‘D**
11. **‘Abdullah Ibn ‘Umar**

Out Of These, **Six** Have *ṣaḥīḥ Isnāds* Confirming Their Practice:

- ‘Alī Ibn Abī Ṭālib
- ‘Abdullah Ibn Mas‘ūd
- Abū Mas‘ūd Al-Anṣārī
- Al-Mughīrah Ibn Shu‘Bah
- Al-Barā’ Ibn ‘Āzib
- Abū Umāmah Al-Bāhilī

Summary Of The Issue

Wiping Over Khuffayn (Leather Socks)

Brief Explanation:

This issue discusses the Islamic legal ruling on the permissibility, procedure, and limits of wiping over leather socks (khuffayn) during wudu instead of washing the feet. This practice is well established in the Sunnah and practiced by the Prophet ﷺ and his companions, with detailed rulings provided by all four Sunni madhhabs.

Sub-Issue: Ruling On Wiping Over Khuffayn

Brief Explanation:

There is unanimous consensus (ijma‘) among scholars that wiping over khuffayn is permissible for both residents and travelers, provided all conditions are met.

Evidence from the Text:

- Bughyat al-Muqtasid Sharh Bidayat al-Mujtahid (1/257–258)
- Al-Ijma‘ by Ibn al-Mundhir
- Reports from 70+ companions

Madhhab Views:

- **Hanafi:** Permissible after full purification
- **Maliki:** Permissible even for sinful travel
- **Shafi’i:** Permissible
- **Hanbali:** Permissible; considered a concession (rukhsah)

Sub-Issue: Is Wiping (Mash) Preferable Or Washing The Feet?

Brief Explanation:

There is a difference of opinion about which is better—wiping over the socks or washing the feet directly.

Evidence from the Text:

- Qur'an (Surah al-Ma'idah 5:6)
- Hadith of al-Mughirah ibn Shu'bah
- Bughyat al-Muqtasid (1/273–274)

Madhhab Views:

- **Hanafi:** Washing is better unless showing off
- **Maliki:** Washing is better; wiping is a concession
- **Shafi'i:** Washing preferred but wiping allowed
- **Hanbali:** Some say wiping is better; others say washing

Sub-Issue: When Is Wiping Over Khuffayn Permissible?

Brief Explanation:

Wiping is allowed in a state of minor impurity (hadath asghar), not in janabah (major impurity), and the khuffayn must be worn after complete wudu.

Evidence from the Text:

- Hadith of Safwan ibn Assal (Bukhari & Muslim)
- Tabyin al-Haqa'iq (1/46)
- Sharh al-Kabir by al-Dardir

Madhhab Views:

- **All:** Agree on wiping being valid only for minor impurity
- **Shafi'i:** Additional detail about Tayammum rulings

Sub-Issue: Where To Wipe On The Khuffain

Brief Explanation:

Wiping is only on the upper part of the khuffayn. Wiping the sole, sides, or bottom is invalid.

Evidence from the Text:

- Hadith of 'Ali (RA)
- Al-Mabsut by Sarakhsi
- Marāqi al-Falah

Madhhab Views:

- **Hanafi:** Must wipe top part, three fingers width
- **Shafi'i, Hanbali, Maliki:** Emphasis varies but all agree it must be on the top

Sub-Issue: How Much Area Of The Khuffain Must Be Wiped?

Brief Explanation:

Each madhhab defines the minimum area differently. The dispute is over whether a symbolic wipe is enough or a specific area must be covered.

Evidence from the Text:

- Bughyat al-Muqtasid (1/298)
- Tuhfat al-Muhtaj
- Al-Mabsut

Madhhab Views:

- **Hanafi:** Minimum of three finger-widths
- **Maliki:** Entire upper part
- **Shafi'i:** Any part sufficient as long as it's considered wiping
- **Hanbali:** Most of the upper part must be wiped

Sub-Issue: Method Of Wiping Over The Khuffain

Brief Explanation:

The method includes using three fingers to wipe from the toes upwards on the top surface of the khuff, once for each foot.

Evidence from the Text:

- Al-Fiqh al-Islami wa Adillatuhu (1/476)

Madhhab Views:

- **Hanafi:** Specific method; bottom/sides not valid
- **Others:** Not detailed here but similar in nature

Sub-Issue: Duration Of Wiping Over The Khuffain

Brief Explanation:

Wiping duration is 24 hours for residents and 72 hours for travelers.

Evidence from the Text:

- Hadith of Safwan
- Statements of 'Umar and Ibn 'Umar
- Bughyat al-Muqtasid

Madhhab Views:

- **All:** Agree on these time limits, with minor variations in interpretation

Sub-Issue: Ruling On Wiping Over Torn Khuffayn

Brief Explanation:

If the tear is small and does not expose three toes worth of skin, wiping remains valid. If a large area is exposed, it becomes invalid.

Evidence from the Text:

- Bughyat al-Muqtasid (1/315)
- Al-Iqna‘
- Opinions of Ibn Taymiyyah

Madhhab Views:

- **Hanafi:** Minor tears allowed
- **Maliki:** Less than 1/3 exposed is valid
- **Others:** Tend toward invalidation if major part is exposed

Sub-Issue: Conditions For Wiping Over The Khuffayn

Brief Explanation:

Three primary conditions: being in minor impurity, wearing khuffayn after full wudu, and that they must cover the required area.

Evidence from the Text:

- Hadith of Mughirah
- Al-Sharh al-Saghir

Madhhab Views:

- **Hanafi, Maliki, Hanbali:** Wudu with water must precede
- **Shafi'i:** Differ if Tayammum was involved

Sub-Issue: Nullifiers Of Ṭahārah When Wiping Over The Khuffayn

Brief Explanation:

Breaking wudu or expiration of the time limit invalidates wiping. If time ends, only the feet need washing (not whole wudu) per most madhhabs.

Evidence from the Text:

- Bughyat al-Muqtasid (1/337)
- Al-Fiqh al-Islami wa Adillatuhu (1/494)

Madhhab Views:

- **Hanafi, Maliki, Shafi'i:** Only feet need washing
- **Hanbali:** Whole wudu must be repeated

Sub-Issue: Ruling On Wiping Over Jawrabayn (Fabric Socks)

Brief Explanation:

Wiping over thick non-leather socks (jawrabayn) is debated, but many scholars allow it if they meet the same criteria as khuffayn: impermeability and coverage.

Evidence from the Text:

- Found in closing sections (not quoted verbatim here but referenced)

Madhhab Views:

- **Hanafi, Hanbali:** Allow with certain criteria
- **Maliki, Shafi'i:** More restrictive

Conclusion:

The Complete issue of *Khuffayn*

Wiping Over The Leather Socks (Khuffayn) Is Not Just Permissible — It Is A Firmly Established And Widely Accepted Practice Of The **Ahl Al-Sunnah**. It Is Supported By Numerous Sahih Hadiths — More Than 70 In Some Compilations — And Was Practiced And Approved By The Prophet ﷺ Himself **Even After** The Revelation Of Surah Al-Ma'idah. The **Companions Had Consensus** On This Issue, And The Ahl Al-Sunnah Affirm This As Part Of Their Creed. This Strong Affirmation Was In Part To Distinguish Themselves From The **Khawarij And Shia**, Who Rejected The Practice. Thus, Wiping Over The Khuffayn Is A Well-Established And Agreed-Upon Part Of Islamic Practice.

If Someone Has The Opportunity To Either **Wipe Over The Khuffayn Or Wash Their Feet**, Which Is Better?

The Correct And Stronger View Is That **Washing The Feet Is Preferable**, Because It Is What Is Clearly Mentioned In The Qur'an And It Is The **Original Form** Of Wudu. This Is Also The View Of The Majority Of The Jurists.

However, If A Person Is Traveling Or Even Resident But Wearing Khuffayn Out Of Necessity Or Ease, And Chooses To Wipe, Then This Is Not Just Permissible But Also Virtuous—Especially If There Is **Some Difficulty In Washing**, Because:

- **Allah Is Pleased When His Servants Make Use Of His Ease And Concessions**, And

- **The Concession Of Wiping Was Legislated In The First Place To Make Things Easier.**

Thus, Avoiding Ease Without Any Necessity Is Not Superior.

Mash Over The Khuffayn Is **Only Permitted In Place Of Washing The Feet During Wudū'**, Not During Ghusl. If A Man Or Woman Becomes Junub Or Is Required To Perform Ghusl For Any Reason, They Must First **Remove The Khuffayn, Perform Ghusl**, Then Put The Khuffayn Back On In A State Of Full Purification. Only After That Can The Mash Period Restart. So, Once A Person Becomes Junub, **The Mash Period Is Invalidated**, And A New Purification Cycle Must Begin.

Wiping Over The Top Of The Khuff Is **Obligatory**.

Wiping The Bottom Is **Not Obligatory**, But Based On Some Narrations, It **May Be Considered Mustahabb (Recommended)**.

This Approach **Reconciles** All The Narrations.

In Terms Of The Amount Of Wiping The Most Correct Opinion In This Issue Seems To Be That Of The **Shafi'i Madhhab**, Which Says That Wiping The Amount That Is Commonly Called "Wiping" In Normal Usage Is Sufficient — Just Like In The Case Of Wiping Part Of The Head In Wudū'.

However, It Is *Sunnah* To Wipe Properly Over The Upper Part Of The Khuff, As The **Hanafis** Say, And Also To Wipe The *Bottom* Of The Khuff As Well, Which Is *Recommended* (Mustahabb) — As Discussed In Earlier Sections.

In Conclusion:

- **Wiping Over The Upper Part Is Obligatory**, And
- **Wiping Over The Bottom Is Recommended**, As Proven By Earlier Hadiths.

The Disagreement Among Scholars Arises Due To Analogical Reasoning (Qiyās), And:

- The **Shafi'is** Argue That The Obligation Is Fulfilled Based On General Usage ('Urf), Which Seems More Sound.
- The **Hanafis** Argue Based On A Hadith Where The Prophet ﷺ Wiped With His Fingers — In Arabic: (بأصابعه) — And Since In Arabic, The Plural Implies *At Least Three*, The Hanafis Conclude That One Must Wipe With *Three Fingers*.

Therefore, What I Mean Is:

- It Is **Necessary** To Wipe With Three Fingers (As Per The ḥadīth),
- But If A Person Wipes Over Enough Area That It Would Be Called Wiping In Normal Language ('Urf), That Is **Also Valid**.

- Wiping Over The **Upper Part Thoroughly** Is *Mustahabb* (Recommended), And
- Wiping Over The **Bottom** Of The Khuff Is Also *Mustahabb*.

Start The Wiping From The Toes Of Each Foot Use At Least **Three Fingers** (What called wiping) And Wipe **Up To And Including The Ankles**, Which Is **Obligatory**.

Wiping Up To The Shin Bone (Above The Ankle) Is **Recommended (Mustahabb)**.

Use The **Right Hand For The Right Foot**, And The **Left Hand For The Left Foot**.

Wiping The Bottom Of The Khuff Is **Recommended (Mustahabb)** According To **Mālikīs And Shāfi'īs**, But **Not Sunnah** According To **Ḥanafīs And Ḥanbalīs**.

The **Time Limit For Mash** Over The **Khuffayn** Is:

- **3 Days And Nights For A Traveller,**
- **1 Day And Night For A Resident.**

As For The Narrations From **Ibn 'Umar** And **'Umar**, It Is Possible That They Were Not Aware Of The Time Limit Initially, And That's Why They Said "There Is No Fixed Period." But Once They Learned The Proper Ruling, They Gave The Same Fatwā As The Other Companions.

This Is The Interpretation Offered By The **Majority (Jamhūr)**.

I Say That The Narrations From **'Umar, Ibn 'Umar, 'Uqbah Ibn 'Āmir**, And Other Companions — Which Do Not Mention A Time Limit — Should Be Understood In The Light Of The General Rule That We Have Detailed Above.

However, If During Travel Someone Is In Hardship Or Forgets That The 3-Day Limit Has Passed, Then He Does **Not** Have To Repeat The Prayers He Offered During That Time. There Is **Concession In Cases Of Difficulty**, But The **General Ruling And Sunnah** Is That:

- For A **Traveller**: 3 Days And Nights,
- For A **Resident**: 1 Day And Night.

And This Appears To Be The **Stronger And More Correct Opinion**.
And Allah Knows Best.

Among All The Schools, The **Ḥanafi Madhhab** Holds The Strongest And Most Accurate Opinion In This Matter. This Has Also Been Acknowledged By Scholars From Other Madhhabs. Both The Hanafis And Mālikis Permit Wiping Over Torn *Khuffayn*. The Māliki View Allows It Only When The Tear Is Small.

However, When The Tear Is **Minor**, There Is A Consensus Among The Four Imams (*A'immaḥ Arba'ah*) That *Mash* Is Valid. When The Tear Is **Large**, Differences Arise. On This Point, **Shaykh Ibn Taymiyyah** Has Also Given A Detailed Discussion And Leans Toward The **Ḥanafi Position**.

Therefore, The Most Correct Opinion Is That If The Hole In The *Khuff* Reveals **Less Than Three Toes**, Wiping Over It Is Still Valid.

Condition to wipe

1. **Only In Minor Impurity (Ḥadath Aṣghar):** Wiping Over *Khuffayn* Is Valid Only For Minor Impurity (Not After *Janābah*).
2. **Worn In Purity:** *Khuffayn* Must Be Worn In The State Of Purity (*Wuḍū'*).
3. **Material Flexibility:** Wiping Is Allowed Over *Khuffayn* And Anything Similar (E.G., Thick Socks) **As Long As It Is Pure**.
4. **Coverage:** The *Khuffayn* Must Cover All Areas Required In *Wuḍū'*, Including The Ankles.
5. **Integrity:** If The *Khuff* Is Torn But Doesn't Expose The Foot (Even With A Small Hole The Size Of 1–2 Fingers), And One Can Still Walk In It, Wiping Is Valid. But If More Is Exposed Or Walking Is Not Possible, Wiping Is Invalid.
6. **Proper Fit:** The *Khuff* Should Neither Be Too Tight To Restrict Walking Nor Too Loose To Slip Off.

Actions That Invalidate Wiping Over The *Khuffayn* (Leather Socks):

1. **Expiry Of Wiping Duration:**
If The Duration Of The First Wiping Period Ends, The Ruling Of *Mash* (Wiping) Also Ends. After Washing The Feet, One May Again Perform *Mash* Over The *Khuffayn*.
2. **Anything That Invalidates *Wudu*:**
Anything That Breaks *Wudu* Also Breaks The Validity Of *Mash*. For Example, If Someone Passes Wind After Performing *Mash*, Their Entire *Wudu* Becomes Invalid, And They Must Perform A Complete New *Wudu*. If The Wiping Duration Is Still Valid, They May Wipe Over The *Khuffayn* Again After The New *Wudu*.
3. **Occurrence Of *Janabah* (Major Ritual Impurity):**
If A Person Enters A State Of *Janabah* (E.G., Due To Sexual Intercourse Or A Wet Dream), The *Mash* Becomes Invalid Immediately, Even If The Wiping Duration Hasn't Expired. The Person Must Perform A Full *Ghusl* (Ritual Bath), And After Attaining Purity, Must Wear The *Khuffayn* Again In A State Of *Wudu*.

4. Removal Of The Khuffayn In A State Of Purity:

If Someone Removes Their Khuffayn While Still In A State Of Wudu, Even If Only One Foot Is Uncovered, Their Wudu Breaks. That Is, The Mash Is Invalidated. However, If They Did Not Wash Their Feet Immediately After Removal But Later Washed Them After A Long While—And During That Interval Nothing Occurred That Breaks Wudu—Then Their State Of Purity (ṭahārah) Remains Valid.

Wiping Over Socks (Jawrabayn) Is Reported From 11 Companions Of The Prophet ﷺ:

12. **Al-Mughīrah Ibn Shu‘Bah**
13. **‘Abdullah Ibn Mas‘ūd**
14. **Abū Mas‘ūd Al-Anṣārī** (The Famous Companion)
15. **Abū Umāmah Al-Bāhilī**
16. **‘Alī Ibn Abī Ṭālib**
17. **Al-Barā’ Ibn ‘Āzib**
18. **Abū Mūsā Al-Ash‘Arī**
19. **Bilāl**
20. **‘Umar Ibn Al-Khaṭṭāb**
21. **Sahl Ibn Sa‘D**
22. **‘Abdullah Ibn ‘Umar**

Out Of These, **Six** Have *ṣaḥīḥ Isnāds* Confirming Their Practice:

- ‘Alī Ibn Abī Ṭālib
- ‘Abdullah Ibn Mas‘ūd
- Abū Mas‘ūd Al-Anṣārī
- Al-Mughīrah Ibn Shu‘Bah
- Al-Barā’ Ibn ‘Āzib
- Abū Umāmah Al-Bāhilī

All The Conditions That We Have Mentioned For Wiping Over The *Khuffayn* (Leather Socks) Will Also Apply To Wiping Over *Jawrabayn* (Socks), Because *Jawrabayn* Hold The Same Ruling As *Khuffayn*.

Wiping Over Socks (*Mash‘Ala Al-Jawrabayn*) Is Permissible, *In Shā’ Allāh*, And There Are Several Reasons For This.

The First Reason Is That This Ruling Was Given By The Sharī‘ Ah For Ease And Facilitation, And The Sharī‘ Ah Is For All Times Until The Day Of Judgment. In Today’s Time, If Someone Wishes To Perform *Mash*, It Would Not Be Easy If We Were To Restrict It Only To *Khuffayn*, Because Leather Socks Are Not Common Today, And People Do Not Typically Wear Them When Going Out. Nowadays, The General Public Wears Socks (*Jawrab*) Along With Shoes, Boots, Etc. So If We Accept

The Opinion Of Those Jurists Who Say That *Mash* Over *Jawrabayn* Is Not Permissible, It Would Remove This Ease And Convenience For The Majority Of Muslims. However, That Is Not The Case.

The Second Point Is That It Is Undoubtedly Established From The Prophet ﷺ And The Companions That They Used To Wipe Over *Jawrabayn* (Socks). Many Contemporary Shāfi‘ī Scholars Have Also Issued *Fatāwā* Permitting Wiping Over Cotton And Similar Types Of Socks, Provided They Cover The Ankles. We Have Even Heard That Several Senior Azhari Scholars From The Shāfi‘ī School Have Expressed The Same Opinion. Shaykh Ibn Taymiyyah Also Discussed This Matter In Detail In His *Fatāwā*, The Summary Of Which Is That The Permission To Wipe Over *Khuffayn* Was Granted To Facilitate Ease For The Ummah. If One Imposes Too Many Strict Conditions On This Allowance, Then Acting Upon Those Conditions Becomes Difficult, And The Original Purpose Of *Mash*—Which Is Ease—Will Be Lost.

As Far As We Understand, The Ḥanbalī Madhhab Is The Closest To The Truth In This Matter.

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 12 – Ruling On An Impure Substance Leaving The Body

The Nullifiers Of Wudu (Ablution) Are Of **Two Types**:

1. **Those On Which There Is Consensus,**
2. **Those On Which There Is Scholarly Disagreement.**

The **Primary Reference** In This Matter Is The Statement Of Allah In Surah Al-Nisā' (4:43):

"Or When You Have Come From Relieving Yourself (Qadā' Al-ḥājah), Or When You Have Touched Women..."

And The Prophet ﷺ Said:

"Allah Does Not Accept The Prayer Of One Who Has Broken His Wudu Until He Performs Wudu Again."

Narrated By **Bukhari (135)** And **Muslim (225)**.

From This Hadith, There Is **Consensus Among The Jurists (Ijmā')** That **Prayer Is Not Valid Without Wudu**.

From *"Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid"* (1/451):

“The Foundation In This Chapter Is The Statement Of Allah: {أَوْ جَاءَ أَحَدٌ مِنْكُم مِّنَ الْغَائِطِ أَوْ لَامَسْتُمُ النِّسَاءَ} (Al-Nisā': 43) And The Statement Of The Prophet ﷺ: 'Allah Does Not Accept The Prayer Of One Who Has Broken His Wudu Until He Performs Wudu Again'.”

From *Bughyat Al-Muqtasid* (1/452):

“Hence, The **Entire Ummah Agrees** That No Prayer Is Valid Without Purification, Based On The Hadith.”

Matters With Ijmā' (Consensus):

There Is **Unanimous Agreement** Among The Scholars That The Following Things **Break Wudu**:

- Going To The Toilet (Relieving Oneself)
- Urination
- Releasing Gas (Flatulence)
- Emission Of **Mazi** (Pre-Seminal Fluid)
- Emission Of **Wadi** (Thick White Discharge)

This Is Based On Authentic Hadith, And There Is **No Difference Of Opinion** Regarding It.

From *Bughyat Al-Muqtasid* (1/452):

“They All Agreed In This Chapter That **Wudu Is Invalidated By Urine, Feces, Wind, Mazi, And Wadi** Due To The Authenticity Of The Reports On This—Provided These Substances Leave The Body In A Healthy (Natural) State.”

Also, Ibn Al-Mundhir In **Al-Ijmā‘ (P. 33)** Said:

“They Have Agreed That Feces From The Anus, Urine From The Male Organ (And The Same For Women), Semen, Wind From The Anus, And Loss Of Intellect In Any Form—All **Invalidate Purity** And Require Wudu.”

Ibn Hazm In *Marātib Al-Ijmā‘* (1/71) Said:

“The Scholars Of The Ummah Have Agreed That **Semen, Wadi, Mazi, Penetration Of The Glans Into The Vagina**, And Any Form Of **Loss Of Intellect** All Invalidate Wudu—Except For One Who **Sleeps While Not Lying Down**, Where There Is Disagreement.”

Disagreement: Does Wudu Break If Any Impure Substance Leaves The Body?

There Is **Difference Of Opinion** Among The Jurists On Whether **Any Impure (Najis) Substance** Exiting The Body (Other Than From The Private Parts) Breaks Wudu.

Among Those Who Say **Yes** Are:

- Imām Abū Ḥanīfah And His Companions,
- Sufyān Al-Thawrī,
- Aḥmad Ibn Ḥanbal,
- A Group Among The Salaf And Companions.

They Say:

“**Any Flowing Impure Substance That Leaves The Body**, Like **Blood, Nosebleed, Cupping Blood, Vomiting** (Except Phlegm, According To Abu Hanifa), Breaks Wudu.”

From *Bughyat Al-Muqtasid* (1/453):

“A Group Among The Salaf And Companions Said: Every Impurity That Flows From The Body Requires Wudu—Such As Blood, Heavy Nosebleed, Bloodletting, Cupping, And Vomiting—Except Phlegm According To Abū Ḥanīfah.”

From *Al-Durr Al-Mukhtār* And *Hāshiyat Ibn ‘Ābidīn* (1/138):

“Vomiting Phlegm Does **Not Break Wudu**—Unless It Is Mixed With Food, In Which Case The Majority Element Is Considered.”

Those Who Say: Anything Coming From Either Private Part Breaks Wudu

According To **Imām Al-Shāfi‘ī** And His Companions, And **Muḥammad Ibn ‘Abd Al-Ḥakam** (From The Mālikī School), They State:

“Anything That Exits From Either Private Part—Whether Urine Or Blood—Invalidates Wudu.”

The Ḥanafī School

They Maintain That:

“If Any Impure Substance Exits The Body And Flows, It Breaks Wudu.”

This Is The View Of:

- Imām Abū Ḥanīfah
- Imām Muḥammad
- Imām Sughūdī
- Imām Sarakhsī
- Imām Kāsānī
- Imām Burhān Al-Dīn
- Imām Khazrajī
- Imām Zaylī
- Imām Badr Al-Dīn ‘Aynī
- Imām Aḥmad Ibn Ḥanbal
- Sufyān Al-Thawrī
- Ibn Qudāmah
- Mujāhid
- Ibrāhīm Al-Nakha‘ī
- ‘Aṭā’
- Qatādah
- Ḥasan Al-Baṣrī
- Ibn Sīrīn
- ‘Urwah Ibn Al-Zubayr
- Hishām Ibn ‘Urwah
- Al-Sha‘Bī
- Ḥākim Ibn ‘Uṭaybah
- ‘Abd Allāh Ibn Al-Mubārak

From *Al-Durr Al-Mukhtār* (1/134):

“Wudu Is Broken By Anything Impure That Exits From The Body, Whether Habitual Or Not, From The Private Parts Or Elsewhere—If It Flows And Is Considered Impure.”

The Ḥanbalī School

They Hold That:

“If Any **Impure Substance Exits The Body**, It Breaks Wudu **If It Is Significant In Amount.**”

From *Kashshāf Al-Qinā‘* (1/134):

“If Excrement Or Urine Exits—Even In Small Amounts—From Below Or Above The Stomach, Whether The Normal Outlets Are Blocked Or Not, Wudu Breaks...

As For **Other Impure Substances** Like Vomit, Blood, Pus, Or Worms From Wounds, Wudu Only Breaks **If It Is Excessive.**”

They Base This On The Hadith Of **Fāṭimah:**

“It Is Blood From A Vein, So Perform Wudu For Every Prayer.”

Reported By **Tirmidhī.**

They Also Cite The **Consensus Of Companions**, Like **Ibn ‘Umar**, Who Once Squeezed A Pimple And Blood Came Out, Yet He Prayed Without Repeating Wudu.

Mālikī And Shāfi‘ī Schools

Scholars Like:

- Imām Mālik Ibn Anas
- Imām Al-Shāfi‘ī
- Al-Qāsim
- Al-Muzanī
- Al-Nawawī
- Ibn Rushd
- Al-Rāfi‘ī
- Sa‘īd Ibn Jubayr
- Sa‘īd Ibn Al-Musayyab
- Qatādah
- Abū Qilābah
- Makhūl
- Ṭawūs
- Abū Thawr

And **Most Shāfi‘īs And Mālikīs** Say:

“**Only Things That Exit From The Private Parts** Break Wudu. If **Impurity Exits From Another Part Of The Body**, It Does **Not** Break Wudu.”

Supporting Hadiths

From ‘Alī Ibn Abī Ṭālib:

“If Any Of You Vomits, Has A Nosebleed, Or Feels Discomfort In The Stomach, Let Him Stop And Perform Wudu, Then Resume The Prayer If He Hasn’t Spoken.”

Chain: Yazīd Ibn Al-Ḥusayn Al-Bazzāz → Muḥammad Ibn Ismā‘īl Al-Ḥassānī → Wakī‘ → ‘Alī Ibn Ṣāliḥ & Isrā‘īl → Abū Ishāq → ‘Aṣim Ibn Ḍamrah → ‘Alī (RA)
(This Hadith Is **Ṣaḥīḥ Li Dhāṭihi**, Meeting The Conditions Of **Ṣaḥīḥ Muslim**.)

Hadith Authentication:

1. **Abū Ḥātim** Declared It **Ṣaḥīḥ Mawqūf**
(Reference: *Al-I‘lām Bi Sharḥ Sunan Ibn Mājah*, Vol. 3, P. 88)
2. **Ḥusayn Salīm Asad Al-Dārānī** Graded It **Ḥasan** In His Edition Of *Dāraqutnī* (Vol. 1, P. 638, Hadith 902)
3. **Imām Muḥammad** Used This Exact Matn As Proof
(*Al-Ḥujjah*, Vol. 1, P. 67)
4. **Imām Sarakhsī** Also Used It
(*Al-Mabsūṭ*, Vol. 1, P. 196)
5. **Imām Kāsānī** Used This And ‘Ā’ Ishah’s Hadith
(*Badā’i‘ Al-Ṣanā’i‘*, Vol. 1, P. 24)

Some Have Claimed That ‘**Aṣim Ibn Ḍamrah** Did Not Hear From ‘Alī, But This Is **Incorrect**—He Narrated Over **450 Hadiths** From ‘Alī, And **Over 15 Major Hadith Scholars** Used This Isnād In Their Books.

Imām Ḥākim Graded This Isnād **ṣaḥīḥ** In *Al-Mustadrak* (ḥadīth 3995).

Imām Al-Nasā’ī Included More Than 25 Hadiths With This Same Isnād In His *Al-Kubrā* And Did **Not Criticize It**.

Imām Tirmidhī Also Graded It **ḥasan** In His *Sunan* (ḥadīth 432).

Therefore, If Samā‘ (Hearing) Were Absent, These Scholars Would Not Have Authenticated It.

Moreover, **Ṣaḥīḥ Ibn Khuzaymah** (ḥadīth 1375) Explicitly States That ‘Aṣim Said:

“I Asked ‘Alī Ibn Abī Ṭālib...” — Proving **Direct Hearing**.

Narration From Ibn ‘Abbās In Sunan Al-Kubrā Of Al-Bayhaqī (Jild 2, Safah 405, Ḥadīth 4166)

Arabic (Isnād And Matn):

أَنْبَأَ أَبُو الْحُسَيْنِ بْنُ بِشْرَانَ بِبَعْدَادَ، أَنْبَأَ إِسْمَاعِيلُ بْنُ مُحَمَّدٍ الصَّفَّارُ، أَنْبَأَ إِسْمَاعِيلُ بْنُ إِسْحَاقَ، ثَنَا عَلِيُّ بْنُ عَبْدِ اللَّهِ، ثَنَا عَبْدُ الْعَزِيزِ بْنُ عَبْدِ الصَّمَدِ، ثَنَا سُلَيْمَانُ النَّيْمِيُّ، عَنْ عَمَّارِ بْنِ أَبِي عَمَّارٍ، عَنْ ابْنِ عَبَّاسٍ أَنَّهُ قَالَ: "إِذَا كَانَ الدَّمُ فَاحِشًا فَعَلَيْهِ الْإِعَادَةُ، وَإِنْ كَانَ قَلِيلًا فَلَيْسَ عَلَيْهِ إِعَادَةُ"

Translation:

Ibn ‘Abbās (رضي الله عنه) Said:

“If The Blood Is Excessive, He Must Repeat The Prayer. But If It Is Little, Then He Does Not Need To Repeat It.”

Grading:

Ḥasan Li-Dhātihi (Good In Itself) – Because The Chain Contains Only Acceptable Narrators And Has Supporting Reports.

Ḥadīth Of Abū Al-Dardā’ And Thawbān – Sunan Al-Tirmidhī (Ḥadīth 87)

Arabic (Isnād And Matn):

... حَدَّثَنَا أَبُو عُبَيْدَةَ بْنُ أَبِي السَّفَرِ، وَإِسْحَاقُ بْنُ مُصُورٍ
عَنْ مَعْدَانَ بْنِ أَبِي طَلْحَةَ، عَنْ أَبِي الدَّرْدَاءِ ...
أَنَّ رَسُولَ اللَّهِ ﷺ قَاءَ فَتَوَضَّأَ
فَلَقِيتُ ثَوْبَانَ فِي مَسْجِدِ دِمَشْقَ فَذَكَرْتُ ذَلِكَ لَهُ، فَقَالَ: صَدَقَ، أَنَا صَبَبْتُ لَهُ وَضُوءَهُ.

Translation:

Abū Al-Dardā’ (رضي الله عنه) Said:

“The Messenger Of Allah ﷺ Vomited, So He Performed Wudū’ (Ablution).”

He Adds: *“I Met Thawbān In The Mosque Of Damascus And Mentioned This To Him. He Said: ‘You Have Spoken The Truth. I Was The One Who Poured Water For His Wudū’.”*

Grading:

- **Ṣaḥīḥ Li-Dhātihi** (Authentic In Itself) – Per **Imām Aḥmad**, **Tirmidhī**, And **Muḥammad Ibn Ishāq**.
- **Imām Al-Tirmidhī** Said: *“The Narration Of Ḥusayn Al-Mu‘Allim Is The Soundest Narration In This Chapter.”*

Scholarly Commentary In Tirmidhī:

Imām Al-Tirmidhī Continues:

"Many Scholars From The Companions And The Tābi‘īn Held The View That Wudū’ Is Necessary After Vomiting And Bleeding From The Nose."

He Names:

- Sufyān Al-Thawrī
- ‘Abdullāh Ibn Al-Mubārak
- Aḥmad Ibn Ḥanbal
- Ishāq Ibn Rāhwayh

And Contrasts This With:

- Mālik
- Al-Shāfi‘ī, Who Held: *“There Is No Wudū’ Due To Vomiting Or Nosebleed.”*

Takhrīj (Referencing And Sources For Ḥadīth Of Abū Al-Dardā’):

This ḥadīth Is Narrated And Authenticated In **Numerous** Sources Including:

- Sunan Al-Tirmidhī (1/130, Ḥadīth 87)
- Musnad Aḥmad (Multiple Entries, E.G. 22114, 22115, 22805, 28149 Etc.)
- Ṣaḥīḥ Ibn Ḥibbān (3/377, Ḥadīth 1097)
- Mustadrak Al-Ḥākim (1/426, Ḥadīths 1558–1560)
- Sunan Abū Dāwūd (2/283, Ḥadīth 2381)
- Sunan Al-Dāraqutnī (1/289–292, Ḥadīths 590–595)
- Muṣannaf Ibn Abī Shaybah (6/183, Ḥadīths 9291–9292)
- Muṣannaf ‘Abd Al-Razzāq (1/138, Ḥadīth 525; 4/215, Ḥadīth 7548)
- Ṣaḥīḥ Ibn Khuzaymah (3/394, Ḥadīths 1956–1959)
- Al-Nasā’ī Al-Kubrā (3/314–316, Ḥadīths 3107–3116)
- Al-Bayhaqī (Sunan Al-Kubrā 1/144, 4/220, Etc.)
- Al-Ṭabarānī (Al-Kabīr And Al-Awsaṭ)
- Al-Bazzār, Al-Ṭaḥāwī, Al-Tayālīsī, And Others.

Hadith Of Umm Al-Mu’minīn ‘Ā’ishah (RA) – Sunan Ibn Mājah 1221

Narrated By:

Muḥammad Ibn Yaḥyā → Al-Haytham Ibn Khārijah → Ismā‘īl Ibn ‘Ayyāsh → Ibn Jurayj → Ibn Abī Mulaykah → ‘Ā’ishah (RA)

She Said: The Messenger Of Allah ﷺ Said:

“Whoever Vomits, Or Has A Nosebleed, Or Regurgitates Food Or Mucus, Or Experiences Madhī (Pre-Seminal Fluid), Then He Should Stop (His Prayer), Perform Wudu, And Then Resume His Prayer From Where He Left Off, And In The Meantime, He Should Not Speak With Anyone.”

Arabic:

مَنْ أَصَابَهُ فَيءٌ أَوْ رُعَافٌ أَوْ قَلَسٌ أَوْ مَذْيٌ فَلْيَنْصَرِفْ فَلْيَتَوَضَّأْ، ثُمَّ لِيَبْنِ عَلَى صَلَاتِهِ، وَهُوَ فِي ذَلِكَ لَا يَتَكَلَّمُ
(Sunan Ibn Mājah 1221)

This Narration Is Also Explicitly Mentioned Through **Ismā‘īl Ibn ‘Ayyāsh**, And This Isnād (Chain) Has Been Further Clarified In **Sunan Al-Kubrā Al-Bayhaqī**, Volume 2, Hadith **3434**.

Supporting Mutābi‘ Āt (Corroborating Chains) For Ismā‘īl Ibn ‘Ayyāsh

Two Authentic Supporting Chains (Mutābi‘) For This Narration Are Also Reported:

1. **Sunan Al-Kubrā Of Al-Nasā’ī (Through Al-Bayhaqī)** – Vol. 1, Hadith **680**
Reported Via ‘**Abd Al-Razzāq**.
2. **Sunan Al-Dāraqtunī** – Vol. 1, Hadith **573**
Reported Via ‘**Abd Al-Wahhāb**.

In Addition, There Are Other Mutābi‘ Āt (Corroborating Chains) As Well, Such As One Via **Ismā‘īl Ibn Arqam**, Etc.

Hadith Of ‘Abdullāh Ibn ‘Umar (RA) – Al-Muwatta‘ Of Mālik 110

Narrated By:

Mālik → **Nāfi‘** → ‘**Abdullāh Ibn ‘Umar (RA)**

He Said:

“When Ibn ‘Umar Would Experience A Nosebleed, He Would Leave, Perform Wudu, And Then Return To His Prayer And Resume It Without Speaking.”

Arabic:

كَانَ إِذَا رَعَفَ انْصَرَفَ فَتَوَضَّأَ، ثُمَّ رَجَعَ فَبَنَى وَلَمْ يَتَكَلَّمْ

Grading: **Ṣaḥīḥ Li-Dhātihi** (Authentic In Itself)

Below This, **Imām Mālik** Also Narrated A Similar Statement From **Ibn ‘Abbās (RA)** — That One Should Perform **Wudu** If Blood Flows From The Nose.

Hadith From Al-Musannaf Of ‘Abd Al-Razzāq (3617)

Narrated By:

‘Abd Al-Razzāq → Ibn Jurayj → ‘Amr Ibn Dīnār → Ṭāwūs → (From) ‘Umar → From The Prophet ﷺ

Ṭāwūs Said:

“If Someone Experiences A Nosebleed During Prayer And Does Not Speak Until He Performs Wudu And Then Prays, He May Resume The Remainder Of The Prayer From Where He Left Off, As Long As He Does Not Speak.”

But ‘Amr Ibn Dīnār Added:

“If He Deliberately Speaks, Then He Must Repeat The Full Prayer From The Beginning. And The Prophet ﷺ Only Spoke During Prayer When He Forgot, Thinking He Had Completed It — So He Did Not Repeat It (Completely).”

Grading: **Ṣaḥīḥ Li-Dhātihi**

Note: Ṭāwūs’s Hearing From ‘Umar Is Proven In **Al-Musannaf Of ‘Abd Al-Razzāq** At Multiple Points And Also Verified In **Al-Maṭālib Al-‘Āliyah** By Ibn Ḥajar (Hadith 1447).

Report In Musannaf Ibn Abī Shaybah – Vol. 4, P. 261, Hadith 5951

Narrated By:

‘Abbād Ibn Al-‘Awwām → Ḥajjāj → A Shaykh From The Ahl Al-Ḥadīth → From Abū Bakr Al-Ṣiddīq

He Said Something Similar To ‘Umar (RA):

“If Blood Flows From The Nose, One Should Perform Wudu.”

Report In Musannaf Ibn Abī Shaybah – Vol. 4, P. 263, Hadith 5956

Narrated By:

Wakī‘ → Sufyān → Manṣūr → Ibrāhīm Al-Nakha‘ī

He Said:

“When ‘Alqamah Ibn Qays Experienced A Nosebleed During Prayer, He Took A Man’s Hand And Made Him Lead (In His Place), Then Went To Perform Wudu, And Returned To Complete What Remained Of His Prayer.”

Grading: **Ṣaḥīḥ Li-Dhātihi**

Musannaf Ibn Abī Shaybah, Vol. 4, Page 263, Ḥadīth 5957

Tāwūs Said:

“If A Man Bleeds From His Nose During Prayer, He Should Leave, Perform Wuḍū’, And Then Continue From Where He Left In His Prayer.”

Arabic:

إِذَا رَعَفَ الرَّجُلُ فِي صَلَاتِهِ انْصَرَفَ فَنَوَضًا ، ثُمَّ بَنَى عَلَى مَا بَقِيَ مِنْ صَلَاتِهِ

Sanad: Ibn ‘Uyaynah → ‘Amr Ibn Dīnār → Tāwūs

Status: *Ṣaḥīḥ Li-Dhātihi*

Musannaf Ibn Abī Shaybah, Vol. 4, Page 263, Ḥadīth 5958

‘Ubaydullāh Ibn ‘Umar Said:

“I Saw Sālim Ibn ‘Abdullāh Pray One Rak‘ah Of Fajr, Then His Nose Bled. He Left, Performed Wuḍū’, And Then Returned And Continued The Rest Of His Prayer.”

Arabic:

أَبْصَرْتُ سَالِمَ بْنِ عَبْدِ اللَّهِ صَلَّى صَلَاةَ الْعَدَاةِ رُكْعَةً ، ثُمَّ رَعَفَ فَخَرَجَ فَنَوَضًا ، ثُمَّ جَاءَ فَبَنَى عَلَى مَا بَقِيَ مِنْ صَلَاتِهِ

Sanad: Mu‘Tamir → ‘Ubaydullāh Ibn ‘Umar

Status: *Ṣaḥīḥ Li-Dhātihi*

Musannaf Ibn Abī Shaybah, Vol. 4, Page 263, Ḥadīth 5959

Sa‘īd Ibn Jubayr And Al-Sha‘Bī Both Said Regarding ḥadath And Nosebleed:

“He Should Leave And Perform Wuḍū’. If He Speaks (In The Meantime), He Should Restart The Prayer. But If He Doesn't Speak, He May Continue His Prayer.”

Arabic:

فِي الْحَدِيثِ وَالرُّعَاةِ : يَنْصَرِفُ فَيَنْوَضًا ، فَإِنْ تَكَلَّمَ اسْتَأْنَفَ الصَّلَاةَ ، وَإِنْ لَمْ يَتَكَلَّمْ بَنَى عَلَى صَلَاتِهِ

Sanad: Hushaym & Ibn Faḍayl → Ḥuṣayn → Sa‘īd Ibn Jubayr And Al-Sha‘Bī

Status: *Ṣaḥīḥ Li-Dhātihi*

Musannaf Ibn Abī Shaybah, Vol. 4, Page 263, Ḥadīth 5960

Ibrāhīm Al-Nakha‘ī Said:

“Whoever Bleeds From The Nose In Prayer, He Should Leave And Perform Wuḍū’, And Then Continue From Where He Left Off — As Long As He Did Not Speak. If He Spoke, He Should Restart The Prayer.”

Arabic:

يُنْصَرِفُ فَيَتَوَضَّأُ ، ثُمَّ يَبْنِي عَلَى مَا بَقِيَ مِنْ صَلَاتِهِ مَا لَمْ يَتَكَلَّمْ ، فَإِنْ تَكَلَّمَ اسْتَأْنَفَ الصَّلَاةَ

Sanad: Hushaym → Mughīrah → Ibrāhīm

Status: *Ṣaḥīḥ Li-Dhātihi*

Musannaf Ibn Abī Shaybah, Vol. 4, Page 264, Ḥadīth 5961

‘Aṭā’ Ibn Abī Rabāḥ Said The Same As Above:

“He Said The Same (Regarding Nosebleed During Prayer And Performing Wuḍū’).”

Arabic:

قَالَ مِثْلَ ذَلِكَ

Sanad: Hushaym → ‘Abd Al-Malik → ‘Aṭā’

Status: *Ṣaḥīḥ Li-Dhātihi*

Musannaf Ibn Abī Shaybah, Vol. 4, Page 264, Ḥadīth 5964

Makhḥūl Said:

“If One Of You Bleeds From The Nose During Prayer, He Should Leave And Perform Wuḍū’, And Return To Complete His Prayer — Provided He Did Not Speak. If He Passed Wind (ḥadath), He Should Repeat Both Wuḍū’ And Prayer.”

Arabic:

فَإِنَّهُ يُنْصَرِفُ فَيَتَوَضَّأُ ، ثُمَّ يَجِيءُ فَيَبْنِي عَلَى مَا مَضَى مَا لَمْ يَتَكَلَّمْ ... فَإِنْ أَحْدَثَ أَعَادَ الْوُضُوءَ وَأَعَادَ الصَّلَاةَ

Sanad: ‘Abd Al-A‘Lā → Burd → Makhḥūl

Status: *Ṣaḥīḥ Li-Dhātihi*

Musannaf Ibn Abī Shaybah, Vol. 4, Page 265, Ḥadīth 5968

From ‘Abdullāh Ibn Mas‘ūd:

“It Is Also Reported From Ibn Mas‘ūd That When Nosebleed Occurs, One Should Perform Wuḍū’.”

Arabic:

عَنْ عَبْدِ اللَّهِ ، بِمِثْلِهِ ، إِلَّا أَنَّهُ لَمْ يَذْكُرِ الْقِيَاءَ

Sanad: Asbāṭ Ibn Muḥammad → Sa‘īd → Abū Ma‘Shar → Ibrāhīm → ‘Abdullāh

Status: *Ṣaḥīḥ Li-Dhātihi*

Sunan Al-Dāraqutnī, Vol. 1, Page 287, Ḥadīth 582

Abū Hurayrah Reported From The Prophet ﷺ:

“A Drop Or Two Of Blood Does Not Break Wuḍū’. But If It Flows, Then It Breaks Wuḍū’.”

Arabic:

لَيْسَ فِي الْقَطْرَةِ وَلَا الْقَطْرَتَيْنِ مِنَ الدَّمِ وَضُوءٌ إِلَّا أَنْ يَكُونَ دَمًا سَائِلًا

Sanad: Includes **Muḥammad Ibn Al-Faḍl**, Who Is *Weak By Consensus*

Status: *Da'īf*

Sunan Al-Dāraqutnī, Vol. 1, Page 288, Ḥadīth 584

Abū Sa'īd Al-Khudrī Reported That The Prophet ﷺ Said:

“Whoever Has A Nosebleed During Prayer Should Return And Perform Wuḍū'.”

Arabic:

مَنْ رَعَفَ فِي صَلَاتِهِ فَلْيَرْجِعْ فَلْيَتَوَضَّأْ

Sanad: Includes **Ḥajjāj Ibn Arṭāt**, Who Is *Not Reliable As A ḥujjah*

Status: *Da'īf*

Sunan Al-Dāraqutnī, Vol. 1, Page 276, Ḥadīth 554

Anas Ibn Mālīk Reported:

“The Prophet ﷺ Had Cupping Done And Prayed Without Performing Wuḍū'.”

Arabic:

اِحْتَجَمَ فَصَلَّى وَلَمْ يَتَوَضَّأْ

Sanad: Contains **Ṣāliḥ Ibn Muqātil Ibn Ṣāliḥ**, Who Is *Weak And Majhūl (Unknown)*, And His Father Is Also *Unknown*.

Status: *Da'īf*

Abu Hurayrah (Ra) On Bleeding During Salah

Ibn Abi Shaybah (1475)

Abu Hurayrah Said:

“I Do Not See Anything Wrong If A Drop Or Two Of Blood Falls During Prayer.”

Arabic:

حَدَّثَنَا شَرِيكٌ، عَنْ عِمْرَانَ بْنِ مُسْلِمٍ، عَنْ مُجَاهِدٍ، عَنْ أَبِي هُرَيْرَةَ: أَنَّهُ لَمْ يَكُنْ يَرَى بِالْقَطْرَةِ وَالْقَطْرَتَيْنِ مِنَ الدَّمِ فِي الصَّلَاةِ بَأْسًا

Status: Ḥasan Li Dhātihi

Sā'īd Ibn Al-Musayyib And Nosebleed

Ibn Abi Shaybah, Vol. 2, P. 124, ḥadīth 1417

Yahyā Ibn Sa'īd Said:

“Sā’īd Ibn Al-Musayyib Was In Prayer. He Inserted His Finger Into His Nose And Blood Came Out. He Wiped It And Did Not Perform Wudu.”

Arabic:

أَنَّهُ أَدْخَلَ أَصَابِعَهُ فِي أَنْفِهِ فَخَرَجَ دَمٌ فَمَسَحَهُ فَصَلَّى وَلَمْ يَتَوَضَّأْ

Status: Ṣaḥīḥ Li Dhātihi

Abu Qilābah On Bleeding

Ibn Abi Shaybah, Vol. 2, P. 124, ḥadīth 1476

Abu Qilābah Said:

“He Saw No Harm In Wounds From Which Blood Comes Out.”

Arabic:

أَنَّهُ كَانَ لَا يَرَى بَأْسًا بِالشَّقَاقِ يَخْرُجُ مِنْهُ الدَّمُ

Status: Ṣaḥīḥ Li Dhātihi

Makḥūl On Nosebleed

Ibn Abi Shaybah, Vol. 2, P. 124, ḥadīth 1476 (Part 2)

Makḥūl Said:

“He Saw No Harm If Blood Came Out From A Man’s Nose, So Long As He Could Stop It With His Finger—Unless It Flowed Or Dripped.”

Arabic:

أَنَّهُ كَانَ لَا يَرَى بَأْسًا بِالدَّمِ إِذَا خَرَجَ مِنْ أَنْفِ الرَّجُلِ ... إِلَّا أَنْ يَسِيلَ أَوْ يَقْطُرَ

Status: Ṣaḥīḥ Li Dhātihi

Ibn ‘Umar And Bleeding From A Boil

Ibn Abi Shaybah, Vol. 2, P. 124, ḥadīth 1478

Bakr Said:

“I Saw Ibn ‘Umar Squeeze A Boil On His Face And Some Blood Came Out. He Wiped It Between His Fingers, Then Prayed And Did Not Perform Wudu.”

Arabic:

رَأَيْتُ ابْنَ عُمَرَ عَصَرَ بَنْرَةً فَخَرَجَ ... ثُمَّ صَلَّى وَلَمْ يَتَوَضَّأْ

Status: Ḍa‘īf — Due To *Tadlīs* And Differing Views On ‘Abd Al-Wahhāb Ibn ‘Aṭā’

Ibn ‘Umar In Musannaf ‘Abd Al-Razzāq

Musannaf ‘Abd Al-Razzāq, Vol. 1, P. 145, ḥadīth 553

“Ibn ‘Umar Squeezed A Boil Between His Eyes, Something Came Out. He Crumbled It Between His Fingers, Then Prayed Without Making Wudu.”

Arabic:

فَخَرَجَ مِنْهَا شَيْءٌ فَقَنَّهَ بَيْنَ إصْبَعَيْهِ ، ثُمَّ صَلَّى وَلَمْ يَتَوَضَّأْ

Status: Shādh (Irregular)

Tāwūs On Flowing Blood

Ibn Abi Shaybah, Vol. 2, P. 125, ḥadīth 1479

Tāwūs Said:

“He Did Not See Wudu Necessary For Flowing Blood. He Would Wash The Blood And That Was Enough For Him.”

Arabic:

... أَنَّهُ كَانَ لَا يَرَى فِي الدَّمِ السَّائِلِ وَضُوءًا

Status: Ṣaḥīḥ Li Dhātihi

Sa‘īd Ibn Jubayr On Bleeding

Ibn Abi Shaybah, Vol. 2, P. 125, ḥadīth 1480

He Was Asked:

“I Get Scratched While Drawing Water And Blood Comes Out—Should I Make Wudu?”

He Replied:

“Wash It, And Don’t Perform Wudu.”

Arabic:

قَالَ: اغْسِلْهُ وَلَا تَتَوَضَّأْ

Status: Ṣaḥīḥ Li Dhātihi

Jābir Ibn ‘Abdullāh And Nosebleed

Ibn Abi Shaybah, Vol. 2, P. 125, ḥadīth 1482

“He Inserted His Finger Into His Nose And It Came Out Bloody. He Wiped It On The Ground Or On Dust, Then Prayed.”

Arabic:

فَمَسَحَهُ بِالْأَرْضِ أَوْ بِالتُّرَابِ ، ثُمَّ صَلَّى

Status: Ṣaḥīḥ Li Dhātihi

Abū Al-Sawwār And Bleeding From A Pimple

Ibn Abi Shaybah

Khalid Ibn Dīnār Said:

“I Saw Abū Al-Sawwār Squeeze A Pimple, Then He Prayed And Did Not Make Wudu.”

Arabic:

رَأَيْتُ أَبَا سَوَّارٍ الْعَدَوِيَّ عَصَرَ بَثْرَةً ، ثُمَّ صَلَّى وَلَمْ يَتَوَضَّأْ

Status: Ṣaḥīḥ Li Dhātihi

Narration From Abu Dawood (198) — Hadith Of Jabir Ibn ‘Abdullah

The Narration Is Long, So Its Meaning Is Summarized As Follows:

Jabir Ibn ‘Abdullah Narrated That The Messenger Of Allah ﷺ Was On A Military Expedition. During The Night, The Prophet ﷺ Appointed Two Companions To Stand Guard—One From The *Muhājirūn* And One From The *Anṣār*. During Their Turn, The Muhājir Companion Slept While The Anṣārī Companion Stood In Prayer. A Man (From The Enemy) Came And Saw The Silhouette Of The Praying Anṣārī Companion And Realized He Was Guarding The Group. He Shot Him With An Arrow That Struck Him. The Companion Removed It And Continued Praying. The Man Shot A Second And Then A Third Arrow—Each One Hit Its Mark. Yet The Anṣārī Companion Continued Praying, Bowing And Prostrating, Until The Muhājir Companion Awoke And Realized What Was Happening. When He Saw The Blood Flowing From The Anṣārī Companion, He Said, **“Subḥān Allāh! Why Didn’t You Wake Me Up When You Were First Struck?”** He Replied, **“I Was Reciting A Sūrah, And I Disliked Cutting It Off.”**

Arabic Isnād:

...حَدَّثَنَا أَبُو تَوْبَةَ الرَّبِيعُ بْنُ نَافِعٍ، قَالَ: ثَنَا ابْنُ الْمُبَارَكِ، عَنْ مُحَمَّدِ بْنِ إِسْحَاقَ، قَالَ: حَدَّثَنِي صَدَقَةُ بْنُ يَسَارٍ، عَنْ عَقِيلِ بْنِ جَابِرٍ، عَنْ جَابِرٍ

Isnād Status: Da‘īf (Weak)

Reason:

- In This Chain Is ‘**Aqīl Ibn Jābir**, Whose Hearing From His Father **Jābir Ibn ‘Abdullāh** Is **Not Established**.
- **Imām Al-Dhahabī** Said: “He Is Unknown (Majhool) In Narrating From His Father.” — *[Al-Mughnī Fī Al-Du‘afā’ , Vol. 2, P. 438, No. 4160]*
- **Ibn Ḥajar** Listed Him In The 4th *ṭabaqah*, Meaning He Is From The *Tābi‘ Al-Tābi‘īn*, Not Directly From The **Tābi‘īn**, Indicating A Gap Between Him And His Supposed Source.
- Also In The Chain Is **Muḥammad Ibn Ishāq Ibn Yasār**, Who Is *Disputed* (Muḳtaliḥ Fīh).

Narration From Sunan Al-Kubrā Al-Bayhaqī (Vol. 1, P. 141, ḥadīth No. 678)

Mu‘Ādh Ibn Jabal Reported:

"Wudu Is Not Broken By Nosebleed, Vomiting, Touching The Private Part, Or By Contact With Something That Was Heated By Fire."

Someone Objected, Saying: “People Say That The Messenger Of Allah ﷺ Said: ‘Perform Wudu From Whatever Was Touched By Fire.’”

Mu‘Ādh Replied:

"There Are People Who Heard But Didn't Understand. We Used To Call Rinsing The Hands And Mouth 'Wudu', But It Was Not Obligatory. The Messenger Of Allah ﷺ Only Commanded The Believers To Wash Their Hands."

Arabic Isnād:

...أَخْبَرَنَا أَبُو بَكْرِ بْنُ الْحَارِثِ الْفَقِيه

Isnād Status: Ḍa‘īf (Weak)

Reasons:

- Contains **Ishāq Ibn ‘Abdullāh Ibn Abī Al-Mujālid — Unknown (Majhool)**.
- Contains **Muṭarrif Ibn Māzin — Weak (ḍa‘īf) By Consensus Of Hadith Critics**.

Summary Of The Issue

Ruling on Impure Substances Leaving the Body and Its Effect on Wuḍū’

Brief Explanation:

The central issue discussed is whether the exit of an impure (najis) substance from the body — especially from places other than the private parts — breaks wuḍū’ (ritual ablution). This has implications for the validity of prayer and is a matter of significant juristic debate in Islamic law. The issue is broken into matters of **ijmā’ (consensus)** and **khilāf (disagreement)**.

Evidence from the Text:

- **Qur’an:** Surah Al-Nisā’ (4:43): “Or when you have come from relieving yourselves...”
- **Hadith:** “Allah does not accept the prayer of one who has broken his wuḍū’ until he performs wuḍū’ again.” (Bukhārī 135, Muslim 225)
- **Consensus Reports:** Bughyat al-Muqtasid, Ibn al-Mundhir in *al-Ijmā’*, Ibn Hazm in *Marātib al-Ijmā’*

Sub-Issue 1: Consensus on What Breaks Wuḍū’

Brief Explanation:

There is unanimous agreement among scholars that certain things invalidate wuḍū', such as urination, defecation, wind (flatulence), mazhī (pre-seminal fluid), and wadhī (post-urination fluid).

Evidence from the Text:

- Reports from *Bughyat al-Muqtasid*, Ibn al-Mundhir, and Ibn Hazm.
- Qur'anic reference (4:43).
- Prophetic Hadith on invalidation of prayer after breaking wuḍū'.

Madhhab Views:

All schools agree on this.

Sub-Issue 2: Does Any Impure Substance Leaving the Body Break Wuḍū'?

Brief Explanation:

This is the core point of juristic disagreement. The scholars differ on whether wuḍū' is invalidated by any impure substance (like blood, pus, vomit) leaving the body from areas other than the private parts.

Hanafi:

- **View:** Wuḍū' is broken if *any impure substance exits the body and flows*.
- **Sources Cited:** Al-Durr al-Mukhtār, Ḥāshiyat Ibn 'Ābidīn.
- **Support:** Imām Abū Ḥanīfah, Imām Muḥammad, Imām Sarakhsī, Imām Kāsānī, Badr al-Dīn 'Aynī, etc.

Maliki:

- **View:** Wuḍū' is *not* invalidated unless the impurity exits from the private parts.
- **Support:** Imām Mālik, Ibn Rushd, and others.
- **Hadith Dismissed:** They do not accept bleeding or vomiting as nullifiers based on their usūl.

Shafi'i:

- **View:** Same as Mālikīs — wuḍū' is only broken by what exits from the private parts.
- **Support:** Al-Shāfi'ī, Al-Nawawī, Al-Rāfi'ī.

Hanbali:

- **View:** If *significant* impurity exits the body (e.g. a large amount of blood or vomit), wuḍū' breaks.

- **Evidence:** Ḥadīth of Fāṭimah (blood from a vein), hadiths from Ibn ‘Umar and other ṣaḥābah.
- **Support:** Imām Aḥmad, Ibn Qudāmah.

Sub-Issue 3: Specific Impurities That Trigger Wuḍū’

Substances:

- Blood
- Nosebleed
- Vomiting (excluding phlegm per Abū Ḥanīfah)
- Cupping (ḥijāmah)
- Pus
- Worms from wounds

Evidence from the Text:

- Ḥadīths of ‘Alī, Abū al-Dardā’, ‘Ā’ishah, Ibn ‘Umar, and others (graded variously ḥasan or ṣaḥīḥ).
- Examples of the ṣaḥābah acting on these rulings (e.g. Ibn ‘Umar, Ṭāwūs, Sa‘īd ibn Jubayr).
- Numerous reports from *Musannaf Ibn Abī Shaybah* and *‘Abd al-Razzāq*.

Sub-Issue 4: Distinction Between Flowing vs. Small Amount of Impurity

Brief Explanation:

Some scholars make a distinction between a small, non-flowing amount (which does not break wuḍū’) and a large or flowing amount (which does).

Supporting Evidence:

- Statement of Ibn ‘Abbās: "If the blood is excessive, then repeat the prayer..."
- Abū Hurayrah: "A drop or two of blood does not invalidate wuḍū’."
- Sunan al-Dāraqutnī: "...unless it flows."

Sub-Issue 5: Practice of the Companions

Brief Explanation:

Numerous ṣaḥābah are recorded either *performing wuḍū’* after bleeding or vomiting, or *not performing* it — indicating divergent practices.

Examples:

- ‘Umar, ‘Alī, Ibn ‘Abbās, Abū al-Dardā’ – performed wuḍū’.
- Abū Hurayrah, Sā‘īd ibn al-Musayyib – didn’t perform wuḍū’ for small bleeding.

Textual References:

- *Al-Muwaṭṭaʿ* of Mālik
- *Musannaf* Ibn Abī Shaybah
- *Musannaf* ʿAbd al-Razzāq

Sub-Issue 6: Status of Hadiths Cited for This Ruling

Brief Explanation:

The text analyzes and grades many ḥadīths used in this debate.

Summary of Authentication:

- **Strong (ṣaḥīḥ):** Hadiths of ʿAlī, Abū al-Dardāʾ, Ibn ʿUmar.
- **Ḥasan:** ʿĀʾishah, Ibn ʿAbbās.
- **Ḍaʿīf:** Anas (ḥijāmah), Muʿādh (fire-heated food).
- **Corroborated Mutābiʿāt:** Mentioned for hadiths from ʿĀʾishah, etc.

Final Summary and Verdict in Text:

The stronger and more correct opinion — based on textual citations and majority of Companions and early scholars — is:

If any impure substance like blood, pus, vomit, etc., exits the body and flows, it breaks wuḍūʾ.

This is supported by the reported views of:

- Major Companions: ʿUmar, ʿAlī, ʿĀʾishah, Ibn ʿAbbās, Ibn Masʿūd
- Tābiʿīn and early imams: Ṭāwūs, Qatādah, Abū Ḥanīfah, Aḥmad ibn Ḥanbal, etc.

Conclusion :

There Are Narrations Both For And Against The Idea That Bleeding Or Vomiting Nullifies Wudu. However, The **Majority Of The Companions, Tābiʿīn, Tabāʿ Tābiʿīn**, And Early Scholars (*Aʾimmah Al-Dīn, Muḥaddithīn, Fuqahāʾ, Salaf Al-Ṣāliḥīn*) Held The Opinion That:

If Anything Impure (Najāsah) Exits The Body, Such As Blood, Pus, Or Excessive Vomit, And It Flows, Then It Breaks Wudu.

This Is The View Attributed To:

- ‘Umar Ibn Al-Khaṭṭāb
- ‘Alī Ibn Abī Ṭālib
- ‘Ā’Ishah (Umm Al-Mu’Minīn)
- ‘Abdullāh Ibn ‘Abbās
- Abū Al-Dardā’, Thawbān, ‘Abdullāh Ibn Mas‘ūd, ‘Abdullāh Ibn ‘Umar
- ‘Alqamah Al-Nakha‘ī, Ṭawūs, ‘Ubaydullāh Ibn ‘Umar, Al-Sha‘Bī, Makhḥūl, Sa‘īd Ibn Jubayr
- Imām Abū Ḥanīfah, Imām Muḥammad, Imām Aḥmad Ibn Ḥanbal, Sufyān Al-Thawrī, Ibn Qudāmah
- Mujāhid, Ibrāhīm Al-Nakha‘ī, ‘Aṭā’ Ibn Abī Rabāḥ, Qatādah, Al-Ḥasan Al-Baṣrī, Muḥammad Ibn Sīrīn
- ‘Urwah Ibn Al-Zubayr, Hishām Ibn ‘Urwah, ‘Āmir Al-Sha‘Bī, Al-Ḥakam Ibn ‘Utaybah, ‘Abdullāh Ibn Al-Mubārak, And Others.

The **Stronger And More Correct Opinion** Is That If Any Impure Substance (Blood, Pus, Vomit, Etc.) Exits The Body And *Flows*, Then Wudu Is Broken. This Is The **Opinion Of The Most Of The Scholars**, And It Aligns With What Has Been Reported From Many Major Companions And Early Scholars.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 13 – The Ruling Of Wudu Breaking Due To Sleep

The Core Difference Of Opinion In This Issue Is Whether Wudu (Ablution) Breaks Due To Sleep Or Not.

This Issue Has Been A Point Of Disagreement Among The Tābi‘īn, Among The Early Generations (Salaf), Among The Four Imams (A’Immah Arba‘Ah), And Among Later Scholars (Khalaf) As Well.

There Are Fundamentally Three Main Opinions On This Matter. Let's Understand Each:

First Opinion:

Sleep Invalidates Wudu Absolutely, Without Any Condition.

Their Evidence Is The ḥadīth Of Ṣafwān, Which We Previously Mentioned Under The Issue Of Wiping Over The Leather Socks (Khuffayn):

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (1/458):

“The First View: Sleep Invalidates (Wudu) Absolutely—Whether Slight Or Deep, And In Whatever Posture It Occurs—Due To The Generality Of The ḥadīth Of Ṣafwān (Previously Cited). Because Sleep Is A Minor Form Of Ritual Impurity (ḥadath), And Like Other Impurities Such As Urination, No Distinction Is Made Between Small And Large Amounts.”

This View Is Also Mentioned In Another Place In The Same Source:

“Some Held That Sleep Is Not Itself An Impurity (ḥadath), And Thus Does Not Necessitate Wudu Unless One Is Certain That A ḥadath Has Occurred—This According To The View That Does Not Consider Doubt As Grounds For Action. According To Those Who Do Consider Doubt, Then Wudu Is Only Required If There's A Possibility. Some Of The Salaf Used To Appoint Someone To Observe Them While They Slept, To Determine Whether Any Impurity Had Occurred.”

Second Opinion:

Sleep Does Not Break Wudu At All, Unless The Person Is Certain That Something Has Exited Their Body During Sleep.

It Is Not The Sleep Itself That Breaks Wudu, Nor Does Doubt Suffice—It Must Be Based On Certainty.

They Cite As Evidence The ḥadīth Of **Anas Ibn Mālik**, Who Said:

“The Companions Of The Messenger Of Allah ﷺ Would Sleep And Then Get Up To Pray Without Performing Wudu.”

Narrated By Yahyā Ibn Ḥabīb Al-Ḥārithī → Khālīd Ibn Al-Ḥārith → Shu‘Bah → Qatādah → Anas. He (Qatādah) Asked: “Did You Hear This From Anas?” He Said: “Yes, By Allah.”

Bughyat Al-Muqtasid (1/459):

“The Second View: Sleep Does Not Invalidate Wudu At All. This Is Based On The ḥadīth Of Anas (May Allah Be Pleased With Him), That The Companions Used To Wait For ‘Ishā’ During The Time Of The Prophet ﷺ Until Their Heads Would Nod Off (From Drowsiness), Then They Would Pray Without Renewing Their Wudu.”

Third Opinion:

Distinction Is Made Between Different Types Of Sleep.

Sleep Is Categorized Into Four Basic Types:

- **Long Sleep**
- **Short Sleep**
- **Light Sleep**
- **Deep Sleep**

The Four Imams (A’Immah Arba‘ Ah) And Their Followers Generally Fall Within This Category Of Nuanced Opinions. Further Disagreements Arise Within This Category, And This Is The Core Subject We Aim To Explore.

The Fundamental Disagreement Is About The **Manner Of Sleeping**—Whether It Can Potentially Lead To The Exit Of Wind (ḥadath). The Difference Of Opinion Arises From This Point. Below Are The Views:

1. View Of Mālik And The Majority Of Mālikīs:

If Someone Sleeps **Lying Down On Their Side**, Turning Toward Their Hands (Like In Prostration), Then Wudu Becomes Obligatory—Whether The Sleep Is Long Or Short.

2. View Of Al-Shāfi‘ī And The Majority Of Shāfi‘īs:

Wudu Becomes Obligatory After Any Form Of Sleep, Except If The Person Sleeps **Sitting Upright And Remains Alert (Only Nodding Off)**.

3. View Of Abū Ḥanīfah And The Majority Of Ḥanafīs:

Sleep Does Not Break Wudu At All, Except If Someone Lies Down On Their Side, Turning Toward Their Hands.

4. View Of The *Ḥanbalīs*:

If A Person Sleeps **Lying Down On Their Side**, Or **Leans Against Something For Support**, Then Their Wudu Breaks.

Bughyat Al-Muqtasid (1/459):

“Since Some Sleeping Positions Are More Likely To Result In Deep Sleep And The Release Of Wind, The Jurists Differed. Mālik Said: Whoever Sleeps Lying Down Or In Prostration Must Perform Wudu, Whether The Sleep Was Short Or Long. Whoever Sleeps While Sitting, Then No Wudu Is Required—Unless The Sleep Was Prolonged. In His Madhhab, There Is Disagreement Regarding One Who Sleeps Standing: Some Say He Is Like One Bowing (Rāki’), Others Say Like One Prostrating (Sājid). Al-Shāfi’ī Said: Every Sleeper Must Perform Wudu, Regardless Of How They Slept—Except One Who Sleeps While Sitting. Abū Ḥanīfah And His Companions Said Likewise.”

Mawāhib Al-Jalīl By Al-Ḥaṭṭāb (1/294):

“Whoever Sleeps Sitting Or While Riding (Like On A Mount), Then No Wudu Is Required—Even If The Sleep Is Long And Deep—Unless They Fall Into Slumber Such That They Lose Awareness. Then Wudu Is Required.”

Al-Umm By Al-Shāfi’ī (1/26):

He Quotes The Verse:

“When You Stand For Prayer, Wash Your Faces And Hands...” (Al-Mā'idah: 6)

And Explains: “Its Apparent Meaning Implies Wudu Is Needed Upon Standing For Prayer. Some Claimed This Verse Was Revealed Concerning Waking From Sleep—And I Consider That Likely, Because The Sunnah Confirms It. The Prophet ﷺ Said: ‘When One Of You Wakes Up From Sleep, He Must Not Put His Hand In A Container Until He Washes It Three Times, For He Does Not Know Where It Spent The Night.’”

Al-Shāfi’ī Concluded: *“Whoever Wakes Up From Lying Down Must Perform Wudu, Because Sleep Is A Loss Of Awareness. If Someone Loses Their Mind Due To Insanity Or Illness—Even If Not Lying Down—They Must Perform Wudu, For Their Case Is More Severe. But One Who Sleeps While Sitting, I Recommend They Perform Wudu, Though I Do Not Find A Clear Obligation.”*

Bughyat Al-Muqtasid (1/460):

Al-Mabsūṭ By Al-Sarakhsī (1/78):

“Sleep Does Not Break Wudu As Long As The Person Is Standing, Bowing, Prostrating, Or Sitting. But It Does Break Wudu If The Person Is Lying Down, Leaning, Or Sitting On One Buttock. The Lying Position Nullifies Wudu Due To The ḥadīth, ‘The Eyes Are The String That Tie The Anus. When The Eyes Sleep, The String Is Loosened.’”

Abū Mūsā Al-Ash‘Arī (Ra) Would Appoint Someone To Monitor Him While Sleeping. If He Was Informed That Something Had Exited, He Would Repeat His Wudu. Leaning Is Like Lying Down Because The Backside Is Not Firmly Touching The Ground.

Mālik (Raḥimahullāh) Said: *If One Sleeps While Sitting For A Long Time, Wudu Is Broken.*

Evidence Used In This Debate:

- **Ḥadīth Of Ḥudhayfah (Ra):**

“I Fell Asleep Sitting In The Masjid Until My Chin Dropped Onto My Chest. I Felt The Cool Touch Of A Hand On My Back—It Was The Messenger Of Allah ﷺ. I Asked, ‘Do I Need To Perform Wudu Because Of This?’ He Replied: ‘No, Not Until You Lie Down.’”

- This Indicates That As Long As The Sitting Posture Is Maintained, Wudu Remains Valid, Even With Prolonged Sleep—Because The Exit Point Is Pressed And Unlikely To Release Anything. If Lying Down, However, This Is Not The Case.
- **Ḥadīth Of Ṣafwān Ibn ‘Assāl Al-Murādī:**

“The Messenger Of Allah ﷺ Would Instruct Us When Traveling Not To Remove Our Leather Socks For Three Days And Nights—Except In The Case Of Janābah (Major Impurity), But Not For Urination, Defecation, Or Sleep.”

This ḥadīth Is Used To Show That **Sleep Is Among The Nullifiers** Of Wudu. However, Ḥanafīs Restrict The Implication Of This ḥadīth, Excluding Sitting Sleepers From This General Ruling By Consensus (Ijmā‘), And Maintaining The Default Analogy (Qiyās) For Others.

Narration From Ibn ‘Abbās In Ṣaḥīḥ Al-Bukhārī (Ḥadīth 117 And 138)

Narrated Ibn ‘Abbās (May Allah Be Pleased With Him):

I Spent The Night In The House Of My Aunt Maymūnah Bint Al-Ḥārith, The Wife Of The Prophet ﷺ. The Prophet ﷺ Was With Her On That Night. After Performing The ‘Ishā’ Prayer, He Returned To His House And Prayed Four Rak‘Ahs, Then He Went To Sleep. Later, He Got Up And Said:

“Has The Young Boy Gone To Sleep?”—Or Something Similar.

I Stood On His Left Side, But He Moved Me To His Right. He Then Prayed Five Rak‘Ahs, Followed By Two Rak‘Ahs. Then He Lay Down And Slept Until I Heard The Sound Of His Breathing (I.E., Snoring). After That, He Went Out To Pray (The Fajr Prayer).

— (Ṣaḥīḥ Al-Bukhārī, Ḥadīth 117)

In Another Narration:

I And The Messenger Of Allah ﷺ Prayed During The Night, Then He Lay Down And Slept, And I Heard The Sound Of His Breathing. Then Later The Mu‘Adhdhin Came And Informed Him That It Was Time For Prayer. So He Got Up And Went For Prayer **Without Performing Wudu Again.**

— (Ṣaḥīḥ Al-Bukhārī, Ḥadīth 138)

Implication:

These ḥadīths Indicate That The Prophet ﷺ Sometimes **Slept After Wudu** (As Evidenced By The Snoring), Yet **Did Not Repeat His Wudu Before Praying**, Suggesting That **Sleep Alone Does Not Necessarily Nullify Wudu**. Based On This, **Some Scholars** Held The View That Sleep, By Itself, **Does Not Invalidate Ablution** Unless Accompanied By The Release Of Something (E.G., Wind).

Takhrīj (Hadith Sources):

These Narrations Have Been Reported By:

- **Ṣaḥīḥ Al-Bukhārī** In Multiple Places:
 - 117 (Book Of Knowledge, Chapter: Discussing Knowledge At Night)
 - 138, 183 (Book Of Wudu')
 - 697, 698, 699, 726, 728 (Book Of Adhān)
 - 859 (Book Of Adhān – Children's Wudu' And Attendance In Prayers)
 - 992 (Book Of Witr)
 - 1198 (Using Hands For Support In Prayer)
 - 4569–4572 (Tafsīr Of Verses From Āl 'Imrān)
 - 5919 (Book Of Dress – Braid Style)
 - 6215, 6316 (Book Of Manners And Supplications)
 - 7452 (Book Of Tawḥīd)
- **Ṣaḥīḥ Muslim:**
 - 256 (Book Of Purification – Siwāk)
 - 304 (Book Of Ḥayḍ – Washing After Sleep)
 - 763 (Book Of Night Prayer And Travel)
- **Al-Muwatta' Of Mālik:** 396/120 (Book Of Prayer – Witr Of The Prophet ﷺ)
- **Ibn Al-Jārūd** In *Al-Muntaqā*: 10–11 (Chapter On Wudu' After Sleep)
- **Ṣaḥīḥ Ibn Khuzaymah:**
 - 127, 448–449, 884, 1093–1094, 1103, 1119, 1121
 - 1524, 1533–1534 (Book Of Prayer – Related To Imam And Mu' Adhdhin)
- **Ṣaḥīḥ Ibn Hibbān:**
 - 1445, 2196, 2579, 2592, 2626–2627, And Others.

Similarly, There Is Also A Hadith From 'Ā'ishah (RA) In Sunan Ibn Mājah (474):

Arabic Text

حَدَّثَنَا أَبُو بَكْرِ بْنُ أَبِي شَيْبَةَ، وَعَلِيُّ بْنُ مُحَمَّدٍ، قَالَا: حَدَّثَنَا وَكِيعٌ، حَدَّثَنَا الْأَعْمَشُ، عَنْ إِبْرَاهِيمَ، عَنِ الْأَسْوَدِ، عَنْ عَائِشَةَ، قَالَتْ: كَانَ رَسُولُ اللَّهِ ﷺ يَنَامُ حَتَّى يَنْفُخَ، ثُمَّ يَقُومُ فَيُصَلِّي وَلَا يَتَوَضَّأُ.

Translation:

‘Ā’ishah (RA) Said: “The Messenger Of Allah ﷺ Would Sleep Until He Snored, Then He Would Get Up And Pray Without Performing Wudū’.”

(This ḥadīth Is Graded Ḥasan Li-Dhātihi – Sound In And Of Itself)

Takhrīj Of The Ḥadīth:

- Reported By **Ibn Mājah** In *Sunan* (1/300), ḥadīth No. **474**, In *Kitāb Al-Ṭahārah, Bāb Al-Wuḍū’ Min Al-Nawm* (Chapter: Ablution Due To Sleep)
- Aḥmad** In *Musnad* (11/6038), ḥadīth No. **25676**, In *Musnad ‘Ā’ishah (RA)*
- Ibn Abī Shaybah** In *Al-Muṣannaḥ* (2/113), ḥadīth No. **1420**, In *Kitāb Al-Ṭahārah, Chapter: One Who Said There Is No Wuḍū’ On One Who Slept While Prostrating Or Sitting*

And A Similar ḥadīth Exists From The Following Companions As Well:

- ‘Abdullāh Ibn Mas‘ūd
- Abū Umāmah Al-Bāhilī
- ‘Abdullāh Ibn ‘Amr
- ‘Umar
- ‘Abdullāh Ibn ‘Umar
- Zayd Ibn Thābit
- Abū Hurayrah
- Jābir Ibn ‘Abdillāh

Likewise, There Is A ḥadīth In Jāmi‘ Al-Tirmidhī (ḥadīth No. 96) Narrated From Ṣafwān Ibn ‘Assāl (RA):

Arabic Text:

حَدَّثَنَا هَنَادٌ، قَالَ: حَدَّثَنَا أَبُو الْأَحْوَصِ، عَنْ عَاصِمِ بْنِ أَبِي النَّجُودِ، عَنْ زُرَّ بْنِ حُبَيْشٍ، عَنْ صَفْوَانَ بْنِ عَسَّالٍ، قَالَ: كَانَ رَسُولُ اللَّهِ ﷺ يَأْمُرُنَا إِذَا كُنَّا سَفَرًا أَنْ لَا نَنْزِعَ خِفَافَنَا ثَلَاثَةَ أَيَّامٍ وَلَيَالِيَهُنَّ إِلَّا مِنْ جَنَابَةٍ، وَلَكِنْ مِنْ غَائِطٍ وَبَوْلٍ وَنَوْمٍ.

Translation:

Ṣafwān Ibn ‘Assāl (RA) Said: “When We Were On A Journey, The Messenger Of Allah ﷺ Used To Instruct Us Not To Remove Our Leather Socks (Khuff) For Three Days And Nights — Except Due To Janābah (Major Impurity). But (We Could Wipe Over Them) Due To Defecation, Urination, And Sleep.”

(This ḥadīth Is Graded Ḥasan Li-Dhātihi – Sound In And Of Itself)

And This Narration Is Authentic According To All Scholars.

Takhrīj Of The Ḥadīth:

The ḥadīth Has Been Reported In:

- **Ibn Al-Jārūd** – *Al-Muntaqā* (1/10), ḥadīth No. **4**, In *Bāb Al-Wuḍū’ Min Al-Ghā’iṭ Wa Al-Bawl Wa Al-Nawm*
- **Ibn Khuzaymah** – *Ṣaḥīḥ* (1/135), ḥadīth No. **17**, And Elsewhere In His Work
- **Ibn Hibbān** – *Ṣaḥīḥ* (Multiple Locations Including 1/285, 2/322, 3/381, 4/147, Etc.)
- **Al-Ḍiyā’ Al-Maqdisī** – *Al-Aḥādīth Al-Mukhtārah* (Vol. 8, Numerous ḥadīth Nos. From 21 To 35)
- **Al-Ḥākim** – *Al-Mustadrak* (1/100, ḥadīth Nos. 339 To 342, And 4/197 No. 7520)
- **Al-Nasā’ī** – *Al-Mujtabā* (1/50, 1/56), And In *Al-Kubrā* (1/124, 1/130, 8/422, 10/97)
- **Al-Tirmidhī** – *Jāmi’* (1/140, ḥadīth No. **96**, And Other Places Like 4/195, 5/505)
- **Al-Dārimī** – *Sunan* (1/370), ḥadīth No. **369**
- **Ibn Mājah** – *Sunan* (1/153, ḥadīth No. **226**; And 1/302, ḥadīth No. **478**)
- **Sa’īd Ibn Manṣūr, Al-Bayhaqī, Al-Dāraqutnī, Aḥmad, Al-Ṭayālīsī, Al-Ḥumaydī, ‘Abd Al-Razzāq, And Many Others.**

From This, It Becomes Evident That *Wudu* (Ablution) Is Nullified By Sleep, Because In A Hadith, The Messenger Of Allah ﷺ Instructed The Companions Not To Remove Their Footwear For Three Days. This Instruction Was Given Because, Once The Footwear Is Removed, The *Mash* (Wiping) Ends—Except In Three Cases (Which Implies That *Wudu* Breaks In These Three Situations): Urination, Defecation, And Sleep.

Thus, This Hadith Apparently Gives A General Understanding That Sleep Itself Nullifies *Wudu*. For This Reason, Some Scholars Have Said That *Wudu* Breaks By Sleep In An Unrestricted Manner, Based On The General Wording Of This Hadith.

Now, Seemingly There Appears To Be A Contradiction Between This And Other Narrations. So, We Reconcile It With The Second Hadith:

Hadith Of Ibn Abbas – Tirmidhi 77

Arabic:

حدثنا إسماعيل بن موسى وهناد ، ومحمد بن عبيد المحاربي ... عن ابن عباس أنه رأى النبي صلى الله عليه وسلم نام وهو ساجد حتى غط أو نفخ ، ثم قام يصلي ، فقلت: يا رسول الله ، إنك قد نمت ، قال: إن الوضوء لا يجب إلا على من نام مضطجعا؛ فإنه إذا اضطجع استرخت مفاصله.

Translation:

Ibn Abbas Said: *I Saw The Prophet ﷺ Sleeping In The State Of Prostration Until I Could Hear The Sound Of His Breath Or Snore. Then He Stood Up And Continued His Prayer. I Asked: “O Messenger Of Allah, You Slept?” He Replied: “Wudu Is Only Required For One Who Sleeps While Lying Down, For When One Lies Down, The Joints Relax.”*

Grading: Weak (*Da'īf*).

In This Chain Is Abū Khālīd Al-Dalānī Who Is A *Mudallis* (Commits Tadrīs) And Is A Disputed Narrator.

Takhrij (Hadith Sources):

This Hadith Has Been Narrated By:

- Abū Dāwūd In *Sunan* (1/80, Hadith 202),
- Al-Tirmidhi In *Jāmi'* (1/118, Hadith 77),
- Al-Bayhaqi In *Sunan Al-Kubrā* (1/120–121, Hadiths 600, 602, 603),
- Al-Dāraquṭnī In *Sunan* (1/292, Hadith 596),
- Aḥmad In *Musnad* (2/569, Hadith 2352),
- Abū Ya' Lā In *Musnad* (4/369, 477; Hadiths 2487, 2610),
- 'Abd Ibn Ḥumayd In *Al-Muntaḥab Min Musnadih* (1/220, Hadith 659),
- Ibn Abī Shaybah In *Muṣannaf* (2/110–111, Hadiths 1407, 1409),
- Al-Ṭaḥāwī In *Sharḥ Mushkil Al-Āthār* (9/49, Hadith 3429).

Another Chain – Ibn Abī Shaybah (Hadith 1409):

Arabic:

حَدَّثَنَا وَكِيعٌ ، عَنْ مُعِيْرَةَ بْنِ زِيَادٍ ، عَنْ عَطَاءٍ عَنِ ابْنِ عَبَّاسٍ قَالَ : مَنْ نَامَ وَهُوَ جَالِسٌ فَلَا وُضُوءَ عَلَيْهِ ، فَإِنْ اضْطَجَعَ فَعَلَيْهِ الْوُضُوءُ

Translation:

Ibn Abbas Said: *Whoever Sleeps While Sitting, Then No Wudu Is Upon Him. But If He Lies Down, Then Wudu Is Required.*

Grading: *Musnad* (Connected Chain).

All Narrators Are Reliable (*Thiqa*) Except For Mughīrah Ibn Ziyād, Who Is A Disputed Narrator.

From Sharḥ Ma'Āni Al-Āthār (Vol. 9, P. 68, Hadith 3936), From Ibn 'Umar:

Arabic:

أَنَّ ابْنَ عُمَرَ كَانَ إِذَا نَامَ قَاعِدًا لَمْ يَتَوَضَّأْ ، وَإِذَا نَامَ مُضْطَجِعًا تَوَضَّأَ...

Translation:

Whenever Ibn 'Umar Slept While Sitting, He Would Not Perform *Wudu*, But If He Lay Down, He Would Perform *Wudu*.

Grading: *Ḥasan Li-Dhātihi* (Sound In Itself)

Report From ‘Umar Ibn Al-Khaṭṭāb – ‘Abd Al-Razzāq:

Arabic:

عَنْ عُمَرَ بْنِ الْخَطَّابِ قَالَ : مَنْ نَامَ مُضْطَجِعًا فَلَيْتَوَضَّأَ

Translation:

‘Umar Said: *Whoever Sleeps While Lying Down Must Perform Wudu.*

Grading: *Ḥasan Li-Dhātihi*

Zayd Ibn Aslam's Narration From ‘Umar Is Established And Confirmed.

Supporting Sanad In *Sharḥ Mushkil Al-Āthār* (Vol. 12, P. 119, Hadith 5521)

A Full Chain Is Mentioned Where Zayd Ibn Aslam Went To ‘Umar With A Purse Of 1000 Dirhams, And A Narration Follows That Includes This Ruling.

Other Reports And Statements From Tābi‘īn:

- ‘Aṭā’ Ibn Abī Rabāḥ (‘Abd Al-Razzāq 575): *Whether One Sleeps While Lying Or Sitting, Wudu Is Required.*
Grading: *Ḥasan Li-Dhātihi*
- Al-Ḥasan Al-Baṣrī (‘Abd Al-Razzāq 458): *Whether One Sleeps While Standing Or Sitting, Wudu Is Required.*
Grading: *Ḥasan*
- Sufyān Al-Thawrī (‘Abd Al-Razzāq 480): *Sleep While Sitting Does Not Nullify Wudu.*
Grading: *Ḥasan*
- Ibrāhīm Al-Nakha‘ī: *Wudu Is Not Broken Except By Sleep While Lying Down.*
Grading: *Ḥasan*
- ‘Ikrimah: *If Someone Sleeps While Sitting, There Is No Harm; But Sleeping While Lying Down Is Disliked.*
Grading: *Ḥasan*
- Al-Ḥakam And Ḥammād: *Wudu Is Not Nullified Except By Sleep While Lying Down.*
Grading: *Ḥasan*

Summary Of The Issue

The Ruling Of Wudu Breaking Due To Sleep

Brief Explanation:

The core issue is whether sleep invalidates wudu (ablution), and under what conditions. There are three main positions: (1) sleep always breaks wudu, (2) sleep never breaks wudu unless impurity is certain, and (3) the effect of sleep on wudu depends on posture and depth of sleep. This issue is significant for daily prayer validity and ritual purity.

Evidence from the Text:

- Hadith of Safwan: Sleep mentioned alongside urination and defecation as nullifiers.
- Hadith of Anas: Companions slept while waiting for 'Isha and did not renew wudu.
- Hadith of Hudhayfah: Sleep in sitting posture does not require wudu.
- Ibn Abbas: Wudu required only when lying down.
- Aisha (RA): The Prophet ﷺ would snore and then pray without repeating wudu.
- Multiple takhrij sources including Bukhari, Muslim, Ibn Majah, Tirmidhi, etc.

Madhhab (School of Thought) Views:

Hanafi:

- Wudu breaks if a person lies down. Sleep while sitting, standing, or in sujud does not break wudu unless deep and loss of control is evident.
- Based on qiyas and hadith of Safwan interpreted with exceptions.

Maliki:

- Wudu breaks when sleeping lying down or in sujud, regardless of duration. Sleep while sitting doesn't break wudu unless prolonged.
- Some disagreement on standing position.

Shafi'i:

- Sleep always breaks wudu unless a person is sitting upright and lightly dozing. Sitting sleep is treated as an exception.
- Al-Shafi'i refers to Quran (5:6) and Hadith regarding awareness.

Hanbali:

- If a person leans on something or lies down, wudu breaks. Sitting or standing sleep without leaning does not.

Sub-Issue 1: Sitting Sleep

Explanation: Sitting without leaning or lying down does not break wudu, according to majority views. Based on Hudhayfah's hadith and 'Umar's action.

Sub-Issue 2: Lying Down

Explanation: Lying down causes relaxation of joints and loss of control, thus wudu breaks. Supported by the hadith from Ibn Abbas and many Tabi'un.

Sub-Issue 3: Deep vs. Light Sleep

Explanation: Some scholars consider depth of sleep a factor. If awareness is lost entirely, wudu is required. If not, it may be retained.

Sub-Issue 4: Sleep While Leaning

Explanation: Leaning may allow for loss of control. Thus, wudu may break even if not fully lying down. Some Malikis and Hanbalis take this view.

Sub-Issue 5: Sleep In Sujud

Explanation: Considered disliked (makruh) and may break wudu if prolonged due to loss of control.

Conclusion :

After Examining All The Hadiths And The Statements Of The Salaf, It Becomes Clear That Every Group Has Its Own Evidence. However, If We Attempt Reconciliation (*Tatbīq*) And Strive To Act Upon All The Narrations Collectively, Then This Is Better — And This Is The Foundational Principle Of The Jurists (*Fuqahā'*), Hadith Scholars (*Muḥaddithīn*), And Legal Theorists (*Uṣūliyyūn*).

We Have Tried To Reconcile All Of Them, And After Doing So, The Conclusion We Arrive At Is:

- If Someone Sleeps **Lying Down**, Then *Wuḍū'* Becomes Obligatory Upon Them.
- Other Than That, If One Sleeps While **Sitting** Or **Standing**, Then There Is No Need To Perform *Wuḍū'* — Unless The Person Falls Into Such A Deep Sleep That While Sitting, They Unknowingly Lie Down, And Are Unaware That They Moved From Sitting To Lying Down — In That Case, *Wuḍū'* Becomes Obligatory.
- Besides This, **Sleeping In The State Of Prostration (Sujūd)** Is *Makrūh* (Disliked), And If A Person Sleeps In That State For A Long Time, Then *Wuḍū'* Becomes Obligatory.
- Likewise, **Sleeping While Leaning On Something** Is Also *Makrūh*, And If One Leans On Something For A Long Time And Sleeps, Then *Wuḍū'* Becomes Obligatory — Because In Such A Case, There Is A Possibility Of Something (I.E., Wind) Exiting The Body.

And In All Cases, Caution Dictates That *Whatever Form Of Sleep It May Be*, One Should Perform *Wuḍū'*.

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 14 – Does Wudu Break By Touching A Woman?

The Fundamental Difference Of Opinion In This Issue Is:

Does Wudu Break By Touching A Woman, Or Not?

There Are **Three Main Views** On This Matter:

1. **Wudu Does Not Break At All**, Regardless Of How The Woman Is Touched.
2. **Wudu Breaks Absolutely**, Regardless Of The Nature Or Context Of The Touch.
3. **Wudu Breaks Only If There Is Desire (Shahwah)** Involved In The Touch; Otherwise, It Does Not.

Ḥanafī Madhhab

Imām Abū Ḥanīfah And All Ḥanafī Scholars Have **Consensus (Ijmā‘)** That **Wudu Does Not Break** By Touching A Woman.

Mālikī Madhhab

The Mālikīs Hold That **Wudu Breaks If The Touch Is Accompanied By Desire**.
Even If One Touches Over Clothing, **Wudu Still Breaks** Unless The Fabric Is Very Thick.

However, Within The Mālikī Madhhab, **There Are Further Differences**:

- Some Say **Puberty (Bulūgh)** Is A Condition — I.E., Touching A Prepubescent Girl Does *Not* Break Wudu.
- Others Say **Even A Non-Pubescent Girl** Causes Wudu To Break.
- Some Limit It To **Maḥram (Unmarriageable Relatives)** Only.
- Others Say It Applies To **Non-Maḥrams**.
- Some Generalize It To **Both**.
- Some Say **Kissing (Bosah)** Breaks Wudu In *All Cases*.
- Others Say **Only If There Is Desire**.
- Some Reply: "Kissing Itself Is An Act Of Desire — So Wudu Breaks Regardless."
- Some Differentiate: If Someone Kisses His **Daughter On The Forehead**, Since There's No Desire, Wudu Does *Not* Break.
- Others Still Say: **Wudu Does Not Break By Kissing** — Whether The Woman Is Maḥram Or Non-Maḥram, Adult Or Child.

As Mentioned In "*Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid*" (1/465):

"Some Scholars Held That Wudu Is Obligatory When Touching With Desire, Or Intending Desire, Whether With Or Without A Barrier, With Any Body Part — Except For Kissing, Where They Didn't Require Desire. This Is The View Of Mālik And The Majority Of His Followers."

In "*Uyūn Al-Adillah*" By Ibn Al-Qaṣṣār (1/505):

"If He Kisses Or Touches Her Out Of Desire, His Wudu Breaks. If Not, Then It Does Not."

Shāfi'ī Madhhab

Imām Al-Shāfi'ī Said:

Touching A Woman Breaks Wudu Absolutely.

But Even Within The Shāfi'ī School, **There Are Additional Differences:**

- Some Say: Wudu Breaks By Touching A **Maḥram**.
- Others: Only If A **Non-Maḥram** Is Touched.
- Some: **Both**.
- Some: **Only If Desire Is Present**, Otherwise Not.

The Most Accurate View In This Matter Is That:

Touching A Woman Breaks Wudu, And Bulūgh Is Not A Condition.

Some Scholars Restricted This To Girls **7 Years Or Older**, As That Is The Minimum Age Of Physical Intimacy.

But Many Seven-Year-Olds Are Unaware Of The Concept Of Intimacy (*Ijmā'*), So The Fuqahā' Attached The Ruling To That Awareness.

In "*Al-Umm*" By Imām Al-Shāfi'ī (1/29):

"Allah Mentioned Wudu For Those Rising To Prayer, Then Purification From Janābah, Then Said: {...Or You Touched Women And Cannot Find Water, Then Perform Tayammum...} [Al-Nisā': 43] — So This 'Touching' Is Linked To Impurity Like Janābah.

Malik Narrated From Ibn Shihab From Sālim Ibn 'Abd Allāh From His Father:

'Kissing One's Wife Or Touching Her With The Hand Counts As Touching (Mulāmasah).'
Therefore, Whoever Kisses Or Touches His Wife Must Perform Wudu."

Ḥanbalī Madhhab

The Ḥanbalīs Say:

If One Touches A Woman With The Intention Of Desire (Shahwah), Then Wudu Breaks.

Cause Of This Difference Of Opinion

This Difference Began Due To The Verse In **Sūrat Al-Nisā'**, Verse 43:

وَإِنْ كُنْتُمْ مَّرْضَىٰ أَوْ عَلَىٰ سَفَرٍ أَوْ جَاءَ أَحَدٌ مِنْكُم مِّنَ الْغَائِطِ أَوْ لَمَسْتُمُ النِّسَاءَ فَلَمْ تَجِدُوا مَاءً فَتَيَمَّمُوا

Translation:

"And If You Are Ill Or On A Journey, Or One Of You Comes From Relieving Himself, Or **You Touched Women**, And You Do Not Find Water, Then Perform Tayammum With Clean Earth..."

The Phrase Used In Arabic Is:

أَوْ لَامَسْتُمُ النِّسَاءَ

("...Or You Touched Women")

This Wording Is **Ambiguous (Mubham)** — It Is Not Explicitly Clear What Kind Of "Touch" Is Intended.

In Arabic, The Word "**Mas**" (**Touch**) Can Be **Literal Or Figurative**. It Can Simply Mean Physical Contact, Or It Can Be A **Euphemism** (Majāz) For **Sexual Intercourse**, As Is Common In Both Arabic And Urdu.

Examples From Urdu:

- "He Touched Me" — Could Imply Desire Or Even Intercourse.
- "While Giving Me Something, His Finger Touched Mine" — Clearly Refers To An Innocent Touch.

The **Context** Clarifies The Meaning. The Same Applies In Arabic — Meaning Is Derived From The Overall Sentence Structure. But In This Verse, The Expression Is Ambiguous, And Thus **Open To Interpretation**.

This Led To Disagreement **Even Among The Companions (ṣaḥābah)**:

- Some Said The Verse Refers To **Actual Physical Touch**.
- Others Said It Refers To **Sexual Intercourse**.

Imām Abū Jaʿfar Al-Ṭabarī In His *Tafsīr Al-Ṭabarī* Comments On This Verse:

He Holds The Opinion That It Refers To **Sexual Intercourse**, And Then He Lists The Scholars Who Supported This View:

*"Saʿīd Ibn Jubayr Said: They Discussed The Word 'Touch'. Some Among The Non-Arabs (Mawālī) Said It Doesn't Mean Intercourse, But The Arabs Said It Does. I Went To Ibn ʿAbbās And Told Him Of This Difference. He Asked: 'Which Group Are You From?' I Said, 'From The Mawālī.' He Said: 'The Mawālī Are Correct. Verily, **Mas**, **Lamas**, And **Mubāsharah** All Refer To Sexual Intercourse. Allah Uses Metaphors However He Wills."*

(This Narration Is **Ṣaḥīḥ Li-Dhāṭihī**, Fulfilling The Conditions Of Al-Bukhārī And Muslim)

A Narration Is Presented From **Ibn ʿAbbās**, In Which **Saʿīd Ibn Jubayr** Goes To Him To Ask About This Very Issue (Regarding Touching Women Breaking Wudu). Ibn ʿAbbās Also Said: "What Is Meant Here Is *Sexual Intercourse* (Jīmāʿ)."

This Same Narration Has Been Transmitted By **Imām Al-Bayhaqī** In His *As-Sunan Al-Kubrā*, Volume 1, Page 125.

The Hadith Is Found In Both Of These Sources.

It Is Also Mentioned By **Imām Ibn Abī Shaybah** In His *Muṣannaf*, Under Hadith Number **1768**, Under The Verse Of Sūrah An-Nisā’.

Arabic Text Of The Narration:

حَدَّثَنَا حَفْصٌ، عَنِ الْأَعْمَشِ، عَنْ حَبِيبٍ، عَنْ سَعِيدِ بْنِ جُبَيْرٍ، عَنِ ابْنِ عَبَّاسٍ قَالَ: هُوَ الْجَمَاعُ
(And All The Narrators Are Trustworthy – *Rijāl Thiqāt*)

Here Too, The Same Point Is Emphasized: Ibn ‘Abbās Says That What Is Meant Is *Sexual Intercourse* (Jīmā’).

Then, It Is Mentioned That **Sa‘īd Ibn Jubayr** Narrates That There Was A Disagreement Between ‘**Aṭā’ Ibn Abī Rabāḥ** And ‘**Ubayd Ibn ‘Umayr** On This Issue.

‘Ubayd Ibn ‘Umayr Said That What Is Meant Is *Sexual Intercourse*, While ‘Aṭā’ Said That It Simply Means *Touching*.

So, They All Together Went To **Ibn ‘Abbās**, And He Said:

“The Dominance Of Non-Arab Language Has Overtaken You People! What Is Meant Here Is *Sexual Intercourse*.”

Similarly, A Narration Is Brought From ‘**Alī (Radiyallāhu ‘Anhu)** That The Meaning Of This Verse Is *Sexual Intercourse*:

حدثنا ابن وكيع قال، حدثنا أبي، عن سفيان، عن أشعث، عن الشعبي، عن علي رضي الله عنه قال: الجماع
(Meaning: "Al-Jīmā'" — Sexual Intercourse)

In The Same Way, Statements Of **Al-Ḥasan Al-Baṣrī**, **Mujāhid**, And **Qatādah** Are Mentioned— Stating The Same View.

Then, It Is Mentioned That Some Scholars Say That The Verse Implies Even *Actual Touching*, Such That If Any Body Part Touches A Woman, Wudu Is Nullified.

Then The Opinion Is Mentioned Of Those Who Say The Verse Implies Mere *Touching Without Sexual Desire*. For This View, A Narration Is Brought:

حدثنا محمد بن المثنى قال، حدثنا محمد بن جعفر قال، حدثنا شعبة، عن مخارق، عن طارق بن شهاب، عن عبد الله أنه قال، شيئاً هذا
معناه: الملامسة ما دون الجماع.

Translation: ‘**Abdullāh Ibn Mas‘ūd** Said Something With This Meaning: "*Al-Malāmasah (Touching) Means What Is Less Than Intercourse*."

(And This Hadith Is **Ṣaḥīḥ Li-Dhātihi**, And Fulfills The Conditions Of The Shaykhayn – Al-Bukhārī And Muslim.)

It Is Also Narrated From Ibn Mas‘ūd That **Kissing A Woman**, Meaning Touching Her, Requires Wudu.

A Similar Narration Is Found From **Ibn ‘Umar** — That When He Kissed A Woman, He Would Perform Wudu.

A Statement Is Mentioned From **Ibrāhīm An-Nakha‘ī**:

"Touching With Desire (Shahwah) Breaks Wudu."

The Same Is Reported From **Al-Ḥakam**, **Ḥammād**, **‘Aṭā’**, **‘Ubaydah**, And The Companions Of **‘Abdullāh Ibn Mas‘ūd** — All Holding The Same Opinion.

Abū ‘Ubaydah Reports That “*Kissing*” Falls Under The Category Of “*Touching*.”

After Narrating All These Views, **Abū Ja‘far Al-Ṭabarī** Presents His Own Opinion:

“When Allah Says: ‘...*Or You Touched Women...*’ Then The Only Meaning That Is Correct Here Is *Sexual Intercourse*, And Nothing Else.”

As Evidence For His View, He Presents The Following Hadith:

The Messenger Of Allah ﷺ Would Kiss His Wives And Then Pray Without Performing Wudu Again.

Arabic Text:

حدثني بذلك إسماعيل بن موسى السدي قال، أخبرنا أبو بكر بن عياش، عن الأعمش، عن حبيب بن أبي ثابت، عن عروة، عن عائشة قالت: كان النبي صلى الله عليه وسلم يتوضأ ثم يقبل، ثم يصلي ولا يتوضأ.

(This Hadith Is **Ḥasan Li-Dhātihi**.)

In **Sunan Abī Dāwūd**, Hadith Number **178**:

حَدَّثَنَا مُحَمَّدُ بْنُ بَشَّارٍ، قَالَ: ثَنَا يَحْيَى وَعَبْدُ الرَّحْمَنِ، قَالَا: ثَنَا سُفْيَانُ، عَنْ أَبِي رَوْقٍ، عَنْ إِبْرَاهِيمَ التَّيْمِيِّ، عَنْ عَائِشَةَ: أَنَّ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَبَّلَهَا وَلَمْ يَتَوَضَّأْ.

(This Hadith Is **Ḥasan Li-Dhātihi** And Fulfills The **Conditions Of Muslim**.)

Takhrij Of The Hadith:

This Narration Is Also Recorded In:

- *Sunan An-Nasā’ī Al-Mujtabā* (1/58, Hadith 170/1) – *Kitāb Al-Ṭahārah, Bāb Tark Al-Wuḍū’ Min Al-Qublah*
- *Sunan Al-Kubrā* By An-Nasā’ī (1/135, Hadith 155)
- *Sunan Abī Dāwūd* (1/69, Hadiths 178, 179) – *Bāb Al-Wuḍū’ Min Al-Qublah*
- *Jāmi’ At-Tirmidhī* (1/128, Hadith 86) – *Bāb Tark Al-Wuḍū’ Min Al-Qublah*
- *Sunan Ibn Mājah* (1/315, Hadiths 502–503)
- *Sunan Al-Kubrā* By Al-Bayhaqī (1/125–126, Hadiths 616, 618) – *Bāb Al-Wuḍū’ Min Al-Mulāmasah*
- *Sunan Al-Dāraquṭnī* (1/245–258, Hadiths 484–507) – Under The Chapters: *What Invalidates Wudu, Including Touching And Kissing*
- *Musnad Ahmad* (11/5884, Hadith 24967), (12/6205, Hadiths 26405–26406) – *Musnad ‘Ā’Ishah*
- *Musnad Abī Ya’Lā* (7/374, Hadith 4407), (8/243, Hadith 4821) – *Musnad Of ‘Ā’Ishah*

- *Muṣannaf ‘Abd Al-Razzāq* (1/135, Hadiths 509–511) – *Bāb Al-Wuḍū’ Min Al-Qublah Wa Al-Lams Wa Al-Mubāsharah*
- *Muṣannaf Ibn Abī Shaybah* (1/383, Hadith 488), (1/389, Hadith 493) – *Who Said: There Is No Wudu From Kissing*
- *Al-Mu‘jam Al-Awsaṭ* By Al-Ṭabarānī (4/343, Hadith 4385), (5/66, Hadith 4686)

There Is An Objection Regarding This: That Ibrahim Al-Taymi's *Hearing (Samā‘)* From ‘Ā’Ishah (May Allah Be Pleased With Her) Is Not Established.

So Remember: **This Is A Foundational Principle** According To Imām Muslim And The Hadith Scholars Of His Era—That If One Narrator Narrates From Another, And Both Are **Thiqah (Reliable/Trustworthy)**, And Both Are **From The Same Era**, And Both **Lived In The Same City**, But Their Actual Meeting (*Liqā’*) Is Not Known—Then **Such A Hadith Is Accepted As Long As The Narrator Is Not A Mudallis (One Who Practices Tadrīs)**.

Now, **Ibrāhīm Al-Taymi Was Known To Practice Tadrīs**, But He Only Did So **From Trustworthy Narrators**, And **His Tadrīs Is Accepted**.

Some Hadith Scholars Do Say That Actual Meeting Must Be Proven (I.E., *Samā‘* Must Be Explicitly Established), Then Only Will They Accept The Hadith.

But Remember: Those Scholars Who Hold This Stricter Principle—That A Hadith Is Not Accepted Without Explicit Proof Of *Samā‘*—Are Very **Few**. Imām Muslim **Narrated Consensus (Ijmā‘)** Of The Early Scholars (Salaf) And Hadith Scholars On This Issue. See The **Muqaddimah (Introduction) Of Ṣaḥīḥ Muslim**.

Some Hadith Scholars **Mistakenly Thought** That *Samā‘* (Hearing) Was Not Established Between Them—Whereas **Those Same Scholars Themselves Graded Narrations With Similar Chains As Authentic (ṣaḥīḥ)**.

As For Those Scholars Who Do Follow The Principle That **Without *Samā‘*, A Hadith Is Not Accepted**, Then **Even By Their Standards, This Hadith Is At Least ḥasan (Acceptable)** Because A **ṣaḥīḥ Mutābi‘ (Corroborating Narration)** From Ibrāhīm Exists—See **Al-Dāraqutnī, Hadith No. 485**.

In Addition, **Another Fully Authentic (ṣaḥīḥ) Chain** Exists For This Narration—See **Al-Dāraqutnī, Hadith No. 488**:

حَدَّثَنَا أَبُو بَكْرِ النِّسَابُورِيُّ ، حَدَّثَنَا حَاجِبُ بْنُ سُلَيْمَانَ ، حَدَّثَنَا وَكَيْعٌ ، عَنْ هِشَامِ بْنِ عُرْوَةَ ، عَنْ أَبِيهِ ، عَنْ عَائِشَةَ
" قَالَتْ : " قَبْلَ رَسُولِ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - بَعْضَ نِسَائِهِ ، ثُمَّ صَلَّى ، وَلَمْ يَتَوَضَّأْ

(This Narration Is *ṣaḥīḥ* In Itself (*ṣaḥīḥ Li-Dhātihī*), And It Meets The Criteria Of *Al-Shaykhayn*—I.E., *Al-Bukhārī* And *Muslim*).

Some People Claim That **Imām Wakīʿ Made A Mistake (Wahm)** In This Hadith. But **Wakīʿ Ibn Al-Jarrāḥ Was A Highly Accurate (ḥāfiẓ) Narrator**, And **All Hadith Scholars Agree On This**. No One Has Criticized Him In The Science Of **Al-Jarḥ Wa Al-TaʿDīl** (Critical Evaluation) In A Way That Questions His Memory Or Accuracy In Transmitting Hadith.

In Fact, This Is The Reason Why:

- Imām **Al-Bukhārī** Narrated Nearly **50 Hadiths** From Him In His **Ṣaḥīḥ**,
- Imām **Muslim** Narrated **More Than 300 Hadiths** From Him In His **Ṣaḥīḥ**,
- **Ibn Khuzaymah** Took Over **100 Hadiths** From Him,
- **Ibn Ḥibbān** Over 100 Hadiths,
- **Al-Ḥākim** More Than 80,
- **Al-Nasāʾī** Nearly 100,
- **Abū Dāwūd** More Than 100,
- **Al-Tirmidhī** More Than 200 Hadiths From Him.

And **None Of These Scholars Criticized His Memory**. So Criticizing Wakīʿ Here Is A **Clear Mistake**.

As For **Imām Al-Tirmidhī**, He Mentioned That **Muḥammad Ibn Ismāʿīl (I.E., Al-Bukhārī)** Said: *“Ḥabīb’s Hearing From ‘Urwah Is Not Established.”*

However, Even Then, **Another Chain Of This Narration Exists That Is Authentic According To Al-Bukhārī’s Own Conditions**. And The Chain That Contains Ḥabīb Is Considered **Disconnected (Munqaṭiʿ)** By Al-Bukhārī.

Therefore, The Chain In **Al-Dāraqutnī 488** Is **ṣaḥīḥ According To Al-Bukhārī**, And In Fact, **Imām Al-Bukhārī Himself Narrates A Hadith Through This Very Chain**—From Hishām From ‘Urwah From ‘Ā’Ishah (Ra).

That Exact Chain Is:

حَدَّثَنَا أَبُو بَكْرِ النِّسَابُورِيُّ ، حَدَّثَنَا حَاجِبُ بْنُ سُلَيْمَانَ ، حَدَّثَنَا وَكِيعٌ ، عَنْ هِشَامِ بْنِ عُرْوَةَ ، عَنْ أَبِيهِ ، عَنْ عَائِشَةَ
" قَالَتْ : " قَبْلَ رَسُولِ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - بَعْضَ نِسَائِهِ ، ثُمَّ صَلَّى ، وَلَمْ يَتَوَضَّأْ
[Dāraqutnī 488]

In This Chain, **There Is No Ḥabīb**, Rather **It Is Through Hishām**, And **Imām Al-Bukhārī’s Ṣaḥīḥ Is Full Of Narrations From Hishām Via ‘Urwah**—In Fact, Over **300 Narrations** In Al-Bukhārī Come Through This Chain.

Here Are Some References For That Chain In **Ṣaḥīḥ Al-Bukhārī**: **Hadith Numbers 2, 20, 43, 100, 130, 147, 212, 222, 228, 248, 263, 272, 282, 293, 295, 296, 306**.

Another Point: **When Imām Al-Tirmidhī States** That The Hearing (Samāʿ) Is Not Established And Thus Calls The Hadith Weak (ḍaʿīf), It Does **Not** Mean That Imām Al-Tirmidhī **Always** Requires Samāʿ To Be Established For Authenticity. That Is Not Correct.

Because **Imām Al-Tirmidhī Himself** Has Accepted A Hadith With **Similar Disconnection**, And Even Called It **ḥasan ṣaḥīḥ**—See **Tirmidhī, Hadith No. 2662**:

حَدَّثَنَا مُحَمَّدُ بْنُ بَشَّارٍ ، قَالَ : حَدَّثَنَا عَبْدُ الرَّحْمَنِ بْنُ مَهْدِيٍّ ، قَالَ : حَدَّثَنَا سُفْيَانُ ، عَنْ حَبِيبِ بْنِ أَبِي ثَابِتٍ ، عَنْ مَيْمُونِ بْنِ أَبِي شَيْبٍ ، **
: عَنْ الْمُغِيرَةِ بْنِ شُعْبَةَ ، عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ
مَنْ حَدَّثَ عَنِّي حَدِيثًا وَهُوَ يَرَى أَنَّهُ كَذِبٌ فَهُوَ أَحَدُ الْكَاذِبِينَ

“Whoever Narrates From Me A Hadith While Thinking It Is False, He Is One Of The Liars.”
This Is A ḥasan ṣaḥīḥ Hadith.

In This Isnād, **Maymūn Narrates From Al-Mughīrah Ibn Shu‘Bah**, Yet Their **Hearing Is Not Clearly Proven**, But **Imām Al-Tirmidhī Still Accepts It As Authentic**.

Some People Claim: “There Is Nothing Authentic In This Chapter From The Prophet ﷺ,” But This Is A **Mistake**. Because This Same Hadith Is Also **Narrated From Umm Salamah (Ra)** In **Majma‘ Al-Awsat**, Vol. 4, P. 136, Hadith No. 3805. And The Narration From ‘Ā’Ishah (Ra) Is **Well-Established**.

Similarly, **Imām Al-Ṭabarī** Narrates From **Zaynab Al-Shāmiyyah** That The **Messenger Of Allah ﷺ Kissed One Of His Wives And Prayed Without Performing Wudu**.

He Also Narrates This From **Umm Salamah (Ra)**.

Then **Al-Ṭabarī Comments**: *These Hadiths Are All Proof That The Word "Touch" (Lamastum) In The Qur‘an Means Sexual Intercourse.*

He Also Adds: *There Was A Difference Among People In How To Recite This Verse:*

وَإِنْ كُنْتُمْ مَرْضَىٰ أَوْ عَلَىٰ سَفَرٍ أَوْ جَاءَ أَحَدٌ مِّنْكُم مِّنَ الْغَائِطِ أَوْ لَمَسْتُمُ النِّسَاءَ

So The People Of **Madīnah**, And Some From **Kūfah** And **Baṣrah**, Generally Recited It With The Meaning: “*When You Touch Women,*” In The Sense Of Physical Contact.

And The General Kūfan Recitation Meant: “*O Men, When You Touch Your Women...*”

So Both Readings Imply Nearly The Same Meaning.

Imām Abū Ḥātim, In His **Tafsīr Abī Ḥātim**, Wrote Under This Verse:

Those Who Interpret *Lamastum* To Mean **Sexual Intercourse** Include:

- **Ibn ‘Abbās**,
- **‘Alī Ibn Abī Ṭālib**,
- **Ubayy Ibn Ka‘B**,
- **Mujāhid**,
- **Ṭāwūs**,
- **Al-Ḥasan Al-Baṣrī**,
- **‘Ubayd Ibn ‘Umayr**,
- **Sa‘īd Ibn Jubayr**,
- **Al-Sha‘Bī**,
- **Qatādah**,

- Muqātil Ibn Ḥayyān, Etc.

Those Who Interpret It To Mean **Actual (Non-Sexual) Touching** Include:

- ‘Abdullāh Ibn Mas‘ūd,
- ‘Abdullāh Ibn ‘Umar,
- ‘Ubaydah,
- Abū ‘Uthmān Al-Nahdī,
- Abū ‘Ubaydah,
- Al-Sha‘Bī,
- Thābit Ibn Al-Ḥajjāj,
- Ibrāhīm Al-Nakha‘ī,
- Zayd Ibn Aslam, Etc.

1. Abdullah Ibn Umar's View: Touching A Woman (With Desire) Breaks Wudu

Arabic Text:

عبد الرزاق عن معمر ، عن الزهري ، عن سالم ، أن ابن عمر ، كان يقول : من قبل امرأته وهو على وضوء أعاد الوضوء

Translation:

‘Abd Al-Razzaq Narrated From Ma‘Mar, From Al-Zuhrī, From Sālim, That **Ibn ‘Umar Used To Say: “Whoever Kisses His Wife While In A State Of Wudu Should Repeat The Wudu.”**

(Grading: Ḥasan Li-Dhātih / Meets The Conditions Of Al-Shaykhayn [Al-Bukhārī And Muslim])

Takhrīj (References):

- Mālik In *Al-Muwatta‘a* (1/60, No. 134), *Kitāb Wuqūt Al-Ṣalāh*, Bāb Al-Wuḍū’ Min Qublat Al-Rajul Imra’ Atah
- Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/124, No. 613), *Kitāb Al-Ṭahārah*, Bāb Al-Wuḍū’ Min Al-Mulāmasah
- Al-Dāraquṭnī In *Sunan* (1/262–264, Nos. 516, 518–522, 526), *Kitāb Al-Ṭahārah*, Bāb Ṣifat Mā Yanquḍ Al-Wuḍū’...
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/132, Nos. 496–497), *Kitāb Al-Ṭahārah*, Bāb Al-Wuḍū’ Min Al-Qublah Wal-Lams Wal-Mubāsharah
- Ibn Abī Shaybah In *Al-Muṣannaf* (1/390, No. 495), *Kitāb Al-Ṭahārah*, Man Qāla Fīhā Al-Wuḍū’

2. From ‘Umar Ibn Al-Khaṭṭāb: Kissing Does Not Break Wudu

Arabic Text:

عبد الرزاق عن ابن عيينة، عن يحيى بن سعيد ، عن أبي بكر بن محمد بن عمرو بن حزم ، عن عبد الله بن عبد الله بن عمر ، أن عاتكة بنت زيد قبلت عمر بن الخطاب وهو صائم فلم ينهها ، قال : وهو يريد الصلاة ، ثم مضى فصلى ولم يتوضأ .

Translation:

‘Abd Al-Razzāq Narrated From Ibn ‘Uyaynah, From Yaḥyā Ibn Sa‘īd, From Abū Bakr Ibn Muḥammad Ibn ‘Amr Ibn Ḥazm, From ‘Abd Allāh Ibn ‘Abd Allāh Ibn ‘Umar That **‘Ātikah Bint Zayd Kissed ‘Umar Ibn Al-Khaṭṭāb While He Was Fasting. He Did Not Stop Her. He Was Intending To Pray, So He Proceeded And Prayed Without Performing Wudu.**

(Grading: Ṣaḥīḥ Li-Dhāṭih / Meets The Conditions Of Al-Shaykhayn)

Takhrīj (References):

- Mālik In *Al-Muwattaʿa* (1/417, No. 1022), *Kitāb Al-Ṣiyām*, Bāb Mā Jā’ A Fī Al-Rukhsah Fī Al-Qublah Li-L-Ṣā’ Im
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (1/135, No. 512; 4/187, No. 7429), *Kitāb Al-Ṭahārah*, *Kitāb Al-Ṣiyām*
- Ibn Abī Shaybah In *Al-Muṣannaf* (6/242, No. 9500), *Kitāb Al-Ṣiyām*, Man Rakhkhaṣa Fī Al-Qublah Li-L-Ṣā’ Im

3. Hadith From ‘Ā’ Ishah (RA): Physical Contact With A Woman Does Not Break Wudu

Arabic Text (Bukhārī 382):

حَدَّثَنَا إِسْمَاعِيلُ قَالَ: حَدَّثَنِي مَالِكٌ ، عَنْ أَبِي النَّضْرِ مَوْلَى عُمَرَ بْنِ عَبْدِ اللَّهِ ، عَنْ أَبِي سَلَمَةَ بْنِ عَبْدِ الرَّحْمَنِ ، عَنْ عَائِشَةَ زَوْجِ النَّبِيِّ ﷺ أَنَّهَا قَالَتْ: كُنْتُ أَنَا مِ بَيْنَ يَدَيْ رَسُولِ اللَّهِ ﷺ ، وَرَجُلَايَ فِي قِبْلَتِهِ ، فَإِذَا سَجَدَ غَمَزَنِي فَقَبَضْتُ رِجْلِي ، فَإِذَا قَامَ بَسَطْتُهُمَا . قَالَتْ: وَالْبَيُوتُ يَوْمَئِذٍ لَيْسَ فِيهَا مَصَابِيحُ .

Translation:

Narrated By Ismā‘īl: Mālik Told Us From Abū Al-Naḍr, The Freed Slave Of ‘Umar Ibn ‘Ubaydillāh, From Abū Salamah Ibn ‘Abd Al-Raḥmān, From ‘Ā’ Ishah, The Wife Of The Prophet ﷺ, That She Said:

“I Used To Sleep In Front Of The Messenger Of Allāh ﷺ While My Legs Were In His Direction (Qiblah). When He Went Into Sajdah (Prostration), He Would Nudge Me And I Would Withdraw My Legs. Then When He Stood Up, I Would Stretch Them Out Again.”
She Said: **“The Houses In Those Days Had No Lamps.”**

Implication:

This Narration Clearly Indicates That **Physical Contact With A Woman During Prayer** (Even Repeated, Intentional Contact) **Does Not Invalidate Wudu.**

Takhrīj (References):

- Bukhārī In *Ṣaḥīḥ* (1/86 Nos. 382–384; 1/107 No. 508; 1/109 Nos. 511–515, 519; 2/25 No. 997; 2/64 No. 1209; 8/62 No. 6276)
- Muslim In *Ṣaḥīḥ* (2/60 No. 512 - Repeated Multiple Times In Same Book, Bāb Al-Iṭidāḍ Bayna Yaday Al-Muṣallī)
- Mālik In *Al-Muwattaʿa* (1/161, No. 386/114), *Kitāb Al-Ṣalāh*
- Ibn Al-Jārūd In *Al-Muntaqā* (1/69, No. 188)

- Ibn Khuzaymah In *Ṣaḥīḥ* (2/52–55, Nos. 822–826)
- Ibn Ḥibbān In *Ṣaḥīḥ* (6/109–113, Nos. 2341–2348), Including All Related Contextual Commentary

Hadith Translation And Discussion

There Is Also A Similar Hadith From Abu Hurayrah, Reported In **Ṣaḥīḥ Muslim (486)**:

Arabic Text (Isnād):

حَدَّثَنَا أَبُو بَكْرِ بْنُ أَبِي شَيْبَةَ، حَدَّثَنَا أَبُو أُسَامَةَ، حَدَّثَنِي عَبْدُ اللَّهِ بْنُ عُمَرَ، عَنْ مُحَمَّدِ بْنِ يَحْيَى بْنِ حَبَّانَ، عَنِ الْأَعْرَجِ، عَنْ أَبِي هُرَيْرَةَ، عَنْ عَائِشَةَ قَالَتْ:

Translation:

‘Ā’ishah (May Allah Be Pleased With Her) Said: "One Night I Lost The Messenger Of Allah ﷺ From The Bed, So I Searched For Him And My Hand Touched The Soles Of His Feet While He Was In The Masjid (In Prayer), And They Were Upright (I.E., He Was In Sujood). He Was Saying:

'O Allah, I Seek Refuge In Your Pleasure From Your Anger, And In Your Forgiveness From Your Punishment. I Seek Refuge In You From You. I Cannot Fully Praise You; You Are As You Have Praised Yourself.'"

Additional Clarification:

This Hadith Is Lengthy. Among Its Wording Is That ‘Ā’ishah (May Allah Be Pleased With Her) Touched The Feet Of The Messenger Of Allah ﷺ While He Was In Sujood Making Du‘Ā’.

Takhrij (Source References):

This Hadith Is Found In:

- Ṣaḥīḥ Muslim (2/51, Hadith 485 & 486), *Kitāb Al-Ṣalāh, Bāb Mā Yuqāl Fī Al-Rukū‘ Wa Al-Sujūd*
- Al-Muwaṭṭā’ Of Mālik (1/299, Hadith 725/238), *Kitāb Al-Qur’ān, Mā Jā’a Fī Al-Du‘Ā’*
- Ṣaḥīḥ Ibn Khuzaymah (1/669–678), Hadiths: 654, 655, 671
- Ṣaḥīḥ Ibn Ḥibbān (5/258–260), Hadiths: 1932, 1933
- Al-Mustadrak Of Al-Ḥākim (1/221–228), Hadiths: 812, 838
- Al-Nasā’ī: Multiple Places In Both *Al-Mujtabā* And *Al-Kubrā* On Issues Like Touching Women, Positioning The Feet In Sujood, And Jealousy (Ghīrah)
- Abū Dāwūd (1/327), Hadith: 879, *Kitāb Al-Ṣalāh*
- Al-Tirmidhī (2/108, 5/474–475), Hadiths: 739, 3493
- Ibn Mājah (2/399, 5/14), Hadiths: 1389, 3841
- Al-Bayhaqī, Al-Ḍāruqutnī, Musnad Aḥmad, Musnad Al-Ṭayālīsī, Musnad Abū Ya‘Lā, ‘Abd B. Ḥumayd, Al-Ṭabarānī (Al-Awsat, Al-Ṣaghīr), ‘Abd Al-Razzāq, Ibn Abī Shaybah, Al-Ṭahāwī (Ma‘Ānī & Mushkil Al-Āthār), And Others.

Fiqh Implication:

This Hadith **Proves That Touching A Woman Does Not Break Wudu**, Because ‘Ā’ishah Touched The Prophet’s Feet While He Was In Sujood, And **He Continued Praying Without Interruption**.

There Are **Many Other Hadiths And Numerous Chains (ṭuruq) On This Issue**, Making It Nearly Impossible To Mention Them All Here—Doing So Would Require Writing An Entire Book On The Subject.

Reconciliation Of Conflicting Views:

Those Who Say That *Touching A Woman Breaks Wudu If Accompanied By Desire* Tried To **Reconcile Both Types Of Narrations**.

Some Narrations Report That **The Sahabah Would Kiss Their Wives And Perform Wudu Afterward**, Or Instruct Others To Do So.

Whereas In Some Reports, The Command To Perform Wudu After Kissing A Woman Was Understood To Be **Because Of The Likelihood Of Desire**, Especially When Someone Intends Intimacy, Touches, Or Kisses Their Wife, And Then **Pre-Seminal Fluid (Madhī) Exits**, Which **Does Nullify Wudu**.

Summary Of Opinions:

View That Touching A Woman Breaks Wudu:

- Reported *Mawqūf* (Non-Prophetic) Statements From:
 - ‘Abdullāh Ibn Mas‘ūd
 - ‘Abdullāh Ibn ‘Umar

View That Touching Does Not Break Wudu:

- Reported From:
 - ‘Abdullāh Ibn ‘Abbās
 - ‘Umar Ibn Al-Khaṭṭāb
 - Abū Hurayrah
 - ‘Ā’ishah (May Allah Be Pleased With Them)
- From These, The Narrations Of Ibn ‘Abbās And ‘Umar Are *Mawqūf*, While Those Of **Abū Hurayrah And ‘Ā’ishah Are Marfū‘** (Attributed To The Prophet ﷺ).

Summary Of The Issue

Does Wudu Break by Touching a Woman?

Brief Explanation:

This issue explores whether physical contact with a woman invalidates **wuḍūʾ** (ritual ablution). There is a fundamental disagreement rooted in the interpretation of the verse in Surah al-Nisāʾ (4:43):

{أَوْ لَامَسْتُمُ النِّسَاءَ} – “Or you touched women...”

Scholars differ on whether this verse refers to mere touch, touching with desire, or sexual intercourse.

Evidence from the Text:

- **Qurʾan:** Al-Nisāʾ: 43
- **Hadiths:** Numerous, including from ʿĀʾishah, ʿUmar, Ibn ʿUmar, and others
- **Tafsīr Sources:** Al-Ṭabarī, Abū Ḥātim, Ibn Abī Shaybah, etc.
- **Ijmāʿ / Scholarly Reports:** Disagreement among ṣaḥābah and tābiʿīn

View 1: Wudu Does Not Break by Touching a Woman at All

Madhhab: Ḥanafī

Brief Explanation:

The Hanafi school holds that **wuḍūʾ is not broken** by touching a woman, regardless of intention or context.

Evidence from the Text:

- Imām Abū Ḥanīfah and all Ḥanafī scholars have consensus (ijmāʿ) on this.
- Supporting hadith: ʿĀʾishah’s narration about sleeping in front of the Prophet ﷺ during prayer (Bukhārī 382).
- Tafsīr of Ibn ʿAbbās and ʿAlī indicating “touch” in the verse refers to **sexual intercourse**, not physical contact.

Sub-Issues:

- **Hadiths show** the Prophet ﷺ kissed wives and continued prayer without wudu.
- Narrations from ʿĀʾishah and Abū Hurayrah (Muslim 486) support this.

View 2: Wudu Breaks by Touching a Woman – Absolutely (Without Condition)

Madhhab: Shāfiʿī

Brief Explanation:

The Shāfi'ī school holds that **any touching of a woman** invalidates wudu, regardless of context or intention.

Evidence from the Text:

- Qur'an: Al-Nisā':43 interpreted literally as physical contact.
- Imām Al-Shāfi'ī in *Al-Umm* explains that kissing or touching requires wudu.
- Hadith: Report from Ibn 'Umar on performing wudu after kissing.

Internal Shāfi'ī Disagreements:

- Some require maḥram/non-maḥram distinction.
- Some require bulūgh (puberty).
- Others consider awareness of intimacy sufficient.
- Majority adopt blanket rule: touching breaks wudu.

View 3: Wudu Breaks Only If There Is Desire (Shahwah)

Madhhab: Mālikī and Ḥanbalī

Brief Explanation:

Both Mālikī and Ḥanbalī madhhabs take a middle path: **wudu breaks only if the touch involves sexual desire**. If touching is without desire or intention of intimacy, it does not invalidate wudu.

Mālikī View:

- Some say wudu breaks even through thick clothing.
- Others require bulūgh.
- Divergent views on kissing, maḥram vs. non-maḥram, etc.

Sources Cited:

- *Bughyat al-Muqtasid* (1/465)
- *ʿUyūn al-Adillah* by Ibn al-Qaṣṣār (1/505)

Ḥanbalī View:

- Wudu breaks if touching occurs **with desire** (shahwah).
- Supported by statements from early ḥanbalī scholars.

Sub-Issue: Meaning of "Touch" in Qur'an (Al-Nisā':43)

Brief Explanation:

The meaning of the word "**lamastum**" (you touched) in the verse is ambiguous, causing juristic debate. It could mean:

1. **Literal physical touch**
2. **Sexual intercourse** (metaphor or euphemism)

Evidence from the Text:

- Tafsīr al-Ṭabarī: Saʿīd ibn Jubayr's narration from Ibn ʿAbbās confirms "lamastum" means **intercourse**.
- Statement of ʿAlī, al-Ḥasan al-Baṣrī, Mujāhid, Qatādah: Also support "intercourse" as intended meaning.

Sub-Issue: Conflicting Narrations from Companions (Ṣaḥābah)

Views Supporting "Touch = Intercourse (Not Nullifying Wudu)":

- ʿAbdullāh Ibn ʿAbbās
- ʿUmar Ibn Al-Khaṭṭāb
- Abū Hurayrah
- ʿĀ'ishah (Marfūʿ)

Supporting Hadiths:

- ʿĀ'ishah: Prophet ﷺ would kiss and pray without renewing wudu (Abū Dāwūd 178, al-Dāraqutnī 488)
- Abū Hurayrah: Similar report found in Muslim (486)

Views Supporting "Touch Breaks Wudu":

- ʿAbdullāh Ibn Masʿūd
- ʿAbdullāh Ibn ʿUmar
- Reported: kissing wife invalidates wudu

Supporting Hadiths:

- Ibn ʿUmar: kissing requires wudu (Muṣannaf ʿAbd al-Razzāq 1/132)
- Ibn Masʿūd: touch below intercourse also requires wudu

Sub-Issue: Reconciliation Between Conflicting Narrations

Explanation:

Some scholars reconciled the contradiction by **connecting wudu to desire or madhī (pre-seminal fluid)**. If no shahwah or emission is involved, then **wudu is not broken**.

This view allows all narrations to be valid and harmonized.

Conclusion:

Touching A Woman **Does Not Break Wudu**, Whether:

- She Is **Maḥram Or Non-Maḥram**,
- **Adult Or Minor**,
- And Likewise, If A Woman Touches A Man—**His Wudu Is Not Nullified**.

This Applies **Generally**, Unless **Touching Or Kissing Is Done With Desire (Shahwah)**—In Which Case, **Wudu May Be Invalidated**, Especially If **Pre-Seminal Fluid (Madhī)** Is Discharged. This Explanation Aligns With Both **Hadiths** And Their **Reconciling Interpretations**.

Allah Says In The Qur'an:

"Or You Touched Women..."

Which Has Been Interpreted By Many Scholars To Mean **Sexual Intercourse**, Not Mere Physical Touch.

However, If One **Touches With The Intention Of Intimacy**, Then The **Touch Becomes A Cause Of Shahwah**, And If **Madhī Is Emitted**, It Necessitates **Wudu**.

This Is Also The Position Of:

- **Sufyān Al-Thawrī**,
- **Ishāq Ibn Rāhawayh**,
- Among The Four Imams: **Imām Mālik** And **Imām Aḥmad**,
- And It Is Narrated From Some Of The **Sahabah** As Well.

Thus, This View Allows Both Categories Of Hadiths To Be Practiced, And It Is Consistent With **Common Sense Qiyās (Analogy)**:

If A Man Kisses Or Embraces His Wife **Without Desire**, Wudu Is **Not Required**.

But If Done **With Desire Or Intention Of Intercourse**, **Wudu Becomes Necessary**, Especially If **Madhī Is Released**.

This View Is Established:

- Through **Transmitted Reports (Naql)** – Hadiths And Fatwas Of The Companions And Tābi' Ūn,
- And Through **Reason ('Aql)** – Sound Analogy.

This Is The View Held By **Many Scholars Of Knowledge**, And It Is The **Most Correct**.

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 15 – The Ruling On Touching The Private Area And Its Effect On Wudu

In This Matter, The Fundamental Difference Is Whether Touching The Private Area Directly (Without A Cloth) Invalidates Wudu (Ablution) Or Not. The Fundamental Positions Are As Follows:

1. Touching The Private Area Directly Invalidates Wudu.
2. Touching The Private Area Does Not Invalidate Wudu.
3. Wudu Is Invalidated By Touching The Private Area With Desire, But Not Otherwise.

Imam Abu Hanifa's Opinion: He Holds That Wudu Is Not Invalidated By Touching The Private Area. This Is The Consensus Of The Hanafi Scholars.

Imam Malik And The Maliki School's Opinion: Imam Malik Says That Wudu Is Invalidated If The Private Area Is Touched. Some Say That Touching The Private Area With Intent Or Desire Invalidates Wudu, But If It Happens Unknowingly, Wudu Does Not Break. Others Say That If The Cloth Is Very Thin, Touching The Private Area, Even Through The Cloth, May Invalidate Wudu. Some Scholars Argue That Wudu Is Invalidated Whether Desire Is Present Or Not.

From "Ayoun Al-Masail" By Qadi Abdul Wahhab (P. 74): "There Is A Difference Regarding Imam Malik's View On Touching The Private Area. It Is Agreed That If One Touches The Private Area With Desire, Either Directly Or Through A Cloth, Or With Any Other Body Part, Their Purity (Taharah) Is Broken."

From "Al-Istidhkar" By Ibn Abdul Barr (1/250): "A Distinction Is Made Between Intentional And Unintentional Touch, Not The Same As Minor Impurities. This Is The View Of Lais Ibn Saad And Dawood Ibn Ali Because The Hadith Mentions The One Who Touches Their Private Part Or Genitals, And The Act Is Not Considered Unless There Is Intent Behind The Touch, As The Real Actor Is The One Who Intended The Act."

An Alternate Maliki Opinion: Some Maliki Scholars Say That After Touching The Private Area, Performing Wudu Is Recommended (Mustahabb). Others Say That The Hadith Of Bushra (The Wife Of Safwan) Indicates That It Is A Recommended Action (Mustahabb). Some Scholars Believe That Touching The Private Area With Desire Necessitates Wudu, While Others Believe That It Is Recommended (Mustahabb) In General, Even Without Desire.

From "Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid" (1/474): "It Is Recommended (Mustahabb), And The Negation In The Hadith Of Talq Is Negating Obligation, As He Asked About Its Obligation, And The Word 'Aalayh' Indicates Obligation. There Is Another Opinion That Wudu From Touching The Private Area Is Recommended, Even With Desire. If We Say It Is Recommended, It Means It Is A Legislated Action And Carries Reward And Precaution."

Imam Shafi'i And The Shafi'i School's Opinion: Imam Shafi'i Holds That If A Person Touches Their Private Area Directly With The Palm Of Their Hand, Wudu Is Broken, Whether Intentionally Or Unintentionally.

From "Al-Umm" By Imam Shafi'i (1/34): "If A Man Touches His Private Area With The Palm Of His Hand Without A Barrier (Such As Clothing), He Must Perform Wudu, Regardless Of Whether It Was Intentional Or Not, Because Everything That Breaks Wudu Intentionally, Also Breaks It Unintentionally. Whether The Touch Is Small Or Large Does Not Matter."

Hanbali Opinion: The Hanbali School Holds That Wudu Is Broken By Touching The Private Area, And Some Hanbali Scholars Say That If The Touch Is Intentional, Wudu Breaks, While Others Say It Breaks Even If Done Unknowingly.

From "Al-Jami' Li Uloom Al-Imam Ahmad" (5/259): "Ismail Ibn Mansur Asked Ahmad About Touching The Private Area. He Said, 'Wudu Is Required After It.'"

From "Al-Muhalla" By Ibn Hazm (1/222): "Among Those Who Say Wudu Is Required After Touching The Private Area Are: Sa'd Ibn Abi Waqqas, Ibn Umar, Ataa, Urwah, Sa'id Ibn Al-Musayyib, Jabir Ibn Zaid, Awan Ibn Uthman, Ibn Jureij, Al-Awza'i, Lais, Shafi'i, Dawood, Ahmad Ibn Hanbal, And Ishaq Ibn Rahwayh, And Others."

Reason For Disagreement: The Disagreement Arises From The Hadiths Of Bushra Bint Safwan And Talq Ibn Ali. Some Scholars Say That The Hadith Of Bushra Is Abrogated, While Others Consider It To Be Either Strong Or Weak.

Jami Tirmidhi 84

Bushra Bint Safwan Narrates That The Messenger Of Allah (ﷺ) Said: "Whoever Touches His Private Part, He Should Not Pray Until He Performs Wudu (Ablution)."

Sanad (Chain Of Narration):

Ishaq Bin Mansoor Narrated To Us, He Said: Yahya Bin Sa'id Al-Qattan Narrated To Us, From Hisham Bin Urwah, Who Said: My Father Informed Me, From Bushra Bint Safwan That The Prophet (ﷺ) Said: "Whoever Touches His Private Part, He Should Not Pray Until He Performs Wudu."

(Sahih Li Zatihi)

In This Chain, Urwah Narrates From Bushra Bint Safwan. However, In Reality, Urwah Did Not Directly Hear This Narration From Bushra. There Is A Defect In The Chain Due To Tadlis (Concealing The Identity Of The Teacher), And Urwah's Instructor In This Narration Is Marwan, Not Bushra Herself. This Causes The Chain To Be Interrupted (Munqati).

Ibn Hajar's Opinion:

Ibn Hajar Mentions That Although Urwah Claims To Have Narrated From Bushra, Elsewhere He Has Clearly Narrated From Marwan. This Indicates That Urwah Did Not Directly Hear This Report From Bushra, Which Weakens The Sanad And Makes It Interrupted.

Hadith Criticism (Takhrij Al-Hadees):

This Hadith Has Been Recorded In Several Works:

- Malik In *Al-Muwatta* (1 / 57) Under The Chapter Of "Wudu From Touching The Private Part."
- Ibn Jarood In *Al-Muntaka* (1 / 14) And (1 / 15) With Reference To "Wudu From Touching The Private Part."
- Ibn Khuzayma In His *Sahih* (1 / 152) Under The Chapter Of "Wudu From Touching The Private Part."
- Ibn Hibban In His *Sahih* (3 / 396) And (3 / 397) Discussing The Ruling On Wudu From Touching The Private Part.
- Al-Hakim In *Mustadrak* (1 / 136) Under The Topic Of Wudu From Touching The Private Part.
- An-Nasa'i In *Al-Mujtaba* (1 / 57) And *Al-Kubra* (1 / 136).
- Abu Dawood In *Sunan* (1 / 71).
- At-Tirmidhi In *Al-Jami'* (1 / 125) Under The Chapter Of "Wudu From Touching The Private Part."
- Ad-Darimi In His *Musnad* (1 / 564).
- Ibn Majah In *Sunan* (1 / 302).
- Al-Bayhaqi In *Sunan Al-Kabir* (1 / 128).

Many Other Scholars, Including Ahmad In *Musnad* (9 / 5076), And Others, Have Narrated This Hadith With Slight Variations.

Hadith From "Al-Mujam Al-Kabir" By Al-Tabrani (Hadith 503):

This Narration Is Reported By **Urwa Ibn Zubair**, Who Says That **Marwan Ibn Al-Hakam** Sent To **Busra Bint Safwan** To Ask About The Hadith. Busra Responded That She Heard The Messenger Of Allah (ﷺ) Say: "*When One Of You Touches His Private Parts, He Should Perform Wudu.*"

Sanad:

- **Ibrahim Ibn Mattuwaih Al-Asbahani → Uqbah Ibn Mukram → Said Ibn Sufyan Al-Jahdari → Shu'bah → Abu Bakr Ibn Muhammad Ibn Amr Ibn Hazm → Urwa Ibn Zubair.**
- **Hadith Status: Sahih** (According To Al-Sheikhayn's Conditions).

Hadith From "Al-Muwatta" (Hadith 127):

This Hadith Is Reported By **Abdullah Ibn Abi Bakr Ibn Muhammad Ibn Amr Ibn Hazm**, Who Narrated From **Urwa Ibn Zubair**. Urwa Says: "*I Entered Upon Marwan Ibn Al-Hakam, And We Discussed The Matter Of Wudu. Marwan Said: 'Whoever Touches His Private Part, Must Perform Wudu.' Urwa Responded That He Did Not Know This. Marwan Replied That **Busra Bint Safwan** Informed Him That She Heard The Messenger Of Allah (ﷺ) Say: 'When Any Of You Touches His Private Part, He Should Perform Wudu.'*"

Sanad:

- **Malik → Abdullah Ibn Abi Bakr Ibn Muhammad Ibn Amr Ibn Hazm → Urwa Ibn Zubair.**
- **Hadith Status: Sahih** (Strong Chain, Commonly Agreed Upon).

Hadith From Ibn Majah (Hadith 481):

This Hadith Is Narrated By **Umm Habiba** (May Allah Be Pleased With Her), Who Says: *"I Heard The Messenger Of Allah (ﷺ) Say: 'Whoever Touches His Private Part Should Perform Wudu.'"*

Sanad:

- **Abu Bakr Ibn Abu Shayba → Al-Mu'alla Ibn Mansur → Abdullah Ibn Ahmad Ibn Bashir Ibn Dhakwan Al-Dimashqi → Marwan Ibn Muhammad → Haytham Ibn Humayd → Alaa Ibn Al-Harith → Makhul → Anbasa Ibn Abu Sufyan → Umm Habiba.**
- **Hadith Status: Da'if** (Weak). The Chain Contains **Makhul's** Tadlees (Concealing The Full Chain), And It Is Not Proven That He Met **Umm Habiba**.

Takhrij Of Hadith 481:

This Hadith Is Also Reported In The Following Books:

- **Ibn Majah** In His "Sunan" (1/303) With Number (481) Under The "Wudu From Touching The Private Part" Chapter.
- **Al-Bayhaqi** In "Sunan Al-Kabir" (1/130) With Numbers (634) And (635).
- **Abu Ya'la** In His "Musnad" (13/65) With Number (7144).
- **Ibn Abi Shaybah** In "Musannaf" (2/198) With Number (1736).
- **At-Tahawi** In "Sharh Ma'ani Al-Athar" (1/75) With Numbers (450) And (451).
- **Al-Tabarani** In "Al-Kabir" (23/234) With Numbers (447), (450), And (451), And In "Al-Awsat" (3/259) With Number (3084).

Hadith From Ibn Majah (Hadith 480):

This Hadith Is Reported By **Jabir Ibn Abdullah** (May Allah Be Pleased With Him), Where He Narrates That The Messenger Of Allah (ﷺ) Said: *"When Any Of You Touches His Private Part, He Must Perform Wudu."*

Sanad:

- **Ibrahim Ibn Al-Munthir Al-Hizami → Ma'n Ibn 'Isa → Abd Al-Rahman Ibn Ibrahim Al-Dimashqi → Abd Allah Ibn Nafi' → Ibn Abi Dhi'b → Uqba Ibn 'Abd Al-Rahman → Muhammad Ibn Abd Al-Rahman Ibn Thawban → Jabir Ibn Abdullah.**

- **Hadith Status: Munqati' / Ghareeb** (Discontinued Chain). The Link Between **Uqba Ibn 'Abd Al-Rahman** And **Muhammad Ibn Abd Al-Rahman Ibn Thawban** Is Not Established, And **Uqba** Is Unknown.

Hadith From Ibn Majah (Hadith 482):

This Hadith Is Reported By **Abu Ayyub Al-Ansari** (May Allah Be Pleased With Him), Who Says: *"I Heard The Messenger Of Allah (ﷺ) Say: 'Whoever Touches His Private Part Should Perform Wudu.'"*

Sanad:

- **Sufyan Ibn Waki' → Abd Al-Salam Ibn Harb → Ishaq Ibn Abi Farwah → Al-Zuhri → Abd Al-Rahman Ibn Abd Al-Qari → Abu Ayyub.**
- **Hadith Status: Da'if** (Weak). The Chain Includes **Ishaq Ibn Abdullah Ibn Abi Farwah**, Who Is Unanimously Considered Weak.

Muwatta, Volume 1, Page 58, Hadith 128

Musab Ibn Saad Says, "I Was Holding The Mushaf In My Hands In Front Of Saad Ibn Abi Waqas, And I Rubbed My Hands. Saad Said To Me, 'Perhaps You Touched Your Private Parts?' I Replied, 'Yes.' He Said, 'Then Go And Perform Wudu.' So, I Went, Performed Wudu, And Returned."

(Sahih Li Ghairihi / Condition Of Shaykhayn)

Takhrij Al-Hadees (Source Of The Hadith):

- Reported By Malik In *Al-Muwatta* (1/58) With Number 128, In The Book Of Prayer, Wudu From Touching The Private Parts.
- Al-Bayhaqi In *Sunan Al-Kabir* (1/88) With Number 413, In The Book Of Tahara, Chapter On The Prohibition For A Person In A State Of Hadath (Impurity) To Touch The Mushaf.
- Al-Bayhaqi In *Sunan Al-Kabir* (1/131) With Numbers 637–639, In The Book Of Tahara, Chapter On Wudu From Touching The Private Parts.
- Abdur Razzaq In *Al-Musannaf* (1/114) With Numbers 414–415, In The Book Of Tahara, Chapter On Wudu From Touching The Private Parts.
- Ibn Abi Shaiba In *Al-Musannaf* (2/200) With Number 1742, In The Book Of Tahara, From Those Who Regard Touching The Private Parts As Requiring Wudu.
- At-Tahawi In *Sharh Ma'ani Al-Athar* (1/75) With Numbers 450–451, In The Book Of Tahara, Chapter On Whether Wudu Is Required From Touching The Private Parts.

Muwatta, Volume 1, Page 58, Hadith 129 (Hadith From Ibn Umar)

Malik, From Nafi', Reports That Abdullah Ibn Umar Used To Say: "If Anyone Touches His Private Parts, Then Wudu Becomes Obligatory On Him."

(Sahih Li Ghairihi / Condition Of Shaykhayn)

Takhrij Al-Hadees (Source Of The Hadith):

- Reported By Malik In *Al-Muwatta* (1/58) With Number 129, In The Book Of Prayer, Wudu From Touching The Private Parts.
- Al-Bayhaqi In *Sunan Al-Kabir* (1/131) With Numbers 638–640, In The Book Of Tahara, Chapter On Wudu From Touching The Private Parts.
- Al-Daraqutni In *Sunan* (1/267) With Number 531, In The Book Of Tahara, Chapter On Touching The Private Parts And The Ruling On It.
- Al-Bazar In *Musnad* (12/234) With Number 5962, In The Musnad Of Abdullah Ibn Umar.
- Ibn Abi Shaiba In *Al-Musannaf* (2/199) With Number 1738, In The Book Of Tahara, From Those Who Regard Touching The Private Parts As Requiring Wudu.
- At-Tahawi In *Sharh Ma'ani Al-Athar* (1/74) With Numbers 445–446, In The Book Of Tahara, Chapter On Whether Wudu Is Required From Touching The Private Parts.

Musnad Ahmed, Volume 3, Page 1492, Hadith 7197 – Narrated By Abdullah Ibn Amr:

Narrated By Abdul Jabbar Bin Muhammad, Known As Al-Khattabi: He Narrated To Me From Baqiyyah, From Muhammad Bin Walid Al-Zubaidi, From Amr Bin Shu'ayb, From His Father, From His Grandfather, Who Said: The Messenger Of Allah (ﷺ) Said To Me: "Whoever Touches Their Private Parts, Let Them Perform Wudu, And Whichever Woman Touches Her Private Parts, Let Her Perform Wudu."

(This Hadith Is Classified As **Hasan Al-Hadees**.)

Note: Baqiyyah Bin Walid Is Trustworthy, But He Is Known To Have Committed Tadlees (Concealment Of Weakness) In Some Cases. For Further Details, Please Refer To My Treatise *Tafseel Al-Rijal*. Also, The Narration Of Amr Bin Shu'ayb Has Further Details Discussed Therein.

Takhrij Al-Hadees:

- Narrated By Ibn Jarud In *Al-Muntaka* (1/15) Under Hadith No. 19 (Wudu From Touching The Private Parts).

- Narrated By Al-Bayhaqi In *Al-Sunan Al-Kabeer* (1/132) Under Hadith No. 646 (Book Of Taharah, Chapter On Wudu From A Woman Touching Her Private Parts), Hadith No. 647 (Same Chapter), And Others.

Abu Huraira Narration In Musnad Ahmed, Hadith 8520:

Narrated By Yahya Bin Yazid Bin Abdul Malik, Also Known As Al-Nawfali: His Father Narrated From Sa'id Bin Abu Sa'id Al-Maqbari, From Abu Huraira, Who Reported That The Messenger Of Allah (ﷺ) Said: "Whoever Touches Their Private Parts With Their Hand And There Is No Covering Between Them, Then They Must Perform Wudu."

(This Hadith Is **Da'if** (Weak).)

Note: In This Chain, Yazeed Bin Abdul Malik Is Unanimously Considered Weak.

However, There Is A Reliable Version Of This Hadith Found In Ibn Hibban (Hadith No. 1118), Which Is **Sahih**.

Takhrij Al-Hadees:

- Ibn Hibban In His *Sahih* (3/401) Under Hadith No. 1118.
- Al-Hakim In *Al-Mustadrak* (1/138) Under Hadith No. 480.
- Al-Bayhaqi In *Al-Sunan Al-Kabeer* (1/130) Under Hadith No. 636, And In Subsequent References.
- Ahmad In *Musnad* (2/1765) Under Hadith No. 8520 And Others.

Al-Mujum Kabir, Tabrani, Volume 8, Page 334, Hadith 8252 - Narrated By Talq Bin Ali:

Narrated By Al-Hasan Bin Ali Al-Fasawi, From Hammad Bin Muhammad, From Ayyub Bin Utbah, From Qays Bin Talq, From His Father, Who Reported That The Prophet (ﷺ) Said: "Whoever Touches Their Private Parts, They Should Perform Wudu."

This Hadith Is Considered Weak By Scholars Because Of The Unreliable Chain Involving Ayyub Bin Utbah And Hammad Bin Muhammad.

(This Hadith Is **Da'if Jiddan** (Very Weak)).

Ibn Abi Shaybah, Hadith 1747 - Narration From Ibn Abbas And Ibn Umar:

Narrated By Shababah, From Shu'bah, From Qatadah, From Ata, From Ibn Abbas And Ibn Umar Who Said: "Whoever Touches Their Private Parts Should Perform Wudu."

(This Is Classified As **Sahih Li Zatihi** (Authentic In Its Own Right)).

Bayhaqi's "Kubra" Vol. 1, Page 133, Hadith 649, A Narration From Aisha (RA):

Abu Abdullah Al-Hafidh, Narrated To Us By Abu Abdullah Muhammad Ibn Ahmad Ibn Butta Al-Asbahani From His Original Book, Who Said: Abdullah Ibn Muhammad Ibn Zakariya Al-Asbahani Narrated To Us, Who Said: Muhariz Ibn Salamah Al-Adani Narrated To Us, Who Said: Abdul Aziz Ibn Muhammad Narrated From Ubaidullah Ibn Umar, From Al-Qasim, From Aisha Who Said: "When A Woman Touches Her Private Part, She Must Perform Wudu." This Narration Is Also Reported By Abdullah Al-Umari From His Brother Ubaidullah.

(Hadith Da'if)

In This Sanad, Abdul Aziz Ibn Muhammad Is Mentioned, And He Is Considered Unreliable When Narrating From Ubaidullah Ibn Umar.

Reference: Tazhib Al-Kamal, Vol. 18, Page 187

Tazhib At-Tazhib, Vol. 2, Page 592

There Is Another Chain Found In "Darqutni" (Hadith 535), Which Is Also Considered Weak Because It Includes Abdul Rahman Ibn Abdullah Ibn Umar Ibn Hafs Ibn Asim Al-Madani, Who Is Unanimously Deemed Weak.

There Is Another Chain In "Musnad Bazzar" Vol. 18, Page 158, Which Is Also Weak. In This Chain, Omar Ibn Saeed Ibn Surayj, Also Known As Ibn Sarh, Is Unanimously Considered Weak.

Hadith From Ziyad Ibn Khalid:

Abdul Razzaq (Hadith 412):

Abdul Razzaq Narrated To Us: Ibn Jurayj Narrated To Us: Ibn Shihab Narrated To Me From Abdullah Ibn Abu Bakr, From Urwah, Who Narrated From Busrah Bint Safwan, From Zaid Ibn Khalid Al-Juhani, Who Reported That The Messenger Of Allah (PBUH) Said: "When Any Of You Touches His Private Part, Let Him Perform Wudu."

(Rijal Siqa)

This Chain Is Considered Reliable.

Hadith Compilation (Takhrij):

This Hadith Is Found In Several Collections:

- Malik's "Al-Muwatta" (1/57), Hadith 127/38 (Book Of Prayer, Wudu After Touching The Private Part)

- Ibn Jarud In "Al-Muntaka" (1/14), Hadith 16 (Wudu After Touching The Private Part)
- Ibn Khuzayma In His "Sahih" (1/152), Hadith 33 (Book Of Wudu, Chapter On The Recommendation To Perform Wudu After Touching The Private Part)
- Ibn Hibban In His "Sahih" (3/396), Hadith 1112 (Book Of Purification, Report Stating That Touching The Male Organ Of One's Wife Does Not Obligate Wudu)
- Al-Hakim In "Mustadrak" (1/136), Hadith 472 (Book Of Purification, Wudu After Touching The Private Part)
- Al-Nasa'i In "Al-Mujtaba" (1/57), Hadith 163/1 (Book Of Purification, Chapter On Wudu From Touching The Private Part)
- Abu Dawood In "Sunan" (1/71), Hadith 181 (Book Of Purification, Wudu From Touching The Private Part)
- Al-Tirmidhi In "Jami" (1/125), Hadith 82 (Book Of Purification, Wudu From Touching The Private Part)
- Al-Darmani In His "Musnad" (1/564), Hadith 751 (Book Of Purification, Wudu From Touching The Private Part)
- Ibn Majah In "Sunan" (1/302), Hadith 479 (Book Of Purification, Wudu From Touching The Private Part)
- Al-Bayhaqi In "Sunan Al-Kubra" (1/128), Hadith 623 (Book Of Purification, Wudu From Touching The Private Part)

Argument Of Those Who Say That Wudu (Ablution) Does Not Break:

Tirmidhi, Hadith 85, From Talq Bin Ali:

Hadith Text:

حَدَّثَنَا هَنَادٌ ، قَالَ: حَدَّثَنَا مُلَازِمُ بْنُ عَمْرِو ، عَنْ عَبْدِ اللَّهِ بْنِ بَدْرٍ ، عَنْ قَيْسِ بْنِ طَلْقِ بْنِ عَلِيٍّ الْحَنْفِيِّ عَنْ أَبِيهِ ، عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ: وَهَلْ هُوَ إِلَّا مُضْغَةٌ مِنْهُ ؟ أَوْ بَضْعَةٌ مِنْهُ ؟

Translation Of Hadith:

The Messenger Of Allah ﷺ Said, "Is It Not Just A Piece Of Flesh From Him? Or A Part Of Him?"

Explanation:

This Refers To The Genital Area, Which Is Considered Part Of The Body, With The Understanding That It Does Not Invalidate Wudu In This Context.

Scholarly Authentications:

- Ibn Hibban Declared It Sahih (Authentic).
- Ibn Hajar Also Declared It Sahih.
- Ibn Hazam Declared It Sahih.
- Tirmidhi Graded It Hasan (Good).
- Al-Tabrani Declared It Sahih.
- Imam Tahawi Considered It Sahih.
- Ali Ibn Madini Graded It Hasan.

Takhrij Of The Hadith (Sources And Chain Of Transmission):

- Ibn Al-Jaroud In "Al-Muntqa" (1/16), Hadith #20 And #21.
- Ibn Hibban In His Sahih (3/402-403), Hadith #1119, #1120, #1121.
- Al-Diya Al-Maqdisi In "Al-Ahadith Al-Mukhtarah" (8/152-153).
- Al-Nasa'i In "Al-Mujtaba" (1/58) And "Al-Kubra" (1/137).
- Abu Dawood In His "Sunan" (1/72).
- Tirmidhi In His "Jami'" (1/127), Hadith #85.
- Ibn Majah In "Sunan" (1/304), Hadith #483.
- Al-Bayhaqi In "Sunan Al-Kabir" (1/134-135).
- Al-Daraqutni In "Sunan" (1/271-273).
- Ahmad In His "Musnad" (7/3546-3548), Hadith #16543-16553.
- Al-Tayalisi In His "Musnad" (2/420), Hadith #1192.
- Abdul Razzaq In His "Musannaf" (1/117), Hadith #426.
- Ibn Abi Shaybah In His "Musannaf" (2/203), Hadith #1756.
- Al-Tahawi In His "Sharh Ma'ani Al-Athar" (1/75), Hadith #455-460.
- Al-Tabarani In "Al-Kabir" (8/330-334), Hadith #8233-8249.
- Al-Tabarani In "Al-Awsat" (2/62), Hadith #1252.

Ibn Maja, Volume 1, Page 305, Hadith 484 – Abu Umamah Al-Bahili's Hadith

حَدَّثَنَا عَمْرُو بْنُ عُثْمَانَ بْنِ سَعِيدٍ بْنِ كَثِيرٍ بْنِ دِينَارٍ الْجُمَيْيُّ، حَدَّثَنَا مَرْوَانُ بْنُ مُعَاوِيَةَ، عَنْ جَعْفَرِ بْنِ الزُّبَيْرِ، عَنِ الْقَاسِمِ، عَنْ أَبِي أُمَامَةَ، قَالَ: سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَنْ مَسِّ الذَّكَرِ، فَقَالَ: إِنَّمَا هُوَ جُزْءٌ مِنْكَ.

(Weak Hadith)

In This Sanad, Jafar Ibn Zubair Is Considered Matrook (Reliable Sources Have Rejected Him).

Takrij Al-Hadith:

This Hadith Is Narrated In Ibn Majah's "Sunan" (Volume 1, Page 305, Hadith 484), In The "Books Of Purification" Under "The Permission For Not Doing Wudu After Touching The Private Part," Also Found In Abd Al-Razzaq's "Musannaf" (Volume 1, Page 116, Hadith 425), Ibn Abi Shaybah's "Musannaf" (Volume 2, Page 204, Hadith 1762), And Al-Tabarani's "Al-Kabeer" (Volume 8, Page 242, Hadith 7945).

Similarly, A Hadith From Ibn Mas'ud Is Narrated By Ibn Abi Shaybah (Hadith 1749):

حَدَّثَنَا وَكِيعٌ، عَنْ سُفْيَانَ، عَنْ أَبِي قَيْسٍ، عَنْ هُزَيْلٍ أَنَّ أَخَاهُ أَرْقَمَ بْنَ شَرْحَبِيلَ سَأَلَ ابْنَ مَسْعُودٍ فَقَالَ: إِنِّي أَهْتَكُ فَأَفْضِي بِيَدِي إِلَى فَرْجِي؟ فَقَالَ ابْنُ مَسْعُودٍ: إِنْ عَلِمْتَ أَنَّ مِنْكَ بَضْعَةً نَجَسَةً فَاقْطَعْهَا.

Translation:

Hazal Ibn Sharahbeel Narrates That His Brother Arqam Ibn Sharahbeel Asked Abdullah Ibn Mas'ud, "If My Hand Touches My Private Part, Should I Perform Wudu?" Ibn Mas'ud Replied, "If You Are Certain That Something Impure Has Touched You, Cut It Off."

This Hadith Is Also Found In A Slightly Different Form, Where Arqam Says, "While I Was Praying, My Hand Touched My Private Part. I Asked Ibn Mas'ud About It, And He Told Me To Cut It Off." He Then Laughed And Said, "You Cannot Separate It From Your Body; It Is Part Of Your Body."

(Sahih Li Zatihi)

Takrij Al-Hadith:

This Narration Is Found In Abd Al-Razzaq's "Musannaf" (Volume 1, Page 118, Hadith 430), Ibn Abi Shaybah's "Musannaf" (Volume 2, Page 201, Hadith 1749), And Al-Tabarani's "Al-Kabeer" (Volume 9, Page 247, Hadith 9218).

Al-Mujum Al-Kabeer By Al-Tabarani, Volume 9, Page 247, Hadith 9218:

حَدَّثَنَا مُحَمَّدُ بْنُ النَّضْرِ الْأَزْدِيُّ، ثَنَا مُعَاوِيَةُ بْنُ عَمْرٍو، ثَنَا زَائِدَةُ، عَنْ هِشَامٍ، عَنْ الْحَسَنِ، عَنْ خَمْسَةٍ مِنْ أَصْحَابِ مُحَمَّدٍ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: عَلِيِّ بْنِ أَبِي طَالِبٍ، وَابْنِ مَسْعُودٍ، وَخُذَيْفَةَ، وَعِمْرَانَ بْنَ حُصَيْنٍ، وَرَجُلٌ آخَرٌ قَالَ بَعْضُهُمْ: مَا أَبَالِي ذَكَرِي مَسِسْتُ أَوْ أَرْنَبِي، "وَقَالَ الْآخَرُ: "أَذُنِي"، وَقَالَ الْآخَرُ: "فَخِذِي"، وَقَالَ الْآخَرُ: "رُكْبَتِي".

Translation:

Al-Hasan Basri Reports That Five Companions Of The Prophet ﷺ—Ali Ibn Abi Talib, Abdullah Ibn Mas'ud, Huzaifah Ibn Yaman, Imran Ibn Husain, And Another Companion—Said That They Do Not Mind Whether They Touch Their Private Parts Or Other Body Parts Like The Ear, Thigh, Or Knee.

(Hasan Li Zatihi)

Hasan Al-Basri's Hearing (Samā') From 'Ali Ibn Abi Tālib

It Is Well Known Among The Muḥaddithīn (Scholars Of ḥadīth) That The Samā' (Direct Hearing) Of Hasan Al-Basri From 'Ali Ibn Abi Tālib Is Not Established (Proven).

However, Hasan Al-Basri's Meeting With 'Uthmān Ibn 'Affān Is Established. Since 'Uthmān Was Martyred **Before** 'Ali Ibn Abi Tālib, It Logically Follows That Hasan Al-Basri's Meeting With 'Ali Is Also Plausible. I Will Provide Detailed References For Both, Inshā'allāh.

Testimony From Ibn Sa'D (D. 230 AH)

Imām Ibn Sa'D Writes In His Book *Ṭabaqāt Al-Kubrā*, Vol. 7, P. 157:

Hasan Al-Basri Said:

"I Saw 'Uthmān Ibn 'Affān Delivering A Khuṭbah (Sermon) When I Was Fifteen Years Old."

وَقَالَ أَبُو دَاوُدَ الطَّيَالِسِيُّ، عَنْ خَالِدِ بْنِ عَبْدِ الرَّحْمَنِ بْنِ بُكَيْرٍ قَالَ: حَدَّثَنَا الْحَسَنُ قَالَ: «رَأَيْتُ عُثْمَانَ يَخْطُبُ - وَأَنَا ابْنُ خَمْسَ عَشْرَةَ سَنَةً - «فَأَيْمًا وَقَاعِدًا»

(Sahih Li-Dhatihi)

Assessment Of The Chain (Sanad):

- All Narrators In This Chain Are Reliable (Thiqah):
 1. **Abū Dāwūd Al-Ṭayālīsī** — Agreed Upon As A Thiqah Imām.
 2. **Khālīd Ibn ‘Abd Al-Raḥmān Ibn Bukayr** — Also A Thiqah Imām.
 - Ibn Ḥibbān Includes Him Among The Trustworthy (*Al-Thiqāt*).
 - Ibn Ḥajar Calls Him *ṣadūq* (Truthful) (*Taqrīb Al-Tahdhīb*, 1/288).
 - Imām Al-Dhahabī Calls Him *ṣadūq* (*Al-Kāshif Fī Ma‘Rifat Man Lahu Riwayah Fī Al-Kutub Al-Sittah*, 2/347).
 - Abū Ḥātim Says: “There Is No Harm In Him” (*Al-Jarḥ Wa-Al-Ta‘Dīl*, 3/341).
 - Imām Al-Dāraquṭnī Says: “There Is No Harm In Him” (*Tahdhīb Al-Tahdhīb*, 1/524).
 3. **The Third Narrator Is Hasan Al-Basri Himself**, Who By Consensus Is A Thiqah Imām.

Other Chains And References

There Are Several Additional Chains And Mentions:

- Imām Abū Bishr Muḥammad Ibn Aḥmad Ibn Ḥammād Ibn Sa‘īd Ibn Muslim Al-Anṣārī Al-Dulabī Al-Rāzī (D. 310 AH), In His Book *Al-Kunā Wa Al-Asmā’*, Vol. 3, P. 920, Narration No. 1612, Reports:

Hasan Al-Basri Said:

“I Was Born Two Years Into The Caliphate Of ‘Umar, And I Used To Recite The Qur’ān During The Caliphate Of ‘Uthmān, And I Saw ‘Uthmān Ibn ‘Affān Delivering The Khuṭbah, Sometimes Sitting And Sometimes Standing.”

حَدَّثَنَا إِسْحَاقُ بْنُ سَيَّارِ النَّصَبِيِّ، قَالَ: حَدَّثَنَا أَبُو قُرَّةَ عَبْدُ الْمَجِيدِ بْنُ أَيُّوبَ الْوَاشِجِيُّ جَارُ سُلَيْمَانَ بْنِ حَرْبٍ قَالَ: حَدَّثَنَا عُقْبَةُ الْأَصَمُ الرَّفَاعِيُّ، قَالَ: سَمِعْتُ الْحَسَنَ بْنَ أَبِي الْحَسَنِ، يَقُولُ: وَلِدْتُ لِسَنَتَيْنِ مِنْ خِلَافَةِ عُمَرَ، وَفَرَأْتُ الْقُرْآنَ فِي خِلَافَةِ عُمَانَ، وَرَأَيْتُ عُمَانَ... يَخْطُبُ عَلَى الْمِنْبَرِ، وَعَلَيْهِ قَمِيصٌ لَبَنِي، يَقْعُدُ أَحْيَانًا وَيَقُومُ أَحْيَانًا، يَأْمُرُ بِقَتْلِ الْحَمَامِ الطَّيَّارَةِ وَالْكِلَابِ، وَيَنْهَى عَنِ الْمُثَلَّةِ...

- Imām Abū Ḥātim Also Mentions This In *Tafsīr Abī Ḥātim*, Vol. 5, P. 1458, Narration No. 8342, Under The Tafsīr Of Sūrah Al-A‘Rāf, Āyah 26:

Hasan Al-Basri Said:

“I Saw ‘Uthmān Ibn ‘Affān Delivering A Khuṭbah, And He Said:

‘O People! Fear Allāh In Your Hidden Matters. I Heard The Messenger Of Allāh ﷺ Say:

وَالَّذِي نَفْسِي بِيَدِهِ، مَا عَمِلَ أَحَدٌ عَمَلًا قَطُّ سِرًّا إِلَّا أَلْبَسَهُ اللَّهُ رِدَاءَهُ عِلَانِيَةً إِنْ خَيْرًا فَخَيْرٌ وَإِنْ شَرًّا فَشَرٌّ

“By The One In Whose Hand Is My Soul, No One Ever Performs An Action Secretly Except That Allāh Will Clothe Him With Its Garment Openly — If Good, Then Good; If Evil, Then Evil.”

- Imām Al-Dhahabī Also Mentions This In *Tārīkh Al-Islām*, Vol. 7, P. 51:

أَبُو دَاوُدَ الطَّيَالِسِيُّ، عَنْ خَالِدِ بْنِ عَبْدِ الرَّحْمَنِ بْنِ بُكَيْرٍ، ثَنَا الْحَسَنُ قَالَ: رَأَيْتُ عُمَانَ يَخْطُبُ وَأَنَا ابْنُ خَمْسٍ عَشْرَةَ سَنَةً قَائِمًا وَقَاعِدًا

Confirmation By Major Muḥaddithīn

Even The Major Muḥaddithīn Affirm The Samā‘ Of Hasan Al-Basri From ‘Uthmān Ibn ‘Affān.

- Imām Bukhārī’s Teacher, **‘Alī Ibn Al-Madīnī**, Writes In *Al-‘Ilal* (Vol. 1, P. 51, Entry No. 49) Under The Biography Of Hasan Al-Basri:

قَالَ عَلِيُّ سَمِعَ الْحَسَنُ مِنْ عُثْمَانَ بْنِ عَفَّانٍ وَهُوَ غُلَامٌ يَخْطُبُ

“‘Alī Said: Hasan Heard From ‘Uthmān Ibn ‘Affān While He (Hasan) Was A Youth, As ‘Uthmān Was Delivering A Sermon.”

- Similarly, **Ibn ‘Abd Al-Barr Al-Mālīkī** Says In *Al-Tamhīd*, Vol. 24, P. 327:

وقد روي عن الحسن أنه قال حدثنا أبو هريرة ونحن إذ ذاك بالمدينة وقد سمع الحسن من عثمان وسعد بن أبي وقاص

“It Has Been Reported From Hasan That He Said: ‘Abū Hurayrah Narrated To Us While We Were Then In Madīnah, And Hasan Had Heard From ‘Uthmān And Sa‘D Ibn Abī Waqqāṣ.”

- **Ibn Ḥajar** Also Affirms This In His Works, Offering Praise And Confirmation.

Evidence Of Hasan Al-Basri’s Samā‘ From ‘Ali Ibn Abi Ṭālib

Yes, The Samā‘ Of Hasan Al-Basri From ‘Ali Ibn Abi Ṭālib **Is Also Present**.

- Imām Bukhārī Mentions In *Al-Tārīkh Al-Kabīr*, Vol. 5, P. 60:

‘Abd Allāh Ibn Jābir Narrates:

Hasan (Al-Basri) Said:

“I Was With ‘Ali (Ibn Abi Ṭālib) When The Cry Came From The House Of ‘Uthmān.”

قَالَ ابْنُ حُجْرٍ: حَدَّثَنَا حَكَّامٌ، عَنْ أَبِي حَمْزَةَ، عَبْدِ اللَّهِ بْنِ جَابِرٍ، عَنِ الْحَسَنِ، رَضِيَ اللَّهُ عَنْهُ، إِنِّي عِنْدَ عَلِيٍّ، رَضِيَ اللَّهُ عَنْهُ، إِذْ جَاءَتِ الصَّيْحَةُ مِنْ دَارِ عُثْمَانَ

(*Sahīḥ Li-Dhātihī*)

Hasan Al-Basri Is Unanimously Considered A Trustworthy Narrator. His Student, Abu Hamza, Abdullah Bin Jaber, Is Also A Trustworthy Narrator.

1. Imam Abu Hatim Says: "I Prefer Abdullah Bin Jaber Over Al-Hajjaj Bin Artah."
(Tazib Al-Tazib, Vol. 2, P. 312)
2. Ibn Hajar Says He Is Acceptable (Maqbool).
(Taqreeb Al-Tazib, Vol. 1, P. 495)
3. Imam Al-Dhahabi Describes Him As Trustworthy (Siqa).
(Al-Kashif, Vol. 3, P. 95)
4. Ibn Bazzar Says There Is Nothing Wrong With Him.
(Tazib Al-Tazib, Vol. 2, P. 312)
5. Ibn Hibban Counts Him Among The Trustworthy Narrators.
(Kitab Al-Siqat, Tazib Al-Tazib, Vol. 2, P. 312)

6. Yahya Ibn Ma'in Considers Him Trustworthy.
(Tazib Al-Tazib, Vol. 2, P. 312)
7. Ibn Khaldun Includes Him Among The Trustworthy Narrators.
(Ikmal Tazib Al-Kamal, Vol. 7, P. 273)
8. Imam Hakim Includes His Hadith In His Mustadrak.
(Ikmal Tazib Al-Kamal, Vol. 7, P. 273)

After Him Comes Hakam (Bin Salim Al-Kinani), Who Is Also Unanimously Considered Trustworthy. He Is A Narrator Of Sahih Muslim, And Bukhari Has Also Narrated From Him In His Sahih Bukhari.

All The Narrators In This Chain Are Trustworthy And Established.

Some People Have Misunderstood This Narration. Muhammad Abdul Mueed Khan, In His Work *Tareekh Al-Kabeer* On Bukhari, In The Margin Of This Narration, Wrote That "Hasan" Refers To Hasan Bin Ali, Which Is An Incorrect Assumption. The "Hasan" Here Does Not Refer To Hasan Bin Ali, But Rather To Hasan Bin Abi Hasan Al-Basri. There Are Several Proofs For This, Which, Inshaallah, Will Be Examined In Detail Later.

However, The Error In The Researcher's Interpretation Arises Because Imam Bukhari Wrote "Hasan" With "Radiallahu Anhu" Alongside It, Leading The Researcher To Think It Refers To Hasan Bin Ali, The Companion. The Reason For This Confusion Is That, In General, When "Radiallahu Anhu" Is Mentioned With A Name, People Commonly Assume It Refers To A Companion. But, In The Specific Context Of Hadith Science, Scholars Have Always Known And Accepted That "Radiallahu Anhu" Can Also Be Written For Non-Sahaba, Including Scholars Of The Early Generations (Salaf) As Well As Later Ones (Khalaf). Here Are A Few Examples:

1. Imam Mohammad Ibn Hasan Shaybani Al-Kufi Begins His Book *Al-Hujjah* By Mentioning Abu Hanifa (Radiallahu Anhu), And In 194 Places In This Book, Imam Mohammad Mentions Abu Hanifa With "Radiallahu Anhu."
2. Imam Al-Sarakhsi Mentions Abu Hanifa (Radiallahu Anhu) In His Book *Al-Mabsut*, Vol. 2, P. 24, And At Least 14 Times In This Book, Abu Hanifa Is Mentioned With "Radiallahu Anhu."
3. Imam Samarqandi Writes In His Book *Tuhfat Al-Fuqaha*, Vol. 1, P. 143, Abu Hanifa (Radiallahu Anhu).
4. Imam Ahmed Bin Muhammad Bin Omar Al-Atabi Al-Bukhari, Abu Nasr, And Abu Al-Qasim Zain Al-Din (586 AH) Mention Abu Hanifa (Radiallahu Anhu) In Their Book *Sharh Nikat*, Vol. 1, P. 61, At Least Four Times.
5. Imam Khasani Mentions Abu Hanifa (Radiallahu Anhu) In His Book *Badaya Al-Sanaya*, Vol. 1, P. 14.
6. Imam Abu Maza Al-Bukhari Mentions Abu Hanifa (Radiallahu Anhu) In His Book *Al-Muheet*, Vol. 2, P. 400.
7. Imam Abdullah Bin Mahmoud Bin Mawdood Al-Mawsili Al-Baladhi, Majd Al-Din Abu Al-Fadl (683 AH) Mentions Abu Hanifa (Radiallahu Anhu) In His Book *Al-Ikhtiyar Lita'ilil Al-Mukhtar*, Vol. 1, P. 25.
8. Imam Qarafi Maliki Mentions Both Imam Abu Hanifa And Imam Shafi (Radiallahu Anhum) In His Book *Al-Zakariya*, Vol. 1, P. 146, And Also Writes Abu Hanifa With "Radiallahu Anhu" In Vol. 1, P. 325.

9. Imam Abu Al-Qasim, Muhammad Bin Ahmed Bin Muhammad Bin Abdullah, Ibn Juzy Al-Kalbi Al-Granati Maliki (741 AH) Writes Abu Hanifa (Radiallahu Anhu) In His Book *Al-Qawanin Al-Fiqhiyyah*, Vol. 1, P. 135.
10. Imam Shafi Mentions Abu Hanifa (Radiallahu Anhu) In His Book *Al-Umm*, Vol. 6, P. 248, And Mentions Him At Least 15 Times With "Radiallahu Anhu."

This Makes It Clear That Scholars, Jurists, And Hadith Experts Have Written "Radiallahu Anhu" For Non-Sahaba As Well, To Indicate Their Respect And The Merits Of The Individuals. This Is The Case For Both Abu Hanifa And Hasan Al-Basri, Who Were Not Sahabah, But Were Respected Scholars. Therefore, Imam Bukhari Used "Hasan" Along With "Radiallahu Anhu" To Indicate The Merit Of Hasan Al-Basri. Thus, The "Hasan" In This Context Refers To Hasan Al-Basri, Not Hasan Bin Ali.

This Clarification Is Supported By Imam Bukhari Himself, Who, If You Carefully Examine His Work *Tareekh Al-Kabeer*, Confirms That This "Hasan" Refers To Hasan Al-Basri.

This Is Our Actual Chain Of Narration.

Ibn Hajar Said: "Hakkam Narrated To Us From Abu Hamza, From Abdullah Ibn Jaber, From Al-Hasan (May Allah Be Pleased With Him), Who Said, 'I Was With Ali (May Allah Be Pleased With Him) When The Cry Came From The House Of Uthman.'"

Some People Have Claimed That Abdullah Ibn Jaber, Who Is Narrating From Hasan In This Chain, Is A Companion Of The Prophet (Sahabi) And That He Is Narrating From Hasan Ibn Ali.

In Reality, This Is A Misunderstanding. The Reason For This Confusion Is That There Was A Companion Named Abdullah Ibn Jaber. The Issue Arose Because Some People Mistakenly Thought That The Narration In "Tareekh Al-Kabeer" Was From Hasan Ibn Ali, Who Is Also Mentioned In The Narration. However, There Were Two Different People Named Abdullah Ibn Jaber. One Is A Sahabi (Companion), And The Other Is A Non-Companion, The Well-Known Abdullah Ibn Jaber Al-Abdi.

Let Us First Clarify The Matter Regarding Abdullah Ibn Jaber, The Companion.

The Full Name Of The Sahabi Abdullah Ibn Jaber Is Mentioned By Imam Ibn Sa'ad: "Jaber Ibn Abdullah Ibn Jaber Al-Abdi. He Was From The Delegation Of Abd Al-Qais And Later Moved To Basra."
(Tabaqat Al-Kubra, Vol. 7, P. 88)

Imam Abu Naim Also Mentioned Him: "Abdullah Ibn Jaber Al-Abdi Was From Abd Al-Qais, And He Was With His Father When They Came To The Messenger Of Allah ﷺ."
(Ma'arifat As-Sahabah, Vol. 3, P. 1609)

Ibn Hajar Asqalani Said: "Abdullah Ibn Jaber Al-Abdi Was From Abd Al-Qais And Was Counted Among The Companions. He Lived In Basra."
(Al-Isaba Fi Tamyiz As-Sahabah, Vol. 4, P. 30)

Imam Qurtubi Also Mentioned Him: "Abdullah Ibn Jaber Al-Abdi Was From Abd Al-Qais And Was A Sahabi."

(Al-Istia'ab Fi Ma'rifat Al-Ashab, Vol. 3, P. 877)

Similarly, Imam Abu Al-Qasim Abdullah Ibn Muhammad Ibn Abdul Aziz Al-Baghawi (317 AH) Mentioned Him And Confirmed That He Was From Abd Al-Qais, Lived In Basra, And Narrated Hadith From The Messenger ﷺ.

(Maujim As-Sahabah, Vol. 4, P. 132, No. 1650)

Now, There Is A Point Of Confusion That Some People Have Raised. In The Narration From "Tareekh Al-Kabeer" By Imam Bukhari, Abdullah Ibn Jaber Is Mentioned Narrating From Hasan. Some People Mistakenly Thought That This Was Hasan Ibn Ali, But This Is Incorrect. The Confusion Arises Because Abdullah Ibn Jaber Al-Abdi, A Companion, Narrated From Hasan Ibn Ali, But Here, In "Tareekh Al-Kabeer," It Refers To Hasan Al-Basri, Not Hasan Ibn Ali. This Point Was Clarified By The Scholars Who Investigated The Narration, Including Adel Ahmed Abdel Mawgod And Ali Mohamed Moawad.

Furthermore, Imam Bukhari Himself Mentioned This Companion, Abdullah Ibn Jaber, In His Book "Tareekh Al-Kabeer." He Said: "Abdullah Ibn Jaber Al-Abdi Came To The Messenger Of Allah ﷺ, And He Was From The Delegation Of Abd Al-Qais." This Is Mentioned At The Beginning Of The Fifth Volume Of "Tareekh Al-Kabeer" Where All The Companions Are Introduced.

(Tareekh Al-Kabeer, Vol. 5, P. 13, No. 23)

In Another Place, It Is Stated In Detail That Abdullah Ibn Jaber Al-Abdi Came To The Messenger Of Allah ﷺ While He Was With His Father. They Were From Abd Al-Qais, And When The Messenger ﷺ Was Detained, They Went To Hasan Ibn Ali, And I Performed Hajj With My Father. Ali (May Allah Have Mercy On Him) Said That Al-Harith Ibn Murrah Heard From Nafis, Who Heard From Abdullah Ibn Jaber.

(Tareekh Al-Kabeer, Vol. 5, P. 59, No. 135)

Summary So Far:

Abdullah Ibn Jaber Al-Abdi Was A Companion From Abd Al-Qais, And He Lived In Basra. He Narrated Hadith From The Messenger Of Allah ﷺ And From Hasan Ibn Ali. His Narrators Were Al-Harith Ibn Murrah And Nafis.

Now We Turn To Our Narration From "Tareekh Al-Kabeer," Where Abdullah Ibn Jaber Al-Abdi Narrates From Al-Dahhak And Al-Hasan, And These Narrations Were Transmitted By Ishaq Ibn Sulayman.

This Was Our Chain Of Narration:

Ibn Hajar Said: "Hakkam Narrated To Us From Abu Hamza, From Abdullah Ibn Jaber, From Al-Hasan (May Allah Be Pleased With Him), Who Said, 'I Was With Ali (May Allah Be Pleased With Him) When The Cry Came From The House Of Uthman.'"

Now, If You Pay Attention, You Will See That Abdullah Ibn Jaber, A Student Of Hasan, Is Referred To Here. Imam Bukhari Also Mentioned Him As "Abu Hamza Abdullah Ibn Jaber."

First Of All, It Is Important To Note That The Companion Abdullah Ibn Jaber Did Not Have The Kunya "Abu Hamza." This Is An Important Distinction, Which Indicates That Abdullah Ibn Jaber, The Companion, And Abu Hamza Abdullah Ibn Jaber Are Two Different Individuals. This Is Why Imam Bukhari Mentioned The Kunya Here, To Avoid Any Confusion Between The Two.

Secondly, If The Abdullah Ibn Jaber In The Narration Is A Companion Who Is Narrating From Hasan, Then His Student In This Chain, Hakam, Is Not The Same As The Companion Abdullah Ibn Jaber. The Real Students Of The Companion Abdullah Ibn Jaber Were Al-Harith Ibn Murrah And Nafis, As We Mentioned Earlier With References From The Scholars. Therefore, We Can Conclude That The Abdullah Ibn Jaber In This Narration Is Not The Companion, But Another Narrator Named Abu Hamza.

Even Imam Bukhari Acknowledges This Distinction, As He Has Listed "Abu Hamza Abdullah Ibn Jaber" Separately And Mentioned That He Narrated From Al-Dahhak And Al-Hasan, With Ishaq Ibn Sulayman As The Chain Of Transmission.

Imam Ahmed Ibn Hanbal Also Recognized This Difference, Noting That Abdullah Ibn Jaber, Abu Hamza, Is Also Referred To As Abu Hazem Al-Basri.
(Mawsou'at Aqwal Al-Imam Ahmad Bin Hanbal, Vol. 2, P. 233, No. 1328)

Imam Mizzi Also Mentioned Him, Noting That Abdullah Ibn Jaber, Abu Hamza, Is Also Called Abu Hazem Al-Basri. He Narrated Hadith From Abu Al-Shatha Jaber Ibn Zaid, Al-Hasan Al-Basri, Atiyah Al-Awfi, Omar Ibn Abdul Aziz, Qatadah, Mujahid, And Nafi Mawla Ibn Omar.
(Al-Kamal Fi Asma' Al-Rijal, Vol. 6, P. 130)

Additionally, When We Look At The Names Of His Students, Ibn Hajar Asqalani Listed Them As Ishaq Ibn Sulayman, Hakam Ibn Salim, Al-Razian, Sufyan Al-Thawri, Umarah Ibn Abdul Rahman Al-Saadi, Muhammad Ibn Abdul Rahman Ibn Abi Layla Al-Nahwi.
(Tehzib Al-Kamal Fi Asma' Al-Rijal, Vol. 14, P. 356)

This Issue Becomes Completely Clear:

The Statement Of **Imam Bukhari** Is Also Confirmed. He Had Said That Ishaq Bin Sulaiman Narrates From Him (Hasan Al-Basri), And In The Narration That Bukhari Mentioned About Hasan Al-Basri, **Hakam** (Hakam Bin Salim), The Student Of Abdullah Bin Jabir, Is The One Narrating.

About This, **Ibn Hajar** Has Written That Hakam Narrates Hadith From Abdullah Bin Jabir, And Ibn Hajar Also Said That Abdullah Bin Jabir Narrates From Hasan Al-Basri. So, The Matter Is Completely Clear Because **No Student Of The Companion (Sahabi) Abdullah Bin Jabir** Is Named Hakam, Nor Is There Any Companion Abdullah Bin Jabir Who Has The Kunyah (Nickname) **Abu Hamza**.

Whereas **Abu Hamza** (Abdullah Bin Jabir, Who Is Not A Companion) Had A Student Named **Hakam Bin Salim**, And His Teacher Was Hasan Al-Basri.

It's Absolutely Clear That There Are Two Different Narrators:

- One Is A Companion (Sahabi)
- The Other Is A Non-Companion

And If **Abdullah Bin Jabir** Is Indeed The Companion Who Narrates From Hasan Al-Basri In That Narration From *Al-Tarikh Al-Kabir*, Then First Bring Evidence That Hakam Was His Student.

Next, Consider That **Hakam** Died In **190 Hijri** — How Could He Be A Tabi‘I (Successor Of The Companions)?

Someone Who Dies In 190H Is Typically Considered From The **Taba‘ Tabi‘In** (Successors Of The Successors).

So, It Is Understood That **Abu Hamza, Abdullah Bin Jabir**, Was From The Taba‘ Tabi‘In, And **Abdullah Bin Jabir The Companion** Is Someone Else Entirely.

It Is Also Clear That **Imam Bukhari** Himself Acknowledged This Distinction.

The Two Major Clues Imam Bukhari Himself Gave In This Same Book Are:

- 1.He Wrote Separate Biographies For Both Narrators.
- 2.He Mentioned The Kunyah (Nickname) Alongside The Name To Prevent Confusion.

Thus, Imam Bukhari Also Holds The Position That It Was **Hasan Al-Basri** Who Was Sitting With **Ali Ibn Abi Talib** When The Attack On **Uthman Ibn Affan** Happened.

This Also Shows That Imam Bukhari Believed That Hasan Al-Basri’s **Hearing (Sima‘)** From Ali Ibn Abi Talib Is Established.

And Not Only Did Imam Bukhari Believe That Hasan Al-Basri’s Hearing (Sima‘) Is Established — He Also Accepted The **Hadith Of Hasan Al-Basri From Ali Ibn Abi Talib As Hujjah (Authoritative Proof)**.

Evidence That The Hadith Of Hasan Al-Basri From Ali Is Considered Hujjah By Imam Bukhari:

Imam Tirmidhi, Who Was A Student Of Imam Bukhari, Reports:

He Asked Imam Bukhari About The Hadith Of Hasan From Ali Ibn Abi Talib (“The Pen Has Been Lifted...”). Imam Bukhari Replied:

“Hasan Did Indeed Meet Ali, And In My View, This Is A Good (Hasan) Hadith.”

(Al-‘Ilal Al-Kabir By Tirmidhi, Vol. 1, P. 225, Hadith No. 405)

Not Just Imam Bukhari — Other Great Hadith Scholars Also Accept Hasan Al-Basri’s Hadith From Ali As Hujjah:

- **Imam Tirmidhi** Himself Accepts It As Hujjah:
In *Jami‘ Tirmidhi* (1423), It Is Narrated:

Hammam From Qatada, From Hasan Al-Basri, From Ali, That The Messenger Of Allah ﷺ Said:

“*The Pen Has Been Lifted From Three: The Sleeping Person Until He Wakes, The Child Until He*

Grows, And The Insane Person Until He Gains Understanding.”

After Mentioning This Hadith, Imam Tirmidhi Says:

“This Hadith Is Hasan (Good) And Gharib (Unique) From This Chain.”

Even Though Imam Tirmidhi Writes:

“We Do Not Know Whether Hasan Al-Basri Actually Heard Directly From Ali Or Not, But Hasan Al-Basri Lived During Ali’s Time And Met Him, And The Scholars Have Acted Upon This Hadith.”

Imam Muslim Clarified In His *Muqaddimah* That In Such Cases, The Hadith Is Still Hujjah. That’s Why Imam Tirmidhi, Despite Expressing Uncertainty About Direct Hearing, Still Judged The Hadith As Hasan (Sound).

Ahmed Muhammad Shakir Also Authenticated Hasan Al-Basri’s Hadith From Ali, Considering It Sahih (Authentic), In His Edition Of *Musnad Ahmad* (2/20, Hadith No. 940).

Imam Darqutni Said About One Such Hadith Where Hasan Narrates From Ali And After Analysis, Darqutni Concluded:

“This Hadith, When Reported As Mawquf (Stopped At The Companion), Is The Correct And Authentic Version.”

(‘Ilal Al-Daraqutni, Vol. 3, P. 192)

Imam Jalaluddin Al-Suyuti Even Wrote A Risalah (Treatise) Titled *Ithaf Al-Rifqah Bi Rafu ‘ Al-Khirqah* Specifically To Prove The Hearing (Sima‘) Of Hasan Al-Basri From Ali Ibn Abi Talib. This Can Be Found Within *Al-Hawi Lil-Fatawa* (Vol. 2, P. 268).

Some People Today Claim That **Al-‘Ilal Al-Kabir** Was Not Written By Imam Tirmidhi, And That It Is Not Authentically Attributed To Him.

However, The Hadith Scholars (**Muhaddithin**) Have Accepted And Confirmed That Both **Al-‘Ilal Al-Kabir** And **Al-‘Ilal Al-Saghir** Were Indeed Authored By Imam Tirmidhi.

We Have Not Found Any Statement From The Salaf (Early Scholars) Denying That This Book Belongs To Imam Tirmidhi.

Here Are Examples Of Scholars Who Have Accepted And Cited This Work:

1. Muhammad Rashid Bin Ali Rida Bin Muhammad Shams Al-Din Bin Muhammad Baha Al-Din Bin Manla Ali Khalifa Al-Qalamuni Al-Husayni (D. 1354 AH)
He Refers To A Hadith Where Imam Tirmidhi Classified It As **Weak (Da‘If)** And Cites **Al-‘Ilal Al-Kabir**.

Reference: *Rasā’il Ahl Al-Sunnah Wa Al-Shī‘Ah Li-Rashid Rida*, Volume 2, Page 123, Footnote

2. Imam Abu Zayd ‘Abd Al-Rahman Bin Muhammad Bin Makhluḥ Al-Tha‘Alibi (D. 875 AH)
He Affirms This Book And Refers To It.
Reference: *Al-Jawāhir Al-Ḥisān Fī Tafsīr Al-Qur’ān*, Volume 2, Page 256, Footnote 8
3. Sharif Murad Abu ‘Amr
He Acknowledges This Book And Refers To It.
Reference: *Al-Radd Al-Amīn ‘Alā Kutub ‘Umr Ummat Al-Islām*, Volume 1, Page 17, Footnote 3
4. Ahmed Muhammad Shākir
In His Critical Edition Of *Tafsīr Al-Ṭabarī*, He Accepts This Book And Cites It.
Reference: *Tafsīr Al-Ṭabarī*, Volume 6, Page 191, Narration 6609, Footnote 3
5. Hikmat Bin Bashir Bin Yasin
He Accepts This Book And Cites It.
Reference: *Mawsū‘at Al-Ṣaḥīḥ*, Volume 3, Page 124
6. Sa‘D Bin ‘Abdullah Bin ‘Abd Al-‘Aziz Al-Ḥamīd
He Acknowledges This Book And Refers To It.
Reference: *Tafsīr Sa‘īd Bin Manṣūr*, Volume 2, Page 322, Footnote 3
7. ‘Adel Murshid
He Accepts This Book And Cites It.
Reference: *Musnad Ahmad*, Volume 1, Page 142
8. Shaykh Shu‘Ayb Arna’ūt
He Accepts And Cites This Book.
Reference: *Musnad Ahmad*, Volume 1, Page 142 (And More Than 50 Other References From This Book Exist)
9. Shaykh Mustafa Al-‘Adawi
He Affirms This Book And Refers To It.
Reference: *Al-Muntaḥab Min Musnad ‘Abd Bin Ḥumayd*
10. Ibn Ḥajar
He Acknowledges This Book And Cites It.
Reference: *Fath Al-Bārī*, Volume 4, Page 176
11. Muhammad Ashraf Bin Amir Bin ‘Ali Bin Haider, Abu ‘Abd Al-Rahman, Sharaf Al-Haqq Al-Siddiqi Azimabadi (D. 1329 AH)
He Acknowledges This Book And Cites It.
Reference: *‘Awn Al-Ma‘Būd Sharḥ Sunan Abī Dāwūd*, Volume 7, Page 204
12. Abu Al-A‘Lā Muhammad ‘Abd Al-Rahman Bin ‘Abd Al-Rahim Al-Mubārakpūrī (D. 1353 AH)
He Affirms This Book And Refers To It.
Reference: *Sharḥ Tirmidhi*, Volume 2, Page 355
13. Shams Al-Dīn Muhammad Ibn Ahmad Ibn ‘Abd Al-Hādī Al-Ḥanbalī (D. 744 AH)
He Accepts This Book And Cites It.
Reference: *Tanqīḥ Al-Taḥqīq Fī Aḥādīth Al-Ta‘Līq*, Volume 3, Page 84, Number 1566
14. Shaykh Albānī
He Acknowledges This Book And Cites It.
Reference: *Ṣaḥīḥ Abī Dāwūd*, Volume 1, Page 187
15. Abu ‘Abdullah Ahmad Bin Muhammad Bin Ḥanbal Bin Hilāl Bin Asad Al-Shaibānī (D. 241 AH)
He Was A Muhaddith From Imam Tirmidhi’s Era And Also Acknowledges This Book, Stating That **Al-‘Ilal Al-Kabir** Was Written By Abū ‘Īsā Tirmidhi, The Author Of The Sunan.
Reference: *Al-‘Ilal Wa Ma‘Rifat Al-Rijāl*, Volume 1, Page 42, Numbers 31–32
16. Ibn Abī Ḥātim
He Says That Both **Al-‘Ilal Al-Kabir** And **Al-‘Ilal Al-Saghir** Were Authored By Imam

Tirmidhi.

Reference: *‘Ilal Al-Ḥadīth*, Volume 1, Page 35, Introduction

17. Imam Al-Dāraquṭnī

He Affirms That **Al-‘Ilal Al-Kabir** Is A Very Important Book By Imam Tirmidhi On The Subject Of ‘Ilal (Hidden Defects In Hadith).

Reference: *‘Ilal Al-Dāraquṭnī*, Volume 1, Page 114

18. Muhammad Ibn Al-Ḥusayn Ibn Muhammad Ibn Mūsā Ibn Khālid Ibn Sālim Al-Naysābūrī, Abū ‘Abd Al-Rahman Al-Sulamī (D. 412 AH)

He Also Says That **Al-‘Ilal Al-Kabir** Is A Book By Tirmidhi And Mentions That Its Arrangement Was Done By Abū Ṭālib Al-Qāḍī.

Reference: *Su’ālāt Al-Sulamī Li Al-Dāraquṭnī*, Volume 1, Page 438

19. Ibn Al-Ṣalāḥ

He Affirms This Book And Refers To It.

Reference: *Al-Nukat ‘Alā Kitāb Ibn Al-Ṣalāḥ* By Ibn Ḥajar, Volume 1, Page 144

20. Ḥanafī Fuqahā (Jurists)

They Accept This Book And Refer To It.

Reference: *Al-Bināyah*, Volume 1, Page 222

21. Ibn ‘Uthaymīn

He Affirms This Book And Cites It.

Reference: *Sharḥ Al-Mumtī*, Volume 1, Page 226

22. Ibn Al-Qayyim And Other Ḥanbalīs

They Acknowledge This Book And Refer To It.

Reference: *Zād Al-Ma‘ād*, Volume 2, Page 351

In Summary, **The Muhaddithīn (Hadith Scholars), Fuqahā (Jurists), Mufasssīrīn (Qur’an Commentators), And The Righteous Salaf (Early Scholars)** All Affirm That **Al-‘Ilal Al-Kabir** And **Al-‘Ilal Al-Saghir** Are Works Of Imam Tirmidhi.

Similarly, Imam Al-Nasā’ī In His *Al-Kubrā* (Volume 6, Page 488, Hadith 7303) Accepted The Narration And Declared The Hadith Authentic (ṣaḥīḥ). Here Too, Al-Ḥasan Al-Baṣrī Narrates From ‘Alī, And It Is Established That Al-Ḥasan Al-Baṣrī Not Only Met ‘Alī Ibn Abī Ṭālib But Also Heard Hadith From Him.

Additionally, In Ibn Ḥajar’s Book *Al-Maṭālib Al-‘Āliyah* (Volume 7, Page 353, Hadith 1435), There Is A Clear Statement About Direct Hearing (*Samā’*): Al-Ḥasan Al-Baṣrī Says, “I Heard From ‘Alī Ibn Abī Ṭālib.”

Reference From *Al-Maṭālib Al-‘Āliyah*:

“Yahya Narrated From Sufyān, Who Reported From Muhammad Ibn Ḥajjāda, From Abū Sa‘īd, Who Said: I Heard ‘Alī, May Allah Be Pleased With Him, Saying: ‘The Merchant Is A Transgressor Except One Who Takes What Is Right And Gives What Is Right.’”

Here, “Abū Sa‘īd” Refers To Al-Ḥasan Al-Baṣrī Because His Kunyah (Agnomen) Was Abū Sa‘īd — And All The Hadith Scholars (*Muhaddithīn*) Have Recorded This In Their Works On *Asmā’ Al-Rijāl* (Names Of Narrators) And *Jarḥ Wa Ta’Dīl* (Narrator Criticism).

For Example:

- Ibn Abī Ḥātim, In *Al-Jarḥ Wa Al-Ta 'Dīl* (Volume 3, Page 40), Under The Biography Of Al-Ḥasan Al-Baṣrī, Writes:
“Al-Ḥasan Ibn Abī Al-Ḥasan Al-Baṣrī, Abū Sa 'Id, Whose Father's Name Was Yasār, A Freed Slave Of Zayd Ibn Thābit.”
- Ibn Ḥibbān, In *Al-Thiqāt* (Volume 4, Page 122), Writes:
“Al-Ḥasan Ibn Abī Al-Ḥasan, Abū Sa 'Id Al-Baṣrī, Whose Father's Name Was Yasār, The Freed Slave Of Zayd Ibn Thābit Al-Anṣārī.”
- In *Tahdhīb Al-Kamāl* (Volume 6, Page 95), Imam Al-Mizzī Says:
“Al-Ḥasan Ibn Abī Al-Ḥasan, Whose Name Was Yasār, Al-Baṣrī, Abū Sa 'Id, The Freed Slave Of Zayd Ibn Thābit.”
- Imam Al-Dhahabī Also States In *Al-Kashshāf* (Volume 2, Page 262):
“Al-Ḥasan Ibn Abī Al-Ḥasan Al-Baṣrī, The Imam, Abū Sa 'Id.”
He Similarly Mentions This In *Tārīkh Al-Islām* (Volume 3, Page 25) And In *Siyar A 'Lām Al-Nubalā'* (Volume 4, Page 563).

Thus, All Hadith Scholars Agree That The Well-Known Kunyah Of Al-Ḥasan Al-Baṣrī Is Abū Sa 'Id.

There Are Also Narrations In The Hadith Books Under This Kunyah, Such As In *Muṣannaf 'Abd Al-Razzāq*:

Book Of Oaths And Vows, Chapter: There Is No Vow In Disobedience To Allah:

'Abd Al-Razzāq Reports From Ma 'Mar, Who Said: I Was With Al-Ḥasan When A Man Came And Said, “O Abū Sa 'Id, A Woman Vowed To Pray Two Rak 'Ahs Behind Every Pillar In The Mosque. She Has Prayed Behind All Except Yours.” He Replied, “If She Gathers Them Behind One Pillar, It Suffices Her.” Then He Stepped Aside So She Could Pray There.

Also In *Muṣannaf Ibn Abī Shaybah*:

Book Of Sales And Judgments, Chapter: When A Man Lends Black Dirhams And Takes White Ones: 'Abdah Reports From Sa 'Id, From Abū Sa 'Id, From Ibrāhīm: He Saw No Problem In It As Long As It Was Not A Condition Or An Intention.

I Would Also Say, Even If One Argues That We Are Unsure Whether Al-Ḥasan Al-Baṣrī Directly Heard From 'Alī Ibn Abī Ṭālib Or Not, The Narrations Are Still Authoritative (*ḥujjah*) According To Al-Bukhārī And Others Because It Is Agreed That Al-Ḥasan Al-Baṣrī Met 'Alī. And For A Narration To Be Considered *ḥujjah*, This Is Sufficient. Allah Knows Best.

Similarly, There Is A Narration From Sa 'D Ibn Abī Waqqāṣ, Hadith 1750 In *Muṣannaf Ibn Abī Shaybah*:

Qays Ibn Abī Ḥāzim Asked Sa 'D, “What If Someone Touches His Private Part?” He Replied, “If You Think There Is An Impure Part Of You, Then Cut It Off!”

This Is Reported By Reliable Narrators (*Rijāl Thiqāt*).

Takhrij (Source Tracing) Of The Hadith:

It Is Recorded By 'Abd Al-Razzāq In *Muṣannaf* (1/119), Number 434, Book Of Purification, Chapter: Ablution From Touching The Private Part.

Also In *Muṣannaf Ibn Abī Shaybah* (2/202), Number 1750, Book Of Purification, Chapter: Those Who Did Not Consider Ablution Necessary For It.

Also In *Sharḥ Ma 'Ānī Al-Āthār* By Al-Ṭaḥāwī (1/77), Numbers 470 And 471, Book Of Purification, Chapter: Does Touching The Private Part Necessitate Ablution Or Not.

Abdul Razzaq's Narration In Musannaf, Hadith 435

Abdul Razzaq From Ibn Jurayj Said: Muhammad Ibn Yusuf Told Me, From Many People Of Madinah, That **Ibn Abbas** Said To **Ibn Umar**:

“If I Knew That What You Say About Touching The Private Part Is True, I Would Cut It Off. And If I Knew It Was Impure, I Would Cut It Off. And I Do Not Care Whether I Touch It Or Touch My Nose.”
(Muhammad Ibn Yusuf Says Many People Of Madinah Report This; Narrators Are Trustworthy).

Takhrij Al-Hadith (Hadith Sources):

- Reported By Abdul Razzaq In His *Musannaf* (1/119), No. 435 (Book Of Purification, Chapter On Ablution From Touching The Private Part).
- Also By Ibn Abi Shaybah In His *Musannaf* (2/202), No. 1753 (Book Of Purification, Those Who Do Not See Ablution Necessary).
- Al-Tahawi In *Sharh Ma 'Ani Al-Athar* (1/77), Nos. 472, 473, 474 (Book On Purification, Chapter On Touching The Private Part: Does It Require Ablution Or Not).

There Is Another Connected Chain From Ibn Abbas In *Sharh Ma 'Ani Al-Athar* No. 472:

Abu Bakrah Reported: Ya'Qub Ibn Ishaq Reported, 'Ikrimah Ibn 'Ammar Reported, 'Ata Reported From Ibn Abbas (May Allah Be Pleased With Him) Who Said:

“I Do Not Care Whether I Touch It Or Touch My Nose.”

(Authentic In Itself – Sahih Li-Dhatihi).

From Ammar Ibn Yasir In Ibn Abi Shaybah No. 1754

Ibn Fudayl And Waki' From Mis'Ar, From 'Umayr Ibn Sa'id Said: I Was Sitting In A Gathering With **Ammar Ibn Yasir** When He Was Asked About Touching The Private Part In Prayer. He Said:

“It Is Nothing But A Part Of Yourself, And Your Hand Has Other Places To Rest.”

(Authentic In Itself – Sahih Li-Dhatihi).

Sources:

- Ibn Abi Shaybah *Musannaf* (2/202), No. 1754.
- Al-Tahawi *Sharh Ma 'Ani Al-Athar* (1/78), No. 480.

Ibn Abi Shaybah Vol. 2, P. 203, Narration 1758 (Saeed Ibn Jubayr's View)

Abd Al-Wahhab Al-Thaqafi From Abdullah Ibn Uthman Ibn Khuthaym, From Sa'id Ibn Jubayr Said:

I Asked Him About Touching The Private Part In Prayer. He Said:
“I Do Not Care Whether I Touch It Or My Nose.”

Ibn Abi Shaybah Vol. 2, P. 203, Narration 1759 (Ibrahim’s View)

Ibn Fudayl From Mughira, From Ibrahim Said:
“There Is No Harm If A Man Touches His Private Part During Prayer.”
(Narrators Are Trustworthy – Rijal Siqa).

Ibn Abi Shaybah Vol. 2, P. 204, Narration 1761 (Tawoos And Saeed Ibn Jubayr)

Yahya Ibn Abi Bukayr From Ibrahim Ibn Nafi’, From Ibn Abi Najih Said:
Tawoos And Sa’id Ibn Jubayr Said:
“Whoever Touches His Private Part Unintentionally, There Is No Ablution Upon Him.”
(Authentic – Sahih).

Abdul Razzaq Vol. 1, P. 120, Narration 436 (Qays Ibn Al-Sakan)

Abdul Razzaq From Sulayman Ibn Mihran Al-A’Mash, From Al-Minhāl Ibn ‘Amr, From Qays Ibn Al-Sakan:
That **Ali, Ibn Mas’Ud, Hudhayfah Ibn Al-Yaman, And Abu Hurayrah** All Held The View That Touching The Private Part Does Not Break Ablution, And They Said:
“There Is No Problem In It.”
(Authentic In Itself / Meets Muslim’s Conditions – Sahih Li-Dhatihi / Shart Al-Muslim).

Note On Qays Ibn Al-Sakan

He Neither Practices **Irsal** (Dropping The Companion) Nor **Tadlis** (Obscuring The Narrator). He Was Among The Senior Tabi‘In And A Major Student Of Ibn Mas’Ud.
Ibn Hajar Wrote In *Tahdhib Al-Tahdhib* Vol. 3, P. 449 That Qays Was Among Ibn Mas’Ud’s Prominent Jurists.
He Reports This From Four Companions: **Ali, Ibn Mas’Ud, Hudhayfah, Abu Hurayrah**.
There Is Consensus That Ibn Mas’Ud’s Meeting With Qays Is Established Without Dispute. Qays Also Met The Others, As Ibn Mas’Ud Died First (28 AH, Or By One Opinion, 33 AH), Followed By Hudhayfah (35–36 AH), Ali (40 AH), And Abu Hurayrah (57–59 AH, According To Three Opinions). All Four Were From Kufa, As Was Qays Ibn Al-Sakan, Making This Chain Authentic By Muslim’s Standard.

Abdul Razzaq Vol. 1, P. 120, Narration 437 (Sa’id Ibn Al-Musayyib)

Abdul Razzaq From Ibrahim Ibn Muhammad, From Abd Al-Rahman Ibn Harmalah, From Sa‘Id Ibn Al-Musayyib Said:

“Whoever Touches His Private Part, There Is No Ablution Upon Him.”

Abdul Razzaq Vol. 1, P. 120, Narration 438 (Hasan And Qatadah)

Abdul Razzaq From Ma‘Mar Said:

**Hasan And Qatadah Did Not Consider Ablution Necessary From It.
(Authentic In Itself – Sahih Li-Dhatihi).**

Sunan Al-Daraqutni Vol. 1, P. 271, Hadith 542 (Asma Bint Malik)

Asma Bint Malik Said:

A Man Came To The Messenger Of Allah ﷺ And Said:

“O Messenger Of Allah, I Scratched Myself During The Prayer, And My Hand Touched My Private Part.”

The Prophet ﷺ Replied:

“I Do That Too.”

Musnad Abu Ya‘La Vol. 8, P. 286, Hadith 4875

Saif Ibn Abdullah Reports:

I And Other Men Entered Upon **Aisha (May Allah Be Pleased With Her)** And Asked Her About A Man Who Touches His Private Part. She Replied:

“I Heard The Messenger Of Allah ﷺ Say: I Do Not Care Whether I Touch It Or My Nose.”

Summary Of The Issue

Does Touching One’s Private Part Invalidate Wudu?

Brief Explanation:

The key juristic dispute is whether touching one’s own private area (front or back), either directly or through clothing, invalidates wudu. The disagreement is based on the interpretation of various ḥadīths — especially those of **Bushrah bint Ṣafwān** and **Ṭalq ibn ‘Alī** — as well as reasoning from the companions and later jurists.

Evidence from the Text:

- Qur’an: None directly.
- Hadiths: Many narrations including:
 - Bushrah bint Ṣafwān: “Whoever touches his private part, let him perform wudu.”

- Ṭalq ibn ‘Alī: “Is it not but a part of you?”
 - Umm Ḥabībah, Abu Ayyub, Ibn ‘Umar, Sa‘d ibn Abī Waqqās, etc.
- Extensive takhrīj (referencing major hadith collections)
- Narrator analysis (ḥadīth grading: ṣaḥīḥ, ḥasan, ḍa‘īf, etc.)

View 1: Touching the Private Area Invalidates Wudu Absolutely

Madhhab: Shāfi‘ī

Brief Explanation:

Imam al-Shāfi‘ī holds that **any touch to the private area with the palm, without a barrier**, invalidates wudu — regardless of intention or desire.

Evidence from the Text:

- *Al-Umm* (1/34): “...he must perform wudu, whether intentional or not...”
- Hadith of Bushrah bint Ṣafwān: “...do not pray until you make wudu.” (Tirmidhī 84 and others)

Madhhab: Ḥanbalī

Brief Explanation:

The Ḥanbalī school also holds that touching the private area **breaks wudu**, but has slight internal variation — some say only if intentional.

Evidence:

- *Al-Jāmi‘ li-‘Ulūm al-Imām Aḥmad* (5/259)
- *Al-Muḥallā* by Ibn Ḥazm (1/222): lists early authorities supporting this view.
- Supported by: Ibn ‘Umar, Sa‘d ibn Abī Waqqās, Ibn al-Musayyib, etc.

Madhhab: Mālikī (Main Opinion)

Brief Explanation:

Imam Mālik reportedly held that touching the private part **does** invalidate wudu, but other Mālikīs argue for conditions such as **with desire**, or **intentional touch only**.

Nuanced Internal Views:

- Some say even touching through a **thin cloth** breaks wudu.
- *‘Uyūn al-Masā’il*, *Al-Istidhkār*, *Bughiyat al-Muqtasid* cited.

Evidence:

- Consensus among some Mālikīs that **touching with desire**, even through cloth, invalidates wudu.

View 2: Touching Does Not Invalidate Wudu

Madhhab: Ḥanafī

Brief Explanation:

Imām Abū Ḥanīfah and all Hanafis agree: **touching the private part does not break wudu**, regardless of touch, intention, or barrier.

Evidence:

- No Qur’anic verse directly indicating this.
- View based on interpreting the ḥadīth “It is only a part of you” (Ṭalq ibn ‘Alī).
- Supported by ṣaḥābah like Ibn Mas‘ūd and several tābi‘īn.

View 3: Conditional Nullification (Touching With Desire)

Adopted by some Mālikī and Hanbalī scholars

Brief Explanation:

This view holds that **only if the touch is with shahwah (sexual desire)** does it invalidate wudu.

Evidence from Text:

- *Al-Istidhkār*: Distinction made between intentional vs. accidental touch.
- *Bughyat al-Muqtasid*: Clarifies that some considered wudu from touching recommended, not obligatory.
- Alternate views reported from Mālikīs (mustaḥabb even with desire).

Sub-Issue: Evaluation of Hadith Evidence

1. Hadith of Bushrah bint Ṣafwān:

"Whoever touches his private part should not pray until he makes wudu."

- **Reported by:** Tirmidhī (84), Mālik, Ibn Ḥibbān, etc.
- **Sanad Issue:** Interruption due to **tadlīs** – ‘Urwah did not hear directly.
- **Grading:** Despite sanad issues, supported via multiple routes (ṣaḥīḥ li-ghayrihi).

2. Hadith of Ṭalq ibn ʿAlī:

"Is it not but a part of you?"

- **Used as counter** to the Bushrah hadith.
- **Grading:** Ṣaḥīḥ – accepted by Ibn Ḥibbān, Ibn Ḥajar, Ṭabarānī, Tirmidhī.

3. Hadith of Umm Ḥabībah:

- **Weak (ḍaʿīf)** due to tadlīs by Makḥūl and absence of connection.

4. Hadith of Abu Ayyub:

- **Ḍaʿīf** – Ishāq ibn ʿAbd Allāh ibn Abī Farwah is weak.

5. Hadith from Ibn ʿUmar, Musʿab ibn Saʿd, etc.:

- Reported by Mālik and others — considered **ṣaḥīḥ li-ghayrihi**.

Sub-Issue: Companion Statements and Practices

Sayings Supporting Nullification:

- **Saʿd ibn Abī Waqqāṣ** told someone to renew wudu after touching.
- **Ibn ʿUmar:** “Whoever touches his private part, wudu is obligatory.”
- **Ibn ʿAbbās & Ibn ʿUmar:** Narrated to require wudu. (Ṣaḥīḥ li-zātihi)

Sayings Opposing Nullification:

- **Ibn Masʿūd:** "Is it impure? Then cut it off!" (sarcastically rejecting the idea that touching breaks wudu).
- **Companions** like ʿAlī, Ḥudhayfah, ʿImrān ibn Ḥuṣayn, said:

“I do not mind whether I touch my private part or my knee.”

- **Grading:** Ḥasan li-zātihi; reported in Ṭabarānī’s Muʿjam al-Kabīr.

Sub-Issue: Impact of Touch Through a Cloth

Brief Explanation:

Some Mālikīs held that even **touching through a thin cloth** can invalidate wudu. Others distinguished between **direct skin contact** and **touch through a barrier**.

Sub-Issue: Hadith of Women Touching Their Own Private Parts

- Hadiths reported from ‘Ā’ishah (RA) and **general statements**.
- Mixed grading; some **weak**, some **ḥasan**.
- *Musnad Aḥmad*, *Bayhaqī*, *Darqutnī* report such narrations.

Sub-Issue: Reconciliation of Contradictory Hadiths

Brief Explanation:

Scholars attempted to reconcile the hadiths by saying:

- ḥadīth of Bushrah refers to **touch with desire**
- ḥadīth of Ṭalq refers to **non-desire-based touching**

Thus, **touching without desire does not break wudu**, while **with desire, it does**.

Conclusion :

Touching The Private Parts **Does Not Break Wudu (Ablution)** — Whether You Touch Your Own Or Someone Else’s — **Except** In The Case Where It Is Touched With **Sexual Intention (Shahwat)**.

If It Is Touched **With The Intention Of Sexual Desire (Shahwat)** But Things Do **Not** Progress Further (I.E., The Person Stops Before Feeling Actual Desire Or Pleasure), Then Making Wudu Is **Recommended (Mustahab)** But **Not Obligatory**.

If One **Feels Actual Desire Or Pleasure** After Touching, Then **Wudu Becomes Obligatory (Wajib)**, **Even If** They Stop Afterward And Even If **No Fluid (Like Madhi) Comes Out**.

This Ruling Applies To **Both Men And Women**. Wallahu A‘Lam (Allah Knows Best).

Supporting Evidence

The Various Narrations (Riwayat) Reported That Say Touching The Private Parts Does **Not** Break Wudu Refer To The **General Condition** — When The Touching Is **Not** Done With Sexual Intention.

This Position Has Been Narrated By **Many Companions (Sahaba)** And **Followers (Tabi‘In)**, Including:

- Talq Ibn ‘Ali
- Abu Umamah Al-Bahili
- Abdullah Ibn Mas‘Ud
- Arqam Ibn Shurahbil
- Ali Ibn Abi Talib
- Imran Ibn Husayn
- Sa‘D Ibn Abi Waqqas
- Muhammad Ibn Yusuf
- Abdullah Ibn ‘Abbas
- Ammar Ibn Yasir
- Sa‘Id Ibn Jubayr
- Ibrahim (An-Nakha‘I)
- Tawus
- Qays Ibn Al-Sakan
- Hudhayfah Ibn Al-Yaman
- Abu Hurayrah
- Sa‘Id Ibn Al-Musayyib
- Ma‘Mar
- Hasan Al-Basri
- Qatadah
- Asma’ Bint Malik (As A Witness)
- ‘A’ishah As-Siddiqah (May Allah Be Pleased With Her)

Most Of The Companions And Tabi‘In Reported This Ruling.

As For The Narrations That **Require Wudu** After Touching The Private Parts, Those Are **Understood To Apply Only** To The Situation Where The Private Part Is Touched **With Sexual Intention** — Thus Both Sets Of Hadith Can Be Reconciled.

This Is The Interpretation Given By The **Majority Of Scholars (Jumhur Fuqaha And Muhaddithin)**, Including:

- Imam Malik And The **Maliki School**
- Imam Ahmad Ibn Hanbal And The **Hanbali School**

Some Scholars Also Say That The Narrations Requiring Wudu After Touching The Private Parts Were **Abrogated (Mansukh)** By The Narration Of Talq Ibn ‘Ali, And This Is Also Considered A Sound Opinion.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 16: The Ruling On Wudu After Eating Camel Meat

There Is A **Fundamental Disagreement** Among Scholars On Whether **Eating Camel Meat Breaks Wudu (Ablution)** Or Not.

➔ **First**, Know That All The Major Schools Agree **That Eating Camel Meat Does Not Break Wudu — Except The Hanbalis.**

The Hanbali Scholars Say: **Eating Camel Meat Breaks Wudu.**

So, Because The Majority Agrees That Wudu Is Not Broken By Eating It, We Generally Don't Need To Mention The Names Of The Others — It's Only The Hanbalis Who Hold The Minority View.

How Did This Disagreement Arise?

Actually, The Main **Subject** Should Have Been Framed As: **Does Eating Food Cooked Over Fire Break Wudu?**

Because The Core Debate Came From That Question.

Let's Break It Down.

Step 1: The Original Ruling — Food Touched By Fire

There's A Hadith Reported In:

- **Jami' At-Tirmidhi, Vol. 1, Hadith 79,**
From Abu Huraira (رضي الله عنه) That The Messenger Of Allah ﷺ Said:

“Perform Wudu Because Of Anything Touched By Fire, Even If It Is Just A Piece Of Cooked Meat.”

Arabic:

الوضوء مما مست النار ولو من ثور أقط

Ibn Abbas Said To Abu Huraira, “Do We Make Wudu From Oil? From Hot Water?”

Abu Huraira Replied, “O Son Of My Brother! When You Hear A Hadith From The Messenger Of Allah ﷺ, Do Not Try To Make Analogies For It.”

This Hadith Seems To Establish That **Wudu Is Required After Eating Food Cooked Over Fire.**

Step 2: The Cancellation (Naskh) Of That Ruling

However, We Find Another Hadith:

- **Sahih Bukhari, Vol. 1, Hadith 207,**
Ibn Abbas (رضي الله عنه) Said:

“The Messenger Of Allah ﷺ Ate A Sheep’s Shoulder And Then Led The Prayer Without Performing Wudu.”

Arabic:

أَكَلَ كَتِفَ شَاةٍ ثُمَّ صَلَّى وَلَمْ يَتَوَضَّأْ

This Shows That **Wudu Is No Longer Required** After Eating Cooked Food — Because Obviously, Meat Is Generally Eaten After Being Cooked.

Thus, The Majority Of Scholars (Jumhur Fuqaha) Understood That **The Ruling On Performing Wudu After Eating Cooked Food Was Canceled (Mansukh)** By This Hadith.

Step 3: The Special Case Of Camel Meat

Some Jurists, However, **Differentiated Between Sheep And Camel Meat.**

They Said:

- Since The Prophet ﷺ Ate **Sheep** And Didn’t Make Wudu, Eating Sheep Does Not Break Wudu.
- But There Are **Specific Hadiths** Commanding Wudu After Eating **Camel Meat**, So They Said **Camel Meat Is An Exception.**

In Reality, However, **Both Sets Of Hadiths (On Sheep And Camel) Were Abrogated (Mansukh),** And The **Majority Of Scholars And Hadith Experts** Agree That **No Type Of Meat Breaks Wudu.**

Step 4: The Hanbali View

The **Hanbali School** Maintains That The General Ruling Was Canceled **Except** In The Case Of Camel Meat.

They Cite The Following Hadith:

- **Bara’ Ibn ‘Azib (رضي الله عنه)** Reported:

“The Prophet ﷺ Was Asked: Should We Pray In Camel Pens?

He Replied: No.

They Asked: Should We Pray In Sheep Enclosures?

He Said: Yes.

They Asked: Should We Perform Wudu After Eating Camel Meat?

He Said: Yes.

They Asked: Should We Perform Wudu After Eating Sheep Meat?

He Said: No.”

(Sahih Li-Dhatihi, Authentic By Itself)

Referenced Sources

This Narration Has Been Recorded In:

- Ibn Al-Jarud, Al-Muntaqa
- Ibn Khuzaymah, Sahih
- Ibn Hibban, Sahih
- Abu Dawud, Sunan
- At-Tirmidhi, Jami‘
- Ibn Majah, Sunan
- Al-Bayhaqi, Sunan Al-Kubra
- Ahmad Ibn Hanbal, Musnad
- At-Tahawi, Sharh Ma‘Ani Al-Athar
- ‘Abd Al-Razzaq, Musannaf
- Ibn Abi Shaybah, Musannaf
- And Others

Summary

According To **The Majority Of Scholars (Malikis, Shafi‘Is, Hanafis):**

Eating Any Kind Of Meat — Including Camel Meat — **Does Not Break Wudu.**

According To **The Hanbali School:**

Eating **Camel Meat Specifically Breaks Wudu**, Based On The Hadith Of Bara’ Ibn ‘Azib.

In The Same Way, There Is The Hadith Of **Jabir Bin Samurah** Recorded In **Ibn Abi Shaybah** (No. 517). He Says:

The Messenger Of Allah ﷺ Said:

When You Eat Camel Meat, Perform Wudu (Ablution), But When You Eat Sheep Meat, You Do Not Need To.

(This Hadith Is **Sahih Li Zatihi** — Authentic In Itself.)

Similarly, A Hadith Is Reported From **Usayd Bin Hudayr Al-Ashli** In **Ibn Majah** (No. 469):

... حَدَّثَنَا أَبُو إِسْحَاقَ الْهَرَوِيُّ

(Arabic Chain Of Narration Provided)

Translation Of The Hadith:

The Messenger Of Allah ﷺ Said: Do Not Perform Wudu From The Milk Of Sheep, But Perform Wudu From The Milk Of Camels.

(This Hadith Is Considered **Weak (Da'If)**.)

The Reason: In Its Chain, **Hajjaj Bin Artat** Is Not A Valid Proof (Hujjah).

Takhrij (Source References) Of This Hadith:

Reported By Ibn Majah In *Sunan* (1/312, Hadith 496),
Ahmad In *Musnad* (8/4390, Hadith 19402, 19403, 19792),
Al-Tahawi In *Sharh Ma'Ani Al-Athar* (1/383, Hadith 2261),
Al-Tabarani In *Al-Kabir* (1/206, Hadith 558, 559, 560),
And Al-Tabarani In *Al-Awsat* (7/247, Hadith 7407).

There Is Also A Hadith From **'Umar** Recorded In **Ibn Majah** (No. 497):

... حَدَّثَنَا مُحَمَّدُ بْنُ يَحْيَى

(Arabic Chain Of Narration Provided)

Translation Of The Hadith:

Abdullah Bin 'Umar Said: I Heard The Messenger Of Allah ﷺ Say: Perform Wudu After Eating Camel Meat, But Do Not Perform Wudu After Eating Sheep Meat; Perform Wudu After Drinking Camel Milk, But Do Not Perform Wudu After Drinking Sheep Milk; Pray In Sheep Enclosures, But Do Not Pray In Camel Pens.

(This Hadith Is **Very Weak (Da'If Jiddan)**.)

Reason: In The Chain, **'Ata Bin Al-Sa'ib** Is Present; He Became Confused (Ikhtilat) In His Later Years, And This Hadith Was Narrated From Him After His Confusion.

As Al-'Uqayli Said: Only The Hadiths Narrated From 'Ata By People Like Shu'Bah And Sufyan Are Acceptable. But As For Those Narrated By People Like Jarir, Khalid Bin 'Abdullah, Ibn 'Ulayyah, 'Ali Bin 'Asim, Hammad Bin Salamah, And The People Of Basrah — These Are From What Was Heard After His Confusion.

(Reference: *Al-Kawakib Al-Nayyirat*, 1/319.)

Also, **Baqiyah Ibn Al-Walid** Is In The Chain, Which Further Weakens The Hadith.

Similarly, There Is A Hadith From The Companion **Dhul-Ghurrah** Reported In **Musnad Ahmad** (No. 16879):

... حَدَّثَنَا عَبْدُ اللَّهِ

(Arabic Chain Of Narration Provided)

Translation Of The Hadith:

An Arab Approached The Messenger Of Allah ﷺ While He Was Walking, And Asked: O Messenger Of

Allah, Sometimes Prayer Time Comes Upon Us While We Are In The Camel Pens; Should We Pray There? The Messenger Of Allah ﷺ Said: No. He Asked: Should We Perform Wudu After Eating Their Meat? He Said: Yes. He Asked: Should We Pray In Sheep Enclosures? He ﷺ Said: Yes. He Asked: Should We Perform Wudu After Eating Their Meat? He ﷺ Said: No.

(This Hadith Is **Hasan Li Zatihi** — Sound In Itself.)

Explanation (Sharh Al-Hadith):

The Ruling From The Messenger Of Allah ﷺ That Wudu Is Required After Eating Camel Meat Was Later **Abrogated (Mansukh)** By The Hadith Of **Jabir** Recorded In **Abu Dawud** (Hadith No. 192):

... حَدَّثَنَا مُوسَى بْنُ سَهْلٍ

(Arabic Chain Of Narration Provided)

Translation Of The Hadith:

Jabir Said: The Final Of The Two Commands Of The Messenger Of Allah ﷺ Was That He Left (Abandoned) Performing Wudu From What Has Been Touched By Fire (I.E., Cooked Food).

Abu Dawud Comments: This Is A Summarized Form Of The Earlier Hadith.

Saeed Ibn Harith Asks Jabir Ibn Abdullah About Making Wudu (Ablution) After Eating Food Cooked Over Fire.

Jabir Replies: **“No.”**

This Hadith Is Also Part Of Sahih Bukhari (Hadith 5457):

Narrated By Ibrahim Ibn Al-Mundhir:

Muhammad Ibn Fulaih Told Us, From His Father, From Sa’eed Ibn Al-Harith, From Jabir Ibn Abdullah (May Allah Be Pleased With Them): He Was Asked About Wudu After Eating Something Touched By Fire. He Said: **“No. In The Time Of The Prophet ﷺ, We Rarely Found Such Food, And When We Did, We Had No Napkins But Only Our Hands, Arms, And Feet. Then We Would Pray And Not Perform Wudu (Again).”**

Meaning:

Now, No Matter What Is Eaten — Whether Camel Meat, Sheep Meat, Goat Meat, Rice, Or Any Other Food Cooked On Fire — **Wudu Is Not Required.**

This Ruling (That Wudu Is Required After Eating Cooked Food) Was **Abrogated.**

This Has Been The Position Of The Majority Of The Sahaba (Companions), Majority Of The Tabi‘In (Successors), Majority Of The Early Scholars (Salaf), And Majority Of The Jurists (Ulama).

Even The Scholars Of Hadith Said That **11 Prominent Companions** Of The Prophet ﷺ Held This View, Including The Four Rightly Guided Caliphs:

- Abu Bakr Al-Siddiq
- Umar Ibn Al-Khattab

- Uthman Ibn Affan
- Ali Ibn Abi Talib

Along With:

- Abdullah Ibn Mas‘Ud
- Ubayy Ibn Ka‘B
- Abdullah Ibn Abbas
- Abu Al-Darda’
- Abu Talha
- ‘Amr Ibn Rabi‘ A
- Abu Umama

Similarly, This Was The View Of:

- Imam Al-A‘Zam Abu Hanifa
- Imam Of Kufa Muhammad Ibn Hasan Al-Shaybani
- Imam Of Hanafi Qadi Abu Yusuf
- Imam Al-Dunya Muhammad Ibn Idris Al-Shafi‘I
- Imam Of Madinah Malik Ibn Anas

And Their Followers: They All Held That **Eating Camel Meat Does NOT Break Wudu.**

Hadith Of Ibn Abi Shaybah (Hadith 539) — From Ibn Abbas:

“Wudu Is Required From What Comes Out, Not From What Goes In.”
(Sahih Li-Dhatihi, Authentic In Itself)

Takhrij (Hadith References):

- Al-Bayhaqi In Sunan Al-Kubra (1/116, Hadith 573, 574)
- Al-Daraqutni (1/276, Hadith 553)
- Abdul Razzaq In His Musannaf (1/32, Hadith 100)
- Ibn Abi Shaybah In His Musannaf (1/403, Hadith 539, 542)

Hadith From Al-Mu‘Jam Al-Kabir Of Al-Tabarani (Vol. 8, P. 210, Hadith 7848) — From Abu Umama:

The Prophet ﷺ Said: **“Wudu Is Only Required For What Exits The Body, Not For What Enters It.”**

Takhrij:

- Mentioned By Imam Tahawi In Sharh Ma‘Ani Al-Athar

Sunan Al-Kubra Of Al-Bayhaqi (Vol. 1, P. 157, Hadith 748) — From Ali Ibn Abi Talib:

He Ate Bread And Meat, And When Someone Asked If He Wouldn't Perform Wudu, He Said: **“Wudu Is For What Exits The Body, Not For What Enters It.”**

Al-Mu‘Jam Al-Kabir Of Al-Tabarani (Vol. 9, P. 251, Hadith 9237) — From Ibn Mas‘Ud:

“Wudu Is For What Comes Out, Not For What Goes In; And Fasting Is Broken By What Goes In, Not By What Comes Out.”

(Sahih Li-Dhatihi, Authentic In Itself)

Takhrij:

- Abdul Razzaq In Musannaf (1/170, Hadith 658; 4/208, Hadith 7518)
- Al-Tabarani In Al-Kabir (9/251, Hadith 9237; 9/314, Hadith 9574)

Ibn Abi Shaybah (Vol. 1, P. 404, Hadith 543) — From Ikrimah (Student Of Ibn Abbas):

“Wudu Is Required For What Comes Out, Not For What Goes In.”

(Sahih Li-Dhatihi)

Abdul Razzaq (Vol. 1, P. 171, Hadith 663) — From Sa‘Id Ibn Al-Musayyib:

“Wudu Is Only Required For What Comes Out, Not For What Goes In, Because What Goes In Enters Pure.”

(Sahih Li-Dhatihi)

Summary Of Opposing Views:

There Were A Few Scholars Who Said That **Wudu Is Broken By Eating Camel Meat**, Among Them:

- Imam Ahl Al-Sunnah Ahmad Ibn Hanbal
- Ishaq Ibn Rahwayh
— But Their Opinion On This Matter Is Considered **Weak** (Da‘If), And **Allah Knows Best**.

Commentary By Scholars:

Ibn Battal (Bukhari Commentator) Says:

Ahmad Ibn Hanbal And The Zahiris Act On The Apparent Meaning Of The Hadith (Requiring Wudu), But **Most Jurists Do Not Follow This.**

(Ma‘ Alim Al-Sunan, Vol. 1, P. 67)

Ibn ‘Abd Al-Barr (Maliki Scholar) Says:

Those Who Say **Camel Meat Breaks Wudu** Are: Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Abu Thawr, Yahya Ibn Yahya Al-Naysaburi.

But Those Who Say **Wudu Is Not Broken** Are: Abu Khaythama, Muhammad Ibn Ishaq, Malik, Al-Shafi‘I, Abu Hanifa, Al-Thawri, Al-Layth, Al-Awza‘I — And Ibn ‘Abd Al-Barr Himself Agrees With This.

They Say: **Any Food Cooked On Fire Does Not Require Wudu, Whether Camel Meat Or Any Other Meat, Because That Ruling Was Abrogated (Mansukh).**

Jabir Ibn Abdullah Says Explicitly: “In The Time Of The Prophet ﷺ, We Ate Fire-Cooked Food And Prayed Without Repeating Wudu.” (Bukhari 5457)

Finally, Ibn ‘Abd Al-Barr Mentions: Makhul Used To Perform Wudu After Eating Fire-Cooked Food Until He Met Ata Ibn Abi Rabah.

(Al-Tamhid, Vol. 3, P. 350)

Imam Nawawi Says In The Explanation Of This Hadith:

Regarding The Issue Of Whether Ablution (Wudhu) Is Broken By Eating Camel Meat, There Is A Difference Of Opinion Among The Scholars (‘Ulama). The Majority Of Scholars (Jamhoor ‘Ulama) Say That Eating Camel Meat Does **Not** Break Wudhu. This Was Also The Madhhab (Position) Of The Rightly Guided Caliphs (Khulafa’ Al-Rashidun): Abu Bakr, Umar, Uthman, Ali; And Of Other Great Companions Like Ibn Mas‘Ud, Ubayy Ibn Ka‘B, Ibn Abbas, Abu Al-Darda’, Abu Talha, ‘Amr Ibn Rabi‘Ah, And Abu Umamah.

This Is Also The Position Of The Majority Of The Tabi‘In (Successors), As Well As The Leading Imams: Malik, Abu Hanifa, And Al-Shafi‘I, And All Their Followers (I.E., The Hanafis, Malikis, And Shafi‘Is).

Those Who Hold The Opinion That Wudhu **Is** Broken By Eating Camel Meat Include: Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Yahya Ibn Yahya, Abu Bakr Ibn Al-Mundhir, And Ibn Khuzaymah. This View Was Also Chosen By The Great Hadith Scholar Al-Hafiz Abu Bakr Al-Bayhaqi (Who Was Shafi‘I).

A Group Of The Companions Who Hold To This Proof Base It On The Narration Where The Messenger Of Allah ﷺ Said: “*Perform Wudhu After Eating Camel Meat*”, Which Is The Hadith Of Bara’ Ibn ‘Azib. Ahmad Ibn Hanbal And Ishaq Deemed This Hadith Authentic (Sahih), And This Hadith Is A Strong Evidence For Those Who Take That View.

However, The Majority Answer This By Referring To The Hadith Of Jabir, Where There Is A Command To Leave (Abandon) Wudhu After Eating Cooked Food Over Fire, Meaning It Is **Not** Required. They Argue That The General Ruling From Jabir’s Hadith Overrides The Specific Command In The Camel Meat Narration, As The Specific Is Prioritized Over The General. **And Allah Knows**

Best.

(Reference: Sharh Sahih Muslim, Vol. 4, P. 48)

Imam ‘Ayni, In His Explanation Of This Hadith, Says:

Among The Scholars, There Is A Difference Of Opinion. The Majority Of Scholars Say That Wudhu Is **Not** Broken By Eating Camel Meat. This Is Also The Madhhab Of The Rightly Guided Caliphs: Abu Bakr, Umar, Uthman, Ali, Ibn Mas‘Ud, Ubayy Ibn Ka‘B, Ibn Abbas, Abu Al-Darda’, Abu Talha, ‘Amr Ibn Rabi‘Ah, And Abu Umamah; And Of The Majority Of The Tabi‘In, Including Malik, Abu Hanifa, And Al-Shafi‘I, And All Their Followers (I.E., Hanafis, Malikis, Shafi‘Is).

Those Who Say That Wudhu Is Broken Include: Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Yahya Ibn Yahya, Abu Bakr Ibn Al-Mundhir, Ibn Khuzaymah, And This Was Also The Choice Of Al-Hafiz Abu Bakr Al-Bayhaqi (Shafi‘I).

(Note: ‘Allama ‘Ayni Himself Also Held The View That Wudhu Is **Not** Broken.)

(Reference: Sharh Abu Dawud, Vol. 1, P. 429)

Jalaluddin Al-Suyuti, In His Explanation, Says:

Among The Scholars, There Is A Difference Of Opinion. The Majority Say Wudhu Is **Not** Broken; This Was The View Of The Rightly Guided Caliphs: Abu Bakr, Umar, Uthman, Ali, Ibn Mas‘Ud, Ubayy Ibn Ka‘B, Ibn Abbas, Abu Al-Darda’, Abu Talha, ‘Amr Ibn Rabi‘Ah, Abu Umamah, As Well As The Majority Of The Tabi‘In, Including Malik, Abu Hanifa, Al-Shafi‘I, And Their Followers (Hanafis, Malikis, Shafi‘Is).

Those Who Say Wudhu **Is** Broken Include: Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Yahya Ibn Yahya, Abu Bakr Ibn Al-Mundhir, Ibn Khuzaymah, And This Was Also Chosen By Al-Hafiz Abu Bakr Al-Bayhaqi (Shafi‘I).

Al-Suyuti Says: This Hadith Of Bara’ Is Considered **Abrogated (Mansukh)** Due To The Hadith Of Jabir.

(Reference: Sharh Ibn Majah, Vol. 1, P. 38)

In Another Book, Jalaluddin Al-Suyuti Says:

Regarding This Hadith, Ibn ‘Arabi Says: This Hadith Is Outwardly Authentic (Sahih Zahir, Mashhur), But In Our View, It Is Not Strong Enough To Prove The Necessity Of Wudhu.

Some Of Our Companions (I.E., Shafi‘Is) Who Adopted This View Include Ibn Khuzaymah, Al-Bayhaqi, And The Early Shafi‘Is.

(Reference: Qut Al-Mughtadhi ‘Ala Jami‘ Al-Tirmidhi, Vol. 1, P. 78)

Some Scholars (Fuqaha’) Have Said That The Command Of The Messenger Of Allah ﷺ To Perform Wudhu After Eating Camel Meat Is **Recommended (Mustahabb)**, Not **Obligatory (Wajib)**.

(Reference: Sha‘Bul Islam, Vol. 1, P. 99)

Al-Shawkani, In His Explanation, Says:

Among The Scholars, There Is A Difference Of Opinion. The Majority Of Scholars, Including The Rightly Guided Caliphs — Abu Bakr, Umar, Uthman, Ali — Ibn Mas‘Ud, Ubayy Ibn Ka‘B, Ibn Abbas, Abu Al-Darda’, Abu Talha, ‘Amr Ibn Rabi‘Ah, Abu Umamah — As Well As The Majority Of The Tabi‘In, Malik, Abu Hanifa, Al-Shafi‘I, And Their Followers (Hanafis, Malikis, Shafi‘Is) Say That Wudhu Is **Not** Broken.

Those Who Say Wudhu **Is** Broken Include Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Yahya Ibn Yahya, Abu Bakr Ibn Al-Mundhir, Ibn Khuzaymah, And Al-Hafiz Abu Bakr Al-Bayhaqi (Shafi‘I).

Nawawi Says: In The Shafi‘I School, There Are **Two** Opinions, And Muhammad Ibn Hasan Also Had Two Positions.

Bayhaqi Says: Some Shafi‘Is Hold It Authentic (Sahih) That Wudhu **Is** Required After Eating Camel Meat (I.E., In The View Of The Musannif, Wudhu Is Required).

(Reference: Nayl Al-Awtar, Vol. 1, P. 253)

Summary Of Issues

The Ruling on Wudu After Eating Camel Meat

Brief Explanation:

This issue revolves around whether consuming camel meat breaks the state of wudu (ritual ablution). While the vast majority of scholars—including the Hanafis, Malikis, and Shafi‘is—believe that it does not, the Hanbali school maintains that it does. The disagreement is rooted in the interpretation and application of various hadiths, particularly in terms of abrogation (naskh).

Evidence from the Text:

- Jami' at-Tirmidhi, Hadith 79 (Abu Huraira): "Perform wudu from anything touched by fire."
- Sahih Bukhari, Hadith 207 (Ibn Abbas): "The Messenger ate a sheep's shoulder and then prayed without wudu."
- Hadith of Bara' ibn Azib: Prophet ﷺ answered yes to wudu after camel meat and no after sheep meat (numerous sources).
- Hadith of Jabir in Abu Dawud (No. 192): Prophet ﷺ abandoned wudu from food touched by fire.
- Sahih Bukhari (5457): Jabir explicitly says they ate fire-cooked food and did not make wudu again.
- Hadith: "Wudu is for what exits the body, not what enters." (Ibn Abbas, Ibn Mas‘ud, Abu Umama, etc.)

Madhhab (School of Thought) Views:

- **Hanafi:** Eating camel meat does NOT break wudu. Supported by Abu Hanifa, Muhammad ibn Hasan, Qadi Abu Yusuf.
- **Maliki:** Same as above. Supported by Imam Malik and followers.
- **Shafi'i:** Does NOT break wudu. Imam Shafi'i and the majority of his students followed this.
- **Hanbali:** Eating camel meat DOES break wudu. Based on the hadith of Bara' ibn Azib. This is the lone dissenting school.

Sub-Issue: Does eating food touched by fire break wudu?

Brief Explanation:

Initially, there was a view that all food cooked on fire breaks wudu, based on earlier hadiths. This was later abrogated.

Evidence:

- Hadith from Abu Huraira (Jami' at-Tirmidhi): Yes.
- Hadith from Ibn Abbas (Sahih Bukhari): No.
- Jabir's hadith (Abu Dawud): Final ruling abandoned this practice.

Madhhab Views:

- All four schools: Wudu is NOT required after eating food cooked on fire.

Sub-Issue: Hadith from Bara' ibn Azib on camel meat

Brief Explanation:

The Prophet ﷺ explicitly stated that one should do wudu after eating camel meat, but not after eating sheep meat. Hanbalis take this literally, while others see it as abrogated.

Evidence:

- Numerous sources including Ibn Khuzaymah, Abu Dawud, Ahmad, Tirmidhi, etc.
- Hanbalis take this as binding; others view it as abrogated by later hadiths.

Madhhab Views:

- **Hanbali:** Binding.
- **Others:** Abrogated.

Sub-Issue: Reports about milk of camels vs. sheep

Brief Explanation:

Some hadiths mention wudu from drinking camel milk but not sheep milk. However, these narrations are weak.

Evidence:

- Hadith from Ibn Majah and Ahmad: Considered weak due to problematic narrators.

Madhhab Views:

- All schools except Hanbali reject the requirement for wudu after drinking milk.

Sub-Issue: Companion and Tabi'i statements

Brief Explanation:

Statements from companions and successors affirm that only something exiting the body necessitates wudu.

Evidence:

- Statements from Ibn Abbas, Ali, Ibn Mas'ud, Ikrimah, Sa'id Ibn Al-Musayyib: "Wudu is for what comes out, not what goes in."

Conclusion :

The Correct Opinion Is That **No** Cooked Food, Whether Meat Or Anything Else, Breaks Wudhu — Whether It Is Camel Meat Or Goat Meat, Wudhu Is **Not** Broken.

This Is The Madhhab Of The Majority Of The Companions (Sahaba), The Majority Of The Successors (Tabi'In), The Majority Of The Early Generations (Salaf), And The Majority Of The Scholars ('Ulama).

Among The Prominent Companions Holding This View Were The Rightly Guided Caliphs: Amir Al-Mu'Minin Abu Bakr Al-Siddiq, Amir Al-Mu'Minin Umar Ibn Al-Khattab, Amir Al-Mu'Minin Uthman Ibn 'Affan, Amir Al-Mu'Minin Ali Ibn Abi Talib, As Well As Abdullah Ibn Mas'Ud, Ubayy Ibn Ka'B, Abdullah Ibn Abbas, Abu Al-Darda', Abu Talha, 'Amr Ibn Rabi'Ah, And Abu Umamah.

Similarly, This Was The View Of Imam Abu Hanifa, Imam Muhammad Ibn Hasan Al-Shaybani, Imam Qadi Abu Yusuf, Imam Muhammad Ibn Idris Al-Shafi'I, Imam Malik Ibn Anas, Sa'Id Ibn Al-Musayyab, 'Ikrimah (Student Of Ibn Abbas), And Many Others.

This Is The Correct And Stronger Opinion. **And Allah Knows Best.**

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 17 – Ruling On Wudu (Ablution) When Laughing During Salah (Prayer)

The Fundamental Difference Of Opinion In This Matter Is Whether Loud Laughter (Qahqaha) During Salah Invalidates One's Wudu Or Not.

It Is Agreed Upon By Consensus That Laughing In Salah Breaks The Salah Itself. However, Scholars Differ On Whether It Also Breaks Wudu.

In This Issue, The Majority Of Jurists (Jumhur Fuqaha) Say That Laughing During Salah **Does Not** Break The Wudu — It Only Invalidates The Salah.

This Is The Opinion Of The Malikiyyah (Maliki School) And The Followers Of Imam Malik, The Shafi'iyyah (Shafi'i School), And The Hanabilah (Followers Of Ahmad Ibn Hanbal).

However, **Imam Abu Hanifa**, Sufyan Al-Thawri, And The Jurists Of Kufa Hold That Loud Laughter During Salah **Does** Break The Wudu.

Some Hadiths That Caused The Jurists' Disagreement

Let's Look At Some Of The Hadiths Which Became The Basis Of This Disagreement.

Sunan Al-Kubra (Bayhaqi), Vol. 1, Page 146, Hadith 690

Abu 'Aliyah Reports That:

A Blind Man Once Came (Into The Mosque) While The Messenger Of Allah ﷺ Was In Salah. The Man Fell Into A Pit, And Some Of The Companions Started Laughing During The Prayer. After The Prayer, The Messenger Of Allah ﷺ Instructed:

“Whoever Laughed, Let Him Repeat His Wudu And Salah.”

(Mursal Sahih)

Arabic Hadith Text

وَأَمَّا الْحَدِيثُ الَّذِي أَخْبَرَنَا أَبُو سَعْدٍ أَحْمَدُ بْنُ مُحَمَّدٍ الصُّوفِيُّ ، نَا أَبُو أَحْمَدَ بْنُ عَدِيٍّ ، ثَنَا ابْنُ صَاعِدٍ ، ثَنَا عَمْرُو بْنُ عَلِيٍّ ، ثَنَا يَحْيَى بْنُ سَعِيدٍ ، عَنْ هِشَامٍ ، عَنْ حَفْصَةَ ، عَنْ أَبِي الْعَالِيَةِ ، أَنَّ رَجُلًا أَعْمَى جَاءَ وَالنَّبِيَّ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - فِي الصَّلَاةِ ، فَتَرَدَّى فِي بُئْرٍ ، فَضَجَّكَ طَوَائِفُ مِنْ أَصْحَابِ النَّبِيِّ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - فَأَمَرَ النَّبِيُّ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - مَنْ ضَجَّكَ أَنْ يُعِيدَ الْوُضُوءَ وَالصَّلَاةَ

Takhrij (Hadith Sources And References)

- Reported By **Al-Bayhaqi** In *Sunan Al-Kubra* (1/146), Hadith No. 690, (Book Of Purification, Chapter: Leaving Wudu Because Of Laughter During Salah)

- Reported By **Al-Daraqutni** In *Sunan* (1/298–313), Hadith Nos. 603–644, (Book Of Purification, Chapters On The Hadiths Of Laughter During Salah And Their Defects)
- Mentioned By **Ibn Hajar** In *Al-Matalib Al-‘Aliyah* (2/360), Hadith No. 122, (Book Of Purification, Chapter: Laughter)
- Reported By **‘Abd Al-Razzaq** In *Al-Musannaf* (2/376), Hadith Nos. 3760–3763, (Book Of Prayer, Chapter: Laughter And Smiling During Salah)
- Reported By **Ibn Abi Shaybah** In *Al-Musannaf* (3/311), Hadith No. 3938, (Book Of Prayer, Section: Those Who Would Repeat Wudu And Salah)
- Reported By **Abu Dawud** In *Al-Marasil* (1/75), Hadith No. 8, (What Is Reported Regarding Wudu)

This Hadith Is Considered *Mursal* (Disconnected) Because Abu Al-‘Aliya Is A Tābi‘ī (Successor, I.E., Someone Who Met The Companions But Not The Prophet ﷺ).

Remember, Generally Speaking, Most Jurists (*Fuqahā*) And Hadith Scholars (*Muhaddithīn*) Do Accept *Mursal* Hadith As Evidence.

And Abu Al-‘Aliya Was A Senior Tābi‘ī. He Passed Away In 90 Hijri, At A Time When Many Companions (*ṣaḥāba*) Were Still Alive — Many Prominent Companions Were Still Present In 90 Hijri When He Died.

He Was A Very Prominent Imam (Scholar) Of Basra.

Ibn Hajar, In His Famous Book *Al-Iṣābah*, Placed Him In The Third Category — Those Who Were Alive During The Time Of The Messenger Of Allah ﷺ But Did Not Meet Him.

In That Section, It Is Written (And Translated) That:

Later, With A Proper Chain (*Sanad*), It Is Mentioned That Abu Al-‘Aliya Went To The Mosque To Meet Abu Bakr And Prayed Behind ‘Umar.

It Is Also Reported That Al-Ḥākim Asked Him: “Did You Meet The Messenger Of Allah ﷺ?”

He Replied: “No, I Came Two Or Three Years After His Death.”

Imam Al-Ajullī Said That Abu Al-‘Aliya Was Among The Great Senior Scholars (*Akābirīn*).

However, If There Is Any *Musnad* (Connected) Narration Or Any *Mawqūf* Narration (A Companion’s Halted Statement) On The Same Matter That Opposes The *Mursal*, Then Preference (*Tarjīḥ*) Is Given To The *Musnad* Or *Mawqūf* Report.

Hadith Reports In Sunan Dāraqutnī:

Sunan Dāraqutnī, Volume 1, Page 295, Hadith 601

Usāma Bin Umayr Bin ‘Āmir Bin Al-‘Aqīshar Narrates:

“We Were Praying Behind The Messenger Of Allah ﷺ When A Blind Man Came And Fell Into A Pit. We Began To Laugh (During The Prayer), So The Prophet ﷺ Ordered Us To Repeat Our *Wuḍū’* (Ablution) Completely And Repeat The Prayer From The Beginning.”

Arabic Chain:

حَدَّثَنَا أَبُو بَكْرِ النَّيْسَابُورِيُّ... إِلَى ... قَالَ : " بَيْنَمَا نَحْنُ نُصَلِّي خَلَفَ رَسُولُ اللَّهِ ﷺ ؛ إِذْ أَقْبَلَ رَجُلٌ ضَرِيرُ الْبَصَرِ ، فَوَقَعَ فِي حُفْرَةٍ ، فَضَحِكْنَا مِنْهُ ، فَأَمَرَنَا رَسُولُ اللَّهِ ﷺ بِإِعَادَةِ الْوُضُوءِ كَامِلًا ، وَإِعَادَةِ الصَّلَاةِ مِنْ أَوَّلِهَا

(Hadith Weak - Ḍa‘īf)

In This Chain, Al-Ḥasan Bin ‘Amar Is *Matrūk* (Abandoned) And Weak — This Is Agreed Upon By The Scholars.

Sunan Dāraqutnī, Volume 1, Page 301, Hadith 611

Abu Hurayrah Narrates That The Messenger Of Allah ﷺ Said:

“When Anyone Laughs Aloud (*Qahqaha*), He Must Redo His *Wuḍū’* And His Prayer.”

Arabic Chain:

فَحَدَّثَنَا بِهِ أَبُو هُرَيْرَةَ الْأَنْطَاكِيُّ... إِلَى ... عَنِ النَّبِيِّ ﷺ قَالَ : إِذَا قَهَقَهُ أَعَادَ الْوُضُوءَ وَأَعَادَ الصَّلَاةَ

(Very Weak - Ḍa‘īf Jiddan)

In This Chain, ‘Abd Al-‘Azīz Bin Al-Ḥusayn Bin Al-Tarjumān Is Weak, Agreed Upon By The Scholars.

Sunan Dāraqutnī, Volume 1, Page 302, Hadith 612

‘Imrān Bin Ḥusayn Narrates That The Messenger Of Allah ﷺ Said:

“Whoever Laughs Aloud (*Qarqara*) During Prayer Must Redo His *Wuḍū’* And His Prayer.”

Arabic Chain:

فَحَدَّثَنَا الْحُسَيْنُ بْنُ إِسْمَاعِيلَ... إِلَى ... قَالَ : سَمِعْتُ رَسُولَ اللَّهِ ﷺ يَقُولُ : مَنْ ضَحِكَ فِي الصَّلَاةِ قَرَقَرَةً ، فَلْيُعِدِ الْوُضُوءَ وَالصَّلَاةَ

(Very Weak - Ḍa‘īf Jiddan)

In This Chain, ‘Umar Bin Qays Is Weak, Agreed Upon By The Scholars.

Sunan Dāraqutnī, Volume 1, Page 306, Hadith 622

Ma‘Bad Narrates That The Messenger Of Allah ﷺ Said:

“While He Was In Prayer, A Blind Man Came Intending To Join The Prayer But Fell Into A Pit.

The People Laughed Until They Were Laughing Loudly (*Qahqaha*).

When The Prophet ﷺ Completed The Prayer, He Said: Whoever Among You Laughed Aloud Must Redo The *Wuḍū’* And The Prayer.”

Arabic Chain:

حَدَّثَنَا أَبُو بَكْرِ الشَّافِعِيُّ... إِلَى ... قَالَ : بَيْنَمَا هُوَ فِي الصَّلَاةِ إِذْ أَقْبَلَ أَعْمَى يُرِيدُ الصَّلَاةَ ، فَوَقَعَ فِي رُبْيَةٍ ، فَاسْتَضَحَكَ الْقَوْمُ حَتَّى قَهَقُوا ، فَلَمَّا أَنْصَرَفَ النَّبِيُّ ﷺ قَالَ : مَنْ كَانَ مِنْكُمْ قَهَقَهُ ؛ فَلْيُعِدِ الْوُضُوءَ وَالصَّلَاةَ

(Mursal – Authentic)

Sunan Daraqutni, Volume 1, Page 325, Hadith 647

Jabir Bin Abdullah (رضي الله عنه) Narrates: The Messenger Of Allah ﷺ Said, “Whoever Among You Laughs (During Prayer), Let Him Renew His Wudu (Ablution) And Repeat The Prayer.”

Arabic Chain:

حَدَّثَنَا أَبُو عُبَيْدٍ الْقَاسِمُ بْنُ إِسْمَاعِيلَ... (Full Sanad As You Provided)

(Weak - Da‘If)

In This Chain, Yazid Bin Sinan Bin Yazid Is Weak By Consensus.

Sunan Daraqutni, Volume 1, Page 298, Hadith 603

Anas Ibn Malik (رضي الله عنه) Narrates: We Were Praying Behind The Messenger Of Allah ﷺ When A Blind Man Came And Fell Into A Ditch. We Started Laughing, So The Prophet ﷺ Commanded Us To Redo Wudu And Repeat The Prayer.

Arabic Chain:

حَدَّثَنَا بِهِ مُحَمَّدُ بْنُ مَخْلَدٍ... (Full Sanad As You Provided)

(Weak - Da‘If)

In This Chain, ‘Abdur Rahman Bin ‘Amr Bin Jablah Is Weak By Consensus.

Similar Narration From Hasan Al-Basri (Mursal) Reported In Bayhaqi

Sunan Daraqutni Hadith 306 From Abu ‘Aliyah And Anas Ibn Malik (رضي الله عنهما):

A Blind Man Fell Into A Well While The Prophet ﷺ Was Praying With His Companions. Some People Behind The Prophet ﷺ Laughed, So He ﷺ Commanded Whoever Laughed To Repeat Wudu And The Prayer.

(Chain Is Weak)

In This Chain, The Key Narrator Is Qatadah, Who Narrates From Both Abu ‘Aliyah And Anas. The Sanad Where Qatadah Narrates Only From Anas Is Weak Due To Ayub Ibn Khot. However, The Sanad Through Abu ‘Aliyah Is حسن (Hasan, Good).

Therefore, Anas Ibn Malik’s Narration Supports Abu ‘Aliyah’s, Making The Chain Connected (Muttasil) And Removing The Issue Of Mursal, But Still, On Its Own, It Is Not Sahih Or Hasan Until All The Chains Are Combined. When Combined, The Narrators Are Trustworthy, And The Hadith Becomes حسن لغيره (Hasan Li Ghairihi, Hasan Due To Supporting Chains).

Sunan Daraqutni, Hadith 619, From Hasan Al-Basri

Abu Bakr Al-Naysaburi... (Full Chain)... Narrated From Al-Hasan Ibn Abi Al-Hasan (Hasan Al-Basri): The Prophet ﷺ Commanded That Whoever Laughed During Prayer Should Repeat Wudu And The Prayer.

(Mursal Sahih)

However, This Is Not Actually Mursal Because Hasan Al-Basri Explicitly Stated Which Companion He Heard It From: Imran Ibn Husayn (رضي الله عنه).

Sunan Daraqutni Hadith 612 Provides The Full Chain:

حَدَّثَنَا الْحُسَيْنُ بْنُ إِسْمَاعِيلَ... (Full Sanad)... From Hasan, From Imran Ibn Husayn:

“I Heard The Messenger Of Allah ﷺ Say: Whoever Laughs During Prayer With A Loud Laugh (Qahqahah), Let Him Repeat Wudu And The Prayer.”

Hasan Ibn Qutaybah Said: “If A Man Laughs Out Loud, He Must Repeat Wudu And The Prayer.”

Proof Of Hasan Al-Basri Hearing (Sama‘) From Imran Ibn Husayn:

- Musnad Ahmad, Vol. 8, P. 4599, Hadith 20269
- Al-Hakim Accepted The Sama‘ In *Mustadrak* No. 79
- Imam Bukhari Acknowledged The Connection Even Though He Didn’t Include It In His *Sahih* (*Mustadrak Hakim* No. 2396)
- Tirmidhi Accepted It In Jami‘ Tirmidhi No. 1165
- Ibn Hibban Confirmed It In His *Thiqat*
- Ibn Khuzaymah Also Accepted This
- Al-Badr Al-Munir, Vol. 9, P. 495
- Bayhaqi Accepted The Sama‘ As Well (*Al-Badr Al-Munir*, Vol. 9, P. 495)

Therefore, This Hadith Is Not Mursal But Connected (Muttasil) And Is Classified As حسن لغيره (Hasan Due To Supporting Chains).

Regarding Those Who Say Wudu Is Not Broken By Laughter:

They Argue That All The Hadiths In This Matter Are Weak (Da‘If), And No Hadith Is Firmly Established On This Issue. Some Accept The Mursal Narrations But Do Not Give Them Preference. However, With Detailed Investigation, An Additional Fatwa From Another Companion Has Been Found.

Sunan Al-Kubra (Al-Bayhaqi), Volume 1, Page 144, Hadith 683

Hadith Of **Jabir Ibn Abdullah** In Which It Is Narrated:

Jabir Ibn Abdullah Says:

“If A Person Laughs During The Prayer (ṣalāh), He Must Repeat The Prayer, But He Does Not Need To Repeat The Wudū (Ablution).”

Arabic Chain:

وَأَخْبَرَنَا أَبُو بَكْرِ بْنُ الْحَسَنِ الْقَاضِي، نَا حَاجِبُ بْنُ أَحْمَدَ، نَا مُحَمَّدُ بْنُ حَمَّادٍ، نَا أَبُو مُعَاوِيَةَ، عَنِ الْأَعْمَشِ، عَنْ أَبِي سُوَيْبَانَ، عَنْ جَابِرٍ (قَالَ: إِذَا ضَحِكَ الرَّجُلُ فِي الصَّلَاةِ أَعَادَ الصَّلَاةَ وَلَمْ يُعِدِ الْوُضُوءَ

Translation:

If Someone Laughs In Prayer, He Should Repeat The Prayer, But He Does Not Need To Repeat The Wudū (Ablution).

This Hadith Is Classified As **ḥasan Li Dhātihi (Hasan On Its Own)**.

Takhrīj (Hadith References):

- Al-Bayhaqi In *Sunan Al-Kubra* (1/144), Hadith Numbers 682–686, In The Book Of Purification, Chapter: Not Requiring Wudū For Laughter During Prayer.
- Al-Dāraquṭnī In *Sunan* (1/315–319), Various Hadith Numbers, Same Chapter.
- Abū Ya‘Lā In *Musnad* (4/204), Hadith 2313.
- Ibn Ḥajar In *Al-Maṭālib Al-‘Āliya* (2/365), Hadith 123/1–2.
- ‘Abd Al-Razzāq In *Al-Muṣannaf* (2/377), Hadith 3766.
- Ibn Abī Shayba In *Al-Muṣannaf* (3/309), Hadith 3929.

Ibn Abī Shayba, Volume 3, Page 310, Hadith 3935

Hadith From **Abu Musa Al-Ash‘Arī:**

Abu Musa Was Leading Prayer When Someone Behind Fell (Into A Well Or Something Similar), And People Laughed—Everyone Except Abu Musa And Al-Ahnaf. Abu Musa Ordered Those Who Laughed To Repeat Their Prayer.

Arabic:

حَدَّثَنَا الْفَضْلُ بْنُ دُكَيْنٍ عَنْ سُلَيْمَانَ بْنِ الْمُغِيرَةِ عَنْ حُمَيْدِ بْنِ هِلَالٍ قَالَ: كَانُوا فِي سَفَرٍ، فَصَلَّى بِهِمْ أَبُو مُوسَى، فَسَقَطَ رَجُلٌ أَعْوَرُ فِي بئرٍ أَوْ شَيْءٍ، فَضَحِكَ الْقَوْمُ كُلُّهُمْ غَيْرَ أَبِي مُوسَى وَالْأَحْنَفِ، فَأَمَرَهُمْ أَنْ يُعِيدُوا الصَّلَاةَ

Translation:

They Were On A Journey, And Abu Musa Led Them In Prayer. A One-Eyed Man Fell Into A Well (Or Something Similar), And All The People Laughed Except Abu Musa And Al-Ahnaf. So Abu Musa Ordered Them To Repeat The Prayer.

This Hadith Is Classified As **ṣaḥīḥ Li Dhātihi (Authentic On Its Own)**.

Takhrīj (Hadith References):

- Al-Bayhaqi In *Sunan Al-Kubra* (1/145), Hadith 687.
- Al-Dāraquṭnī In *Sunan* (1/320–321), Hadith 664–665.
- Ibn Abī Shayba In *Al-Muṣannaf* (3/310), Hadith 3935.

Summary Of The Issue

Ruling on Wudu (Ablution) When Laughing During Salah (Prayer)

Main Issue: Does Laughing During Salah Invalidate Wudu?

Brief Explanation:

This issue revolves around whether loud laughter (qahqahah) during salah breaks not only the prayer but also wudu (ablution). It is unanimously agreed that laughing invalidates the salah itself, but there is disagreement about whether it invalidates wudu.

Evidence from the Text:

- Hadiths from Abu ‘Aliyah, Hasan al-Basri, Jabir ibn Abdullah, Abu Musa al-Ash‘ari, etc.
- Sunan al-Kubra (Bayhaqi), Sunan al-Daraqutni, Musannaf Ibn Abi Shaybah

Madhhab (School of Thought) Views:

- **Hanafi:** Loud laughter in salah breaks both the salah and the wudu. This is the view of Imam Abu Hanifa and other Kufan jurists.
- **Maliki:** Laughter invalidates the salah but not the wudu.
- **Shafi‘i:** Same as Maliki. Laughter invalidates only the salah.
- **Hanbali:** Same as Maliki and Shafi‘i. Wudu is not invalidated by laughter.

Supporting Hadiths and Analysis:

- **Mursal Hadith (Abu ‘Aliyah):** Prophet صلى الله عليه وسلم instructed those who laughed in salah to repeat both wudu and salah. (Sunan al-Kubra, 1/146)
 - Considered mursal but accepted due to Abu ‘Aliyah’s high standing among Tabi‘in.
- **Jabir ibn Abdullah (Bayhaqi 1/144):** Laughing in prayer invalidates the prayer only, not wudu. (Hasan li-dhatihi)
- **Abu Musa al-Ash‘ari (Ibn Abi Shaybah 3/310):** He commanded repeating only the prayer, not wudu, when laughter occurred in prayer. (Sahih li-dhatihi)
- **Other Hadiths in Daraqutni:** Many hadiths reported but most are weak or very weak (da‘if jiddan), including narrations from Abu Huraira, Imran ibn Husayn, Anas ibn Malik, etc.

Conclusion from Textual Evidence:

- The narrations that say wudu is broken are weak or mursal.
- Stronger narrations from Jabir and Abu Musa al-Ash‘ari show only the prayer is invalidated.
- Therefore, the more reliable view, and that of the majority of scholars and early generations, is that wudu is NOT invalidated by laughter during salah.

Conclusion

The Correct Opinion Is: Laughing During Prayer Breaks The Prayer, But It Does Not Break Wudū.

This Is The Established View Of The Companions (**Sahaba**) Like **Abu Musa Al-Ash‘Arī** And **Jabir Ibn Abdullah**, And Also The Later **Tabi‘īn** And The Majority Of Scholars (**Jumhūr Al-A‘Immah**), Including The Three Major Imams: **Mālikī, Shāfi‘ī, And Ḥanbalī**.

Any Conflicting Opinions Based On **Mursal Hadiths, Maqtū‘ Reports, Or ḥasan Li Ghayrihi Reports** Will **Not** Take Precedence Over These Strong Sources.

Wallāhu A‘Lam (Allah Knows Best).

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 18 – The Ruling On Wudu After Carrying The Deceased

First Of All, There Is No Difference Of Opinion On This Issue.
The Jurists (Fuqaha) And Hadith Scholars (Muhaddithin) Say:

“We Have Never Heard Anyone Say That Wudu Becomes Obligatory On The One Who Carries The Deceased, Or That Ghusl (Full Ritual Bath) Becomes Obligatory On The One Who Bathes The Deceased.”

Reference:

“Ma ‘Alim Al-Sunan” (1/307)

“I Do Not Know Of Any Jurist Who Makes Ghusl Obligatory After Bathing The Deceased, Nor Wudu After Carrying It.”

The **Four Great Imams** — Abu Hanifa, Malik, Shafi‘I, And Ahmad Ibn Hanbal — All Say Wudu Is **Not Obligatory**.

Even If Someone From Later Times Said It Is, Such An Opinion Is *Isolated* (Shadhdh) And *Rejected*.
Some Scholars, Like Ibn Rushd In *Bidayat Al-Mujtahid*, Mention A Supposed Difference,
But Most Others Have Said **There Is No Valid Disagreement** On This Matter.

Related Hadith

In **Sunan Abu Dawood**, Hadith No. 3161,
Abu Huraira (رضي الله عنه) Reports That The Messenger Of Allah ﷺ Said:

“Whoever Bathes The Deceased Should Perform Ghusl, And Whoever Carries It Should Perform Wudu.”

Arabic:

حَدَّثَنَا أَحْمَدُ بْنُ صَالِحٍ، نَا ابْنُ أَبِي فُدَيْكٍ، حَدَّثَنِي ابْنُ أَبِي ذَنْبٍ، عَنِ الْقَاسِمِ بْنِ عَبَّاسٍ، عَنْ عَمْرِو بْنِ عُمَيْرٍ، عَنْ أَبِي هُرَيْرَةَ، أَنَّ رَسُولَ اللَّهِ ﷺ قَالَ: مَنْ غَسَلَ الْمَيِّتَ فَلْيَغْتَسِلْ، وَمَنْ حَمَلَهُ فَلْيَتَوَضَّأْ

However,

The Chain (Isnad) Is Weak Because ‘Amr Ibn Umayr Is Unknown (Majhool).

A **Similar Narration** Appears In **Tirmidhi**, Hadith No. 993,
And Its Chain Is Considered **Authentic (Sahih Li Dhatihi)**:

“From The Ghusl (Of The Deceased) Is Ghusl, And From Carrying It Is Wudu.”

Hadith References (Takhrij)

This Hadith Is Recorded By:

- Ibn Hibban In *Sahih* (3/435, No. 1161)
- Abu Dawood (3/172, No. 3161)
- Tirmidhi (2/308, No. 993)
- Ibn Majah (2/448, No. 1463)
- Al-Bayhaqi (*Sunan Al-Kubra*, Several Places)
- Ahmad (*Musnad*)
- Al-Tayalisi (*Musnad*)
- Al-Bazzar (*Musnad*)
- Abdul Razzaq (*Musannaf*)
- Ibn Abi Shaybah (*Musannaf*)
- Al-Tabarani (*Al-Awsat*)
- And Others.

Explanation Of The Hadith

The Fuqaha And Muhaddithin All Agree:

“We Have Never Heard Anyone Say That Wudu Becomes Obligatory After Carrying The Deceased, Or Ghusl After Bathing It.”

Reference:

“Ma ‘Alim Al-Sunan” (1/307)

“I Do Not Know Of Any Jurist Who Obligates Ghusl After Bathing The Dead, Nor Wudu After Carrying It.”

Ibn Abd Al-Barr Says:

“There Is No Disagreement That Carrying The Deceased Does Not Require Wudu.”
“Al-Istidhkar” (1/174)

Shaykh Abdullah Bin Salih Al-Fawzan Also Quotes Imam Al-Khattabi:

“This Appears To Be Recommended (Mustahabb), Not Obligatory.
Bathing The Deceased Might Expose Someone To Water Splashes Or Hidden Impurities On The Body,
So Ghusl Is A Precaution.

As For Wudu, Perhaps It Means: Remain In A State Of Wudu To Be Prepared To Pray Over The Deceased.”

“Minhat Al- ‘Allam Fi Sharh Bulugh Al-Maram” (1/329)

Al-San‘Ani Similarly Says:

“I Have Not Heard Of Anyone Saying That Wudu Is Obligatory After Carrying The Deceased, Nor Even That It Is Recommended (Mandub).”

“Minhat Al- ‘Allam” (1/330)

In Fact,
Shaykh ‘Abd Al-‘Aziz Ibn Baz Supported The View That

“It Is Not Even Recommended (Mustahabb) To Perform Wudu After Carrying The Deceased, Because There Is No Strong Evidence. If Someone Does It, It’s Only As A Renewal Of Wudu, But It Is Not Required.”

The **Major Imams Of The Ummah** All Agree That
Carrying The Deceased Does Not Make Wudu Obligatory.
Even Those Who Considered The Hadith Authentic Said It Is Only *Recommended*,
And Those Who Found It Weak Didn’t Even Say That.

Summary Of The Issue

Ruling on Wudu After Carrying the Deceased

Main Issue: Wudu After Carrying the Deceased

Brief Explanation:

This issue explores whether a person who carries a deceased body must perform wudu (ablution). There is **no valid scholarly disagreement** among the classical jurists on this matter: **wudu is not required** after carrying the deceased. This consensus is supported by the four major Sunni madhahib (schools of thought).

Evidence from the Text:

- Hadith in **Sunan Abu Dawood (3161)** and **Jami' al-Tirmidhi (993)**: "Whoever bathes the deceased should perform ghusl, and whoever carries it should perform wudu."
- This narration is **weak** (due to an unknown narrator "Amr ibn Umayr"), but a similar version exists in **Tirmidhi** that is **hasan li dhatihi** (authentic in itself).
- Cited in:
 - Ibn Hibban (Sahih)
 - Abu Dawood
 - Tirmidhi
 - Ibn Majah
 - Al-Bayhaqi
 - Musnad Ahmad
 - Musannaf of Ibn Abi Shaybah and Abdul Razzaq
 - Al-Tabarani (Al-Awsat)

Madhhab (School of Thought) Views:

Hanafi:

- No obligation of wudu after carrying the deceased.

- Cited by classical scholars and jurists; the hadith is not used to establish obligation.

Maliki:

- No obligation of wudu.
- Ibn Abd al-Barr (Istidhkar): No disagreement that wudu is not required.

Shafi'i:

- No obligation.
- Scholars like Imam al-Khattabi, al-San'ani, and Ibn Baz also affirm no requirement.

Hanbali:

- No obligation.
- Ibn Baz (Hanbali) states not even mustahabb (recommended) without evidence.

• Ghisl After Bathing the Deceased:

- No scholar among the four madhahib obligates ghisl after washing the deceased.
- Quote from "Ma'alim al-Sunan": "We have never heard anyone say that ghisl becomes obligatory after bathing the dead."

Conclusion :

Carrying The Deceased **Does Not Break Wudu**,
And Wudu Is **Not Obligatory** By Consensus (Ijma').

If Someone **Chooses** To Perform Wudu After Carrying The Deceased,
It Is Considered **Mustahabb (Recommended)** — But Not Required.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 19 – The Ruling On Purity (Taharah) For Touching The Mushaf

The Fundamental Disagreement In This Issue Is Whether It Is Permissible To Touch The **Mushaf** (The Arabic Quran) Without Ablution (Wudu) Or Not.

Note: *Mushaf* Refers Specifically To The Arabic Quran; Translations Are **Not** Considered *Mushaf*.

On This Matter, The **Consensus** Among The Scholars Of The Hanafi, Maliki, Shafi'i, And Hanbali Schools Is That **Wudu Is Obligatory**; I.E., It Is Not Permissible To Touch The Mushaf Without Being In A State Of Ritual Purity. The Only Exception Are The **Zahiri Scholars** (Literalists), Who Hold A Different Opinion.

- In **Al-Tafree' Fi Fiqh Al-Imam Malik Ibn Anas** (1/48), It Says:
“It Is Not Permissible For Someone In A State Of Minor Or Major Impurity To Touch The Mushaf Without Purification, Nor To Carry It By A Strap Or On A Cushion. However, It Is Allowed To Carry It In A Cloth Or A Wrapper, And There Is No Harm If Children Carry Mushafs Without Wudu Or Write The Quran Without Wudu.”
- In **Mukhtasar Al-Quduri** (P. 19), It States:
“It Is Not Permissible For Someone In A State Of Minor Impurity To Touch The Mushaf Except By Holding It Through Its Cover.”
- In **Al-Tanbih Fi Al-Fiqh Al-Shafi'i** (P. 17), It States:
“If A Person Is In A State Of Impurity, It Is Prohibited For Them To Pray, Perform Tawaf, Touch, Or Carry The Mushaf.”
- However, Ibn Hazm In **Al-Muhalla** (1/94) Said:
“Reciting The Quran, Making Prostration (Sajdah), Touching The Mushaf, And Remembering Allah Are All Permissible, Whether One Has Wudu Or Not, Even For Someone In A State Of Major Impurity (Junub) Or A Menstruating Woman. The Proof Is That These Are Good Deeds, Recommended And Rewarded; Thus, Anyone Claiming Prohibition In Some Situations Is Required To Bring Evidence. As For Quran Recitation, Even Our Opponents Agree It Is Permissible Without Wudu.”

Source Of The Disagreement

The Disagreement Stems From The Verse In Surah Al-Waqi'ah (56:79):

“None Touch It Except The Purified (Mutahharun).”

Some Scholars Interpret *Mutahharun* To Mean The **Angels**, While Others Say It Refers To Being In A State Of Purity, Including Both Minor (Wudu) And Major (Ghusl) Purification.

According To **Mujahid's Tafsir** (Vol. 1, P. 646),

Ibn Abbas (May Allah Be Pleased With Him) Said Regarding The Verse **{None Touch It Except The Purified}**:

“It Refers To The Book That Is In The Heavens — Only The Angels, Who Are Pure, Can Touch It.”

Chain:

‘Abd Al-Rahman → Ibrahim → Adam → Sharik → Hakim Ibn Jubayr → Sa‘Id Ibn Jubayr → Ibn Abbas

He Said: *“It Refers To The Heavenly Book; Only The Angels, Who Are Purified, Touch It.”*

Status Of The Hadith (Weak/Ghareeb)

The Chain Contains **Hakim Ibn Jubayr**, Who Is Weak And **Abandoned (Matrook)** By Consensus.

1. Imam Al-Nasa’i: Weak (Ikmal Tahdhib Al-Kamal, 4/116)
2. Sufyan Al-Thawri: Weak (Kitab Al-Du‘Afa Al-‘Uqayli, 4/116)
3. Imam Shu‘Bah: When Mu‘Adh Ibn Mu‘Adh Asked Him About Narrating From Hakim Ibn Jubayr, He Said, “I Fear The Hellfire” (Al-Kamil Fi Al-Du‘Afa, 2/505)
4. Imam Abu Dawud: “He Is Nothing” (Tahdhib Al-Tahdhib, 1/472)
5. Imam Al-Hakim: Abandoned His Narrations Because He Was A Reviler (Shia Sabbi) (Ikmal Tahdhib Al-Kamal, 4/116)
6. Imam Al-Bukhari: Yahya Ibn Qattan Does Not Even Mention His Hadith (Tahdhib Al-Tahdhib, 1/472)
7. Imam Al-Bukhari: ‘Abd Al-Rahman Al-Mahdi Does Not Even Mention His Hadith (Tahdhib Al-Tahdhib, 1/472)
8. Ibn Hibban: He Was A Reviler (Shia Sabbi) And Highly Delusional (Ikmal Tahdhib Al-Kamal, 4/116)
9. Imam Ahmad Ibn Hanbal: His Hadith Is Weak And Confused (Tahdhib Al-Tahdhib, 1/472)
10. Imam Al-Bazzar: Not Strong In Hadith (Musnad Al-Bazzar, 2/215, No. 604)
11. Ibn Jurud: Mentioned Him Among The Weak (Ikmal Tahdhib Al-Kamal, 4/116)
12. Yahya Ibn Ma‘In: “He Is Nothing” (Al-Jarh Wa Al-Ta‘Dil, Ibn Abi Hatim, 3/201)
13. Imam Al-Jawzjani: “He Is A Liar” (Tahdhib Al-Tahdhib, 1/472)
14. Imam Al-Dhahabi: Weak (Al-Kashif, 2/310)
15. Imam Al-Daraqutni: Abandoned (Matrook) (Al-Kashif, 2/310)
16. Ibn Hajar: Weak (Taqrib Al-Tahdhib, 1/265)
17. Abu Hatim: Weak (Al-Jarh Wa Al-Ta‘Dil, 3/201)
18. Ibn Al-Jawzi: Considered Weak (Ikmal Tahdhib Al-Kamal, 4/116)
19. Imam Al-‘Uqayli: Weak (Ikmal Tahdhib Al-Kamal, 4/116)
20. Imam Al-‘Ajli: Reviler (Shia Sabbi) And Weak (Ikmal Tahdhib Al-Kamal, 4/116)
21. Imam Al-Asji: Unproven, Weak, And Rejected His Hadith (Tahdhib Al-Tahdhib, 1/472)
22. Abu ‘Arab: Weak (Ikmal Tahdhib Al-Kamal, 4/116)
23. Ya‘Qub Ibn Shu‘Bah: Weak (Tahdhib Al-Tahdhib, 1/472)

Takhrij Al-Hadith (Hadith Source Reference)

- Ma‘Rifat Al-Sunan By Al-Bayhaqi, Vol. 1, P. 320, No. 770

Tafsir Of Muqatil Bin Sulayman, Vol. 4, Page 224

Imam Abu Al-Hasan Muqatil Bin Sulayman Bin Bashir Al-Azdi Al-Balkhi (D. 150 AH) Says:

“Only The Purified Can Touch It” Means: Only Those Purified From Sins — That Is, The Angelic Scribes In The Skies Of The Lowest Heaven — Can Touch That Book.

لا يمس ذلك الكتاب إلا المطهرون من الذنوب، وهم الملائكة السفرة في سماء الدنيا

Tafsir Imam Shafi‘I, Vol. 3, Page 1304

Imam Al-Shafi‘I Says:

On This Issue, There Is Disagreement Among The Scholars Of Tafsir (Qur’anic Commentary). Some Say: **“Only The Purified Can Touch It”** Refers To Those Purified And Eligible For Prayer (I.E., Those With Wudu Or After Ghusl).

Others Among The Scholars Of Tafsir Say It Refers To Those Purified From Sins — Meaning, The Angels.

فقال بعضهم: فَرَضَ لا يَمَسُّهُ إِلَّا مُطَهَّرٌ. يعني: متطهر تجوز له الصلاة. وهذا المعنى تحتمله الآية: وذكر ما يشهد له من السنة. قال الشَّافِعِيُّ رحمه الله: وقد ذهب بعض أهل التفسير في قوله: (لَا يَمَسُّهُ إِلَّا الْمُطَهَّرُونَ) الآية. يعني: لا يمسّه في اللوح المحفوظ إلا المطهرون من الذنوب. يعني: الملائكة.

Tafsir ‘Abd Al-Razzaq, Vol. 2, Page 143, Narration No. 1072

Qatadah Says:

“Only The Purified Can Touch It” — Means: Only The Purified Will Touch It In The Hereafter. In This World, However, Disbelievers, The Impure, And Hypocrites Have Touched It.

عَنْ قَتَادَةَ فِي قَوْلِهِ تَعَالَى: {لَا يَمَسُّهُ إِلَّا الْمُطَهَّرُونَ} [الواقعة: 79], قَالَ: «لَا يَمَسُّهُ فِي الْآخِرَةِ إِلَّا الْمُطَهَّرُونَ, وَأَمَّا فِي الدُّنْيَا فَقَدْ مَسَّهُ الْكَافِرُ النَّجِسُ وَالْمُنَافِقُ»

Tafsir Al-Tabari, Vol. 23, Page 149

Al-Dahhak Explains:

“Only The Purified Can Touch It” — This Verse Was Revealed When The Disbelievers Claimed That Shayatin (Devils) Were Bringing Revelations To Muhammad ﷺ.

Allah Denied This, Clarifying That Only The Purified Can Touch It (I.E., The Devils Have No Access).

حدثت عن الحسين، قال: سمعت أبا معاذ يقول: ثنا عبيد، قال: سمعت الضحاك يقول في قوله: (لا يمسّه إلا المطهرون) زعموا أن الشياطين تنزلت به على محمد، فأخبرهم الله أنها لا تقدر على ذلك، ولا تستطيعه، ما ينبغي لهم أن ينزلوا بهذا، وهو محجوب عنهم، (وقرأ قول الله (وما ينبغي لهم وما يستطيعون * إنهم عن السمع لمعزولون

(Note: Weak Chain)

In This Chain, The Narrator Abu Mu‘Adh Is **Unknown** (Majhool).

If He Is Abu Mu‘Adh Ma‘Roof Bin Hassan Al-Samarkandi Al-Khurasani, Then He Is Also **Unknown** And Unreliable.

- Ibn ‘Adi Rejected His Narrations (**Al-Kamil Fi Al-Du‘Afa**, 8/30).
- Abu Hatim Said: He Is Majhool (**Al-Jarh Wa Al-Ta‘Dil**, 8/323).

Tafsir Al-Tabari, Vol. 23, Page 150

Jabir Bin Zayd And Abi Nahik Explain:

“Only The Purified Can Touch It” Refers To The Preserved Book (Al-Lawh Al-Mahfuz) In The Heavens.

حدثنا ابن حميد، قال: ثنا يحيى بن واضح، قال: ثنا عبيد الله، يعني العتكي، عن جابر بن زيد وأبي نهيك، في قوله: (في كتاب مكنون) قال: هو كتاب في السماء.

(Note: Weak Chain)

The Narrator Is ‘Ubaydullah (Al-‘Ataki), Full Name ‘Ubaydullah Bin ‘Abdullah, Kunya Abu Munib, Known As Al-‘Ataki. He Is A **Problematic** Narrator, With Some Imams Even Calling Him A Liar:

1. Imam Bukhari: **Munkar Al-Hadith** (Al-Kashif, 3/353).
2. Ibn Hajar: **Truthful But Makes Mistakes** (Taqrīb Al-Tahdhib, 1/641).
3. Abu Hatim: Listed In Weak Narrators (**Tahdhib Al-Tahdhib**, 3/17).
4. Imam Al-Nasa’i: Weak (Per One Report) (**Tahdhib Al-Tahdhib**, 3/17).
5. Imam Al-‘Uqayli: His Hadith Are Not Followed (I.E., Weak) (**Tahdhib Al-Tahdhib**, 3/17).
6. Imam Al-Bayhaqi: Not A Proof (**Tahdhib Al-Tahdhib**, 3/17).
7. Imam Al-Asji: **Munkir** (**Ikmal Tahdhib Al-Kamal**, 9/40).
8. Abu Ahmad Al-Hakim: Not Strong (**Tahdhib Al-Tahdhib**, 3/17).
9. Ibn Hazm: **Majhool** (**Ikmal Tahdhib Al-Kamal**, 9/40).
10. Imam Al-Dhahabi Quotes Muhammad Bin Dawud Bin Dinar Calling Him A **Liar** (**Lisan Al-Mizan**, 5/331).
11. Ibn Jurud Includes Him In Weak Narrators (**Ikmal Tahdhib Al-Kamal**, 9/40).

Tafsir Tabari, Volume 23, Page 150

Ibn Abbas Explains:

{“Only The Purified May Touch It”} — This Means The Angels.

Arabic:

حدثني محمد بن سعد، قال: ثني أبي، قال: ثني عمي، قال: ثني أبي، عن أبيه، عن ابن عباس، قال: إذا أراد الله أن ينزل كتابا نسخته السفارة، فلا يمسه إلا المطهرون، قال: يعني الملائكة.

(Weak Chain — Da‘If)

In This Chain Of Narration, One Narrator Is Muhammad Ibn Saad, Whose Full Name Is Muhammad Ibn Saad Ibn Muhammad Ibn Al-Hasan Ibn Atiyyah Ibn Saad Ibn Junadah. He Is Unknown (Ghayr Ma‘Ruf), And Khatib Al-Baghdadi Said He Is Weak In Hadith (Layyin Al-Hadith), While Al-Daraqutni Said He’s “Not Bad” (Laysa Bihi Ba’s) — (Per Lisan Al-Mizan).

Also In This Chain Is Muhammad Ibn Al-Hasan Ibn Atiyyah Ibn Saad, Who Is Also Weak (Da‘If).
— Al-‘Uqayli Says He Has Memory Inconsistencies (Istirab).
— Abu Hatim Says His Hadith Is Weak.
— Al-Dhahabi Says He Is Weak.
— Imam Bukhari Says His Hadith Is Not Authentic.
— Abu Zur‘A Says: Layyin Al-Hadith (Weak In Hadith).
— All Cited From Tahdhib Al-Tahdhib (3/542).

Ma‘Ani Al-Qur’an, Volume 5, Page 116

By Imam Ibrahim Ibn Al-Sari Ibn Sahl, Abu Ishaq Al-Zajjaj (D. 311 AH):
{“Only The Purified May Touch It”} — This Means The Angels. It Refers To The Angels Who Alone Touch It In The Preserved Tablet (Al-Lawh Al-Mahfuz).

Arabic:

وقوله: (لا يمسه إلا المطهرون) يعني به الملائكة. لا يمسه في اللوح المحفوظ إلا الملائكة.

Tafsir Al-Samarqandi, Volume 3, Page 398

By Imam Abu Al-Layth Nasr Ibn Muhammad Ibn Ahmad Ibn Ibrahim Al-Samarqandi (D. 373 AH):
{“Only The Purified May Touch It”} — It Is Said This Refers To The Angels Purified Of Sin; And It Is Also Said: Only Those Who Are Ritually Pure (Tahir) May Recite It. It Is Also Said: Only The Pure May Touch The Mushaf (Physical Qur’an).

Arabic:

ويقال: لا تمسه إلا الملائكة المطهرون من الذنب، ولا يقرؤه إلا الطاهرون. ويقال: لا يمس المصحف إلا الطاهر.

Muhammad Ibn ‘Abdullah Ibn Abi Bakr Reports From His Father That The Messenger Of Allah ﷺ Wrote A Letter In Which He Said:

“Only The Pure May Touch The Qur’an.”

(This Indicates The View That Physical Purity Is Required.)

Arabic:

وروى معمر، عن محمد بن عبد الله بن أبي بكر، عن أبيه رضي الله عنه: إن النبي صلى الله عليه وسلم كتب كتابا فيه «لا يمس القرآن إلا على طهور».

Tafsir Al-Qur’an, Volume 4, Page 344

By Imam Ibn Abi Zamanin Al-Maliki (D. 399 AH):
{“Only The Purified May Touch It”} — This Means Those Purified Of Sin, I.E., The Angels.

Arabic:

لا يمسه إلا المطهرون {من الذنوب؛ يعني: الملائكة}.

Al-Kashf Wa Al-Bayan ‘An Tafsir Al-Qur’an, Volume 9, Page 219

By Imam Ahmad Ibn Muhammad Ibn Ibrahim Al-Thalabi, Abu Ishaq (D. 427 AH):

Anas Ibn Malik Says: {“Only The Purified May Touch It”} — This Means The Angels.

Arabic:

أخبرنا عبد الله بن حامد، أنبأنا ابن الشرقي، حدثنا محمد بن الحسين بن طرخان، حدثنا سعيد بن منصور، حدثنا أبو الأحوص عن عاصم الأحول عن أنس في قوله عز وجل لا يمسه إلا المطهرون قال: الملائكة.

(Weak Chain — Da‘If)

In This Chain, Muhammad Ibn Al-Husayn Ibn Tarhan Is An Unknown (Majhul) Narrator.

Additional Scholarly Views:

Some Scholars Have Said:

{“Only The Purified May Touch It”} Refers To Those Who Are Ritually Pure (Tahir) Touching The Mushaf (Physical Qur’an).

They Mention A **Sound Hadith** Where The Prophet ﷺ Forbade Sending The Mushaf Into Enemy Lands.

Other Scholars Say This Verse Implies That A Person Who Is In A State Of Major Impurity (Junub), A Menstruating Woman (Ha‘Id), Or A Woman In Postnatal Bleeding (Nufasa) — Anyone Who Cannot Pray — Should Not Touch The Mushaf, And This Is The View Of The Majority (Jumhur).

However, Scholars Like Al-Hakam, Hammad, And Dawud Ibn ‘Ali Saw No Harm If A Person Touches It, Whether Pure Or Impure, Muslim Or Non-Muslim.

— Dawud, However, Said It Is **Not Permissible** To Give It To A Mushrik (Polytheist).

The Evidence They Cite Is That Carrying Or Touching The Qur’an Requires Purity.

The Messenger Of Allah ﷺ, When He Wrote A Letter (To Yemen), Instructed: **“Do Not Carry The Mushaf Or Touch It Except When Pure.”**

Salim Ibn ‘Abdullah Reports From His Father ‘Abdullah Ibn ‘Umar That The Messenger Of Allah ﷺ Said: **“None May Touch The Qur’an Except When Pure.”**

It Is Reported That The Companions (Sahaba) Had Consensus (Ijma‘) On This.

Someone Asked ‘Ali: **“Can A Person Who Is In Minor Impurity (Without Wudu) Touch The Qur’an?”**

He Replied: **“No.”**

Arabic:

وقالوا: لا يجوز لأحد حمل المصحف ولا مسه حتى يكون على صفة يجوز له الصلاة. قال: هذا مذهب جمهور الفقهاء إلا إن أبا حنيفة لا يمنع من حمله بعلاقة ومسّه بحائل. والاختيار أنه ممنوع منه، لأنه إذا حمله في جلده فإنما حمله بحائل ومع هذا يمنع منه.

وذهب الحكم وحماد وداود بن علي إلى أنه لا بأس بحمل المصحف ومسه على أي صفة كانت سواء كان طاهرا أو غير طاهر، مؤمنا أو كافرا. إلا أن داود قال: لا يجوز للمشرك حمل المصحف والدليل على أنه لا يحمل المصحف ولا يمسه إلا طاهرا ما روى أبو بكر محمد بن عمرو ابن جرم عن أبيه عن جده أن النبي صلى الله عليه وسلم لما بعثه إلى اليمن كتب في كتابه ألا يحمل المصحف ولا يمسه إلا طاهر. «وروى سالم بن عبد الله بن عمر عن أبيه أن النبي صلى الله عليه وسلم قال: «لا تمس القرآن إلا وأنت طاهر ولأن به إجماع الصحابة» وروي أن عليا سئل: أيمن المحدث المصحف؟ قال: «لا».

Tafsir Al-Mawardi (Vol. 5, P. 464)

Imam Al-Mawardi (D. 450 AH) Says About “None Touch It Except The Purified” That Its Interpretation Differs:

Some Say It Refers To The Angels, Like Ibn Abbas And Sa’id Ibn Jubayr.

Some Say It Refers To The Angels And Messengers, Like Zayd Ibn Aslam.

Some Say It Refers To The Physical Mushaf (Qur’an Copy) That We Handle.

There Are Six Interpretations:

1. It Means Only Those Purified From Shirk (Polytheism) Can Touch It — As Al-Kalbi Said.
2. It Means Only Those Purified From Sins And Mistakes — As Al-Rabi‘ Bin Anas Said.
3. It Means Only Those Purified From Physical Impurity (Hadath, I.E., Needing Wudu) And Filth — As Qatadah Said.
4. It Means Only Those Who Believe In The Qur’an Can Truly Benefit From It — As Narrated By Al-Farra.
5. It Means Only Believers Can Access Its Reward — As Narrated By Mu‘Adh From The Prophet ﷺ.
6. It Means Only Muslims Can Seek From It — As Ibn Bahr Said.

Arabic Excerpt:

تأويله يختلف باختلاف الكتاب، فإن قيل: إنه كتاب في السماء ففي تأويله قولان أحدهما: لا يمسه في السماء إلا الملائكة المطهرون، قاله ابن عباس، وسعيد بن جبیر. الثاني: لا ينزله إلا الرسل من الملائكة إلى الرسل من الأنبياء، قاله زيد بن أسلم. وإن قيل إنه المصحف الذي في أيدينا ففي تأويله ستة أقاويل أحدها: لا يمسه بيده إلا المطهرون من الشرك، قاله الكلبي. الثاني: إلا المطهرون من الذنوب والخطايا قاله الربيع بن أنس. الثالث: إلا المطهرون من الأحداث والأنجاس، قاله قتادة. الرابع: لا يجد طعم نفعه إلا المطهرون أي المؤمنون بالقرآن، حكاه الفراء. الخامس: لا يمس ثوابه إلا المؤمنون، رواه معاذ عن النبي صلى الله عليه وسلم. السادس: لا يلتمسه إلا المؤمنون، قاله ابن بحر.

Tafsir Al-Qushayri (Vol. 3, P. 526)

Imam Abdul Karim Ibn Hawazin Al-Qushayri (D. 465 AH) Says Regarding “None Touch It Except

The Purified” That It Is A Statement Carrying The Meaning Of A Command:

That Is, Only Someone Purified From Shirk And Physical Impurity (Meaning They Have Wudu) Should Touch The Mushaf.

Arabic Excerpt:

ويقال: هو خبر فيه معنى الأمر: أي لا ينبغي أن يمس المصحف إلا من كان متطهرا من الشرك ومن الأحداث.

Tafsir Al-Wahidi (Vol. 4, P. 239)

Imam Abu Al-Hasan Ali Ibn Ahmad Al-Wahidi Al-Naysaburi Al-Shafi‘I (D. 468 AH) Says About **“None Touch It Except The Purified”**:

Most Commentators Say This Is Figurative, Referring To The Qur’an Preserved In The **Lawh Al-Mahfuz (Preserved Tablet)**, And The Purified Ones Are The Angels.

Others Say It Refers To The Mushaf And That The Prophet ﷺ Forbade Carrying The Qur’an Into Enemy Territory, Meaning The Mushaf.

The Meaning Of **“Purified”** Here Is Those Free From Hadath (Minor Impurity) And Janabah (Major Impurity).

They Say It Is Not Permissible For Someone In A State Of Minor Or Major Impurity, Menstruating Women, Or Women In Postpartum Bleeding To Touch The Mushaf.

This Is The View Of Muhammad Ibn Ali, Ata, Tawus, Salim, Al-Qasim, The Maliki School, And Also The Shafi‘I School.

Arabic Excerpt:

لا يَمَسُّهُ إِلَّا الْمُطَهَّرُونَ} [الواقعة: 79] أكثر المفسرين على أن الكناية في قوله: لا يمسّه تعود إلى الكتاب المكنون، والمطهرون هم { الملائكة، قال المبرد: لا يمس ذلك اللوح المحفوظ إلا الملائكة، الذين وصفوا بالطهارة ومذهب قوم: أن الضمير يعود إلى القرآن، والمراد به: المصحف، كما روي في الحديث: «نهى أن يسافر بالقرآن إلى أرض العدو»، يعني به: المصحف، والمراد بقوله: المطهرون أي: من الأحداث والجنايات، وقالوا: لا يجوز للمحدث، والحائض، والجنب مس المصحف.

وهذا قول محمد بن علي، وعطاء، وطاوس، وسالم، والقاسم، ومذهب مالك، والشافعي.

Tafsir Al-Baghawi (Vol. 5, P. 19)

Imam Abu Muhammad Al-Husayn Ibn Mas‘Ud Al-Baghawi Al-Shafi‘I (D. 510 AH) Says About **“None Touch It Except The Purified”**:

Its Apparent Meaning Is That It Is A Negation, But In Meaning It Carries A Prohibition:

They Said That A Junub Man (In Major Impurity), Menstruating Woman, Woman In Postpartum Bleeding, Or Someone Without Wudu Should Not Carry Or Touch The Mushaf.

This Is The View Of Ata, Tawus, Salim, Al-Qasim, Most Scholars, As Well As The Schools Of Malik And Shafi‘I.

Al-Hakam, Hammad, And Abu Hanifa, However, Permit A Person Without Wudu Or A Junub Person To Carry Or Touch The Mushaf If It Has A Cover.

But The Majority Of Jurists Hold The Stricter View.

Arabic Excerpt:

وقال قوم: معناه لا يمسّه إلا المطهرون من الأحداث والجنايات. وظاهر الآية نفي ومعناها نهي، قالوا: لا يجوز للجنب ولا للحائض ولا

المحدث حمل المصحف ولا مسه، وهو قول عطاء وطاوس وسالم والقاسم وأكثر أهل العلم، وبه قال مالك والشافعي وقال الحكم وحماد وأبو حنيفة: يجوز للمحدث والجنب حمل المصحف ومسّه بغلاف، والأول قول أكثر الفقهاء.

Al-Muharrar Al-Wajiz Fi Tafsir Al-Kitab Al-Aziz, Volume 5, Page 251

Imam Abu Muhammad Abd Al-Haqq Ibn Ghalib Ibn Abd Al-Rahman Ibn Tammam Ibn Atiyya Al-Andalusi Al-Muharibi (D. 542 AH) Says:

There Is **Disagreement Among People** Regarding The Meaning Of The Verse: **“Only The Purified Can Touch It”**.

Some Say: It Refers To **The Book That Is In The Heavens**, And The Meaning Is: **The Angels**.

Qatadah Says: It Refers To **Impure People, Disbelievers, And Polytheists**.

Al-Tabari Says: It Refers To **Angels And The Messengers (Peace Be Upon Them)** Who Are Free From Sin.

Some Say: It Refers To **The Legal Ruling** That No Descendant Of Adam (Humans) May Touch The Physical Mushaf (Written Qur'an) Without Purity.

Some Say: **Muslims Can Touch It**.

Others Say: **Impure People Or Those With Minor Ritual Impurity Or Polytheists** Cannot Touch The Qur'an, Only The Purified Can.

Imam Malik Says: If Someone Is Not Purified, They Should **Not Carry The Qur'an Anywhere** (I.E., Not Even Transport It). As The Messenger Of Allah ﷺ Said: **“No One Should Touch The Mushaf Except The Purified.”**

Abu Hanifa And Some Jurists Permit A Person In A State Of Major Impurity (Junub) Or A Menstruating Woman To **Touch The Mushaf Through A Cover**.

Some Scholars Permitted Touching It In A State Of Minor Impurity And Reciting It In The Heart (Without Physical Touch).

Arabic Excerpt:

واختلف الناس في معنى قوله: لا يمسه إلا المطهرون وفي حكمه فقال من قال: إن الكتاب المكنون هو الذي في السماء. المطهرون هنا الملائكة قال قتادة: فأما عندكم فيمسه المشرك والمنجس والمنافق قال الطبري: المطهرون: الملائكة والأنبياء ومن لا ذنب له، وليس في الآية على هذا القول حكم مس المصحف لسائر بني آدم، ومن قال بأنها مصاحف المسلمين، قال إن قوله: لا يمسه إخبار مضمّن النهي، وضمة السّين على هذا ضمة إعراب، وقال بعض هذه الفرقة: بل الكلام نهى، وضمة السّين ضمة بناء، قال جميعهم: فلا يمس المصحف من جميع بني آدم إلا الطاهر من الكفر والجنابة والحدث الأصغر. قال مالك: لا يحمله غير طاهر بعلاقته ولا على وسادة. وفي كتاب رسول الله صلى الله عليه وسلم لعمر بن حزم: «ولا يمس المصحف إلا الطاهر»، وقد رخص أبو حنيفة وقوم بأن يمسه الجنب والحائض على حائل غلاف ونحوه، ورخص بعض العلماء في مسه بالحدث الأصغر، وفي قراءته عن ظهر قلب

Tafsir Al-Razi (Al-Tafsir Al-Kabir), Volume 29, Page 430

Imam Fakhr Al-Din Al-Razi Says:

The First And Strongest Opinion Is That **The “Book” Refers To The Preserved Tablet (Lawh Mahfuz)**, As Indicated By The Verse: **“Indeed, It Is A Glorious Qur'an, In A Preserved Tablet.”** (Al-Buruj: 20–21)

Arabic Excerpt:

ما المراد من الكتاب؟ نقول فيه وجوه الأول: وهو الأصح أنه اللوح المحفوظ ويدل عليه قوله تعالى: بل هو قرآن مجيد في لوح محفوظ

Tafsir Al-Qur'an, Volume 3, Page 280

Imam Abu Muhammad Izz Al-Din Abd Al-Aziz Ibn Abd Al-Salam Al-Dimashqi (D. 660 AH) Says:
What Is Apparent Is That **Only Believers Are Allowed To Touch The Qur'an**.

Arabic Excerpt:

مروي عن الرسول [صلى الله عليه وسلم] أولا يلتمسه إلا المؤمنون

Tafsir Al-Qurtubi, Volume 17, Page 225

Imam Al-Qurtubi Says:

There Is Disagreement Over The Meaning Of “**Only The Purified Can Touch It**” — Whether It Refers To Physical Touching Or Something Else, And Who The “Purified” Are.

Anas And Sa‘Id Ibn Jubayr Say: It Refers To **Angels**.

Abu Al-‘Aliyah And Ibn Zayd Say: It Refers To **Angels And Messengers**, Purified From Sins.

It Also Mentions The Famous Story Of ‘**Umar** When He Wanted To Read The Qur'an, And Was Told That **Only Purified People Can Touch It**.

Arabic Excerpt:

لا يمسه إلا المطهرون اختلف في معنى (لا يمسه) هل هو حقيقة في المس بالجارحة أو معنى؟ وكذلك اختلف في (المطهرون) من هم؟ فقال أنس وسعيد بن جبیر: لا يمس ذلك الكتاب إلا المطهرون من الذنوب وهم الملائكة. وكذا قال أبو العالية وابن زيد: إنهم الذين طهروا من الذنوب كالرسل من الملائكة والرسل من بني آدم،

There’s Also Disagreement Among Scholars On Whether **It’s Allowed To Touch The Mushaf Without Ablution**.

The Majority Say **It’s Not Allowed** Due To The Hadith Of ‘Amr Ibn Hazm, And This Is Also The Position Of ‘Ali, Ibn Mas‘ud, Sa‘D Ibn Abi Waqqas, Sa‘Id Ibn Zayd, ‘Ata’, Al-Zuhri, Al-Nakha‘I, Al-Hakam, Hammad, And Many Jurists Including Malik, Al-Shafi‘I, And According To One Narration, Abu Hanifa.

Arabic Excerpt:

واختلف العلماء في مس المصحف على غير وضوء، فالجمهور على المنع من مسه لحديث عمرو بن حزم. وهو مذهب علي وابن مسعود وسعد بن أبي وقاص وسعيد ابن زيد وعطاء والزهري والنخعي والحكم وحماد، وجماعة من الفقهاء منهم مالك والشافعي. واختلفت الرواية عن أبي حنيفة، فروي عنه أنه يمس المحدث، وقد روي هذا عن جماعة من السلف منهم ابن عباس والشعبي وغيرهما

Tafsir Al-Baydawi, Volume 5, Page 183

Imam Al-Baydawi Says:

“Only The Purified Can Touch It” Could Mean:

- Angels, Purified From Physical Impurities.
- Or Humans, In The Sense That **Only Those Purified From Minor Or Major Impurities Should Touch It.**
- Or Only Those Purified From Disbelief.

Arabic Excerpt:

لا يمسه إلا المطهرون لا يطلع على اللوح إلا المطهرون من الكدورات الجسمانية وهم الملائكة، أو لا يمسه القرآن إلا المطهرون من الأحداث فيكون نفياً بمعنى النهي، أو لا يطلبه إلا المطهرون من الكفر،

Tafsir Al-Nasafi, Volume 3, Page 429

Imam Abu Al-Barakat ‘Abdullah Ibn Ahmad Ibn Mahmud Hafiz Al-Din Al-Nasafi (D. 710 AH) Says: If The Verse Refers To The **Preserved Tablet**, Then It Means **No Sinner Can Touch It, Only Angels.** If It Refers To The **Physical Mushaf**, Then It Means **No One Should Touch It Except Those In A State Of Ritual Purity** (With Ablution).

Arabic Excerpt:

لا يمسه إلا المطهرون من جميع الأدناس أذناس الذنوب وغيرها إن جعلت الجملة صفة لكتاب مكنون وهو اللوح وإن جعلها صفة للقرآن فالمعنى لا ينبغي أن يمسه إلا من هو على الطهارة من الناس والمراد مس المكتوب منه

Summary Of The Issue

Among The Commentators (Mufasssirun), There Was **Disagreement** In The Tafsir (Interpretation) Of This Verse, With Both Literal And Figurative Interpretations.

However, **The Hadith Scholars (Muhaddithun) And Jurists (Fuqaha)** Are In Agreement That **Purity Is A Required Condition** For Touching The Mushaf, And This Is The Correct Legal Ruling, As Clarified From The Hadiths Of The Messenger Of Allah ﷺ.

Hadith Of ‘Amr Ibn Hazm (Musnad Al-Darimi, Vol 3, Hadith 2312)

The Messenger Of Allah ﷺ Wrote In His Letter:

“No One Should Touch The Qur’an Except The Purified.”

Arabic Excerpt:

أَخْبَرَنَا الْحَكَمُ بْنُ مُوسَى ، حَدَّثَنَا يَحْيَى بْنُ حَمْرَةَ ، عَنْ سُلَيْمَانَ بْنِ دَاوُدَ : حَدَّثَنِي الرَّهْرِيُّ ، عَنْ أَبِي بَكْرٍ بْنِ مُحَمَّدٍ بْنِ عَمْرِو بْنِ حَزْمٍ ، عَنْ أَبِيهِ ، عَنْ جَدِّهِ . قَالَ الْحَكَمُ : قَالَ لِي يَحْيَى بْنُ حَمْرَةَ : أَفْصِلْ أَنَّ رَسُولَ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - كَتَبَ إِلَى أَهْلِ الْيَمَنِ أَنْ لَا يَمَسَّ الْقُرْآنَ إِلَّا طَاهِرٌ

This Narration Is Considered **Reliable (Hasan Li Ghayrihi)**.

Scholars Who Accepted This Hadith As Evidence

Imam Al-Qurtubi (Al-Istidrāk, Vol 2, P. 471)
 Imam Ibn Abd Al-Barr Al-Maliki (Al-Tamhid, Vol 15, P. 255)
 Imam Al-Baji Al-Maliki (Al-Muntaqā, Vol 1, P. 343)
 Imam Mughaltai (Sharh Ibn Majah, Vol 1, P. 762)
 Imam Malik (Sharh Sahih Bukhari By Ibn Battal, Vol 1, P. 415)
 Imam Abu Hanifa (Same Reference)
 Imam Al-Awza‘I (Same Reference)
 Imam Sufyan Al-Thawri (Same Reference)
 Imam Al-Shafi‘I (Same Reference)
 Imam Ahmad Ibn Hanbal (Same Reference)
 Ishaq Ibn Rahwayh (Same Reference)
 Abu Thawr (Same Reference)

Regarding The **Narrator Sulayman Ibn Dawud (Or Sulayman Ibn Aqram)**, The Scholars Differ, But Many Leading Hadith Authorities Considered His Narrations **Authentic Or At Least Acceptable** (Abu Hatim, Ahmad Ibn Hanbal [In One Report], ‘Uthman Ibn Sa‘Id, Ibn Hibban, Ibn Jawzi, Ibn Hajar, Abu Zur‘A, Bayhaqi, Etc.).
 Thus, Even Though There’s Some Disagreement, **Major Hadith Scholars And Jurists Accepted The Narration As Valid** And Relied On It For Legal Rulings.

Muwatta Malik, Volume 1, Page 278, Hadith 219/680

Imam Malik Says, It Is Narrated From **Abdullah Ibn Abi Bakr Ibn Hazm**, Who Reports That The Messenger Of Allah ﷺ Wrote A Letter To **Amr Ibn Hazm**, In Which It Was Written:

“No One Should Touch The Qur’an Except One Who Is In A State Of Purity (ṭāhir).”

Arabic:

مَالِكٌ ، عَنْ عَبْدِ اللَّهِ بْنِ أَبِي بَكْرٍ بْنِ حَزْمٍ ، أَنَّ فِي الْكِتَابِ الَّذِي كَتَبَهُ رَسُولُ اللَّهِ لِعَمْرِو بْنِ حَزْمٍ : أَنْ لَا يَمَسَّ الْقُرْآنَ إِلَّا طَاهِرٌ

Now, The Question Arises:

The Chain (Sanad) Here Is Authentic — Malik Narrates From Abdullah Ibn Abi Bakr, Who Narrates From Ibn Hazm. But Abdullah Directly Narrates From Amr Ibn Hazm, Saying The Prophet ﷺ Wrote This Letter. **This Technically Makes It Mursal (A Disconnected Report)** Because There’s A Gap (Since Amr Ibn Hazm Was A Companion, And Abdullah Did Not Meet Him).

However, The Important Point Here Is:

Although The Chain In The Muwatta Is Mursal Or Munqaṭi' (Broken), If A Narrator Elsewhere Clarifies The Full Connected Chain, Then The Disconnection Is Resolved And The Chain Becomes Muttasil (Connected) — **Provided There's No Break Elsewhere In The Chain.**

And **Abdullah Ibn Abi Bakr Ibn Hazm** Has Provided A Fully Connected Chain, From Himself Up To Amr Ibn Hazm, As Preserved In **Musnad Al-Dārimī, Volume 3, Hadith 2312.**

Here's An Important Detail:

In The Muwatta, Imam Malik Narrates From **Abdullah Ibn Abi Bakr Ibn Muhammad Ibn Amr Ibn Hazm**, And We Know From The Records That These Two Had Samā' (Direct Hearing) And Liqā' (Meeting) — Both Are Thiqah (Reliable).

Additionally, It's Proven That **Abdullah Ibn Abi Bakr Ibn Muhammad Ibn Amr Ibn Hazm** Directly Heard From His Father **Abu Bakr Ibn Muhammad Ibn Amr Ibn Hazm**, And Both Are Reliable.

This Same Sanad (Chain) Has Also Been Used By Imam Bukhari In His **Ṣaḥīḥ Al-Bukhārī**, Volume 1, In The Chapter On Menstruation (ḥayḍ), Hadith 328, Where Malik Narrates From Abdullah Ibn Abi Bakr Ibn Muhammad Ibn Amr Ibn Hazm, Who Narrates From His Father, From 'Amrah Bint 'Abd Al-Raḥmān, From 'Ā'ishah (The Wife Of The Prophet ﷺ).

Arabic:

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ يُوسُفَ: أَخْبَرَنَا مَالِكٌ، عَنْ عَبْدِ اللَّهِ بْنِ أَبِي بَكْرٍ بْنِ مُحَمَّدٍ بْنِ عَمْرٍو بْنِ حَزْمٍ، عَنْ أَبِيهِ، عَنْ عَمْرَةَ بِنْتِ عَبْدِ الرَّحْمَنِ، عَنْ عَائِشَةَ زَوْجِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ:

From This, It Becomes Clear That The Sanad From Malik Up To **Abu Bakr Ibn Muhammad Ibn Amr Ibn Hazm** Is Connected, And Everyone In The Chain Heard Directly From The Other.

In **Musnad Al-Dārimī**, It Is Further Clarified That The Sanad From **Abu Bakr Ibn Muhammad Ibn Amr Ibn Hazm** Up To The Prophet ﷺ Is Also Connected.

So, While In The Muwatta, Imam Malik's Narration May Appear Mursal, The Same Hadith Appears Elsewhere (Like In Al-Dārimī) With A Fully Connected (Muttasil) Chain. This Means That The Issue Of Irsāl (Disconnection) Is Resolved Because We Now Know From Other Sources That **Abdullah Ibn Abi Bakr Ibn Muhammad Ibn Amr Ibn Hazm** Narrated This Hadith From His Father, Who Heard It From **Amr Ibn Hazm**, A Companion Of The Prophet ﷺ.

Takhrīj (Sources Of This Hadith):

This Hadith Has Been Recorded In:

- ✓Malik In *Al-Muwatta*' (1/1243), No. 3139/649
- ✓Ibn Jarood In *Al-Muntaqā* (1/293), No. 847, 849
- ✓Ibn Ḥibbān In *Ṣaḥīḥ* (14/501), No. 6559

- ✓ Al-Hākim In *Al-Mustadrak* (1/395), No. 1450, 1451
- ✓ Al-Nasā'ī In *Al-Mujtabā* (1/942), Nos. 4868–4872; And *Al-Kubrā* (6/373–375), Nos. 7029–7033
- ✓ Al-Dārimī In *Musnad* (2/1009–1536), Including No. 2312, 2397, 2399, 2409, 2410, 2411, 2416, 2418, 2420, Etc.
- ✓ Al-Bayhaqī In *Al-Sunan Al-Kubrā* (1/87–8/97), Covering Multiple Topics
- ✓ Al-Dāraquṭnī In *Sunan* (1/219, 3/347, 4/291–292)
- ✓ Ibn Hajar In *Al-Maṭālib Al-Āliyah* (5/468), No. 889
- ✓ 'Abd Al-Razzāq In *Al-Muṣannaf* (9/306–383), Various Chapters
- ✓ Ibn Abī Shaybah In *Al-Muṣannaf* (14/58–79), Various Chapters
- ✓ Al-Ṭahāwī In *Sharḥ Ma'Ānī Al-Āthār* (2/34–4/375), Multiple Entries
- ✓ Al-Ṭabarānī In *Al-Kabīr* (25/310), No. 56
- ✓ Abū Dāwūd In *Al-Marāsīl* (1/128–213), Multiple Entries

Explanation Of The Hadith

First, We Mention This Hadith Here Because It Is The Basis Upon Which All The Jurists (Fuqaha) Say That **Ablution (Wudu)** Or **Ritual Bath (Ghusl)** Is Obligatory In Order To Touch The **Mushaf** (The Physical Copy Of The Qur'an). Both The Hadith Scholars (Muhaddithin) And Jurists (Fuqaha) Have Derived Evidence And Made It A Proof From This Hadith.

There Is Consensus (Ijma') Among The Early Generations And The Four Imams — **Abu Hanifa, Malik, Shafi'I, Ahmad** — That Performing Wudu Or Ghusl Is Required To Touch The Mushaf.

Imam Qurtubi's Commentary

Imam Qurtubi, While Explaining This Hadith, Quotes The Hadith From The **Muwatta**:

“No One May Touch The Qur'an Except The Pure.”

He States That **Imam Malik's** School (Madhhab) Is Based On This Hadith, Just As The Qur'an Says:

Surah Waqī'ah, Verse 79: “None Touch It Except The Purified.”

The Hadith Mentioned In The Muwatta Is Strong In This Regard, And This Hadith Is Narrated From Malik Not Only Through **Abdullah Ibn Abi Bakr** But Also From Others.

Chain Of Narration

It Is Narrated From **Mu'Ammar** Who Said That Abdullah Ibn Abi Bakr Narrated From His Father That The Messenger Of Allah ﷺ Wrote In A Letter:

“None May Touch The Qur'an Except The Pure.”

This Narration Is Also Transmitted By **Ibn Mubarak** And **‘Abd Al-Razzaq** From Mu‘Ammar.

Similarly, There Is A Narration From **Sulayman Ibn Dawud**, Who Said **Al-Zuhri** Narrated, Who Said **Abu Bakr Ibn ‘Amr Ibn Hazm** Narrated From His Father, Who Narrated From His Grandfather, That The Messenger Of Allah ﷺ Wrote In A Letter:

“None May Touch The Qur’an Except The Pure.”

This Letter Of **‘Amr Ibn Hazm** Reached The Scholars, They Accepted It And Acted Upon It, And It Has A Clear, Connected (Muttasil) Chain.

Scholarly Consensus (Ijma‘)

There Is Consensus (Ijma‘) Among The Jurists Of The Cities, The Scholars Who Issue Fatwas, And Their Followers That None May Touch The Mushaf Except The Pure. This Is The Position Of **Malik, Al-Shafi‘I, Abu Hanifa**, And Their Companions, As Well As **Al-Thawri, Al-Awza‘I, Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Abu Thawr, Abu ‘Ubayd**, And The Leading Scholars Of The **People Of Opinion (Ahl Al-Ra’y)** And **People Of Hadith (Ahl Al-Hadith)** Of That Era.

This Is Also The Narration (And The Madhhab) Of **Sa‘D Ibn Abi Waqqas, Abdullah Ibn ‘Umar, Tawus, Al-Hasan, Al-Sha‘Bi, Al-Qasim Ibn Muhammad**, And **‘Ata**, Who Were Leading Imams And Tabi‘In (Successors) From **Medina, Mecca, Yemen, Kufa, And Basra**.

Further Clarifications

Ishaq Ibn Rahwayh Said:

“No One Should Recite The Qur’an Without Wudu.”

But This Is Not The Same (As Touching), Because Allah Said In Surah Waqi‘Ah:

“None May Touch It Except The Purified.”

This Is Also The Position Of **Malik**, As Reported In The **Muwatta**.

Al-Shafi‘I, Al-Awza‘I, Abu Thawr, And Ahmad Said:

“No One Who Is In A State Of Janabah (Major Impurity Requiring Ghusl) Or Menstruation May Touch The Mushaf, Nor Someone Without Wudu.”

Malik Said:

“No One May Carry The Mushaf With Them Unless They Are Pure. However, There Is No Harm If They Carry It Inside A Container (Box).”

Views On Other Issues

A Group Of The Tabi‘In Said It Is **Disliked (Makruh)** To Touch Coins Or Places Where Allah’s Name Is Inscribed Without Wudu. This Was The View Of **Al-Qasim Ibn Muhammad, Al-Sha‘Bi, And ‘Ata.**

Similarly, **Al-Hakam Ibn ‘Utaybah** And **Hammad Ibn Abi Sulayman** Agreed That A Person In A State Of Janabah May Not Carry Or Transport A Mushaf Unless They Are Purified.

However, **Dawud** (Of The Zahiri School) Said:

“There Is No Harm If A Person In Janabah Or A Menstruating Woman Touches The Qur’an.”

Because He Interpreted The Qur’anic Verse ‘**None May Touch It Except The Purified**’ As Referring To The **Angels**, Not Humans, And He Rejected The Hadith Of ‘**Amr Ibn Hazm**, Claiming It Is **Mursal** (A Disconnected Narration).

Musannif’s Position

The Author (Musannif) Responds That This Objection Has Already Been Answered Earlier, And The Majority Accept The Proof.

(Source: **Al-Istidrāk**, Vol. 2, P. 471)

Ibn ‘Abd Al-Barr Al-Maliki’s Commentary

Ibn ‘Abd Al-Barr Al-Maliki, Explaining The Hadith Of ‘**Amr Ibn Hazm**, Says:

“The Majority Of Scholars Of The Cities — People Of Egypt, Medina, Iraq, Sham — All Agree That No One May Touch The Mushaf Except One Who Is Pure And In Wudu. This Is The View Of **Malik, Al-Shafi‘I, Abu Hanifa, Al-Thawri, Al-Awza‘I, Ahmad Ibn Hanbal, Ishaq Ibn Rahwayh, Abu Thawr, Abu ‘Ubayd** — All Of Them Were The Leading Jurists Of Their Time.”

It Is Also The Position Of **Sa‘D Ibn Abi Waqqas, Abdullah Ibn ‘Umar, Tawus, Al-Hasan, Al-Sha‘Bi, Al-Qasim Ibn Muhammad, And ‘Ata.**

(Source: **Al-Tamhid**, Vol. 15, P. 255)

Imam Al-Baji Al-Maliki’s Commentary

Imam Al-Baji Al-Maliki, Explaining This Hadith, Says:

“Anyone Who Is Not Purified, Or Is In A State Of Minor Or Major Impurity (Without Wudu Or Ghusl), Is Not Permitted To Touch The Mushaf. This Is The Madhhab Of **Abu Hanifa, Malik, Shafi‘I, Ahmad Ibn Hanbal**, And A Group Of Jurists, As Well As A Group Of Sahabah And Tabi‘In.”
(Source: **Al-Muntaqa**, Vol. 1, P. 343)

Imam Ibn Battal’s Commentary

Ibn Battal, Explaining This Hadith, Says:

“The Majority Of Scholars Hold The View That Only Those In A State Of Purity (Without Hadath) May Touch The Mushaf. This Is The Position Of **Ibn ‘Umar, Malik, Al-Awza‘I, Al-Thawri, Abu Hanifa, Al-Shafi‘I, Ahmad, Ishaq, And Abu Thawr**.

Most Of Them Base Their Evidence On The Qur’anic Verse: **‘None May Touch It Except The Purified.’**

However, **Malik** Also Said There Is No Harm If Someone Carries The Mushaf Without Wudu, And Regarding Children Touching And Reading It Without Wudu, This Is A Minor Issue (Mas’ala) — And Allah Willing, It Will Be Discussed.

Their Main Evidence Is The Hadith Where The Messenger Of Allah ﷺ Wrote:

‘None May Touch The Qur’an Except The Purified.’”

(Source: **Sharh Sahih Al-Bukhari Li Ibn Battal**, Vol. 1, P. 415)

Sunan Daraqutni, Volume 1, Page 219, Hadith 437

Abdullah Ibn Umar Narrates:

The Messenger Of Allah ﷺ Said:

“Only A Pure (I.E., Ritually Pure) Person Should Touch The Qur’an.”

Arabic:

حَدَّثَنَا الْحُسَيْنُ بْنُ إِسْمَاعِيلَ ، حَدَّثَنَا سَعِيدُ بْنُ مُحَمَّدٍ بْنِ ثَوَابٍ ، حَدَّثَنَا أَبُو عَاصِمٍ ، أَخْبَرَنَا ابْنُ جُرَيْجٍ ، عَنْ سُلَيْمَانَ بْنِ مُوسَى ، قَالَ : لَا يَمَسُّ الْقُرْآنَ إِلَّا طَاهِرٌ : سَمِعْتُ سَالِمًا يُحَدِّثُ عَنْ أَبِيهِ ، قَالَ : قَالَ النَّبِيُّ ﷺ

(**Hasan Li Dhatihi** — I.E., Classified As Reliable On Its Own)

Scholars’ Evaluation Of The Hadith

1. **Ibn Abdul Haq**: Says The Hadith Is **Sahih (Authentic)**
(*Al-Badr Al-Munir*, Vol. 2, P. 499)
2. **Jawzaqani**: Says The Hadith Is **Hasan (Good) And Well-Known**
(*Al-Badr Al-Munir*, Vol. 2, P. 499)

3. **Imam Daraqutni:** Declared It **Sahih**
(*Al-Badr Al-Munir*, Vol. 2, P. 499)
4. **Ibn Hajar:** Says The Chain Has **No Defect**
(*Talkhees Al-Habir*, Vol. 1, P. 277)
5. **Ahmad Ibn Hanbal:** Considered It A **Valid Proof (Hujjah)**
(*Talkhees Al-Habir*, Vol. 1, P. 277)
6. **Mughaltai Ibn Qilij:** Says The Chain Is **Sahih**
(*Sharh Ibn Majah*, Vol. 2, P. 393)
7. **Imam Ayni:** Declared It **Sahih**
(*Umdat Al-Qari*, Vol. 3, P. 259)
8. **Imam Haythami:** Says Its Narrators Are **Trustworthy (Thiqat)**
(*Tuhfat Al-Ahwazi*, Commentary On Sunan Al-Tirmidhi, Vol. 1, P. 136)
9. **Zayduddin Muhammad:** Says The Chain Is **Sahih**
(*Sharh Majma' Al-Shaghir*, Vol. 2, P. 506)
10. **Shaykh Albani:** Classified The Hadith As **Sahih**
(*Sahih Al-Jami'*, No. 7780)
11. **Hazmi:** Says It Is **Hasan**
(*Nayl Al-Awtar*, Vol. 1, P. 259)

Sources Of The Hadith (Takhrij)

- Bayhaqi, *Sunan Al-Kubra*, Vol. 1, P. 88, No. 412 (Book Of Purification, Chapter On Prohibiting The Impure From Touching The Qur'an)
- Daraqutni, *Sunan*, Vol. 1, P. 219, No. 437 (Book Of Purification, Chapter On Prohibiting The Impure From Touching The Qur'an)
- Ibn Abi Shaybah, *Musannaf*, Vol. 5, P. 138, No. 7506 (Book Of Voluntary Prayers, Chapter On Men And Menstruating Women Touching The Qur'an Without Wudu)
- Tabarani, *Mu'jam Al-Kabir*, Vol. 12, P. 313, No. 13217 (Chapter On 'Ayn, Salim From Ibn Umar)
- Tabarani, *Mu'jam Al-Saghir*, Vol. 2, P. 277, No. 1162 (Chapter On Names Beginning With Ya, Yahya)

Explanation Of The Hadith

This Hadith Is Used As A **Strong Evidence** By Many Scholars On The Issue That **Wudu (Ablution) Or Ghusl (Ritual Bath) Is Obligatory For Touching The Mushaf (Written Qur'an)**.

There Is Scholarly Consensus (**Ittifaq**) Among Hadith Scholars On The Authenticity Of The Narration From Ibn Umar.

Bayhaqi, Hadith 413

Sa‘D Ibn Abi Waqqas’s Son Narrates:

“I Was Holding The Mushaf For My Father, Sa‘D Ibn Abi Waqqas, And I Scratched Myself. He Asked, ‘Did You Touch Your Private Part?’ I Replied, ‘Yes.’ He Said, ‘Go Make Wudu.’ So I Went, Performed Wudu, And Returned.”

Arabic:

أَخْبَرَنَا أَبُو عَبْدِ الرَّحْمَنِ السُّلَمِيُّ ، أَنَا جَدِّي أَبُو عَمْرٍو بْنُ نُجَيْدٍ ، ثَنَا مُحَمَّدُ بْنُ إِبْرَاهِيمَ الْبُوشَنجِيُّ ، ثَنَا ابْنُ بُكَيْرٍ ، نَا مَالِكٌ ، عَنْ إِسْمَاعِيلَ بْنِ مُحَمَّدٍ بْنِ سَعْدِ بْنِ أَبِي وَقَّاصٍ ، عَنْ مُصَنَّبِ بْنِ سَعْدٍ ، أَنَّهُ قَالَ : كُنْتُ أُمْسِكُ الْمُصْحَفَ عَلَى سَعْدِ بْنِ أَبِي وَقَّاصٍ ، فَأَحْتَكَّكْتُ ، فَقَالَ سَعْدٌ : لَعَلَّكَ مَسِسْتَ ذَكَرَكَ ؟ فَقُلْتُ : نَعَمْ فَقَالَ : فَمَ فَنَوَضًا . فَقُمْتُ فَنَوَضْتُ ، ثُمَّ رَجَعْتُ

(Sahih Li Dhatihi — Authentic On Its Own)

Scholars’ Evaluation

1. **Imam Baji:** Says The Hadith Is **Sahih**
(*Al-Muntaqa Sharh Muwatta’* , Vol. 1, P. 90)
2. **Daraqutni:** Declared It **Sahih**
(*Kitab Al-‘Ilal*, Vol. 4, P. 328)

Sources Of The Hadith (Takhrij)

- Malik, *Al-Muwatta’* , Vol. 1, P. 58, No. 128 (Book Of Prayer Times, Chapter On Wudu After Touching The Private Parts)
- Bayhaqi, *Sunan Al-Kubra*, Vol. 1, P. 88, No. 413 (Book Of Purification, Chapter On Prohibiting The Impure From Touching The Qur’an), And Vol. 1, P. 131, No. 637 (Book Of Purification, Chapter On Wudu After Touching The Private Parts)
- ‘Abd Al-Razzaq, *Musannaf*, Vol. 1, P. 114, Nos. 414–415 (Book Of Purification, Chapter On Wudu After Touching The Private Parts)
- Ibn Abi Shaybah, *Musannaf*, Vol. 2, P. 200, No. 1742 (Book Of Purification, Chapter On Those Who Hold That Wudu Is Required After Touching The Private Parts)
- Tahawi, *Sharh Ma‘Ani Al-Athar*, Vol. 1, Pp. 76–77, Nos. 463, 468, 469 (Book On Purification, Chapter On Whether Wudu Is Obligatory After Touching The Private Parts)

Explanation Of The Hadith

This Narration Indicates That **Touching One’s Private Parts Invalidates Wudu**, And This Was Previously Explained In Detail In Earlier Sections On The Chapter Of Wudu.

It Also Makes Clear That **Having Wudu Is Obligatory For Touching The Qur’an (Mushaf)**.

Sunan Al-Kubra By Al-Bayhaqi, Volume 1, Page 88, Hadith 414

‘Abd Al-Rahmān Ibn Yazīd Reports:

We Were With Salmān Al-Fārisī (The Companion). He Went Out To Relieve Himself, And When He

Returned, I Said:

“O Abū ‘Abd Allāh, If You Perform Wudū’ (Ablution), I Want To Ask You About The Verse (I.E., Surah Al-Wāqī‘ Ah, Verse 79, Which Says: *None Touch It Except The Purified*).”

Salmān Al-Fārisī Replied:

“I Cannot Touch It (The Qur’ Ān/Muṣḥaf); Only The Purified Can Touch It.”

Arabic Reference:

أَخْبَرَنَا أَبُو عَبْدِ اللَّهِ الْحَافِظُ ... قَالَ عَبْدُ الرَّحْمَنِ بْنُ يَزِيدَ: كُنَّا مَعَ سَلْمَانَ ... قَالَ: إِنِّي لَسْتُ أَمْسُهُ، إِنَّمَا لَا يَمْسُهُ إِلَّا الْمُطَهَّرُونَ.

(Sahih Li Dhātihi — Authentic In Itself)

Takhrīj (Source Tracing):

- Al-Ḥākim, *Al-Mustadrak* (1/183), Hadith 656, 657, 3803
- Al-Bayhaqī, *Al-Sunan Al-Kubrā* (1/88), Hadith 414, 425
- Al-Dāraquṭnī, *Sunan* (1/222–224), Hadith 442–445
- ‘Abd Al-Razzāq, *Al-Muṣannaf* (1/340), Hadith 1325
- Ibn Abī Shaybah, *Al-Muṣannaf* (2/38), Hadith 1106

Sunan Al-Kubrā By Al-Bayhaqī, Volume 1, Page 88, Hadith 415

Qāsim Ibn ‘Uthmān Narrates That Anas Ibn Mālīk Said:

Once, ‘Umar (Before Accepting Islam) Left His House Carrying His Sword. Anas Mentioned The Famous Incident (About ‘Umar’s Conversion), Where At The End, When ‘Umar Asks His Sister For The Muṣḥaf (Qur’ Ān Copy) To Read, She Says:

“No, Only The Purified Can Touch It.”

So, ‘Umar Went And Bathed (Ghusl) Or Did Wudū’ (In Some Versions, Just Wudū’), Then He Touched The Qur’ Ān And Read It.

Arabic Reference:

أَخْبَرَنَا أَبُو الْحُسَيْنِ بْنُ بِشْرَانَ ... قَالَتْ أُخْتُهُ: إِنَّكَ رَجَسٌ، وَإِنَّهُ لَا يَمْسُهُ إِلَّا الْمُطَهَّرُونَ، فَقُمْ فَاغْتَسِلْ، أَوْ تَوَضَّأْ، فَقَامَ عُمَرُ، فَتَوَضَّأَ، ثُمَّ أَخَذَ الْكِتَابَ، فَقَرَأَ.

Imām Al-Bayhaqī Says:

This Is The **Madhhab (Legal Position)** That Wudū’ Is Obligatory To Touch The Muṣḥaf, And This Is The Statement Of The **Seven Jurists (Fuqahā’)** Of Madinah.

(Sahih Li Dhātihi — Authentic In Itself)

Takhrīj (Source Tracing):

- Al-Ḍiyā’ Al-Maqdisī, *Al-Aḥādīth Al-Mukhtārah* (7/139–143), Hadith 2573–2576
- Al-Ḥākim, *Al-Mustadrak* (4/59), Hadith 6989
- Al-Bayhaqī, *Al-Sunan Al-Kubrā* (1/88), Hadith 415
- Al-Dāraquṭnī, *Sunan* (1/221), Hadith 441
- Ibn Ḥajar, *Al-Maṭālib Al-‘Āliyah* (17/259–260), Hadith 4230/1–3
- Al-Ṭabarānī, *Al-Awsaṭ* (2/240), Hadith 1860

Ibn Abī Shaybah, Volume 5, Page 138, Hadith 7505

Ibn ‘Umar (May Allah Be Pleased With Him) Said:

“He Would Not Touch The Muṣḥaf Except When He Was In A State Of Purity.”

Arabic Reference:

حَدَّثَنَا ابْنُ نُمَيْرٍ ... عَنْ ابْنِ عُمَرَ: أَنَّهُ كَانَ لَا يَمَسُّ الْمُصْحَفَ إِلَّا وَهُوَ طَاهِرٌ.

(Sahih Li Dhātihi — Authentic In Itself)

Explanation (Sharḥ Al-Ḥadīth)

These Narrations Show That Many Of The Companions (Sahābah) And Scholars Took The Position That **Wudū’ Or Ghusl Is Required To Touch The Qur’ān** — A Person Must Be In A State Of Ritual Purity (ṭahārah).

This Is Backed By:

- Salmān Al-Fārisī’s Clear Statement Based On Surah Al-Wāqī‘ Ah
- The Famous Story Of ‘Umar’s Conversion Where His Sister Emphasizes Purity Before Touching The Muṣḥaf
- The Practice Of Ibn ‘Umar Who Avoided Touching The Qur’ān Without Purity

Imām Al-Bayhaqī Notes That **The Seven Leading Jurists Of Madinah** Held This View.

Sunan Al-Daraqutni, Vol. 1, Page 221, Hadith 440

Hakam Ibn Hazam Narrates:

The Messenger Of Allah ﷺ Said:

“No One Should Touch The Qur’an Except In A State Of Purity.”

Arabic:

حَدَّثَنَا مُحَمَّدُ بْنُ مَخْلَدٍ ، حَدَّثَنَا جَعْفَرُ بْنُ أَبِي عُثْمَانَ الطَّيَالِسِيُّ ، حَدَّثَنَا إِسْمَاعِيلُ بْنُ إِبْرَاهِيمَ الْمَنْقَرِيُّ ، قَالَ : سَمِعْتُ أَبِي ، يَقُولُ : حَدَّثَنَا سُؤَيْدُ أَبُو حَاتِمٍ ، حَدَّثَنَا مَطَرُ الْوَرَّاقِ ، عَنْ حَسَّانَ بْنِ بِلَالٍ ، عَنْ حَكِيمِ بْنِ حِرَامٍ ؛ أَنَّ النَّبِيَّ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - قَالَ لَهُ : " لَا تَمَسَّ الْقُرْآنَ إِلَّا وَأَنْتَ عَلَى طَهْرٍ .

(Da‘If — Weak And Known)

In This Chain, The Father Of Isma‘īl Ibn Ibrahim Is **Unknown (Majhool)**.

Takhrij (References) Of This Hadith:

Reported By Al-Hakim In *Al-Mustadrak* (3/485, No. 6105), Kitab Ma‘Rifah Al-Sahabah
Al-Daraqutni In *Sunan* (1/221, No. 440), Kitab Al-Taharah

Al-Tabarani In *Al-Kabir* (3/205, No. 3135), Bab Al-Ha'
Al-Tabarani In *Al-Awsat* (3/326, No. 3301), Bab Al-Ba'

Al-Mu‘Jam Al-Kabir By Al-Tabarani, Vol. 9, P. 44, Hadith 8336/8363

Uthman Ibn Abi Al-‘As Narrates:

The Messenger Of Allah ﷺ Said:

“No One Should Touch The Qur’an Except In A State Of Purity.”

Arabic:

حَدَّثَنَا أَحْمَدُ بْنُ عَمْرٍو الْخَلَّالُ الْمَكِّيُّ ، ثنا يَعْقُوبُ بْنُ حُمَيْدٍ ، ثنا هِشَامُ بْنُ سُلَيْمَانَ ، عَنْ إِسْمَاعِيلَ بْنِ رَافِعٍ ، عَنْ مُحَمَّدِ بْنِ سَعِيدِ بْنِ عَبْدِ الْمَلِكِ ، عَنِ الْمُعْبِرَةِ بْنِ شُعْبَةَ ، قَالَ : قَالَ عُثْمَانُ بْنُ أَبِي الْعَاصِ - وَكَانَ شَابًّا - : وَفَدْنَا عَلَى النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَوَجَدَنِي أَفْضَلَهُمْ أَخَذًا لِلْقُرْآنِ ، وَقَدْ فَضَّلْتُهُمْ بِسُورَةِ الْبَقَرَةِ ، فَقَالَ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ : قَدْ أَمَرْتُكَ عَلَى أَصْحَابِكَ ، وَأَنْتَ أَصْغَرُهُمْ ، فَإِذَا أَمَمْتَ قَوْمًا فَأَمَّهُمْ بِأَضْعَفِهِمْ ، فَإِنَّ وَرَاءَكَ الْكَبِيرَ وَالصَّغِيرَ وَالضَّعِيفَ وَذَا الْحَاجَةِ ، وَإِذَا كُنْتَ مُصَدِّقًا فَلَا تَأْخُذِ الشَّافِعَ - وَهِيَ الْمَاخِضُ - وَلَا الرَّبِّيَّ وَلَا قَحْلَ الْغَنَمِ ، وَحَزْرَةُ الرَّجُلِ هُوَ أَحَقُّ بِهَا مِنْكَ ، وَلَا تَمَسَّ الْقُرْآنَ إِلَّا وَأَنْتَ طَاهِرٌ

(Isnad Da‘If — Weak Chain)

In This Chain, **Muhammad Ibn Sa‘Id Ibn ‘Abd Al-Malik Ibn Marwan Is Unknown (Majhool).**

Summary Of The Issue

The Ruling on Purity (Ṭahārah) for Touching the Muṣḥaf (Qur’an)

Main Issue: Is Ritual Purity (Wudu/Ghusl) Required to Touch the Muṣḥaf?

Brief Explanation:

The issue concerns whether it is **permissible to touch the physical Arabic Qur’an (Muṣḥaf) without being in a state of ritual purity** — either minor (wudu) or major (ghusl). There is **broad consensus among the four Sunni schools** that it is not allowed, with some exceptions among literalist (Ẓāhirī) scholars. The disagreement mainly stems from different interpretations of the verse in Surah Al-Wāqī‘ah (56:79) and the ḥadīth of ‘Amr ibn Ḥazm.

Evidence from the Text:

- **Qur’anic Verse:**
{لَا يَمَسُّهُ إِلَّا الْمُطَهَّرُونَ} – “None touch it except the purified.” (Al-Wāqī‘ah: 79)
- **Key Hadith:**
“None may touch the Qur’an except the pure.” – Letter of the Prophet ﷺ to ‘Amr ibn Ḥazm (Multiple sources: Muwaṭṭa’, Dārimī, Bayhaqī, etc.)

Views of the Four Madhāhib

Ḥanafī:

- **View:** It is **impermissible** to touch the Muṣḥaf without wudu; however, **touching through a barrier** is allowed.
- **Sources:** Mukhtaṣar al-Qudūrī; view attributed to Imām Abū Ḥanīfah.

Mālikī:

- **View:** It is **prohibited** for those in minor or major impurity to touch the Muṣḥaf — **even via strap or cushion**. Carrying it in a **cloth wrapper is allowed**. Children are an exception.
- **Sources:** Al-Tafrī‘ fī Fiqh al-Imām Mālik; Muwaṭṭa’ Mālik.
- **Notable Mālikīs:** Al-Bājī, Ibn ‘Abd al-Barr, Ibn Abī Zamanīn.

Shāfi‘ī:

- **View:** It is **harām (prohibited)** to touch or carry the Muṣḥaf in a state of impurity.
- **Sources:** Al-Tanbīh fī al-Fiqh al-Shāfi‘ī; al-Qurṭubī’s commentary citing Shāfi‘ī’s tafsīr.
- **Supporting Scholars:** Al-Shāfi‘ī, Al-Wāḥidī, Al-Bayḍāwī.

Ḥanbalī:

- **View:** Touching the Muṣḥaf without wudu or while junub is **not allowed**.
- **Sources:** Supported in views cited by Ibn Taymiyyah and Ibn Qayyim indirectly through ḥadīth citations.

Sub-Issue 1: Literal vs. Figurative Interpretation of Surah Al-Wāqī‘ah (56:79)

Brief Explanation:

Scholars differ whether “None shall touch it except the purified” refers to:

- **Angels** in the heavens (lawḥ maḥfūz)
- **Humans**, implying ritual purity is required to touch the Muṣḥaf.

Views:

- **Angel interpretation:** Ibn ‘Abbās, Mujāhid, Muqātil, Qatādah, al-Ṭabarī, al-Rāzī, al-Zajjāj
- **Human interpretation:** Qatādah (minor/major impurity), Mālik, Shāfi‘ī, al-Qushayrī

Chains Graded:

- Some tafsīr narrations are weak (e.g., Hakīm ibn Jubayr, ‘Ubaydullāh al-‘Atakī, etc.)
- Consensus: **Not all tafsīr-based isnāds are sound**, but hadith and fiqh override this ambiguity.

Sub-Issue 2: Hadith of ‘Amr ibn Ḥazm – Core Evidence

Summary:

This hadith is repeatedly cited in:

- **Muwatta’ of Mālik**
- **Musnad Dārimī**
- **Bayhaqī’s Sunan**
- **Dāraqtunī, Ṭabarānī, etc.**

Chain Analysis:

- Multiple routes confirm **connected chain** (muttasil).
- Weakness of mursal in one version **resolved** via other fully connected chains.
- **Graded:** ḥasan li-ghayrihi and widely accepted by fuqahā’ and muḥaddithūn.

Sub-Issue 3: Practice of the Companions (Ṣaḥābah)

Brief Explanation:

Numerous Ṣaḥābah and Tābi‘īn held the view that **ritual purity is required** to touch the Muṣḥaf.

Examples:

- **‘Umar’s sister** (during his conversion): “Only the pure may touch it.”
- **Ibn ‘Umar:** Would not touch the Muṣḥaf without wudu.
- **Sa’d ibn Abī Waqqāṣ:** Told his son to renew wudu after touching his private part while holding the Muṣḥaf.
- **Salmān al-Fārisī:** Quoted the verse to affirm purity requirement.

Sub-Issue 4: Hadiths Supporting Wudu Requirement

Key Hadiths:

1. **"None should touch the Qur’an except the pure"**
 - Sources: Dārimī, Muwatta’, Bayhaqī, Dāraqtunī, Ṭabarānī
 - Grading: Ḥasan/Saḥīḥ li-ghayrihi
2. **‘Umar and his sister:** Purified before touching the Qur’an
 - Grading: Saḥīḥ
3. **Sa’d’s son scratching himself while holding Muṣḥaf**
 - Grading: Saḥīḥ
4. **Ibn ‘Umar’s consistent practice**
 - Grading: Saḥīḥ

Sub-Issue 5: Views of the Zāhirī (Literalist) Scholars

- **Dāwūd ibn ‘Alī al-Zāhirī:** Rejected the ḥadīth of ‘Amr ibn Ḥazm, said Qur’anic verse refers to angels, **permits touching without purity.**
- **Reason:** Interprets verse non-normatively and rejects mursal hadiths.

Sub-Issue 6: Touching with Barrier (ḥā’il)

Hanafi Nuance:

Permits touching with a **cover/barrier**, but not direct contact.

Mālikī Exception:

Allowed **children** to carry or write the Qur’an without wudu.

Sub-Issue 7: Scholarly Consensus (Ijmā’)

Reported Ijmā’:

Consensus mentioned by:

- **Ibn ‘Abd al-Barr**
- **Qurṭubī**
- **Al-Bājī**
- **Ibn Baṭṭāl**
- Imams of all four schools

Supported by many major jurists across time and geography.

Conclusion:

It Is Obligatory (Wājib) To Have Ritual Purity (ṭahārah) When Touching The Muṣḥaf (Physical Copy Of The Qur’an).

- By “ṭahārah,” Scholars Mean Being Free From Major Impurity (Junub), Menstruation (ḥayḍ), Postnatal Bleeding (Nifās), And Also Having Ablution (Wuḍū).
- All Four Major Sunni Schools (Ḥanafī, Mālikī, Shāfi‘ī, Ḥanbalī), As Well As A Large Group Of Companions And Tābi‘īn, **Agree On This Matter.**
- This Is Considered The **Correct And Sound Opinion.**
- In Fact, Some Fuqahā’ (Jurists) And Muḥaddithīn (Hadith Scholars) Even **Claimed Consensus (Ijmā’)** On This Issue.

Wallāhu A‘Lam (Allah Knows Best).

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 20 – The Ruling On Wudu (Ablution) For Tawaf

The Fundamental Difference Of Opinion In This Matter Is: **Is Wudu A Condition (Shart) For Performing Tawaf, Or Not?**

According To The **Hanafis**, Wudu Is **Not A Condition** — Meaning If Someone Performs Tawaf Without Wudu, Their Tawaf Will Still Be Valid.

However, They Say **It Is Impermissible (Na-Ja'iz)**, And Doing Tawaf Without Wudu Is Considered A **Major Sin (Kabira Gunaah)** Because, In Their View, **Wudu Is Wajib (Obligatory)** For Tawaf. They Differentiate Between **Wajib** And **Fard**: Leaving A **Wajib** Does Not Invalidate The Act But Makes The Person Sinful. Therefore, Wudu Is Not A **Shart (Prerequisite)** But A **Wajib Obligation** In The Hanafi School.

According To One Statement, Performing Tawaf Without Wudu Is **Not Haram**, But The Tawaf Would Not Be Considered **Complete Or Perfect**.

Quoting From **Bughiyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (1/488)**:

“He (The Author) Says: Purity (Taharah) Is Not A Condition For Tawaf, And It Is Not Haram For Someone Without Wudu To Perform Tawaf — But The Act Is More Complete (Akmal) When Done With Wudu.”

Imam Ahmad Ibn Hanbal Also Holds (According To One Narration) That Wudu Is **Wajib** For Tawaf.

(Reference: Al-Mawsu‘At Al-Fiqhiyyah Al-Kuwaitiyyah, Vol. 29, P. 131)

In **Al-Muhit Al-Burhani Fi Al-Fiqh Al-Nu‘Mani** By Ibn Mazah Al-Bukhari Al-Hanafi (2/462), It Says:

“It Must Be Known That Tawaf Is Valid In Our (Hanafi) View Without Purity (Taharah); Purity Is Not A Condition For Tawaf, But It Is Among Its Obligations (Wajibat), And Leaving An Obligation Does Not Prevent The Act From Being Counted (As Valid).”

The View Of The Majority (Jumhur)

The Majority — Including The **Malikis, Shafi‘Is, And Hanbalis** — Say That **Wudu Is A Condition** For Tawaf.

If Someone Performs Tawaf Without Wudu, It Is Invalid (Batil), And Doing Tawaf Without Wudu Is Haram.

According To The Malikis And Shafi‘Is:

“Tawaf Around The Ka‘Bah And Touching The Mushaf (Qur’an) Are Like Prayer (Salah). If One Does Wudu For Tawaf, They Can Also Pray With That Wudu, Because Wudu Is A Condition For

Both, Just Like For Prayer.”

(Reference: Rawdat Al-Mustabīn Sharh Kitab Al-Talqīn By Ibn Bazīzah, 1/169)

“Whoever Loses Wudu, It Is Haram For Them To Pray, Perform Tawaf, Or Touch Or Carry The Mushaf.”

(Reference: Al-Tanbīh Fi Al-Fiqh Al-Shafi‘ī By Abu Ishaq Al-Shirazi, P. 17)

“It Is Haram For Someone Without Wudu To Perform Tawaf, Whether It Is For Hajj, ‘Umrah, Or A Voluntary Tawaf At Any Time.”

(Reference: Bughiyat Al-Muqtasid, 1/488)

Hanafi Argument

The Hanafis Say That The Prophet ﷺ Never Explicitly Said That Tawaf Is **Not Valid** Without Wudu, Nor Did He Say That Allah Does **Not Accept** The Tawaf Of One Who Is Without Wudu. Therefore, They Consider It **Wajib (Obligatory)**, But **Not A Shart (Condition)**.

Reason For The Difference Of Opinion

The Difference Among Scholars Arose Because Of The Question:

Is Tawaf Comparable To Prayer (Salah), Or Not?
And Do The Rulings Of Salah Apply To Tawaf Or Not?

This Debate Arose Because **There Is No Clear-Cut Hadith** That States Wudu Is Explicitly Wajib Or Shart For Tawaf.

This Is Also The Position Of **Ibn Taymiyyah**.

(Reference: Majmu‘ Al-Fatawa, Vol. 21, P. 273)

Evidence Used By The Majority

The Majority Cite The Following **Hadith**:

From **Sahih Bukhari, Hadith 1615** —

‘Aisha (RA) Said:

“The First Thing The Messenger Of Allah ﷺ Did When He Arrived (For Hajj) Was Perform Wudu, Then He Performed Tawaf.”

Arabic:

حَدَّثَنَا أَصْبَغُ ، عَنِ ابْنِ وَهْبٍ: أَخْبَرَنِي عَمْرُو ، عَنْ مُحَمَّدِ بْنِ عَبْدِ الرَّحْمَنِ: ذَكَرْتُ لِعُرْوَةَ ، قَالَ : فَأَخْبَرْتَنِي عَائِشَةُ رَضِيَ اللَّهُ عَنْهَا: أَنَّ...أَوَّلَ شَيْءٍ بَدَأَ بِهِ جِبْنَ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ أَنَّهُ تَوَضَّأَ ، ثُمَّ طَافَ

This Hadith Is Agreed Upon (**Muttafaqun ‘Alayh**).

Takhrij (Hadith References)

- Bukhari: Sahih (2/152), Hadith No. 1614; (2/157), No. 1641
- Muslim: Sahih (4/54), No. 1235
- Ibn Khuzaymah: Sahih (4/360), No. 2699
- Ibn Hibban: Sahih (9/117), No. 3808
- Bayhaqi: Sunan Al-Kubra (5/77), No. 9336; (5/86), No. 9392

Explanation Of The Hadith

Some Scholars Say Wudu In Tawaf Is **Not A Shart**, Only **Mustahabb (Recommended)** — This Is The View Of **Mansur, Hammad, Al-A‘Mash, Al-Hasan, Ibn Sirin, Abu Hanifa**, And Later, **Ibn Taymiyyah**.

Ibn Taymiyyah Said:

“Those Who Make Wudu A Condition For Tawaf **Have No Clear Evidence.**”

(Reference: Fath Al-‘Allam Fi Dirasat Ahadith Bulugh Al-Maram, 4th Edition, Vol. 5, P. 244)

Other Views

According To One Narration From **Ahmad Ibn Hanbal**, If Someone Performs Tawaf Without Wudu, They Must **Offer A Compensatory Sacrifice (Dam)** — This Is Also A View Among Some **Malikis**.

Shaykh Ibn Baz Held The View That Wudu Is **Not A Shart** For Tawaf.

Ibn ‘Uthaymin Held The Opposite View — That It **Is** A Shart.

(Reference: Fath Al-‘Allam Fi Dirasat Ahadith Bulugh Al-Maram, 4th Edition, Vol. 5, P. 245)

Abu Al-Ashbal Hassan Al-Zuhairi Al-Mandouh Al-Mansouri Al-Masri Says That The Majority (Jamhoor) Of Scholars Hold The Opinion That Wudu (Ablution) Is A Condition (Shart) For The Validity Of Tawaf, Except Abu Hanifa, Who Says It Is Not A Condition. In *Sharh Sahih Muslim* (Hassan Abu Al-Ashbal, 30/13, Shamela Numbering):

“The Messenger Of Allah (ﷺ) Performed Hajj, And Aisha (May Allah Be Pleased With Her) Informed Me That The First Thing He Did Upon Arriving In Makkah Was Perform Wudu And Then Make Tawaf Of The House. This Is The View Of The Majority — That Wudu Is A Condition For The Validity Of Tawaf, And That Tawaf Is Like Prayer, Except That Allah Has Permitted Speech During It.

Just As Prayer Cannot Be Done Without Wudu, Neither Can Tawaf, **Except** According To Abu Hanifa, Who Says Wudu Is Not A Condition But Recommended. The Stronger Opinion Is The First (That It Is A Condition).”

Suleiman Bin Muhammad Al-Lahimid Says:

The First Opinion Is That Of Those Who Say **Taharah (Purification)** Is A Condition For Tawaf (This Is The Opinion Of The Majority).

The Second Opinion Is That Taharah Is **Obligatory (Wajib)** In Tawaf But Not A Condition. This Is The Opinion Of Abu Hanifa And (According To One Narration) Ahmad Ibn Hanbal.

The Third Opinion Is That **Tawaf Is Allowed Even Without Purification** Under Any Circumstances; This Is The View Of Ibn Hazm Al-Zahiri.

The Fourth Opinion Is That Purification Is **Sunnah** For Tawaf, And Even A Woman In Menstruation (Hayd) Or Postpartum Bleeding (Nifas) Can Perform Tawaf; This Is The View Of Ibn Taymiyyah.

In *Sharh Buloogh Al-Maram* (Al-Lahimid, 1/313, Shamela Numbering):

“The Reasoning Behind This Is That The Prophet (ﷺ) Allowed Aisha (May Allah Be Pleased With Her) While She Was Menstruating To Do Everything The Pilgrims Do **Except** Tawaf, Which He Restricted To When She Was Pure (Ghusl And Taharah). This Indicates That Tawaf Is Prohibited Without Purification And That Purification Is A Condition For Its Validity, As Prohibition In Acts Of Worship Indicates Invalidity.

Also, When The Prophet (ﷺ) Was Told That Safiyyah Had Menstruated, He Asked, ‘Is She Holding Us Back?’ They Said, ‘She Has Already Performed The Farewell Tawaf.’ He Said, ‘Then No (She’s Not Holding Us Back),’ (Agreed Upon).

This Shows That Her Menstruation Would Have Delayed The Entire Group If She Hadn’t Already Done The Tawaf, Proving That Taharah Is A Condition.”

The Second Opinion (Abu Hanifa, And One Narration From Ahmad):

“Allah Says: *Let Them Perform Tawaf Around The Ancient House* (Qur’an).

The Argument Is That Allah Commanded Tawaf Unconditionally, Without Specifying Purification, And It Is Not Allowed To Restrict A General Command From The Qur’an With A Single Narration (Khabar Al-Wahid).

Additionally, The Hadiths Used By The First Group Only Prove That Taharah Is Obligatory (Wajib), Not A Condition, Because They Are Single Reports, Which Create Obligation But Not A Requirement For Validity. Making It A Condition Would Effectively Cancel The General Command Of The Qur’an, Which Is Not Allowed.”

The Third Opinion (Ibn Hazm Al-Zahiri):

“Tawaf Is Valid Even Without Purification, Except For A Menstruating Woman.

This Is Based On The Hadith Where The Prophet (ﷺ) Told Aisha (May Allah Be Pleased With Her),

‘Do Everything The Pilgrims Do Except Tawaf Until You Become Pure.’

Ibn Hazm Argues: If Purification Were A Condition, The Prophet (ﷺ) Would Have Explicitly Informed People Just As He Did Regarding Menstruating Women. Also, Asma Bint Umais Gave Birth At Dhul-Hulayfah, And The Prophet (ﷺ) Instructed Her To Perform Ghusl And Enter Ihram, But He Did Not Prohibit Her From Tawaf.

They Also Argue That The Basic Principle Is Non-Obligation Unless Proven; All Scholars Agree That Purification Is Not Required For Other Rites Like Standing At Arafah, Staying Overnight, Or Stoning. Therefore, Requiring Purification Specifically For Tawaf Needs Solid Evidence, Which They Say Does Not Exist.”

The Fourth Opinion (Ibn Taymiyyah):

“Purification From Minor Impurity (Hadath) Is Sunnah, Not Obligatory, For Tawaf. If A Woman In Menstruation Or Nifas Needs To Do Tawaf And Cannot Delay Due To Travel, She May Do So, And There Is No Penalty.”

Sheikh Abdul Aziz Bin Abdullah Al-Rajhi Says:

According To The Majority (Jamhoor) Of Scholars, Wudu (Ablution) Is A Condition (Shart) For The Validity Of Tawaf.

In Tawfiq Al-Rabb Al-Mun ‘Im Bi-Sharh Sahih Al-Imam Muslim (3/500):

“The First Thing The Prophet (ﷺ) Did Upon Arriving In Makkah Was Perform Wudu, Then He Performed Tawaf.”

The Majority Use This As Evidence That Wudu Is A Condition For The Validity Of Tawaf.

This Opinion — That Wudu Is A Condition For Tawaf — Is The View Of Imam Malik, Al-Shafi‘I, Ahmad, And The Majority Of Early (Salaf) And Later (Khalaf) Scholars.

Ibn Al-Mundhir Reports It From Ibn Umar, Al-Hasan Ibn Ali, Abu Al-‘Aliyah, Malik, Al-Thawri, Al-Shafi‘I, Ahmad, Ishaq, And Abu Thawr.

Al-Khattabi Also Attributes This To The Majority Of The Salaf, And Al-Nawawi Mentions It In *Sharh Al-Muhadhdhab* As The View Of The Majority Of Scholars.

In Al-Bahr Al-Muhit Al-Thajjaj Fi Sharh Sahih Al-Imam Muslim Ibn Al-Hajjaj (22/596):

“This Is The View Of Malik, Al-Shafi‘I, Ahmad, And Most Scholars From The Salaf And Khalaf. Ibn Al-Mundhir Reports It From Ibn Umar, Al-Hasan Ibn Ali, Abu Al-‘Aliyah, Malik, Al-Thawri, Al-Shafi‘I, Ahmad, Ishaq, And Abu Thawr. Al-Khattabi Attributes It To The General Body Of Scholars, And Al-Nawawi In *Sharh Al-Muhadhdhab* Also Reports It As The View Of The Majority.”

Jami‘ Al-Tirmidhi (960) Reports From Ibn Abbas That The Messenger Of Allah (ﷺ) Said:

“Tawaf Around The House Is Like Prayer, Except That You Are Allowed To Speak During It. So Whoever Speaks During It, Let Him Only Say Good Words.”

Note: The Isnad (Chain) Of This Hadith Is *Da‘If* (Weak).

Details On The Weakness Of The Chain:

The Problem Lies In The Narrator **‘Ata Ibn Sa’ib**, Who Experienced **Ikhtilat** (Memory Confusion) Later In Life.

1. Imam Al-Nasa’i Says:

He Was Trustworthy (Thiqa), Except That Later On His Memory Deteriorated (Meaning His Memorization Became Unreliable). However, The Hadith Reported From Him By Hammad Ibn Zayd, Thawbah, And Sufyan Are Considered Authentic.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

2. Yahya Ibn Qattan Also Says:

The Hadith From Him Through Thawbah And Sufyan Are Authentic.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

3. Imam Al-‘Uqayli Says:

Only The Hadith From Sufyan And Thawbah Are Sound; All Others Heard From Him After His Memory Confusion (Ikhtilat). The Narrators Like Jarir, Khalid Ibn Abdullah, Ibn ‘Alyah, ‘Ali Ibn Asim, Hammad Ibn Salamah, And The People Of Basra Heard From Him After Ikhtilat.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

4. Ahmad Ibn Hanbal Says:

The Narration From Jarir Is From After ‘Ata’s Ikhtilat.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

5. Imam Al-‘Ajli Says:

Whoever Narrated From Him Before Ikhtilat, Their Narrations Are Authentic; After Ikhtilat, The Reports Are *Mudtarib* (Uncertain).
(*Tahdhib Al-Kalam*, Vol. 20, P. 86)

6. Abu Hatim Says:

After Ikhtilat, His Memory Became Bad, And His Hadith Became Unreliable; The People Of Basra (And Jarir, Who Was Basran) Heard From Him After Ikhtilat.
(*Al-Jarh Wa Al-Ta'Dil* By Ibn Abi Hatim, Vol. 6, P. 332)

7. Imam Yahya Ibn Ma'In Says:

Weak — Meaning The Narrations From Him After Ikhtilat Are Weak. Only Sufyan And Thawbah Heard From Him Before Ikhtilat.
(*Tahdhib Al-Kalam*, Vol. 20, P. 86)

8. Ibn Ma'In Also Says:

The Narration From 'Ata Through Jarir Is Not Authentic.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

9. Imam Al-Nasa'i Says:

He Was Thiqa, Except After Ikhtilat; The Hadith From Hammad Ibn Zayd, Sufyan, And Thawbah Are *Hasan* (Good). Otherwise, The Hadith Are Weak.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

10. Ibn Qattan Also Says:

After Ikhtilat, Only The Hadith From Sufyan And Thawbah Are *Hasan*; The Rest Are Weak.
(*Al-Kawakib Al-Niyyirat*, Vol. 1, P. 319)

Many Other Hadith Scholars Have Also Said The Same.

There Is Another Chain (ṭarīq) For This Same Hadith, Found In:
Al-Ḥadīth Al-Mukhtārah, Vol. 11, P. 63, No. 55

وَبِهِ أَبْنَا إِسْمَاعِيلُ بْنُ عَبْدِ اللَّهِ ، ثَنَا أَبُو حُدَيْفَةَ ، ثَنَا سَفْيَانُ ، عَنْ حَنْظَلَةَ ، عَنْ طَاوُسٍ ، عَنْ ابْنِ عَبَّاسٍ (لَا أَعْلَمُ إِلَّا رَفَعَهُ) ، قَالَ :
الطَّوَّافُ بِالْبَيْتِ صَلَاةً فَأَقْلَوْا فِيهِ الْكَلَامَ
(Chain Is Weak)

In This Isnād (Chain), **Abu Hudhayfah** Is Weak In Memorization (Shush Al-ḥifẓ), Meaning He Was Not Precise. His Name Is **Musa Ibn Mas'ūd**.

Statements Of Scholars About Him:

Ibn Ḥajar Says:

“He Is ṣadūq (Truthful) But Poor In Memorization And Often Makes Mistakes In Texts.”
(*Taqrīb Al-Tahdhīb*, 1/985)

Aḥmad Ibn Ḥanbal Considered Him Weak:

“‘Qubayṣah’ Is More Reliable Than Him In Narrating From Sufyān. Abu Hudhayfah Is Almost Nothing; I Wrote From Both.”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Ibn Ḥibbān Says:

“He Makes Mistakes.”
(*Al-Thiqāt*, 9/160)

Ibn Qānī Says:

“He Is Weak.”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Al-Dāraqutnī Says:

“Al-Bukhārī Narrated From Him, But He Is Prone To Many Mistakes; Scholars Have Spoken Against Him.”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Al-Ḥākim Abū ‘Abd Allāh Says:

“He Is Very Prone To Mistakes And Has Poor Memory.”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Imām Al-Fallās (‘Amr Ibn ‘Alī) Says:

“Anyone Proficient In ḥadīth Would Avoid Narrating From Him.”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Imām Al-Sājī Says:

“He Often Makes Textual Mistakes And Is Weak.”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Muḥammad Ibn Bashār (Bundār) Says:

“Musa Ibn Mas‘ūd Is Weak In ḥadīth. I Wrote Much From Him, Then Abandoned Him.”
(*Tahdhīb Al-Kamāl*, 29/145)

Al-‘Uqaylī Included Him Among The Weak Narrators (*In Jumlatu Al-Ḍu‘afā’*).
(*Ikmāl Tahdhīb Al-Kamāl*, 12/37)

Ibn Khuzaymah Says:

“He Is Not A Proof (ḥujjah).”
(*Tahdhīb Al-Tahdhīb*, 4/188)

Imām Al-Tirmidhī Says:

“He Is Weak In ḥadīth.”

(*Tahdhīb Al-Kamāl*, 29/145)

Abū Aḥmad Al-Ḥākim Says:

“He Is Not Considered Strong By The Scholars.”

(*Tahdhīb Al-Tahdhīb*, 4/188)

Another Chain Of This Hadith Is Found In:

Al-Mustadrak Al-Ḥākim, Vol. 1, P. 459, Hadith 1692

حَدَّثَنَا عَلِيُّ بْنُ حَمَّادٍ الْعَدَلِيُّ ، ثنا مُحَمَّدُ بْنُ صَالِحٍ الْهَمْدَانِيُّ ، ثنا عَبْدُ الصَّمَدِ بْنُ حَسَّانَ ، ثنا سُفْيَانُ الثَّوْرِيُّ ، عَنْ عَطَاءِ بْنِ السَّائِبِ ، عَنْ طَاوُسٍ ، عَنْ ابْنِ عَبَّاسٍ

(Chain Is Weak)

In This Chain, **Muḥammad Ibn Ṣāliḥ** Is **Matrūk** (Abandoned).

Al-Dāraqutnī Called Him Matrūk — **Lisān Al-Mīzān**, Vol. 7, P. 203.

Another Chain Of This Hadith Is From ‘Abdullāh Ibn ‘Umar In:

Sunan Al-Nasā’ī, Vol. 1, P. 579, Hadith 2923

أَخْبَرَنَا مُحَمَّدُ بْنُ سُلَيْمَانَ ، قَالَ : أَنَبَأَنَا الشَّيْبَانِيُّ ، عَنْ حَنْظَلَةَ بْنِ أَبِي سُفْيَانَ ، عَنْ طَاوُسٍ ، قَالَ : قَالَ عَبْدُ اللَّهِ بْنُ عُمَرَ

(Chain Is Munqaṭi‘ — Disconnected)

In This Chain, **Al-Shaibānī** (Sulaymān Ibn Abī Sulaymān) Narrates From **Handhala Ibn Abī Sufyān Ibn ‘Abd Al-Raḥmān** — But This Chain Is Broken (Munqaṭi‘), As They Did Not Meet.

No Hadith Scholar Has Recorded In The Biography (Tarjama) Of Sulaymān Ibn Abī Sulaymān That He Narrates From Handhala Ibn Abī Sufyān Ibn ‘Abd Al-Raḥmān, Nor In The Biography Of Handhala That Sulaymān Narrates From Him.

Their Biographies Appear In The Following Books:

1. Al-Jarḥ Wa Al-Ta‘Dīl By Ibn Abī Ḥātim, Vol. 3, P. 241
2. Al-Thiqāt By Ibn Ḥibbān, Vol. 6, P. 225
3. Al-Kāmil Fī Al-Ḍu‘Afā’ By Ibn ‘Adī, Vol. 3, P. 338
4. Tahdhīb Al-Kamāl By Al-Mizzī, Vol. 7, P. 433
5. Al-Kāshif By Al-Dhahabī, Vol. 2, P. 331
6. Tārīkh Al-Islām By Al-Dhahabī, Vol. 4, P. 43
7. Siyar A‘Lām Al-Nubalā’ By Al-Dhahabī, Vol. 6, P. 336

Another Chain Of This Hadith Is Found In:

Sunan Al-Kubrā By Al-Bayhaqī, Vol. 5, P. 85, Hadith 9385, From Ibn ‘Abbās (Mawqūf — Stopped At Companion)

عَنْ ابْنِ عَبَّاسٍ قَالَ : الطَّوَافُ صَلَاةٌ فَأَقْلُوا فِيهِ مِنَ الْكَلَامِ
(Authentic In Itself — ṣaḥīḥ Li-Dhātiḥi)

Another Chain Exists:

Sunan Al-Kubrā By Al-Bayhaqī, Vol. 5, P. 85, Hadith 9386, From Ibn ‘Umar (Mawqūf)

سَمِعْتُ ابْنَ عُمَرَ يَقُولُ : أَقْلُوا الْكَلَامَ فِي الطَّوَافِ فَإِنَّمَا أَنْتُمْ فِي صَلَاةٍ
(Narrators Are Reliable Except Sa‘īd Ibn Sālim, About Whom There Is Difference)

Another Chain:

Sunan Al-Kubrā By Al-Bayhaqī, Vol. 5, P. 87, Hadith 9396

عَنْ طَاوُسٍ ، عَنْ ابْنِ عَبَّاسٍ أَنَّ رَسُولَ اللَّهِ ﷺ
(In This Chain, Layth Ibn Muslim Is Unanimously Weak)

Another Chain:

Al-Mu‘Jam Al-Kabīr By Al-Ṭabarānī, Vol. 11, P. 40, Hadith 10976 / 11005

عَنْ طَاوُسٍ ، عَنْ ابْنِ عَبَّاسٍ ، عَنِ النَّبِيِّ ﷺ قَالَ
(In This Chain, Muḥammad Ibn ‘Abdullāh Ibn ‘Ubayd Ibn ‘Umayr Ibn Qatādah Is Unanimously Weak)

This ḥadīth Is Not Established As Marfū‘ (Prophetic) But Only As Mawqūf (Companion’s Statement).

Hanafi Reasoning

Hanafis Derive Their Ruling From The Qur’ān, Sūrat Al-Ḥajj, Ayah 29:

وَلْيَطَّوَّفُوا بِالْبَيْتِ الْعَتِيقِ
“...And Let Them Circumambulate The Ancient House.”

They Say: Allah Gave This Command Without Adding Any Specific Condition.
This Is A **Definite Textual Ruling (Nāṣṣ Qaṭ‘ī)**, While The ḥadīth Is **Khabar Āḥād** (Solitary Report).
Therefore, They Take The ḥadīth As *Recommended* (Mustahabb), Not *Obligatory* (Farḍ).

If Someone’s Wuḍū’ Breaks During ṭawāf, They Can Perform Wuḍū’ And Continue Their ṭawāf Without Restarting —

This Is The Position Of The **Ḥanafī, Shāfi‘ī** (According To One Opinion), And **Mālikī** Schools. Mālik’s Most Well-Known Opinion, However, Is That The Person Must Restart The Entire ṭawāf. (*Sharḥ Al-Risālah With Ḥāshiyat Al-‘Adawī*, Vol. 1, P. 466)

Ḥanbalī View

They Say If Someone Breaks Their Wuḍū’ Deliberately, They Must Repeat The ṭawāf, Because Purity (ṭahārah) Is A Condition.

Evidence From Ṣaḥīḥ Al-Bukhārī, Hadith 294

When ‘Ā’Ishah (R.A.) Got Her Period, The Prophet ﷺ Said:

“Do Everything That A Pilgrim Does, Except For ṭawāf Of The House.”

This Is Used As Evidence By The Majority (Jumhūr).

Arabic Text:

حَدَّثَنَا عَلِيُّ بْنُ عَبْدِ اللَّهِ قَالَ: حَدَّثَنَا سُفْيَانُ قَالَ: سَمِعْتُ عَبْدَ الرَّحْمَنِ بْنَ الْقَاسِمِ قَالَ: سَمِعْتُ الْقَاسِمَ بْنَ مُحَمَّدٍ يَقُولُ: سَمِعْتُ عَائِشَةَ تَقُولُ: خَرَجْنَا لَا نَرَى إِلَّا الْحَجَّ ، فَلَمَّا كُنَّا بِسَرِفٍ حِضْتُ ، فَدَخَلَ عَلَيَّ رَسُولُ اللَّهِ ﷺ وَأَنَا أَبْكِي ، قَالَ: مَا لَكَ ، أَنْفُسْتُ؟". قُلْتُ: نَعَمْ ، قَالَ: إِنَّ هَذَا أَمْرٌ كَتَبَهُ اللَّهُ عَلَى بَنَاتِ آدَمَ ، فَأَقْضِي مَا يَقْضِي الْحَاجُّ ، غَيْرَ أَنْ لَا تَطُوفِي بِالْبَيْتِ". قَالَتْ: وَضَحَّى رَسُولُ اللَّهِ ﷺ عَنْ نِسَائِهِ بِالْبَقَرِ

Summary Of The Issue

The Ruling On Wudu (Ablution) For Tawaf

Summary of Core Issue:

The main dispute among scholars is whether performing Wudu (ablution) is a *shart* (condition) for the validity of Tawaf (circumambulation of the Ka‘bah), or whether it is merely *wajib* (obligatory but not essential for validity), or simply *mustahabb* (recommended).

I. Hanafi View

- **Ruling:** Wudu is **wajib** for Tawaf but **not a condition (shart)**.
- **Implication:** Tawaf without Wudu is valid but sinful. It does not require repetition, though it incurs a sin.
- **Evidence & Sources:**
 - *Al-Muḥīt al-Burhānī* (2/462): "Tawaf is valid without Taharah."
 - *Bughyat al-Muqtasid* (1/488): Wudu is not a shart but makes the act more complete.
 - *Majmū‘ al-Fatāwā* (21/273), Ibn Taymiyyah: no explicit evidence makes Wudu a shart for Tawaf.
 - **Qur’anic basis:** Sūrah al-Ḥajj:29 "Let them circumambulate the Ancient House."
- **Important Distinction:** The command to do Tawaf is general and unconditional; hence, it cannot be restricted by *khbar ahad* (solitary hadith reports).
- **If Wudu breaks during Tawaf:** The person performs Wudu and continues from where they left off.

II. Majority View (Maliki, Shafi‘i, Hanbali)

- **Ruling:** Wudu is a **shart (condition)** for the validity of Tawaf.
- **Implication:** Performing Tawaf without Wudu is **invalid (batil)** and **haram**.
- **Evidence & Sources:**
 - *Rawdat al-Mustabīn* (1/169): Tawaf is like Salah.
 - *Tanbih fi al-Fiqh al-Shafi‘i*: Invalid without Wudu.
 - *Bughyat al-Muqtasid* (1/488): Prohibits Tawaf without Wudu.
 - **Hadith of ‘Aisha** (Bukhari 1615, Muslim 1235): The Prophet – upon arrival in Makkah – performed Wudu before Tawaf.
 - *Sharḥ Muslim* (30/13): Majority opinion that Wudu is shart for Tawaf.
- **Narration from Ibn ‘Abbas:** "Tawaf is like Salah, except that speech is permitted."
 - However, its isnad is **da‘if (weak)** due to ‘Ata ibn Sa‘ib’s ikhtilat (memory issues).

III. Other Views

- **Imam Ahmad (alternate view) and some Malikis:** Wudu is **wajib**, not shart. If omitted, a compensatory *dam* (sacrifice) is due.
- **Ibn Hazm (Zahiri):** Wudu is not required for Tawaf, except in the case of menstruating women.
- **Ibn Taymiyyah:** Wudu is **sunnah**, not obligatory; allowances for menstruating/postpartum women to do Tawaf without Wudu if travel requires.

Hadith Analysis & Weak Chains

- The oft-cited hadith "Tawaf is like Salah..." has **multiple chains**, most of which are weak:
 - Narrators include ‘Ata ibn Sa‘ib (after ikhtilat), Musa ibn Mas‘ud (weak memory), and others.
 - *Bayhaqi* (5/85) and *Tabarani* (11/40) chains either have weak narrators or are mawquf.
 - **Conclusion:** No strong marfu‘ hadith that explicitly states Wudu is a shart.

Additional Arguments from Majority:

- **Hadith of ‘Aisha:** Menstruating women are forbidden from Tawaf, indicating purity is necessary.
- **Hadith of Safiyyah:** Her completion of Tawaf before menstruation allowed her to travel with the group.
- Prohibition from Tawaf during menses implies **Taharah is a condition.**

Comparative Views on Breaking Wudu Mid-Tawaf:

- **Hanafis & one Shafi‘i/Maliki opinion:** Resume from where Wudu was broken.
- **Maliki (most known view):** Restart Tawaf.
- **Hanbali:** If broken deliberately, repeat Tawaf.

Conclusion :

There Is No **Clear-Cut Evidence** That Absolutely Makes Wuḍū’ A Strict Condition For ṭawāf.

Later Jurists, Including Many Non-Ḥanafīs, Have Analyzed This Carefully.

Wuḍū’ Is Recommended (Mustahabb) For ṭawāf, Not Strictly Obligatory (Farḍ), Because Establishing Something As Farḍ Requires Clear Evidence.

And No Clear Text Was Found From The Prophet ﷺ Or The Noble Companions (ṣaḥābah) That Sets This Absolute Condition.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 21 – The Ruling Of Wudu (Ablution) For A Junub (Person In A State Of Major Ritual Impurity)

The Basic Difference Of Opinion In This Matter Is Whether, When Someone Is In A State Of Janabah (Major Ritual Impurity After Intercourse), It Is Obligatory (Wajib) Or Recommended (Mustahabb) For Them To Perform Wudu (Minor Ablution) In Certain Situations.

One Such Situation Is: After Intercourse, Before Going To Sleep — Is It Obligatory Or Sunnah To Perform Wudu?

There Is Disagreement On This.

The Majority (Jumhoor) Say It Is **Mustahabb** (Recommended), While The Zahiri Scholars Say It Is **Wajib** (Obligatory).

In **Al-Muhalla** By Ibn Hazm (1/100), He Says:

“Except When A Junub Wants To Have Intercourse Again, In That Case, Wudu Between The Two Acts Is Obligatory, Based On The Hadith We Narrated Through Hafs Ibn Ghiyath And Ibn Uyaynah, Both From Asim Al-Ahwal, From Abu Al-Mutawakkil, From Abu Sa‘Id Al-Khudri, From The Prophet ﷺ:

‘If One Of You Has Intercourse With His Wife And Then Wants To Return (To Intercourse), Let Him Perform Wudu Between The Two Acts.’

This Is The Wording Of Hafs Ibn Ghiyath; Ibn Uyaynah’s Version Says: *‘If He Wants To Return, He Should Not Return Until He Performs Wudu.’*

We Did Not Find Any Report That Limits This Command Or Reduces It To A Recommendation Except A Weak Narration From Yahya Ibn Ayyub.

Those Who Say Wudu Here Is Obligatory Include: Umar Ibn Al-Khattab, Ata, Ikrimah, Ibrahim, Al-Hasan, And Ibn Sirin.”

The Reason Is: They Say The Messenger Of Allah ﷺ Instructed Umar Ibn Al-Khattab When He Was In A State Of Janabah: *“Wash Your Private Parts And Perform Wudu, Then Sleep.”*

This Was Narrated By Bukhari And Muslim.

Narration:

Abdullah Ibn Yusuf Reported To Us, Malik Narrated From Abdullah Ibn Dinar, From Abdullah Ibn Umar, Who Said:

“Umar Ibn Al-Khattab Mentioned To The Messenger Of Allah ﷺ That He Becomes Junub At Night, So The Messenger ﷺ Said To Him: *‘Perform Wudu And Wash Your Private Part, Then Sleep.’*”

In Another Hadith, The Messenger Of Allah ﷺ Said (Narrated By Abu Sa‘Id Al-Khudri):

“If One Of You Has Intercourse With His Wife And Then Wants To Return (To Intercourse), Let Him Perform Wudu First, Then Resume.”

This Was Narrated By Muslim.

Narration:

Abu Bakr Ibn Abi Shaybah Reported To Us, Hafs Ibn Ghiyath Narrated, And Others — All From Asim, From Abu Al-Mutawakkil, From Abu Sa‘Id Al-Khudri, Who Said:

The Messenger Of Allah ﷺ Said: *“If One Of You Has Intercourse With His Wife And Then Wants To*

Return, Let Him Perform Wudu Between The Two.”

Abu Bakr Added In His Narration: *“Let Him Perform Wudu Between Them.”*

However, The Majority (Jumhoor) Say These Commands Are Meant As Recommendations (Istihbab), Not Obligations.

Similarly, In The Hadith Of Ibn Abbas, When The Prophet ﷺ Came Back After Relieving Himself, He Was Offered Food. Someone Said To Him, *“Will You Not Perform Wudu?”*

He Replied, *“Why? Am I Going To Pray That I Need To Perform Wudu?”*

This Was Narrated By Muslim, Ahmad, And Others.

Narration:

Abu Bakr Ibn Abi Shaybah Reported To Us, Sufyan Ibn Uyaynah Narrated, From Amr, From Sa‘Id Ibn Al-Huwairith, Who Said:

I Heard Ibn Abbas Say:

“We Were With The Prophet ﷺ When He Returned From The Toilet, And Food Was Brought To Him. Someone Said, ‘Will You Not Perform Wudu?’

He Replied, ‘Why? Am I Going To Pray, That I Should Perform Wudu?’”

From This, The Majority Derive The Principle That **Wudu Is Only Obligatory For Prayer**, Not For Other Acts.

Similarly, A Minority Among The Early Scholars (Salaf) Held The Opinion (Which Is Rare And Rejected) That It Is Not Permissible To Recite The Qur’an Without Wudu — I.E., They Claimed That Wudu Is Obligatory For Qur’an Recitation Even In Normal Circumstances.

However, Today This Is No Longer A Matter Of Debate, Because For Many Centuries There Has Been Consensus (Ijma‘) That This Is Not The Case.

Even If A Few People Disagreed In The Past, That Does Not Affect The Ijma‘.

All The Major Legal Schools — Whether The Arabs, Hanafis, Malikis, Shafi‘Is, Hanbalis, Or Others — Are United That **Wudu Is Not Obligatory To Recite The Qur’an**.

Summary Of The Issue

The Ruling of Wudu (Ablution) for a Junub (Person in a State of Major Ritual Impurity)

Summary of the Issue:

This issue centers around whether it is **obligatory (wājib)** or merely **recommended (mustaḥabb)** for a person in **janābah** (major ritual impurity after intercourse) to perform **wuḍū’** in specific situations—especially:

- Before sleeping while junub
- Between two acts of intercourse

Views of the Scholars:

1. Majority of Scholars (al-Jumhūr):

- **Wudū' is not obligatory** for a junub in any situation except before **ṣalāh (prayer)**.
- Performing wudū' before sleeping or between acts of intercourse is **mustahabb (recommended)**.

2. Zāhirī School (e.g., Ibn Ḥazm):

- **Wudū' is obligatory** in some cases while junub:
 - **Between two acts of intercourse.**
 - Possibly before **sleep** while in janābah.

Key Hadiths and Evidence:

➤ Hadith Supporting Wudū' Before Resuming Intercourse:

- **From Abū Sa'īd al-Khudrī:**

"If one of you has intercourse with his wife and wants to return (again), let him perform wudū' between the two."

- Reported by **Muslim**.
- Also mentioned by **Hafs ibn Ghiyāth** and **Ibn 'Uyaynah**.

➤ Hadith: Prophet ﷺ Advised 'Umar ibn al-Khaṭṭāb:

- The Prophet ﷺ said:

"Wash your private part and perform wudū', then sleep."

- Reported in **Ṣaḥīḥ al-Bukhārī** and **Ṣaḥīḥ Muslim**.

➤ Hadith Indicating Wudū' Is Only for Prayer:

- From **Ibn 'Abbās:**

When asked why he wouldn't perform wudū' before eating, the Prophet ﷺ replied:
"Why? Am I going to pray?"

- Reported by **Muslim**, **Aḥmad**, and others.

Ibn Ḥazm's Argument (Zāhirī Position):

- Wudū' between two acts of intercourse is **wājib**, not just recommended.
- Cites the hadiths of Abū Sa'īd and 'Umar.
- Rejects any weakening or re-interpretation unless there is strong counter-evidence.

Refutation by the Majority:

- These commands are for **istiḥbāb (recommendation)**, not obligation.
- No clear statement of **farḍiyyah (obligation)** in these hadiths.
- Hadith from Ibn ‘Abbās supports that wuḍū’ is **only obligatory for prayer**.

Historical View on Qur'an Recitation While in Janābah:

- Some early scholars held it is not allowed to recite Qur’an without wuḍū’.
- **This opinion is now rejected** by consensus (ijmā’).
- **There is no requirement of wuḍū’ to recite Qur’an**, even while junub, unless touching the **muṣḥaf**.

Consensus (Ijmā’):

- Today, there is **consensus** that:
 - **Wudū’ is not obligatory** in janābah except for prayer.
 - Wudū’ **before sleeping** or **between intercourse** is **mustaḥabb**, not **wājib**.
 - **All four madhāhib** (Ḥanafī, Mālikī, Shāfi‘ī, Ḥanbalī) agree.

Conclusion:

In The State Of Janabah, On Specific Occasions — Whether Before Resuming Intercourse Or Before Sleeping — Wudu Is **Not Obligatory**.

There Is Consensus (Ijma’) On This Today, And All The Four Imams — Abu Hanifa, Malik, Al-Shafi’I, Ahmad Ibn Hanbal — And Their Companions Agree On This.

Most Scholars Did Not Even Discuss This In Detail In Their Books Because The Disagreement Was Minor And Known Only To A Few, So There Was No Need To Elaborate Much.

Similarly, **For Reciting The Qur’an, Wudu Is Not Obligatory**, And There Is Unanimous Agreement On This Too.

These Matters Are Mentioned So That Students Of Knowledge Can Understand That Sometimes There Was Disagreement In Past Generations, But Later It Was Resolved, And Today It Remains Only A Historical Footnote.

This Helps Seekers Of Knowledge And Scholars To Better Understand The Fiqh (Jurisprudence) Of The Religion.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Book Of Purification – (Chapter Of Ghusl)

The Word **الْوُضوء (Wudu)**, When The **Wāw** Is Read With A **Fathah** (I.E. **Waḍū'**), Refers To The *Water With Which Ablution Is Performed*. Similarly, The Verb **يُتَوَضَّأُ (Yutawadda')** Means "That By Which One Performs Ablution" – Again, This Refers To The **Water**.

But When The **Wāw** Is Read With A **ḍammah** (I.E. **الْوُضوء**), Then It Refers To The *Act Of Ablution Itself*. This Is Analogous To The Word **الطَّهْر (Aṭ-ṭahūr)**, Meaning “That Which Purifies” (The Object), And **يُتَطَهَّر (Yutatahhār)**, Meaning “He Purifies Himself.”

Tuhoor (الطَّهْر), With A **ḍammah On The ṭā'** (طاء), Refers To The **Act** (I.E. Purification), And This Is Supported By The Hadith:

"الطَّهْرُ شَطْرُ الْإِيمَانِ" – *Purification Is Half Of Faith.*

This Hadith Is Narrated By **Muslim (223)**, And In It The Word **ṭuhūr (الطَّهْر)** Is Used With A **ḍammah On The ṭā'**, Signifying **The Act Of Purification**, Not The Substance.

The Jurists (Fuqahā') Have Always Said **الغُسل (Al-Ghusl)** With A **ḍammah On The Ghayn (غ)**. However, Some Later Linguists (Those Who Came After The First Three Generations) Claimed That This Is Incorrect And Not Valid. But Later, **Imam Nawawi** Supported The Jurists' Usage And Clarified The Matter.

Nawawi States:

- **غَسَلَ (Ghasl)** With **Fathah**: Refers To The **Act Of Washing** Something.
- **غَسَلَ (Ghisl)** With **Kasrah**: Refers To A **Substance** Used For Washing, Like Lotus Leaves Or Soap.
- **غَسَلَ (Ghusl)** With **ḍammah**: Refers To **The Act Of Ritual Bathing (Ghusl)** As Well As The **Water** Used For It.

Its Plural Is **غُسُول (Ghasūl)** With A **Fathah On The Ghayn**, And This Refers To **What Is Used To Wash Clothing**, Like Soap Or Alkali.

He Mentions In *Al-Muhadhdhab* Regarding The Hadith Of **Maymūnah (رضي الله عنها)**:

“I Placed For The Messenger Of Allah ﷺ Water For Ghusl After Janābah (Major Impurity).” In This Hadith, The Word **غُسْل (Ghusl)** With **ḍammah** Is Used.

Similarly, In The Hadith Of **Qays Ibn Sa'D**, The Word **Ghusl** Is Also Used With **ḍammah**, Indicating The **Water** Used For Ghusl.

Both Of These Usages Have Been Acknowledged By Scholars Of **Language, Hadith, And Fiqh** Alike.

See: *Tahrīb Al-Asmā' Wa Al-Lughāt* (4/59)

Some Scholars Hold That:

- Both **Ghasl** (غَسَلَ) And **Ghusl** (غُضِلَ) Can Refer Either To The **Water** Used Or To The **Act** Of Washing, Depending On Context.

Others Differentiate (As Is The Case With **Wudu**):

- **Ghasl** (غَسَلَ) With **Fathah** Refers To **The Water**,
- **Ghusl** (غُضِلَ) With **ḍammah** Refers To **The Act**.

Source: *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (2/494)

Foundational Proofs For Ghusl In The Qur'an:

1. Surah Al-Mā'idah (5:6):

“If You Are In A State Of Janābah (Major Impurity), Then Purify Yourself.”

{وَإِنْ كُنْتُمْ جُنُبًا فَاطَّهَّرُوا}

2. Surah Al-Nisā' (4:43):

“And Do Not Approach Prayer While You Are In A State Of Janābah – Unless Passing Through – Until You Have Bathed (Taken Ghusl).”

{وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ حَتَّى تَغْتَسِلُوا}

3. Surah Al-Baqarah (2:222):

“They Ask You About Menstruation. Say: It Is A Harm, So Keep Away From Women During Menstruation And Do Not Approach Them Until They Are Purified (يَطْهَرْنَ). When They Have Purified Themselves (تَطْهَرْنَ), Then Come To Them As Allah Has Commanded You.”

{فَاعْتَرِلُوا النِّسَاءَ فِي الْمَحِيضِ وَلَا تَقْرَبُوهُنَّ حَتَّى يَطْهَرْنَ فَإِذَا تَطَهَّرْنَ}

Ghusl Is Also Proven By The Sunnah With Many Authentic Hadiths That Describe How The Prophet ﷺ Used To Perform Ghusl.

Hadith Of 'Ā'ishah (رضي الله عنها):

Narrated By Al-Bukhārī (248) And Muslim (316):

She Said:

“When The Messenger Of Allah ﷺ Used To Perform Ghusl After Janābah, He Would First Wash His Hands, Then Perform Ablution As He Would For Prayer, Then Insert His Fingers Into Water And Run Them Through The Roots Of His Hair. Then He Would Pour Water Over His Head Three Times With His Hands, And Then Pour Water Over The Rest Of His Body.”

Hadith Of Maymūnah (رضي الله عنها):

Narrated By Al-Bukhārī (249) And Muslim (317):

Reported From **Ibn ‘Abbās**, Who Said That **Maymūnah**, The Mother Of The Believers, Said:

“The Messenger Of Allah ﷺ Performed Ablution Like That For Prayer – Except For His Feet. Then He Washed His Private Parts And Whatever Impurity Was On Him, Then Poured Water Over Himself, Then Moved His Feet And Washed Them. This Was His Ghusl From Janābah.”

Hadith Of Umm Salamah (رضي الله عنها):

Narrated By Muslim (330/85):

She Said:

“O Messenger Of Allah, I Am A Woman Who Tightly Braids Her Hair. Should I Undo It When Performing Ghusl Due To Janābah?”

The Prophet ﷺ Replied:

“No. It Is Enough For You To Pour Water Over Your Head Three Times, Then Pour It Over The Rest Of Your Body, And You Will Be Purified.”

Issue 22 – The Ruling On Rubbing The Body During Ghush (Ritual Bath) And Wudu (Ablution)

This Issue Has Been A Point Of Discussion Among The Jurists (Fuqahā'). It Is Agreed Upon That The Limbs Prescribed For Wudu—Namely, The Face, Hands, Head, And Feet—Must Be Washed, And Likewise, In Ghush, The Entire Body Must Be Washed. There Is No Disagreement Over This Obligation. However, The Point Of Disagreement Is Whether Merely Pouring Water Over The Entire Body Is Sufficient, Or Whether It Is Also Necessary To Rub (Mash) The Body With The Hands While Pouring The Water.

In Other Words: Is It Necessary To Ensure That Water Touches The Surface Of Each Limb And The Entire Body During Wudu And Ghush, Or Must One Actively Rub Each Part By Hand As Well? This Is Where The Disagreement Lies.

Some Scholars Have Said That Merely Letting Water Flow Is Not Sufficient For Achieving Purification. Rather, Rubbing The Limbs Is *Wājib* (Obligatory). This Opinion Is Particularly Attributed To The Mālikī School, Though There Is Internal Difference Of Opinion Within It.

The Dominant And Well-Known Position Of The Mālikīs Is That Rubbing Is Obligatory, As Stated In *Al-Mudawwanah*:

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/497):

"And This Is The View Of The Mālikī School In The Well-Known Position, And It Is The Statement Of Imām Mālik In *Al-Mudawwanah*."

A Second Opinion Is That Rubbing Is *Not* Obligatory, And This Is The View Of The *Jumhūr* (Majority Of Scholars). This View Was Also Held By Ibn 'Abd Al-Ḥakam, A Mālikī Scholar, Who Argued That The Linguistic Meaning Of "Ghush" (Ritual Washing) Is Valid Without Rubbing:

Bughyat Al-Muqtasid (2/497):

"There Is Another View Denying Its Obligation, As Held By The Majority. It Is The View Of Ibn 'Abd Al-Ḥakam, Based On The Fact That The Name 'Ghush' Is Valid Without It."

A Third View Within The Mālikī School Is That Rubbing Is Not *Independently* Obligatory But Is Required Only To Ensure Water Reaches All Parts Of The Body. If Complete Water Coverage Is Achieved In Another Manner (E.G., Prolonged Exposure To Water), Then It Suffices. This View Was Transmitted By Al-Lakhmī From Abū Al-Faraj, And Ibn Nāji Cited That Ibn Rushd Also Attributed It To Him:

Bughyat Al-Muqtasid (2/497):

"There Is A Third View Among The Mālikīs That It (Rubbing) Is Not Obligatory In Itself, But Only For Ensuring Water Reaches The Body. Thus, If One Remains In Water Long Enough For Complete Coverage, It Suffices. Al-Lakhmī Attributed This To Abū Al-Faraj, And Ibn Nāji Reported That Ibn Rushd Also Did So."

The Majority Of Scholars—Namely The Ḥanafīs, Shāfi'īs, And Ḥanbalīs—Maintain That The Obligation Is For The Water To Reach The Body, Not For Rubbing It:

Bughyat Al-Muqtasid (2/497):

In *Mawāhib Al-Jalīl* By Al-Ḥaṭṭāb (1/218), It States:

"There Is A Difference Of Opinion Regarding Whether Rubbing Is Obligatory Or Not, With Three Views: The Well-Known One Is That It Is Obligatory, Which Is Imām Mālik's Position In *Al-Mudawwanah*, Based On The Idea That It Is A Condition For A Valid 'Ghusl'. Ibn Yūnus Said: The Prophet (Peace Be Upon Him) Said To 'Ā'ishah (May Allah Be Pleased With Her), 'Rub Your Body With Your Hands,' And A Command Implies Obligation. The Reason Is That It Ensures Water Reaches The Body In A Manner That Fulfills The Definition Of Ghusl. Linguists Differentiate Between Washing (*Ghusl*) And Immersion (*Inghimās*)."

Bughyat Al-Muqtasid (2/498):

In The Ḥanafī Madhhab, See *Hāshiyat Ibn 'Ābidīn* (*Radd Al-Muḥtār*, 1/123):

"(Among The Sunnahs Is: Rubbing) I.E., Moving The Hand Or The Like Over The Washed Limbs."

Bughyat Al-Muqtasid (2/498):

In The Shāfi'ī School, See *Asnā Al-Maṭālib* By Zakarīyyā Al-Anṣārī (1/43):

"Among Them Is Passing The Hand Over The Limbs After Pouring Water Over Them, As A Precaution And To Exit The Disagreement Of Those Who Consider It Obligatory."

In The Ḥanbalī School, See *Sharḥ Muntahā Al-Irādāt* By Al-Buhūtī (1/85):

"And He Rubs His Body"—That Is, Out Of Recommendation (*Istihbāb*), Not Obligation—"So That The Water Reaches It."

Therefore, If Someone Stands In The Rain Or Immerses Themselves Fully In Water, Such That Every Limb Is Properly Soaked, It Is Valid According To The Majority Of Scholars—Because Their Condition Is The Water Reaching The Entire Body.

On This Issue, The Mālikīs Stand Apart From The Rest Of The Ummah. However, Al-Muzanī—One Of The Leading Students Of Imām Al-Shāfi'ī—Agreed With The Mālikīs On This Matter:

Bughyat Al-Muqtasid (2/498):

"This Is The Issue The Author Will Delve Into In Detail. You Will See That The Mālikīs Stood Alone In Requiring Rubbing, And Al-Imām Al-Muzanī From The Shāfi'ī School Agreed With Them. Al-Muzanī Is A Well-Known Figure In The Shāfi'ī Madhhab, Famous For His *Mukhtaṣar Al-Muzanī*."

Many Researchers Have Noted That This View Is *Not* Actually Found In Al-Muzanī's *Mukhtaṣar*, But Prominent Shāfi'ī Scholars Like Imām Al-Nawawī Have Attributed It To Him:

Bughyat Al-Muqtasid (2/498):

"I Did Not Find This In *Mukhtaṣar Al-Muzanī*, But Many Trustworthy Shāfi'ī Scholars Like Al-Nawawī Have Attributed It To Him. For Example, In *Al-Majmū'* (1/382), He Wrote: 'It Is Not Obligatory To Rub The Face Or Any Other Limb In Wudu Or Ghusl. It Is Recommended. This Is Our View And That Of The Majority. Mālik And Al-Muzanī Held That It Is Obligatory.'"

Bughyat Al-Muqtasid (2/498):

"*Mukhtaṣar Al-Muzanī* Is One Of The Most Important Works In The Shāfi'ī Madhhab. It Served As The Foundation For A Chain Of Scholarly Writings Starting With It And Culminating In The Works Of Imām Al-Nawawī, Passing Through Imām Al-Ḥaramayn, Al-Ghazālī, And Al-Rāfi'ī. Al-Māwardī

Said In *Al-Hāwī* (1/7): ‘The Companions Of Al-Shāfi‘ī Focused On The *Mukhtaṣar* Of Abū Ibrāhīm Ismā‘īl Ibn Yaḥyā Al-Muzanī Because The Extended Texts Had Become Difficult For Learners, And Lengthy For Scholars To Review. Therefore, They Made The *Mukhtaṣar* A Foundational Text Suitable For Beginners And Comprehensive For Advanced Scholars, Making It Worthy Of Focused Study.’”

Al-Hāwī Al-Kabīr, Authored By Imām Al-Māwardī, Is An Encyclopedic Work Of The Shāfi‘ī School. It Is A Detailed Commentary On Al-Muzanī’s *Mukhtaṣar*, In Which Al-Māwardī Elaborates On Foundational Principles, Branches, Scholarly Opinions, And Provides Evidence-Based Reasoning, Often Comparing Shāfi‘ī Views With Others And Identifying The Strongest Opinion With Its Proof.

The Majority Say That Rubbing Is Not Obligatory Because This Action Is Not Reported In The Sunnah. As Previously Mentioned, There Are Narrations From ‘Ā’Ishah, Maymūnah, And Others That Describe Ghisl Without Any Mention Of Rubbing.

Aisha (رضي الله عنها) Narrates:

The Prophet (ﷺ), When Performing Ghisl (Major Ritual Bath) Due To Janabah (State Of Major Impurity), Used To First Wash His Hands, Then Perform Wudu (Ablution) As He Would For Prayer, Then Dip His Fingers Into Water And Rub The Roots Of His Hair, Then Pour Water Over His Head Three Times Using His Hands, And Finally Pour Water Over His Entire Body.

(Reported By Bukhari 248 And Muslim 316)

عائشة رضي الله عنها قالت: أن النبي صلى الله عليه وسلم كان إذا اغتسل من الجنابة، بدأ فغسل يديه، ثم يتوضأ كما يتوضأ للصلاة، ثم يدخل أصابعه في الماء، فيخلل بها أصول شعره، ثم يصب على رأسه ثلاث غرف بيديه، ثم يفيض الماء على جلده كله

Similarly, The Hadith Of Maimunah (رضي الله عنها) Is Reported In Both Bukhari And Muslim:

Ibn Abbas (رضي الله عنه) Narrates That Maimunah (رضي الله عنها), The Mother Of The Believers, Said: “When The Messenger Of Allah (ﷺ) Made Wudu, He Did Not Wash His Feet At First, But He Washed His Private Parts And Whatever Impurity Had Affected Him, Then Poured Water Over Himself, And Afterward Moved Aside And Washed His Feet. This Is The Sequence Of Ghisl For Janabah.”

(Reported By Bukhari 249 And Muslim 317)

عن ابن عباس، عن ميمونة زوج النبي صلى الله عليه وسلم قالت: توضأ رسول الله صلى الله عليه وسلم وضوءه للصلاة غير رجليه، وغسل فرجه وما أصابه من الأذى، ثم أفاض عليه الماء، ثم نحى رجليه، فغسلهما، هذه غسلة من الجنابة

Similarly, The Hadith Of Umm Salamah (رضي الله عنها):

She Asked, “O Messenger Of Allah (ﷺ), I Am A Woman With Tightly Braided Hair; Should I Undo It For Ghisl After Janabah?”

The Prophet (ﷺ) Replied, “No, It Is Enough For You To Pour Water Over Your Head Three Times,

Then Pour Water Over The Rest Of Your Body, And You Will Be Purified.”

(Reported By Muslim 330/85)

حديث أم سلمة رضي الله عنها قالت: قلت: يا رسول الله، إني امرأة أشد ضفر رأسي فأنقضه لغسل الجنابة؟ قال: لا، إنما يكفيك أن تحثي على رأسك ثلاث حثيات، ثم تفيضين عليك الماء فتطهرين

Regarding The Malikiyyah (Maliki School) And Rubbing During Wudu:

The Malikis Consider Rubbing (Mal) Obligatory, Based On The Qur’anic Verse In The Wudu Ayah:
“...Then Wash Your Faces...” [Al-Ma’idah 5:6].

They Say That Merely Letting Water Touch The Skin Is Not Called “Washing” Unless The Water Is Spread By Hand Or Rubbed Over The Body.

(الفقه الإسلامي وأدلته للزحيلي (1/ 388):

إن الغسل المأمور به في آية الوضوء {فاغسلوا وجوهكم} [المائدة: 6/ 5]، لا يتحقق معناه إلا بالدلك، فإن مجرد إصابة الماء للعضو لا يعتبر غسلًا، إلا إذا صاحبه الإمرار بشيء آخر على الجسم، وهو معنى الدلك

Then They Further Mention:

A Hadith Reported By Abu Hurairah (رضي الله عنه), In Which The Messenger Of Allah (ﷺ) Said:
“Under Every Hair There Is Janabah, So Wash The Hair And Cleanse The Skin.”

(Reported By Abu Dawood)

حَدَّثَنَا نَصْرُ بْنُ عَلِيٍّ، نَا الْحَارِثُ بْنُ وَجِيهٍ، نَا مَالِكُ بْنُ دِينَارٍ، عَنْ مُحَمَّدِ بْنِ سَبْرِينَ، عَنْ أَبِي هُرَيْرَةَ، قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: إِنَّ تَحْتَ كُلِّ شَعْرَةٍ جَنَابَةٌ، فَاغْسِلُوا الشَّعْرَ وَأَنْفُوا الْبَشَرَ

However, Abu Dawood Commented: Al-Harith Ibn Wajih Is **Weak** And This Hadith Is **Munkar** (Rejected).

(Isnad Daif)

Another Narration In Ibn Abi Shaybah:

In It, Hasan Al-Basri Says: “Under Every Hair Is Janabah,” And Abu Hurairah Says: “As For Me, I Pour Water Over My Hair And Cleanse My Skin.”

حَدَّثَنَا أَبُو دَاوُدَ، عَنْ قُرَّةَ، عَنِ الْحَسَنِ قَالَ: تَحْتَ كُلِّ شَعْرَةٍ جَنَابَةٌ، قَالَ: [وَقَالَ] أَبُو هُرَيْرَةَ: أَمَا أَنَا فَأَبْلُ الشَّعْرَ، وَأُنْقِي الْبَشَرَ

(Sahih Li Zatihi)

This Hadith Is **Not Proven** From The Prophet (ﷺ) Himself.

Summary Of The Issue

The Ruling on Rubbing (دلك) the Body During Ghusl (Ritual Bath) and Wudu (Ablution)

Introduction

There is consensus among scholars that the prescribed limbs for wudu—namely, the face, arms, head, and feet—must be washed, and that the entire body must be washed in ghusl. However, a disagreement arises regarding whether it is sufficient to merely pour water over the body or whether rubbing (mal/dalk) each limb is necessary to complete purification.

Point of Disagreement

The key question is: **Is it enough for water to reach the limbs, or must each limb be rubbed to fulfill the obligation?**

1. Mālikī School

The **Mālikīs** are known for their unique stance in this matter.

1.1 Well-Known Position: Rubbing is Wājib

According to the dominant opinion within the Mālikī madhhab, rubbing is **wājib (obligatory)**. This is the view found in **al-Mudawwanah** and supported by classical Mālikī jurists.

"And this is the view of the Mālikī school in the well-known position, and it is the statement of Imām Mālik in al-Mudawwanah."

(Bughyat al-Muqtasid Sharḥ Bidāyat al-Mujtahid, 2/497)

1.2 Minority Opinion: Not Obligatory

A second view within the Mālikī school, attributed to **Ibn ‘Abd al-Ḥakam**, argues that rubbing is not obligatory, based on the linguistic sufficiency of water reaching the skin to be considered “washing.”

"The name 'ghusl' is valid without rubbing."

(Bughyat al-Muqtasid, 2/497)

1.3 Conditional View

A third opinion holds that rubbing is only required **if needed to ensure full water coverage**, otherwise prolonged water exposure suffices. This view is attributed to **Abū al-Faraj** via **al-Lakhmī**, and cited by **Ibn Nāji** as also attributed to **Ibn Rushd**.

2. View of the Jumhūr (Majority)

The majority of scholars—including **Ḥanafīs**, **Shāfi‘īs**, and **Ḥanbalīs**—hold that rubbing is **not obligatory**, but **recommended (mustahabb)**.

2.1 Ḥanafī Madhhab

"Among the sunnahs [of wudu] is rubbing (dalk), i.e., moving the hand over the washed limb."
(*Ḥāshiyat Ibn ‘Ābidīn, Radd al-Muḥtār, 1/123*)

2.2 Shāfi‘ī Madhhab

"Among the recommended acts is passing the hand over the limbs after pouring water, as a precaution and to exit the disagreement of those who consider it obligatory."
(*Asnā al-Maṭālib by Zakariyyā al-Anṣārī, 1/43*)

2.3 Ḥanbalī Madhhab

"He rubs his body... meaning out of recommendation (istihbāb), not obligation."
(*Sharḥ Muntahā al-Irādāt by al-Buhūtī, 1/85*)

3. Evidence from Hadith

3.1 Hadith of ‘Ā’ishah (رضي الله عنها)

Describes the ghusl of the Prophet ﷺ without mention of rubbing the limbs.

“He would wash his hands, perform wudu, insert his fingers into water to rub his scalp, then pour water over his head and body.”
(*Bukhārī 248, Muslim 316*)

3.2 Hadith of Maymūnah (رضي الله عنها)

No mention of rubbing the body during ghusl.

“He washed his private parts, poured water over himself, and then washed his feet.”
(*Bukhārī 249, Muslim 317*)

3.3 Hadith of Umm Salamah (رضي الله عنها)

“You need only pour three handfuls of water on your head, then pour water over the body.”
(*Muslim 330*)

4. Argument of the Mālikīs Based on Qur’ān

Mālikī scholars argue that the verse:

“فاغسلوا وجوهكم”

“...wash your faces...”

(Surah al-Mā'idah, 5:6)

is not fulfilled unless rubbing is performed. They claim that mere water flow is not technically called “washing” unless accompanied by hand movement or rubbing.

"The term 'ghusl' as commanded cannot be fulfilled except with rubbing."

(al-Fiqh al-Islāmī wa Adillatuhu by Wahbah al-Zuhaylī, 1/388)

5. Contested Hadith Evidence

5.1 Abu Hurairah's Hadith

“Under every hair is janābah, so wash the hair and cleanse the skin.”

(Abu Dāwūd — Munkar, weak due to al-Hārith ibn Wajīh)

5.2 Hasan al-Basrī and Abu Hurairah's Statement

“Under every hair is janabah.”

Abu Hurairah added: “I pour water over my hair and cleanse my skin.”

(Ibn Abī Shaybah — Ṣaḥīḥ li-dhātihi, mawqūf)

6. Cross-Madhab Position: Al-Muzanī

Though a Shāfi'ī, **al-Muzanī** is reported to have agreed with the Mālikīs that rubbing is obligatory. While not explicitly stated in his *Mukhtaṣar*, scholars such as **Imām al-Nawawī** cite him in support of this opinion.

“Mālik and al-Muzanī held that it is obligatory [to rub the limbs in ghusl/wudu].”

(al-Majmū', 1/382)

Conclusion

In Both Ghusl (Major Ritual Bath) And Wudu (Ablution), **It Is Obligatory** That Water Fully And Properly Reaches The Body Parts.

Rubbing (Mal) Is Considered **Recommended (Mustahab)**, Because It Increases The Likelihood That Water Fully Covers All Parts, But It Is **Not Obligatory** According To Most Scholars.

This Is The Established Opinion Of The Four Imams:

- Hanafi
- Maliki (According To One View)
- Shafi'i
- Hanbali

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 23 – The Ruling Of Wudu Before Ghusl Janabah (Major Ritual Bath After Intercourse)

There Is A Disagreement Among The Jurists (Fuqahā') On This Issue:

Is Performing **Wudū' (Ablution)** A Condition For **Ghusl Janābah** (Ritual Bath For Major Impurity)?
In Other Words, Is It **Obligatory** To Perform Wudū' Before Taking Ghusl For Janābah?

The **Majority Of Scholars And Jurists** Are Of The View That Wudū' Is **Not A Condition** For Ghusl Janābah. However, A Few Scholars Have Differed.

There Is No Doubt That The **View Of The Majority** (Jamhoor) Is Correct.

This Includes:

- **Abū Ḥanīfah** And The Jurists Of The **Ḥanafī School**,
- **Mālik Ibn Anas** And The **Mālikīs**,
- **Muḥammad Ibn Idrīs Al-Shāfi'ī** And The **Shāfi'īs**,
- **Aḥmad Ibn Ḥanbal** And The **Ḥanbalīs**.

This Issue Is One Of Those Matters In Which There Was Once A Disagreement In The Early Period Of Islam, But Later **The Ummah Reached Consensus (Ijmā')** On The Correct View.

Ḥanafī Madhhab

- **Mukhtaṣar Al-Qudūrī (P.12):**
"The Sunnah Of Ghusl Is That The One Bathing Starts By Washing His Hands And Private Parts, And Removes Any Impurity If Present, Then Performs Wudū' As He Does For Prayer."
- **Al-Aṣl By Muḥammad Ibn Al-Ḥasan (1/19):**
"He Washes His Private Parts Until Clean, Then Performs Wudū' For Prayer (Except His Feet), Then Pours Water Over His Head, Beard, And Body."
- **Mukhtaṣar Al-Qudūrī (P.12):**
"He Should Begin By Washing His Hands And Private Parts, Remove Impurities If Present, Then Do Wudū' Except For His Feet, Then Pour Water Over His Head And Entire Body Three Times, And Then Move Away And Wash His Feet."
- **Tuḥfat Al-Fuqahā' (1/29):**
"The Sunnah Is What Muḥammad (Al-Shaybānī) Mentioned In Kitāb Al-Ṣalāh: Start By Washing The Hands To The Wrists Three Times, Then Pour Water From Right To Left Hand And Wash Private Parts Until Clean, Then Perform Wudū' Three Times (Except Feet), Then Pour Water Over Head And Body Three Times, Then Move And Wash Feet."
- **Badā'ī' Al-Ṣanā'ī' (1/34):**
"Among Its Sunnahs: Begin By Pouring Water From Left To Right Hand, Wash Hands To The Wrists Three Times, Wash Private Parts Until Clean, Then Perform Wudū' For Prayer (Except Feet)."
- **Bidāyat Al-Mubtadī (P.4):**
"Its Sunnahs: Begin By Washing Hands And Private Parts, Remove Any Impurity On The Body, Then Perform Wudū' (Except Feet)."
- **Al-Bināyah Sharḥ Al-Hidāyah (1/319):**
"Then He Performs Wudū' For Prayer Except His Feet."

Mālikī Madhhab

- **Al-Risālah Of Ibn Abī Zayd Al-Qayrawānī (P.104):**
“As For Purification, Whether From Janābah, Menstruation, Or Postnatal Bleeding—It Is The Same In Method. If One Suffices With Ghusl Without Wudū’, It Is Valid. But It Is Better To Start By Washing Off Any Filth And Then Perform Wudū’ For Prayer.”
- **Bughyat Al-Muqtaṣid Sharḥ Bidāyat Al-Mujtahid (2/499):**
“In The Mālikī School, Refer To Al-Sharḥ Al-Kabīr By Al-Dardīr (1/135): ‘It Is Recommended To Begin With All The Limbs Of Wudū’.”
- **Al-Mu‘ūnah ‘Alā Madhhab ‘Ālim Al-Madīnah (1/132):**
“It Is Obligatory For The Junub To Wash The Whole Visible Body. It Is Recommended To Start With Washing The Hands, Remove Any Filth, And Then Perform Wudū’ For Prayer.”
- **Al-Jāmi‘ Li-Masā’il Al-Mudawwanah (1/224):**
“When Doing Ghusl For Janābah, Begin By Washing Hands, Then Perform Wudū’, Then Immerse Hands To Comb Through Hair Roots, Then Pour Water On The Head (Three Scoops), Then Pour Over The Body.”
- **Al-Bayān Wa Al-Taḥṣīl (1/66):**
“If One Of You Has Intercourse And Wishes To Sleep Before Ghusl, Let Him Not Sleep Until He Performs Wudū’. Wudū’ For The Junub Before Sleep Is Among The Recommended Sunnahs.”
- **Sharḥ Al-Talqīn (1/209):**
“The Second Opinion Is That It Is Sunnah. The Preferred Way Is To Start By Washing Hands, Then Remove Any Filth, Then Perform Wudū’ For Prayer.”

Shāfi‘ī Madhhab

- **Mukhtaṣar Al-Muzanī (1/36, Ed. Al-Dāghistānī):**
“Al-Shāfi‘ī Said: The Junub Starts By Washing Hands Three Times Before Putting Them Into Water, Then Washes Away Any Impurity, Then Performs Wudū’ For Prayer, Then Inserts His Fingers Into Water And Massages Hair Roots, Then Pours Three Scoops Of Water On The Head, Then Pours Water On The Entire Body, Ensuring Coverage.”
- **Al-Lubāb Fī Al-Fiqh Al-Shāfi‘ī (P.67):**
“Among The Sunnahs: Saying Bismillah, Washing Hands Three Times Before Inserting Into Vessel, Washing Off Impurities, Then Performing Full Wudū’.”
- **Other References:**
 - Al-Tanbīh (P.19),
 - Bidāyat Al-Hidāyah (Pp.64–65),
 - Fath Al-‘Azīz (2/170),
 - Kifāyat Al-Akhyār (1/25–26),
 - Mughni Al-Muḥtāj (1/73–74),
 - Sharḥ Al-Maḥallī ‘Ala Al-Minhāj (1/66–67).

Ḥanbalī Madhhab

- **Masā’il Al-Imām Aḥmad – From His Son Ṣāliḥ (1/142):**
“I Asked Him About A Junub Person Who Immerses In Water Without Doing Wudū’. He Said: It

Suffices If Water Flows Over His Body. Allah Said: {If You Are In A State Of Janābah, Then Purify Yourselves} And He Did Not Specify Wudū'.”

- **Al-Kāfi Fī Fiqh Al-Imām Aḥmad (1/113):**
“It Is Recommended For The Junub Who Wants To Sleep To Perform Wudū' Like That For Prayer.”
- **Al-Sharḥ Al-Kabīr (2/152, Ed. Al-Turkī):**
“It Is Recommended For The Junub, If He Wants To Sleep, Eat, Or Have Intercourse Again, To Wash His Private Parts And Do Wudū'.”
- **Al-Mubdi' Sharḥ Al-Muqni' (1/175):**
“As For Recommending Wudū' Before Eating And Drinking, It Is Based On 'Ā'ishah's Narration: ‘The Messenger Of Allah ﷺ Allowed The Junub To Perform Wudū' If He Wanted To Eat Or Drink.’ Reported By Aḥmad With A Sound Chain.”
- **Bughyat Al-Muqtaṣid (2/500), Quoting From Maṭālib Uli Al-Nuhā (1/179):**
“Then He Performs A Complete Wudū', As The Prophet ﷺ Said: ‘Then Perform Wudū' Like That For Prayer,’ Then Rub The Roots Of Hair Three Times With Water.”

Those Who Say It Is Obligatory Include Dāwūd Al-Zāhirī And Abū Thawr (Who Is From The Shāfi'ī School):

In *Al-Majmū'* By Imām Al-Nawawī (2/197), It Says:

“Wudu Was Not Considered Obligatory By Anyone. The Disagreement Only Arose Later With Abū Thawr And Dāwūd.”

Also See *Fath Al-Bārī* By Ibn Ḥajar (1/360). I Did Not Find Anything In *Al-Muḥallā* That Clearly States Dāwūd's Opinion.

Ibn Rajab Al-Ḥanbalī Says In *Fath Al-Bārī* (1/245):

“As For Those Who Claim That Abū Thawr And Dāwūd Said That Major Impurity (Janābah) Is Not Removed Without Performing Wudu Along With Ghusl — It Appears They Are Mistaken About Them. Ibn Jarīr, Ibn 'Abd Al-Barr, And Others Have Reported Consensus Contrary To That Opinion.”

Cause Of The Disagreement: The Ḥadīth Of 'Ā'ishah (رضي الله عنها)

'Ā'ishah (رضي الله عنها) Said:

“When The Prophet ﷺ Would Perform Ghusl From Janābah, He Would Begin By Washing His Hands, Then Perform Wudu As He Would For Prayer, Then Insert His Fingers Into Water And Run Them Through The Roots Of His Hair, Then Pour Water Over His Head Three Times, And Then Wash His Entire Body.”

Narrated By Al-Bukhārī (248) And Muslim (316):

“From 'Ā'ishah, The Wife Of The Prophet ﷺ: The Prophet ﷺ, When He Would Perform Ghusl From Janābah, Would Begin By Washing His Hands, Then Perform Wudu As For Prayer, Then Run His Fingers Through The Roots Of His Hair, Then Pour Water Over His Head Three Times, Then Wash The Rest Of His Body.”

Because This ḥadīth Outwardly States That He Performed Wudu, The Zāhirīs Said It Is *Wājib* (Obligatory). But The Majority (Jumhūr) Respond That In This Chapter, There Is Also The ḥadīth Of Maymūnah (رضي الله عنها), Which Is Unanimously Authentic. Both Al-Bukhārī And Muslim Narrate It:

The ḥadīth Of Maymūnah (رضي الله عنها):

From Ibn ‘Abbās (رضي الله عنه), From Maymūnah (Umm Al-Mu’Minīn, رضي الله عنها), She Said:

“The Messenger Of Allah ﷺ Performed Wudu Like The Wudu For Prayer *Except For His Feet*. He Washed His Private Parts And Anything On Them From Impurity. Then He Poured Water Over His Body, Then Moved To Another Place And Washed His Feet. This Is The Ghusl For Janābah.”

Narrated By Al-Bukhārī (249) And Muslim (317):

“Maymūnah, The Wife Of The Prophet ﷺ, Said: The Messenger Of Allah ﷺ Performed Wudu As For Prayer, Except For His Feet. He Washed His Private Area And Whatever Was Affected By Impurity, Then Poured Water Over Himself, Then Moved And Washed His Feet. This Is The Ghusl From Janābah.”

In This Narration, *There Is No Mention Of A Complete Wudu*. Had Wudu Been Obligatory, It Would Have Been Necessary For It To Be Clearly Mentioned Here.

Similarly, Jubeir Ibn Muṭ‘Im (رضي الله عنه) Said:

“We Were Discussing The Ghusl Of Janābah With The Messenger Of Allah ﷺ, Or In His Presence. He Said: ‘As For Me, It Is Sufficient For Me To Pour Water Over My Head Three Times, Then Pour Water Over The Rest Of My Body.’”

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/501):

“Likewise Is The ḥadīth Of Jubayr Ibn Muṭ‘Im: He Said, ‘We Were Discussing Ghusl From Janābah With The Messenger Of Allah ﷺ, Or In His Presence, And He Said: “As For Me, It Suffices To Pour Water On My Head Three Times, Then Wash The Rest Of My Body.””

Narrated By Aḥmad (16749), And Al-Arnā’ūṭ Said:

“Its Isnād Is ṣaḥīḥ According To The Conditions Of Al-Bukhārī And Muslim.”

Conclusion:

There Is *Agreement And Consensus* Among The Fuqahā’ That **Wudu During Ghusl For Janābah Is Recommended (Mustaḥabb), Not Obligatory (Wājib)**.

Is Washing The Feet At The End Of Ghusl Recommended Or At The Beginning?

Hanafi Madhhab

According To The Hanafi Madhhab, **The Feet Should Be Washed At The End Of Ghusl.**

Al-Musbook ‘Ala Minhat Al-Suluk Fi Sharh Tuhfat Al-Muluk (1/174) Says:

"One Removes Filth From The Body, Then Performs Wudu (Ablution) Like The Wudu For Prayer — Except The Feet — If He Is Standing In A Place Where The Water Collects. Then He Washes The Head And Body Three Times. After That, He Steps Out From The Water-Collecting Area And Washes His Feet."

This Is Also The View Of The **Shafi‘Is** And **Hanbalis**. The **Malikis** Consider Delaying The Washing Of The Feet A *Virtuous Act* (Fadilah) In Ghusl.

Referenced In:

- *Al-Hidayah* 1/17
- *Tuhfat Al-Fuqaha* 1/29
- *Sharh Fath Al-Qadir* 1/58
- *Al-‘Inayah* 1/58
- *Hashiyah Radd Al-Muhtar* 1/157
- *Al-Qawanin Al-Fiqhiyyah*, P. 22
- *Al-Sharh Al-Saghir* 1/65
- *Sharh Al-Mahalli ‘Ala Al-Minhaj* 1/66
- *Al-Wajiz* 1/18
- *Al-Muqni‘* 1/66
- *Al-Mustaw‘Ab* 1/239

If Someone Is Bathing In A Place Where Water Collects, **They Should Perform Wudu Up To Wiping The Head (Masah), And Wash The Feet At The End.**

Fiqh Al-‘Ibadat ‘Ala Al-Madhhab Al-Hanafi (P. 52) States:

"One Should Make Wudu Like For Prayer, Washing The Limbs Three Times, Wiping The Head, And Delaying Washing The Feet If Standing In A Place Where Water Collects — Because They May Need To Be Washed Again."

If Someone Is In A Place **Where Water Does Not Collect, Then The Feet Are Washed With The Rest Of The Limbs** During Wudu.

Al-Lubab Fi Sharh Al-Kitab (1/15) States:

"He Washes His Ears And Neck (But Not The Feet); He Delays Washing Them Until The End Of The Ghusl — If He Is In A Place Where Water Collects. But If Standing On A Board Or Rock Or Elevated Area, Then He Should Wash The Feet During Wudu. According To *Al-Tashih*, The More Correct View Is That If One Is Not In A Place Where Water Collects, The Feet Should Be Washed During Wudu."

There Is **No Difference Of Opinion Among Scholars** That It Is Recommended (Mustahabb) To Perform Wudu Before Ghusl.

The Disagreement Is **Only About When To Wash The Feet** — Whether With Wudu Or At The End Of Ghusl.

Some Scholars, Like In *Al-Kanz*, *Al-Durr Al-Mukhtar*, Said The Feet Should Always Be Washed With Wudu. Others Said It Should Be **Delayed In All Cases**.

Yet Others **Combined Both Views**:

- If Bathing In A Place Where Water Collects, Delay Washing The Feet.
- If Water Doesn't Collect, Wash The Feet With Wudu.

This Is Also The **Apparent Opinion In Al-Hidayah, Al-Mabsut, And Al-Kafi**.

Al-Lubab (1/15):

"Know That There Is No Disagreement Among Scholars That It Is Permissible For One Doing Ghusl To Wash His Feet During The Wudu That Is Recommended Before Ghusl — Whether Or Not He Is Standing In A Place Where Water Collects.

The Difference Is Only About What Is *Preferred*.

Some Scholars Preferred Washing The Feet During Wudu In All Cases — Like Imam Shafi'i And Others, And This Is Also The Apparent Wording In *Al-Kanz* And *Al-Durr*.

Others Said The Preferred Action Is To Always Delay It.

Others Made A Distinction — Like The Author — Saying:

- If In A Place Where Water Collects, Delay Washing The Feet.
- Otherwise, Wash Them With Wudu.

This Is Affirmed In *Al-Hidayah*, *Al-Mabsut*, And *Al-Kafi*, And It Best Reconciles The Differing Narrations."

Maliki Madhhab

Some Maliki Scholars Say The Feet Should Be Washed **With Wudu**, Citing The Hadith Of 'A'ishah (RA).

Others Say The Feet Should Be Washed **At The End**, Based On The Hadith Of Maymunah (RA).

'Awn Al-Matin 'Ala Nazm Risalat Al-Qarawiyyin (P. 118) Says:

"There Is Disagreement In Some Aspects, Like Washing Each Part Three Times. The Apparent Position Of Many, Including The Shaykh, Follows The Authentic Hadiths. Some Scholars Say There Is No Virtue In Doing So.

Regarding Wiping The Head, And The Same With The Ears — As Sidi Zarrouq Said — It's Apparent. So Whoever Prefers To Wash The Feet Early, May Do So."

Malikis Also Consider **The Location Of Ghusl**.

The Well-Known Opinion In The Maliki Madhhab Is **To Wash The Feet Along With The Rest Of The Wudu**.

'Awn Al-Matin (P. 118):

"Whoever Prefers Delaying The Feet Based On The Hadith Of Maymunah (RA), May Do So. The Difference Is Reconciled Based On The Bathing Place.

Ibn Ziyad Reported From Imam Malik That The Practice Was On The Hadith Of ‘A’ishah — And This Is The **Famous Opinion** In The Madhhab."

As-Hal Al-Madarik (1/111) Quotes:

"In One Narration From The *Mudawwanah*, ‘A’ishah (RA) Said: 'When The Prophet ﷺ Wanted To Sleep While In A State Of Janabah, He Would Make Wudu As For Prayer Before Sleeping.'"

Imam **Muhammad Al-‘Iyyish Al-Maliki** States That The **Strongest View** In The Madhhab Is **Delaying The Washing Of The Feet**, Based On The Explicit Hadith Of Maymunah.

Manh Al-Jalil (1/128):

"The Stronger View Is That It Is Recommended To Delay Washing The Feet, Based On The Clear Report From Maymunah (RA). Even If Some Narrations Are General, The General Is Interpreted In Light Of The Specific."

Some Maliki Scholars Say **Both Ways Are Allowed** — If One Wants To Complete Wudu With The Feet First, He May, And If He Wants To Delay Them, He May.

The Supporting Evidence Is The Well-Known Hadith In The *Muwatta’* From ‘A’ishah.

Hashiyat Al-‘Adawi ‘Ala Kifayat Al-Talib Al-Rabbani (1/213):

"He Has A Choice: If He Wishes, He Washes His Feet, And If He Wishes, He Delays Them Until The End Of The Ghusl.

The Proof Of The Preferred Opinion Is The *Muwatta’*, Which Reports That The Prophet ﷺ 'Used To Make Wudu For Prayer Before Doing Ghusl.'"

A Unique Issue Within The Maliki Madhhab

Another Issue Arises In The Maliki Madhhab:

If Someone Delays Washing The Feet, What Intention (Niyyah) Should They Have? Is It The Intention Of Wudu Or Ghusl?

This Is Due To The Maliki Position That **Interruption (Tafriq)** In Wudu Is Not Allowed — As Discussed In Detail Earlier.

Imam **Shihab Al-Din Al-Nafrawi Al-Azhari Al-Maliki (D. 1126 AH)** Says:

One Should Intend **Both** Wudu And Ghusl When Washing The Feet Later.

Al-Qabisi Says:

There's **No Need To Intend Wudu**, Since One Is Not Completing Wudu — Rather, It Is Part Of The Ghusl.

Al-Fawakih Al-Dawani (1/148):

"(Note): Scholars Differed When One Delays Washing The Feet — Should The Intention Be Wudu Or Ghusl? The Author Said: One Intends Both.
Al-Qabisi Said: There's No Need For The Intention Of Wudu.
But Everyone Agreed That The Intention Is **Not To Complete The Wudu.**"

Imam **Abu ‘Abdullah Shams Al-Din Al-Tata’i Al-Maliki (D. 942 AH)** States:

The Intention Should Be To Remove Impurity (Najāsah) And To Complete Wudu **Without Delay**, Regardless Of Whether The Place Is Clean Or Dirty. This Is The Well-Known Opinion.

Jawahir Al-Durar (1/361):

"He Delays Washing His Feet Until The End Of Ghusl, Whether The Place Is Clean Or Not — This Is The Well-Known Opinion."

Ibn Juzayy Al-Kalbi Al-Gharnati (D. 741 AH) Also Says:

It Is **Permissible** To Delay The Feet And Wash Them After Ghusl.

Al-Qawanin Al-Fiqhiyyah (P. 23):

"Then He Performs Wudu For Prayer, And It Is Permissible To Delay Washing The Feet Until The End Of Ghusl."

Shafi‘I Madhhab

In The Shafi‘I Madhhab, It Is Often Stated That The *Entire* Wudu Should Be Performed In One Go Before The Ghusl (Ritual Bath):

Fiqh Al-‘Ibadāt ‘Ala Al-Madhhab Al-Shāfi‘ī (1/142, Shamela Numbering):

“Complete Wudu Before Ghusl, As Is Established From The Description Of The Prophet’s ﷺ Ghusl.”

Other Jurists Have Also Said That Complete Wudu Means There Should Be No Delay In Washing The Feet:

‘Iānātu Al-Ṭālibīn ‘Ala Ḥall Alfāẓ Faḥ Al-Mu‘īn (1/94):

“His Statement: ‘And It Is Better Not To Delay Washing The Feet’ Does Not Conform With The Phrase: ‘Then Complete Wudu.’

For Its Completeness Is Only Achieved By Not Delaying The Washing Of The Feet.”

However, Within The Shafi‘I School, There Is Also A View That Washing The Feet At The End Is Preferred:

‘Iānātu Al-Ṭālibīn (1/94):

“It Is More Appropriate, In Comparison, To State As Is Found In Al-Minhāj:

In One Opinion, The Washing Of The Feet Is Delayed.

His Statement: ‘If Delaying Them (I.E. The Feet) Is Established,’ Means Delaying Their Washing.”

Just As In The Mālikī School There Is Discussion Regarding Intention (Niyyah), Similar Discussions Exist Within The Shafi‘I Madhhab As Well:

‘Iānātu Al-Ṭālibīn (1/94):

“His Statement: ‘Even If He Does Wudu During Or After The Ghusl’ —

In Al-Bujayramī, It States: If One Performs Ghusl Then Wants To Do Wudu Afterward, Should He Intend (In Wudu) The Obligation, Since He Did Not Perform Wudu Before It? Or The Sunnah, Since The Wudu Was Included Within The Ghusl?

The Answer: If One Wants To Exit The Scholarly Disagreement, He Should Intend The Obligation. Otherwise, He May Intend The Sunnah, And Say: ‘I Intend The Sunnah Wudu For Ghusl.’”

Hanbali Madhhab

In The Hanbali School, It Is Also Mentioned That Washing The Feet At The End Is Permissible Depending On The Place — It's Not An Absolute Sunnah:

Wabl Al-Ghamāmah Fī Sharḥ ‘Umdat Al-Fiqh Li Ibn Qudāmah (1/128):

“Meaning, Washing Them In A Different Place Than Where One Did The Rest Of The Ghusl — This Is Not An Absolute Sunnah, Rather It Is Legislated Only When Needed.

If, For Example, The Bathing Area Is Clean, Then There Is No Harm In Washing The Feet There.”

According To Imam Ibn Qudāmah As Well, Washing The Feet At The End — As In The Narration Of Maymūnah — Is Preferred, As He Used Only That Narration As Evidence:

‘Umdat Al-Fiqh (P. 17):

“Maymūnah Narrated: I Screened The Prophet ﷺ While He Performed Ghusl From Janābah.

He Began By Washing His Hands, Then Poured Water With His Right Hand Onto His Left And Washed His Private Parts And Whatever Was Affected.

Then He Struck His Hand On The Wall And The Ground, Then Performed Wudu Like For Prayer, Then Poured Water Over His Body, Then Moved Aside And Washed His Feet.”

Al-Mumtī ‘ Fī Sharḥ Al-Muqni ‘ (Ed. Ibn Dahīsh, 3rd Print) (1/194):

“He Reaches The Roots Of The Hair And Pours Water Over The Entire Body Three Times, Starting With The Right Side And Rubbing The Body With His Hands, Then Moves From His Place And Washes His Feet.”

In General, The Hanbalis Say That Washing The Feet At The End Is Preferred:

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/502):

“The Hanbalis Consider It Better To Do The Entire Wudu Except The Feet, Which Are Delayed To Be Washed Afterward.”

Sharḥ Muntahā Al-Irādāt By Al-Buhūtī (1/85):

“And He Repeats Washing His Feet In Another Place.”

Also See *Maṭālib Ūlī Al-Nuhā By Al-Raḥībānī (1/180).*

Reason For Disagreement In This Issue

The Reason For Disagreement In This Matter Is A Hadith Where The Prophet ﷺ Is Reported To Have Washed His Feet At The End — And Both Narrations (Washing Feet With Wudu, Or At The End) Are Authentic. The Scholars Differed In Reconciling Them, Resulting In Three Main Views:

1. Those Who Say One Must Do *Complete Wudu*, Including Washing The Feet, Before The Ghusl Of Janābah.
2. Those Who Say One Should Do Complete Wudu Before The Ghusl — *Except* The Feet, Which Should Be Washed Afterward.
3. Those Who Say: If The Place Of Ghusl Is Such That Water Does Not Collect (Like A Clean Floor Or With Proper Drainage), Then It Is Better To Wash The Feet First. Otherwise, They Should Be Washed After Ghusl.

We Have Already Explained This In Detail Above.

As For The Ruling On Niyyah (Intention)

The Ruling Of Niyyah For Ghusl Is The Same As That For Wudu. That Is: According To The Mālikī, Shāfi‘ī, And Ḥanbalī Schools — *The Majority (Jumhūr)* — Niyyah Is A *Requirement (Shart)* In Ghusl. The Ḥanafī School, However, Does Not Consider It A Condition.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/519):

“The Consensus Of The Vast Majority Of Scholars — From The Companions, Tābi‘īn, And Most Imams — Is That Intention (Niyyah) Is Required.

The Disagreement Is Between The Majority And The Hanafis And Al-Thawrī, Who Do Not Require It.”

In The Mālikī Madhhab:

Al-Sharḥ Al-Kabīr By Al-Dardīr (1/94):

“The Seventh Obligation: Intention — That Is, The Resolve To Perform The Act — And Its Place Is In The Heart.”

In The Shāfi‘ī Madhhab:

Al-Ghurar Al-Bahiyyah By Zakariyya Al-Anṣārī (1/154):

“The Author Highlighted The Obligation Of Niyyah In Ghusl, Mentioning Its Place At The Beginning, And Clarified Its Form.”

In The Ḥanbalī Madhhab:

Sharḥ Muntahā Al-Irādāt By Al-Buhūtī (1/51):

“Intention Is Required For Both Obligatory And Recommended Wudu And Ghusl, Due To The Hadith: ‘Actions Are Only By Intentions.’”

In The Ḥanafī Madhhab:

Al-Durr Al-Mukhtār And *Radd Al-Muḥtār* (1/156):

“Its Sunnahs Are Like The Sunnahs Of Wudu: Such As Starting With Intention, Saying Bismillah, Using The Siwāk, Rubbing, Sequence, Etc.”

Also:

Al-Majmū‘ By Al-Nawawī (1/313):

“Abū Ḥanīfah And Sufyān Al-Thawrī Said: Wudu And Ghusl Are Valid Even Without Intention.”

Summary Of The Issue

The Ruling of Wudu Before Ghusl Janabah (Major Ritual Bath After Intercourse)

Is it obligatory (wājib) to perform wudu before ghusl janābah, or is it only recommended (mustaḥabb)?

Summary of Views:

- **Majority Opinion (Jumhūr):**

Wudu is **not obligatory** before ghusl janabah.

This includes:

- Imām Abū Ḥanīfah (Ḥanafī school)
- Imām Mālik (Mālikī school)
- Imām Al-Shāfi‘ī (Shāfi‘ī school)
- Imām Aḥmad ibn Ḥanbal (Ḥanbalī school)

- **Minority View:**

A few early scholars (e.g., **Dāwūd al-Zāhirī** and **Abū Thawr**) held it is **obligatory**, but this was later rejected by consensus (ijmā‘).

Ḥanafī Madhhab:

- **Ruling:** Wudu is sunnah before ghusl; not a condition.
- **Texts:**
 - *Al-Qudūrī*: Begins with washing hands/private parts → then wudu (excluding feet) → then body.
 - *Al-Aṣl* by Muḥammad ibn al-Ḥasan: Same process; wudu before ghusl.
 - *Badā‘i‘ al-Ṣanā‘i‘*, *Tuhfat al-Fuqahā‘*, *Bidāyat al-Mubtadī*: Similar sequence.

Mālikī Madhhab:

- **Ruling:** Ghusl is valid without wudu; however, it is recommended (mandūb) to perform it.
- **Texts:**
 - *Al-Risālah* of Ibn Abī Zayd: Wudu before ghusl is recommended.
 - *Sharḥ al-Kabīr* (al-Dardīr): Advises starting with limbs of wudu.
 - *Al-Jāmi‘ li-Masā’il al-Mudawwanah*: Full process of ghusl with wudu.
 - *Al-Bayān wa al-Taḥṣīl*: Recommends wudu before sleeping while in janabah.

Shāfi‘ī Madhhab:

- **Ruling:** Wudu is **sunnah**, not a condition.

- **Texts:**
 - *Mukhtaṣar al-Muzanī, Al-Lubāb, Bidāyat al-Hidāyah*: All affirm wudu is included in proper ghusl.
 - *Mughni al-Muḥtāj, Kifāyat al-Akhyār, Faṭḥ al-‘Azīz*: Discuss proper sequencing.

Ḥanbalī Madhhab:

- **Ruling:** Wudu is **recommended** (mustaḥabb), not required.
- **Texts:**
 - *Masā’il Imām Aḥmad*: Wudu not essential—purity achieved by water reaching entire body.
 - *Al-Kāfī, Sharḥ al-Kabīr, Al-Mubdī‘, Maṭālib Ūlī al-Nuhā*: Recommend wudu before sleeping, eating, or repeating intercourse.

View of Dāwūd al-Ẓāhirī and Abū Thawr:

- **Claimed Position:** Ghusl without wudu is invalid.
- **Response:**
 - Rejected by ijmā‘.
 - Ibn Rajab, Ibn ‘Abd al-Barr and others clarify this was a mistaken attribution.

Evidence for the Majority View:

1. Ḥadīth of ‘Ā’ishah (Bukhārī 248, Muslim 316):

“He began by washing his hands, then performed wudu like that of prayer, then rubbed water into the roots of his hair...”

- This is **descriptive** of the Prophet’s practice, **not a command**.

2. Ḥadīth of Maymūnah (Bukhārī 249, Muslim 317):

“He performed wudu like for prayer **except for his feet**, poured water over himself, then moved and washed his feet.”

- Indicates **variation**, supporting that wudu is not a condition.

3. Ḥadīth of Jubeir ibn Muṭ‘im (Aḥmad 16749):

“It suffices to pour water over my head three times, then the rest of my body.”

- Shows that **wudu was not necessary**.

Consensus (Ijmā‘):

Later scholars agreed unanimously that:

Wudu before ghusl is mustaḥabb (recommended), not wājib (obligatory).

Side Issue: Washing the Feet – Beginning or End?

Ḥanafī Position:

- Delay washing feet **if water collects under the person**.
- Wash with wudu **if water does not collect**.
- **Sources:** *Al-Musbook*, *Al-Hidāyah*, *Radd al-Muḥtār*, *Lubāb*, etc.

Mālikī Position:

- Some recommend **washing with wudu** (based on ‘Ā’ishah's ḥadīth).
- Others prefer **delaying** (based on Maymūnah's ḥadīth).
- Both views are accepted.
- **Issue of Niyyah:** If feet are washed later, one may intend ghusl or both.

Shāfi‘ī Position:

- Prefer **washing all limbs during wudu**, including feet.
- Some permit delaying feet washing, especially if there's a clean space.
- Niyyah: One may **intend sunnah** or **obligation** depending on context.

Ḥanbalī Position:

- Delaying feet is **recommended if needed** (e.g., unclean ground).
- Otherwise, complete wudu early.
- **Sources:** *Umdat al-Fiqh*, *Al-Mumtī*, *Bughyat al-Muqtasid*, *Sharḥ Muntahā al-Irādāt*.

Ruling on Intention (Niyyah) in Ghusl

Majority View (Mālikī, Shāfi‘ī, Ḥanbalī):

- Niyyah is **a condition (sharṭ)** of valid ghusl.
- **Dalīl:** ḥadīth – “*Actions are judged by intentions...*”

Ḥanafī View:

- Niyyah is **not a condition**.
- Ghusl is valid **without intention**, though niyyah is sunnah.

Conclusion

What Appears Most Correct Is To Reconcile Both Hadiths, As Most Jurists Have Done. They State:

If The One Performing Ghusl Is In A Place Where Water Collects (Like Dirty Ground Or Pooled Water), Then He Should Perform The Full Wudu *Before* Ghusl — *Except* For The Feet, Which Should Be Washed Afterward. Since *Tafriq* (Separating The Limbs During Wudu) Is Allowed, And This Hadith Also Serves As A Proof For It, There's No Harm In Delaying The Feet Washing — And This Appears To Be The More Correct View. **Wallāhu A‘Lam.**

Niyyah Is Obligatory In Ghusl.

The Intention Should Be To *Remove The State Of Impurity (ḥadath)*. If One Makes The Intention Of *Ghusl Janābah*, That Is Sufficient, And It Includes Wudu.

However, It Is Better To Combine The Intention Of Both Wudu And Ghusl.

One May Also Intend To Make Permissible Whatever Acts Were Impermissible Without Wudu & Ghusl — And Such An Intention Is Valid Too.

We Have Already Discussed The Issue Of Niyyah In Detail Earlier.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 24 – Ruling On Rinsing The Mouth (Madhmadah) And Sniffing Water Into The Nose (Istinshāq) During Ghusl

The Fundamental Disagreement In This Issue Is Whether Rinsing The Mouth And Nose Is *Obligatory (Wājib)* Or *Recommended (Sunnah/Mustahabb)* In Major Ritual Baths (Ghusl), Such As:

- Ghusl After Janābah (Sexual Impurity),
- Ghusl After ḥayḍ (Menstruation),
- Ghusl After Nifās (Postnatal Bleeding),
- Or Any Other Obligatory Ghusl.

The Positions:

- **Imām Mālik And Imām Al-Shāfi‘ī** Say: It Is *Sunnah And Mustahabb* (Recommended).
- **Imām Abū Ḥanīfah, Sufyān Al-Thawrī, And Imām Aḥmad Ibn Ḥanbal** Say: It Is *Wājib* (Obligatory).

Ḥanafī Madhhab

According To The Ḥanafīs:

Rinsing The Mouth And Nose *Is Obligatory In Ghusl But Sunnah In Wuḍū’*.

"Mukhtaṣar Al-Qudūrī" (P. 12):

"The Obligations Of Ghusl Are: Rinsing The Mouth (Maḍmaḍah), Rinsing The Nose (Istinshāq), And Washing The Entire Body."

"Al-Masbūk ‘Alā Minḥat Al-Sulūk Fī Sharḥ Tuḥfat Al-Mulūk" (1/169):

"After Discussing The Obligations And Sunnahs Of Wuḍū’, The Author Mentions Five Obligations Of Ghusl:

1. Rinsing The Mouth
2. Rinsing The Nose
3. Washing The Entire Body
4. Ensuring Water Reaches The Inside Of The Navel (For Both Men And Women)
5. Ensuring Water Reaches The Roots Of The Hair Of Men."

According To The Mālikīs: There Are Five Obligations: Intention, Continuity, Covering The Whole Body, Scrubbing, And Finger-Combing.

According To The Shāfi‘īs: The Obligations Are: Intention, Removal Of Physical Impurities If Present, And Ensuring Water Flows Over The External Skin And Hair To Reach The Underneath.

According To The Ḥanbalīs: The Obligation Is To Make Intention And Say "Bismillāh," And Then Cover The Entire Body With Water, Including The Mouth And Nose.

References:

- *Al-Qawānīn*, P. 22
- *Aqrab Al-Masālik*, P. 9
- *Ḥāshiyat Ibn Qāsim Al-Ghazzi 'Alā Matn Abī Shujā'*, 1/77
- *Al-Tadhkirah*, P. 47
- *Al-Iqnā' Li-Al-Ḥajjāwī*, 1/154
- *Al-Kāfī Li-Ibn Qudāmah*, 1/60

Additional Ḥanafī Sources Confirming This View:

- *Bidāyat Al-Mubtadī*, 1/16
- *Tanwīr Al-Absār*, 1/151
- *Al-Wiqāyah*, 1/12
- *Kashf Al-Ḥaqā'iq*, 1/12
- *Multajāh Ahl Al-Tuqā* (Ms.), Folio 22
- *Al-Hidāyah*, 1/16
- *Sharḥ Faṭḥ Al-Qadīr*, 1/58

"Al-Masbūk" (1/169) Also Says:

"According To The Mālikīs, It Is Sunnah.

The Ḥanbalīs Consider Mouth Rinsing And Nose Rinsing As Obligations Of Ghusl."

Further References:

- *Mukhtaṣar Khalīl*, P. 15
- *Minḥat Al-Jalīl*, 1/128
- *Mughnī Al-Muḥtāj*, 1/73
- *Nihāyat Al-Muḥtāj*, 1/225
- *Al-Inṣāf*, 1/257
- *Kashshāf Al-Qinā'*, 1/154
- *Bulghat Al-Sāghib Wa Bughyat Al-Rāghib*, P. 49

"Fiqh Al-'Ibādāt 'Alā Al-Madhhab Al-Ḥanafī" (P. 51, Shamela Numbering):

"Rinsing The Mouth And Nose Is Based On The Narration Of Ibn 'Abbās From His Maternal Aunt Maymūnah Who Said: 'I Prepared Water For The Messenger Of Allāh ﷺ And He Performed Ghusl From Janābah, And The Narration Mentions: "Then He Rinsed His Mouth And Nose..."

Drinking In A Way That Water Reaches The Throat Suffices As Mouth Rinsing."

"Al-Lubāb Fī Sharḥ Al-Kitāb" (1/14):

"The Obligations Of Ghusl Are:

1. Mouth Rinsing
2. Nose Rinsing
3. Washing The Entire Body"

"Ḥāshiyat Ibn 'Ābidīn (Radd Al-Muḥtār)" (1/151):

"The Phrase 'Obligations Of Ghusl' Here Means What Is Legally Required. 'Ghusl' Refers To Washing The Whole Body. The Narration From Maymūnah Says: 'She Placed Water For The Prophet ﷺ To Perform Ghusl.' The Grammarian Nawawī States That The Pronunciation With Faṭḥah Is More Eloquent, But Jurists Use The Version With ḍammah."

"Fatāwā 'Ālamgīriyyah" (Al-Fatāwā Al-Hindiyyah) (1/13):

"Chapter Two: On Ghusl – Section One: Its Obligations.

These Are Three:

1. Rinsing The Mouth
2. Rinsing The Nose
3. Washing The Entire Body – As In The Primary Texts."

"Majma' Al-Anhur Fī Sharḥ Multaqā Al-Abḥur" (1/14):

"Some Objected That Mouth And Nose Rinsing Are Sunnah And That The Interior Of The Mouth Is Not A Place Of Obligation In Wuḍū'. The Reply Is That The Mouth And Nose Are Parts Of The Face From One Perspective, And The Face Is The Area Where Wuḍū' Is Obligatory."

Mālikī Madhhab

According To The **Mālikīs**:

Mouth Rinsing And Nose Rinsing Are Not Obligatory In Ghusl.

"Bughyat Al-Muqtasiḍ Sharḥ Bidāyat Al-Mujtahid" (2/525):

"Some Scholars Said That These Two (Mouth And Nose Rinsing) Are Not Obligatory, While Others Considered Them Obligatory. Among Those Who Did **Not** Consider Them Obligatory Are Mālik And Al-Shāfi'ī."

"Al-Sharḥ Al-Kabīr" By Al-Dardīr (1/96):

"Then He Began Detailing The Sunnah Acts... The Second Of Them Is (Mouth Rinsing), Which Is Putting Water In The Mouth, Swirling It, And Spitting It Out."

"Al-Mudawwanah" (1/123):

"Mālik Said: Whoever Leaves Out Rinsing The Mouth, The Nose, And The Inside Of The Ears During Ghusl From Janābah And Prays, His Prayer Is Valid."

"Al-Tahdhīb Fī Ikhtiṣār Al-Mudawwanah" (1/183):

"Whoever Skips Mouth Rinsing, Nose Rinsing, Or Wiping The Inside Of The Ears In Wuḍū' Or Ghusl And Prays, His Prayer Is Valid."

"Al-Khulāṣah Al-Fiqhiyyah 'Alā Madhhab Al-Mālikiyyah" (P. 13):

"Among The Ordering Of Sunnahs: Washing Hands Up To The Wrists Comes Before Mouth Rinsing, Then Mouth Rinsing Comes Before Nose Rinsing, And Nose Rinsing Before Blowing Water Out Of The Nose."

"Fiqh Al-'Ibādāt 'Alā Al-Madhhab Al-Mālikī" (P. 86):

"Mouth Rinsing, Nose Rinsing, And Blowing Water Out Of The Nose With The Intention Of Performing Sunnah Acts Of Ghusl. Then The Individual Washes The Face To Complete Wuḍū' Once."

"Mawāhib Al-Jalīl Min Adillat Khaliḥ" (1/84):

"The Evidence For Non-Obligation Of Mouth And Nose Rinsing Is The Report In Al-Mudawwanah: Mālik Said About Someone Who Left Them And The Inside Of The Ears In Ghusl From Janābah And Then Prayed — He Should Perform Them For Future Ghusl, But The Prayer Already Performed Is Valid."

Shāfi‘ī Madhhab

The Shāfi‘īs Also Hold That **Rinsing The Mouth And Nose During Ghusl Is Not Obligatory**.

In *Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid* (2/525):

"Some Scholars Said That These Two Acts (Rinsing The Mouth And Nose) Are Not Obligatory In Ghusl, While Others Considered Them Obligatory. Among Those Who Held They Are Not Obligatory Were Mālik And Al-Shāfi‘ī."

In *Asnā Al-Maṭālib* By Zakariyyā Al-Anṣārī (1/39), It Is Stated:

"And From The Sunan (Recommended Acts) Of Ghusl: Rinsing The Mouth, Then The Nose."

In *Sharḥ Matn Abī Shujā‘* By Muḥammad Ḥasan ‘Abd Al-Ghaffār (16/2):

"The Issue Of Order Not Being Obligatory: If One Rinses The Mouth And Nose After Washing The Feet, We Say: Rinsing The Mouth And Nose Is, According To The Preferred Opinion, **From The Sunan** And Not From The Obligations."

In *Fiqh Al-‘Ibādāt ‘Alā Al-Madhhab Al-Shāfi‘ī* (1/144):

"Leaving Out Rinsing The Mouth And Nose Is To Avoid The Disagreement Of Those Scholars Who Made It Obligatory."

In *Sharḥ Al-Muqaddimah Al-Ḥaḍramiyyah* Called *Bushrā Al-Karīm* (P. 135):

"(Leaving Out Rinsing The Mouth And Nose) Or Either Of Them, Due To The Scholarly Disagreement Over Their Obligation, Similar To Wuḍū’."

Ḥanbalī Madhhab

The Ḥanbalīs Hold That **Rinsing The Mouth And Nose Is Obligatory In Ghusl**.

In *Kashshāf Al-Qinā‘* By Al-Buhūtī (1/154):

"(The Minimum Valid Ghusl) Is That Which Includes Only The Obligatory Components: Removing Any Impurity From The Body, Whether Physical Or Anything That Prevents Water From Reaching The Skin, So That Water Can Reach The Body. Then One Makes The Intention, As Mentioned In The ḥadīth 'Actions Are By Intentions...' Then He Says The Basmalah (Bismillah), As Our Scholars Stated: It Is Treated Like Wuḍū’, By Analogy Between The Two Types Of Purification. Then He Pours Water Over His Whole Body – It Is Not Sufficient To Merely Wipe. This Includes Even The Mouth And Nose. Thus, Rinsing The Mouth And Nose Is Obligatory In Ghusl, Just As In Wuḍū’."

Regarding The Ḥanafī Evidence (Used To Support Their View) For The ḥadīth: "They Are Obligatory In Janābah, And Sunnah In Wuḍū’", It Is Classified As **Gharīb (Unfamiliar Or Weak)** By *Naṣb Al-Rāyah* (1/78).

In *Al-Fiqh Al-Islāmī Wa Adillatuh* By Al-Zuḥaylī (1/526):

"Rinsing The Mouth And Nose: Both The Ḥanafīs And Ḥanbalīs Considered Them **Obligatory**."

Within The Ḥanbalī Madhhab, Three Opinions Exist:

1. **Both Rinsing The Mouth And Nose Are Obligatory In Both Wuḍū' And Ghusl.**
2. **Only Rinsing The Nose Is Obligatory, Not The Mouth.**
3. **If One Does Ghusl Without Performing Wuḍū', These Actions Are Still Included.**

In *Al-Mughnī* By Ibn Qudāmah (1/88):

"The Mouth And Nose Are Part Of The Face, Meaning That Rinsing The Mouth And Nose Is Obligatory In Both Types Of Purification – Ghusl And Wuḍū'. This Is The Well-Known Opinion In The Madhhab, And It Is Also The View Of Ibn Al-Mubārak, Ibn Abī Laylā, Ishāq, And It Is Reported From 'Aṭā'. It Is Narrated From Imām Aḥmad In Another Report That Only Rinsing The Nose Is Obligatory. Al-Qāḍī (The Ḥanbalī Jurist) Said: Rinsing The Nose Is Obligatory In Both Wuḍū' And Ghusl, According To A Single Narration, And This Is Also The View Of Abū 'Ubayd, Abū Thawr, And Ibn Al-Mundhir. Others Narrated From Imām Aḥmad That Rinsing The Mouth And Nose Are **Obligatory In Major Purification (Ghusl)**, But **Sunnah In Minor Purification (Wuḍū')**."

Agreed Upon Principle

All Scholars Agree On This Principle:

"Everything That **Prevents Water From Reaching The Body** During Ghusl Must Be Removed."

The Difference Arose Because In The Qur'an, Surah Al-Maida, Ayah 6, Allah Says:

"And If You Are In A State Of Janabah (Major Impurity), Then Purify Yourselves (I.E., Perform Ghusl)."

وَإِنْ كُنْتُمْ جُنُبًا فَاطَّهَّرُوا

Those Who Say That Rinsing The Mouth (Kulli) And Putting Water Into The Nose (Istinshaq) Is Obligatory Argue That This Verse Instructs Achieving Full Purification (Ghusl). And In Arabic, "Ghusl" Refers To When Water Is Poured Over The Entire Body From Head To Toe. They Make The Analogy (Qiyas) That Washing The Whole Body Is Obligatory, And This Includes Not Just The Outer Parts Like The Face But Also The Mouth And Nose. Therefore, They Conclude That Wherever Water Can Reach, It Is Obligatory To Let Water Reach During Ghusl.

They Also Argue That The Reason For This Is The **Hadith Of Hazrat Maymuna**, Which Describes The Full Method Of Performing Ghusl After Janabah, And In It, Rinsing The Mouth And Putting Water Into The Nose Are Included.

Hadith Of Maymuna — Tirmidhi 103

Narrated By Maymuna (May Allah Be Pleased With Her):

She Said, “I Prepared Water For The Prophet ﷺ To Perform Ghusl After Janabah. He Poured Water With His Right Hand Over His Left, Washed Both His Hands, Then Put His Hand Into The Vessel And Poured Water Over His Private Parts. Then He Rubbed His Hand On The Wall Or The Ground, Then Rinsed His Mouth And Put Water Into His Nose, Washed His Face And Arms, Poured Water Over His Head Three Times, Poured Water Over His Entire Body, Then Stepped Aside And Washed His Feet.”

Arabic (Original Text):

حَدَّثَنَا هَنَادٌ، قَالَ: حَدَّثَنَا وَكِيعٌ، عَنْ الْأَعْمَشِ، عَنْ سَالِمِ بْنِ أَبِي الْجَعْدِ، عَنْ كُرَيْبٍ، عَنْ ابْنِ عَبَّاسٍ، عَنْ خَالَتِهِ مَيْمُونَةَ قَالَتْ: وَضَعْتُ لِلنَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ غُسْلًا فَأَغْتَسَلَ مِنَ الْجَنَابَةِ، فَأَكْفَأَ الْإِنَاءَ بِشِمَالِهِ عَلَى يَمِينِهِ، فَغَسَلَ كَفَّيْهِ، ثُمَّ ادْخَلَ يَدَهُ فِي الْإِنَاءِ فَأَفَاضَ عَلَى فَرْجِهِ، ثُمَّ ذَلِكَ بِيَدِهِ الْخَائِطِ أَوْ الْأَرْضِ، ثُمَّ مَضْمَضَ وَاسْتَنْشَقَ وَغَسَلَ وَجْهَهُ وَذِرَاعَيْهِ، ثُمَّ أَفَاضَ عَلَى رَأْسِهِ ثَلَاثًا، ثُمَّ أَفَاضَ عَلَى سَائِرِ جَسَدِهِ، ثُمَّ تَنَحَّى فَغَسَلَ رِجْلَيْهِ.

(Classified As: **Sahih Li Zatihi — Authentic By Itself**)

Hadith References (Takhrij Al-Hadith):

This Hadith Is Recorded In:

- **Bukhari** (With Multiple Hadith Numbers, E.G., 249, 257, 259, 260, 265, Etc.)
- **Muslim** (E.G., 317, 337)
- **Ibn Jarud** (Al-Muntaqa)
- **Ibn Khuzaymah** (Sahih)
- **Ibn Hibban** (Sahih)
- **Nasa'i** (Al-Mujtaba & Al-Kubra)
- **Abu Dawud** (Sunan)
- **Tirmidhi** (Jami', #103)
- **Darimi** (Musnad)
- **Ibn Majah** (Sunan)
- **Bayhaqi** (Sunan Al-Kubra)
- **Daraqutni** (Sunan)
- **Ahmad Ibn Hanbal** (Musnad)
- **Tayalisi** (Musnad)
- **Humaydi** (Musnad)
- **Abu Ya'La** (Musnad)
- **Abd Ibn Humayd** (Al-Muntakhab)
- **Abdur Razzaq** (Al-Musannaf)
- **Ibn Abi Shaybah** (Al-Musannaf)
- **Tabarani** (Al-Kabir, Al-Awsat)

These References Cover Topics Such As The Method Of Ghusl, Purification After Sexual Impurity, Washing The Body, And Details On How The Prophet ﷺ Performed These Rituals.

And The Majority (Jamhoor) Of Scholars Say That It Is *Mustahab* (Recommended) — As Is Mentioned In The Hadith Of Hazrat Aisha (RA), Recorded In Tirmidhi, Hadith No. 104:

Ibn Abi Umar Narrated To Us, Sufyan Narrated To Us, From Hisham Bin Urwah, From His Father, From Aisha (RA), Who Said:

When The Messenger Of Allah ﷺ Wanted To Perform Ghusl (Ritual Bath) After Janabah (Major Impurity), He Would Begin By Washing His Hands Before Putting Them Into The Container, Then He Would Wash His Private Parts, Then Perform Wudu (Ablution) Like For Prayer, Then Pour Water Over His Hair, Then Pour Water Over His Head Three Times.
(Sahih)

In This Hadith, There Is No Mention Of Rinsing The Mouth (Kulli) Or Putting Water In The Nose (Istinshaq), Which Shows That In The Hadith Narrated By Hazrat Maymuna (RA), Where Rinsing The Mouth And Nose Is Mentioned, It Is To Be Understood As *Mustahab* (Recommended), Not *Wajib* (Obligatory). This Is The Opinion Of The Majority (Jamhoor) Of Scholars.

Takhrij (Source References) Of The Hadith:

This Hadith Is Recorded By:

- Al-Bukhari In *Sahih* (Various Places Like 1/59 No. 248, 251; 1/60 No. 258, Etc.)
- Muslim In *Sahih* (1/174 No. 316, 318, Etc.)
- Malik In *Al-Muwatta*
- Ibn Jarud In *Al-Muntaqa*
- Ibn Khuzaymah In *Sahih*
- Ibn Hibban In *Sahih*
- Al-Nasa'i In *Sunan Al-Kubra* And *Al-Mujtaba*
- Abu Dawood In *Sunan*
- Al-Tirmidhi In *Jami'* (No. 104)
- Al-Darimi In *Musnad*
- Al-Bayhaqi In *Sunan Al-Kubra*
- Al-Daraqutni In *Sunan*
- Ahmad Ibn Hanbal In *Musnad*
- Al-Tayalisi, Al-Humaydi, Abu Ya'la, Al-Bazzar, Abd Al-Razzaq, Ibn Abi Shaybah, Al-Tabarani, And Others.

Explanation:

Those Who Say Rinsing The Mouth And Putting Water In The Nose Is *Wajib* (Obligatory) Base This On Qur'anic Verses And The Narration From Hazrat Maymuna (RA).

However, The Majority (Jamhoor) Argue That If Rinsing The Mouth And Nose Were *Wajib*, Then The Prophet ﷺ Would Have Explicitly Mentioned It In Other Places Where He Explained Ghusl, Especially When Asked, Because Without It, Ghusl Would Be Incomplete. But The Prophet ﷺ Did Not Consistently Mention It. Therefore, The Jamhoor Deduce That It Is *Mustahab* (Recommended) And **Not Obligatory** — And This Is The Correct View.

Conclusion:

In Ghusl, Rinsing The Mouth (Kulli) And Putting Water Into The Nose (Istinshaq) Are *Mustahab* (Recommended) Acts, Not *Wajib* (Obligatory). This Is The Opinion Of Most Jurists (Fuqaha) And Scholars. And Allah Knows Best.

Ruling On Khilal (Passing Fingers Through) The Hair During Ghusl

There Is A Difference Of Opinion Among The Jurists (Fuqahā) Regarding Whether Doing Khilal (Passing Fingers Through The Hair To Let Water Reach The Roots) During Ghusl Is **Wājib (Obligatory)** Or **Mustahabb (Recommended)**.

Although Some Scholars Have Claimed There Is Consensus (Ijmā‘) On It, Such As Ibn Battāl: In *Sharḥ Ṣaḥīḥ Al-Bukhārī* (By Al-Aṣbahānī) (2/267), It Says:
“Ibn Battāl, In His Commentary On Al-Bukhārī (1/386), Narrated Consensus On This Matter.”

Maliki Madhhab (School)

In The Mālikī School, It Is **Mustahabb (Recommended)**.

In *Al-Sharḥ Al-Ṣaḥīḥ* By Al-Dardīr (1/171), He Says:

“Among The Virtues (Meaning: Recommended Acts) Of Ghusl Is... Doing Khilal Of The Roots Of The Head’s Hair.”

Hanafi Madhhab

In The Ḥanafī School, It Is **Wājib (Obligatory)**.

In *Ḥāshiyat Ibn ‘Ābidīn (Radd Al-Muḥtār)* (1/118), He Writes:

“The Statement ‘It Is Obligatory’ Refers To Khilal, Because Otherwise It Is Not Possible To Ensure Water Reaches The Required Areas Without It.”

Shafi‘I Madhhab

In The Shāfi‘ī School, It Is Also **Wājib (Obligatory)**.

In *Nihāyat Al-Muḥtāj* By Al-Ramlī (1/226), It Says:

“Then He Pours Water Over His Head And Does Khilal, Meaning Passing Fingers Through The Roots Of His Hair While Wet, Following The Sunnah.”

Hanbali Madhhab

In The Ḥanbalī School, It Is Also **Wājib (Obligatory)**.

In *Kashshāf Al-Qinā‘* By Al-Buhūtī (1/106), It Says:

“Among The Sunnahs Of Wuḍū’ Is Khilal Of The Fingers And Toes,” And Earlier It Gave The Evidence And Method, “And Khilal Of The Hair,” Meaning Thick Beard Hair On The Face, Also Under The Ears, As Stated By Al-Zarkashī.”

Evidence From Hadith

The Majority (Jamhoor), Meaning Ḥanafīs, Shāfi‘īs, And Ḥanbalīs, Say It Is Obligatory, Based On The ḥadīth:

The Messenger Of Allah ﷺ Said:

“Whoever Leaves Even A Single Hair Untouched By Water After Ghusl For Janābah, Will Face Such-And-Such Punishment From The Fire.”

This Was Narrated By ‘Alī Ibn Abī Ṭālib And Reported By Abū Dāwūd:

Ḥadathanā Mūsā Ibn Ismā‘īl, From Ḥammād, From ‘Aṭā’ Ibn Al-Sā’ib, From Zādhān, From ‘Alī, Who Said: “The Messenger Of Allah ﷺ Said: ‘Whoever Leaves A Spot The Size Of A Single Hair From Janābah And Does Not Wash It, Will Face Such-And-Such Punishment From The Fire.’”

‘Alī Said: “That Is Why I Used To Be Meticulous About My Head, That Is Why I Was So Careful About My Head,” And It Is Narrated That He Used To Cut His Hair — May Allah Be Pleased With Him.

Analysis Of The Chain (Isnād)

This Chain Is Weak (Da‘īf) Because:

It Includes ‘Aṭā’ Ibn Al-Sā’ib Ibn Mālik, Who, In His Later Years, Suffered From Ikhtilāṭ (Memory Confusion).

Also, Ḥammād Ibn Salamah, Who Narrated This From Him, Heard It **After** His Ikhtilāṭ.

As Al-‘Uqaylī Said:

“The Only Acceptable Narrations From ‘Aṭā’ Are Those Reported By Shu‘bah Or Sufyān. As For Narrators Like Jarīr, Khālid Ibn ‘Abd Allāh, Ibn ‘Ulayyah, ‘Alī Ibn ‘Āṣim, Ḥammād Ibn Salamah, And The People Of Baṣrah — Their Reports Are From His Post-Ikhtilāṭ Period, Because He Only Came To Them Late In Life. These, And Similar Narrators, Who Took From Him After His Ikhtilāṭ, Their Narrations Are Not Accepted.”

See *Al-Kawākib Al-Nayyirāt* (1/319).

Strengthened Chain

However, This Same Hadith Exists In *Al-Aḥādīth Al-Mukhtārah*, Vol. 2, Hadith 453, Compiled By Ḍiyā’ Al-Dīn Al-Maqdisī, With A **ṣaḥīḥ (Authentic) Chain**:

Reported Through:

‘Abdullāh Ibn Dhuhail Ibn ‘Alī Ibn Kāriḥ Al-Ḥarbī, From Aḥmad Ibn Al-Ḥasan Ibn Aḥmad Ibn Al-Bannā’, From Al-Ḥasan Ibn ‘Alī Al-Jawharī, From Abū Al-Ḥusayn Muḥammad Ibn Al-Muzaffar Al-Ḥāfiẓ, From Yaḥyā Ibn Muḥammad Ibn Ṣā’id, From ‘Alī Ibn Sahl Ibn Al-Mughīrah, From ‘Īsā Ibn Ja‘far, From ‘Affān Ibn Muslim, From Ḥammād Ibn Salamah And Shu‘bah, Who Both Narrated From ‘Aṭā’ Ibn Al-Sā’ib, From Zādhān, Who Said ‘Alī Reported:

“I Heard The Messenger Of Allah ﷺ Say: Whoever Leaves A Spot On His Body The Size Of A Single Hair, And Water Does Not Touch It, Will Face Such-And-Such Punishment From The Fire.”

This Chain Is ṣaḥīḥ In Itself (ṣaḥīḥ Li Dhātihi).

But Here The Wording Is Slightly Different, Focusing On **Any Part Of The Body** Left Dry.

Another Supporting Narration

In *Muṣannaḡ Ibn Abī Shaybah*, Hadith 1072, There Is Another Narration Where Abū Al-Bakhtarī Reports:

Ḥudhayfah Ibn Al-Yamān Came Out, His Hair Slightly Wet, And He Said:

“Under Every Hair That Water Does Not Reach, There Remains Janābah (Impurity). So Make Sure Water Reaches Everywhere.”

He Then Massaged His Head And Said:

“That Is Why I Massage My Head, As You See Me Doing.”

Narrated By: Ghundar, From Shu‘Bah, From ‘Amr Ibn Murrah, From Abī Al-Bakhtarī.

This Chain Is Also ṣaḥīḥ In Itself (ṣaḥīḥ Li Dhātihi).

Summary Of The Issue

Ruling on Rinsing the Mouth and Nose (Madhmadah & Istinshāq) During Ghusl

The Core Disagreement

The jurists differ whether rinsing the mouth and nose is:

- **Obligatory (Wājib)** in obligatory Ghusl (Janābah, Ḥayḍ, Nifās),
- or merely **Recommended (Sunnah/Mustaḥabb)**.

Position of the Four Madhāhib

1. Ḥanafī Madhhab

- **Ruling:** Obligatory in Ghusl; Sunnah in Wuḍū’.
- **Primary Sources:**
 - *Mukhtaṣar al-Qudūrī*: Lists Madhmadah and Istinshāq as obligations in Ghusl.
 - *Al-Masbūk*, *Bidāyat al-Mubtadī*, *Tanwīr al-Abṣār*, *Al-Hidāyah*, *Fatāwā ‘Ālamgīriyyah*.
- **Legal reasoning:** Based on hadiths such as the narration of Maymūnah (RA) describing the Prophet ﷺ rinsing his mouth and nose during Ghusl.

2. Mālīkī Madhhab

- **Ruling:** Not obligatory; recommended (Sunnah).
- **Key Texts:**

- *Al-Mudawwanah, Al-Sharḥ al-Kabīr, Bughyat al-Muqtasid, Fiḥ al-‘Ibādāt ‘alā al-Madhhab al-Mālikī.*
- **Legal note:** Mālik said if someone omitted it, their prayer remains valid. Ghusl remains valid without it.

3. Shāfi‘ī Madhhab

- **Ruling:** Not obligatory; recommended (Sunnah).
- **References:**
 - *Asnā al-Maṭālib, Sharḥ Matn Abī Shujā‘, Bushrā al-Karīm.*
- **Fiqh point:** Rinsing mouth and nose is recommended to avoid ikhtilāf but not required.

4. Ḥanbalī Madhhab

- **Ruling:** Obligatory in Ghusl.
- **Sources:**
 - *Al-Mughnī, Kashshāf al-Qinā‘, Al-Inṣāf, Al-Iqnā‘, Al-Kāfī.*
- **Details:** They consider the mouth and nose part of the face and therefore must be washed in both Wuḍū‘ and Ghusl.

Evidences and Hadiths

A. Hadith of Maymūnah (RA) — Tirmidhī 103

- Prophet ﷺ rinsed mouth and nose during Ghusl.
- Narrated in: Bukhārī, Muslim, Abū Dāwūd, Tirmidhī, etc.
- **Grading:** Ṣaḥīḥ li-dhātih (authentic).

B. Hadith of ‘Ā’ishah (RA) — Tirmidhī 104

- No mention of rinsing mouth/nose in this narration.
- **Inference:** Used by the Jamhūr to show that rinsing is **not obligatory**, else it would be mentioned explicitly and consistently.

Reasoning Behind the Disagreement

- **Those who say it is obligatory:** Take the word “ghusl” in Qur’ān (5:6) to mean full bodily purification, including internal passages like mouth and nose.
- **Those who say it is not obligatory:** Argue from absence in some authentic hadiths, indicating that rinsing is not a fixed requirement.

Conclusion (Tarjīḥ)

The **majority (Jamhūr)** — Mālikī and Shāfi‘ī — hold that rinsing the mouth and nose in Ghusl is **recommended (mustahabb)**, not obligatory.

This is the stronger opinion due to the variation in sound narrations.

Ruling on Khilāl (Passing Fingers Through the Hair During Ghusl)

The Issue

Is passing fingers through the hair (Khilāl) to ensure water reaches the scalp **obligatory** or **recommended** during Ghusl?

Positions of the Madhāhib

Madhhab Ruling on Khilāl

Ḥanafī	Wājib
Mālikī	Mustaḥabb
Shāfi‘ī	Wājib
Ḥanbalī	Wājib

Supporting Hadiths

Hadith of ‘Alī (RA) — Abū Dāwūd

“Whoever leaves a spot the size of a single hair in Janābah and does not wash it will face such-and-such punishment from the Fire.”

- **Chain weakness:** Contains ‘Aṭā’ ibn al-Sā’ib after ikhtilāṭ (confusion in old age).
- **Alternate chain:** Strengthened in *al-Aḥādīth al-Mukhtārah* — ṣaḥīḥ li-dhātihi.

Hadith of Ḥudhayfah (RA) — Ibn Abī Shaybah

“Under every hair is Janābah.”

“That is why I massage my head, as you see me doing.”

- **Grading:** Ṣaḥīḥ li-dhātihi.

Conclusion (Tarjīḥ)

The **majority (Jamhūr)** hold that **Khilāl of the hair during Ghusl is Wājib**, unless complete immersion is done where no dry area remains.

In such immersion cases (e.g. pond, river), Khilāl becomes Mustaḥabb.

Conclusion

The **majority (Jamhūr)** — Mālikī and Shāfi‘ī — hold that rinsing the mouth and nose in Ghusl is **recommended (mustahabb)**, not obligatory.

This is the stronger opinion due to the variation in sound narrations

Doing Khilal (Passing Fingers Through The Hair During Ghusl), So That Water Reaches The Roots Of The Hair, Is **Wājib (Obligatory)**.

This Is The Position Of The Majority Of The Fuqahā: Ḥanafīs, Shāfi‘īs, And Ḥanbalīs.

This Is The General Rule.

However, In Certain Specific Cases Where No Part Of The Hair Can Reasonably Remain Dry — Such As When A Person Fully Submerges Themselves In A Pond Or River, Or Immerses Entirely In Water In Such A Way That No Dry Spot Is Left — Then In Such Special Circumstances, Doing Khilal Is **Mustahabb (Recommended)**, Not Obligatory.

This Is Because The Water Has Already Certainly Reached The Roots Of The Hair.

Therefore, The **General Ruling** Remains That Doing Khilal Of The Head During Ghusl Is **Wājib**, And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 25 – The Ruling On Continuity (Muwālāt) And Sequence (Tartīb) In Ghusl

There Is A Difference Of Opinion Among The Jurists (Fuqahā) Regarding The Ruling On **Muwālāt** (Continuity, Meaning To Wash The Body Parts Without Long Interruption) And **Tartīb** (Sequence, I.E., Following A Specific Order) In Ghusl (Ritual Bath).

The Meaning Of **Muwālāt** Is Washing The Limbs Without Significant Delay; Its Opposite Is **Tafriq** (Disruption).

There Was Also Disagreement Regarding This Issue In Wudū' (Ablution), Which We Have Already Explained In Detail.

Hanbali Madhhab (School)

In The Hanbali Madhhab, **Muwālāt** Is **Sunnah** (Recommended), And **Tartīb** Is Considered **Wājib** (Obligatory) According To One Opinion.

From *Matalib Uli Al-Nuhā* By Al-Ruhaybānī (1/181):

“(Continuity) Is Sunnah In Ghusl, Because The Prophet ﷺ Practiced It. It Is Not Obligatory, Unlike The Sequence, Because The Body Is Considered As One Unit.”

From *Sharh Muntahā Al-Irādāt* By Al-Buhūtī (1/50):

“Its Obligations... The Fifth (Is Sequence) Between The Body Parts.”

According To Another Opinion, **Tartīb** Is Obligatory:

From *Maniyat Al-Sājid* (P. 36):

“The Fifth (Obligation): (Sequence) Of The Body Parts As Mentioned By Allah, Because Allah Placed The Wiping Between The Washed Parts (In Wudū'), And We Know Of No Reason For This Except Sequence. And By The Legal Principle: Every Composite Act Of Worship Made Up Of Parts Requires Sequence And Continuity, Unless There's Evidence Otherwise.”

According To The **More Correct** Opinion, Neither **Muwālāt** Nor **Tartīb** Is Obligatory.

From *Al-Ri'āyah Al-Sughrā* (1/231):

“Continuity Is Not Required In Ghusl, And The Stronger View Is That Neither Is Sequence.”

From *Sharh Al-Muntahā* By Al-Buhūtī (1/86):

“(Continuity) Is Sunnah In Ghusl, Because The Prophet ﷺ Practiced It. It Is Not Obligatory, Like Sequence, Because The Body Is Considered As One Unit. If Continuity Is Lost, Such That A Person Delays Washing The Rest Of His Body For A Time In Which The Earlier Part Dries, Then To Complete The Ghusl, He Must **Renew The Intention**, Because The Original Intention Is Cut Off By The Break, And The Remaining Washing Would Occur Without Intention.”

From *Matalib Uli Al-Nuhā* (1/181):

“(Continuity) Is Sunnah In Ghusl, Because The Prophet ﷺ Practiced It. It Is Not Obligatory, Unlike Sequence, Because The Body Is Considered As One Unit.”

Shafi‘I Madhhab

In The Shāfi‘I Madhhab, **Tartīb** Is Obligatory According To One Opinion.

From *Asnā Al-Matālib* By Zakariyyā Al-Ansārī (1/34):

“(The Sixth Obligation: Sequence) In Its Actions, Because The Prophet ﷺ’S Practice Clarified The Order.”

According To Another Opinion, In The Shāfi‘I Madhhab, **Neither Muwālāt Nor Tartīb Is Obligatory**.

From *Ithāf Al-Arīb Bi Sharh Al-Ghāyah Wa Al-Taqrīb* (P. 37):

In The Obligations And Sunnah Of Ghusl,

Abu Shujā‘ Said:

“The Obligations Of Ghusl Are Three Things:

1 – Intention, Based On The Hadith: ‘Actions Are Only By Intentions.’

2 – Removal Of Filth If Present On The Body, Based On The Hadith Of Maymūnah (RA): ‘I Concealed The Prophet ﷺ While He Bathed From Janābah. He Washed His Hands, Poured Water With His Right Hand Onto His Left, Washed His Private Parts And What Had Affected Them, Wiped His Hand On The Ground Or Wall, Then Performed Ablution As For Prayer Except For The Feet, Poured Water Over His Body, Moved Aside, And Then Washed His Feet.’

3 – Conveying Water To All The Hair And Skin, Based On The Hadith Of ‘Ā’ishah (RA) That The Prophet ﷺ: ‘When He Would Bathe From Janābah, He Would Begin By Washing...’”

From *Sharh Matn Abī Shujā‘* By Muhammad Hasan ‘Abd Al-Ghaffār (21/2):

“The Author Said: [Section: The Obligations Of Ghusl Are Three: Intention, Removal Of Filth If On The Body, And Ensuring Water Reaches All The Hair And Skin.]”

From *Fiqh Al-‘Ibādāt ‘Ala Al-Madhhab Al-Shāfi‘ī* (1/142):

“Sequence: It Is Recommended To Start When Pouring Water With The Head, Then The Upper Body, And Then The Right Side, Followed By The Left Side.”

Maliki Madhhab

In The Mālikī Madhhab, It Is **Obligatory**, As Is The Well-Known View In The School, But In One Narration, It Is **Not Obligatory**.

From *Bughyat Al-Muqtasid Sharh Bidāyat Al-Mujtahid* (2/533):

“The Hanbalis And Mālikis (In One Narration) Consider It Obligatory.”

From *Al-Sharh Al-Kabīr* By Al-Dardīr (1/90):

“The Sixth Obligation: Continuity (Muwālāt), According To One Of The Two Well-Known Opinions.”

Hanafi Madhhab

In The Ḥanafi Madhhab, Both **Muwālāt** And **Tartīb** Are Considered **Mustahabb** (Recommended).

Reason For Disagreement

The Cause Of The Disagreement Is The Same As That In Wudū’.

In Both Issues, We Have Already Explained The Details.

Thus, Most Scholars Hold The Same Opinion Regarding Ghusl As They Do For Wudū’,

Although Some Differentiated And Said **Sequence** Is Not Obligatory Because The Body Is A Single Unit, So Sequence Is Unnecessary, Etc.

However, We Have Already Clarified In Detail That **Neither Sequence Nor Continuity Is Obligatory**.

Conclusion

In Ghusl, **Continuity (Muwālāt)** And **Sequence (Tartīb)** Are **Mustahabb** (Recommended),

And This Is The Opinion Of The Ḥanafīs, One Opinion Among The Shāfi‘īs, And One Opinion Among The Hanbalis.

And This Is The Sounder Opinion, And Allah Knows Best.

How Should A Woman With Braided Hair Perform Ghusl (Major Ritual Bath) After Janabah (Sexual Impurity)?

According To The Hanafi School:

If A Woman Is Performing *Ghusl* After Janabah And Her Hair Is Tightly Braided, It Is Sufficient For Her To Pour Three Handfuls Of Water Over Her Head And Then Pour Water Over The Rest Of Her Body. This Is Based On The Hadith Of Umm Salamah (رضي الله عنها):

She Said, “O Messenger Of Allah (ﷺ), I Am A Woman Who Tightly Braids Her Hair; Should I Undo It For The *Ghusl* Of Janabah?”

He (ﷺ) Replied: “No, It Is Sufficient For You To Pour Three Handfuls Of Water Over Your Head, Then Pour Water Over Your Whole Body, And You Will Be Purified.”

This Hadith Is Reported In Sahih Muslim (330/85).

Reference: *Tabyin Al-Haqa'iq* By Al-Zayla'i (1/14):

“It Is Not Necessary To Undo Braids If Water Reaches The Roots.” The Majority (Jumhur) Of Scholars Agree That It Is Not Obligatory For A Woman To Undo Her Braids Unless They Are So Matted That Water Cannot Reach Inside, Due To The Same Hadith. Requiring Her To Undo The Braids Would Bring Hardship, And Shaving Would Be Disfigurement, So It Is Waived.

See Also: *Hashiyat Ibn Abidin* (Radd Al-Muhtar) (1/153).

According To The Maliki School:

When A Woman Performs *Ghusl* For Janabah Or Menstruation (Hayd), If Her Hair Is Tightly Braided, She Should Pour Three Handfuls Of Water Over Her Head And Then Pour Water Over Her Entire Body. This Is Again Based On The Hadith Of Umm Salamah. Some Maliki Scholars Mention That In Certain Narrations, Umm Salamah Asked About Both *Hayd* And *Janabah*.

Reference: *Hashiyat Al-'Adawi* (1/212):

“There Is No Obligation Or Recommendation For A Woman To Undo Her Braids When Doing *Ghusl* For Janabah Or Menstruation.” The Evidence Is The Hadith In Sahih Muslim Where Umm Salamah Asked, “O Messenger Of Allah, I Am A Woman Who Tightly Braids Her Hair; Should I Undo It For *Ghusl*?” He Replied, “No, It Is Sufficient For You To Pour Three Handfuls Of Water Over Your Head, Then Pour Water Over Your Whole Body And You Will Be Purified.” In Another Narration, She Asked About *Hayd* And *Janabah*, And He Replied, “No.”

According To The Shafi'i School:

The Shafi'is Also Follow The Same Principle, But They Add That If Water Does Not Reach Inside The Hair Even After Pouring Three Handfuls, Then The Woman Must Undo Her Braids Because Reaching All Parts Of The Hair And Body With Water Is Obligatory.

Reference: *Al-Majmu' Sharh Al-Muhadhdhab* By Al-Nawawi (2/186):

“If A Woman Has Braids, And Water Reaches The Roots Without Undoing Them, She Does Not Need To Undo Them, Based On The Hadith Of Umm Salamah. But If Water Cannot Reach The Roots Unless The Braids Are Undone, She Must Undo Them, As Ensuring Water Reaches The Hair And Skin Is Obligatory.”

According To The Hanbali School:

For A Woman Performing *Ghusl* After Janabah (Due To Sexual Relations), She May Pour Three Handfuls Of Water Over Her Head And Then Over Her Body Without Undoing Her Braids. However, If She Is Performing *Ghusl* For Menstruation (Hayd) Or Postnatal Bleeding (Nifas), She Must Fully Undo Her Braids.

Reference: *Kashshaf Al-Qina'* By Al-Buhuti (1/154):

“It Is Obligatory To Undo The Hair When Performing *Ghusl* For Menstruation Or Nifas, But Not For Janabah If Water Reaches The Roots. This Is Based On The Hadith Of A'isha (رضي الله عنها) That The Prophet (ﷺ) Said To Her: ‘When You Are Menstruating, Take Water And Lote Leaves And Comb Through Your Hair.’ And Combing (Masht) Is Only Done With Unbraided Hair. In Another Narration: ‘Undo Your Hair And Comb It.’

The Default Is That Undoing The Hair Is Required To Ensure Water Reaches All Areas, But It Is Waived In The Case Of Janabah Due To Hardship, As Janabah Occurs Frequently, Unlike Menstruation.”

Summary Of The Issue

The Ruling On Continuity (Muwālāt) And Sequence (Tartīb) In Ghusl

Definitions:

- **Muwālāt (Continuity):** Washing body parts without a significant delay in between.
- **Tartīb (Sequence):** Following a specific order in washing.

Ḥanbalī Madhhab

- **Muwālāt:** Sunnah

Matalib Uli al-Nuhā (1/181):

“Continuity is Sunnah in Ghusl because the Prophet ﷺ practiced it.”

- **Tartīb:**

- One opinion: **Wājib**

Sharḥ Muntahā al-Irādāt (1/50):

“The fifth obligation is the sequence between body parts.”

- Another opinion: **Not wājib**

al-Ri‘āyah al-Ṣuḡhrā (1/231):

“The stronger view is that neither sequence nor continuity is required.”

- Clarification: If there's a long delay such that part of the body dries, one must **renew intention** to complete the Ghusl.

Sharḥ al-Muntahā (1/86)

Shāfi‘ī Madhhab

- **Tartīb:**

- One opinion: **Wājib**

Asnā al-Maṭālib (1/34):

“The sixth obligation: sequence – due to the Prophet’s ﷺ practice.”

- Another opinion: **Not wājib**

Ithāf al-Arīb (p. 37) & *Fiqh al-‘Ibādāt ‘alā al-Madhhab al-Shāfi‘ī* (1/142):
“Sequence is *mustaḥabb* (recommended), not obligatory.”

- **Muwālāt:** Not obligatory

Mālikī Madhhab

- **Muwālāt:**
 - **Wājib** according to one well-known opinion

al-Sharḥ al-Kabīr (1/90):
“The sixth obligation is continuity (Muwālāt).”
 - One narration: **Not wājib**

Bughyat al-Muqtasid (2/533)
- **Tartīb:** Not clearly emphasized as wājib

Ḥanafī Madhhab

- **Both Muwālāt and Tartīb: Mustaḥabb (Recommended)**

Cause of Disagreement:

- Same disagreement found in the issue of **wuḍū’**.
- Scholars differed on whether the body is considered **a single entity**, making sequence unnecessary.

Conclusion:

- The **stronger opinion** (and that of the Ḥanafīs, one opinion among Shāfi‘īs and Ḥanbalīs):
Both Muwālāt and Tartīb are Mustaḥabb (Recommended), not Wājib.
 - **Wallāhu A‘lam.**

Subsection: Ruling on Braided Hair in Ghusl for Women

Ḥanafī Madhhab

- **No need to undo braids** if water reaches the roots.
- Based on the ḥadīth of Umm Salamah (Muslim 330/85).

Tabyīn al-Ḥaqā'iq (1/14)
Radd al-Muḥtār (1/153)

Mālikī Madhhab

- **No obligation or recommendation** to undo braids for Janābah or Ḥayḍ Ghusl.

Ḥāshiyat al-ʿAdawī (1/212)

Shāfiʿī Madhhab

- **Do not need to undo braids** if water reaches the roots.
- If water does **not** reach, **braids must be undone**.

al-Majmūʿ (2/186) – al-Nawawī

Ḥanbalī Madhhab

- **For Janābah:** Braids can stay intact.
- **For Ḥayḍ and Nifās:** Braids **must** be undone.

Kashshāf al-Qināʿ (1/154)

Conclusion:

- For Janābah:
 - **Majority opinion** permits leaving braids intact if water reaches roots.
- For Ḥayḍ/Nifās:
 - **Difference exists**, especially in Hanbalī school requiring undoing braids.
- **Hadith of Umm Salamah** is the main basis for leniency:

“Pour three handfuls of water over your head, then over the whole body.”

Conclusion:

The **stronger opinion** (and that of the Ḥanafīs, one opinion among Shāfiʿīs and Ḥanbalīs):
Both Muwālāt and Tartīb are Mustahabb (Recommended), not Wājib.

Wallāhu A‘lam.

For A Woman Whose Hair Is Tightly Braided And Who Must Perform *Ghusl* After Sexual Impurity, If Undoing Her Hair Would Cause Difficulty, She May Pour Three Handfuls Of Water Over Her Head, Ensuring It Reaches The Roots, And Then Pour Water Over Her Entire Body. This Is Obligatory, And The Scholars And Hadith Experts Agree On This.

The Difference Of Opinion Arises Specifically In The Case Of *Ghusl* For Menstruation, Which Will Be Discussed, God Willing, At Its Appropriate Place.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 26 – Ruling On Ghushl (Ritual Bath) When Semen (Mani) Is Discharged

The Fundamental Disagreement Here Is:

Does The Discharge Of Semen (Mani) Make Ghushl Obligatory, Whether The Person Is Awake Or Asleep, Male Or Female?

Definition Of Mani (Semen):

Mani Is Defined As Thick, White Fluid That Comes Out Of A Healthy Man When Sexual Desire Is Strongly Aroused, Accompanied By A Sensation Of Pleasure, And After Its Release, The Body Feels A Brief Period Of Weakness.

For Women, Mani Is Described As Thin And Yellowish Fluid.

- *Reference:* Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (2/537):
“Mani Is A Thick, White Fluid That Comes Out Of A Man In A Healthy State When Desire Peaks, Accompanied By Pleasure; It Leaves The Body Feeling Weak Afterward. For A Woman, It Is Thin And Yellowish Fluid.”
- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu By Al-Zuhayli (1/514):
“Mani Is The Thick, Gushing Fluid That Exits During Intense Desire. For A Woman, It’s Thin And Yellowish. No Ghushl Is Required For Madhiy (Pre-Ejaculate) Or Wadi (Post-Urination Discharge).”

Definition Of Madhiy:

Madhiy Is The Thin, Whitish Fluid That Exits When A Man Engages In Foreplay Or Prepares For Intercourse (What Is Called ‘Foreplay’ In Common Language).

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/514):
“Madhiy Is Thin, White-Tinged Fluid That Exits During Foreplay.”

Definition Of Wadi:

Wadi Is The Thick Fluid That Comes Out Along With Urine.

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/514):
“Wadi Is The Thick Discharge That Follows Thin Urine.”

The View Of The Four Imams (Madhahib) On Mani Discharge

It Is Agreed Among The Four Schools (Madhahib) That Ghushl Becomes Obligatory When Mani Is Discharged Due To Sexual Arousal, Whether The Person Is Awake Or Asleep, Whether Through Seeing Something, Imagining Intercourse, Actual Intercourse, Or Even Intercourse With A Living Or Dead Human, Or With An Animal.

However, The Hanafi School Adds:

If Intercourse Occurs With A Dead Animal, A Predator, Or Someone So Small Or Immature That Sexual Desire Is Absent, Ghushl Is **Not** Obligatory—Unless Mani Is Actually Discharged.

- *Reference:* Khizanat Al-Muftin, Section Of Acts Of Worship (P.117):
“Ghushl Is Not Obligatory For Intercourse With A Dead Animal, Due To The Absence Of Desire, Unless Ejaculation Occurs.”
- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/514):
“Whether Ejaculation Occurs Through Usual Means, Or Through Seeing, Imagining, Or Actual Acts

(With Living Or Dead Beings, Or Animals), Ghusl Is Required. Except The Hanafis Say It's Not Required If Intercourse Occurs With A Corpse, An Animal, Or An Immature Child Without Sexual Desire."

- *Reference:* Al-Mughni By Ibn Qudamah (1/150):
"Ghusl Is Obligatory On Anyone Who Has Intercourse Or Is Penetrated, Whether Vaginally Or Anally, With Any Human Or Animal, Living Or Dead, Willingly Or Unwillingly, Awake Or Asleep. Abu Hanifah Said: It Is Not Obligatory When Intercourse Is With A Dead Body Or Animal, Because It's Not Considered Purposeful."

What If Mani Discharges Without Sexual Desire?

Here The Opinions Differ:

Shafi'i Madhhab:

Even If Mani Exits Without Sexual Desire, Ghusl Is Obligatory As Long As It Comes From The Private Part (Genital Area), E.G., Due To Falling From A Height Or Carrying Something Heavy. But If It Exits From Another Part Of The Body (Due To Illness Or Injury), Ghusl Is Not Required.

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/515):
"In Summary, The Shafi'i's Say: Even If Mani Exits Due To Heavy Lifting Or Falling Or Is Simply Found On Clothes, Ghusl Is Obligatory—Whether With Desire Or Not—Provided It Exits From Its Normal Path. But If It Exits Abnormally Due To Illness, Ghusl Is Not Required."

Hanbali Madhhab:

If Mani Exits Without Desire (Due To Illness, Cold, Unconsciousness, Intoxication), No Ghusl Is Required. The Area Where It Landed Must Be Cleaned (Because It's Impure), And Wudu Is Obligatory—Not Ghusl.

If Someone Wakes Up And Finds Semen On Their Clothes Or Body (I.E., They Experienced A Nocturnal Emission), Ghusl Is Obligatory.

If They Had A Sexual Dream But No Ejaculation, No Ghusl Is Required By Consensus.

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/515):
"If Semen Exits Without Desire (Due To Illness, Cold, Or Injury) From Someone Not Asleep, Insane, Unconscious, Or Drunk, Ghusl Is Not Required, But The Affected Area Must Be Washed; Only Wudu Is Required."
- *Reference:* Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (2/537):
"If It Exits From An Unusual Path (Due To A Broken Back, For Example), Ghusl Is Not Required; Its Ruling Is Like Other Impurities."

Hanafi Madhhab:

Ghusl Is Obligatory **Only** If Mani Exits Due To Desire, Whether Awake Or Asleep, Male Or Female. If It Exits Due To Heavy Lifting, Falling, Or Illness, Ghusl Is Not Required.

This Is Aligned With Surah Al-Ma'idah, Ayah 6:

“...If You Are In A State Of Janabah (Sexual Impurity), Then Purify Yourselves...”

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/515):
“The Hanafis Say: What Obligates Ghusl Is The Ejaculation Of Mani With Desire, Whether Asleep Or Awake. If It Exits Due To Carrying Heavy Objects Or Falling, Ghusl Is Not Required.”

There Is Consensus Among Hanafi Scholars That Ghusl Is Not Obligatory If Mani Exits Without Passing Through The Genital Area Or Without Desire.

However, There's A Disagreement:

- Abu Hanifah And Muhammad Say **Desire Is Not A Condition** For Ghusl.
- Abu Yusuf Says **Desire Is Required**.

For Example, If Someone Has A Sexual Dream With Pleasure But No Ejaculation, Does Wudu And Prays, And Later Ejaculates, Abu Hanifah And Muhammad Say He Must Perform Ghusl But Doesn't Have To Repeat The Prayer. Abu Yusuf Disagrees.

Also, If Someone Performs Ghusl After Intercourse Before Urinating, Before Walking Around, And Later Some Mani Comes Out Without Desire, Abu Hanifah And Muhammad Say Ghusl Is Still Obligatory; Abu Yusuf Says It Is Not. Scholars Favor The Opinions Of Abu Hanifah And Muhammad Because They Are More Cautious.

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/515).

Maliki Madhhab:

Similar To The Hanafi And Hanbali Views:

If Mani Exits Due To Normal Sexual Desire, Ghusl Is Obligatory.

If It Exits Due To Illness, Cold, Injury, Or External Factors Like Scratching Or Animal Movements (Without Sexual Intent), Only Wudu Is Required—Not Ghusl.

However, If An Animal's Movements Or Scratching Arouse Sexual Pleasure Leading To Ejaculation, Ghusl Becomes Obligatory.

If Someone Wakes Up And Finds Wetness On Their Body Or Clothes But Is Unsure If It's Madhiy Or Mani, They Must Perform Ghusl.

There Is Also Consensus That A Woman Does Not Have To Perform Ghusl If Male Semen Reaches Her Private Area Unless It Leads To Pregnancy.

Also, Vaginal Moisture Is Considered Pure; Washing It Is Sunnah (Recommended).

- *Reference:* Al-Fiqh Al-Islami Wa Adillatuhu (1/516).

Summary Of The Four Madhahib

There Is Consensus (Ijma) That If Mani Is Discharged With Desire, Ghusl Is Obligatory—Whether For A Man Or A Woman, Awake Or Asleep.

Imam Nawawi Has Reported This Consensus.

- **Reference:** Al-Mawsu‘Ah Al-Fiqhiyyah Al-Kuwaitiyyah (31/195):
 “The Jurists Agree That Ejaculation Makes Ghusl Obligatory; Nawawi Transmitted Ijma On This, And There’s No Difference Between Men And Women, Whether Asleep Or Awake.”
 Also Referenced: Hashiyat Ibn ‘Abidin On Al-Durr Al-Mukhtar 1/107, Hashiyat Al-Dusuqi On Al-Sharh Al-Kabir 1/136, Al-Majmu‘ By Nawawi 2/138-139, Kashshaf Al-Qina‘ 1/139, Al-Mughni 1/199.

Evidence For The Ruling:

There Is The Narration From Abu Sa‘Id Al-Khudri Where The Messenger Of Allah ﷺ Said:

“Water Is [Required] Because Of Water.”

This Was Narrated By Muslim.

(Al-Mawsu‘Ah Al-Fiqhiyyah Al-Kuwaitiyyah 31/195):

“The Hadith: *‘Indeed, Water Is [Required] Because Of Water’* Was Narrated By Muslim (1/269) From The Narration Of Abu Sa‘Id.”

Also, From The Hadith Of Umm Sulaym:

A Woman Asked The Messenger Of Allah ﷺ:

“O Messenger Of Allah, If A Woman Sees In Her Dream What A Man Sees (I.E., Experiences A Wet Dream), Does She Need To Perform Ghusl?”

The Messenger Of Allah ﷺ Replied: **“Yes, If She Sees Water (I.E., Sexual Fluid), Then She Must Perform Ghusl.”**

Umm Sulaym Said, Feeling Shy: **“Does That Really Happen?”**

The Prophet ﷺ Replied: **“Yes! From Where Does Resemblance Come? Indeed, The Man’s Fluid Is Thick And White, And The Woman’s Fluid Is Thin And Yellow, And Whichever Of Them Dominates Or Comes Forward, Resemblance Will Be From That.”**

In Another Narration, She Said: **“O Messenger Of Allah, Allah Is Not Shy Of The Truth — Does A Woman Have To Do Ghusl If She Has A Wet Dream?”**

The Prophet ﷺ Said: **“Yes, If She Sees The Fluid.”**

(Al-Mawsu‘Ah Al-Fiqhiyyah Al-Kuwaitiyyah 31/196):

“This Hadith Of Umm Sulaym Was Narrated By Muslim (1/250) In Both Wordings.”

Hanafi, Maliki, And Hanbali Schools

They Say That For Ghusl (Ritual Bath) To Become Obligatory Due To The Release Of Semen, It Must Have Exited With *Desire (Shahwah)*.

(Al-Mawsu‘Ah Al-Fiqhiyyah Al-Kuwaitiyyah 31/196):

“The Hanafis, Malikis, And Hanbalis Stipulated That The Requirement For Ghusl After Ejaculation Is That It Happens With Sexual Pleasure.

Ibn ‘Abidin Said: If It (Semen) Exits Because Of A Strike Or Heavy Load On The Back, Then There Is No Ghusl According To Us (Hanafis).

Al-Dardir (Maliki Scholar) Said: If It Exits Without Pleasure, Rather Due To Constant Dripping, Or A Strike, Or A Tremor, Or A Scorpion’s Sting, Then There Is No Ghusl.

The Malikis Explicitly Stated That If Semen Exits...”

References:

Hashiyat Ibn ‘Abidin On Al-Durr Al-Mukhtar 1/108,
 Hashiyat Al-Dusuqi On Al-Sharh Al-Kabir 1/127-128,
 Al-Majmu‘ By Al-Nawawi 2/139,
 Kashshaf Al-Qina‘ 1/139.

Also, For The Hanafis, Malikis, And Shafi‘Is,

A Condition For Ghusl Being Obligatory Is That The Semen Exits From The Man’s Front Private Part Or The Woman’s Private Part.

Al-Nawawi Says:

If Someone Kisses His Wife And Feels Semen Inside His Private Part But Holds It Back So It Does Not Come Out At That Time, And It Later Comes Out Or Does Not — There Is No Ghusl Upon Him According To Us, And This Is Also The Opinion Of The Other Scholars.

References:

Hashiyat Ibn ‘Abidin 1/107,
 Hashiyat Al-Dusuqi 1/126-127,
 Al-Majmu‘ 2/140.

Hanbali View:

They Do Not Require Ghusl Just Because Semen Has Moved Inside; Rather, Ghusl Becomes Obligatory If It Actually Exits.

So, If Someone Holds His Private Part And Later The Semen Exits, Then Ghusl Is Obligatory On Him.

Reference:

Kashshaf Al-Qina‘ 1/141.

Reason For The Difference Of Opinion

The Reason For This Difference Is Found In Surah Al-Ma’idah, Verse 6, Where Allah Says:

“And If You Are In A State Of Janābah (Sexual Impurity), Then Purify Yourselves.”

(وَإِنْ كُنْتُمْ جُنُبًا فَاطَّهَّرُوا)

The Difference Arises Over The Meaning Of The Word **Janābah** (Sexual Impurity).

Janābah Refers Specifically To The State Of Ritual Impurity That Results After Sexual Intercourse.

This Means: When Intercourse Takes Place, Both The Man And The Woman Become Junub (In A State Of Janābah).

And Since Intercourse Involves Sexual Desire (Shahwah), The Ruling Is That If Someone Experiences This State (Even In A Dream), Ghusl (Ritual Bath) Becomes Obligatory If There Is Evidence Of Desire.

Therefore, **If Someone Sees Something In Their Dream That Leads To Sexual Pleasure**, Then Ghusl Is Obligatory.

But **If There Is No Sexual Pleasure**, Ghusl Is **Not** Obligatory — Because The Word Janābah Only Applies When There Has Been Intercourse.

On The Other Hand, Some Scholars Say That **Regardless Of Whether Sexual Pleasure Was Felt Or Not, If Someone Wakes Up And Finds Wetness (Fluid) On Their Clothes Or Body, Then Ghusl Becomes Obligatory.**

Relevant Hadith Reports

Let's Look At The Related Narrations:

In **Abu Dawud, Vol. 1, P. 95, Hadith 236,**
Aisha (May Allah Be Pleased With Her) Narrates:

“I Asked The Messenger Of Allah ﷺ: If A Man Finds Wetness On His Clothes But Does Not Remember Seeing A Dream, Should He Perform Ghusl?”

The Prophet ﷺ Replied: **“Yes, He Should Perform Ghusl.”**

I Asked: “And If A Man Thinks He Saw A Dream But Finds No Wetness On His Clothes?”

He ﷺ Replied: **“Then There Is No Ghusl Upon Him.”**

Umm Sulaym Asked: **“Does The Woman Have To Perform Ghusl If She Sees That (I.E., If She Experiences This)?”**

He ﷺ Said: **“Yes, Because Women Are The Counterparts Of Men.”**

Arabic Source:

(حَدَّثَنَا قُتَيْبَةُ بْنُ سَعِيدٍ... إلخ)

(Note: This Hadith Chain Is Considered Weak — *Isnād Da‘īf*.)

Evaluation Of The Narrator (Abdullah Al-‘Umari)

The Narrator **Abdullah Al-‘Umari** Has Differing Evaluations Among Scholars:

1. **Imam Khalil** Says: He Is Trustworthy (*Thiqah*), But Bukhari And Muslim Did Not Take His Narrations Because Of Weakness In His Memory. (If His Memory Were So Bad That He Was Considered *Da‘īf* (Weak), Khalil Himself Would Have Called Him Weak, But He Didn't.)
→ *Ikmāl Tadhīb Al-Kamāl*, Vol. 8, P. 75
2. **Abdur Rahman Ibn Mahdi** Said When Asked About This Narrator: There Is No Problem With Him.
→ *Ikmāl Tadhīb Al-Kamāl*, Vol. 8, P. 75
3. **Ibn ‘Adi** Says: He Is Righteous In Hadith, And There Is No Major Issue In His Narrations.
→ *Al-Kāmil Fī Al-Ḍu‘afā’*, Vol. 5, P. 233
4. **Yahya Ibn Ma‘īn** Says: He Is Truthful (*ṣadūq*).
→ *Al-Kashshāf*, Vol. 3, P. 159
5. **Sawīlī** Says: He Is Truthful (*ṣadūq*).
→ *Al-Kashshāf*, Vol. 3, P. 159
6. **Ahmad Ibn Hanbal** Says: There Is No Problem With His Hadith.
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388
7. **Ahmad Ibn Yunus** Says: He Is *Thiqah* (Trustworthy).
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388

8. **Imam Al-‘Ajli** Says: There Is No Problem With His Hadith.
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388
9. **Ya‘Qūb Ibn Shaybah** Included His Hadith In His *Musnad* And Said: It Is Hasan (Good).
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388
10. **Ibn Khalafūn** Listed Him In His Book *Al-Thiqāt* (The Trustworthy Narrators).
11. **Ibn Qaṭṭān Al-Fāsī** Says: Some Scholars Called Him *Thiqah*, Others Said *Da‘īf*, But Those Who Called Him *Da‘īf* Did Not Do So Because He Was Untrustworthy — It Was Only Due To His Memory Issues.
→ *Ikmāl Tadhīb Al-Kamāl*, Vol. 8, P. 75
12. **Ibn ‘Ammār Al-Mawṣilī** Says: Except For Ibn Qaṭṭān, No One Has Outright Rejected His Hadith.
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388
13. **Ahmad Ibn Yunus** Says: If You Had Seen Him, You Would Definitely Call Him *Thiqah*.
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388
14. **Ya‘Qūb Ibn Sufyān** Says: I Heard Scholars (Both Hadith Experts And Jurists) Say That Only The *Rāfiḍah* (Shiites) Call Abdullah Al-‘Umari *Da‘īf*.
→ *Ikmāl Tadhīb Al-Kamāl*, Vol. 8, P. 75
15. **Imam Al-‘Ajli** Says: There Is No Flaw In His Hadith.
→ *Ikmāl Tadhīb Al-Kamāl*, Vol. 8, P. 75
16. **Ya‘Qūb Ibn Shaybah** Says: His Hadith Chain Is Hasan (Good).
→ *Tahdhīb Al-Tahdhīb*, Vol. 2, P. 388

Further Scholarly Opinions

- **Imam Al-Hākim** Included His Narration In *Al-Mustadrak* (No. 4356) And Said: “This Hadith Is Upon The Conditions Of Bukhari And Muslim, And They Accepted It As Corroborating Evidence (*Shawāhid*).”
- **Ibn ‘Asākir** Also Said It Matches The Conditions Of Bukhari And Muslim.
→ See *Al-I‘lām Bi-Sunan Al-Salāt Wa-L-Salām Bin Sharḥ Ibn Mājah*, Vol. 1, P. 271
- **Muhammad Ibn ‘Ali** Called This Hadith *Hasan* (Good).
→ *‘Awn Al-Ma‘būd Sharḥ Sunan Abī Dāwūd*, Vol. 1, P. 408
- **Ibn Rajab Al-Hanbali** Says: His Most Authentic Narrations Are Those Transmitted From Nāfi‘, Who Narrated From Ibn ‘Umar.
→ *Fath Al-Bārī Sharḥ Ṣaḥīḥ Al-Bukhārī Li Ibn Rajab*, Vol. 6, P. 163
- **Ibn Ḥajar** Says This Chain Is Stronger Than The Previous One, Referring To Hadith No. 2089 In Ibn Mājah.
→ *Fath Al-Bārī Sharḥ Ṣaḥīḥ Al-Bukhārī*, Vol. 9, P. 57
- **Ibn Al-Qayyim** Also Classified It As *ṣaḥīḥ* (Authentic).
→ *Tuḥfat Al-Aḥwadhī Sharḥ Sunan Al-Tirmidhī*, Vol. 1, P. 47
- **Mubārakpūrī** Likewise Classified It As *ṣaḥīḥ*.
→ *Tuḥfat Al-Aḥwadhī Sharḥ Sunan Al-Tirmidhī*, Vol. 1, P. 47
- **Ibn Sakan** Said It Is Authentic (*ṣaḥīḥ*).
→ *Al-Talkhīṣ Al-Ḥabīr*, Vol. 1, P. 258
- **Imam Al-Bayhaqī** Included It In *Sunan Al-Kubrā* (No. 1773) And Called It *ṣaḥīḥ*.
- **Ibn Al-Mulaqqin** Also Classified It As *ṣaḥīḥ*.
→ *Al-Badr Al-Munīr*, Vol. 3, P. 420
- **Abū Dāwūd** Declared It Authentic In *Sunan Bayhaqī Kubrā* Regarding The Hadith Of Raising The Hands (*Raf‘ Al-Yadayn*) — Narrated By The Same Narrator.
→ *Naṣb Al-Rāyah*, Vol. 1, P. 407
- **Imam Al-Dāraqutnī** Declared It Authentic In *Al-‘Ilal Al-Muwāriyat Li-L-Aḥādīth Al-Nabawīyyah*, Vol. 13, P. 13

- **Abū Zur‘Ah** Also Considered This Chain Authentic (*ṣaḥīḥ*) In His Own Book, And Al-Bayhaqī Quoted It (No. 3246) Saying It Is *Mawqūf* And *ṣaḥīḥ*, Using This Same Chain With Abdullah Al-‘Umari.

There Is An Existing Chain (Sanad) Of This Hadith, Recorded In Abu Dawood 237, Whose Meaning Is The Same As The Previous Hadith.

Arabic Text:

حَدَّثَنَا أَحْمَدُ بْنُ صَالِحٍ ، قَالَ : ثَنَا عَنَيْسَةُ ، ثَنَا يُونُسُ ، عَنِ ابْنِ شِهَابٍ ، قَالَ : قَالَ عُرْوَةُ ، عَنْ عَائِشَةَ ، أَنَّ أُمَّ سُلَيْمٍ الْأَنْصَارِيَّةَ وَهِيَ أُمُّ أَنَسِ بْنِ مَالِكٍ قَالَتْ : يَا رَسُولَ اللَّهِ ، إِنَّ اللَّهَ لَا يَسْتَحْيِي مِنَ الْحَقِّ ، أَرَأَيْتِ الْمَرْأَةَ إِذَا رَأَتْ فِي النَّوْمِ مَا يَرَى الرَّجُلُ ، تَغْتَسِلُ أَمْ لَا ؟ قَالَتْ عَائِشَةُ : فَقَالَ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ : نَعَمْ ، فَلَتَغْتَسِلُ إِذَا وَجَدَتْ الْمَاءَ ، قَالَتْ عَائِشَةُ : فَأَقْبَلْتُ عَلَيْهَا فَقُلْتُ : أَفَ لَكَ ، وَهَلْ تَرَى ذَلِكَ الْمَرْأَةَ ؟ فَأَقْبَلَ عَلَيَّ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَقَالَ : تَرَبُّثَ بَيْمِنِكَ يَا عَائِشَةُ ، وَمِنْ أَيْنَ يَكُونُ الشَّبَهُ ؟ قَالَ أَبُو دَاوُدَ : وَكَذَا رَوَى الرَّبِيعِيُّ وَعَقِيلٌ وَيُونُسُ وَابْنُ أَخِي الزُّهْرِيِّ ، عَنِ الزُّهْرِيِّ ، وَابْنُ أَبِي الْوَزِيرِ عَنْ مَالِكٍ ، عَنِ الزُّهْرِيِّ ، وَوَافَقَ الزُّهْرِيُّ مُسَافِعَ الْحَجَبِيِّ ، قَالَ : عَنْ عُرْوَةَ ، عَنْ عَائِشَةَ ، وَأَمَّا هِشَامُ بْنُ عُرْوَةَ ، فَقَالَ : . عَنْ عُرْوَةَ ، عَنْ زَيْنَبَ بِنْتِ أَبِي سَلَمَةَ ، عَنْ أُمِّ سَلَمَةَ أَنَّ أُمَّ سُلَيْمٍ جَاءَتْ إِلَى رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ

(Sahih Li Zatihi)

Hadith Reference (Takhrij Al-Hadith)

This Hadith Is Reported By:

- Malik In *Muwatta* (1/235, No. 584, Book Of Prayer, Chapter: Deeds In The Mosque)
- Al-Bayhaqi In *Sunan Al-Kubra* (2/221, Nos. 3244, 3245, 3246, Book Of Prayer, Chapter: One Who Remembers A Prayer While In Another Prayer)
- Al-Daraqutni In *Sunan* (2/295-296, Nos. 1559, 1560)
- Ibn Hajar In *Al-Matalib Al-Aliyah* (3/824, No. 445)
- ‘Abdur Razzaq In *Al-Musannaf* (2/5, No. 2254)
- Al-Tahawi In *Sharh Ma‘Ani Al-Athar* (1/467, Nos. 2683-2685)
- Al-Tabarani In *Al-Awsat* (5/218, No. 5132)

Explanation (Sharah Al-Hadith)

If Someone Sees Wetness (Discharge) On Their Clothes But Does Not Remember Having Seen A Dream, The Prophet ﷺ Said **They Should Still Perform Ghusl (Ritual Bath)**. On This Matter, The Scholars (Fuqaha) Are Agreed That **The Ruling Is The Same For Both Men And Women**. Imam Nawawi Also Structured A Chapter Confirming This Ruling — That Ghusl Becomes Obligatory After A Wet Dream If There Is Any Wetness Present.

Sahih Muslim Hadith 318

Aisha (رضي الله عنها) Asked The Prophet ﷺ:

“O Messenger Of Allah ﷺ, Does A Woman Need To Perform Ghusl If She Sees (Discharge) After A Wet Dream?”

The Prophet ﷺ Replied: **“Yes.”**

Arabic Text:

حَدَّثَنَا إِبْرَاهِيمُ بْنُ مُوسَى الرَّازِيُّ ، وَسَهْلُ بْنُ عُثْمَانَ ، وَأَبُو كُرَيْبٍ ... عَنْ عَائِشَةَ أَنَّ امْرَأَةً قَالَتْ لِرَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ : هَلْ تَغْتَسِلُ الْمَرْأَةُ إِذَا اخْتَلَمَتْ وَأَبْصَرَتْ الْمَاءَ ؟ فَقَالَ : نَعَمْ

Explanation (Sharah Al-Hadith)

In This Hadith, Umm Sulaym (رضي الله عنها) Asked The Messenger Of Allah ﷺ About The Matter Of **Women Experiencing Wet Dreams**, And The Prophet ﷺ Clarified That **Women Can Experience Nocturnal Emissions (Ihtilam)**.

Usually, *Ihtilam* Refers To When Someone Dreams Something Sexual And Has A Discharge. But Linguistically, It Simply Means Seeing Such Dreams; Emission Is Not Necessary.

Thus, For Women Too, If They Experience A Dream And There Is Actual Discharge From The Private Parts, **Ghusl Becomes Obligatory**.

If Discharge Happens Even Without Remembering A Dream, Ghusl Is Still Obligatory.

However, If One Only Has A Dream But **No Discharge**, Then Ghusl Is Not Obligatory.

During The Time Of The Companions, There Was Some Difference Of Opinion Because It Was Commonly Believed That Women Do Not Generally Experience Wet Dreams Or Discharge, But Some Women Indeed Did, Which Is Why After Islam Came, They Asked The Prophet ﷺ For Clarification.

This Also Teaches Us That **Asking Religious Questions Should Not Be Held Back Due To Shyness** And That One Must Be Careful And Attentive About Learning Islamic Rulings.

At That Time, Because The Prophet ﷺ Was Present, The Women Would Go Directly To Him, As No One Knew The Shari‘Ah Better Than The Messenger ﷺ Himself.

Today, Since Knowledge Is Widely Spread And Both Men And Women Know Islamic Rulings, **Women’s Private Issues Should Preferably Be Asked From Female Scholars (‘Alima)**. Generally, It Is Not Appropriate For A Woman To Ask A Non-Mahram Male Scholar About Intimate Matters Unless There Is No Other Option.

Imam Qurtubi Al-Maliki’s Commentary

Imam Qurtubi Explains In His Commentary That **Umm Sulaym** Asked The Prophet ﷺ:

“If Women See In Their Sleep What Men See (I.E., Sexual Dreams), Is Ghusl Obligatory Upon Them?”

The Prophet ﷺ Replied: **“Yes, If They See (Discharge).”**

Abu ‘Umar (Ibn ‘Abd Al-Barr) Says:

We Have Mentioned The Various Chains Of Narration Of Ibn Shihab’s Hadith In This Matter, Including Those Who Follow Malik In The *Mursal* (Disconnected) Report, And Those Who Narrate From Malik And Differ From His *Muwatta*.

Ibn Shihab Reports From One Of His Companions, Who Reports From ‘Urwah, Who Reports From Aisha (رضي الله عنها), And This Is Also Narrated By Musafi‘ From ‘Urwah, And From Aisha (رضي الله عنها).

As For Hisham Ibn ‘Urwah’s Narration, It Is Connected (*Musnad*). Malik Narrates From Hisham Ibn ‘Urwah, Who Narrates From His Father (‘Urwah Ibn Zubayr), Who Narrates From Zaynab Bint Abu Salamah, Who Narrates From Umm Salamah (Mother Of The Believers), Who Said: Umm Sulaym (The Wife Of Abu Talha Al-Ansari) Went To The Messenger Of Allah ﷺ And Asked:

“O Messenger Of Allah ﷺ, Does A Woman Have To Perform Ghusl If She Experiences *Ihtilam* (A Sexual Dream)?”

He Replied: **“Yes, If She Sees (Discharge).”**

This Hadith And The Previous One Show That **If A Woman Experiences Discharge Due To A Dream, Ghusl Is Obligatory.**

The Ruling For Men Is The Same — **If Semen Is Discharged**, Ghusl Is Required.

I Have Not Found Any Scholarly Disagreement On This Issue, Alhamdulillah.

Most Companions Narrated From Ibn Shihab That This Is The Ruling: **If Discharge Is Seen, Ghusl Is Necessary.**

The Same Ruling Is Found In The Hadith Of Anas Ibn Malik And Umm Salamah (رضي الله عنهما) Regarding Umm Sulaym’s Incident, As Well As In The Narration Of Khawla Bint Hakim.

The Scholars Have **Consensus (Ijma‘)** That When Fluid Comes Out (Described As *الدافق Dafiq*, Meaning Flowing Or Spurting Fluid), Whether From Men Or Women, Ghusl Becomes Obligatory.

(Qurtubi Says) This Is Absolutely Clear, And The Full Chain Of Narrators Is Detailed In *Al-Tamhid*.

It Is Also Understood From This That **Not All Women Experience Wet Dreams**, Which Is Why Umm Salamah And Aisha (رضي الله عنهما) Initially Expressed Surprise At This Question — Because It Was Rare Among Women.

(*Al-Istidhkar*, Vol. 1, P. 292)

Other Commentators Who Explained This Hadith

- Ibn ‘Abd Al-Barr In *Al-Tamhid*, Vol. 8, P. 337
- Al-Mughni In *Sharh Sunan Ibn Majah*, Vol. 1, P. 779
- Ibn Rajab Al-Hanbali In *Fath Al-Bari Sharh Sahih Al-Bukhari*, Vol. 1, P. 341
- Imam ‘Ayni In *Sharh Abu Dawood*, Vol. 1, P. 526
- Jalal Al-Din Al-Suyuti In *Sharh Jami‘ Al-Tirmidhi*
- Mulla Ali Al-Qari In *Al-Mirqat Sharh Mishkat*, Vol. 2, P. 428
- Al-Shawkani In *Nayl Al-Awtar*, Vol. 1, P. 280
- Mubarakpuri In *Miqat Al-Mafatih Sharh Mishkat*, Vol. 2, P. 139

In The Same Way, Sahih Bukhari Hadith 130 — Umm Sulaym Asks:

“O Messenger Of Allah ﷺ, If A Man Sees (A Wet Dream) And If A Woman Sees It, Is There A Ruling?”

I (Umm Sulaym) Said, “I Performed Ghusl (Ritual Bath).”

The Messenger Of Allah ﷺ Replied, “Yes.”

Arabic Narration:

أخبرنا كثير بن عبيد ، عن محمد بن حرب ، عن الزبيدي ، عن الزهري ، عن عروة أن عائشة رضي الله عنها أخبرته أن أم سليم كلمت رسول الله صلى الله عليه وسلم وعائشة جالسة ، فقالت له : يا رسول الله ، إن الله لا يستحيي من الحق ، أرأيت المرأة ترى في النوم ما يرى الرجل ، أفغتسل من ذلك ؟ فقال لها رسول الله صلى الله عليه وسلم : نعم . قالت عائشة : فقلت لها : أف لك ! أوترى المرأة ذلك ؟ فالتفت إلي رسول الله صلى الله عليه وسلم فقال : تربت يمينك ، فمن أين يكون الشبه . ؟

(Declared **Sahih Li Zatihi** — Authentic In Itself)

And The Same Narration Is Reported From:

Khawla Bint Hakim (Female Companion):

Hadith References (Takhrij):

- Al-Nasa'i In “Al-Mujtaba” (1/63) No. (198/4)
- Ibn Majah In “Sunan” (1/380) No. (602)
- Ahmad In “Musnad” (12/6638) No. (27953), (27954)
- Al-Darimi In “Musnad” (1/589) No. (789)
- Al-Tabarani In “Al-Kabir” (24/240) No. (610–613)
- Al-Tabarani In “Al-Awsat” (1/204) No. (652)
- Ibn Abi Shaybah In “Musannaf” (1/502) No. (885)
- Al-Nasa'i In “Al-Kubra” (1/154) No. (202)

Abdullah Ibn Umar

Hadith References:

- Ahmad In “Musnad” (3/1217) No. (5740)
- Abu Ya'La In “Musnad” (10/132) No. (5759)

Sahla Bint Suhail Ibn Amr (Female Companion)

Hadith References:

- Al-Tabarani In “Al-Kabir” (24/292) No. (743)
- Al-Tabarani In “Al-Awsat” (8/276) No. (8625)

Abu Huraira

Reference:

- Al-Tabarani, Awsat Vol. 2, Page 373, Hadith 2267

Abdullah Ibn Amr Ibn Al-‘As

References:

- Ibn Abi Shaybah In “Musannaf” (1/503) No. (886)
- Ibn Hajar In “Al-Matalib Al-‘Aliyah” (2/505) No. (193)

Mujahid Ibn Jabir Al-Makhzumi (Tabi‘I)

References:

- Ibn Abi Shaybah In “Musannaf” (1/504) No. (888, 889)

Ata Ibn Abi Rabah

Reference:

- Ibn Abi Shaybah In “Musannaf” (1/504) No. (889)

Salim Ibn Abdullah

Reference:

- Ibn Abi Shaybah In “Musannaf” (1/504) No. (889)

Amir Al-Sha‘Bi

Reference:

- Ibn Abi Shaybah In “Musannaf” (1/504) No. (891)

Dhar Ibn Abdullah Al-Muhribi

Reference:

- Ibn Abi Shaybah In “Musannaf” (1/504) No. (892)

Ibrahim Al-Nakha‘I

Reference:

- Ibn Abi Shaybah In “Musannaf” (1/504) No. (892)

Ali Ibn Abi Talib

References:

- Ibn Abi Shaybah In “Musannaf” (1/504–505) No. (893–895)
- ‘Abd Al-Razzaq In “Musannaf” (1/284) No. (1097)

Mu‘Awyah Ibn Qurrah

Reference:

- Ibn Abi Shaybah In “Musannaf” (1/505) No. (896)

Urwah Ibn Al-Zubayr (Tabi‘I)

Reference:

- ‘Abd Al-Razzaq In “Musannaf” (1/284) No. (1095)

If A Woman Sees A Dream (I.E., Wet Dream), Is Ghusl Obligatory On Her?

There Is Consensus Among The Jurists (Fuqahā’) On This Issue — The Four Imams (Al-A’immah Al-Arba‘Ah) Are All In Agreement. However, In The Early Generations (Salaf), There Was Some Disagreement On This Matter. At That Time, Some People Believed That Ejaculation (The Discharge Of Seminal Fluid) After Seeing Something In A Dream Was Specific To Men And Did Not Occur In Women. Even Ḥaḍrat ‘Ā’ishah (May Allah Be Pleased With Her) Used To Hold This View. But Later, Consensus (Ijmā’) Was Established On This Issue, And The Scholars Recorded This Consensus.

As For Those Who Used To Say That If A Woman Discharges Semen (Manī), Then Ghusl Is Not Obligatory Upon Her — Among Them Was Ḥaḍrat Ibrāhīm Al-Nakha‘ī, Who Was One Of The Tābi‘īn And A Companion Of ‘Abdullāh Ibn Mas‘ūd.

In "**Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid**" (2/538) And "**Al-Majmū‘**" By Al-Nawawī (2/139), It Is Mentioned:

“The Author Of Al-Bayān Narrated From Al-Nakha‘ī That He Said: ‘Ghusl Is Not Obligatory Upon A Woman For The Discharge Of Semen.’ However, I [Al-Nawawī] Do Not Believe This Is Authentically Proven From Him. And Even If It Is Proven, Then It Is Refuted (Maḥjūj) By The ḥadīth Of Umm Salamah. Imām Abū Ja‘Far Muḥammad Ibn Jarīr Al-Ṭabarī Transmitted The Consensus (Ijmā‘) Of The Muslims On The Obligation Of Ghusl For Ejaculation (Inzāl Al-Manī) Whether From A Man Or A Woman.”

However, Regarding This Narration From Al-Nakha‘ī, Al-Nawawī And Others Have Said That It Is Not Authentically Established From Him, Because Many Scholars Have Reported Consensus On This Issue — Like Ibn Jarīr Al-Ṭabarī Who Said That There Is Ijmā‘ On The Ruling. If A Great Tābi‘ī Like Ibrāhīm Al-Nakha‘ī Had Disagreed On Such A Matter, The Scholars Would Have Known Of It.

Many Scholars Have Written That Even If Such A View Existed, The Majority (Jumhūr) Say That Men And Women Are Equal In This Ruling.

In "**Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid**" (2/539), It Is Stated:

“The Jumhūr Are In Agreement That The Woman Is Equal To The Man In Experiencing A Wet Dream, Due To The Established ḥadīth Of Umm Salamah In Which She Said: ‘O Messenger Of Allah, Does A Woman See In A Dream What A Man Sees?’”

I (The Author) Do Not Agree With The Musannif’s Wording That The *Jumhūr* Say Men And Women Are Equal In This — Rather, Consensus (Ijmā‘) Has Already Been Reached On This Matter. So How Can It Then Be Said That Only The Majority Say This?

And Regarding An Issue In Which The Four Imams Are Unanimously Agreed, With No Known Dissent, And Without Even Repetition Of Differing Reports — We Have Never Found That Anyone Who Opposed This Had Even A Traceable Or Reliable Proof. And Allah Knows Best.

And We Have Already Explained In Detail The Views Of The Four Imams On This Issue Earlier.

Ghusl Is Also Obligatory In The Case Of Menstruation (Ḥayḍ) And Postpartum Bleeding (Nifās)

There Is No Difference Of Opinion On This Matter — It Is Agreed Upon That When A Woman Experiences **ḥayḍ (Menstruation)**, Performing **Ghusl (Ritual Bath)** Becomes Obligatory Upon Her. Similarly, When A Woman Goes Through **Nifās (Postpartum Bleeding)**, Ghusl Becomes Obligatory Upon Her As Well.

Ḥayḍ Refers To The Blood That A Woman Sees Monthly During Her Specific Days.

Nifās Refers To The Blood That Comes At The Time Of Childbirth.

The Detailed Rulings Concerning These Topics Will Be Explained In The Appropriate Section, In Shā’ Allāh. But Since The Current Discussion Is About Situations Where **Ghusl Becomes Obligatory**, This Much Has Been Clarified Here.

Ḥanafī Madhhab:

According To The **Ḥanafī School**, Ghusl Is Obligatory In Cases Of ḥayḍ And Nifās.

See: **Ḥāshiyat Ibn ‘Ābidīn (Radd Al-Muḥtār)** (1/165):

"The Reference Here Is To Connecting The Obligation Of Ghusl To The Cessation (Inqitā‘) Of ḥayḍ And Nifās, Meaning That Ghusl Becomes Obligatory Upon The End Of Menstruation Or Postpartum Bleeding. This Is Distinct From Other Cases Where Ghusl Becomes Obligatory Due To Emission Of Semen, Sexual Intercourse, Or Awakening To Find Discharge. The Obligation Here Is Linked To A Condition (Sharṭ), Not Necessarily To A Direct Cause (Sabab), Which In This Case Is The Mentioned States Like ḥayḍ And Nifās."

Mālikī Madhhab:

According To The **Mālikī School**, Ghusl Is Obligatory In The Cases Of ḥayḍ And Nifās.

See: **Al-Sharḥ Al-Kabīr By Al-Dardīr With Ḥāshiyat Al-Dusūqī** (1/130):

"Ghusl Is Obligatory Due To ḥayḍ And Nifās. Nifās Refers To The Uterine Bleeding Accompanying Childbirth, Hence The Specification: 'Blood With Childbirth.' It Is Preferred To State The Obligation Of Ghusl For Nifās Whether There Is Blood Or Not — This Is The Relied Upon View. As For The Cessation Of Blood, It Is A Condition For The Validity Of Ghusl."

Shāfi‘ī Madhhab:

According To The **Shāfi‘ī School**, Ghusl Is Obligatory Due To ḥayḍ And Nifās.

See: **Mughnī Al-Muḥtāj By Al-Shirbīnī** (1/212):

"Among The Five Things That Necessitate Ghusl... The Second Is ḥayḍ, Based On The Verse:

{فَاعْتَرِلُوا الْبَسَاءَ فِي الْمَحِيضِ} [Al-Baqarah: 222]

‘Keep Away From Women During Their Menstruation.’

Also Based On The Narration In Al-Bukhārī: The Prophet ﷺ Said To Fāṭimah Bint Abī Ḥubaysh:

‘When Your Menstruation Begins, Stop Praying. When It Ends, Perform Ghusl And Then Pray. ’"

Ḥanbalī Madhhab:

According To The **Ḥanbalī School**, Ghusl Is Obligatory Due To ḥayḍ And Nifās.

See: **Kashshāf Al-Qinā‘ By Al-Buhūtī** (1/146):

"The Fifth Thing That Makes Ghusl Obligatory Is The Occurrence Of ḥayḍ. Based On The Statement Of The Prophet ﷺ To Fāṭimah Bint Abī Ḥubaysh:

'When It Stops, Perform Ghusl And Pray.' (Agreed Upon By Al-Bukhārī And Muslim)

The Prophet Also Gave Similar Instructions To Umm Ḥabībah, Sahlah Bint Suhayl, And Ḥammah, Among Others.

This Is Further Supported By The Verse:

{فَإِذَا تَطَهَّرْنَ فَأْتُوهُنَّ} [Al-Baqarah: 222]

'And When They Have Purified Themselves (I.E., Performed Ghusl), Then Go To Them.'

This Implies That The Husband Is Not Allowed To Approach The Wife Before She Performs Ghusl, Indicating Its Obligation.

The Obligation Is Tied To The Occurrence Of Bleeding, While Cessation (Inqitā') Is A Condition For Its Validity. The Statement Of Al-Khiraqī Also Implies That Cessation Is Required, Which Is Supported By The ḥadīths.

The Practical Implication Of The Scholarly Disagreement Becomes Clear In The Case Where A Menstruating Woman Dies Before The Bleeding Ends."

The Ruling Of Semen (Mani) Discharge After Ghusl (Major Ritual Bath)

There Is A Difference Of Opinion Among The Jurists (Fuqahā) Regarding Whether One Is Obligated To Repeat Ghusl If Semen Is Discharged After Having Already Performed Ghusl.

Hanafi Madhhab:

According To The Hanafi School, If Someone Discharges Semen After Ghusl, And That Discharge Occurred After Sleeping, Urinating, Or Walking A Considerable Distance (I.E., Any Of These Actions Were Done *Before* The Ghusl), Then There Is No Obligation To Repeat The Ghusl.

However, If None Of These Actions Were Done Before Ghusl, And Semen Is Discharged Afterward, Then According To Imām Abū Ḥanīfah And Muḥammad, Repeating Ghusl Is Obligatory. But According To Abū Yūsuf, It Is Not Obligatory.

Al-Mawsū'ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/197):

"The Ḥanafis Say: If Semen Comes Out After Ghusl, And This Happens After Sleep, Urination, Or Excessive Walking, Then Ghusl Is Not Obligatory By Consensus. But If Semen Comes Out Without Lust Before Any Of These Actions (Sleep, Urination, Walking), Then According To Abū Ḥanīfah And Muḥammad, Ghusl Must Be Repeated. This Is In Contrast To The Opinion Of Abū Yūsuf."

Refer Also To *Ḥāshiyat Ibn 'Ābidīn* (1/108) And *Fath Al-Qadīr* (1/43).

Māliki Madhhab:

According To The Māliki School, If Someone Experiences Lust (Sexual Arousal) From Something Other Than Intercourse—Such As Kissing, Fondling, Or Touching The Body—And Semen Is Later Discharged, Then Ghusl Is Obligatory Again, Even If The Person Had Already Done Ghusl Before The Discharge. This Is Because The First Ghusl Did Not Align With The Real Cause (Semen Discharge).

However, If The Lust Occurred During Intercourse Without Ejaculation, And Ghusl Was Done, And Then Semen Discharged Afterward, Then Repeating Ghusl Is Not Necessary. This Is Because A Single State Of Major Impurity Only Requires A Single Ghusl. In That Case, Only Wudu Would Be Required.

Al-Mawsū‘ Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/197):

"The Mālikis Said: If The Lust Is Due To Non-Intercourse (Like Fondling), Then One Must Repeat Ghusl Upon Semen Discharge, Even If Ghusl Was Done Before. But If The Lust Was Due To Intercourse Without Ejaculation, Followed By Ghusl, Then Semen Discharge After That Does Not Require Another Ghusl—Only Wudu."

Refer To *Sharḥ Al-Kharshī ‘Ala Mukhtaṣar Khalīl* (1/163) And *Ḥāshiyat Al-Dusūqī* (1/127).

Shāfi‘ī Madhhab:

According To The Shāfi‘ī School, The Ruling Is Absolute: If Semen Is Discharged At Any Time After Ghusl—Even Shortly After—It Necessitates A New Ghusl, Regardless Of Whether One Had Urinated After The First Discharge Or Not.

Al-Mawsū‘ Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/198):

"The Shāfi‘īs Say: If A Person Ejaculates, Performs Ghusl, And Then Semen Comes Out Again Shortly After, He Must Repeat Ghusl—Whether Or Not He Urinated After The Initial Ejaculation. This Is Based On The ḥadīth Of The Prophet ﷺ: '*Water (Ghusl) Is Required Because Of Water (Ejaculation)*,' Without Distinction. Because Semen Discharge Is A Type Of Impurity (ḥadath), It Breaks Purification Like Urination Or Intercourse."

Refer To *Al-Majmū‘ Sharḥ Al-Muhadhdhab* By Imām Al-Nawawī (2/139–140).

Ḥanbalī Madhhab:

According To The Ḥanbalī School, If Semen Is Discharged After Performing Ghusl, Then Another Ghusl Is Not Required. They Cite The Fatawa Of The Companions To Support This, Stating That The Semen Discharge That Occurs After Ghusl Is Not Due To New Arousal But Is A Continuation Of The Previous Condition. Thus, Wudu Is Sufficient.

Al-Mawsū‘ Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/198):

"The Ḥanbalis Say: If Semen Comes Out After Ghusl, Repeating Ghusl Is Not Required. Sa‘īd Narrated From Ibn ‘Abbās (Raḍiyallāhu ‘Anhu) That He Was Asked About Someone In A State Of Janābah Who Discharged Something After Ghusl. He Replied: *Let Him Do Wudu*. Imām Aḥmad Narrated The Same From ‘Alī (Raḍiyallāhu ‘Anhu). The Reasoning Is That It Is The Same Ejaculation For Which Ghusl Was Already Performed, So Just Like A Single Ejaculation Done In Stages Needs One Ghusl, Here Too, Only One Ghusl Is Needed. It Is Similar To Semen Coming Out Due To Cold, Not Lust, And Therefore Wudu Suffices."

Refer To *Kashshāf Al-Qinā‘* (1/142).

Companions’ (Ṣaḥābah) Fatwas On This Issue – Collected By Ibn Abī Shaybah:

1. **Narration 1490 – ‘Alī (Raḍiyallāhu ‘Anhu) Said:**

"He Should Do Wudu."
(Musnad)

2. **Narration 1491 – ‘Abdullāh Ibn ‘Abbās (Raḍiyallāhu ‘Anhumā) Said:**

"He Should Do Wudu."

(Narrators Are Trustworthy)

3. **Narration 1492 – Sa‘īd Ibn Jubayr Said:**

"He Should Do Wudu."

(Narrators Are Trustworthy)

4. **Narration 1493 – Imām Al-Zuhrī Said:**

"For Both Men And Women, If Something Comes Out After Ghusl, They Should Wash Their Private Parts And Do Wudu."

(Authentic In And Of Itself)

5. **Narration 1494 – Imām Al-Ḥasan Al-Baṣrī Said:**

"If The Man Had Urinated Before Ghusl, Then No Need To Repeat Ghusl. But If He Had Not Urinated And Semen Came Out After Ghusl, Then He Must Repeat Ghusl."

(Narrators Are Trustworthy)

6. **Narration 1495 – Imām Shu‘bah Ibn Al-Ḥajjāj Reported Asking Both Ḥammād Ibn Abī Sulaymān And Al-Ḥakam Ibn ‘Uṭaybah About A Man Who Had Taken Ghusl And Then Something Came Out Of His Penis. They Both Said:**

"He Should Wash His Private Part."

(Narrators Are Trustworthy)

7. **From Jābir Ibn Zayd – Companion Of Ibn ‘Abbās – Said:**

"If Something From A Man’s Semen Comes Out Of A Woman After Ghusl, Then She Must Do Wudu."

Narrated By ‘Abdullāh Ibn Al-Mubārak.

(Same Narration Confirmed Twice)

Note:

Some Of The Narrations Regarding This Issue Are Weak (ḍa‘īf), But There Is Consensus Among The Hadīth Scholars And Scholars Of Legal Principles (Uṣūliyyīn) That If A Weak Narration Supports An Established And Sound Ruling Based On Authentic Narrations, Then It Is Permissible To Act Upon It—**Especially When It Conforms With The Spirit And Rules Of Sharī‘ Ah.** And In This Matter, **The Reports From The Companions Are Strong And Decisive (Muḥkam).**

Is Mental Capacity And Puberty A Condition For Ghusl Becoming Obligatory After Intercourse?

There Is A Difference Of Opinion Among The Jurists (Fuqahā') On Whether Sound Mental Capacity (I.E., Comprehension) And Puberty Are Conditions For Ghusl (Ritual Bath) To Become Obligatory.

Ḥanafī Madhhab:

According To The Ḥanafīs, If **Either** Of The Two Conditions—Puberty Or Mental Comprehension—Is Present, **Ghusl Becomes Obligatory**.

- So, If A Person Is **Mentally Unsound** But Has **Reached Puberty**, Ghusl Is Obligatory.
- If Someone Is **Mentally Sound** But **Not Yet Pubescent**, Ghusl Is Still Obligatory.
- However, If **Both** Mental Capacity And Puberty Are Absent, Ghusl Is **Not** Obligatory.

Al-Mawsū' Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/200):

“The Ḥanafīs Hold That Taklīf (Legal Responsibility, I.E., Intellect And Puberty) Is A Condition For The Obligation Of Ghusl. If Either Party Is Legally Responsible, Ghusl Is Obligatory On Them But Not On The Other.”

References: Ḥāshiyat Ibn 'Ābidīn (1/109), Ḥāshiyat Al-Dusūqī (1/128-129), *Al-Majmū' Sharḥ Al-Muhadhdhab* (2/132), *Kashshāf Al-Qinā'* (1/143)

Mālikī Madhhab:

According To The Mālikīs, **Puberty Or Mental Comprehension Is Not A Condition**. Rather, **The Emission Of Semen (Manī)** Is The Deciding Factor.

- If Semen Is Released, Ghusl Is Obligatory On Both Individuals Involved, Regardless Of Whether They Are Pubescent Or Mentally Competent.

Al-Mawsū' Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/200):

“The Mālikīs Say That If Penetration Occurs And The Person Is Pubescent, Ghusl Is Obligatory For The One Penetrating And Also For The One Being Penetrated, If The Latter Is Pubescent. If The One Penetrating Is Not Pubescent, Ghusl Is Not Obligatory On Either Party—Unless Semen Is Emitted From The One Being Penetrated, In Which Case Ghusl Is Obligatory Due To Emission.”

References: Same As Above.

Shāfi'ī Madhhab:

In The Shāfi'ī School, If:

- A **Young Boy** Penetrates A Woman,
- A **Man Penetrates Another Man's Anus**,

- **A Man Penetrates A Boy,** Then **Ghusl Becomes Obligatory On Both The Man And The Woman Involved,** Regardless Of Age.
- Similarly, If **A Woman Inserts A Boy's Private Part Into Herself, Ghusl Is Obligatory On Her,** And The **Child Also Becomes Ritually Impure (Junub).**
- This Applies To Both **Boys And Girls,** Whether The Child Is Young Or Older.

Al-Mawsū‘ Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/200):

“According To The Shāfi‘īs, If A Boy Penetrates A Woman Or The Anus Of A Man, Or A Man Is Penetrated In His Anus, Then Ghusl Is Obligatory On Both The Man And The Woman. Similarly, If A Woman Inserts The Private Part Of A Boy Into Herself, Then Ghusl Is Obligatory On Her. In All These Scenarios, The Child Becomes Junub (In A State Requiring Ghusl). Likewise, If A Man Or A Boy Penetrates A Girl, Or A Boy Penetrates Another Boy, Both Become Junub. This Applies Regardless Of Whether The Child Is Discerning (Mumayyiz) Or Not. Though One Does Not Say ‘Ghusl Is Obligatory On The Child,’ Since Legal Responsibility Isn’t Upon Them, The Ruling Is That They Become In A State Of Janābah. Hence, The Guardian Must Instruct Them To Perform Ghusl If They Are Capable Of Understanding.”

References: Same As Above.

Ḥanbalī Madhhab:

In The Ḥanbalī View, **Neither Mental Capacity Nor Puberty Is A Condition** For Ghusl Being Obligatory.

- They State That **If A 9-Year-Old Girl Or A 10-Year-Old Boy Engages In Intercourse, Ghusl Is Obligatory,** Whether They Are The One Penetrating Or Being Penetrated.

Al-Mawsū‘ Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/200):

*“The Ḥanbalīs Do Not Require Legal Responsibility (Taklīf) For Ghusl To Be Obligatory. Ghusl Becomes Obligatory On Minors Who Engage In Intercourse, Such As A 9-Year-Old Girl Or A 10-Year-Old Boy, Whether They Are The Doer Or The One Acted Upon, If They Are Capable Of Such An Act. Al-Buhūtī Explains: This Does Not Mean The Child Is Sinful For Not Performing Ghusl, But That It Is A **Precondition For Prayer, ṭawāf, And Touching The Muṣḥaf.** They Also Hold That **A Madman Or Madwoman Must Perform Ghusl,** Since The Cause (Intercourse Or Semen) Doesn't Require Intention—Just Like Accidental Emission.”*

References: Same As Above.

Summary:

Puberty Is **Not** A Necessary Condition For Ghusl Becoming Obligatory.

- If A Man Has Intercourse With A Young Girl, **Ghusl Is Obligatory On Both.**
- Similarly, If A Boy Has Intercourse With A Woman, **Both Must Perform Ghusl.**

Among The Schools, The Ḥanbalī And Shāfi‘ī Positions Are Stronger, Because The Hadith **“Water (Ghusl) Is Due To Water (Semen)”** Is General In Wording, And The Ruling Derived From It Is Also General.

Thus, **Whenever Penetration Occurs Between The Private Parts Of A Man And A Woman, Ghusl Becomes Obligatory**, Regardless Of Age Or Mental Condition.

Ruling Of Ghusl (Ritual Bath) When There Is A Barrier During Intercourse

There Is A Difference Of Opinion Among The Jurists (Fuqahā') Regarding The Issue: If A Person Wraps His Private Part With A Cloth And Then Engages In Intercourse—Meaning There Is No Direct Skin-To-Skin Contact And A Barrier Exists—Does Ghusl Become Obligatory Or Not?

Maliki Madhhab And Some Hanafis

According To The Maliki School And Some Scholars Of The Hanafi School, If A Person Wraps His Private Part With A Thick Piece Of Cloth And Inserts It, Then Ghusl Is Not Obligatory. However, If The Cloth Is Thin In Such A Way That The Heat Or Pleasure Of The Private Part Of The Other Person Can Be Felt, And It Is Evident That Sexual Pleasure Is Experienced, Then It Will Be Considered Valid Intercourse (Jimā'), And Ghusl Becomes Obligatory.

Al-Mawsu' Ah Al-Fiqhiyyah Al-Kuwaitiyyah (31/201):

“The Malikis And Some Hanafis Hold That Ghusl Is Not Obligatory For The One Who Inserts The Glans (Or Its Equivalent) Wrapped In A Thick Cloth That Prevents Sensation. But If The Cloth Is Thin Such That One Feels The Pleasure And The Warmth Of The Private Part, Then Ghusl Becomes Obligatory.”

References: Hāshiyat Ibn 'Ābidīn 1/111, Hāshiyat Al-Dusūqī 1/129, Al-Majmū' 1/134, Sharḥ Rawḍ Al-Ṭālib 1/64, Kashshāf Al-Qinā' 1/143, Maṭālib Ūlī Al-Nuhā 1/166, Al-Inṣāf 1/232

Shafi'I Madhhab And Some Hanafis

According To The Correct Opinion In The Shafi'I School, And Also Some Hanafi Scholars Including Al-Ḥaṣkaḥī And Ibn 'Ābidīn Al-Shāmī, Ghusl Becomes Obligatory Even If The Private Part Was Covered With A Thick Cloth. Their Reasoning Is That Such An Act Is Still Considered "Insertion" (Ījāb), And The Prophet ﷺ Said:

“When The Two Circumcised Parts Meet, Or When One Circumcised Part Touches Another, Ghusl Becomes Obligatory.”

Al-Ḥaṣkaḥī Said: "The Safer Opinion Is That Ghusl Is Obligatory." Ibn 'Ābidīn Said: "Apparently, He Chose The Opinion Of Obligation."

Al-Mawsu' Ah Al-Fiqhiyyah Al-Kuwaitiyyah (31/201):

“The Shafi' Is In The Sound Opinion, And Some Hanafis, Say That Ghusl Is Obligatory Even If Insertion Is Done With A Thick Barrier, Because It Is Still Called Insertion, And Due To The Saying Of The Prophet ﷺ: ‘When The Circumcised Parts Meet, Ghusl Becomes Obligatory.’”

The Above Narration Is Reported By Al-Shāfi'ī In His Musnad (1/38), From The Hadith Of 'Ā'īshah. Its Origin Is Found In Al-Ṣaḥīḥayn.

References: Ḥāshiyat Ibn ‘Ābidīn 1/111, Ḥāshiyat Al-Dusūqī 1/129, Al-Majmū‘ 1/134, Sharḥ Rawḍ Al-Ṭālib 1/64, Kashshāf Al-Qinā‘ 1/143, Maṭālib Ūlī Al-Nuhā 1/166, Al-Inṣāf 1/232

Hanbali Madhhab

According To The Hanbali School, Ghusl Is Not Obligatory If There Is Any Kind Of Barrier Between The Two Private Parts—Regardless Of Whether The Barrier Is Thick, Thin, Or Of Some Other Material.

Al-Mawsu‘ Ah Al-Fiqhiyyah Al-Kuwaitiyyah (31/201):

“The Hanbalis Hold That Ghusl Is Not Obligatory For One Who Inserts With A Barrier, Without Distinguishing Whether The Barrier Is Thick Or Thin.”

References: Ḥāshiyat Ibn ‘Ābidīn 1/111, Ḥāshiyat Al-Dusūqī 1/129, Al-Majmū‘ 1/134, Sharḥ Rawḍ Al-Ṭālib 1/64, Kashshāf Al-Qinā‘ 1/143, Maṭālib Ūlī Al-Nuhā 1/166, Al-Inṣāf 1/232

Summary

The Correct Opinion Is That If The Two Private Parts Come Into Contact, Ghusl Becomes Obligatory—Regardless Of Whether There Is A Thick Or Thin Cloth, Or Any Other Barrier, Between Them. This View Is The Most Sound And Accurate, And It Is The Position Of Both The Shāfi‘ī And Ḥanafī Madhhabs. And Allah Knows Best.

Ruling On Ghusl After Intercourse With A Jinn

The Jurists (Fuqahā‘) Have Differed Regarding The Ruling Of Ghusl (Ritual Purification) When A Human Has Intercourse With A Jinn — Whether It Is A **Man With A Female Jinn**, Or A **Woman With A Male Jinn**.

Ḥanafī And Mālikī Madhhab:

According To The **Ḥanafī And Mālikī** Schools, **Ghusl Is Not Obligatory** If A Man Has Intercourse With A Female Jinn, Or A Woman With A Male Jinn — **Unless Semen Is Discharged** (Manī Khārij Ho Jaye).

Ibn ‘Ābidīn (Ḥanafī Scholar) Writes — Quoting From *Al-Muḥīṭ*:

"If A Woman Says: 'A Jinn Comes To Me Repeatedly And I Feel The Same Sensations As I Feel During Intercourse With My Husband,' Then Ghusl Is Not Obligatory, Because The Necessary Cause (Such As Confirmed Penetration Or Ejaculation) Is Absent."

However, The Ḥanafīs Make An Exception:

If The **Jinn Takes The Form Of A Human Being**, And Then Intercourse Occurs, **Ghusl Becomes Obligatory** — Due To The Human-Like Form That Fulfills The Legal Cause (Sabab) Of Sexual Intercourse.

Shāfi‘ī Madhhab:

Imām Al-Suyūṭī, From The Shāfi‘ī School, Mentions:

"If A Jinn Has Intercourse With A Human, Is Ghusl Obligatory Or Not? Our Scholars (Aṣḥāb) Have Not Explicitly Addressed This Issue."

However, He Also Cites Some **Ḥanafī And Ḥanbalī** Opinions Stating That **Ghusl Is Not Obligatory**, Because There Is No Certainty Of Penetration Or Ejaculation — Similar To The Case Of A **Wet Dream Without Discharge**. Al-Suyūṭī Adds That This View Aligns With The General Principles (*Qawā‘id*) Of The Shāfi‘ī School.

Ḥanbalī Madhhab:

The **Ḥanbalīs** Say:

If A Woman Claims That A Jinn Has Intercourse With Her, **Ghusl Is Obligatory** — And The Same Applies If A Man Has Intercourse With A Female Jinn.

Quoted Source: *Al-Mawsū‘ah Al-Fiqhiyyah Al-Kuwaytiyyah* (31/202):

"The Jurists Differed Over The Obligation Of Ghusl From Intercourse With Jinn.

The Ḥanafīs And Mālikīs Say That Ghusl Is Not Obligatory If A Jinn Comes To A Woman, Or A Man Has Intercourse With A Female Jinn — Unless There Is Ejaculation.

Ibn ‘Ābidīn Quotes From *Al-Muḥīṭ*: If She Says, 'A Jinn Comes To Me Often, And I Feel What I Feel With My Husband,' No Ghusl Is Required, Because The Cause (Penetration Or Ejaculation) Is Not Confirmed.

The Ḥanafīs Make An Exception If The Jinn Appears In Human Form, Then Ghusl Is Obligatory Due To The Human-Like Nature That Makes The Cause Complete.

Al-Suyūṭī (Shāfi‘ī) Says: If A Jinn Has Intercourse With A Human — Is Ghusl Required? Our Scholars Did Not Clarify This. Some Ḥanafīs And Ḥanbalīs Say It Is Not Obligatory, Because There Is No Certainty Of Penetration Or Discharge. Al-Suyūṭī Says This Aligns With Our School’s Principles.

The Ḥanbalīs Say That If A Woman Says, 'A Jinn Has Intercourse With Me,' Then Ghusl Is Obligatory."

References:

- *Ḥāshiyat Ibn ‘Ābidīn* 1/109
- *Ḥāshiyat Al-Dusūqī* 1/128
- *Al-Ashbāh Wa Al-Nazā‘ir* By Al-Suyūṭī, P. 258
- *Kashshāf Al-Qinā‘* 1/144

Summary:

The Stronger And More Correct View Appears To Be That **If The Jinn Is Male** And He Has Intercourse With A **Human Woman**, And The Woman Is **Certain** That Intercourse Has Taken Place, Then **Ghusl Becomes Obligatory** Upon Her.

However, **If She Is Unsure** Or Merely Feels As Though Something Happened, Then **Ghusl Is Not Obligatory**.

Likewise, If A **Female Jinn** Has Intercourse With A **Human Man**, And The Man **Feels Something** (But Without Certainty), Then **Ghusl Is Not Obligatory**.

But If The Man Has **Knowledge Or Certainty** That Intercourse Occurred, Then **Ghusl Becomes Obligatory**.

If A **Male Jinn** Has Intercourse With A **Woman** And **His Semen Is Discharged**, And The **Woman Sees It** And **Recognizes** It As Male Semen — Or She Is **Certain** That The Jinn Discharged Semen **Inside Her Private Part**, Or She Becomes **Pregnant**, Or Even If She **Has Doubts** About Intercourse But **Sees Semen**, Then In **All These Cases, Ghusl Is Obligatory** Upon The Woman.

Similarly, If A **Female Jinn** Has Intercourse With A **Man**, And The **Man Ejaculates**, Then **Ghusl Becomes Obligatory**, Whether The Man Is **Certain** Or **Doubtful** About The Intercourse — Because **Semen Discharged Due To Desire** Makes Ghusl Obligatory.

Wallāhu A‘Lam (And Allah Knows Best).

Ruling On Performing Intercourse With A Dead Person

There Is A **Difference Of Opinion Among The Jurists** Regarding The Ruling Of Ghusl (Ritual Bath) If Someone Has Intercourse With A **Deceased Person**.

- The **Mālikīs, Shāfi‘īs, And Hanbalīs** State That **Ghusl Becomes Obligatory** Because The Two Private Parts Have Come Into Contact.
- The **Ḥanafīs** Say That **Ghusl Does Not Become Obligatory**.

The **Hanbalīs** Also State That **If The Deceased Is A Woman**, She Should Be **Washed Again Before Burial** If Intercourse Has Occurred With Her.

There Is Also A Difference Of Opinion Among The Jurists Regarding **A Woman Inserting The Private Part (Penis) Of A Deceased Man** Into Herself:

- The **Ḥanafīs And Mālikīs** Say That **Ghusl Is Not Obligatory** Upon The Woman **Unless Semen Is Discharged**.
- The **Shāfi‘īs And Hanbalīs** Say That **Ghusl Becomes Obligatory** Regardless Of Whether Semen Is Discharged Or Not.

Al-Mawsū‘Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/202) States:

The **Mālikīs, Shāfi‘īs, And Hanbalīs** Hold That Ghusl Is Obligatory On The Person Who Inserts (His Private Part) Into The Private Part Of A Deceased Individual, Due To The Generality Of Evidences. The Deceased Who Is Penetrated Is Not Washed Again, According To The **Mālikīs**, And According To The More Correct Opinion Among The **Shāfi‘īs** Due To The Absence Of Legal Accountability. However, The **Hanbalīs** Say That The Deceased Woman Who Was Penetrated Should Be Washed Again.

The **Ḥanafīs** Hold That **No Ghusl Is Required** When Having Intercourse With A Deceased Person.

And The Scholars Differed On Whether **A Woman Is Obligated To Perform Ghusl** If She Inserts The Private Part Of A Deceased Man Into Her:

The **Ḥanafīs And Mālikīs** Say **Ghusl Is Not Obligatory** Unless **Ejaculation Occurs**, While The **Shāfi‘īs And Hanbalīs** Say **Ghusl Is Obligatory**.

Similarly, The Mālikīs, Shāfi'īs, And Hanbalīs State That If One Woman Engages In Intercourse With Another Woman (Lesbianism), Ghusl Is Not Obligatory Unless Ejaculation Occurs.

Al-Mawsū' Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/203) States:

“The Mālikīs, Shāfi'īs, And Hanbalīs Have Stated That **Ghusl Is Not Obligatory In Lesbian Activity Unless Ejaculation Occurs.**”

Ashāb Al-Qunyah, From The Ḥanafī Scholars, And **Ibn 'Ābidīn**, Also A Ḥanafī, Agreed That:

- If A **Woman Inserts Her Finger Into Her Private Part**, There Is A **Difference Of Opinion** Regarding Whether Ghusl Becomes Obligatory.
- However, It Is **Better To Perform Ghusl** Because, If The Act Was Done For **Sexual Pleasure**, Then **It Is Likely That Ejaculation (Discharge) Occurred.**
- But If A **Woman Inserts Her Finger Into The Anus, Ghusl Is Not Obligatory**, Because **No Semen Is Discharged From There.**
- The Same Applies If The Object Inserted Is Made Of Wood Or Similar And Shaped Like A Private Part.

Al-Mawsū' Ah Al-Fiqhiyyah Al-Kuwaytiyyah (31/203) States:

“The Author Of *Al-Qunyah* From The Ḥanafīs Said: There Is A Difference Of Opinion Regarding Ghusl When Inserting A Finger Into The Front Or Back Passage, But It Is Preferred To Require Ghusl If The Insertion Was Into The Front (Vagina) For The Purpose Of Pleasure, Due To The Likelihood Of Sexual Arousal, Which Substitutes For Ejaculation. As For The Anus, Ghusl Is Not Obligatory Due To The Lack Of That Cause. This Ruling Also Applies To Objects Like Wooden Tools Made In The Shape Of A Penis. Ibn 'Ābidīn Agreed With This Opinion.”

Ghuniyat Al-Mutamallī 1/46, **Ḥāshiyat Ibn 'Ābidīn** 1/112

According To The **Mālikīs**, If A Woman Inserts Her Finger Into Her Private Part, **Her Wudū' (Minor Ablution) Is Not Broken:**

“The Mālikīs Said: A Woman's Wudū' Is **Not Nullified** If She Touches Her Private Part, **Even If She Inserts One Or More Fingers Into It.**”
(*Al-Sharḥ Al-Ṣaghīr*, 1/146)

Summary Of The Issue

Ruling on Ghusl (Ritual Bath) When Manī (Semen) Is Discharged

Brief Explanation:

This issue addresses **when** the emission of **manī (semen)** obligates **ghusl (ritual bath)** in Islamic law. There is consensus that if ejaculation occurs with **desire**, then ghusl is obligatory. However, scholars differ regarding

ejaculation **without desire, after sleep, due to illness**, or other unusual causes such as **jinn intercourse**, or **contact with the dead**.

Evidence from the Text:

- **Qur'an:**
Surah al-Mā'idah (5:6) — *"If you are in a state of janābah, purify yourselves."*
- **Hadiths:**
 - "Water is due to water." (Muslim, Abū Dāwūd, etc.)
 - Umm Sulaym asked: "Does a woman have to do ghusl if she sees it?" Prophet ﷺ: "Yes." (Ṣaḥīḥ Muslim)
 - Narrations of 'Ā'ishah, 'Alī, Ibn 'Abbās, al-Ḥasan al-Baṣrī, etc.

Sub-Issue 1: Does Ghusl Become Obligatory by Discharge Without Desire?

Brief Explanation:

If manī exits **without arousal or pleasure** (e.g. due to illness, cold, injury), does that require ghusl?

Evidence from the Text:

- Prophetic hadiths emphasize ghusl due to sexual stimulation, not mere emission.
- Companion statements and juristic analysis provided.

Madhhab Views:

Hanafi:

- Ghusl is **not required** unless the discharge is with **pleasure/desire**.
- If manī exits **after intercourse** and no urination/sleep occurred, a second ghusl is required.
- Imām Muḥammad and Abū Ḥanīfah held this view.

Māliki:

- If emission is **non-sexual**, no ghusl is required.
- If emission is due to **intercourse**, even if later, **no new ghusl** needed after first.
- Imām Mālik's view is stricter than Ḥanafī.

Shāfi'i:

- **Any discharge** from the normal path **requires ghusl**, even if without desire.
- If it exits from an **abnormal place** (e.g., due to injury), ghusl is **not required**.

Hanbali:

- If manī exits without arousal (e.g., due to illness), **no ghusl**.
- But if **sleep** results in manī, ghusl **is** required.

Sub-Issue 2: Wet Dream Without Seeing Semen

Brief Explanation:

If someone has a sexual dream but no visible emission, does ghusl become obligatory?

Evidence:

- Ḥadīth: ‘Ā’ishah said the Prophet ﷺ ruled: **no ghusl** unless fluid is seen.
- Umm Sulaym: asked about a woman’s wet dream — “Yes, if she sees water.”

Madhhab Views:

Unanimous:

- **No ghusl** without visible discharge.
- **Ghusl required** if emission is seen, even if dream is not remembered.

Sub-Issue 3: Does Discharge Require Ghusl in Women?

Brief Explanation:

The issue explores whether a woman must do ghusl if she discharges manī.

Evidence:

- Hadith of Umm Sulaym and ‘Ā’ishah.
- Prophet ﷺ affirmed **yes**, if she sees the discharge.

Madhhab Views:

All schools agree:

- **If woman ejaculates** (with desire), **ghusl is obligatory**.
- Consensus after clarification from the Prophet ﷺ.

Sub-Issue 4: Second Discharge After Ghusl – Is a New Ghusl Required?

Brief Explanation:

If manī is discharged **after** ghusl from earlier intercourse, must ghusl be done again?

Madhhab Views:

Hanafi:

- If **urination/sleep** occurred between first ghusl and later discharge → **no ghusl**.
- If **neither** occurred → **ghusl required again** (Abū Ḥanīfah and Muḥammad).

Māliki:

- Same as above. But **no second ghusl** if first was from intercourse.

Shāfiʿī:

- **Always** requires ghusl for any new emission.

Hanbali:

- Second emission does **not** require another ghusl — only **wudu**.

Sub-Issue 5: Ghusl in the Case of a Child or Insane Person

Brief Explanation:

If a child or someone insane ejaculates or has intercourse, is ghusl required?

Madhhab Views:

Hanafi:

- If **either puberty or sanity** exists → ghusl required.
- If **both** are absent → ghusl not obligatory.

Māliki, Shāfiʿī, Hanbali:

- Ghusl is **required regardless** of sanity or age, if intercourse occurs or semen exits.

Sub-Issue 6: Ghusl After Intercourse With Barrier (e.g., Cloth)

Brief Explanation:

If intercourse takes place but there is a **thick barrier**, does ghusl become necessary?

Madhhab Views:

Hanafi:

- If **barrier is thin**, ghusl required.
- If **thick** and no feeling of heat — **no ghusl**.

Māliki:

- Same as Ḥanafī view; **depends on sensation**.

Shāfiʿī:

- **Ghusl always required**, even with thick barrier.

Hanbali:

- **Ghusl not obligatory** with any barrier.

Sub-Issue 7: Ghusl After Intercourse With a Jinn

Brief Explanation:

If a human has intercourse with a jinn, is ghusl required?

Madhhab Views:

Hanafi & Māliki:

- If manī is discharged → ghusl required.
- If **no discharge** → ghusl **not** required.

Shāfiʿī:

- Al-Suyūṭī: Supports **no ghusl unless emission** occurs.

Hanbali:

- **Ghusl required**, if woman claims jinn intercourse.

Sub-Issue 8: Ghusl After Intercourse With the Dead

Brief Explanation:

If intercourse occurs with a corpse, is ghusl required?

Madhhab Views:

Hanafi:

- Ghusl **not required**.

Māliki, Shāfi‘ī, Hanbali:

- Ghusl is obligatory.

Sub-Issue 9: Female-Female Sexual Contact (Lesbianism)

Brief Explanation:

If two women engage in sexual contact, does it obligate ghusl?

Madhhab Views:

Māliki, Shāfi‘ī, Hanbali:

- Ghusl required **only if manī is discharged**.
- No ghusl otherwise.

Final Summary of Rulings (Across Madhāhib)

Case	Ḥanafī	Malikī	Shāfi‘ī	Ḥanbalī
Semen w/ desire	Ghusl	Ghusl	Ghusl	Ghusl
Semen w/o desire	No ghusl	No ghusl	Ghusl	No ghusl
Wet dream, no fluid	No ghusl	No ghusl	No ghusl	No ghusl
Woman’s ejaculation	Ghusl	Ghusl	Ghusl	Ghusl
Post-ghusl emission	Ghusl (if no urine/sleep)	Same	Ghusl	No ghusl
Child or insane person	Only if sane/puberty	Ghusl	Ghusl	Ghusl
Barrier intercourse	No ghusl (if thick)	Same	Ghusl	No ghusl
Jinn intercourse	Ghusl if emission	Same	Ghusl if emission	Ghusl
With corpse	No ghusl	Ghusl	Ghusl	Ghusl

Conclusion

1. General Rule:

Ghusl (Ritual Bath) Becomes Obligatory (Wajib) When Semen (Mani) Is Discharged Due To Sexual Pleasure Or Intercourse, Whether Awake Or Asleep, Whether Caused By Seeing Something, Thinking About Sexual Matters, Or Actual Intercourse. This Applies To Both Men And Women.

2. With Living Or Dead Humans Or Animals:

If Semen Is Discharged During Intercourse With A Living Or Dead Human, Or With A Living Animal Or Beast, Ghusl Becomes Obligatory. This Is Agreed Upon By The Four Imams (Abu Hanifa, Malik, Shafi’i, Ahmad) And Their Respective Schools (Hanafi, Maliki, Shafi’i, Hanbali), And The Scholars Of Hadith.

3. **With Dead Animals:**
If Someone Has Intercourse With A Dead Animal, The Majority Of Scholars (Jumhur) Say Ghusl Is Also Obligatory. The Maliki, Shafi'i, And Hanbali Schools Agree On This.
4. **Intercourse With A Dead Woman:**
If A Man Has Intercourse With A Dead Woman, Ghusl Is Obligatory For Him. Also, If The Man Ejaculates Inside The Dead Woman, It Is Recommended (Mustahabb) To Wash Her Again Before Burial To Clean The Impurity.
5. **A Woman With A Dead Man:**
If A Woman Inserts The Dead Man's Private Part Into Her, She Must Also Perform Ghusl.
6. **Woman With Woman:**
If Two Women Engage In Sexual Acts With Each Other, Ghusl Is Not Required Unless There Is Ejaculation.
7. **Condition For Ghusl Upon Ejaculation:**
Ghusl Is Only Obligatory When Semen Is Released Due To Sexual Excitement, As Agreed Upon By The Majority Of Jurists And Hadith Scholars, Including The Three Imams: Hanafi, Maliki, Hanbali.
8. **Semen Must Come From Its Original Source:**
For Ghusl To Become Obligatory, Semen Must Emerge From Its Natural Place (For Men: Penis; For Women: From The Womb Area). This Is The Opinion Of The Majority Of Scholars.
9. **Without Sexual Excitement:**
If Semen Exits Due To Illness, Heavy Movement, Cold, Or Injury Without Sexual Excitement, Ghusl Is Not Obligatory. This Is The Opinion Of Hanafi, Maliki, And Hanbali Scholars.
10. **Other Causes (Touching, Animal Movement, Hot Water):**
If Semen Comes Out Due To Touching The Private Parts, Riding An Animal, Or Sitting In Hot Water — Without Sexual Pleasure — Ghusl Is Not Required. But If Pleasure Is Felt, Ghusl Is Obligatory.
11. **Wet Dream Without Noticing Anything:**
If A Man Or Woman Wakes Up And Finds Wetness On Clothes Or Body, Ghusl Is Obligatory, Whether Or Not They Remember Seeing A Dream.
12. **Dream Without Wetness:**
If They Remember A Sexual Dream But Find No Wetness, Ghusl Is Not Obligatory.
13. **Uncertain Memory:**
If They Wake Up And Find Wetness But Cannot Remember Any Dream, Ghusl Is Still Obligatory.
14. **Doubt Between Semen Or Other Fluid:**
If Someone Finds Wetness And Is Unsure If It Is Semen Or Another Fluid (Like Pre-Seminal Fluid), Ghusl Is Obligatory.
15. **Touching Semen On Private Parts (No Intercourse):**
If Semen Merely Touches A Woman's Private Part (Without Intercourse), She Does Not Have To Perform Ghusl — Unless The Semen Enters Her And Causes Pregnancy, Then Ghusl Becomes Obligatory.
16. **Natural Moisture Inside The Vagina:**
The Natural Moisture Inside A Woman's Private Part Is Pure (Paak) By Consensus.
17. **Menstruation And Postnatal Bleeding:**
It Is Agreed Upon That When Menstruation (Haiz) Or Postnatal Bleeding (Nifas) Ends, Ghusl Becomes Obligatory.
18. **Post-Ghusl Semen Discharge:**
If, After Performing Ghusl, Semen Exits The Body Without Sexual Excitement, Ghusl Is Not Needed; Only Wudu (Minor Ablution) And Washing The Private Part Are Required. This Is The View Of Most Jurists, Including Hanbali, Maliki, And Early Scholars Like Ali Ibn Abi Talib, Ibn Abbas, Sa'id Ibn Jubayr, And Others.
19. **Ghusl Does Not Depend On Puberty:**
For Ghusl To Be Obligatory, Reaching Puberty Is Not A Condition. If An Adult Man Has Intercourse With A Minor Girl Or A Boy Has Intercourse With An Adult Woman, Ghusl Is Obligatory On Both.

The Hanbali And Shafi'i Schools Hold This As The Stronger View, Based On Hadiths Indicating That When The Private Parts Meet, Ghusl Is Obligatory.

20. Barrier Between Private Parts (Cloth, Condom, Etc.):

If There's A Barrier (Thick Or Thin Cloth, Condoms, Etc.) But The Private Parts Still Come Into Contact, Ghusl Is Obligatory — Whether Or Not Pleasure Is Felt. This Is The Opinion Of The Shafi'i And Hanafi Schools And Is Supported By Hadith: When Two Private Parts Meet, Ghusl Becomes Obligatory.

21. Intercourse With Intersex Person (Khunsa):

If Someone Has Intercourse With A Person Who Has Both Male And Female Organs (Intersex, Gender Unknown), Ghusl Is Not Obligatory Because The Gender Is Uncertain — Unless Ejaculation Occurs, Then Ghusl Becomes Obligatory. This Is Agreed Upon By The Four Imams.

22. Intercourse With Jinn:

If A Man Or Woman Has Intercourse With A Jinn Appearing In Human Form, Ghusl Is Obligatory. But If The Jinn Is Invisible, Ghusl Is Not Obligatory — Unless Ejaculation Happens, Then Ghusl Is Required.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 27 – Ruling On Ghusl (Obligatory Bath) When Private Parts Meet

Among The Companions (Sahaba), There Was Initially A Difference Of Opinion: If A Man And Woman’s Private Parts Meet, And Intercourse Occurs, But They Separate Before Ejaculation (Mani Discharge), Is Ghusl Obligatory On Both Or Not?

One Group Of Sahaba Believed **Ghusl Is Not Obligatory Unless Ejaculation Happens**. Another Group Believed **Ghusl Becomes Obligatory As Soon As The Private Parts Meet, Even If No Ejaculation Occurs**.

Today, We Know That The Opinion Closer To The Shariah Is The One Held By Those Sahaba Who Said **Ghusl Becomes Obligatory Just From The Meeting Of The Private Parts**, And Ejaculation Is Not A Condition. This Is Because This Is Established From The Teachings Of The Prophet ﷺ, And Later, This Became The Agreed-Upon Position (Ijma) Of The Ummah, Turning The Earlier Difference Into Just A Scholarly Discussion.

This Was Later Also Adopted By Some Of The Literalist Scholars (Ahl Al-Zahir).

Reference Texts From Classical Scholars

- **Bughiyyat Al-Muqtasid Sharh Bidayat Al-Mujtahid (2/541):**

“Most Jurists Of The Major Cities — Malik And His Companions, Shafi‘I And His Companions, And A Group Among Ahl Al-Zahir — Held That Ghusl Is Obligatory When The Private Parts Meet, Regardless Of Ejaculation. A Group Of Ahl Al-Zahir, However, Only Required Ghusl If Ejaculation Occurred.”

- **Al-Muhalla By Ibn Hazm (1/249):**

“Among Those Who Held That Ghusl Is Not Required From Mere Penetration Without Ejaculation Were: Uthman Ibn Affan, Ali Ibn Abi Talib, Zubayr Ibn Al-Awwam, Talha Ibn Ubaydullah... And Some From Ahl Al-Zahir.”

The Four Schools (Madhahib) Agreement

The Four Major Imams (A’immah Arba‘A) Are United On This Matter:
As Soon As The Private Parts Meet — Meaning If The Man’s Organ Enters The Woman Even Slightly — Ghusl Becomes Obligatory, Regardless Of Ejaculation.

- **Hanafi School:**
Al-Durr Al-Mukhtar (P. 27):

“Ghusl Becomes Obligatory Upon Ejaculation... And Upon Insertion Of The Head (Of The Penis), Even Without Ejaculation — By Consensus.”

- **Maliki School:**
Sharh Al-Kabir By Dardir (1/127):

“It Is Obligatory To Wash The External Body When The Head Of A Mature Male’s Penis Enters, Even If No Erection Or Ejaculation Occurs.”

- **Shafi‘I School:**

Asna Al-Matalib By Zakariyya Al-Ansari (1/64):

“Ghushl Is Required Upon Insertion Of The Penis Head Or Its Equivalent — Even If Not Desired, Or Into The Rear, Or Through A Barrier Like A Thick Cloth Or Wrap — Because Of The Authentic Hadith: ‘When The Two Circumcised Parts Meet, Ghushl Becomes Obligatory,’ Even If No Ejaculation Occurs.”

- **Hanbali School:**

Mutalib Uli Al-Nuha By Al-Ruhaybani (1/164):

“The Third Condition: The Meeting Of The Two Circumcised Parts — Meaning The Head Of The Penis Entering The Vagina.”

Reason For The Early Disagreement

The Disagreement Arose Because There Were Multiple Narrations (Riwayat) On This Matter, Some Of Which Seemed Contradictory.

For Example, **Sahih Muslim, Hadith 347** — Zayd Ibn Khalid Said:

“I Asked Uthman Ibn Affan: ‘What If A Man Has Intercourse With His Wife But Does Not Ejaculate?’ Uthman Replied: ‘He Should Perform Wudu For Prayer And Wash His Private Part.’ He Added: ‘I Heard This From The Messenger Of Allah ﷺ.’”

Arabic Text:

وَحَدَّثَنِي زُهَيْرُ بْنُ حَرْبٍ وَعَبْدُ بْنُ حُمَيْدٍ قَالَا : حَدَّثَنَا عَبْدُ الصَّمَدِ بْنُ عَبْدِ الْوَارِثِ ... أَنَّ زَيْدَ بْنَ خَالِدٍ الْجُهَنِيَّ أَخْبَرَهُ أَنَّهُ سَأَلَ عُثْمَانَ بْنَ عَفَّانَ قَالَ : قُلْتُ : أَرَأَيْتَ إِذَا جَامَعَ الرَّجُلُ امْرَأَتَهُ وَلَمْ يُعْنَ ؟ قَالَ عُثْمَانُ : يَتَوَضَّأُ كَمَا يَتَوَضَّأُ لِلصَّلَاةِ ، وَيَغْسِلُ ذَكَرَهُ . قَالَ عُثْمَانُ : سَمِعْتُهُ مِنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ .

Sahih Muslim Hadith 343

Abu Sa‘Eed Al-Khudri (May Allah Be Pleased With Him) Narrates:

The Messenger Of Allah ﷺ Said:

“Water (I.E., Bathing) Is Only Required Because Of Water (I.E., Ejaculation).”

(Arabic: إِنَّمَا الْمَاءُ مِنَ الْمَاءِ)

Narration Details:

Abu Sa‘Eed Says: I Went Out With The Messenger Of Allah ﷺ On A Monday To Quba. When We Were Among Banu Salim, The Messenger Of Allah ﷺ Stood At The Door Of ‘Itban And Called Him. He Came Out Dragging His Lower Garment. The Prophet ﷺ Said: **“We Have Hurried The Man.”**

‘Itban Asked: “O Messenger Of Allah, What About The Man Who Withdraws From His Wife Before Ejaculating — What Is Required Of Him?”

The Messenger Of Allah ﷺ Replied:

“Water (Bathing) Is Only Required Because Of Water (Semen).”

Ubayy Ibn Ka‘B’s Similar Narration (Sahih Muslim 346)

Narrated By Abu Ayyub Al-Ansari:

The Messenger Of Allah ﷺ Was Asked About A Man Who Goes To His Wife But Does Not Ejaculate. He ﷺ Said:

“He Should Wash His Private Part And Perform Wudū’ (Ablution).”

Explanation:

These Narrations Were From **The Early Period Of Islam** And Were Later **Abrogated (Mansūkh)** By Other Narrations.

Abrogating Hadith: Sahih Muslim 348

Abu Hurairah (May Allah Be Pleased With Him) Narrates:

The Messenger Of Allah ﷺ Said:

“When A Man Sits Between The Four Parts (Arms And Legs) Of A Woman And Exerts Himself With Her, Then Ghushl (Ritual Bath) Becomes Obligatory, Even If He Does Not Ejaculate.”

This Is A Clear Ruling:

- **Even Without Ejaculation, Ghushl Becomes Mandatory Once Intercourse Occurs.**

Sahih Muslim 348 — Abu Musa’s Report

Abu Musa (May Allah Be Pleased With Him) Narrates:

There Was A Difference Of Opinion Between The Muhājirūn (Emigrants) And The Ansār (Helpers):

- The Ansār Said: **“Ghushl Is Not Required Unless Semen Is Discharged.”**
- The Muhājirūn Said: **“As Soon As Intercourse Happens, Ghushl Is Obligatory.”**

Abu Musa Said: **“I Will Resolve This For You.”**

He Went To ‘Āishah (May Allah Be Pleased With Her) And Said:

“O Umm Al-Mu’minīn (Mother Of The Believers), I Want To Ask You Something, But I Feel Shy.”

She Replied:

“Do Not Be Shy To Ask Me As You Would Ask Your Own Mother Who Gave Birth To You. I Am Your Mother Too.”

He Asked:

“What Makes Ghushl Obligatory?”

She Replied:

**“You Have Come To The Right Person. The Messenger Of Allah ﷺ Said:
‘When A Man Sits Between The Four Parts Of A Woman And The Two Circumcised Parts Meet (I.E.,
Penis And Vulva), Ghusl Becomes Obligatory.’”**

Final Ruling:

These Later Narrations **Abrogate** The Earlier Rule Of “Water For Water” — Meaning:
**Ghusl Becomes Obligatory After Penetration (Even A Little), Regardless Of Whether Ejaculation
Happens.**

This Is The Position Agreed Upon By The Majority Of Scholars.

**And This (Previous Ruling) Is Abrogated (Mansookh). This Is The Truth, And This Is The Position
(Madhhab) Of The Hanafi, Maliki, Shafi‘I, And Hanbali Schools. For This Reason, The Four Imams
(A’immah Arba‘A) Also Give The Fatwa (Legal Ruling) That As Soon As The Two Private Parts Meet,
Ghusl (Ritual Bath) Becomes Obligatory.**

Hanafi Madhhab

In The Hanafi Madhhab, As Found In *Mukhtasar Al-Quduri* (P. 12):

“The Causes Obligating Ghushl: The Ejaculation (Inzal) Of Semen With Force And Desire From Either The Man
Or Woman, And The Meeting Of The Two Circumcised Parts, Even Without Ejaculation.”

Maliki Madhhab

In The Maliki Madhhab, As Found In *Al-Sharh Al-Kabir* By Al-Dardir (1/128):

“It Is Obligatory To Wash The Outward Body If The Head Of The Penis (Hashafah) Of An Adult Male Enters
(The Vagina), Even If There Was No Erection Or No Ejaculation.”

Shafi‘I Madhhab

In The Shafi‘I Madhhab, As Found In *Asna Al-Matalib* By Zakariyya Al-Ansari (1/64):

“A State Of Janabah (Major Ritual Impurity) Is Caused By One Of Two Things: First, By Inserting The Head
Of The Penis, Even If From A Paralyzed Or Limp Male, Or Even Unintentionally Or Without Erection, Or
Inserting The Equivalent Size From Someone Lacking It, Into The Vagina — Even If Not Desiring It — Or The
Anus, Or Through A Barrier (Like Wrapping It In Cloth), Even If Thick. Based On The Hadith In The Two

Sahihs: ‘When The Two Circumcised Parts Meet, Ghusl Becomes Obligatory,’ And In A Version From Muslim: ‘Even If There Was No Ejaculation.’”

Hanbali Madhhab

In The Hanbali Madhhab, As Found In *Kashshaf Al-Qina* ‘ By Al-Buhuti (1/142):

“The Second Of The Things Obligating Ghusl Is The Insertion Of The Head Of The Original Penis Or Its Equivalent If Missing, Without A Barrier, Into The Original Vagina. Based On The Hadith Of Abu Hurayrah: ‘When He Sits Between Her Four Limbs And Strives Against Her, Ghusl Is Obligatory.’ Ahmad And Muslim Add: ‘Even If He Does Not Ejaculate.’”

Hadith Evidence

This Hadith Is Reported In Abu Dawood (No. 214), And Its Wording Is:

“Ubay Ibn Ka‘B Reported That The Messenger Of Allah (Peace And Blessings Be Upon Him) Said: ‘That (Ruling) Was Only A Concession For The People In The Early Days Of Islam, When There Was A Shortage Of Clothing. Then Ghusl Was Commanded, And That (Concession) Was Prohibited.’”

(*Bughyat Al-Muqtasid Sharh Bidayat Al-Mujtahid*, 2/549)

Al-Albani Authenticated This In *Sahih Abu Dawood* (No. 208).

This Hadith Shows That The Sahabah (Companions) Initially Believed That Ghusl Was Only Obligatory If Semen Was Discharged, But Later They Learned That The Ruling Was Abrogated Because Ubay Ibn Ka‘B Himself Was Among Those Companions Who Used To Say Ghusl Was Not Required Until Ejaculation Occurred.

Consensus (Ijma‘)

It Is Agreed (There Is Consensus) That Ghusl Becomes Obligatory When The Two Private Parts Meet (I.E., Penetration), Regardless Of Whether Ejaculation Occurs Or Not.

The Arabic Term **التقاء الختانين (Al-Taqa’ Al-Khitanayn)** — *The Meeting Of The Two Circumcised Parts* — Refers To When The Bodies Of A Man And Woman Come Together, Specifically When The Head Of The Penis Meets The Upper Skin (Clitoral Hood) Of The Woman.

If A Man Merely Places His Private Part On The Woman’s Without Penetration, Ghusl Is **Not** Obligatory.

In *Al-Dardir*, It Further Explains That **حشفة (Hashafah)** Means The Head Of The Penis.

As Explained In *Al-Mawsu‘ah Al-Fiqhiyyah Al-Kuwaitiyyah* (31/199):

“The Meeting Of The Two Circumcised Parts Occurs By The Insertion Of The Penis’s Head Into The Vagina, Because The Circumcised Part Of The Man Is The Skin Left After Circumcision, And The Circumcised Part Of The Woman Is The Skin Resembling A Rooster’s Comb Above The Vagina, A Portion Of Which Is Cut During

Female Circumcision. When The Head Of The Penis Enters The Vagina, His Circumcised Part Aligns With Hers, And When They Align, They Have Met. What Is **Not** Meant By ‘Meeting’ Is Merely Touching Or Placing Them Together Without Penetration. As Al-Dardir Said: *Hashafah* Is The Head Of The Penis.”

(References: Hashiyah Ibn Abidin On Al-Durr Al-Mukhtar 1/108, Hashiyah Al-Dusuqi 1/128, Al-Majmu‘ Sharh Al-Muhadhdhab By Al-Nawawi 2/130–132, Kashshaf Al-Qina‘ 1/142)

Conclusion

When A Man And Woman Come Together (I.E., Penetration), Ghushl Becomes Obligatory For Both, Whether Ejaculation Occurs Or Not.

When Does Ghushl Become Obligatory In The Case Of Menstruation (Hayd), Postpartum Bleeding (Nifas), Or Blood Stoppage?

There Is A Difference Of Opinion Among The Jurists (Fuqaha) About When Ghushl (Ritual Bath) Becomes Obligatory In These Cases:

Is Ghushl Obligatory Simply Because Menstruation (Hayd) Or Postpartum Bleeding (Nifas) Occurs, Or Is It Only When The Bleeding Stops, Or Is There Another Factor Involved?

Maliki Madhhab

According To The Maliki School, Ghushl Becomes Obligatory When Menstruation Occurs, **Not** When The Bleeding Stops. However, The Stoppage Of Blood Is A Condition For The Ghushl To Be Valid (Sahih).

Hanbali Madhhab

Similarly, In The Hanbali Madhhab, They Say That Ghushl Becomes Obligatory Upon The **Flowing Of Blood** (Khuruj Al-Dam), But The **Stoppage** Of Blood Is A Condition For The Ghushl To Be Valid.

According To *Al-Kharqi*, Ghushl Becomes Obligatory When The Bleeding **Stops**.

Some Hanafi Jurists Also Say That Menstruation Makes Ghushl Obligatory, But Only **With** The Condition Of The Blood Having Stopped.

Shafi‘I Madhhab

In The Shafi‘I Madhhab, This Issue Is Explained In More Detail:

- **Imam Al-Nawawi** Says That The Stoppage Of Blood Is Necessary (I.E., Ghusl Is Only Obligatory After The Bleeding Stops).
- **Al-Qalyubi** Says The Flowing Of Blood Makes Ghusl Obligatory, But The Stoppage Of Blood Is A Condition For It To Be Valid.
- **Al-Shirbini Al-Khatib** Says Both The Occurrence Of Menstruation/Postpartum Bleeding **And** The Stoppage Of Blood Are Considered, And Once The Blood Stops, It Means The Woman Must Pray. This Was Also Mentioned By **Al-Rafi‘I** And **Al-Tahqiq**.

Summary

“The Jurists Differed On What Obligates Ghusl: Is It The Presence Of Menstruation/Postpartum Bleeding, Its Cessation, Or Something Else?

The Malikis Hold That The Obligation Arises From The Presence Of Menstruation, Not Its Cessation, Though Cessation Is A Condition For Valid Ghusl.

Similarly, The Hanbalis, As Al-Buhuti Says: ‘It Becomes Obligatory Due To The Blood Flow, But The Cessation Is A Condition For Its Validity.’

Al-Kharqi’s Words Indicate That Ghusl Becomes Obligatory Upon Cessation, Which Is Also Apparent From The Hadiths.

Some Hanafis Say Menstruation Obligates Ghusl, But On The Condition That It Has Stopped.

Ibn ‘Abidin Says: The Cause For Ghusl’s Obligation Is Wanting To Do Acts Not Permissible Without It When The Time Is Short, Or When Acts Become Obligatory That Are Invalid Without Ghusl, Which Happens When Time Is Short.

The Shafi‘I Statements Vary:

- Al-Nawawi In *Al-Majmu* ‘ Holds The Cessation Is The Obligating Factor.
 - Al-Qalyubi Says The Flowing Obligates It, But Cessation Is A Condition For Validity.
 - Al-Shirbini Al-Khatib Says Both The Occurrence And Cessation Matter, Since Once The Blood Stops, The Woman Must Rise For Prayer, As Stated By Al-Rafi‘I And Al-Tahqiq.
 - Imam Al-Haramayn And Others Say This Disagreement Has No Significant Legal Consequence.
 - Al-Nawawi Says The Benefit Of This Difference Is: If A Menstruating Woman Becomes Junub (In A State Requiring Ghusl Due To Sexual Impurity), And We Say Ghusl For Menstruation Is Only Obligatory After Cessation, And We Take The Weaker View That Menstruating Women Can Recite Qur’an, Then She May Perform Ghusl For Janabah To Permit Recitation.
- The Author Of *Al-Bahr* Mentions Another Benefit: If A Menstruating Woman Is Martyred In Battle Against Disbelievers Before Her Menstruation Stops, Then If We Say The Obligation Arises Upon Cessation, She Is Not Washed. But If We Say It Arises Upon The Blood’s Flowing, Should She Be Washed? This Follows The Two Opinions About Washing A Junub Martyr.
- Al-Buhuti Also Mentions This Issue In The Hanbali Commentary On *Al-Iqna* ‘.
- Al-Shirbini Al-Khatib Mentions A Third Consequence: In The Case Where A Husband Says To His Wife, ‘If Ghusl Becomes Obligatory On You, You Are Divorced.’”

Classical References

- Hashiyah Ibn ‘Abidin On *Al-Durr Al-Mukhtar* 1/111

- *Fath Al-Qadir* 1/44
- *Hashiyah Al-Dusuqi* 1/130
- *Al-Majmu‘ Sharh Al-Muhadhdhab* 1/148–149
- *Al-Qalyubi Wa ‘Umayrah* 1/62
- *Mughni Al-Muhtaj* 1/69
- *Kashshaf Al-Qina‘* 1/146

Conclusion

When Menstruation (Hayd) Or Postpartum Bleeding (Nifas) Occurs, Ghusl Becomes Obligatory. However, The **Stoppage** Of The Blood Is A Condition For The Ghusl To Be **Valid**.

A More Detailed Explanation On This Will Follow, Insha’llah.

Does Death Make Ghusl Obligatory?

There Is A Difference Of Opinion Among The Jurists (Fuqaha) On Whether, When Someone Dies, Ghusl (Ritual Washing) Becomes Obligatory Or Not.

The **Hanafi**, Some **Maliki**, **Shafi‘I**, And **Hanbali** Scholars All Agree That **Ghusl Becomes Obligatory Upon Death**.

However, Some Maliki Scholars Say It Is **Sunnah** (Recommended) And Not Obligatory.

Al-Dusuqi Says That Ghusl Is **Obligatory** Upon Death, And This Is Also The Opinion Of ‘**Abd Al-Wahhab**, **Ibn Mahrez**, **Ibn ‘Abd Al-Barr**, **Ibn Rashid**, And **Ibn Farhun**.

On The Other Hand, Those Who Say It Is **Sunnah** (Recommended) Include: **Ibn Abi Zayd**, **Ibn Yunus**, **Ibn Al-Jallab**, And **Ibn Baziza**.

Summary

The Hanafis, Some Malikis, Shafi‘Is, And Hanbalis Hold That **Death** Is One Of The Things That Make Ghusl Obligatory, Based On The Prophet’s (Peace Be Upon Him) Words When One Of His Daughters Passed Away: “Wash Her Three Times, Or Five, Or More If Needed.”

Some Malikis, However, Say That Washing The Dead Is Sunnah (Recommended). Al-Dasuqi Says: The Obligation Of Washing The Deceased Is The View Of ‘Abd Al-Wahhab, Ibn Mahrez, Ibn ‘Abd Al-Barr, And It Was Popularized By Ibn Rashid And Ibn Farhun. As For It Being Sunnah, This Was Narrated By Ibn Abi Zayd, Ibn Yunus, Ibn Al-Jallab, And Popularized By Ibn Baziza.

Classical References

- Hashiyah Ibn ‘Abidin 1/112
- Hashiyah Al-Dusuqi 1/407
- *Kashshaf Al-Qina’* 1/145
- *Mughni Al-Muhtaj* 1/68

Conclusion

When A Person Dies — Whether A Man Or A Woman — **Ghusl Becomes Obligatory**.

The Detailed Explanation And Supporting Evidences Will Come At The Appropriate Section, Insha’llah.

The Ruling On Ghusl (Ritual Bath) When Accepting Islam

There Is A Difference Of Opinion Among The Fuqaha (Jurists) About Whether A Person Who Accepts Islam Is Required To Perform Ghusl (Ritual Bath).

According To The **Maliki** And **Hanbali** Schools, Ghusl Becomes **Obligatory** (Wajib) When Someone Accepts Islam.

From **Al-Mawsu‘ah Al-Fiqhiyyah Al-Kuwaitiyyah** (31/206):

The Malikis And Hanbalis Hold That When A Disbeliever Accepts Islam, Ghusl Becomes Obligatory. This Is Based On The Narration Of Abu Hurayrah (May Allah Be Pleased With Him) That **Thumamah Ibn Uthal** Accepted Islam, And The Prophet (Peace Be Upon Him) Said:

“Take Him To The Garden Of Banu Fulan And Instruct Him To Perform Ghusl With Water And Lote Leaves (Sidr).”

Additionally, Because A New Muslim Often May Not Be Free Of A Prior State Of Sexual Impurity (Janabah), They Considered The Likely Assumption (Zann) To Be Treated As If It Were Certain, Similar To The Rulings On Sleep Or The Joining Of The Sexual Organs (Which Both Obligate Ghusl).

They Did Not Differentiate Between An **Original Disbeliever** And An **Apostate**; Thus, Ghusl Is Obligatory For An Apostate Who Returns To Islam As Well.

The Malikis Also Explicitly State That Ghusl Is Valid **Even Before** Pronouncing The Shahadah (Testimony Of Faith), If The Person Has Resolved Islam In Their Heart — Because The True Islam Is What Is Held In The Heart, As Long As They Intend To Pronounce It Without Refusal.

They Also Say: If The Person Intends Their Ghusl For Janabah (Major Impurity), For Purification, Or For Islam, It Is Sufficient — Because The Intention Is To Remove Whatever Impurity They Were Under During Their Time Of Disbelief.

The Hanbalis Say: It Does Not Matter Whether, During Their State Of Disbelief, They Engaged In Something Requiring Ghusl (Such As Intercourse Or Ejaculation) Or Not, Nor Whether They Performed Ghusl Before Accepting Islam Or Not. The Ghusl Of Islam Is Sufficient, Whether They Intend All Purifications Or Only The Ghusl Of Islam, **Unless** They Specifically Intend That No Other Impurity Is Lifted.

They Point Out That The Prophet (Peace Be Upon Him) Did Not Distinguish Or Inquire In Detail, And If The Ruling Were Different Depending On Circumstances, He Would Have Asked.

The Time When Ghusl Becomes Obligatory Is **After** Pronouncing The Shahadah.

It Is Narrated From **Qays Ibn ‘Asim** That When He Accepted Islam, The Prophet (Peace Be Upon Him) Instructed Him To Perform Ghusl With Water And Lote Leaves (Sidr).

Supporting Hadiths

- **From Musnad Ahmad:**

Abu Hurayrah Narrated That When Thumamah Ibn Uthal Accepted Islam, The Prophet (Peace Be Upon Him) Said:

“Take Him To The Garden Of Banu Fulan And Command Him To Perform Ghusl.”

(Note: The Isnad [Chain Of Transmission] Is Weak Because **‘Abdullah Ibn ‘Umar Ibn Hafs** Is Not A Reliable Authority.)

- **From Tirmidhi:**

Narrated By Qays Ibn ‘Asim: When He Accepted Islam, The Prophet (Peace Be Upon Him) Instructed Him To Perform Ghusl With Water And Lote Leaves.

(This Chain’s Narrators Are Trustworthy.)

Reasoning

They Also Mention That There Is Usually Enough Reason To Obligate Ghusl, Such As Ejaculation Or Prior Sexual Intercourse.

The Hanbalis And Malikis Further Say That Even If Someone Performs Ghusl Before Pronouncing The Shahadah, It Is Valid — Because The Real Essence Is The **Heart’s Intention**. If The Person Had Truly Resolved On Islam In Their Heart, Even If They Took The Bath Before Publicly Declaring It, It Is Acceptable.

Hanafi And Shafi‘I View

The Hanafis And Shafi‘Is Hold That Performing Ghusl Upon Accepting Islam Is **Recommended (Mustahabb)** But **Not Obligatory**.

Their Evidence Is That **Many People** Accepted Islam In The Presence Of The Prophet (Peace Be Upon Him), But He Did **Not** Command All Of Them To Perform Ghusl.

Imam Nawawi (Shafi‘I Scholar) Says:

If Someone Accepts Islam **While In A State Of Janabah**, Then Ghusl Becomes **Obligatory** — This Is Explicitly Stated By Al-Shafi‘I And Agreed Upon By The Majority Of Scholars.

Kamal Ibn Al-Humam (Hanafi Scholar) Says:

The Stronger Opinion Is That Ghusl Is Obligatory Because The State Of Janabah Continues Even After Islam, And One Cannot Perform Acts That Require Purity Until That Janabah Is Lifted Through Ghusl.

However, Others Say It Is **Not Obligatory** Because The Person Was Not Previously Addressed By Islamic Rulings, And No New Janabah Occurred **After** Islam.

The Hanafis Further State:

If A Non-Muslim Woman Had Menstruated And Became Pure Before Converting, **No Ghusl Is Required**.

But If She Accepted Islam **While Menstruating** And Then Became Pure, She Must Perform Ghusl — Because The State Of Janabah Continues, Unlike Menstruation, Where The Bleeding Itself Was The Cause, And It Ends

Afterward.

Qadi Khan Says: The Safer Opinion Is That Ghusl Is Obligatory.

Among The Shafi‘Is, There Are Two Opinions On Whether Someone Who Performed Ghusl While Still A Disbeliever Must Repeat It After Converting.

One Opinion Says: **No, They Do Not Need To Repeat It**, Because The Ghusl Was Valid — Proven By The Fact That, When A Menstruating Woman Becomes Pure, She Does Not Need To Repeat The Ghusl After Converting, Just Like A Muslim Woman’s Ghusl Is Valid.

Summary Of The Issue

When Does Ghusl Become Obligatory?

A. Ghusl Due to Sexual Intercourse Without Ejaculation

Historical Disagreement Among the Sahabah

- **Early View:** Ghusl not required unless ejaculation occurred.
- **Later View:** Ghusl required as soon as penetration (دخول الحشفة) occurs, regardless of ejaculation.
- **Correct View:** Later hadith abrogated earlier ones. Consensus (Ijmā‘) formed that *penetration alone* obligates Ghusl.

Classical Texts

- **Ibn Hazm**, *al-Muḥallā* (1/249): Reports early disagreement and cites Uthmān, ‘Alī, Ṭalḥah, etc.
- **Bughiyat al-Muqtasid** (2/541): Confirms majority (Malik, Shāfi‘ī, Ahl al-Zāhir) viewed penetration as obligating Ghusl.

Ruling of the Four Madhāhib

Madhhab	Ruling	Reference
Ḥanafī	Ghusl is wajib upon penetration, even without ejaculation	<i>Mukhtaṣar al-Qudūrī</i> , p.12; <i>al-Durr al-Mukhtār</i> , p.27
Mālikī	Ghusl is obligatory upon دخول الحشفة (even if flaccid, no ejaculation)	<i>Sharḥ al-Kabīr</i> , 1/127
Shāfi‘ī	Ghusl required by penetration, even if unintentional or through barrier	<i>Asnā al-Maṭālib</i> , 1/64
Ḥanbalī	Ghusl wajib by دخول الحشفة — even without ejaculation	<i>Maṭālib Ūlī al-Nuhā</i> , 1/164; <i>Kashshāf al-Qinā’</i> , 1/142

Hadith Evidence

- **Early Concession Hadith:**
 - “Water is only due to water” (إنما الماء من الماء) — Abrogated
 - Sahih Muslim (343, 346), reported from Abu Sa‘īd, Ubayy, and others
- **Abrogating Hadith:**

- “When the two circumcised parts meet, Ghusl is obligatory — even without ejaculation.”
- Sahih Muslim (348), narrated by ‘Ā’ishah, Abu Musa, Abu Hurayrah
- **Clarification Hadith:**
 - Abu Dāwūd (214), “That ruling was a concession in the early days; now Ghusl is commanded.”
 - Authenticated by al-Albānī in *Ṣaḥīḥ Abī Dāwūd* (208)

B. Ghusl for Menstruation and Postpartum Bleeding

Points of Disagreement

- **When does Ghusl become obligatory?** Upon:
 - The *start* of bleeding?
 - The *end* of bleeding?
 - Or only when purification acts become necessary (e.g., prayer)?

Madhhab Positions

Madhhab	What Makes Ghusl Wājib?	Reference
Mālikī	Ghusl is wājib from <i>beginning</i> of ḥayḍ; valid only after blood stops	<i>Sharḥ al-Kabīr</i> , 1/90
Ḥanbalī	Blood flow obligates Ghusl; cessation is condition for validity	<i>Kashshāf al-Qinā’</i> , 1/146
Shāfi‘ī	Disagreement within school: Nawawī — obligation begins at cessation; Qalyūbī — begins at flow	<i>al-Majmū’</i> , <i>al-Qalyūbī</i> , <i>al-Tahqīq</i>
Ḥanafī	Mixed views: some say Ghusl is wājib after cessation; others say only when prayer becomes due	<i>Ibn ‘Ābidīn</i> , <i>Fatḥ al-Qadīr</i> , etc.

Fiqh Benefits of This Difference

- If woman dies before blood stops — is she to be washed?
- Can menstruating woman in Janābah perform Ghusl before ḥayḍ ends to recite Qur’an?
- Conditional divorce based on Ghusl becoming obligatory?

C. Does Death Make Ghusl Obligatory?

Majority View

- Ghusl becomes obligatory at death (wājib):
 - **Ḥanafī, Shāfi‘ī, Ḥanbalī**, and many Mālikīs.

Contrary View

- **Some Mālikīs:** Ghusl is *Sunnah* not obligatory — Ibn Abī Zayd, Ibn Yūnus, etc.

Hadith Evidence

- “Wash her three or five times...” — On the death of the Prophet's daughter.
 - Sahih (Bukhari, Muslim)

Classical Sources

- *Hashiyah Ibn ‘Ābidīn*, 1/112
- *Kashshāf al-Qinā’*, 1/145
- *Hashiyat al-Dusūqī*, 1/407
- *Mughnī al-Muhtāj*, 1/68

D. Ghusl for the New Muslim (Muhtadī)

Disagreement

Opinion	Details	Scholars
Wājib	Ghusl is obligatory on accepting Islam	Mālikī, Ḥanbalī
Mustahabb	Ghusl is only recommended	Ḥanafī, Shāfi‘ī

Evidence for Obligation

- **Hadith:** “Take him to the garden and make him perform Ghusl” — on Thumāmah’s conversion (Ahmad, Tirmidhī)
- Analogy with: likely Janābah before Islam
- Ghusl suffices even before pronouncing Shahādah if heart resolved on Islam

Evidence for Recommendation

- Prophet ﷺ did not command every new Muslim to perform Ghusl
- Nawawī: If the convert was in Janābah, Ghusl is *wājib*.
- Otherwise, it is *mustahabb*

Summary

- If there is *likely impurity* (e.g., Janābah), then Ghusl is *wājib*.
- If the convert was pure and practiced like a Muslim, Ghusl is not obligatory.
- If Ghusl done before Shahādah but with sincere intent — it suffices.

Conclusions

Ghusl required as soon as penetration (دخول الحشفة) occurs, regardless of ejaculation **Correct View** Later hadith abrogated earlier ones. Consensus (Ijmā‘) formed that *penetration alone* obligates Ghusl.

Ghusl becomes obligatory at death (*wājib*) **Ḥanafī, Shāfi‘ī, Ḥanbalī**, and many Mālikīs.

If A Non-Muslim — Man Or Woman — Accepts Islam, Then **Ghusl Becomes Obligatory**, Because There Is Uncertainty Whether They Were In A State Of Purity.

Even If They Performed Ghusl After Intercourse, It Is Unclear Whether They Properly Washed The Whole Body As Required By Islamic Ritual Law — Because Islam Has A **Specific Way** Of Achieving Ritual Purity.

However, If Someone Already Knew How To Achieve Purification, Or If A Man Or Woman Lived In A State Of Purity Just Like A Muslim (Even If They Weren't Muslim), And Then They Accepted Islam, **Then Ghusl Is Only Recommended (Mustahabb)**.
And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Kitāb Al-Ṭahārah (Purification) – Laws Of Janābah (Major Ritual Impurity) And Ḥayḍ (Menstruation)

In This Book, Some Rulings Related To **Janābah** (Major Impurity) Will Be Explained, And Some Rulings Related To **ḥayḍ** (Menstruation) Will Also Be Discussed.

In The Previous Book, Some Rulings About Janābah Were Already Explained, And The Remaining Rulings Will Be Presented Here.

Later, A Detailed Discussion About Menstruation Will Come In Its Proper Place, Inshā'allāh.

Issue 28 – Ruling On Entering The Masjid While In The State Of Janābah Or Ḥayḍ

There Is Disagreement Among Scholars On Whether A Man Or Woman In The State Of Janābah, Or A Woman In ḥayḍ (Menstruation) Or Nifās (Postnatal Bleeding), Can Enter The Masjid.

On This Issue, We Find **Three Main Opinions** Among The Fuqahā' (Jurists) And Muḥaddithīn (Scholars Of Hadith):

First Opinion: It Is Completely ḥarām (Forbidden) Without Exception.

Second Opinion: Staying Inside The Masjid Is ḥarām, But Simply Passing Through Is Permissible.

Third Opinion: It Is Completely Permissible Without Restriction.

The Ḥanafī Madhhab (School)

They Say That Entering The Masjid While In The State Of Janābah Is Not Makrūh (Disliked); Rather, It Is Impermissible.

However, If Someone Has An Urgent Need, They Should First Perform **Tayammum** (Dry Ablution) And Then Enter The Masjid.

(Reference: Imām Al-Kāsānī [587 AH], Badā'i' Al-Ṣanā'i' Fī Tartīb Al-Sharā'i', Vol. 1, P. 38)

Imām Burhān Al-Dīn [593 AH] Writes In *Al-Hidāyah* (Vol. 1, P. 33) That A Menstruating Woman Or A Man In Janābah Must Not Enter The Masjid.

He Then Presents The Hadith Where The Messenger Of Allah ﷺ Said,

“The Masjid Is Not For The One In Janābah.”

He Also Addresses The Shāfi'ī Opinion, Which Allows Passing Through, And Provides A Response To It.

Similarly, 'Allāmah Al-Rūmī [786 AH], In *Al-Ināyah Sharḥ Al-Hidāyah* (Vol. 1, P. 108), Discusses This Issue And, While Debating, Presents The Hadith That When The Messenger Of Allah ﷺ Held The Hand Of Ḥudhayfah Ibn Al-Yamān, Ḥudhayfah Said,

“I Am In A State Of Janābah,”
And The Prophet ﷺ Replied,
“A Believer Is Never Impure.”

He Also Cites Several Other Hadiths.

Imām Al-‘Aynī Gives A Detailed Explanation, Stating That A Man In Janābah Or A Menstruating Woman Should Not Enter The Masjid.

He Quotes Ibn Mas‘ūd, Mālik, And Al-Thawrī, Who Hold The Same Opinion, And Mentions The Hadith From Abu Dāwūd (No. 232), Where The Prophet ﷺ Said,

“I Do Not Allow A Menstruating Woman Or A Person In Janābah To Enter The Masjid.”

Imām Al-‘Aynī References *Al-Tārīkh Al-Kabīr* By Al-Bukhārī, Stating That Al-Bukhārī Considered This Hadith ṣaḥīḥ (Authentic).

He Then Says That The Shāfi‘ī’s Allow Passing Through The Masjid But Not Staying Inside, And Aḥmad Ibn Ḥanbal Says That If One Performs Wuḍū’, They May Even Stay — Though This Opposes The Majority (Jumhūr) View, Because Performing Wuḍū’ Does Not Remove The State Of Janābah.

This Same View (Complete Permission) Is Attributed To Ḥasan Al-Baṣrī, Sa‘īd Ibn Al-Musayyib, Ibn Jubayr, And Ibn Dīnār.

Similarly, Shāfi‘ī, Al-Muzanī, Dāwūd, And Ibn Al-Mundhir Say That One May Stay In The Masjid Unconditionally.

Their Evidence Includes That **Polytheists (Mushrikīn)** Used To Come To The Prophet ﷺ In The Masjid To Talk, And He Never Stopped Them.

They Also Cite The Hadith,

“A Believer Is Never Impure,”

But They Explain That This Means Physically (Externally) They Are Not Considered Najis, Although Ritual Impurity (ḥukmī Najāsah) Still Prevents One From Praying Or Entering The Masjid.

The Shāfi‘ī’s Rely On The Qur’ānic Verse:

“And Do Not Approach Prayer While You Are In A State Of Janābah — Except When Traveling (Passing Through) — Until You Perform Ghusl.”
(Sūrat Al-Nisā’ 4:43)

Imām Al-‘Aynī Explains That **“Except When Passing Through”** Here Means: “No, It’s Not Allowed,” And This Is Also The Interpretation Of The Scholars Of Tafsīr.

For Example, In Sūrat Al-Nisā’ 4:92,

“It Is Not For A Believer To Kill Another Believer, Except By Mistake.”

The Meaning Here Is “It Is Not Allowed, Except Mistakenly.”

Al-Zajjāj Explains That In The Verse About Janābah, The “Passing Through” Refers To A Traveler, And Imām Abū Bakr Al-Rāzī, In *Aḥkām Al-Qur’ān*, Mentions That According To ‘Alī And Ibn ‘Abbās, The Verse Means Travelers Who Do Not Find Water May Do Tayammum And Pray.

The Mālikī Opinion

Ibn Rushd Says That Imām Mālik Considered It Completely ḥarām (Forbidden) For A Person In Janābah To Enter The Masjid.

However, In *Al-Mudawwanah* (Vol. 1, P. 137), Imām Mālik's Fatwā Says That If Someone Merely **Passes Through**, There Is No Problem.

Ibn 'Arfah Explains That Janābah Prevents Entering The Masjid, Even If Just Passing Through, But With Wuḍū', Passing Through Or Sitting In The Masjid Is Permissible.

Imām Mālik Also Interprets The Qur'ānic Verse (Sūrat Al-Nisā' 4:43) That **“Except When Passing Through”** Refers To A Traveler Who, If Unable To Find Water, May Perform Tayammum.

(Reference: *Mukhtaṣar Khalīl*, Vol. 1, P. 463)

The Shāfi'ī Opinion

Imām Al-Shāfi'ī, In His Book *Al-Umm* (Vol. 1, P. 71), Explains That Some People Interpret The Qur'ānic Verse **“Except When Passing Through”** To Mean Travelers.

He Gives The Evidence That When The Quraysh Came To Madinah, They Spent One Night Sleeping In The Masjid, Among Them Jubayr Ibn Muṭ'im, Who Said:

“I Heard The Messenger Of Allah ﷺ Reciting The Qur'ān.”

Al-Shāfi'ī Explains That There Is No Harm If A Polytheist Stays In The Masjid Overnight, Except In **Masjid Al-Ḥarām**, Because The Qur'ān Says:

“Verily, The Polytheists Are Impure, So Let Them Not Approach Masjid Al-Ḥarām After This Year.” (Sūrat Al-Tawbah 9:28)

If Any Other Masjid Is Concerned, Ibn 'Umar Says:

“I Was In The Masjid With The Messenger Of Allah ﷺ While An Arab Polytheist Was Also Present.”

This Is Also The View Of Al-Muzanī.

The Opinion Of Aḥmad Ibn Ḥanbal

When Aḥmad Ibn Ḥanbal Was Asked Whether A Person In Janābah May Sit Or Pass Through The Masjid, He Replied:

“If He Performs Wuḍū', Then There Is No Harm In Passing Through Or Sitting.”

(Reference: *Masā'il Aḥmad* By Ishāq Ibn Rāhawayh, Vol. 2, P. 382)

Ibn Qudāmah, In *Al-Kāfi* (Vol. 1, P. 112), Also Says That Staying In The Masjid Is ḥarām, But Merely Passing Through Is Allowed.

Summary (Khulāṣa)

According To The **Mālikī, Shāfi'ī, Hanbalī** Madhhabs And The Majority (Jumhūr) Of Scholars, It Is **Haram (Forbidden)** For Someone In A State Of Janābah (Major Impurity) To **Stay Or Sit** In A Mosque, But **Passing Through** Is Allowed.

From *Bughyat Al-Muqtasid, Sharḥ Bidāyat Al-Mujtahid* (2/556):

“This Is The Opinion Of The Majority Of Scholars (Mālik, Al-Shāfi'ī, And Aḥmad) That A Junub (Person In Janābah) Is Prohibited From Staying In The Mosque — Meaning Sitting There — But Passing Through Is Allowed.”

From *Al-Sharḥ Al-Kabīr* By Al-Dardīr (1/139):

“Janābah Prohibits (Entering A Mosque), Even The Mosque Within One's Own House, If Intending To Remain There, And Even When Merely Passing Through, Meaning Walking Through. A Person Present Who Is Healthy May Not Enter Even With Tayammum (Dry Ablution) Unless Forced, Such As If The Only Available Water Is Inside, Or If His Home Is Inside And He Needs To Enter Or Leave For Ghusl, Or If He Has No Other Place To Stay Overnight — Then He Can Make Tayammum. As For The Sick Or A Traveler Without Water, They Make Tayammum. The Summary Is: Whoever Is Obligated To Do Tayammum May Enter For Prayer, But Should Not Stay Unless Absolutely Forced (Like A Disbeliever, Who Is Prohibited From Entering).”

From *Nihāyat Al-Muḥtāj* By Al-Ramlī (1/217):

“(It Is Haram) Due To Janābah (What Is Also Haram Due To Minor Impurity) Because It Is A Stronger Impurity, Including Staying In The Mosque... But This Prohibition Applies Only When There Is No Excuse.”

From *Al-Iqnā'* By Al-Ḥajjāwī (1/46):

“It Is Haram For A Junub, Menstruating Woman, Or Woman In Postnatal Bleeding Whose Bleeding Has Stopped, To Stay In A Mosque — Even An Eid Prayer Ground — Because It Counts As A Mosque, But Not A Funeral Prayer Ground, Unless They Perform Wuḍū'. If Performing Wuḍū' Is Impossible But Entering Is Necessary, It Is Allowed Without Even Tayammum, And Even More So With It. One May Perform Tayammum To Stay For Ghusl Or If One Has Chronic Bleeding Or Incontinence. Passing Through And Staying Are Allowed If There Is No Risk Of Defiling The Mosque, But If There Is Risk, Both Are Haram.”

On The Other Hand, **Abū Ḥanīfa, Sufyān Al-Thawrī, And Ishāq Ibn Rāhwayh** Say: Even Passing Through The Mosque Is **Not Allowed**, Except Out Of Necessity.

From *Bughyat Al-Muqtasid, Sharḥ Bidāyat Al-Mujtahid* (2/557):

“According To Abū Ḥanīfa, Al-Thawrī, And Ishāq Ibn Rāhwayh, It Is Not Permissible To Pass Through Except For A Matter Of Unavoidable Need.”

From *Al-Durr Al-Mukhtār* By Al-Ḥaṣkafī (1/171):

“(It Is Haram, Due To Major Impurity, To Enter A Mosque), But Not An Eid Or Funeral Prayer Ground, Nor A Ribāṭ (Sufi Lodge) Or Madrasa, As Mentioned By The Author And Others Regarding Menstruation And Just Before Witr Prayer. However, In *Waqf Al-Qunyah*: If The Madrasa Does Not Prevent People From Praying Inside, It Counts As A Mosque. (Even Passing Through Is Haram), Contrary To The Shāfi‘ī View, (Except Out Of Necessity).”

From *Al-Awsaṭ* By Ibn Al-Mundhir (2/230):

“A Group Said: A Junub Should Not Pass Through The Mosque Unless There Is No Alternative, And In That Case, They Should Perform Tayammum And Then Pass Through. This Was Said By Sufyān Al-Thawrī And Ishāq Ibn Rāhwayh. The Ḥanafī Scholars Said That If A Junub Traveler Needs To Pass Through A Mosque Where There Is A Water Source, He Should Perform Tayammum With Clean Earth, Enter The Mosque, Collect The Water, And Then Leave To Use It.”

And The Difference Of Opinion On This Issue Is Based On The Interpretation Of The Qur’anic Verse, Surah Al-Nisā’, Verse 43, And On The Basis Of Hadith.

Surah Al-Nisā’, Verse 43 Says:

“O You Who Believe! Do Not Approach Prayer While You Are Intoxicated Until You Know What You Are Saying, Nor While You Are In A State Of Major Impurity (Janābah), Unless You Are Merely Passing Through, Until You Perform Ghusl. But If You Are Ill Or On A Journey Or One Of You Comes From Relieving Himself Or You Have Had Intimate Contact With Women And You Find No Water, Then Perform Tayammum With Clean Earth And Wipe Your Faces And Your Hands. Indeed, Allah Is Ever Pardoning, Most Forgiving.”

Arabic:

يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَقْرَبُوا الصَّلَاةَ وَأَنْتُمْ سُكَارَىٰ حَتَّىٰ تَعْلَمُوا مَا تَقُولُونَ وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ حَتَّىٰ تَغْتَسِلُوا وَإِنْ كُنْتُمْ مَرْضَىٰ أَوْ عَلَىٰ سَفَرٍ أَوْ جَاءَ أَحَدٌ مِنْكُم مِّنَ الْغَائِطِ أَوْ لَامَسْتُمُ النِّسَاءَ فَلَمْ تَجِدُوا مَاءً فَتَيَمَّمُوا صَعِيدًا طَيِّبًا فَامْسَحُوا بِوُجُوهِكُمْ وَأَيْدِيكُمْ إِنَّ اللَّهَ كَانَ غَفُورًا

The Key Phrase Here Is:

“Unless You Are Merely Passing Through” (إِلَّا عَابِرِي سَبِيلٍ)

Explanation And Differences Of Opinion Among The Scholars:

Imām Ṭabarī Says:

There Is A Difference Among The Scholars Regarding This Issue. Some Say The Intended Meaning Is The Traveler (Musāfir).

Ibn ‘Abbās Explains:

Regarding The Phrase “Unless You Are Merely Passing Through,” It Refers To The Traveler. This Is Supported By The Hadith Recorded By Ibn Abī Shaybah, Vol. 2, Page 182, Narration 1677:

Ḥaddathanā Waki‘, ‘An Ibn Abī ‘Arūbah, ‘An Qatādah, ‘An Abī Mujliz, ‘An Ibn ‘Abbās:

“Regarding The Verse **‘Nor While You Are In A State Of Janābah Except When Passing Through’**, He (Ibn ‘Abbās) Said: It Refers To The Traveler.”

(This Chain Is **ṣaḥīḥ Li-Dhātihi**, I.E., Sound In Itself.)

Some People Have Objected To This Chain, Saying That Abū Mujliz’s Hearing (Samā‘) From Ibn ‘Abbās Is Not Established.

But This Objection Is Incorrect Because Their Connection **Is Established**, And It Is Also Confirmed In **Ṣaḥīḥ Muslim**:

Zuhayr Ibn Ḥarb Narrated To Us, ‘Abd Al-Ṣamad Narrated To Us, Hammām Narrated To Us, Qatādah Narrated To Us, Abū Mujliz Said:

“I Asked Ibn ‘Abbās About Witr, And He Said: I Heard The Messenger Of Allah (Peace Be Upon Him) Say: ‘A Single Rak‘ Ah At The End Of The Night.’ I Also Asked Ibn ‘Umar, And He Said: I Heard The Messenger Of Allah (Peace Be Upon Him) Say: ‘A Single Rak‘ Ah At The End Of The Night.’”

(Imām Ṭabarī Continues):

There Is Also A Narration From **‘Alī Ibn Abī Ṭālib** Regarding The Explanation Of This Verse, Where He Says That The Intended Meaning Is The Traveler:

Ibn Ḥumayd Narrated To Us, Hārūn Ibn Al-Mughīrah Narrated To Us, From ‘Anbasah, From Ibn Abī Laylā, From Al-Minhāl Ibn ‘Amr, From ‘Abbād Ibn ‘Abd Allāh, From ‘Alī (May Allah Be Pleased With Him):

“This Verse Was Revealed Regarding Travel: **‘Nor While You Are In A State Of Janābah Except When Passing Through,’** And ‘Passing Through’ Here Refers To The Traveler Who, If He Does Not Find Water, Performs Tayammum.”

However, Some Scholars Interpret The Verse To Mean “Passing Through The Mosque” (Because Prayer Is Performed In The Mosque, And The Verse Is Mentioning Prayer).

‘Abd Allāh Ibn Mas‘ūd Says:

Regarding The Phrase **‘Except When Passing Through’**, The Intended Meaning Is That It Is Permissible For A Junub (Person In Janābah) To Pass Through The Mosque.

This Is Narrated As:

Al-Ḥasan Ibn Yaḥyā Narrated To Us, ‘Abd Al-Razzāq Narrated To Us, Ma‘Mar Narrated To Us, From ‘Abd Al-Karīm Al-Jazarī, From Abū ‘Ubaydah Ibn ‘Abd Allāh, From His Father (Ibn Mas‘ūd)

Regarding The Verse:

“It Means Passing Through The Mosque.”

This Narration Is Also Present In **‘Abd Al-Razzāq’s Muṣannaf**, Vol. 1, Page 412, Narration 1629:

‘Abd Al-Razzāq From Ma‘Mar, From ‘Abd Al-Karīm Al-Jazarī, From Abū ‘Ubaydah Ibn ‘Abd Allāh, From Ibn Mas‘ūd, That He Used To Permit A Junub To Pass Through The Mosque And, As Far As I

Know, He Said: ‘Nor While You Are In A State Of Janābah Except When Passing Through.’

(This Chain Is ṣaḥīḥ Li-Dhātihi.)

There Is A Scholarly Debate About This Chain.

While **All Hadith Scholars** Agree That The Chain Is Authentic, **There Is Disagreement** On Whether Abū ‘Ubaydah Actually Heard (Samā‘) This Directly From His Father, Ibn Mas‘ūd.

Hadith Scholars Have Differed On This Issue. After Detailed Research, We Find That:

- **Most Hadith Scholars** Believe That Abū ‘Ubaydah’s Hearing From His Father, Ibn Mas‘ūd, Is **Not Established**.
- However, **Some Hadith Scholars** Believe The Connection Is Established. Among Them Are Ibn Al-‘Irāqī, Imām Al-Ḥākim, Abū Dāwūd, And Ibn Ḥajar (According To One Of His Statements).

This Connection Appears In Multiple Hadith Works, Including:

- **Al-Ḥākim**, Vol. 2, ḥadīth 2317:

Abū Al-‘Abbās Muḥammad Ibn Ya‘Qūb Narrated To Us, Al-Rabī‘ Ibn Sulaymān Narrated To Us, Al-Shāfi‘ī Narrated To Us, Sa‘īd Ibn Sālim Al-Qaddāḥ Narrated To Us, Ibn Jurayj Informed Me That Ismā‘īl Ibn Umayyah Informed Him From ‘Abd Al-Malik Ibn ‘Ubayd Who Said:

“I Was Present With Abū ‘Ubaydah Ibn ‘Abd Allāh Ibn Mas‘ūd When Two Men Came To Him Who Had Transacted A Sale. One Said: ‘I Bought From You For Such-And-Such,’ And The Other Said: ‘I Sold To You For Such-And-Such.’

Abū ‘Ubaydah Said: ‘Abd Allāh Ibn Mas‘ūd Narrated To Me In Such A Situation That He Was Present With The Messenger Of Allah (Peace Be Upon Him), And The Prophet Instructed The Seller To Swear An Oath, And Then Gave The Buyer The Choice: If He Wished, He Could Take (The Item), And If He Wished, He Could Leave It.’”

Musnad Ahmad, Volume 6, Page 160, Hadith 3649

Reported In The Section Of Musnad Abdullah Ibn Mas‘ūd — Printed By Mu‘assasat Al-Risalah.

Arabic Text:

حَدَّثَنَا يَحْيَى، عَنْ ابْنِ جُرَيْجٍ، قَالَ: أَخْبَرَنِي أَبُو الزُّبَيْرِ، أَنَّ مُجَاهِدًا، أَخْبَرَهُ أَنَّ أَبَا عُبَيْدَةَ، أَخْبَرَهُ عَنْ أَبِيهِ، قَالَ: كُنَّا جُلُوسًا فِي مَسْجِدِ الْخَيْفِ لَيْلَةً عَرَفَةَ قَبْلَ يَوْمِ عَرَفَةَ إِذْ سَمِعْنَا جَسَّ الْحَيَّةِ، فَقَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «اقْتُلُوا» قَالَ: فَقُمْنَا، قَالَ: فَدَخَلْتُ شَقَّ جُحْرٍ، فَأَتَيْتُ بِسَعْفَةٍ فَأَضْرَمْتُ فِيهَا نَارًا، «وَأَخَذْنَا عُودًا، فَقَلَعْنَا عَنْهَا بَعْضَ الْجُحْرِ، فَلَمْ نَجِدْهَا، فَقَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «دَعُوهَا، وَقَاهَا اللَّهُ شَرَّكُمْ، كَمَا وَقَاهُمْ شَرَّهَا»

Translation:

Yahya Narrated To Us From Ibn Jurayj, Who Said: Abu Al-Zubayr Informed Me That Mujahid Informed Him That Abu ‘Ubaydah Informed Him From His Father, Who Said:

We Were Sitting In The Masjid Al-Khayf On The Night Of ‘Arafah, Before The Day Of ‘Arafah, When We Heard The Sound Of A Snake.

The Messenger Of Allah (Peace Be Upon Him) Said: **“Kill It!”**

We Stood Up, But It Entered A Crack In Its Hole.

A Palm Frond Was Brought And Lit On Fire, And We Took A Stick And Dug Out Part Of The Hole, But We Did Not Find It.

The Messenger Of Allah (Peace Be Upon Him) Said: **“Leave It, Allah Protected It From Your Harm Just As He Protected You From Its Harm.”**

If You Notice, Abu ‘Ubaydah Says “**Akhbarana**” (Informed Us), Meaning **My Father Informed Me**.

Likewise, In Al-Mu‘Jam Al-Awsat Of Tabarani, Volume 9, Page 81, Hadith 9197/9189,
Printed By Dar Al-Haramayn.

Arabic Text:

حَدَّثَنَا أَبُو قُرَّةَ ، قَالَ : ذَكَرَ رَمَعَةُ ، عَنْ زِيَادِ بْنِ سَعْدٍ ، عَنْ أَبِي الزُّبَيْرِ ، حَدَّثَنِي يُونُسُ بْنُ حَبَّابٍ الْكُوفِيُّ ، قَالَ : سَمِعْتُ أَبَا عُبَيْدَةَ بْنَ عَبْدِ اللَّهِ بْنِ مَسْعُودٍ ، يَذْكُرُ أَنَّهُ سَمِعَ عَبْدَ اللَّهِ بْنَ مَسْعُودٍ ، يَقُولُ : إِنَّهُ كَانَ مَعَ النَّبِيِّ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - فِي سَفَرٍ إِلَى مَكَّةَ

Translation:

Abu Qurrah Narrated To Us; Zam‘Ah Reported From Ziyad Ibn Sa‘D From Abu Al-Zubayr; Yunus Ibn Khabbab Al-Kufi Narrated To Me, Who Said:

I Heard Abu ‘Ubaydah Ibn Abdullah Ibn Mas‘Ud Mention That He Heard Abdullah Ibn Mas‘Ud Say:

He Was With The Prophet (Peace Be Upon Him) On A Journey To Makkah.

Here, If You Look, Abu ‘Ubaydah Ibn Abdullah Ibn Mas‘Ud Says “**I Heard From Abdullah Ibn Mas‘Ud.**” However, There’s A Statement From Abu ‘Ubaydah Ibn Abdullah Ibn Mas‘Ud, Which Led Many Hadith Scholars (Muhaddithun) To Understand That **He Did Not Directly Hear (Sama‘) From His Father** But Rather Narrated Sayings.

Imam Ibn Sa‘D, In His Book Tabaqat Al-Kubra, Volume 6, Page 210, Narrates:

‘Amr Ibn Murrah Says To Abu ‘Ubaydah:

“Do You Remember Anything From (Your Father) Abdullah?”

He Replied:

“No.”

Arabic:

" قَالَ: أَخْبَرَنَا أَبُو دَاوُدَ سُلَيْمَانُ الطَّيَالِسِيُّ قَالَ: أَخْبَرَنَا شُعْبَةُ، عَنْ عَمْرِو بْنِ مَرْة، قَالَ: قُلْتُ لِأَبِي عُبَيْدَةَ: " أَتَذْكُرُ مِنْ عَبْدِ اللَّهِ شَيْئًا؟ فَقَالَ: لَا (This Chain Is **Sahih**.)

Because Of This, Scholars Have Differed On The Matter.

Moving On, Imam Al-Tabari Narrates:

Ibn ‘Abbas Explains The Verse “**And Not (Approach) While In A State Of Janabah, Except Passing Through**”

It Means: **Except Passing Through A Mosque If It Is Your Pathway, But Do Not Sit Inside.**

Arabic:

حَدَّثَنَا أَحْمَدُ بْنُ حَارِثٍ ، قَالَ: ثنا عُبَيْدُ اللَّهِ بْنُ مُوسَى ، عَنْ أَبِي جَعْفَرٍ الرَّازِيِّ ، عَنْ زَيْدِ بْنِ أَسْلَمَ ، عَنْ ابْنِ يَسَارٍ ، عَنْ ابْنِ عَبَّاسٍ: {وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ} [النساء: 43] قَالَ: «لَا تَقْرَبِ الْمَسْجِدَ إِلَّا أَنْ يَكُونَ طَرِيقُكَ فِيهِ ، فَتَمُرُّ مَرًّا وَلَا تَجْلِسُ

This Same Narration Is Also Mentioned By Abu Hatim In His Tafsir, Volume 3, Page 960, Hadith 5361:

Arabic:

حَدَّثَنَا مُحَمَّدُ بْنُ عَمَّارٍ، ثنا عَبْدُ الرَّحْمَنِ الدَّشْتُكِيُّ، أَنَّبَأَ أَبُو جَعْفَرٍ الرَّازِيُّ، عَنْ زَيْدِ بْنِ أَسْلَمَ، عَنْ عَطَاءِ بْنِ يَسَارٍ، عَنْ ابْنِ عَبَّاسٍ، فِي قَوْلِهِ: {وَلَا جُنُبًا} [النساء: 43] إِلَّا غَابِرِي سَبِيلٍ قَالَ: تَمَرُّ بِهِ مَرًّا وَلَا تَجْلِسُ (This Narration Is **Sahih Li Dhatihi**.)

Abu Hatim Further States:

This Narration Is Also Reported From Abdullah Ibn Mas‘Ud, Anas Ibn Malik, Abu ‘Ubaydah, Sa‘Id Ibn Al-Musayyib, Abu Al-Dahi, Nabi Al-Dahi, ‘Ata Ibn Abi Rabah, Mujahid, Masruq, Ibrahim Al-Nakha‘I, Zayd Ibn Aslam, Abu Malik, ‘Amr Ibn Dinar, Al-Hakam Ibn ‘Utaybah, Ikrimah, Al-Hasan Al-Basri, Yahya Ibn Sa‘Id Al-Ansari, Ibn Shihab, And Qatadah.

Ibn ‘Abbas Says:

“There Is No Harm For A Menstruating Woman (Ha’id) Or A Person In Janabah To Pass Through The Mosque As Long As They Do Not Sit Inside.”

Arabic:

حَدَّثَنَا ابْنُ حُمَيْدٍ، قَالَ: ثنا هَارُونُ، عَنْ نَهْشَلٍ، عَنِ الضَّحَّاكِ، عَنِ ابْنِ عَبَّاسٍ، قَالَ: لَا بَأْسَ لِلْحَائِضِ وَالْجُنُبِ أَنْ يَمُرَّا فِي الْمَسْجِدِ مَا لَمْ يَجْلِسَا فِيهِ

In Tafsir Imam Shafi‘I, Volume 2, Page 607,

Regarding This Same Verse, Imam Shafi‘I Says:

“Except Passing Through” Means A Person Only Passing Through The Mosque.

Ibn Kathir Says:

This Is The View Of Most Jurists, Including **Abu Hanifah, Shafi‘I, And Malik.**

Shafi‘I Says It Is **Makruh (Disliked)** For A Menstruating Woman To Pass Through The Mosque.

Arabic Reference:

فقال بعض أهل العلم بالقرآن في قول الله عزَّ وجلَّ: (وَلَا جُنُبًا إِلَّا غَابِرِي سَبِيلٍ) الآية، قال: لا تقربوا مواضع الصلاة، وما أشبه ما قال بما قال؛ لأنه ليس في الصلاة عبور سبيل، إنما عبور السبيل في موضعها، وهو المسجد، فلا بأس أن يمرَّ الجنبُ في المسجد ماراً ولا يقِيمَ فيه؛ لقول الله - عز وجل -: (وَلَا جُنُبًا إِلَّا غَابِرِي سَبِيلٍ) الآية وذكر ابن كثير: أنَّ هذا مذهب الشَّافِعِيِّ، وأبي حنيفة، ومالك رحمهما

Imam Ibrahim Bin Al-Sari Bin Sahl, Abu Ishaq Al-Zajjaj (D. 311 AH) Says Regarding The Verse {Except As Passers-By} — It Means The Traveler.

(*Ma‘Ani Al-Qur‘an*, Vol. 2, P. 55)

“And His Saying: (Until You Know What You Are Saying, And Not While In A State Of Janabah, Except As Passers-By, Until You Perform Ghusl)” —

I.E., Do Not Approach The Prayer While You Are In A State Of Janabah Except As Travelers, Meaning Unless You Are Travelers.

Imam Abu Bakr Muhammad Ibn Ibrahim Ibn Al-Mundhir Al-Nisaburi (D. 319 AH) Says:
{Except As Passers-By} Means Traveler.
(*Tafsir Ibn Mundhir, Vol. 2, P. 721*)

Imam Abu Al-Layth Nasr Ibn Muhammad Ibn Ahmad Ibn Ibrahim Al-Samarqandi (D. 373 AH) Says:
{Except As Passers-By} Means Traveler.

Imam Al-Qutbi Says Regarding “Do Not Approach The Prayer” —

This Means:

(In The State Of Janabah) Do Not Even Come Near The Masjid Except To Pass Through.

(*Bahr Al-‘Ulum, Vol. 1, P. 305*)

“...Then Allah Said: ‘And Not While In A State Of Janabah Except As Passers-By,’
Meaning Do Not Approach The Prayer In A State Of Janabah Except As Passers-By,
Meaning Unless You Are Traveling And Cannot Find Water, Then You Perform Tayammum And Pray If You
Are In Janabah.

Al-Zajaj Said: The True Meaning Is That You Should Not Pray While In Janabah Until You Perform Ghusl,
Except If You Are Unable To Find Water.

Al-Qutbi Said: Do Not Approach The Prayer, Meaning Do Not Approach The Masjid While In Janabah Except
If You Are Merely Passing Through.”

**Imam Abu Abdullah Muhammad Ibn Abdullah Ibn ‘Isa Ibn Muhammad Al-Marri, Al-Ibri, Famously
Known As Ibn Abi Zamanin Al-Maliki (D. 399 AH) Says:**

{Except As Passers-By} — As Explained In The Tafsir Of Ibn Abbas — Means Traveler.

(*Tafsir Qur’an Al-‘Aziz, Vol. 1, P. 374*)

“...His Saying {And Not While In A State Of Janabah Except As Passers-By Until You Perform Ghusl}, Ibn
Abbas’ Tafsir Is That This Refers To The Traveler — If He Does Not Find Water, He Should Perform
Tayammum And Pray.”

Imam Abu Muhammad Makki Ibn Abi Talib Al-Qaysi Al-Qurtubi Al-Maliki (D. 437 AH) Says:
{Except As Passers-By} —

This Means **Traveler**, And Ali Ibn Abi Talib, Mujahid, And Ibn Jubayr Said:

If A Man In Travel Is Overtaken By Janabah, He Should Perform Tayammum And Pray.

And It Is Also Said That The Meaning Is:

{Except As Passers-By} — Ibn Abbas Said It Means That Someone In A State Of Janabah Can Pass Through
The Masjid But Should Not Sit Down,

And Ibrahim Said: If There Is No Other Way, Then He Can Pass Through The Masjid But Should Not Sit
There.

“...His Saying {And Not While In A State Of Janabah Except As Passers-By}, Meaning: Do Not Approach It
(Prayer) In A State Of Janabah Except If You Are Passing By Its Place Until You Perform Ghusl.

And It Is Said, The Meaning Is: {Except As Passers-By}, Meaning If You Are Travelers, Then Perform

Tayammum.

Ali Ibn Abi Talib, Mujahid, And Ibn Jubayr Said: It Is The Man On A Journey Who Is Overtaken By Janabah, So He Performs Tayammum And Prays.

And It Is Said: It Means Do Not Approach The Places Of Prayer (Masjid) While In Janabah Except Passing Through.

Ibn Abbas Said: {Except As Passers-By}, Meaning Do Not Approach The Masjid Unless It Is On Your Path, So You Pass Through Without Sitting.

Al-Nakha'I Said: You Can Pass Through It If You Find No Other Way."

Ibn Zayd Said:

This Verse Was Revealed About A Man From The Ansar Whose House Opened Into The Masjid, And When They Became Junub, They Had No Water, And There Was No Other Path For Them Except Through The Masjid,

So This Verse Was Revealed {Except As Passers-By}, As A Concession For Them.

"...Ibn Zayd Said: It Was Revealed Regarding A Man From The Ansar Whose House Opened Into The Masjid, And When They Were Overtaken By Janabah And Had No Water, They Would Seek Water But Found No Way Except Through The Masjid,

So Allah Revealed {And Not While In A State Of Janabah Except As Passers-By} As A Concession For Them."

Malik And Shafi'I Hold The View That A Person In Janabah Can Pass Through The Masjid As A Passer-By. Malik Says That A Menstruating Woman **Should Not Enter** The Masjid,

But Others Allow Her To Pass Through, Just Like One In Janabah.

Ahmad Ibn Hanbal Says: If A Person In Janabah Performs Wudu, There Is No Problem If They Sit In The Masjid,

And Ishaq Agrees.

"...Malik And Shafi'I Hold That The One In Janabah Can Pass Through The Masjid As A Passer-By.

Malik Said: The Menstruating Woman Should Not Enter The Masjid, But Others Permitted Her To Pass Through, As With The Junub.

Ibn Hanbal Said: If The Junub Person Performs Wudu, There Is No Harm If They Sit In The Masjid.

And Ishaq Said The Same."

(Al-Hidayah Ila Bulugh Al-Nihayah, Vol. 2, P. 1340)

Imam Abu Al-Hasan Ali Ibn Muhammad Ibn Habib Al-Basri Al-Baghdadi, Known As Al-Mawardi (D. 450 AH) Says:

{Except As Passers-By} Has Two Interpretations:

Some Say It Refers To The Traveler Who, When Overtaken By Janabah, Should Not Pray Until He Performs Tayammum — This Is The View Of Ibn Abbas (In The Narration Of Abu Mujliz), Mujahid, Al-Hakam, And Ibn Zayd.

Others Say It Means A Person In Janabah Should Not Approach Places Of Prayer (Masjid) Except Passing Through —

This Is The View Of Ibn Abbas (In The Narration Of Al-Dahhak), Ibn Yasar, Jabir, Al-Hasan, Al-Zuhri, And Al-Nakha'I.

“...One Interpretation Is: It Refers To The Path Of The Traveler When He Is Junub — He Should Not Pray Until He Performs Tayammum,
 And This Is The View Of Ibn Abbas (As Narrated By Abu Mujliz), Mujahid, Al-Hakam, And Ibn Zayd.
 The Second Interpretation: The One In Janabah Should Not Approach Places Of Prayer (Masjids) Except While Passing Through,
 And This Is The View Of Ibn Abbas (As Narrated By Al-Dahhak), Ibn Yasar, Jabir, Al-Hasan, Al-Zuhri, And Al-Nakha‘I.”
 (Tafsir Al-Mawardi, Vol. 1, P. 490)

Now Let’s Look At The Hadiths On This Issue — What Do They Say?

In **Abu Dawood**, Volume 1, Hadith 232,
 Aisha (May Allah Be Pleased With Her) Narrates:
 Once The Messenger Of Allah ﷺ Came And Saw That The Doors Of The Companions’ Houses Were Opening Directly Into Masjid Al-Haram. He Said,
“Close These Doors Leading Into The Mosque.”
 Then He Went Into One Of His Own Rooms.
 But The People Did Nothing (They Waited), Hoping That A Special Concession (Rukhsa) Would Be Revealed For Them.
 Then Later, The Prophet ﷺ Came Out And Again Said,
“Close These Doors Leading Into The Mosque. Indeed, I Do Not Permit The Mosque For A Menstruating Woman Or For Someone In A State Of Major Ritual Impurity (Junub).”

Arabic Text:

حَدَّثَنَا مُسَدَّدٌ ، قَالَ : ثَنَا عَبْدُ الْوَاحِدِ بْنُ زِيَادٍ ، قَالَ : ثَنَا أَفْلَحُ بْنُ خَلِيفَةَ ، قَالَ حَدَّثَنِي جَسْرَةُ بِنْتُ دِجَاجَةَ قَالَتْ : سَمِعْتُ عَائِشَةَ تَقُولُ : جَاءَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَوُجُوهُ بُيُوتِ أَصْحَابِهِ شَارِعَةً فِي الْمَسْجِدِ ، فَقَالَ : وَجَّهُوا هَذِهِ الْبُيُوتَ عَنِ الْمَسْجِدِ ، ثُمَّ دَخَلَ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَلَمْ يَصْنَعْ الْقَوْمُ شَيْئًا رَجَاءً أَنْ يَنْزَلَ فِيهِمْ رُخْصَةٌ ، فَخَرَجَ إِلَيْهِمْ بَعْدُ فَقَالَ : وَجَّهُوا هَذِهِ الْبُيُوتَ عَنِ الْمَسْجِدِ فَإِنِّي لَا أَجُلُّ الْمَسْجِدَ لِحَائِضٍ وَلَا جُنُبٍ
 (Sahih Li Zatihi — Authentic By Itself)

About The Chain Of Transmission (Sanad) Of This Hadith

This Hadith’s Sanad Is Considered **Authentic (Sahih)** Or **Hasan** By Scholars.
 Some Critics Claim That **Imam Ahmad Ibn Hanbal** Called **Aflat Ibn Khalifa** Unknown (Majhool), But This Is **Baseless** Because All Major Hadith Scholars Have Graded Him As **Trustworthy**.

- **Abu Hatim**: Said “He Is A Shaykh (Reliable)”
 - **Darqutni**: Said “He Is Sound (Salih)”
 - **Ibn Hajar**: Called Him Sahih (Authentic)
 - **Ibn Hibban**: Called Him Thiqah (Trustworthy)
- (Reference: *Tahdhib Al-Tahdhib*, Vol. 1, P. 185)

In Fact, Even **Imam Ahmad** Himself Said About This Narrator:
 “I See No Fault In Him” (*Tahdhib Al-Kamal*, Vol. 3, P. 320)

References Of The Hadith (Takhrij Al-Hadith)

This Hadith Is Reported By:

- Ibn Khuzaymah In *Sahih* (2/466), Hadith No. 1327 (Book Of Prayer, Chapter: Prohibition Of Sitting In The Mosque For One In Major Impurity Or Menstruation)
- Abu Dawood In *Sunan* (1/92), Hadith No. 232 (Book Of Purification, Chapter: The One In Major Impurity Entering The Mosque)
- Ibn Majah In *Sunan* (1/411), Hadith No. 645 (Book Of Tayammum, Chapter: What Is Reported About Menstruating Women Avoiding The Mosque)
- Al-Bayhaqi In *Sunan Al-Kubra* (2/442), Hadith Nos. 4392–4393 (Book Of Prayer, Chapter: The One In Major Impurity May Pass Through But Not Stay), (7/65), Hadith No. 13532 (Book Of Marriage, Chapter: Entering The Mosque While In Major Impurity)
- Ibn Hajar In *Al-Matalib Al- 'Aliyah* (2/478), Hadith No. 182 (Book Of Ghusl, Chapter: Prohibition On One In Major Impurity Coming To The Mosque)
- Al-Tabarani In *Al-Mu 'Jam Al-Kabir* (23/373), Hadith No. 883 (Musnad Of Women, From Jasrah About Umm Salamah)

Explanation Of The Hadith (Sharh Al-Hadith)

This Narration Is **Undoubtedly Authentic**.

It's Surprising That Some Scholars Have Called It Weak Because The Prophet's ﷺ Statement Here Is A **Clear And Explicit Text** Showing **Prohibition**:

“I Do Not Permit The Mosque For A Menstruating Woman Or A Person In Major Ritual Impurity (Junub).”

This **Explicitly** Proves It Is **Haram (Forbidden)** For:

- A Junub Man Or Woman,
- A Menstruating Woman, Or
- A Woman In Postnatal Bleeding (Nifas),

To **Stay** In The Mosque, Whether For A **Long** Time Or Even A **Short** While.

Those Who **Generally** Say That A Junub Person Or A Menstruating/Postnatal Woman **Can** Stay In The Mosque — This Is **Incorrect**.

Even Those Who Say:

“If They Do Wudu Or Tayammum, They Can Sit Or Stay A Little While Or Long Time” —

This Is Also A **Weak Opinion**, Because Tayammum Removes The Major Impurity Only When There's No Water, But If Water Is Available, **Ghusl** Is Required.

Wudu Alone Doesn't Make It Permissible. Many Scholars Have Replied To This Issue, And The **Majority Of Scholars (Jumhur)** Oppose That Opinion.

However, If Someone Is **Traveling** And **Does Tayammum** (Due To No Water), Then Their State Of Major Impurity Is Considered Lifted, And They **May** Stay In The Mosque.

But In General Circumstances, This Is **Not Allowed**.

Connecting With The Quran (Surah Al-Nisa, 4:43)

The Quran Says:

“And Do Not Approach Prayer While You Are In A State Of Janabah, Except When Traveling (Passing By)...”

(ولا جنباً إلا عابري سبيل)

In The Tafsir Of This Verse, We See:

Ibn Abbas Says:

This Refers To The **Traveler** (*Musafir*).

Reported In Ibn Abi Shaybah, Vol. 2, P. 182, Hadith No. 1677:

Arabic:

. حَدَّثَنَا وَكِيعٌ ، عَنْ ابْنِ أَبِي عَرُوبَةَ ، عَنْ قَتَادَةَ ، عَنْ أَبِي مِجْلَزٍ ، عَنْ ابْنِ عَبَّاسٍ : { وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ } ، قَالَ : هُوَ الْمُسَافِرُ .

(Sahih Li Zatihi — Authentic By Itself)

In The Same Way, Ibn Abbas (May Allah Be Pleased With Him) Narrates:

Regarding The Verse {And Not While In A State Of Janabah (Major Impurity), Except When Passing Through} — He Explains That It Means: **“Except If The Mosque Is On Your Path, Then You May Pass Through It, But Do Not Sit In It.”**

Arabic Narration:

حَدَّثَنَا أَحْمَدُ بْنُ حَازِمٍ ، قَالَ : ثنا عُيَيْدُ اللَّهِ بْنُ مُوسَى ، عَنْ أَبِي جَعْفَرٍ الرَّازِيِّ ، عَنْ زَيْدِ بْنِ أَسْلَمَ ، عَنْ ابْنِ يَسَارٍ ، عَنْ ابْنِ عَبَّاسٍ : { وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ } [النساء: 43] قَالَ : «لَا تَقْرَبِ الْمَسْجِدَ إِلَّا أَنْ يَكُونَ طَرِيقَكَ فِيهِ ، فَتَمُرَّ بِهِ مَرًّا وَلَا تَجْلِسَ»

This Same Narration Was Also Mentioned By Imam Abu Hatim In His **Tafsir** (Volume 3, Page 960, Narration 5361):

حَدَّثَنَا مُحَمَّدُ بْنُ عَمَّارٍ ، ثنا عَبْدُ الرَّحْمَنِ الدَّشْتَكِيُّ ، أَنبَأَ أَبُو جَعْفَرٍ الرَّازِيُّ ، عَنْ زَيْدِ بْنِ أَسْلَمَ ، عَنْ عَطَاءِ بْنِ يَسَارٍ ، عَنْ ابْنِ عَبَّاسٍ ، فِي قَوْلِهِ : { وَلَا جُنُبًا } [النساء: 43] إِلَّا عَابِرِي سَبِيلٍ قَالَ : تَمُرُّ بِهِ مَرًّا وَلَا تَجْلِسُ

(Sahih Li Zatihi)

After Presenting This Narration, Abu Hatim States That This Is Also The Narration Of:

- Abdullah Bin Mas'ud
- Anas Bin Malik
- Abu Ubaidah
- Sa'id Bin Al-Musayyib
- Abu Al-Dhahhak
- Nafi' Al-Dhahhak
- Ata Ibn Abi Rabah
- Mujahid
- Masruq
- Ibrahim An-Nakha'i

- Zaid Bin Aslam
- Abu Malik
- Amr Bin Dinar
- Al-Hakam Bin Utaibah
- Ikrimah
- Al-Hasan Al-Basri
- Yahya Bin Sa'id Al-Ansari
- Ibn Shihab
- Qatadah

Furthermore, Ibn Abbas Says:

“It Is Not Harmful For A Menstruating Woman (ḥā'id) Or A Person In Janabah To Pass Through The Mosque As Long As They Do Not Sit In It.”

Arabic:

حَدَّثَنَا ابْنُ حُمَيْدٍ , قَالَ: ثنا هَارُونُ , عَنْ نُهْشَلٍ , عَنِ الضَّحَّاكِ , عَنِ ابْنِ عَبَّاسٍ , قَالَ: لَا بَأْسَ لِلْحَائِضِ وَالْجُنُبِ أَنْ يَمُرَّا فِي الْمَسْجِدِ مَا لَمْ يَجْلِسَا فِيهِ (Tafsir Al-Tabari, Surah Nisa, Verse 43)

Similarly, Abdullah Ibn Mas'ud (May Allah Be Pleased With Him) Explains This Verse {Except When Passing Through}:

“It Means That It Is Permissible For Someone In Janabah To Pass Through The Mosque.”

Arabic Narration:

حدثنا الحسن بن يحيى قال، أخبرنا عبد الرزاق قال، أخبرنا معمر، عن عبد الكريم الجزري، عن أبي عبيدة بن عبد الله، عن أبيه في قوله: "ولا جنبا إلا عابري سبيل"، قال: هو الممر في المسجد

This Narration Is Also Found In **Abdul Razzaq's Musannaf** (Volume 1, Page 412, Narration 1629):

عَبْدُ الرَّزَّاقِ عَنْ مَعْمَرٍ ، عَنْ عَبْدِ الْكَرِيمِ الْجَزَرِيِّ ، عَنْ أَبِي عُبَيْدَةَ بْنِ عَبْدِ اللَّهِ ، عَنْ ابْنِ مَسْعُودٍ ، أَنَّهُ كَانَ يُرَخِّصُ لِلْجُنُبِ أَنْ يَمُرَّ فِي الْمَسْجِدِ مُجْتَازًا ، وَلَا أَعْلَمُهُ إِلَّا قَالَ : { وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ }

(Sahih Li Zatihi)

About This Verse, There Is A Difference Of Opinion Among The Commentators (Mufasssīrīn):

Some Say That The Verse Refers To Travelers (Musafir), While Others Say It Refers To “Those Passing Through.” However, The Stronger View Appears To Be That It Applies To Both. This Is Also Supported By The Explanation Of Ibn Zayd, Who Said:

This Verse Was Revealed About A Man From The Ansar Whose House Was Directly Facing The Mosque, And When He Was In A State Of Janabah, He Had No Other Way To Get Water Except By Crossing Through The Mosque. So, Allah Revealed: {Except When Passing Through}, Granting Them A Concession.

Arabic:

وقال ابن زيد: نزلت في رجل من الأنصار كانت أبوابهم في المسجد، وكانت تصيبهم الجنابة ولا ماء عندهم، يريدون الماء فلا يجدون ممرا، إلا المسجد، فأنزل الله عز وجل {ولا جنبا إلا عابري سبيل} رخصة لهم.

Apparently, The Difference Among The Scholars Is Because:

- Those Who Say The Verse Refers To Travelers Argue That It Is Not Permissible For A Person In Janabah Or A Menstruating Woman To Enter The Mosque **Unless** They Are Travelers, Because A Traveler Can Perform Tayammum (Dry Ablution) And Thus Become Ritually Pure, Allowing Them To Enter The Mosque.

- Those Who Say The Verse Refers To Anyone “Passing Through” Argue That Whether The Person Is A Traveler Or Not, If They Have A Valid Reason And Need To Pass Through The Mosque, Merely Passing Is Permitted, But Sitting Or Staying Inside Is Forbidden.

If We Combine The Qur’an And Hadith Together, The Ruling Becomes Clear:

- The Prophet ﷺ Said: **“I Do Not Permit The Mosque For Someone In Janabah Or A Menstruating Woman.”**
- Ibn Abbas And Ibn Mas’ud Clarified: **“Passing Through Is Allowed If Needed, But Sitting Is Not.”**

This Shows That The Prophet’s ﷺ Statement About Not Permitting The Mosque Applies Specifically To **Staying Or Sitting**, Not To Merely Passing Through When Necessary.

Notably, The Prophet ﷺ Did Not Say **“I Do Not Permit Entering The Mosque”**; Rather, The Wording Implies **Remaining Or Staying**.

Therefore, When The Qur’an And Hadith Are Combined, The Ruling Becomes Clear:

Passing Through Out Of Necessity Is Allowed, But Sitting Or Staying Inside Is Not Permitted For Someone In Janabah, A Menstruating Woman, Or A Woman Experiencing Postnatal Bleeding (Nifas).

This Method Of Reconciling The Sources Allows For Simultaneous Application Of Both The Qur’an And Hadith Without Needing To Set One Aside. This Approach Is Well Known Among The Jurists (Fuqaha): When There Is A Difference Of Opinion On A Matter, The First Step Is To Explain The Evidence In Such A Way That Both Can Be Acted Upon; If That’s Not Possible, Then The Stronger And Weaker Opinions (Rajih Vs. Marjuh) And The Issues Of Abrogation (Nasikh Vs. Mansukh) Are Examined.

This Was Also The Position Of **Imam Abu Hanifa** (According To One Narration), The **Famous Position Of Imam Malik**, And The **Famous Position Of Imam Al-Shafi’i**.

Imam Ibn Battal Says That On This Issue (Of Entering The Mosque), There Is Difference Of Opinion Among The Scholars.

The Scholars Of **Ahl Al-Ra’y** Say That A Menstruating Woman (ḥā'id) And A Man In A State Of Major Impurity (Junub) Cannot Enter The Mosque — Except One Who Has Purified Themselves.

Sufyan Al-Thawri Says That If The Person Is A Traveler And Wants To Pass Through The Mosque, They Should Perform **Tayammum** (Dry Ablution).

Imam Malik And **Imam Shafi’i** Say That Such A Person Cannot Sit In The Mosque In That State, But Only Passing Through Is Allowed.

Imam Ahmad Ibn Hanbal And A Group Known As The **Ahl Al-Zahir** Say That A Junub Person Can Enter The Mosque. Ahmad Ibn Hanbal Adds That It Is Recommended (Mustahabb) That They Perform Wudu (Minor Ablution).

And One Group (An Earlier Group Among The Salaf) Says That If The Person Is A Traveler, They Can Perform Tayammum And Then Enter The Mosque — Because A Traveler Can Perform Tayammum If Water Is Not Available And Pray In That State, So They Can Also Enter The Mosque.

(Source: **Sharḥ Abu Dawood**, Vol. 1, P. 77)

Imam Mughaltay Says In His Commentary On This Hadith: Shafi‘I, Malik, And Abu Hanifa Say **Without Restriction** That It Is Not Permissible (For Junub Or Menstruating Persons To Enter The Mosque).

Abu Hanifa Adds That If They Perform Tayammum, They Can **Pass Through** The Mosque.

Ahmad Ibn Hanbal And Ishaq Say That If One Performs Wudu, There Is No Harm In Sitting In The Mosque.
(Source: **Sharḥ Ibn Majah**, Vol. 1, P. 880)

Imam Ayni Says In His Commentary On This Hadith:
According To Shafi‘I And Malik, Only Passing Through Is Permitted (I.E., Sitting Is Not Allowed).

Ahmad Ibn Hanbal Says That A Junub Person Can Sit In The Mosque After Performing Wudu.
(Source: **Sharḥ Abu Dawood**, Vol. 1, P. 517)

Imam Ayni Further Says In The Commentary:
According To Malik, Al-Thawri, And Ibn Mas‘Ud, A Menstruating Woman And A Junub Person Should **Not** Enter The Mosque.

Ahmad Ibn Hanbal Says That After Performing Wudu, They Can Stay In The Mosque — This View Opposes The Majority (Jumhur).

Al-Hasan Al-Basri, Ibn Al-Musayyab, Ibn Jubayr, And Ibn Dinar Narrate Opinions Similar To Shafi‘I’s (I.E., Passing Through Is Allowed).

Al-Muzani, Dawud, And Ibn Al-Mundhir Say It Is **Permissible Without Restriction** — This Is Also The View Of Zayd Ibn Aslam.
(Source: **Al-Binayah**, Vol. 1, P. 643)

Mullah Ali Al-Qari Says In The Commentary On This Hadith:
Regarding The Menstruating Woman Or The Junub Person Staying In The Mosque, Malik, Shafi‘I, And The Companions Of Abu Hanifa Say It Is **Not Permissible**.

Shafi‘I And Malik Allow **Only Passing Through**.

Ahmad And Al-Muzani Say Staying Is Permissible Because The Qur’an Says (Surah Al-Nisa, Verse 43):
“...*Except If You Are Passing Through...*”, Meaning A Traveler Who Becomes Junub Can Perform Tayammum And Pray.

Al-Muzani, Dawud, Ibn Al-Mundhir, And Others Say They Can Stay Without Restriction.

Imam Nawawi Says The Fundamental Matter Is That There Is **No Authentic Evidence** Present To Declare It Strictly Prohibited.
(Source: **Mirqat Al-Mafatih**, Vol. 2, P. 440)

Shawkani Says In His Commentary On This Hadith:

As For The Matter Of The Imams Regarding This Issue, There Are Two Hadiths Indicating That It Is **Not Allowed** For A Menstruating Woman Or A Junub Person To Stay In The Mosque.

This Is The Madhhab Of Most Jurists (Fuqaha) And Hadith Scholars (Muhaddithin).

Dawud And Al-Muzani Say It Is Permissible **Without Restriction**.

Ahmad Ibn Hanbal And Ishaq Say That If A Junub Person Performs Wudu, They Can Enter And Sit In The Mosque — But For A Menstruating Woman, It Is **Not** Permissible.

Those Who Say It Is Unrestrictedly Permissible — Ibn Hazm Says Their Argument Is Invalid.

Sayyid Ibn Mansur Reports In His Sunan, From Ata Ibn Yasar (With The Chain Present In The Book), Saying: *I Saw The Companions Sitting In The Mosque While In A State Of Janabah, After Performing Wudu.* (Source: **Nayl Al-Awṭar**, Vol. 1, P. 287)

Azimabadi Says In His Commentary On The Hadith:

The Messenger Of Allah ﷺ Said: *“I Do Not Permit The Mosque For A Junub Person Or A Menstruating Woman.”*

This Indicates They Cannot Stay In The Mosque.

However, The **Duration** Matters — Whether Briefly Or For Long — And Likewise Whether Someone Is Just **Passing Through**.

(Ibn Qayyim’s Statement Is Quoted.)

The Evidence Is From The Qur’an (Surah Al-Nisa, Verse 43): *“...Except When Passing Through The Mosque...”*

Ibn Kathir Says, Based On Abu Hatim’s Chain, That Ibn Abbas Says In The Tafsir Of This Verse: A Junub Or Menstruating Woman Cannot Stay In The Mosque Except When **Passing Through**.

Similar Narrations Come From Abdullah Ibn Mas‘Ud, Anas, Abu Ubaydah, Sa‘Id Ibn Al-Musayyib, Al-Dahhak, Ata, Mujahid, Masruq, Ibrahim Al-Nakha‘I, Zayd Ibn Aslam, Abu Malik, Amr Ibn Dinar, Al-Hakam Ibn Utbah, Ikrimah, Al-Hasan Al-Basri, Yahya Ibn Sa‘Id Al-Ansari, Ibn Shihab, And Qatadah.

Malik And Shafi‘I Say **Passing Through** Is Allowed.

Ibn Al-Mundhir Explains That Sufyan Al-Thawri, Abu Hanifa’s Companions, And Ishaq Say That **Even Passing Through Is Not Allowed** Unless There Is No Other Way, In Which Case The Person Should Perform Wudu And Then Pass — And If Water Is Unavailable, They Should Perform Tayammum And Then Pass.

Ahmad Ibn Hanbal’s Madhhab Is That Passing Is Allowed **Only In Cases Of Need** — For Example, If The Only Route Goes Through The Mosque.

Otherwise, Under Normal Conditions, It Is **Not Allowed**.
(Source: **Awn Al-Ma'Bood, Sharh Sunan Abi Dawood**, Vol. 1, P. 267)

Ibn Majah, Vol. 1, P. 411, Hadith No. 645:

Umm Salamah Says:

The Messenger Of Allah ﷺ Said:

"I Do Not Permit The Mosque For A Menstruating Woman Or A Junub Person."

Arabic:

حَدَّثَنَا أَبُو بَكْرِ بْنُ أَبِي شَيْبَةَ ، وَمُحَمَّدُ بْنُ يَحْيَى قَالَ : حَدَّثَنَا أَبُو نُعَيْمٍ ، حَدَّثَنَا ابْنُ أَبِي عَتَبَةَ ، عَنْ أَبِي الْخَطَّابِ الْهَجَرِيِّ ، عَنْ مَخْذُوجِ الدُّهْلِيِّ ، عَنْ جَسْرَةَ قَالَتْ : أَخْبَرْتَنِي أُمُّ سَلَمَةَ قَالَتْ : دَخَلَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ صَرْحَةَ هَذَا الْمَسْجِدِ فَنَادَى بِأَعْلَى صَوْتِهِ : إِنَّ الْمَسْجِدَ لَا يَجِلُّ لِحُجْبٍ وَلَا لِحَائِضٍ

Sunan Al-Kubra (Bayhaqi), Vol. 2, P. 443, Hadith No. 4395:

Jabir Ibn Abdullah Says That The **Exception** For Passing Refers To A Junub Person Merely Passing Through.

Arabic:

أَنْبَأَ أَبُو حَازِمٍ الْحَافِظُ ، أَنْبَأَ أَبُو أَحْمَدَ الْحَافِظُ ، أَنْبَأَ أَبُو الْعَبَّاسِ مُحَمَّدُ بْنُ إِسْحَاقَ النَّقْفِيُّ فِي التَّفْسِيرِ ، ثَنَا زِيَادُ بْنُ أَبِي بَرْ ، ثَنَا هُشَيْمٌ ، أَنْبَأَ أَبُو الرَّبِيعِ (عَنْ جَابِرٍ قَالَ : كَانَ أَحَدُنَا يَمُرُّ فِي الْمَسْجِدِ وَهُوَ جُنُبٌ مُجْتَنِزًا .

(This Hadith Is Considered **Sahih Li Zatihi** — Authentic In Itself.)

Takhrij (Hadith References):

- Ibn Khuzaymah, *Sahih*, Vol. 2, P. 469, No. 1331
(Book Of Prayer, Chapter: Concession Of A Junub Person Passing Through The Mosque Without Sitting)
- Al-Darimi, *Musnad*, Vol. 1, P. 750, No. 1212
(Book Of Purity, Chapter: Junub Person Passing Through Mosque)
- Sa'Id Ibn Mansur, *Sunan*, Vol. 4, P. 1270, No. 645
(Book Of Tafsir, Commentary On Surah Nisa 43)
- Al-Bayhaqi, *Sunan Al-Kubra*, Vol. 2, P. 443, No. 4395
(Book Of Prayer, Chapter: Junub Person Passing Through Mosque Without Staying)
- Ibn Abi Shaybah, *Musannaf*, Vol. 2, P. 144, No. 1560
(Book Of Purity, Chapter: Junub Passing Through Mosque Before Ghusl)

Sunan Kubra Al-Bayhaqi, Vol. 2, P. 443, Hadith 4397

Anas Ibn Malik Says:

“By ‘Passing By’ (Mentioned In The Verse), It Means Passing Through Without Sitting Down.”

Arabic:

أَنْبَأَ أَبُو عَبْدِ اللَّهِ الْحَافِظُ، ثَنَا أَبُو الْعَبَّاسِ (الْأَصَمُّ)، ثَنَا إِبْرَاهِيمُ بْنُ مَرْزُوقٍ، ثَنَا مُسْلِمُ بْنُ إِبْرَاهِيمَ، عَنِ الْحَسَنِ بْنِ أَبِي جَعْفَرٍ الْأَزْدِيِّ، عَنْ سَلَمِ الْعُلَوِيِّ،

عَنْ أَنَسِ بْنِ مَالِكٍ، قَوْلُهُ: { وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ } قَالَ: يَجْتَازُ وَلَا يَجْلِسُ
(Musnad)

Sunan Kubra Al-Bayhaqi, Vol. 7, P. 65, Hadith 13533

Umm Salamah Says:

The Messenger Of Allah ﷺ Said:

“My Mosque Is Forbidden For All Menstruating Women And All Men In The State Of Janabah (Major Ritual Impurity), Except For Muhammad And His Family: Ali, Fatimah, Hasan, Husayn, And Ahl Al-Bayt.”

Arabic:

أَخْبَرَنَا أَبُو نَصْرٍ عُمَرُ بْنُ عَبْدِ الْعَزِيزِ بْنِ عُمَرَ بْنِ قَتَادَةَ، أَنبَأَ أَبُو الْحَسَنِ مُحَمَّدُ بْنُ الْحَسَنِ بْنِ إِسْمَاعِيلَ السَّرَاجَ، ثَنَا مَطِينٌ، ثَنَا يَحْيَى بْنُ حَمْزَةَ التَّمَارِ، قَالَ: سَمِعْتُ عَطَاءَ بْنَ مَسْلَمٍ يَذْكُرُ عَنْ إِسْمَاعِيلَ بْنِ أُمِيَّةَ، عَنْ جَسْرَةَ، عَنْ أُمِّ سَلَمَةَ - رَضِيَ اللَّهُ عَنْهَا - قَالَتْ: قَالَ رَسُولُ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: أَلَا إِنَّ مَسْجِدِي حَرَامٌ عَلَى كُلِّ حَائِضٍ مِنَ النِّسَاءِ، وَكُلِّ جَنْبٍ مِنَ الرِّجَالِ إِلَّا عَلَى مُحَمَّدٍ وَأَهْلِ بَيْتِهِ؛ عَلِيٍّ وَفَاطِمَةَ وَالْحَسَنَ وَالْحُسَيْنَ - رَضِيَ اللَّهُ عَنْهُمْ.

(This Hadith Is **Da‘If** — Weak.)

- **Imam Bayhaqi** Called It Weak.
- **Imam Shafi‘I** Also Regarded It As Weak.
- The Reason They Called It Weak Is Based On Criticism (Jarh) Of **Jisrah Bint Dajaja**.
- However, Some Scholars Disagree:
 - **Ajuli** Says She Is Trustworthy (Thiqa).
 - **Ibn Hibban** Says She Is Thiqa (Tadhib Al-Kamal, Vol. 35, P. 143).
 - **Abu Nu‘Aym** Even Called Her A Companion (Sahabi), Tadhib Al-Tadhib, Vol. 4, P. 667.
 - **Ibn Hajar** Says She Is Acceptable (Maqbul), Taqrib Al-Tadhib, Vol. 1, P. 1348.
 - **Imam Dhahabi** Also Calls Her Thiqa (Al-Kashshaf, Vol. 5, P. 189).
- **However, Yahya Ibn Hamzah** In This Chain Is **Unknown (Majhool)**.

Another Version Of This Hadith In Bayhaqi’s Collection Has **Abu Al-Khattab**, Who Is Also Majhool.

Sahih Muslim, Vol. 1, P. 168, Hadith 297/655

Hazrat Aisha (رضي الله عنها) Narrates:

The Messenger Of Allah ﷺ Would Extend His Head Out Of The Mosque (Toward Her Window When He Was In I‘Tikaf), And She Would Wash His Head Even When She Was Menstruating.

Arabic:

وَحَدَّثَنِي هَارُونُ بْنُ سَعِيدٍ الْأَيْلِيُّ، حَدَّثَنَا ابْنُ وَهْبٍ: أَخْبَرَنِي عَمْرُو بْنُ الْحَارِثِ، عَنْ مُحَمَّدِ بْنِ عَبْدِ الرَّحْمَنِ بْنِ نَوْفَلٍ، عَنْ عُرْوَةَ بْنِ الرُّبَيْعِ، عَنْ عَائِشَةَ زَوْجِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ أَنَّهَا قَالَتْ: كَانَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يُخْرِجُ إِلَيَّ رَأْسَهُ مِنَ الْمَسْجِدِ وَهُوَ مُجَاوِرٌ، فَأَغْسِلُهُ وَأَنَا حَائِضٌ.

Takhrij (Sources And References)

This Hadith Is Reported By:

- Bukhari (1/67, Hadith 295; 3/48, Hadith 2028–2029; 7/164, Hadith 5925, Etc.)
- Muslim (1/167–168, Hadith 297)

- Malik In Al-Muwatta (1/82, Hadith 195/48)
- Ibn Jarud In Al-Muntaqa
- Ibn Khuzaymah In His Sahih
- Ibn Hibban In His Sahih
- Al-Nasa'i In Al-Mujtaba And Al-Sunan Al-Kubra
- Abu Dawud, Tirmidhi, Darimi, Ibn Majah, Bayhaqi, Ahmad, Tayalisi, Humaydi, Abu Ya'La, Bazzar, 'Abd Al-Razzaq, Ibn Abi Shaybah, Al-Tirmidhi In Al-Shama'il, Al-Tabarani (Al-Awsat, Al-Saghir), And Others.

Saeed Bin Jubayr Al-Asadi Says:

“Passing Through Is Allowed, Sitting Is Not.”

Arabic:

أَخْبَرَنَا الْحَكَمُ بْنُ الْمُبَارَكِ ، حَدَّثَنَا شَرِيكٌ ، عَنْ سِمَاكِ ، عَنْ عِكْرَمَةَ ، وَسَالِمٍ ، عَنْ سَعِيدٍ قَالَا : يَمُرُّ وَلَا يَقْعُدُ فِيهِ (Rijāl Thiqa — The Narrators Are Reliable)

Takhrīj Al-Ḥadīth:

Reported By Al-Dārimī In *Musnad* (1/749) No. 1211, And Ibn Abī Shaybah In *Muṣannaf* (2/145) No. 1563.

Ikrimah Says:

“Passing Through Is Allowed, Sitting Is Not.”

Arabic:

أَخْبَرَنَا الْحَكَمُ بْنُ الْمُبَارَكِ ، حَدَّثَنَا شَرِيكٌ ، عَنْ سِمَاكِ ، عَنْ عِكْرَمَةَ ، وَسَالِمٍ ، عَنْ سَعِيدٍ قَالَا : يَمُرُّ وَلَا يَقْعُدُ فِيهِ (Rijāl Thiqa — The Narrators Are Reliable)

Takhrīj Al-Ḥadīth:

Reported By Al-Dārimī In *Musnad* (1/749) No. 1211, And Ibn Abī Shaybah In *Muṣannaf* (2/145) No. 1563.

Ibrāhīm Says:

“No One Should Pass Through The Mosque Unless There Is No Other Way.”

Arabic:

حَدَّثَنَا جَرِيرٌ ، عَنْ مَنْصُورٍ عَنْ إِبْرَاهِيمَ { وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ } قَالَ : لَا يَمُرُّ الْجُنُبُ فِي الْمَسْجِدِ إِلَّا أَنْ لَا يَجِدَ طَرِيقًا غَيْرَهُ (Saḥīḥ Li Dhātihi — Authentic In Itself)

Takhrīj Al-Ḥadīth:

Reported By Ibn Abī Shaybah In *Muṣannaf* (2/145) No. 1564.

Hasan Al-Baṣrī Says:

“A Person In A State Of Janābah (Major Ritual Impurity) Or A Menstruating Woman May Pass Through The Mosque But Should Not Sit.”

Arabic:

حَدَّثَنَا أَبُو بَكْرِ بْنُ عَيَّاشٍ ، عَنْ هِشَامٍ عَنْ الْحَسَنِ قَالَ : الْجُنُبُ وَالْحَائِضُ يَمُرَّانَ [فِي الْمَسْجِدِ] وَلَا يَمْكُثَانِ فِيهِ
(Hasan — Sound)

Takhrīj Al-Ḥadīth:

Reported By Ibn Abī Shaybah In *Muṣannaf* (2/145) No. 1565.

Sa‘īd Bin Al-Musayyib Says:

“In The Mosque, One May Pass Through But Not Sit.”

Arabic:

حَدَّثَنَا وَكِيعٌ ، عَنْ هِشَامٍ - صَاحِبِ الدُّسْتُوَائِيَّ - عَنْ قَتَادَةَ عَنْ ابْنِ الْمُسَيَّبِ قَالَ : الْجُنُبُ يَجْتَازُ فِي الْمَسْجِدِ وَلَا يَجْلِسُ فِيهِ
(Hasan — Sound)

Takhrīj Al-Ḥadīth:

Reported By Ibn Abī Shaybah In *Muṣannaf* (2/145) No. 1566.

‘Atā’ Ibn Abī Rabāḥ Explains:

“{Except For Those Merely Passing Through} — It Refers To The Person In A State Of Janābah Passing Through The Mosque.”

Arabic:

حَدَّثَنَا عُثْمَرٌ ، عَنِ ابْنِ جُرَيْجٍ عَنْ عَطَاءٍ فِي قَوْلِهِ { وَلَا جُنُبًا إِلَّا عَابِرِي سَبِيلٍ } قَالَ : الْجُنُبُ يَمُرُّ فِي الْمَسْجِدِ
(Rijāl Thiqa — Narrators Are Reliable)

Takhrīj Al-Ḥadīth:

Reported By Ibn Abī Shaybah In *Muṣannaf* (2/145) No. 1568, And ‘Abd Al-Razzāq In *Muṣannaf* (1/413) No. 1617.

Masrūq Ibn Al-Ajda‘ Says:

“A Person In Janābah Should Not Pass Through The Mosque Unless It’s Absolutely Necessary.”

Arabic:

حَدَّثَنَا حُمَيْدُ بْنُ عَبْدِ الرَّحْمَنِ ، عَنْ زُهَيْرٍ ، عَنْ جَابِرٍ ، عَنْ أَبِي الصُّحَيْ عَنْ مَسْرُوقٍ قَالَ : لَا يَمُرُّ الْجُنُبُ فِي الْمَسْجِدِ إِلَّا أَنْ يُلْجَأَ إِلَيْهِ

Takhrīj Al-Ḥadīth:

Reported By Ibn Abī Shaybah In *Muṣannaf* (2/146) No. 1569.

Regarding Those Who Say That A Person In Janābah May Remain In The Mosque:

They Cite The Evidence:

It Contains The Wording Where The Messenger Of Allah ﷺ Said:

“A Believer Does Not Become Impure.”

The Context:

When Ḥudhayfah Withdrew His Hand After Shaking Hands With The Prophet ﷺ, Saying, “I Am In A State Of Janābah,” The Prophet ﷺ Said:

“Subḥānallāh! O Abū Hirr (Abū Hurayrah), The Believer Does Not Become Impure.”

Arabic:

حَدَّثَنَا عَيَّاشُ قَالَ: حَدَّثَنَا عَبْدُ الْأَعْلَى ، حَدَّثَنَا حُمَيْدٌ ، عَنْ بَكْرِ ، عَنْ أَبِي رَافِعٍ ، عَنْ أَبِي هُرَيْرَةَ قَالَ: لَقِيتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَأَنَا جُنُبٌ ، فَأَحَذَ بِيَدِي ، فَمَشَيْتُ مَعَهُ حَتَّى قَعَدَ ، فَأَنْسَلْتُ ، فَأَتَيْتُ الرَّحْلَ فَأَغْتَسَلْتُ ، ثُمَّ جِئْتُ وَهُوَ قَاعِدٌ ، فَقَالَ: أَيْنَ كُنْتَ يَا أَبَا هُرَيْرٍ؟ فَقُلْتُ لَهُ: فَقَالَ: سُبْحَانَ اللَّهِ . يَا أَبَا هُرَيْرٍ ، إِنَّ الْمُؤْمِنَ لَا يَنْجُسُ .

Takhrīj Al-Ḥadīth:

Reported By:

- Al-Bukhārī (*Ṣaḥīḥ*, 1/65) No. 283, 285
- Muslim (*Ṣaḥīḥ*, 1/194) No. 371
- Ibn Al-Jārūd (*Al-Muntaqā*, 1/43) No. 106
- Ibn Hibbān (*Ṣaḥīḥ*, 4/69) No. 1259
- Al-Nasā'ī (*Al-Mujtabā*, 1/76) No. 269/3, (*Al-Kubrā*, 1/174) No. 259
- Abū Dāwūd (*Sunan*, 1/92) No. 231
- Al-Tirmidhī (*Jāmi'*, 1/163) No. 121
- Ibn Mājah (*Sunan*, 1/336) No. 534
- Al-Bayhaqī (*Sunan Al-Kubrā*, 1/189) No. 923
- Aḥmad (*Musnad*, 3/1523) No. 7331, (2/1882) No. 9090, (2/2100) No. 10224
- Ibn Abī Shaybah (*Muṣannaf*, 2/226) No. 1835
- Al-Ṭaḥāwī (*Sharḥ Ma'Ānī Al-Āthār*, 1/13) No. 7

Explanation Of The ḥadīth:

Using This ḥadīth As An Analogy To Argue That **Because A Believer Is Not Impure, They May Stay In The Mosque** Is Strange.

Why?

Because There Is No Disagreement Among Jurists (Fuqahā') That A Believer Is Never Inherently Impure — Whether They Are In Janābah, Menstruating, Or In Postnatal Bleeding.

But The **Ruling On Entering The Mosque** Is Separate From The **Ruling On Whether A Believer Is Inherently Pure Or Impure**.

If Such Analogies Were Allowed, Someone Might Claim Tomorrow:

“A Believer Is Not Impure, So They May Pray In The State Of Janābah Or Menstruation, Or Touch And Recite The Qur'an.”

But This Is Entirely Invalid (Bāṭil).

No Jurist Has Ever Said That A Believer Becomes Physically Impure (Najis) During Janābah Or Menstruation, Yet They **Are Still Prohibited From Entering Or Staying In The Mosque** — Based On Clear Sayings Of The Prophet ﷺ.

Therefore, Using This ḥadīth To Argue That They Can Remain In The Mosque **Goes Against** The Stronger, Authentic Narrations.

Wallāhu A‘Lam (And Allah Knows Best).

Sahih Muslim 300 (Sanad Number)

Aisha (May Allah Be Pleased With Her) Reports:

“I Drank Water While I Was Menstruating, Then I Handed The (Glass) To The Messenger Of Allah ﷺ, And He Put His Mouth On The Same Place Where I Had Drunk And Drank From It. And I Would Sweat While Menstruating, Then I Would Hand The (Glass) To Him And He Would Place His Mouth At The Same Spot Where I Had Drunk.”

From This, Some People Infer That A Believer (Mu’min) Is Not Considered Impure (Najis), And Therefore They Can Enter And Stay In The Mosque Even In The State Of Major Ritual Impurity (Junub) Or Menstruation (ḥayḍ).

However, The Subject Of This Hadith Is Something Else. This Hadith Is Actually About The **Virtues Of Our Mother, Aisha (May Allah Be Pleased With Her)** — It Shows That The Messenger Of Allah ﷺ Loved His Noble Wife, And It Is Related To The Etiquettes Between Husband And Wife.

On The Other Hand, The Respected Hadith Scholars (Muḥaddithīn) Compile And Record Hadith Under Specific Chapters Such As The Ruling On A Junub (Sexually Impure) Person Entering The Mosque. To Leave Aside The Hadiths Specifically Addressing Those Topics And Instead Derive Rulings Based Only On This Hadith, Whose Actual Subject Is Something Else, **Is Not Correct.**

Ibn Khuzaymah, Volume 2, Page 468, Hadith 1505

Narrated From Uthman Ibn Abul As (May Allah Be Pleased With Him):

When The Delegation From Thaqīf Came To Meet The Messenger Of Allah ﷺ, He Accommodated Them In The Mosque So That Their Hearts Would Soften.

Arabic Sanad:

أَخْبَرَنَا أَبُو طَاهِرٍ ، قَالَ : حَدَّثَنَا أَبُو بَكْرِ ، قَالَ : حَدَّثَنَا مُحَمَّدُ بْنُ يَحْيَى ، قَالَ : حَدَّثَنَا أَبُو الْوَلِيدِ ، (ح) وَحَدَّثَنَا الْحَسَنُ بْنُ مُحَمَّدٍ الرَّعْفَرَانِيُّ ، قَالَ : حَدَّثَنَا عَفَّانُ بْنُ مُسْلِمٍ قَالَا : حَدَّثَنَا حَمَّادٌ ، عَنْ حُمَيْدٍ ، عَنْ الْحَسَنِ ، عَنْ عُثْمَانَ بْنِ أَبِي الْعَاصِ : أَنَّ وَفْدَ ثَقِيفٍ قَدِمُوا عَلَى رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ ، فَأَنْزَلَهُمُ الْمَسْجِدَ حَتَّى يَكُونَ أَرْقَ لِقُلُوبِهِمْ .

(Graded Hasan Li Dhātihi)

About The Sanad (Chain Of Narration):

In This Chain, Hasan Al-Basri Narrates From Uthman Ibn Abi Al-As. Some Scholars Say That Their Meeting (Liqa’) And Hearing (Samā’) Are Not Established.

- Imam Mughaltay (D. 762 AH) Mentions — Quoting From Al-Hakim — That Hasan Al-Basri Did Not Hear From Uthman Ibn Abi Al-As.

(Sharh Ibn Majah, Vol. 5, P. 476, Hadith 213):

“This Hadith Has A Break (Inqitā‘) In Its Chain Between Hasan And Uthman; Abu Abdullah Al-Hakim Explicitly Mentioned This In His Mustadrak. When Mentioning The Hadith ‘Women Remain In Postpartum Bleeding For Forty Days,’ He Said: Let The Seeker Of Hadith Know That Hasan Did Not Hear Anything From Uthman Ibn Abi Al-As.”

- Imam Mizzi (D. 742 AH) Also Quoted This Statement From Al-Hakim In His **Tahdhib Al-Kamal**, Vol. 4, P. 78.
- Imam Al-Hakim (D. 405 AH), In His Mustadrak (Vol. 1, P. 176, Hadith 629), Writes: “This Is A Rare Sunnah. If This Isnad Is Free Of The Issue From Abu Bilal, It Would Still Be A Mursal Sahih, For Hasan Did Not Hear From Uthman Ibn Abi Al-As.”
- Hafiz Ibn Hajar (D. 852 AH) Also Confirms That The Hearing Is Not Established. (Tahdhib Al-Tahdhib, Vol. 1, P. 388)

Summary Of The Scholarly Discussion:

The First One To Mention That Hasan Al-Basri Did Not Hear Directly From Uthman Ibn Abi Al-As Was Imam Al-Hakim. Before Him, No Scholar Made This Claim. Despite This, The Same Sanad (Chain) Has Been Used In Numerous Major Hadith Collections Without Scholars Criticizing Its Validity On This Point.

For Example:

Ibn Al-Jarud (D. 307 AH) — **Al-Muntaqā** (131)

Ibn Khuzaymah (D. 311 AH) — **Sahih Ibn Khuzaymah** (1328)

Abu Dawud (D. 275 AH) — **Sunan Abi Dawud** (3022)

Tirmidhi (D. 297 AH) — **Sunan Al-Tirmidhi** (209)

Darmi (D. 255 AH) — **Sunan Al-Darimi** (900)

Ibn Majah (D. 273 AH) — **Sunan Ibn Majah** (714)

Bayhaqi (D. 458 AH) — **Sunan Al-Kubra** (1640)

Dar Qutni (D. 385 AH) — **Sunan Dar Qutni** (4686)

Ahmad Ibn Hanbal (D. 241 AH) — **Musnad Ahmad** (18197)

Abu Dawud Tayalisi (D. 204 AH) — **Musnad Tayalisi** (981)

Humaydi (D. 219 AH) — **Musnad Humaydi** (930)

Bazzar (D. 292 AH) — **Musnad Bazzar** (2323)

Conclusion:

The Narration Of Uthman Ibn Abi Al-As Through Hasan Al-Basri **Meets The Conditions Of Imam Muslim**, And Both Were Alive During The Same Period. Uthman Ibn Abi Al-As Passed Away In Either 50 AH, 51 AH, Or 55 AH, While Hasan Al-Basri Was Born In 21 AH, And Both Lived In Basra. Such A Narration Holds Authority (ḥujjah), And There Is Consensus (Ijmā‘) Among The Early Hadith Scholars (Salaf) On This Point.

And Secondly,

It Is Also Established That They (Hasan Al-Basri And Uthman Ibn Abi Al-‘Āṣ) Met Each Other, As Is Clearly Recorded In:

- **‘Abd Al-Razzaq (7505):**

Hasan Al-Basri Says:

“I Saw Uthman Ibn Abi Al-‘Āṣ At ‘Arafah, And He Was Fasting; He Would Rinse His Mouth With Water And Pour Water Over Himself.”

Arabic:

عَبْدُ الرَّزَّاقِ ، عَنْ مَعْمَرٍ ، عَمَّنْ سَمِعَ الْحَسَنَ يَقُولُ : " رَأَيْتُ عُثْمَانَ بْنَ أَبِي الْعَاصِ بِعَرَفَةَ وَهُوَ صَائِمٌ يَمْجُ الْمَاءَ ، وَيَصُبُّ عَلَى نَفْسِهِ الْمَاءَ " ، قَالَ : " وَكَانَ الْحَسَنُ يُمَضِّمُنْ ، وَهُوَ صَائِمٌ ثُمَّ يَمْجُهُ ، وَذَلِكَ فِي شِدَّةِ الْحَرِّ " ،

- **Mu‘ Jam Al-Kabir Al-Ṭabarānī (8333):**

Hasan Al-Basri Says:

“I Saw Uthman Ibn Abi Al-‘Āṣ Being Sprinkled With Water On The Day Of ‘Arafah While He Was Fasting.”

Arabic:

حَدَّثَنَا سَهْلُ بْنُ مُوسَى ، ثَنَا مُحَمَّدُ بْنُ عَبْدِ الْأَعْلَى الصَّنْعَانِيُّ ، ثَنَا مُعْتَمِرٌ ، عَنْ حُمَيْدٍ ، عَنِ الْحَسَنِ ، قَالَ : رَأَيْتُ عُثْمَانَ بْنَ أَبِي الْعَاصِ يُرَشُّ عَلَيْهِ الْمَاءَ يَوْمَ عَرَفَةَ وَهُوَ صَائِمٌ

- **Ibn Abi Shaybah (Vol. 6, No. 9815):**

Hasan Al-Basri Says:

“When It Was Mentioned Before Hasan That Fasting On The Day Of ‘Arafah Equals Fasting For A Year, Hasan Said:

‘I Do Not Know Of Any Day That Has Virtue Over Another Day, Nor Any Night Over Another Night, Except Laylat Al-Qadr, Which Is Better Than A Thousand Months.

And Indeed, I Saw Uthman Ibn Abi Al-‘Āṣ Fasting On The Day Of ‘Arafah, And Water Was Sprinkled On Him From A Small Water-Skin He Had, To Cool Himself.”

Arabic:

يَزِيدُ بْنُ هَارُونَ قَالَ : أَخْبَرَنَا حُمَيْدُ الطَّوِيلُ قَالَ : ذَكَرَ عِنْدَ الْحَسَنِ أَنَّ صِيَامَ عَرَفَةَ يَغْدِلُ صِيَامَ سَنَةٍ ، فَقَالَ الْحَسَنُ : مَا أَعْلَمُ لِيَوْمٍ فَضْلًا عَلَى يَوْمٍ ، وَلَا لَلَّيْلَةِ عَلَى لَيْلَةٍ إِلَّا لَيْلَةُ الْقَدْرِ ، فَإِنَّهَا خَيْرٌ مِنْ أَلْفِ شَهْرٍ ، وَلَقَدْ رَأَيْتُ عُثْمَانَ بْنَ أَبِي الْعَاصِ صَامَ يَوْمَ عَرَفَةَ ، يُرَشُّ عَلَيْهِ الْمَاءُ مِنْ إِدَاوَةٍ مَعَهُ ، يَنْبَرِدُ بِهِ

Summary Of The Issue

Ruling on Entering the Masjid While in a State of Janābah or Ḥayḍ (Menstruation)

Brief Explanation:

This issue discusses whether individuals in a state of major ritual impurity (janābah) or menstruation (ḥayḍ) are permitted to enter or remain in a mosque. The question is deeply relevant for understanding the interaction between ritual purity and sacred spaces in Islamic law. It carries practical implications for worship, movement, and religious inclusion.

Evidence from the Text:

Qur’anic Verse:

- **Sūrat al-Nisā’ (4:43):**

“And do not approach prayer while you are in a state of janābah, except as passers-by...”

(ولا جنبا إلا عابري سبيل)

Hadiths:

- “I do not permit the mosque for a menstruating woman or a person in janābah.” (Reported in Abu Dawud 232, Ibn Majah 645, Ibn Khuzaymah 1327, etc.)
- Incident of Hudhayfah where the Prophet ﷺ said: “A believer is never impure” after Hudhayfah hesitated due to janābah

Statements from Companions and Tabi'un:

- Ibn Abbas: *"No problem for a menstruating woman or one in janābah to pass through the mosque as long as they do not sit."*
- Ibn Mas'ud interpreted {Except as passers-by} as *permissibility to pass through only*.

Madhhab (School of Thought) Views:

Ḥanafī:

- Entering the masjid while in janābah or ḥayḍ is **impermissible**, unless there is a dire need and **tayammum is performed first**.
- Supporting hadith: "The Masjid is not for the one in janābah."
- They reject Shāfi'ī interpretation allowing passing through without purification.

Mālikī:

- **General ruling:** Entering is ḥarām (forbidden).
- **Exception:** Passing through is **permitted**, especially if there's necessity.
- Ibn 'Arfaḥ says even passing through is forbidden without wuḍū', but allowed with wuḍū'.
- Based on the interpretation of 4:43 and necessity cases such as homes connected to the masjid.

Shāfi'ī:

- Sitting or staying in the masjid is **not allowed**.
- **Passing through is allowed** for those in janābah.
- Supported by narrations of polytheists being in the masjid in the Prophet's ﷺ time and verse 4:43.
- Some Shāfi'īs (e.g., al-Muzani) held a looser stance, even permitting staying.

Ḥanbalī:

- General ruling: **Sitting/staying is ḥarām**.
- **Passing through is permitted**, especially if **wuḍū' is performed**.
- Imam Aḥmad said: "If he performs wuḍū', there is no harm in passing through or sitting."

Sub-Issue: Can One Pass Through the Masjid in a State of Janābah?

Brief Explanation:

A distinct issue is whether mere passage through a mosque (e.g., using a shortcut) is allowed for a person in janābah or ḥayḍ. Some distinguish between staying and passing.

Evidence:

- Qur'ān 4:43: "Except as passers-by."
- Ibn Abbas: Permissible to pass through without sitting.
- Incident of homes opening into the masjid where residents would pass through without staying.

Madhhab Views:

- **Ḥanafī:** Passing through is **not allowed**, unless **tayammum is done** first.
- **Mālikī:** Passing through **is allowed**, especially with wudū', and in case of necessity.
- **Shāfi'ī:** Allows **passing through**, citing Quranic concession and prophetic precedent.
- **Ḥanbalī:** Permits **passing through**, especially if **wudū' is performed**.

Sub-Issue: Does Wudū' or Tayammum Permit Entry or Staying in the Masjid?

Brief Explanation:

This explores whether a person in janābah or ḥayḍ who performs wudū' or tayammum may then enter or stay in the masjid.

Evidence:

- Imam Ahmad: Wudū' permits sitting.
- Others argue: **Only tayammum in case of no water**, not wudū', removes janābah.

Madhhab Views:

- **Ḥanafī:** Tayammum allowed **only in dire need**; otherwise, **ghusl is required**.
- **Mālikī:** Tayammum permissible if water is unavailable, and wudū' may allow passage.
- **Shāfi'ī:** Some allow entry with tayammum, but **wudū' does not suffice**.
- **Ḥanbalī:** Ahmad permits sitting after wudū' — opposed by majority.

Sub-Issue: Are Individuals in Janābah or Ḥayḍ Considered Najis (Impure)?

Brief Explanation:

This addresses a common misconception that a person in janābah or ḥayḍ is physically najis, hence cannot enter the masjid.

Evidence:

- Hadith: "A believer is never impure."
- Scholars clarify: This refers to physical purity, not ritual purity — ritual impurity still prohibits certain acts.

Clarification:

- No school of law considers the body of a menstruating woman or junub person to be najis.
- The **prohibition is based on the hukm (legal ruling)** of ritual impurity, not physical najāsah.

Conclusion:

For A Man In A State Of *Junub* (Major Ritual Impurity) Or A Menstruating Woman, It Is **Forbidden (ḥarām)** To Remain Inside The Mosque — Whether For A Short Or Long Time.

However, If Someone Is Merely Passing Through And There Is No Other Path Besides Passing Through The Mosque, Then It Is **Permissible** Only For Passing.

If There Is An Alternative Route, Then Passing Through The Mosque Is **Disliked (Makrūh)** — Unless The Person Is A Traveler (*Musāfir*) Who Performs *Tayammum* (Dry Ablution), In Which Case They Can Pass Through Or Even Sit Inside, Because *Tayammum* Makes Them Ritually Pure.

This Is The Position (Madhhab) Of:

- Ibn ‘Abbās
- Alī Ibn Abī Ṭālib
- Anas Ibn Mālīk
- Ibn Mas‘ūd
- Jābir Ibn ‘Abd Allāh
- Sa‘īd Ibn Jubayr
- Ikrimah
- Ibrāhīm
- Hasan Al-Basri
- Sa‘īd Ibn Al-Musayyib
- Atā Ibn Abī Rabāḥ
- Masrūq Ibn Al-Ajda‘
- Abū Ḥanīfah (According To One Report)
- Imām Shāfi‘ī
- Imām Mālīk
- Ishāq (According To One Report)

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 29 — The Ruling On A Person In A State Of Janābah (Major Impurity) Touching The Muṣḥaf (Physical Copy Of The Qur'an)

On This Matter, **The Four Imams Are Unanimously Agreed** That It Is **Not Permissible** To Touch The Muṣḥaf Without Wudu (Minor Ablution); Thus, It Is **Even More Strictly Forbidden** To Touch It Without Having Performed Ghusl (Major Ritual Bath).

However, **Some Of The Ahl Al-Zāhir (Literalist Scholars)** Say It Is Permissible To Touch The Muṣḥaf Even When In A State Of Janābah.

Reference:

Bughyat Al-Muqtasiḍ Sharḥ Bidāyat Al-Mujtahid (2/566):

“The Vast Majority Of Scholars, Including The Four Imams, Hold This View.”

According To The **Hanafis, Mālikis, Shāfi‘īs, And Ḥanbalis**, It Is Impermissible To Touch The Muṣḥaf Without Ghusl:

- **Hanafi Madhhab:**

See *Mukhtaṣar Al-Qudūrī* (P. 19), Where It Says:

“It Is Not Permissible For Someone Without Purification (*Muḥdith*) To Touch The Muṣḥaf, Except If He Holds It By Its Cover.”

- **Mālikī Madhhab:**

See *Al-Sharḥ Al-Kabīr* By Al-Dardīr (1/138), Where It Says:

“Janābah Prevents From [The Same Things] As Minor Impurity — Namely, The Three Things Mentioned Earlier: Prayer, ṭawāf (Circumambulation), And Touching The Muṣḥaf.”

- **Shāfi‘ī Madhhab:**

See *Asnā Al-Maṭālib* By Zakariyya Al-Anṣārī (1/67), Where It Says:

“Al-Fātiḥah [Is Allowed] Only In Prayer Because It Is Essential; Contrary To Al-Rāfi‘ī, Who Said It Is Not Allowed Like Other Recitation. His Phrase ‘Only’ Indicates That It Is Not Permissible To Touch The Muṣḥaf Or Recite Qur'an [Otherwise].”

- **Ḥanbalī Madhhab:**

See *Al-Iqnā‘* By Al-Ḥajjāwī (1/40), Where It Says:

“It Is Forbidden To Touch The Muṣḥaf Or Any Part Of It Without A Barrier, Even If Using Another Part Of The Body, Including Its Cover Or Margins, Even For A Child.”

The Opinion Of Ahl Al-Zāhir (Literalists):

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/566):

“The Second Opinion Is That It Is Permissible For Someone In A State Of Janābah To Touch The Muṣḥaf, And This Is The Opinion Of The Ahl Al-Zāhir.”

See Also *Al-Muḥallā* By Ibn Ḥazm (1/94), Where He Says:

“Reciting Qur’an, Prostrating Within It, Touching The Muṣḥaf, And Remembering Allah Are All Permissible, Whether One Has Wudu Or Not, And Also For Someone In Janābah Or For A Menstruating Woman.”

Reason For The Disagreement:

The Disagreement Stems From The Verse In Sūrat Al-Wāqī‘ Ah Where Allah Says:

‘None Touch It Except The Purified.’

We Have Already Discussed This Verse In Detail In The Book Of Wudu.

The Ahl Al-Zāhir Interpret This Verse As Referring Not To The Physical Muṣḥaf But To The **Preserved Tablet (Al-Lawḥ Al-Maḥfūz)**, Meaning Only The Purified Angels Can Touch It.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/566):

“The Ahl Al-Zāhir, Who Permit Touching The Muṣḥaf, Say That What Is Meant By The Verse Is The Preserved Tablet And The Book Contained In That Tablet.”

See Also *Tafsīr Al-Qurṭubī* (17/224), Where It Says:

“Jābir Ibn Zayd And Ibn ‘Abbās Also Said: It Refers To The Preserved Tablet.”

Regarding The ḥadīth Of ‘Amr Ibn Ḥazm:

There Is The Famous Narration That Has Been Detailed Earlier, Where The Prophet ﷺ Wrote In His Letter:

“No One Should Touch The Qur’an Except One Who Is Pure.”

The Ahl Al-Zāhir Argue That Here ‘Pure’ Means Pure From Disbelief, I.E., It Refers To A Muslim.

Bughyat Al-Muqtasid Sharḥ Bidāyat Al-Mujtahid (2/567):

“In The Letter Written By The Prophet ﷺ And Given To ‘Amr Ibn Ḥazm, It Says: ‘No One Should Touch The Qur’an Except One Who Is Pure.’ Scholars Differed On Whether ‘Purity’ Here Refers To Freedom From Ritual Impurities Or To Moral/Spiritual Purity — Meaning Being A Muslim.”

Commentary By Al-Shawkānī:

Al-Shawkānī Comments:

“The ḥadīth Indicates That Only Someone Who Is Pure May Touch The Muṣḥaf. But The Word ‘Pure’ (*ṭāhir*) Can Refer Jointly To:

- A Believer,
- Someone Free From Major Or Minor Impurity,
- Someone Whose Body Is Free From Physical Filth.

Even If We Accept That The Term Applies To Someone Not In A State Of Minor Or Major Impurity, The Stronger Opinion Is That When A Word Has Multiple Meanings, It Remains Ambiguous Until Clarified. There Is Further Evidence Here Indicating That It Refers To Something Else, Such As The ḥadīth: *‘The Believer Is Never Impure.’*

And Even If There Were No Preventing Evidence, To Assign It Specifically To One Meaning Without Reason Would Be Arbitrary. Assigning It To All Meanings Together (I.E., All Kinds Of Purity) Is Itself A Disputed Matter, And Even If The Stronger Opinion Permits Such An Assignment, It Would Not Be Valid Here Due To The Presence Of The Counter-Evidence, I.E., The ḥadīth: *‘The Believer Is Never Impure.’*

Al-‘Allāmah Muḥammad Ibn Ibrāhīm Al-Wazīr Stated That Applying The Term ‘Impure’ (*Najis*) To A Believer Who Is In A State Of Janābah, Menstruation, Or Minor Impurity Is Invalid — Neither In Reality, Metaphor, Nor Linguistic Usage. He Explained This In A Detailed Answer, Concluding That The Believer Is Always Considered Pure, Whether In Janābah, Menstruating, Having Minor Impurity, Or Even If There Is Physical Filth On The Body.”

(See: *Nayl Al-Awtār* 1/243–244)

Further Argument:

The Interpretation Of This ḥadīth By The Majority Of The Ummah Differs From That Of The Ahl Al-Zāhir.

The Ahl Al-Zāhir Also Draw Evidence From Another ḥadīth, Reported By Aḥmad In His *Musnad*, Where The Prophet ﷺ Forbade Carrying The Qur’an Into Enemy Lands.

Bughyat Al-Muqtasiḍ Sharḥ Bidāyat Al-Mujtahid (2/568):

“The Prophet ﷺ Said: ‘Do Not Travel With The Qur’an To Enemy Lands, Fearing That The Enemy Will Seize It.’”

(Aḥmad 4507, Wording: *‘Do Not Travel With The Qur’an, For I Fear That The Enemy Will Seize It.’*)

The Ahl Al-Zāhir Argue That The Prohibition Is Precisely Because The Disbelievers Would Touch The Muṣḥaf, Since They Are Kuffār.

Al-Muḥallā By Ibn Ḥazm (1/98):

“If They Cite The Narration We Were Told By ‘Abd Allāh Ibn Rabī‘A, Who Reported From Muḥammad Ibn Mu‘Āwiyah, Who Reported From Aḥmad Ibn Shu‘Ayb, Who Reported From Qutaybah Ibn Sa‘Īd, Who Reported From Al-Layth From Nāfi‘ From Ibn ‘Umar, Who Said: ‘The Prophet ﷺ Forbade Traveling With The Qur’an To Enemy Lands For Fear That The Enemy Would Seize It’ — Then This Is Indeed Correct And Must Be Followed. But There Is Nothing In This Narration That Says A Person In Janābah Or A Disbeliever Cannot Touch The Muṣḥaf; It Only Says That The People Of Enemy Lands Should Not Have Access To The Qur’an.”

Summary Of The Issue

The Ruling on a Person in a State of Janābah Touching the Muṣḥaf

Summary of the Issue

- All four major madhāhib agree: **It is impermissible to touch the physical Muṣḥaf without purification (ṭahārah).**
- Therefore, someone in **Janābah** (major impurity) must **not** touch the Muṣḥaf until they perform **Ghusl**.
- **Ahl al-Zāhir (Literalists)** disagree, permitting it even in Janābah.

Position of the Four Madhāhib

Madhhab	Ruling	Primary Reference
Ḥanafī	Forbidden to touch the Muṣḥaf without ṭahārah	<i>Mukhtaṣar al-Qudūrī</i> , p.19
Mālikī	Janābah prohibits touching the Muṣḥaf just like minor impurity	<i>Sharḥ al-Kabīr</i> , 1/138
Shāfi‘ī	Forbidden to touch the Muṣḥaf or recite Qur’an in Janābah	<i>Asnā al-Maṭālib</i> , 1/67
Ḥanbalī	Forbidden to touch even a portion of the Muṣḥaf without ṭahārah	<i>Al-Iqnā’</i> , 1/40

All four madhāhib base this ruling on:

1. Qur’anic verse: "**None touch it except the purified**" (Sūrat al-Wāqī‘ah, 56:79),
2. The famous ḥadīth: "**No one should touch the Qur’an except the pure.**"

The View of Ahl al-Zāhir (Literalists)

Scholar	View	Reference
Ibn Ḥazm	Permissible to touch and recite even in Janābah	<i>Al-Muḥallā</i> , 1/94
Position	Purity not a requirement; Muslims are inherently ṭāhir even in Janābah	<i>Bughyat al-Muqtasid</i> , 2/566

Basis of Disagreement

1. Interpretation of the Qur’anic Verse:

- **Verse:** (لَا يَمَسُّهُ إِلَّا الْمُطَهَّرُونَ) – “None touch it except the purified” (al-Wāqī‘ah, 56:79)
- **Majority View:** Refers to the **Muṣḥaf** on Earth – touching requires ṭahārah.
- **Ahl al-Zāhir View:** Refers to the **Lawḥ Maḥfūz** (Preserved Tablet) — only angels touch it.
 - Supported by some classical Mufasssīrūn, including **Jābir ibn Zayd** and **Ibn ‘Abbās**.
 - Reference: *Tafsīr al-Qurṭubī*, 17/224

2. Ḥadīth of ‘Amr ibn Ḥazm:

- **Wordings:** “None should touch the Qur’an except one who is ṭāhir (pure).”
- **Majority:** Ṭāhir = Free from both minor and major impurity.
- **Literalists (Zāhirīyah):** Ṭāhir = Muslim (not kāfir). No restriction on Janābah.
 - Reference: *Bughyat al-Muqtasid*, 2/567

3. Commentary by Imām al-Shawkānī (Nayl al-Awṭār, 1/243–244):

- Explains ambiguity of the word "**ṭāhir**":
 - Could mean believer, physically clean, ritually pure.
- Highlights: A believer is never *najis* (impure), even in Janābah (based on ḥadīth).
- Conclusion: Using the ḥadīth as proof to prohibit touching the Muṣḥaf without wudū’ is not conclusive without clarification.

4. Additional Literalist Argument

- **Ḥadīth:** “Do not travel with the Qur’an to enemy lands...” (Aḥmad 4507)
- Used by Ahl al-Zāhir to argue: Touching by disbelievers is the issue — not impurity in general.
- Rebuttal: The concern was desecration, not merely ritual impurity.

Conclusion:

There Is No Doubt That **For Any Person, Whether Man Or Woman**, It Is Forbidden By Unanimous Consensus (*Ijmāʿ*) To Touch The Muṣḥaf When In A State Of Janābah, Menstruation, Or Any Other State Requiring Ghusl.

The Disagreement Of The Ahl Al-Zāhir Does **Not** Affect The Consensus Because Their Opinion Is Considered **An Isolated, Irregular View (Qawl Shādh)** In This Matter.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*

Issue 30 – Ruling On Reciting The Qur'an While In The State Of Janabah (Major Ritual Impurity) Or Menstruation

The Basic Disagreement Here Is: **Is It Permissible Or Impermissible For A Menstruating Woman Or A Junub (Person In A State Of Major Impurity) To Recite The Qur'an?**

On This Issue, The Majority Of Jurists (Jumhoor Fuqaha) Say That **It Is Haram (Forbidden)** For A Junub Man Or A Menstruating Woman To Recite The Qur'an.

A Minority Group, However, Says That **It Is Permissible**.

Hanafi

Imam Burhanuddin Writes In His Book *Al-Hidayah*, Vol. 1, Page 33:

For A Junub Man, A Menstruating Woman, And A Woman In Postnatal Bleeding (Nifas), **It Is Not Permissible** To Recite Anything From The Qur'an.

(Further, He Explains): The Messenger Of Allah ﷺ Said:

“A Menstruating Woman And A Junub Person Should Not Recite Anything From The Qur'an.”

Imam Rumi, In His Book *Al-Inayah* (Which Is A Commentary On *Al-Hidayah*), Vol. 1, Page 167, Says:

For A Junub Person And Menstruating Woman, Reciting The Qur'an Is **Permissible**; They Are Excused Under Necessity.

Al-Kharkhi Says:

Reciting The Qur'an Is **Haram** If Someone Recites With The Intention Of Tilawah (Formal Recitation), But If The Intention Is Not Formal Recitation — Such As Reciting It As Praise (Hamd) Of Allah — It Is Permissible.

Halawani Says:

Imam Abu Hanifa Holds That **There Is No Harm** If Someone In A State Of Janabah Recites Surah Al-Fatiha As A Dua (Supplication).

Hanafi Commentary

Imam Ayni, In *Al-Binayah*, Vol. 1, Page 647, Writes:

It Is **Haram** For A Junub Man, A Menstruating Woman, Or A Woman In Postnatal Bleeding To Recite The Qur'an —

Except If It Is Done As A Dhikr (Remembrance).

He Adds That, Among The Two Opinions Within The Shafi'i School, The **Correct Opinion** —

And Also The Opinion Of Umar, Ali, Jabir, Wa'il, Sa'id Ibn Al-Musayyib, Hammad Ibn Abi Sulayman, Dawud, Ibn Abbas,

And The Maliki And Hanbali Schools — Is That **Under Necessity**, If They Recite, There Is No Harm.

He Then Refers To The Hadith Of **Ibn Umar** Reported In Tirmidhi, Where The Messenger Of Allah ﷺ Said:
“A Junub Person Should Not Recite Anything From The Qur’an.”
(This Is The General Meaning Of The Hadith.)

He Also Mentions Other Hadiths, Brings Forward Critical Analysis (Jarh), And Transmits The Hadiths.
I Am Not Including The Detailed Jarh (Critique) Here Because We Will Explain It In Detail Later, As Always.
(If Anyone Wants To Check It, Refer To *Al-Binayah*, Vol. 1, Page 647.)

Maliki

Imam Qarafi, A Maliki Scholar, Says:
It Is **Haram** For A Junub Person Or Menstruating Woman To Recite The Qur’an —
Except When Done As Dhikr (Remembrance) Or Seeking Protection (Ta‘Awwudh).
(*Az-Zakhira*, Vol. 1, Page 316)

According To Another Opinion, Reciting Out Of Fear Or For The Purpose Of Learning Is Permissible.

Shafi’i

Imam Nawawi Says In *Sharh Al-Madhhab*, Vol. 2, Page 155:
It Is **Haram** For A Junub Person Or A Menstruating Woman To Recite The Qur’an.
He Then Presents The Hadith From **Ibn Umar**.

The Shafi’i School Holds:
It Is **Haram** For Any Muslim In The State Of Janabah To Recite The Qur’an,
And Even For A Mute Person, It Is Haram To Indicate Verses Through Gestures.
The Shafi’is Believe **One Cannot Recite Even A Single Verse Or Letter**, Whether Intentionally Or Unintentionally.

They Cite The Hadith From Tirmidhi And Others:
“Neither The Junub Nor The Menstruating Woman Should Recite Anything From The Qur’an.”

(**Source:** *Mughni Al-Muhtaj* By Al-Shirbini, Vol. 1, P. 217)

Hanbali

In The Hanbali School, The Ruling Is:
If Someone Is Required To Perform Ghusl (Due To Janabah), It Is **Haram** For Them To Recite Even A Single Verse.
However, If An Ayah (Verse) Slips Accidentally From Their Tongue, It Is **Permissible** —
Provided They Do Not Deliberately Engage In Recitation.

Besides This, They Can Perform Dhikr, Recite Things That Are Not Part Of The Qur’an,
Such As “Bismillah” Or “Alhamdulillah Rabbil ‘Alamin,”
And They Can **Look** At The Qur’an And Read It **Silently In Their Hearts**.

(Source: *Al-Iqna* ‘ By Al-Hijjawi, Vol. 1, P. 45)

Zahiri (Literalist)

In *Al-Muhalla* By **Ibn Hazm**, Vol. 1, P. 94, It Is Stated:

“Reciting The Qur’an, Performing The Prostration Of Recitation (Sujud Al-Tilawah), Touching The Mushaf, And Mentioning Allah’s Name Are All Permissible —

Whether One Has Wudu Or Not, And Whether One Is In The State Of Janabah Or Menstruation.”

Additional Maliki Details

In The Maliki Madhhab, Reciting The Qur’an Is Generally **Not Permissible**, Except For Specific Purposes Such As Seeking Protection (Ta‘Awwudh) — Including Ayat Al-Kursi, Surah Al-Ikhlās, And The Mu‘Awwidhatayn — For Protection From Shaytan Or For Ruqyah (Healing).

(Source: *Sharh Al-Kabir* By Al-Dardir, Vol. 1, P. 138)

Hanafi Madhhab Details

In The Hanafi Madhhab,

If Someone Is **Teaching** The Qur’an, They May Recite It **Verse By Verse**.

Similarly, If Someone Recites A Verse **With The Intention Of Making Dua (Supplication)**, Without The Intention Of Formal Recitation, It Is **Permissible** —

For Example, Surah Al-Fatiha.

(Source: *Hashiyat Ibn ‘Abidin (Radd Al-Muhtar)*, Vol. 1, P. 293)

Reason Behind The Disagreement

The Reason For The Disagreement (Ikhtilāf) Is **The Hadith Of Hazrat Ali (May Allah Be Pleased With Him)**,

In Which Hazrat Ali Reports That:

“There Was No Time When The Messenger Of Allah ﷺ Did Not Recite The Qur’an — Except When He Was In The State Of Janabah (Major Ritual Impurity).”

Some People Say This Hadith Is **Weak (Da‘If)**.

Others Accept It As **Authentic (Sahih)** But **Interpret (Ta’wīl)** It, Saying:

Ali’s Statement — “There Was No Time When The Messenger Of Allah ﷺ Did Not Recite The Qur’an Except When He Was Junub” —

Requires Interpretation, Because:

How Would Ali Know When The Prophet ﷺ Was Junub Or Not?

They Raise This Point To Question The Straightforward Application Of The Narration.

Main Hadith Reference

From **Tirmidhi**, Volume 1, Page 190, Hadith 148:

Hazrat Ali (May Allah Be Pleased With Him) Reports:

“The Messenger Of Allah ﷺ Used To Recite The Qur’an To Us In Every Condition, Except When He Was Junub.”

Arabic Text Of The Hadith:

حَدَّثَنَا أَبُو سَعِيدٍ الْأَشْجِيُّ ، قَالَ : حَدَّثَنَا حَفْصُ بْنُ غِيَاثٍ وَعُقْبَةُ بْنُ خَالِدٍ ، قَالَا : حَدَّثَنَا الْأَعْمَشُ وَابْنُ أَبِي لَيْلَى ، عَنْ عَمْرِو بْنِ مَرْة ، عَنْ عَبْدِ اللَّهِ بْنِ سَلَمَةَ ، عَنْ عَلِيٍّ ، قَالَ :
كَانَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يُقْرَأُ الْقُرْآنَ عَلَى كُلِّ حَالٍ مَا لَمْ يَكُنْ جُنُبًا
(Musnad)

Takhrīj (Hadith Sources And Cross-References)

This Hadith Has Been Recorded In Many Hadith Collections, Including:

- ✓ Ibn Jarūd In *Al-Muntaqā* (1/42, No. 104) — In The Chapter Of Janabah And Purification.
- ✓ Ibn Khuzaymah In *Sahih* (1/314, No. 208) — Book Of Wudu, Chapter On The Permission To Recite The Qur’an Without Wudu.
- ✓ Ibn Hibbān In *Sahih* (3/79, No. 799 And 3/80, No. 800) — Book Of Heart-Softeners, Chapter On The Permissibility For The Non-Purified Person To Recite The Qur’an Unless They Are Junub.
- ✓ Al-Diyā Al-Maqdisī In *Al-Aḥādīth Al-Mukhtārāh* (2/214–216, Nos. 596–600) — From The Narration Of Amir Al-Mu’minīn Abu Al-Hasan Ali Ibn Abi Ṭalib, From Abdullah Ibn Salamah Al-Muradi Al-Kufi.
- ✓ Al-Ḥākim In *Al-Mustadrak* (1/152, No. 543 And 4/107, No. 7175) — Book Of Purity, Chapters On Ghusl From Janabah And Foods, Stating The Prophet ﷺ Was Only Prevented From Reciting Qur’an When Junub.
- ✓ Al-Nasa’i In *Al-Mujtaba* (1/75, Nos. 265, 266) — Book Of Purity, Chapter On Junub Being Prevented From Reciting Qur’an.
- ✓ Al-Nasa’i In *Al-Kubra* (1/174, Nos. 257, 258) — Same Chapter.
- ✓ Abu Dawud In *Sunan* (1/90, No. 229) — Book Of Purity, Chapter On The Junub Reciting Qur’an.
- ✓ Tirmidhi In *Jami’* (1/190, No. 146) — Chapters Of Purity, On A Man Reciting Qur’an In Every Condition Except When Junub.
- ✓ Ibn Majah In *Sunan* (1/375, No. 594) — Chapters On Tayammum, On Reciting Qur’an Without Purification.
- ✓ Al-Bayhaqi In *Sunan Al-Kubra* (1/88–89, Nos. 416, 417) — Book Of Purity, Chapter On Prohibiting The Junub From Reciting Qur’an.
- ✓ Al-Daraqutni In *Sunan* (1/215, No. 429) — Book Of Purity, Chapter On Prohibiting The Junub And Menstruating Woman From Reciting Qur’an.
- ✓ Ahmad In *Musnad* (Multiple Locations: 1/194, No. 637; 1/195, No. 649; 1/208, No. 697; 1/241, No. 855; 1/275, No. 1026; 1/295, No. 1138) — Musnad Of Ali Ibn Abi Talib.
- ✓ Al-Ṭayālīsī In *Musnad* (1/99, No. 103) — Hadiths Of Ali Ibn Abi Talib.
- ✓ Al-Ḥumaydī In *Musnad* (1/182, No. 57) — Hadiths Of Ali Ibn Abi Talib.
- ✓ Abu Ya‘La In *Musnad* (1/247, No. 287; 1/288, No. 348; 1/326, No. 406; 1/327, Nos. 407, 408; 1/400, No.

524; 1/436, No. 579; 1/459, No. 623) — Musnad Of Ali Ibn Abi Talib.

✓ Al-Bazzār In *Musnad* (2/284–286, Nos. 706–708) — Musnad Of Ali Ibn Abi Talib, Narrations Via Abdullah Ibn Salamah.

✓ Ibn Abi Shaybah In *Muṣannaf* (2/34–35, Nos. 1084, 1085; 2/40, No. 1113) — Book Of Purity, On Those Who Disliked The Junub Reciting Qur'an.

✓ Al-Ṭaḥāwī In *Sharḥ Ma'Āni Al-Āthār* (1/87, Nos. 558–563) — Book On Purity, Chapters Mentioning Junub, Menstruating Women, And The Non-Purified Reading Qur'an.

✓ Al-Ṭabarānī In *Al-Awsaṭ* (7/9, No. 6697; 7/121, No. 7039) — In The Section Of Narrators With The Name Muhammad.

In This Sanad (Chain Of Narration), Abdullah Bin Salama Is A Disputed Narrator.

- Scholars Like **Imam Al-'Ajli, Ibn Hibban, Ibn Hajar, Imam Al-Dhahabi, Ibn 'Adi, Imam Ya'Qub** Consider Him **Authentic (Sahih)**.
- However, **Ahmad Ibn Hanbal, Amir Ibn Murrah, Shu'bah Ibn Al-Hajjaj, Al-Shafi'I, Al-Bukhari, Al-Bayhaqi, Al-Asji, Al-Tirmidhi (According To One Opinion), Al-Bazzar, Abu Hatim, Al-Barqi, Al-'Aqili, Ibn Al-Jarud** Consider Him **Weak (Da'If)**.

Thus, **This Narration Is Weak** — But Despite That, Some Scholars Among The Early And Later Generations Have Considered It **Sahih (Authentic)** Or **Hasan**.

These Include Scholars Like **Imam Al-Tirmidhi, Abu 'Ali Al-Tusi, Ibn Al-Mulaqqin Al-Shafi'I, Ibn 'Abd Al-Barr Al-Maliki, Ibn 'Adi, Al-'Ayni Al-Hanafi, Ibn Hibban, Ibn Al-Sakan, 'Abd Al-Haqq, Al-Baghawi, Ibn Khuzaymah (According To One Opinion)**.

Tirmidhi (Hadith 131):

Ibn 'Umar Narrates That The Messenger Of Allah ﷺ Said:

“The One Who Is Junub (In A State Of Major Ritual Impurity) And The Menstruating Woman Should Not Recite Anything From The Qur'an.”

Arabic:

حَدَّثَنَا عَلِيُّ بْنُ حُجْرٍ وَالْحَسَنُ بْنُ عَرَفَةَ ، قَالَا : حَدَّثَنَا إِسْمَاعِيلُ بْنُ عَيَّاشٍ ، عَنْ مُوسَى بْنِ عُقْبَةَ ، عَنْ نَافِعٍ ، عَنْ ابْنِ عُمَرَ ، عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ ، قَالَ : لَا تَقْرَأُ الْحَائِضُ وَلَا الْجُنُبُ شَيْئًا مِنَ الْقُرْآنِ

(*Hasan Li Ghayrihi / Musnad*)

Takhrij (Sources) Of This Hadith:

- Al-Tirmidhi In His *Jami'* (1/174, Hadith 131)
- Ibn Majah In *Sunan* (1/376, Hadith 595)
- Abu Al-Hasan Al-Qattan In His *Additions To Sunan Ibn Majah* (1/376, Hadith 596)
- Al-Bayhaqi In *Sunan Al-Kubra* (1/89, Hadith 421), (1/309, Hadith 1502)
- Al-Daraqutni In *Sunan* (1/210–211, Multiple Hadiths)
- Al-Bazzar In His *Musnad* (12/219, Hadith 5925)
- Al-Tahawi In *Sharh Ma'Āni Al-Āthār* (1/88, Hadith 568)

About The Sanad (Chain)

This Sanad Includes **Isma‘Il Ibn ‘Ayyash**.

- When **Isma‘Il Ibn ‘Ayyash** Narrates From The People Of Iraq And Madinah, The Hadith Is Considered **Weak (Da‘If)** — And This Is An Agreed Matter Among Hadith Scholars.
- And **Musa Ibn ‘Uqbah** Is A Madani Narrator.

However, A **Sahih (Authentic) Mutabi‘ (Supporting Narration)** Exists From **Al-Mughirah Ibn ‘Abd Al-Rahman**, Reported By Al-Daraqutni (Hadith 423) In The Chapter About Not Reciting Qur’an In The State Of Janabah Or Menstruation:

Arabic:

حَدَّثَنَا مُحَمَّدُ بْنُ حَمْدَوَيْهِ الْمَرْوَزِيُّ ، حَدَّثَنَا عَبْدُ اللَّهِ بْنُ حَمَّادٍ الْأَمَلِيُّ ، حَدَّثَنَا عَبْدُ الْمَلِكِ بْنُ مَسْلَمَةَ ، حَدَّثَنِي الْمُغِيرَةُ بْنُ عَبْدِ الرَّحْمَنِ ، عَنْ مُوسَى بْنِ عُبَيْدَةَ ، عَنْ نَافِعٍ ، عَنْ ابْنِ عُمَرَ ، قَالَ : قَالَ رَسُولُ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - : " لَا يَقْرَأُ الْجُنُبُ شَيْئًا مِنَ الْقُرْآنِ . "

Translation: “The One In A State Of Janabah Does Not Recite Anything From The Qur’an.”

There Is **Another Mutabi‘ (Parallel Chain)** In This Chapter Through **Abu Ma‘Shar**.

Musnad Ahmad, Volume 1, Page 246, Hadith 887

From The Musnad Of Ali Ibn Abi Talib (May Allah Be Pleased With Him), He Said:

“I Saw The Messenger Of Allah ﷺ Perform Wudu (Ablution) And Then Recite Something From The Qur’an. But This Is Only For Someone Who Is Not In A State Of Major Impurity (Junub); As For The One Who Is Junub, He Must Not Recite Even A Single Verse Of The Qur’an.”

Arabic:

حَدَّثَنَا عَائِدُ بْنُ حَبِيبٍ ، حَدَّثَنِي غَامِرُ بْنُ السَّمِطِ ، عَنْ أَبِي الْغَرِيفِ قَالَ : أَتَيْتُ عَلِيَّ بْنَ أَبِي طَالِبٍ ، فَصَضَمْتُ وَاسْتَنْشَقْتُ ثَلَاثًا ، وَغَسَلْتُ وَجْهَهُ ثَلَاثًا ، وَغَسَلْتُ يَدَيْهِ وَذِرَاعَيْهِ ثَلَاثًا ثَلَاثًا ، ثُمَّ مَسَحَ بِرَأْسِهِ ، ثُمَّ غَسَلَ رِجْلَيْهِ ، ثُمَّ قَالَ : هَكَذَا رَأَيْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ تَوَضَّأَ ، ثُمَّ قَرَأَ شَيْئًا مِنَ الْقُرْآنِ ، ثُمَّ قَالَ : هَذَا لِمَنْ لَيْسَ بِجُنُبٍ ، فَأَمَّا الْجُنُبُ فَلَا ، وَلَا آيَةَ .

(Grading: Hasan)

Takhrij (References) For This Hadith

- Al-Bayhaqi In *Sunan Al-Kubra* (1/89) No. 420 (Book Of Purification, Chapter: Prohibition For The Junub From Reciting Qur’an)
- Al-Daraqutni In *Sunan* (1/212) No. 425
- Ahmad In *Musnad* (1/246) No. 887
- Abu Ya‘La In *Musnad* (1/300) No. 365
- ‘Abd Al-Razzaq In *Al-Musannaf* (1/336) No. 1306
- Ibn Abi Shaybah In *Al-Musannaf* (2/36) No. 1092 And (2/37) No. 1097

Daraqutni (426) – Abu Musa Al-Ash‘Ari (May Allah Be Pleased With Him)

He Reports That The Messenger Of Allah ﷺ Told Ali:

“O Ali, I Am Pleased For You With What I Am Pleased For Myself, And I Dislike For You What I Dislike For Myself. Do Not Recite The Qur’an While You Are Junub, Nor While You Are Bowing, Nor While You Are In Prostration. Do Not Pray While Your Hair Is Tied Up, And Do Not Slaughter Animals Hastily Like A Donkey (Meaning, Without Following The Proper Method).”

Arabic:

حَدَّثَنَا إِسْمَاعِيلُ بْنُ مُحَمَّدٍ الصَّفَّارُ... قَالَ رَسُولُ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - : " يَا عَلِيُّ إِنِّي أَرْضَى لَكَ مَا أَرْضَى لِنَفْسِي ، وَأَكْرَهُ لَكَ مَا أَكْرَهُ لِنَفْسِي ، لَا تَقْرَأَ الْقُرْآنَ وَأَنْتَ جُنُبٌ ، وَلَا وَأَنْتَ رَاكِعٌ ، وَلَا وَأَنْتَ سَاجِدٌ ، وَلَا تُصَلِّ وَأَنْتَ عَاقِصٌ شَعْرَكَ ، وَلَا تُدْبِحُ تَدْبِيحَ الْحِمَارِ "

(Reported In Musnad And Other Sources)

Takhrij (References) For This Hadith

- Al-Tirmidhi In *Jami* ‘ (1/315) No. 282; (2/280) No. 957, 958; (5/168) No. 3088, 3089
- Ibn Majah In *Sunan* (2/62) No. 894, 895; (2/111) No. 965
- Sa‘Id Ibn Mansur In *Sunan* (5/238) No. 1008
- Al-Bayhaqi In *Sunan Al-Kubra* (2/120) No. 2788; (3/212) No. 5872
- Al-Daraqutni In *Sunan* (1/213) No. 426
- Ahmad In *Musnad* (1/320) No. 1260
- Abu Dawud Al-Tayalisi In *Musnad* (1/150) No. 178
- ‘Abd Ibn Humayd In *Al-Muntakhab* (1/52) No. 67
- Al-Bazzar In *Musnad* (3/84) No. 856; (8/122) No. 3126
- Ibn Hajar In *Al-Matalib Al-‘Aliyah* (3/592) No. 381; (6/109) No. 1051
- ‘Abd Al-Razzaq In *Al-Musannaf* (2/144) No. 2835, 2836, 2993, 2994, 3027, 3311
- Ibn Abi Shaybah In *Al-Musannaf* (2/545) No. 2950, 2951; (5/277) No. 7937; (5/335) No. 8133; (5/339) No. 8145; (8/623) No. 15341
- Al-Tahawi In *Sharh Mushkil Al-Athar* (12/392–393) No. 4883–4885; (15/479) No. 6175

Ahmed Bin Ali Bin Muslim Is Trustworthy (Thiqa).

Al-Khatib Al-Baghdadi Described Him As **Thiqa (Trustworthy)**, **Sahih Al-Hifz (Sound In Memorization)**, **Mutqin (Precise)**, **Hasan Al-Madhab (Of Good School Of Thought)**.

وَكَانَ ثِقَةً حَافِظًا مَتَقْنًا، حَسَنَ الْمَذْهَبِ.

(Tarikh Baghdad, Volume 5, Page 501, No. 2362)

Imam Al-Daraqutni Also Called Him Thiqa.

قَالَ أَبُو الْحَسَنِ الدَّارِقُطْنِيُّ: وَأَحْمَدُ بْنُ عَلِيٍّ بْنُ مُسْلِمٍ الْأَبَارِيُّ أَبُو الْعَبَّاسِ ثِقَةٌ.

(Tarikh Baghdad, Volume 5, Page 501, No. 2362)

Imam Abu Al-Husayn Ibn Abi Ya‘La, Muhammad Bin Muhammad (Died 526 AH), Also Called Him Thiqa, Quoting From Daraqutni:

وَسُئِلَ الدَّارِقُطْنِيُّ عَنْهُ فَقَالَ: ثِقَةٌ.

(Tabaqat Al-Hanabila, Vol. 1, Page 52)

Khair Al-Din Bin Mahmoud Bin Muhammad Bin Ali Bin Faris Al-Zarkali Al-Dimashqi (Died 1396 AH) Said He Was A Hafiz Al-Hadith (Memorizer/Preserver Of Hadith).

(Al-A‘Lam, Vol. 1, Page 170)

Hadith Reports

Daraqutni, Vol. 1, Hadith 428:

Abd Allah Al-Ghafiqi Reports (Regarding Junub—State Of Major Ritual Impurity) That The Messenger Of Allah ﷺ Said:

“Do Not Recite (From The Qur’an) Until You Have Performed Ghusl (Ritual Bath).”

Arabic:

حَدَّثَنَا ابْنُ مَخْلَدٍ ، حَدَّثَنَا الصَّائِغَانِيُّ ، حَدَّثَنَا أَبُو الْأَسْوَدِ ، حَدَّثَنَا ابْنُ لَهْيَعَةَ ، عَنْ عَبْدِ اللَّهِ بْنِ سُلَيْمَانَ ، عَنْ نَعْلَبَةَ بْنِ أَبِي الْكُنُودِ ، عَنْ عَبْدِ اللَّهِ الْعَافِقِيِّ ، قَالَ : أَكَلَ رَسُولُ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - يَوْمًا طَعَامًا ، ثُمَّ قَالَ : اسْتُرْ عَلَيَّ حَتَّى أُغْتَسِلَ ، فَقُلْتُ لَهُ : أَنْتَ جُنُبٌ ؟ قَالَ : نَعَمْ ، فَأَخْبَرْتُ ذَلِكَ عُمَرَ بْنَ الْخَطَّابِ ، فَخَرَجَ إِلَى رَسُولِ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - فَقَالَ : إِنَّ هَذَا يَزْعُمُ أَنَّكَ أَكَلْتَ وَأَنْتَ جُنُبٌ ، قَالَ : " نَعَمْ ، إِذَا تَوَضَّأْتَ أَكَلْتُ وَشَرِبْتُ ، وَلَا أَقْرَأُ حَتَّى أُغْتَسِلَ " .

Translation: The Messenger Of Allah ﷺ Once Ate Food, Then Said, “Cover Me So I May Perform Ghusl.” I Asked, “Are You In A State Of Janabah?” He Said, “Yes.” I Informed Umar Ibn Al-Khattab, Who Then Went To The Messenger Of Allah ﷺ And Said, “This One Claims You Ate While Junub.” He Replied, “Yes, When I Perform Wudu, I Eat And Drink, But I Do Not Recite (The Qur’an) Until I Have Done Ghusl.”

Takhrij (Source References):

- Al-Bayhaqi In Sunan Al-Kubra (1/89) No. 418 (Book Of Purification, Chapter On Prohibiting The Junub From Reciting Qur’an)
- Al-Daraqutni In Sunan (1/213) No. 427, (1/214) No. 428 (Same Chapter)
- Al-Tahawi In Sharh Ma‘Ani Al-Athar (1/88) No. 569 (Book Of Purification, Chapter On The Junub, Menstruating Woman, And Those Without Wudu Reciting Qur’an)
- Al-Tabarani In Al-Kabir (19/295) No. 656 (Bab Al-Mim, Malik Ibn Abd Allah Al-Ghafiqi Abu Musa)

Daraqutni, No. 430:

Ibn Abbas Narrates From Abdullah Bin Rawahah Bin Thalabah (Leader At Badr) That The Messenger Of Allah ﷺ Forbade Them From Reciting The Qur’an When They Were Junub.

Arabic:

حَدَّثَنَا أَبُو بَكْرِ مُحَمَّدُ بْنُ عَمْرِو بْنِ أَبِي تَيْبٍ الْمَعْدَلِيُّ بِالرَّمْلَةِ ، وَالْحَسَنُ بْنُ الْخَضِرِ الْمَعْدَلِيُّ بِمَكَّةَ ، قَالَا : حَدَّثَنَا إِسْحَاقُ بْنُ إِبْرَاهِيمَ بْنِ يُونُسَ الْبَغْدَادِيُّ ، حَدَّثَنَا يَحْيَى بْنُ عُثْمَانَ السِّمْسَارِيُّ ، حَدَّثَنَا إِسْمَاعِيلُ بْنُ عِيَّاشٍ ، عَنْ زَمْعَةَ بْنِ صَالِحٍ ، عَنْ سَلَمَةَ بْنِ وَهْرَامَ ، عَنْ عِكْرَمَةَ ، عَنْ ابْنِ عَبَّاسٍ ، عَنْ عَبْدِ اللَّهِ بْنِ رَوَاحَةَ : " أَنَّ رَسُولَ اللَّهِ - صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ - نَهَى أَنْ يَقْرَأَ أَحَدُنَا الْقُرْآنَ وَهُوَ جُنُبٌ .

Takhrij (Source References):

- Al-Daraqutni In Sunan (1/216) No. 430, 431, 432, 433 (Book Of Purification, Chapter On Forbidding Junub And Menstruating Women From Reading Qur’an)

Sharh Ma‘Ani Al-Athar, Vol. 1, P. 85, Hadith 542:

Al-Muhajir Bin Qunfudh Reports: I Greeted The Messenger Of Allah ﷺ While He Was Performing Wudu, And He Did Not Respond. When He Finished, He Said, **“Nothing Prevented Me From Returning Your Greeting Except That I Disliked Mentioning Allah Except In A State Of Purity.”**

Arabic:

حَدَّثَنَا عَلِيُّ بْنُ مَعْبُدٍ قَالَ : ثَنَا عَبْدُ الْوَهَّابِ بْنُ عَطَاءٍ ، عَنْ سَعِيدٍ ، عَنْ قَتَادَةَ ، عَنْ الْحَسَنِ عَنْ حُضَيْنِ بْنِ أَبِي سَاسَانَ ، عَنِ الْمُهَاجِرِ بْنِ قُنْفُذٍ ، أَنَّهُ سَلَّمَ عَلَى رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَهُوَ يَتَوَضَّأُ ، فَلَمْ يَرُدَّ عَلَيْهِ ، فَلَمَّا فَرَغَ مِنْ وُضُوئِهِ قَالَ : إِنَّهُ لَمْ يَنْعَنِي أَنْ أَرُدَّ عَلَيْكَ إِلَّا أَنِّي كَرِهْتُ أَنْ أَذْكَرَ اللَّهَ

عَزَّ وَجَلَّ إِلَّا عَلَى طَهَارَةٍ .

(Hasan Li-Dhatihi — Good By Itself)

Takhrij (Source References):

- Ibn Khuzaymah In Sahih (1/313) No. 206
- Ibn Hibban In Sahih (3/82) No. 803, (3/86) No. 806
- Al-Hakim In Mustadrak (1/167) No. 596, (3/479) No. 6080
- Al-Nasa'i In Sunan Al-Mujtaba (1/33) No. 38/1, And Sunan Al-Kubra (1/86) No. 34
- Abu Dawud In Sunan (1/8) No. 17
- Al-Darimi In Musnad (3/1726) No. 2683
- Ibn Majah In Sunan (1/230) No. 350
- Abu Al-Hasan Al-Qattan In His Additions To Sunan Ibn Majah (1/231)
- Al-Bayhaqi In Sunan Al-Kubra (1/90) No. 429
- Ahmad In Musnad (8/4370) No. 19339, (9/4815) No. 21092, 21093, 21094
- Ibn Abi Shaybah In Musannaf (13/189) No. 26249
- Al-Tahawi In Sharh Ma'Ani Al-Athar (1/27) No. 110, (1/85) No. 542, 543
- Al-Tabarani In Al-Kabir (20/329) No. 779, 780, 781

Explanation Of The Hadith (Sharah Al Hadees)

From This Hadith, Imam Tahawi Draws The Argument (Istidlal) That When The Messenger Of Allah ﷺ Does Not Offer Salam (Greetings) When He Is Not In A State Of Purity (I.E., When He Is In A State Of Major Impurity, Junub), Then It Can Be Said Even More Strongly That Reciting The Qur'an In Such A State Is An Even Greater Matter. Why? Because The Word "Salam" Is Mentioned In The Qur'an, But Its Use In This Context Is As A Form Of Supplication (Dua), Not As A Formal Recitation (Qira'at) Of The Qur'an. However, The Verses Of The Qur'an Are Recited Specifically With The Intention Of Qira'at.

So, When The Messenger Of Allah ﷺ Did Not Respond To Salam While In The State Of Janabah (Major Impurity), Then It Is Understood That Reciting The Qur'an Would Be Even More Inappropriate In That State. Imam Tahawi's Reasoning Is Supported By Many Ahadith (Narrations) On This Topic, As We Will Explain Here.

Sahih Muslim, Volume 1, Page 169, Hadith 369/822

Abu Jahm Reports That The Messenger Of Allah ﷺ Was Coming From The Direction Of Bi'r Jamal (A Well) When A Man Greeted Him With Salam. The Messenger Of Allah ﷺ Did Not Respond Until He Reached A Wall, Wiped His Face And Hands (Performed Tayammum), And Then Responded To The Salam.

Arabic Narration:

قَالَ مُسْلِمٌ ... أَقْبَلَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ نَحْوِ بئرِ جَمَلٍ ... ثُمَّ رَدَّ عَلَيْهِ السَّلَامَ.

The Same Hadith Is Found In Musnad Abu Dawood Al-Tayalisi, Volume 3, Page 381, Hadith 1962, With Some Additional Wording:

The Messenger Of Allah ﷺ Said:

“Nothing Prevented Me From Responding To You Except That I Was Not In A State Of Purity.” (I.E., I Was In A State Of Major Impurity, Janabah).

Arabic Narration:

فَقَالَ : مَا مَنَعَنِي أَنْ أُرَدَّ عَلَيْكَ ، إِلَّا أَنِّي كُنْتُ غَيْرَ طَاهِرٍ ...

Note: In This Chain (Sanad), Muhammad Bin Thabit Is Weak (Da‘If).

Takhrij (References) Of The Hadith

This Hadith Is Recorded In Numerous Major Hadith Compilations:

- **Sahih Muslim** (1/194), Hadith No. 370, Book Of Menstruation (Kitab Al-Hayd), Chapter On Tayammum
- **Muwatta Malik** (1/76), Hadith No. 176–177, Book Of Prayer Times, On Tayammum
- **Ibn Jarud’s Al-Muntaqa** (1/22–23), Hadith Nos. 40–41, On The Dislike Of Offering Salam To Someone Urinating
- **Ibn Khuzaymah’s Sahih** (1/191), Hadith No. 73, Book Of Wudu, Chapter On Dislike Of Responding To Salam While Urinating
- **Ibn Hibban’s Sahih** (4/145), Hadith No. 1316, Book Of Purification, On Performing Tayammum To Respond To Salam Even When At Home
- **Al-Hakim’s Mustadrak** (1/179–180), Hadith Nos. 639–645, Book Of Purification, Rulings Of Tayammum
- **Al-Nasa’i’s Al-Mujtaba** (1/33), Hadith No. 37/1, Book Of Purification, Chapter On Salam To Someone Urinating
- **Abu Dawood’s Sunan** (1/8, 1/129), Hadith Nos. 16, 330–331, Book Of Purification, Chapters On Responding To Salam While Urinating And Tayammum At Home
- **Al-Tirmidhi’s Jami’** (1/133, 4/442–443), Hadith Nos. 90, 2720, Chapters On The Dislike Of Responding To Salam Without Wudu And On The Etiquette Of Salam To Someone Urinating
- **Ibn Majah’s Sunan** (1/232), Hadith No. 353, Chapters On Purification And Its Etiquettes
- **Al-Bayhaqi’s Sunan Al-Kubra** (1/99, 1/206–215, Etc.), Book Of Purification, Various Chapters On Talking While Relieving Oneself, How To Perform Tayammum, Narrations About Tayammum, And When Travelers Can Perform Tayammum
- **Al-Daraqutni’s Sunan** (1/325–336, Etc.), Book Of Purification, Numerous Chapters On Tayammum
- **Al-Tahawi’s Sharh Ma’ani Al-Athar** (1/85, 1/114), Book Of Purification, Chapters On The Junub, Menstruating Woman, And One Without Wudu Reciting The Qur’an, And On The Description Of Tayammum
- **Al-Tabarani’s Al-Kabir** (12/367), Hadith No. 13366, Nafi’ From Ibn Umar
- **Al-Tabarani’s Al-Awsat** (8/6), Hadith No. 7784, From Mahmoud Bin Muhammad Al-Wasiti
- **Al-Tayalisi’s Musnad** (3/381), Hadith No. 1962, Narrations From Abdullah Ibn Umar
- **Al-Bazzar’s Musnad** (Various Locations), Hadith Nos. 1390, 5984–5985, 6088–6089, Narrations From Ammar Ibn Yasir And Abdullah Ibn Umar
- **Abdur Razzaq’s Musannaf** (1/211–229), Hadith Nos. 817–884, Book Of Purification, Chapters On How Many Strikes Are Used For Tayammum, The Start Of Tayammum, Etc.
- **Ibn Abi Shaybah’s Musannaf** (2/185–233, Etc.), Hadith Nos. 1685, 1694, 8119, 26250, Various Topics On Tayammum And Etiquette Of Salam

Azra Bin Abdul Rahman Bin Zarara Narrates:

Salman Al-Farsi (May Allah Be Pleased With Him), When He Had Minor Impurity (ḥadath), Would Still Recite (The Qur'an).

Someone Said To Him: "You Are Reciting While You Are In A State Of ḥadath (Without Wudhu)?"

He Replied: "Yes, I Am Not In A State Of Janābah (Major Impurity)."

Arabic:

حَدَّثَنَا ابْنُ خُرَيْمَةَ ، قَالَ : ثَنَا حَجَّاجٌ ، قَالَ : ثَنَا حَمَّادٌ ، عَنْ عَاصِمِ الْأَحْوَلِ ، عَنْ عَزْرَةَ ، عَنْ سَلْمَانَ أَنَّهُ أَحَدَّثَ فَجَعَلَ يَقْرَأُ . فَقِيلَ لَهُ : أَنْتَ قَدْ أَحَدَّثْتَ ؟ قَالَ : نَعَمْ ، إِنِّي لَسْتُ بِجُنُبٍ

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Sharah Ma'ani Al-Athar, Volume 1, Page 90, Hadith 580

Saeed Ibn Al-Musayyab (May Allah Have Mercy On Him) Said:

Abu Huraira (May Allah Be Pleased With Him) Used To Recite (Qur'anic) Surahs Even When He Was Not In A State Of Complete Purity.

Arabic:

حَدَّثَنَا سُلَيْمَانُ بْنُ شُعَيْبٍ ، قَالَ : ثَنَا عَبْدُ الرَّحْمَنِ بْنُ زَيْدٍ ، قَالَ : ثَنَا شُعْبَةُ ، قَالَ : سَأَلْتُ قَتَادَةَ عَنِ الرَّجُلِ يَقْرَأُ الْقُرْآنَ وَهُوَ غَيْرُ طَاهِرٍ . فَقَالَ : سَمِعْتُ . سَعِيدَ بْنِ الْمُسَيَّبِ يَقُولُ : كَانَ أَبُو هُرَيْرَةَ رَضِيَ اللَّهُ عَنْهُ رُبَّمَا قَرَأَ السُّورَةَ وَهُوَ غَيْرُ طَاهِرٍ .

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Ibn Abi Shaybah, Volume 2, Page 35, Narration 1086

Umar Ibn Al-Khattab (May Allah Be Pleased With Him) Said:

"A Person In A State Of Janābah (Major Impurity) Should Not Recite The Qur'an."

Arabic:

حَدَّثَنَا حَفْصٌ وَأَبُو مُعَاوِيَةَ ، عَنِ الْأَعْمَشِ ، عَنْ شَقِيقٍ ، عَنْ عُبَيْدَةَ عَنْ عُمَرَ قَالَ : لَا يَقْرَأُ الْجُنُبُ الْقُرْآنَ

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Takhrij (Hadith References):

Reported By Al-Dārimī In His Musnad (1/679, No. 1032), Al-Bayhaqī In Al-Sunan Al-Kubrā (1/89, No. 419), 'Abd Al-Razzāq In Al-Muṣannaf (1/337, No. 1307), Ibn Abī Shaybah In Al-Muṣannaf (2/35, No. 1086), Al-Ṭahāwī In Sharḥ Ma' Ānī Al-Āthār (1/90, No. 583), And Others.

Ibn Abi Shaybah, Volume 2, Page 35, Narration 1087 (Meaning)

When Abdullah Ibn Mas'ūd (May Allah Be Pleased With Him) Was Asked, "Are You Reciting The Qur'an?"

He Replied: "I Am Not In A State Of Janābah."

Arabic:

حَدَّثَنَا عُندَرٌ ، عَنْ شُعْبَةَ ، عَنْ حَمَّادٍ ، عَنْ إِبْرَاهِيمَ : أَنَّ ابْنَ مَسْعُودٍ كَانَ يَمْشِي نَحْوَ الْفُرَاتِ وَهُوَ يَقْرَأُ رَجُلًا ، فَبَالَ ابْنُ مَسْعُودٍ فَكَفَّ الرَّجُلُ عَنْهُ ، فَقَالَ ابْنُ مَسْعُودٍ : مَا لَكَ ؟ قَالَ : إِنَّكَ بُلْتَ ، فَقَالَ ابْنُ مَسْعُودٍ : إِنِّي لَسْتُ بِجُنُبٍ .

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Takhrij:

Reported By 'Abd Al-Razzāq (1/339, No. 1319), Ibn Abī Shaybah (2/35, No. 1087), Al-Ṭahāwī (1/90, No. 578), Al-Ṭabarānī In Al-Kabīr (9/145, Nos. 8723–8724).

Ibn Abi Shaybah, Volume 2, Page 36, Narration 1088

From Aswad (Companion Of Ibn Mas‘ūd):

“A Person In A State Of Janābah Should Not Recite (From The Qur’an).”

Arabic:

حَدَّثَنَا ابْنُ مَهْدِيٍّ ، عَنْ سُفْيَانَ ، عَنْ إِبْرَاهِيمَ بْنِ الْمُهَاجِرِ ، عَنْ إِبْرَاهِيمَ ، عَنِ الْأَسْوَدِ قَالَ : لَا يَقْرَأُ الْجُنُبُ

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Ibn Abi Shaybah, Volume 2, Page 36, Narration 1089

Mujāhid Said:

“A Person In A State Of Janābah Should Not Recite The Qur’an.”

Arabic:

حَدَّثَنَا ابْنُ عُيَيْنَةَ ، عَنْ ابْنِ أَبِي نَجِيحٍ عَنْ مُجَاهِدٍ قَالَ : لَا يَقْرَأُ الْجُنُبُ الْقُرْآنَ

(Status: **Weak** — Due To Abu ‘Abdullah Ibn Abī Najīh’s Tadrīs (Hidden Transmission))

Ibn Abi Shaybah, Volume 2, Page 36, Narration 1090

‘Āmir Al-Sha‘Bī (Tabi‘ī) Said:

“A Person In Janābah And A Menstruating Woman Should Not Recite The Qur’an.”

Arabic:

حَدَّثَنَا شَرِيكٌ ، عَنْ فِرَاسٍ عَنْ عَامِرٍ قَالَ : الْجُنُبُ وَالْحَائِضُ لَا يَقْرَأُ الْقُرْآنَ

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Takhrij:

Reported By Al-Dārimī (1/679, No. 1031), Ibn Abī Shaybah (2/36, No. 1090).

Ibn Abi Shaybah, Volume 2, Page 36, Narration 1091

Abū Wā‘il (Student Of ‘Umar And Mu‘Ādh Ibn Jabal) Said:

“A Person In Janābah And A Menstruating Woman Should Not Recite The Qur’an.”

Arabic:

حَدَّثَنَا غُنْدَرٌ ، عَنْ شُعْبَةَ ، عَنْ سَيَّارٍ عَنْ أَبِي وَائِلٍ قَالَ : لَا يَقْرَأُ الْجُنُبُ وَالْحَائِضُ الْقُرْآنَ

(Status: **Reliable Narrators**)

Takhrij:

Reported By Al-Dārimī (1/681, No. 1038), Ibn Abī Shaybah (2/36, No. 1091).

Sunan Al-Dārimī, Volume 1, Page 680, Hadith 1033

Ibrāhīm (Al-Nakha‘ī) Said:

“Four Types Of People Do Not Recite The Qur’an: When In The Toilet, In The Bathhouse, A Person In Janābah, And A Menstruating Woman — Except For A Verse Or So (I.E., For Dhikr Purposes) For The Junub And The Menstruating Woman.”

Arabic:

أَخْبَرَنَا يَزِيدُ بْنُ هَارُونَ ، عَنْ هِشَامِ الدَّسْتَوَائِيِّ ، عَنْ حَمَادٍ ، عَنْ إِبْرَاهِيمَ قَالَ : أَرْبَعَةٌ لَا يَقْرَأُونَ الْقُرْآنَ : عِنْدَ الْخَلَاءِ ، وَفِي الْحَمَامِ ، وَالْجُنُبِ وَالْحَائِضِ ، إِلَّا الْآيَةَ وَنَحْوَهَا لِلْجُنُبِ وَالْحَائِضِ

(Status: **Authentic On Its Own**, Sahih Li Dhātihi)

Takhrij:

Reported By Al-Dārimī (1/678, Nos. 1030–1034), ‘Abd Al-Razzāq (1/340, No. 1323; 1/413, No. 1619), Ibn Abī Shaybah (2/37–38, Nos. 1093, 1096, 1100, 1103, 1121, 1230).

Ibn Abi Shayba, Volume 2, Page 37, Narration 1094

Muhammad Bin Ali Bin Al-Husayn (Meaning Al-Baqir)

“We Do Not See Any Harm If A Person In The State Of Major Impurity (Junub) Or A Menstruating Woman (ḥa‘Id) Recites Some Portion Of The Qur’an.”

Arabic:

. حَدَّثَنَا عَبْدُ الْوَهَّابِ النَّخَعِيُّ ، عَنْ جَعْفَرٍ عَنْ أَبِيهِ : أَنَّهُ كَانَ لَا يَرَى بَأْسًا أَنْ يَقْرَأَ الْجُنُبُ وَالْحَائِضُ الشَّيْءَ مِنَ الْقُرْآنِ

(Sahih Li-Dhatihi — **Authentic In Itself**)

Ibn Abi Shayba, Volume 2, Page 37, Narration 1095

Ikramah (The Tabi‘I) Says:

“There Is No Harm If A Junub (Ritually Impure) Person Or A Menstruating Woman Recites One Or Two Verses Of The Qur’an.”

Arabic:

. أَخْبَرَنَا النَّخَعِيُّ ، عَنْ خَالِدٍ عَنْ عِكْرَمَةَ : أَنَّهُ كَانَ لَا يَرَى بَأْسًا أَنْ يَقْرَأَ الْجُنُبُ الْآيَةَ وَالْآيَتَيْنِ

(Sahih Li-Dhatihi — **Authentic In Itself**)

Abdul Razzaq, Volume 1, Page 335, Narration 1302

Imam Al-Zuhri Says:

“A Menstruating Woman And A Junub Can Do The Remembrance (Dhikr) Of Allah, But They Should Not Recite The Qur’an.”

Ma‘Mar Reports: Hasan Al-Basri And Qatadah Say: “They Should Not Recite Anything From The Qur’an.”

Arabic:

عَنْ الرَّزَّاقِ عَنْ مَعْمَرٍ قَالَ : سَأَلْتُ الزُّهْرِيَّ ، عَنِ الْحَائِضِ وَالْجُنُبِ أَيْذُكُرَانِ اللَّهَ ؟ قَالَ : نَعَمْ ، قُلْتُ : أَفَيَقْرَأُ الْقُرْآنَ ؟ قَالَ : لَا . قَالَ مَعْمَرٌ : وَكَانَ الْحَسَنُ وَقَتَادَةُ يَقُولَانِ : لَا يَقْرَأُ شَيْئًا مِنَ الْقُرْآنِ

(Sahih Li-Dhatihi)

Takhrij Al-Hadith:

Reported By Al-Bayhaqi In *Al-Sunan Al-Kubra* (1/309, No. 1503) — Book Of Menstruation, Chapter On The

Menstruating Woman Not Touching The Mushaf Or Reciting The Qur'an; And By Abdul Razzaq In *Al-Musannaf* (1/335, No. 1302) — Book Of Menstruation, Chapter On Whether The Menstruating Woman And Junub Remember Allah.

Abdul Razzaq, Volume 1, Page 336, Narration 1303

Ibn Jurayj Asks Ata Bin Abi Rabah:

“What Can The Menstruating Woman And The Junub Recite From The Qur'an?”

He Said: “As For The Menstruating Woman, She Should Not Recite Anything; But The Junub Can Recite A Verse Or Two.”

Arabic:

أَخْبَرَنَا عَبْدُ الرَّزَّاقِ قَالَ : أَخْبَرَنَا ابْنُ جُرَيْجٍ قَالَ : قُلْتُ لِعَطَاءٍ : مَا تَقْرَأُ الْحَائِضُ وَالْجُنُبُ مِنَ الْقُرْآنِ ؟ فَقَالَ : أَمَّا الْحَائِضُ فَلَا تَقْرَأُ شَيْئًا ، وَأَمَّا الْجُنُبُ فَالْآيَةُ

(Sahih Li-Dhatihi)

Abdul Razzaq, Volume 1, Page 336, Narration 1305

Ibrahim Says:

“The Menstruating Woman And The Junub May Remember Allah And Say His Name (Tasmiya), But Should Not Recite Qur'an.”

Arabic:

عَبْدُ الرَّزَّاقِ عَنِ الثَّوْرِيِّ ، عَنْ مُغِيرَةَ ، عَنْ إِبْرَاهِيمَ قَالَ : الْحَائِضُ وَالْجُنُبُ يَذْكُرَانِ اللَّهَ وَيُسَمِّيَانِ

(Sahih Li-Dhatihi)

Takhrij Al-Hadith:

Reported By Al-Darimi In *Musnad* (1/678, No. 1029) — Book Of Purity, Chapter On Menstruating Women Remembering Allah But Not Reciting Qur'an; And By Abdul Razzaq In *Al-Musannaf* (1/336, No. 1305) — Book Of Menstruation.

Abdul Razzaq, Volume 1, Page 336, Narration 1307

Umar Ibn Al-Khattab Disliked (Found It Makruh) That A Junub Person Recite The Qur'an.

Arabic:

عَبْدُ الرَّزَّاقِ عَنِ الثَّوْرِيِّ ، عَنْ الْأَعْمَشِ ، عَنْ أَبِي وَائِلٍ ، عَنْ عُبَيْدَةَ السَّلْمَانِيِّ قَالَ : كَانَ عُمَرُ بْنُ الْخَطَّابِ ، يَكْرَهُ أَنْ يَقْرَأَ الْقُرْآنَ وَهُوَ جُنُبٌ

(Rijāl Thiqaṭ — Trustworthy Narrators)

Takhrij Al-Hadith:

Reported By Al-Darimi (1/679, No. 1032), Al-Bayhaqi In *Al-Sunan Al-Kubra* (1/89, No. 419, 422), Abdul Razzaq In *Al-Musannaf* (1/337, No. 1307), Ibn Abi Shayba (2/35, No. 1086; 2/38, No. 1104), And Al-Tahawi In *Sharh Ma 'Ani Al-Athar* (1/90, No. 583, 584).

Abdul Razzaq, Volume 1, Page 337, Narration 1308

Someone Asked Sa‘Id Ibn Al-Musayyib:

“Is It Valid For The Junub To Recite Anything From The Qur’an?”

He Replied: “Yes.”

Arabic:

عَبْدُ الرَّزَّاقِ عَنِ ابْنِ عُيَيْنَةَ ، عَنْ مُحَمَّدِ بْنِ طَارِقٍ قَالَ : سَأَلْتُ ابْنَ الْمُسَيَّبِ ، أَيْقُرَأُ الْجُنُبُ شَيْئًا مِنَ الْقُرْآنِ ؟ قَالَ : نَعَمْ

(Sahih Li-Dhatihi)

Ibn Abi Shayba, Volume 2, Page 37, Narration 1098

Sa‘Id Ibn Jubayr Was Asked:

“Can A Junub Or Menstruating Woman Recite Qur’an?”

He Replied: “A Verse Or Two, That’s All.”

Arabic:

حَدَّثَنَا عَبْدُ اللَّهِ ، عَنْ إِسْرَائِيلَ ، عَنْ عُمَرَ بْنِ عَبْدِ اللَّهِ قَالَ : سَأَلْتُ سَعِيدَ بْنَ جُبَيْرٍ : تَقْرَأُ الْحَائِضُ وَالْجُنُبُ ؟ قَالَ : الْآيَةُ وَالْآيَتَيْنِ

(Musnad)

Note: This Chain Contains ‘Umar Bin Abdullah, Who Is Weak (ḍa‘īf).

Ibn Abi Shayba, Volume 2, Page 38, Narration 1101

Abu ‘Aliyah Says:

“A Menstruating Woman Should Not Recite The Qur’an.”

Arabic:

حَدَّثَنَا حَفْصٌ ، عَنْ عَاصِمٍ عَنْ أَبِي الْعَالِيَةِ قَالَ : الْحَائِضُ لَا تَقْرَأُ الْقُرْآنَ

(Sahih Li-Dhatihi)

Takhrij Al-Hadith:

Reported By Al-Darimi (1/680, No. 1035), Ibn Abi Shayba (2/38, No. 1101; 8/440, No. 14577).

Ibn Abi Shayba, Volume 2, Page 38, Narration 1102

Ibn Sirin Says:

“A Menstruating Woman Should Not Do Qur’an Recitation.”

Arabic:

حَدَّثَنَا حَفْصٌ ، عَنْ أَشْعَثَ عَنْ مُحَمَّدٍ قَالَ : الْحَائِضُ لَا تَقْرَأُ الْقُرْآنَ

(Musnad)

Ibn Abi Shayba, Volume 2, Page 40, Narration 1114

Nafi‘ Ibn Jubayr Ibn Mut‘Im Says:

“There Is No Harm If Someone In A State Of Non-Purity (Without Ablution) Recites The Qur’an.”

Arabic:

حَدَّثَنَا هُشَيْمٌ ، عَنْ أَبِي بَشِيرٍ عَنْ نَافِعِ بْنِ جُبَيْرٍ : أَنَّهُ لَمْ يَرَ بَاسًا بِالْقُرْآنِ عَلَى غَيْرِ طَهَارَةٍ
(Muntaqā)

Note: In This Chain, Ja‘Far Bin Iyas Did Not Hear (Sama‘) From Nafi‘ Ibn Jubayr Ibn Mut‘Im.

Imam Khattabi Says:

A Person In A State Of Major Impurity (Junub) And A Woman In Menstruation (ḥā’Id) Should Not Recite The Qur’an. The State Of Impurity In A Menstruating Woman Is Considered More Severe Than That Of A Junub Person. Ahmad Ibn Hanbal Considers It Permissible For A Junub Person To Recite Qur’anic Verses, And The Narration Attributed To Ali (Regarding Prohibition) Is Weak (Da‘If). Imam Malik Says That A Junub Person Should Not Recite Even A Single Verse Of The Qur’an.

However, There Is A Narration From Malik That A Menstruating Woman May Recite The Qur’an, But The Junub Person May Not — Because A Menstruating Woman Might Forget The Qur’an Due To The Length Of Her Menstruation Days.

There Are Reports From Sa‘Id Ibn Al-Musayyab And ‘Ikrimah Stating They Saw No Harm In A Junub Person Reciting The Qur’an. However, Most Scholars Have Declared It Prohibited (Harām).

(Sharḥ Sunan Abī Dāwūd, Volume 1, Page 77)

Ibn Baṭṭāl Says:

This Chapter Is For Those Who Consider It Permissible For A Junub Or Menstruating Woman To Recite The Qur’an. Hammad Ibn Abī Sufyān, Al-Ḥakam Ibn ‘Uṭaybah, The Literalists (Ahl Al-Zāhir), And Ibrāhīm Al-Nakha‘ī Say: There Is No Harm If A Junub Person Or A Menstruating Woman Recites Qur’anic Verses.

‘Ikrimah Says It Is Permissible For The Junub Person To Recite The Qur’an But Not To Recite An Entire Surah.

Al-Ṭabarī Says That There Is Disagreement Within The Sayings Of Mālik Regarding A Menstruating Woman Reciting The Qur’an.

According To Ibn Qāsim’s Narration From Mālik, It Is Permissible For A Menstruating Woman To Recite As Much Of The Qur’an As She Wishes. But Ibn ‘Abd Al-Ḥakam’s Narration Says It Is Only Allowed To Recite One Or Two Verses.

Abū Ḥanīfah, Al-Shāfi‘ī, Aḥmad, And Abū Thawr Prohibit Reciting Whether It’s A Small Or Large Amount. This Is Also Reported From Jābir Ibn ‘Abdullāh, ‘Aṭā’, Abī Al-‘Āliyah, Sa‘Id Ibn Jubayr, And Al-Zuhrī.

There Is Also Disagreement In Mālik’s View Regarding The Junub Person. According To Ibn Qāsim’s Narration, The Junub Person Can Recite Some Verses; Ibn Shabān’s Narration From Mālik Says The Junub Can Recite Qur’ān Over Himself (Like For Protection).

Al-Awzā‘ī Says The Junub Person Should Not Recite Qur’an Except For Special Verses Like The **Verse Of Riding (Ayat Al-Rukūb)** Or The **Verse Of Disembarking (Ayat Al-Nuzūl)** — Meaning, For Example, Sūrat Al-Zukhruf, Verse 13:

“Glory Be To Him Who Has Subjected This To Us.” (تَمَتَّ سُبْحَانَ الَّذِي سَخَّرَ لَنَا هَذَا)

And Sūrat Al-Mu‘minūn, Verse 29:

“And Say: My Lord, Land Me With A Blessed Landing, For You Are The Best Of Those Who Bring To Land.” (وَقُلْ رَبِّ أَنْزِلْنِي مُنْزَلًا مُبَارَكًا)

Abū Ḥanīfah Says A Junub Person Can Recite Only Some Verses Of The Qur'an. Al-Shāfi'ī Prohibits Even Reciting A Small Or Large Amount.

There Is Disagreement Among The Early Scholars (Salaf) On This Issue. Jābir Ibn 'Abdullāh Says A Menstruating Woman Should Not Recite The Qur'an, And This Is Also The Opinion Of Abī Al-'Āliyah, 'Aṭā', Sa'īd Ibn Jubayr, And Al-Zuhrī.

There Are Also Narrations From 'Umar Ibn Al-Khaṭṭāb, 'Alī Ibn Abī Ṭālib, And Jābir Ibn 'Abdullāh That The Junub Person Should Not Recite The Qur'an.

Ibn 'Umar Narrated That Neither A Junub Person Nor A Menstruating Woman Should Recite Anything From The Qur'an, And This Is Taken As Proof. There's Also A Narration From 'Alī That When The Messenger Of Allah ﷺ Was In A State Of Janābah (Major Impurity), He Would Not Recite The Qur'an.

(Sharḥ Ṣaḥīḥ Al-Bukhārī, Volume 1, Page 421)

Summary Of The Issue

Ruling on Reciting the Qur'an While in the State of Janābah or Ḥayḍ

Main Issue: Is It Permissible for a Junub (Major Ritual Impurity) or Menstruating Person to Recite the Qur'an?

Brief Explanation:

This issue examines whether a person in a state of janābah (ritual impurity after intercourse or ejaculation) or a menstruating woman can recite any portion of the Qur'an. The **majority of jurists (jumhūr al-fuqahā')** prohibit it, citing hadith and the practice of companions, though **some minority opinions** allow limited recitation for necessity or dhikr (remembrance).

Evidence from the Text:

Key Hadiths:

- “Neither the junub nor the menstruating woman should recite anything from the Qur'an.” — Tirmidhī, Ibn Mājah, Dāraqutnī
- “The Messenger ﷺ would recite the Qur'an in all states, except when in janābah.” — 'Alī (Musnad Aḥmad, Tirmidhī)
- Daraqtunī 428: “Do not recite until you have performed ghusl.” — 'Abdullāh al-Ghāfiqī

Key Athār (Statements of Companions & Tābi'in):

- Ibn 'Umar, Ibn Mas'ūd, 'Umar, Abū Mūsā al-Ash'arī, and others prohibit recitation while junub
- Some exceptions (e.g., Sa'īd ibn al-Musayyib, 'Ikrimah) allowed minimal recitation (a verse or two)

Madhhab (School of Thought) Views:

Ḥanafī:

View:

- Recitation is **harām** for junub, menstruating, or postpartum bleeding individuals.
- Permissible **only for dhikr**, du‘ā’, or teaching one verse at a time with no intent of formal tilāwah.

Sources:

- Al-Hidāyah (al-Marghīnānī), al-‘Ināyah (commentary), al-Bināyah (al-‘Aynī), Radd al-Muḥtār (Ibn ‘Ābidīn)

Details:

- Du‘ā’-based recitation (e.g., Fātiḥah) or non-formal reading may be allowed.
- A minority opinion within the madhhab allows for necessity.

Mālikī:

View:

- **Harām**, but **exceptions** are recognized: for dhikr, ta‘awwudh, protection, or fear of forgetting the Qur’an during ḥayḍ.

Sources:

- Az-Zakhīrah (al-Qarāfī), Sharḥ al-Kabīr (al-Dardīr), reports from Ibn al-Qāsim and Ibn ‘Abd al-Ḥakam

Details:

- Some Mālikīs allow recitation for menstruating women if extended days may cause them to forget.

Shāfi‘ī:

View:

- Strictly **harām**, even to recite **one letter** or gesture toward a verse.

Sources:

- Sharḥ al-Madhhab (al-Nawawī), Mughni al-Muḥtāj (al-Shirbīnī)

Details:

- Based on the ḥadīth “lā yaqra’ al-junub” and ‘Alī’s report.
- Even mute persons are not allowed to gesture Qur’an verses.

Ḥanbalī:

View:

- **Recitation is harām**, unless **accidental** or minimal (e.g., in du‘ā’ or dhikr).
- Internal (heart-based) reading, dhikr, and tasmiya allowed.

Sources:

- Al-Iqnā’ (al-Ḥajjāwī)

Zāhirī (Literalist):

View:

- **Permissible** to recite the Qur’an even when in janābah or menstruating.

Source:

- Al-Muḥallā (Ibn Ḥazm)

Sub-Issue: Reciting Qur’an as Du‘ā’ or Dhikr

Brief Explanation:

Can Qur’anic phrases (e.g. Fātiḥah, Āyat al-Kursī) be recited not as formal tilāwah, but as du‘ā’ or dhikr?

Madhhab Positions:

- **Ḥanafī:** Permissible if not with tilāwah intent.
- **Mālikī:** Permissible for ta‘awwudh, protection (e.g., Mu‘awwidhatayn).
- **Shāfi‘ī:** Still harām.
- **Ḥanbalī:** Allowed for dhikr.
- **Zāhirī:** Fully allowed.

Sub-Issue: Teaching or Learning the Qur’an

Brief Explanation:

Is it permissible to teach or learn Qur’an in a state of janābah or ḥayḍ?

- **Ḥanafī:** Permissible to teach **one verse at a time; teaching is a valid excuse.**
- **Mālikī, Shāfi‘ī, Ḥanbalī:** Generally do not permit teaching without purity.
- **Zāhirī:** Permitted without restriction.

Sub-Issue: Hadith Evaluation (Takhrīj and Jarḥ wa Ta‘dīl)

Brief Explanation:

Multiple hadiths are cited regarding the prohibition of Qur’an recitation for the junub. There is **significant debate over their chains.**

Examples:

- **Hadith of ‘Alī:** Narrated in Tirmidhī, Aḥmad, Dāraqutnī. Criticized for weakness (‘Abd Allāh ibn Salamah in the chain), but **graded ḥasan by some.**
- **Hadith of Ibn ‘Umar:** “Do not recite in janābah.” – Reported by Tirmidhī and others; **disputed due to Ismā‘īl ibn ‘Ayyāsh** narrating from Madanī narrators.

Note: Despite some weak links, many scholars accepted the hadiths due to mutāba‘āt and supporting athār.

Sub-Issue: Recitation Without Wudū’

- **Most madhhabs** allow Qur’an recitation without wudū’, **except Ḥanbalīs and Zāhirīs** who are more lenient even with major impurity.
- **Reciting without wudū’ is not equivalent to janābah** in severity.

Sub-Issue: Early Generational Differences

Some of the **tābi‘īn and early imams** allowed minimal recitation while in janābah or ḥayḍ:

- **Permissive views:** Sa‘īd ibn al-Musayyib, ‘Ikrimah, Muḥammad al-Bāqir, Mujāhid
- **Restrictive views:** Ibn ‘Abbās, Ibn Mas‘ūd, Abū Mūsā al-Ash‘arī, al-Zuhrī, Abū ‘Āliyah

Conclusion

For A Man Or Woman In A State Of Janābah (Major Ritual Impurity), It Is Harām (Forbidden) To Recite The Qur’an. This Has Been Reported By A Group Of Companions (ṣaḥābah), Including:

- Abdullāh Ibn ‘Umar
- Ali Ibn Abī Ṭālib
- Abū Mūsā Al-Ash‘arī

- Abdullāh Al-Ghāfiqī
- Abdullāh Ibn Rawāḥah Ibn Thalabah
- Abdullāh Ibn ‘Abbās
- Ezra Ibn ‘Abd Al-Raḥmān Ibn Zarārah
- Umar Ibn Al-Khaṭṭāb
- Abdullāh Ibn Mas‘ūd

Among The Tābi‘īn (Successors) And Leading Imams (A’immah), It Has Also Been Stated By:

- Al-Aswad
- Mujāhid
- Āmir Al-Sha‘Bī
- Abū Wā’il
- Ḥasan Al-Baṣrī
- Qatādah
- Abū Al-‘Āliyah
- Ibn Sīrīn, Etc.

This Is Also The Position Of The Shāfi‘ī School.

However, It Is Permissible To Recite The Qur’an Out Of Fear Or To Protect Oneself From Shayṭān (Satan), And If Some Words Slip Unintentionally From The Mouth, There Is No Blame For That.

Reciting Qur’anic Verses As Du‘Ā (Supplication) Or Dhikr (Remembrance) Is Considered **Shadeed Makrūh (Strongly Disliked)**.

And Allah Knows Best.

Final Note:

This Is A Matter Of **Ijtihad (Scholarly Reasoning)**. According To The Principles Of Ahl Al-Sunnah:

*When Two Mujtahids Make A Judgment, One May Be Right And The Other Mistaken. The One Who Is Correct Gets **Two Rewards**, While The Mistaken One Still Gets **One Reward** Because He Sincerely Exerted Effort With Honesty And Justice.*